



Civil Procedure Code



No part of this publication can be reproduced or transmitted in any form or by any means, without prior permission of the Publisher.

<https://goo.gl/mEZwW1> (best coaching)

<https://goo.gl/FkFRRH> (best coaching)

WE ENSURE YOUR HARD WORK, WE ENSURE YOUR SUCCESS

CHAPTER I THE CODE OF CIVIL PROCEDURE, 1908

INTRODUCTION

Dear aspirant,

Laws can be divided into two groups:

- i) **Substantive Law**, and
- ii) **Adjective or Procedural Law**

The comparison between the two can be made with the help of the following chart:

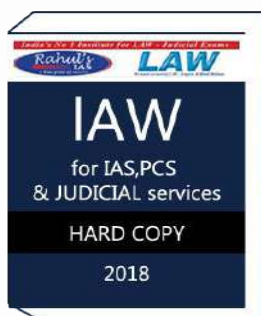
SUBSTANTIVE LAW	ADJECTIVE LAW
1. Substantive law determines rights and liabilities of parties. 2. The function of substantive law is to define, create or confer substantive legal rights or legal status or to impose and define the nature and extent of legal duties. 3. The procedural and substantive laws are complementary to each other and interdependent on each other. 4. <i>Examples:</i> Indian Contract Act, 1872; The Transfer of Property Act, 1882; The Industrial Disputes Act, 1947; IPC etc. 5. The substantive laws are generally prospective in operation.	1. Adjective or procedural law prescribes the practice, procedure and machinery, procedure and machinery for the enforcement of rights and liabilities. 2. The function of procedural law is to provide the machinery or the matter in which the legal rights or status and legal duties may be enforced. 3. Procedural law is an accessory to substantive law. It is the procedural law which puts life into substantive law by providing a remedy and implements the well known maxim <i>ubi jus ibi remedium</i>. <i>Examples:</i> The Indian Evidence Act, 1872; The Limitation Act, 1963; CPC, 1908; Cr. P. C. 1973, etc. 5. The procedural laws are always retrospective in operative unless there are good reasons to the contrary but CPC is not retrospective in operations.

Ghanshyam Dass v. Union of India, AIR 1984 SC

The Code of Civil Procedure is an adjective law. It neither creates nor takes away any right. It is intended to regulate the procedure to be followed by Civil Courts.

CPC in an organized form started in 1859. Before that it was not in an organized form. CPC, 1908 came into force w.e.f. January 1, 1909, while the Amendment Act, 1976 came into force on February 1, 1977. The code has been amended in 1999 and 2002; both these Amendment Acts, come into force with effect from July 1, 2002. The above mentioned amendments are passed with the views that:

- i) a litigant should get a fair trial in accordance with the accepted principles of natural justice;
- ii) every effort should be made to expedite the disposal of civil suits and proceedings, so that justice may not be delayed;
- iii) the procedure should not be complicated, and should, to the utmost extent possible, ensure a fair deal to the poorer sections of the community who do not have the means to engage a pleader to defend their cases.



Many Amendments were made in 1976 but they were not sufficient. With a view to dispose of civil cases expeditiously **Justice Malimath Committee** was appointed by the Government. In the pursuance of recommendations of the Committee CPC is amended by the Amendment Act of 1999 and 2002.

Important Amendments made by Acts of 1999 and 2002 may be summarized thus:

- i) In several matters, such as issuing of summons, filing of written statement, amendment of pleadings, production of documents, examination of witnesses, pronouncement of judgments, preparation of decree etc., time limit is prescribed.
- ii) A new provision for settlement of disputes outside the court has been introduced;
- iii) Number of adjournments have been restricted;
- iv) A provision for recording of evidence by the Court Commissioner has been made;
- v) Endless arguments are sought to be shortened by –
 - a) empowering the Court to fix time limit for oral arguments; and
 - b) by permitting written arguments to be placed on record by the parties;
- vi) a provision is made for filing of appeal in the Court which passed the decree;
- vii) Instituting of appeal against the judgment is allowed where the decree is not drawn up;
- viii) Scope of First Appeal, Second Appeal, Letters Patent Appeal and Revision has been curtailed.

The code extends to the whole of India, except to the state of Jammu and Kashmir, and the State of Nagaland and the Tribal Areas. The code also extends to the Scheduled Areas (Section 1). The code does not exempt foreigners from its operation.

The object of the code is to consolidate and amend the laws relating to the procedure of Courts of Civil Judicature. It is a consolidated Code collecting all the laws relating to the procedure to be adopted by Civil Courts. It is designed to facilitate justice and further its ends and it is not a penal enactment for punishments and penalties, not a thing designed to trip up people. [Vide: **Sangram Singh v. Election Tribunal, AIR 1955 SC**]

Hukum Chand v. Kamalanand, (1906) Cal.

The provisions of CPC should be construed liberally and technical objections should not be allowed to defeat substantial justice.

Saiyad Mohd. v. Abdul Habib, AIR 1988 SC

A procedural law is always in aid of justice, not in contradiction or to defeat the very object which is sought to be achieved. A procedural law is always subservient to the substantive law.

➤ The Code is exhaustive on matters specifically dealt with by it but it is not exhaustive on the points not specifically dealt with therein. The legislature is incapable of contemplating all the possible circumstances which may arise in future litigation and consequently for providing procedure for them. With regard to those matters, the Court has inherent power to act according to the principles of justice, equity and good conscience. Section 151 CPC states, "nothing in this Code shall be deemed to limit or otherwise affect the inherent power of the Court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the Court".

➤ The function of adjective law is to facilitate justice and further its ends. The rules of procedure are intended to be handmade to the administration of justice and they must be construed liberally and in such manner as to render the enforcement of substantive rights effective.

State of Punjab v. Shamlal Murari, AIR 1976 SC

Krishna Iyer, J. observed: "We must always remember that procedural law is not to be a tyrant but a servant, not an obstruction but an aid to justice. It has been wisely observed that procedural prescriptions are the handmaid and not the mistress, a lubricant, not a resistant in the administration of justice".

- Tort is a civil wrong, so a claim in a tort is governed by the CPC, 1908.
- As regards the scheme of the Code, it consists of two parts - Body of the Code contains 158 Sections and the Rules (51 Orders in Schedule 1). The comparison between Sections and Rules can be shown with the help of the Chart:

Section [158 Sections]	Order and Rules [51 Orders]
i) The Sections deal with provisions of a substantive nature.	i) While the orders and rules in 1 st Schedule relate to the procedure.
ii) The Section lay down the general principles of jurisdiction.	ii) Whereas the Rules relate to the manner and mode in which the jurisdiction may be exercised.
iii) The body of the Code containing sections is fundamental and cannot be amended except by the legislature.	iii) While the first schedule of the Code containing orders and rules can be amended by the High Court.
iv) The sections and the Rules must be read together and harmoniously construed, they are complementary to each other.	iv) If the rules are inconsistent with the sections, the sections will prevail.

VARIOUS STAGES IN A CIVIL SUIT

- i) Plaintiff files a plaint in the competent Civil Court, i.e. A "Plaint" is the process by which proceedings in the Courts are generally commenced [Order 6, Rule 1, CPC].
- ii) The defendant files a written statement stating his grounds of defence. This is the second stage in a Civil Suit.
- iii) The Court frames issues on the basis of plaint and written statement. The Court also mentions on whom the burden of proof lies.
- iv) The party on whom the burden of proof lies is called upon to produce evidence in support of his claims and the other party is called upon to disprove it.
- v) The Court decides the controversial issues and write the judgment.
- vi) The decree of the suit is passed by the Judge and the judgment is pronounced in the open Court.
- vii) The execution of the decree is the last stage of the suit.

SUMMARY OF CPC, 1908

- i) The substantive part of the Code of Civil Procedure contains 158 Sections. The first schedule comprises 51 Orders and Rules providing procedure.
- ii) Sections 1-8 are preliminary in nature. Section 1 provides for commencement and applicability of the Code. Section 2 is a definition clause and a sort of statutory dictionary of important terms used in the body of the code. Sections 3-8 deal with constitution of different types of Courts and their jurisdiction.
- iii) Section 9 enacts that a Civil Court has jurisdiction to try all suits of a civil nature unless they are barred expressly or impliedly whereas Section 10 provides for stay of suit (*res sub judice*), Section 11 deals with the doctrine of *Res-judicata*. Sections 13-14 relate to foreign judgment.
- iv) Sections 15-21 A regulate the place of suing Sections 22-25 make provisions for transfer and withdrawal of suits, appeals and other proceedings from one Court to another.

- v) Orders 1-4 deal with institution and frame of suits, parties to suit and recognized agents and pleaders. Order 5 contains provisions as to issue and service of summons. Order 6 deals with pleadings. Orders 7 and 8 relate to plaints, written statements, set-offs and counter – claims. Order 9 requires parties to the suit to appear before the Court and enumerates consequences of non-appearance. Ex-parte decrees are also dealt with in this order.
- vi) Order 10 enjoins the Court to examine parties with a view to ascertaining matters in controversy in the suit. Orders 11-13 deal with discovery, inspection and production of documents and also admissions by parties. Order 14 requires the Court to frame issues and Order 15 enables the Court to pronounce judgment at the "first hearing" in certain cases.
- vii) Orders 16-18 contains for summoning attendance and examination of witnesses and adjournments. Order 19 empowers the Court to make an order or to prove facts on the basis of an affidavit of a party.
- viii) Order 22 declares effect of death, marriage or insolvency of a party to the suit. Order 23 deals with withdrawal and compromise of suits. Order 25 provides for security for costs. Sections 75-78 and Order 26 make provisions as to issue of commissions. Sections 94-95 and Order 38 provides for arrest of a defendant and attachment before judgment. Order 39 lays down procedure for issuing temporary injunction and passing interlocutory orders. Order 40 deals with appointment of receivers.
- ix) Section 33 and Order 20 deals with judgments and decrees. Section 34 makes provisions for interest. Sections 35, 35A, 35B and Order 20A deal with costs.
- x) Sections 73-93 and Orders 27-37 lay down procedure for suits in special cases, such as, suit by or against Government or Public Officers (Sections 79-82 and Order 27); suits by or against aliens, foreign rulers, ambassadors and envoys (Sections 83-87B); suits by or against soldiers, sailors and airmen (Order 28); suits by or against corporations (Order 29); suits by or against partnership firms (Order 30); suits by or against minors, lunatics and persons of unsound mind (Order 32); suits by indigent persons (Order 33); Inter-pleader suits (Section 88 and Order 35); summary suits (Order 37); suits relating to public nuisances (Section 91). Section 89 as inserted from July 1, 2002 provides for settlement of disputes outside the Court through arbitration, conciliation, mediation and Lok Adalats.
- xi) Sections 96-105 and Orders 41-47 contain detailed provisions for Appeals, Reference, Review and Revision.
- xii) Sections 106-74 and Order 21 cover execution proceedings are dealt with in Sections 106-74 (*Substantive Law*) and Order 21 (*Procedural Law*). Order 21 is the longest Order covering 106 Rules.
- xiii) Section 144 embodies the doctrine of restitution and deals with the power of the Court to grant relief of restitution in case a decree is set aside or modified by a superior Court.
- xiv) Section 148A permits a person to lodge a caveat in a suit or proceeding instituted or about to be instituted against him. The Court issues notice and affords an opportunity of hearing to a caveator to appear and oppose interim relief sought by an applicant.
- xv) Section 146-153A confers inherent powers in every Civil Court. Section 151 saves inherent powers in every Court to secure the ends of justice and also to prevent the abuse of process of the Court.

All the relevant topics of CPC, can be divided into *three* categories, from examination point of view:

I. Most Important Topics:

Extensive as well as exhaustive study of most important topics is must in UP, Rajasthan, MP, Delhi, Himachal Pradesh, Haryana, Punjab, Uttaranchal, Bihar, Jharkhand and Chhattisgarh. These topics are most important for Judicial Services.

1. Decree [Section 2(2), Order 20, Rule 6-19]
2. Res-Judicata [Section 11]
3. Place of Suing [Sections 15-21A]
4. Plaint [Order 7]
5. Written Statement [Order 8]
6. Judgment [Section 2(9), Order 20, Rule 1-5]
7. Suit by Indigent Persons [Order 33]
8. Attachment of Property
9. Questions to be determined by Executing Courts [Section 47]
10. Inherent Powers of Court [Sections 148 to 153A; Main: Section 151]

II. Important Topics:

1. Jurisdiction of Civil Courts [Section 9]
2. Suit of Civil Nature [Section 9]
3. Pleadings [Order 6]
4. Set off [Order 8]
5. Issues [Order 10, 14]
6. Attachment Before Judgment [Section 94 & 95, Order 38]
7. Temporary Injunction [Order 39, Section 95]
8. Service of Summons [Sections 27-32, Order 5, 16, 16A]
9. Suit by or Against Partnership Firm [Order 30]
10. Execution in General [Sections 36-74, Order 21]
11. Sale of Immovable Property
12. Transfer of cases [Sections 22-25]
13. Delay in Civil Litigations

III. Not much Important Topics:

The study of these topics is also indispensable for sure success but detail study is not required.

1. Order [Section 2(14)]
2. Foreign Judgment [Sections 2(5); 13-14]
3. Legal Representative [Section 2(11)]
4. Mesne Profits [Section 2(12)]
5. Res, sub judice [Section 10]
6. Parties to Suit [Section 26, Order 1-4]
7. Representative Suit
8. Cause of action and multifariousness
9. Counter Claim [Order 8]
10. Non-appearance of Parties [Order 9]
11. Ex-parte Decree [Order 9]
12. Discovery and Inspection [Order 11]
13. Commissions [Sections 75-78, Order 26]
14. Arrest Before Judgment [Sections 94-95, Order 38]
15. Interlocutory orders [Section 95, Order 39]
16. Receiver [Order 40; Rule 1-5]
17. Withdrawal of Suit [Order 23]
18. Compromise of Suit [Order 23]
19. Death of Parties [Order 22]
20. Costs [Sections 35, 35A, 35B, Order 20A]
21. Suit Against Government [Sections 79-82, Order 27]
22. Suit by or Against Minors and Lunatics [Order 32]

23. Inter-pleader Suit [Section 88, Order 35]
24. Summary Suits [Order 37]
25. Suits Relating to Public Nuisance [Section 91]
26. Powers of Appellate Courts [Sections 107-108]
27. First Appeal [Sections 96-99A, Order 41]
28. Second Appeal [Sections 100-103, Order 42]
29. Reference [Section 113, Order 46]
30. Review [Section 114, Order 47]
31. Revision [Section 115]
32. Precept
33. Garnishee Order
34. Rateable Distribution of Assets
35. Restitution [Section 144]
36. Caveat [Section 148 A]
37. Notice [Section 80]
38. Abatement and dismissal of suit
39. Suit by Advocate General
40. Remedies in Civil Laws.

These notes are prepared for Judicial Services examination of different states of India. The Questions of previous years examination [DJS, RJS, UPPCS (J), Haryana JS, HJS, Bihar Judicial Exam, Jharkhand Judicial Service, MPPCS (J), Uttaranchal Judicial Services, Punjab JS, etc.] have been produced in the end of the each Chapter. The answers of these questions are written systematically in the notes. In Delhi, Punjab, Haryana, UP, Himachal Pradesh problem based on case laws so "questions based on case laws" are prepared for these states. You should try to solve these questions.

Law but not least, "Success is the reward of toil". "Success is reached by being active, awake, ahead of the crowd; by aiming high, pushing ahead, honestly, diligently, patiently, by climbing, digging, saving; by forgetting the past; using the present, trusting in the future; by honouring God, having a purpose, fainting not, determining to win, and striving to the end". [Russell Conwell]

Wishing you all the best,

Yours Sincerely,

RAHUL

QUESTION OF PREVIOUS YEARS EXAMINATIONS [DJS, RJS, UPPCS(J), BJE, JJE, HJS, HARYANA JS, ETC.]

1. Is a claim in tort governed by the Civil Procedure Code or by the Code of Criminal Procedure? [10 Words, RJS- 1980-81]
2. Explain in brief of various stages in a civil suit. [200 Words, BJE-2000]
3. The Code of Civil Procedure (Amendment) Act, 2002 Came into force on:
 - a) 1st April, 2002
 - b) 1st June, 2002.
 - c) 6th June, 2002
 - d) 1st July, 2002

[Uttaranchal PCS (J) (Pre) – 2002]

CHAPTER II

DECREE

[SECTION 2(2)]

Dear aspirant,

Section 2(2) of Civil Procedure Code (CPC), 1908 defines the term 'Decree'. It states,

'Decree' means the *formal* expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit and may be either preliminary or final. It shall be deemed to include the rejection of a plaint [Order 7, rule 11] and the determination of any question within Section 144 but shall not include

- i) any adjudication from which an appeal lies as an appeal from an order, or
- ii) any order for dismissal for default.

Explanation makes it clear that A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. It is final when such adjudication completely disposes of the suit. It may be partly preliminary and partly final.

In order that a decision of a Court may be a "decree", the following elements must be present:

- i). There must be an adjudication
- ii). Such adjudication must have been done in a suit.
- iii). It must have determined the rights of the parties with regard to all or any of the parties with regard to all or any of the matters in controversy in the suit.
- iv). Such determination must be of conclusive nature.
- v). There must be a *formal* expression of such adjudication.
- vi). The adjudication must have been given by a Civil or Revenue Court.

A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. Such a decree determines the rights of the parties with regard to some or one of the matters in controversy in the suit but does not completely dispose of the suit. The case where the legislature contemplates a preliminary decree are specified in Order 20, Rules 12 to 18, and Order 34, Rules 2 to 8.

The function of the final decree is merely to restate and apply with precision what the preliminary decree has ordained. The decrees are in the same suit and if the preliminary decree is set aside the final decree is automatically superseded.

There is unanimity of opinion in all the High Courts that a pending appeal against a preliminary decree does not become in fructuous by the passing of the final decree. An appeal from a preliminary decree can be heard, although, during its pendency, a final decree is passed, but is not appealed against. [Vide: *Kanhaiya Lal v. Tribeni Sahai*, 36 All, 532]

As regards the point whether an appeal can be preferred against the preliminary decree even after the final decree has been passed the High Courts of Allahabad, Madras and Patna have consistently taken the view that the mere fact that no appeal has been preferred from the final decree is no ground for not hearing the appeal from the preliminary decree. Section 97 states that, "Where any party aggrieved by a preliminary decree does not appeal from such decree within the period of limitation allowed for appeals, he shall be precluded from disputing its correctness in any appeal which may be preferred from the final decree".

Section 97 however, does not prevent a party from filing combined appeal against both the preliminary and final decrees if the date permits him to do so.

The definition of the "Decree" further includes the rejection of a plaint and determination of any question under Section 144, Section 144 deals with restitution and the determination of a question under that section is a decree and is as such appealable.

Prior to the Code of Civil Procedure (Amendment) Act, 1976, the decree also included the determination of any question under Section 47 which relates to execution of decrees. The Joint Committee of both Houses of Parliament was of the view that this provision of the Code was mainly responsible for the delay in the execution of decrees, and as such it is not included now in the term "Decree".

This topic is most important for Bihar Judicial Exam, RJS and UPPCS (J). Some questions based on case laws can be asked in DJS, HJS and Haryana CS (J). The important questions which you have to prepare are as follow:

- i) Definition of Decree. [Section 2(2)]
- ii) Preliminary Decree
- iii) Final Decree
- iv) Cross-Decree
- v) Distinction between Final and Preliminary Decrees.
- vi) Distinction between Orders and Decrees.
- vii) Distinction between Decree and Judgment.
- viii) Questions based on case laws [whether a particular order is a decree?]

Wishing you all the best.

Yours Sincerely,

RAHUL

CHAPTER II
DECREE
[SECTION 2 (2)]
SYNOPSIS

- I. Meaning**
- II. Essential Elements**
 - 1. Adjudication
 - 2. Suit
 - 3. Rights of Parties in Controversy
 - 4. Conclusive determination
 - 5. *Formal Expression*
 - 6. Civil and Revenue Court
- III. Test**
- IV. Decisions which are decrees: *Illustrations***
- V. Decisions which are not Decrees: *Illustrations***
- VI. Classes of Decrees**
 - 1. Preliminary Decree
 - 2. Final Decree; and
 - 3. Partly Preliminary and Partly Final Decree
- VII. Rejection of Plaint**
- VIII. Restitution**
- IX. Appealable Order**
- X. Dismissal for Default**
- XI. Cross Decrees**
 - 1. *Illustrations*
 - 2. *Essential Conditions*
- XII. When a Decree is Nullity**
- XIII. Decree and Order: Distinction**
- XIV. Distinction among Decree, Order and Judgment**
- XV. Preliminary and Final Decree: Distinction**
- XVI. Important Cases**
- XVII. Questions Based on Case Laws**
- XVIII. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPSC (J), BJE, HJS, Haryana JS etc.]**

CHAPTER II

DECREE

SECTION 2 (2)

I. MEANING

The adjudications of a Court of law may be divided into two classes: (i) decrees, and (ii) orders. Section 2(2) of the Code defines the term 'decree' in the following word:

"Decree means the *formal* expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties with regard to all or any other matters in controversy in the suit and may be either preliminary or final. It shall be deemed to include the rejections of a plaint and the determination of any question within Section 144, but shall not include –

- a) any adjudication from which an appeal lies as an appeal from an order, or
- b) any order of dismissal for default.

Explanation – A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. It is final when such adjudication completely disposes of the suit. It may be partly preliminary and partly final."

II. ESSENTIAL ELEMENTS

In order that a decision of a Court may be a 'decree', the following elements must be present:

- i) There must be an adjudication.
- ii) Such adjudication must have been given in a suit.
- iii) It must have determined the rights of the parties with regard to all or any of the matters in controversy in the suit.
- iv) Such determination must be of a conclusive nature; and
- v) There must be a *formal* expression of such adjudication.

1. Adjudication

To constitute a decision of a Court to be a decree, there must be an adjudication, i.e. a judicial determination of the matter in dispute. If there is no judicial determination of any matter in dispute, it is not a decree. Thus, a decision on a matter of administrative nature, or an order dismissing a suit for default of appearance of parties or dismissing an appeal for want of prosecution cannot be termed as decrees inasmuch as they do not judicially deal with the matter in dispute. Further, such judicial determination must be by a Court. Thus, an order passed by an officer who is not a Court is not a decree.

Suit

The word "Suit" has not been defined in the Code. It ordinarily means a civil proceedings instituted by the presentation of a plaint. A proceedings, therefore, which does not commence with a plaint is not a suit, and as decision given therein will not be a decree. Thus, an application for leave to sue by an indigent person (in *forma pauperis*) is not a suit, as the application becomes a suit only after the leave is granted, and an order passed on such an application is not a decree.

It may be noted that there are certain proceedings under other Acts, which according to specific provisions in such Acts, are to be regarded as suits under this code: Thus, proceedings under the Indian Succession Act, Guardians and Wards Act, Provincial Insolvency Act are statutory suits so the decisions therein are decrees.

3. Rights of Parties in Controversy

The adjudication must have determined the rights of the parties with regard to all or any of the matters in controversy in the suit. The word 'right' means substantive rights of the parties and not merely procedural rights. Thus, rights of the parties *inter se* relating to status, limitation, jurisdiction, frame of suit, accounts, etc. are 'rights of the parties' under this

section. The rights in matters of procedure are not included in it. Thus, an order for dismissal of a suit for default of appearance, or an order dismissing and application for execution for non-prosecution, or an order refusing leave to sue in *forma pauperis*, or a mere right to sue, are not decrees as they do not determine the rights of the parties.

4. Conclusive determination

Such determination must be of a convulsive nature. In other words, the determination must be final and conclusive as regards the Court which passes it. Thus, an interlocutory order which does not decide the right of the parties finally is not a decree; e.g. an order refusing an adjournment or an order striking out defence of a tenant under the relevant Rent Act or an order passed by the appellate Court deciding some issues and remitting other issues to the trial Court for determination under Order 41, Rule 23 of the Code are not decrees because they do not decide the right of the parties conclusively. On the other hand, an order may determine conclusively the rights of the parties although it may not dispose of the suit. Thus, an order dismissing an appeal summarily under Order 41 of the Code or holding it to be not maintainable or a decision dismissing a suit for want of evidence or proof are decrees inasmuch as they decide conclusively the rights of the parties to the suit.

The crucial point which requires to be decided in such cases is whether the decision is final and conclusive in essence and substance. If it is, it is a decree, if not, it is not a decree.

5. Formal Expression

There must be a *formal* expression of such adjudication. All the requirements of form must be complied with. The *formal* expression must be deliberate and given in the manner provided by law. The decree follows the judgment and must be drawn up separately. Thus, if a decree is not *formally* drawn up in terms of the judgment, no appeal lies from that judgment. But the decree need not be in a particular form. Thus, a misdescription of a decision as an order which amounts to a decree does not make it less than a decree.

6. Civil and Revenue Court

The adjudication must be given by the civil or revenue Court otherwise the adjudication will not be treated as decree.

III. TEST

Whether or not an order of the Court is a decree, the Court should take into account pleadings of the parties and the proceedings leading up to the passing of an order.

IV. DECISIONS WHICH ARE DECREES: Illustrations

Following decisions are held to be decrees:

- i) Order of abatement of suit;
- ii) Dismissal of appeal as time barred;
- iii) Dismissal of suit or appeal for want of evidence or proof;
- iv) Rejection of plaint for non-payment of Court fees;
- v) Granting or refusing to grant installment;
- vi) Modification of scheme under Section 92 of the Code;
- vii) Order holding appeal not maintainable.

V. DECISIONS WHICH ARE NOT DECREES: Illustrations

Following decisions, on the other hand, are not held to be decrees:

- i) Dismissal of appeal for default;
- ii) Appointment of Commissioner to take accounts;
- iii) Order of remand;
- iv) Order granting interim relief;
- v) Return of plaint for presentation to proper Court;
- vi) Dismissal of suit under Order 23, Rule 1;
- vii) Refusing to wind up a company

VI. CLASSES OF DECREES

Decrees may be of three kinds:

- i) *Preliminary Decree*;
- ii) *Final Decree*; and
- iii) *Partly Preliminary and Partly Final Decree*

According to Section 2(2), a decree may be preliminary or final or partly preliminary and partly final; it shall be deemed to include the rejection of a plaint and the determination of any question with Section 144, but shall not include (a) any adjudication from which an appeal lies as an appeal from an order, or (b) any order of dismissal for default.

1. Preliminary Decree

A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. Such a decree determines the rights of the parties with regard to some or one of the matters in controversy in the suit but does not completely dispose of the suit. In other words, a preliminary decree is only a stage in working out the rights of the parties which are to be finally adjudicated by a final decree. Such decrees are passed in suits for possession and for mense profits, in administration suits, in pre-emption suits, in suits for dissolution of partnership, in partition suits, in mortgage suits, in suits for sale, etc. [Order 20 and Order 34]. The Court may pass a preliminary decree in cases not covered by the provisions of Code.

There should be only one preliminary decree, but a second preliminary decree in a suit of partition is not impossible where there are facts of circumstances alleged to have come into existence after the passing of the first. In partnership suits, several preliminary decrees are usually passed.

The question whether a decision amounts to a preliminary decree or not is of great significance in view of the provisions of Section 97 of the Code: "Where any party aggrieved by a preliminary decree... does not appeal from such decree, he shall be precluded from disputing its correctness in any appeal which may be preferred from the final decree."

The object of Section 97 is to prevent preliminary question being raised in the form of appeal after a case has been decided on merits. Since the passing of a preliminary decree is only a stage prior to the passing of a final decree, if an appeal preferred against a preliminary decree succeeds, the final decree automatically falls to the ground for there is no preliminary decree in support of it [*Sital Parshad v. Kishore Lal AIR 1967 SC 1236*].

2. Final Decree

A final decree is one which completely disposes of the suit and finally settles all the questions in controversy between the parties and nothing further remains to be decided thereafter. While a preliminary decree ascertains what is to be done, the final decree states the result achieved by means of the preliminary decree. The preliminary decree is not dependent on the final one, but the latter is really dependent on and subordinate to the former, which is not extinguished by the passing of the final decree. Thus, in a partition suit, the preliminary decree declares the rights of the parties and the final decree divides the properties specifically be metes and bounds in terms of the rights so declared, thereby completely disposing of the suit. An executable decree is thus secured to the parties. The function of the final decree is merely to restate and apply with precision what the preliminary decree has ordained.

Ordinarily, there will be only one final decree in a suit. However, where two or more cases of action are joined together, there can be more than one final decree.

3. Partly Preliminary and Partly Final Decree

Such a 'composite decree' is passed in certain cases viz. in a suit for possession of land and mense profits, the Court orders possession of the land in suit in favour of the plaintiff, and directs an enquiry into profits. The first part of the decree is *final* as it directs delivery of possession to the plaintiff, while the second part is *preliminary* in as much as it directs an enquiry as the mense profits.

- An adjudication not fulfilling the requisites of Section 2(2) of the Code cannot be said to be a "Decree". By legal fiction, certain order and determinations are deemed to be "decrees" under the code. They are called deemed decrees.

VII. REJECTION OF PLAINT

Even though an order rejecting a plaint does not preclude the plaintiff from presenting a fresh plaint on the same cause of action, Section 2(2) of the Code specifically provides that rejection of a plaint shall be deemed to be a decree. The rejection of a plaint must be one authorised by the Code. If it is not under the Code, the rejection will not amount to a decree.

An order returning a plaint or memorandum of appeal to be presented to the proper Court is also not a decree. The reason is that such order does not negate any rights of the plaintiff or appellant and is not a decision on the rights of the parties. An order returning a plaint to be presented to the proper Court is an appealable order.

VIII. RESTITUTION

The determination of any question within Section 144 of the Code is expressly included in the definition of 'decree' though such determination is neither made in a suit, nor is drawn up in the form of a decree. Section 144 deals with restitution and determination of a question under that section and is included in the definition of 'decree' for the purpose of giving a right of appeal.

IX. APPEALABLE ORDERS

The term 'decree' expressly excludes an adjudication from which an appeal lies as an appeal from an order. Thus, an order returning the plaint to be presented to the proper Court or an order rejecting an application for an order to set aside *ex parte* decree, etc. are appealable orders and not decrees.

The appealable orders are specified in Section 104 and Order 43, Rule 1 of CPC, 1908. The distinction between a decree and an appealable order lies in the fact that in the case of a decree, a second appeal lies in some cases, but no second appeal lies from an appealable order.

X. DISMISSAL FOR DEFAULT

The definition of decree does not include any order of dismissal for default. The word "*Dismissal for default*" include for want of prosecution of suit or appeal, default for non-appearance or for other reasons.

XI. CROSS DECREES

Cross decrees are decrees held by the plaintiff and the defendant against each other in different suits so that a decree-holder in one suit is the judgment-debtor in the other. Such decrees are set-off against each other in execution proceedings. Thus where A holds a decree against B for Rs. 5,000/- and B holds a decree against A for Rs. 3,000/-, both the decrees will be set-off when A and B each applies for execution of his decree to a Court which has jurisdiction to execute both the decrees. B, the holder of the decree for the smaller amount, will not be allowed to take out execution of his decree and execution will be allowed of A's decree to the extent of Rs. 2,000/- only.

Where applications are made to a Court for the execution of cross-decrees in separate suits for the payment of two sums of money passed between the same parties and capable of execution at the same time by such courts, then –

- a) if the two sums are equal, satisfaction shall be entered upon both the decrees; and
- b) if the two sums are unequal, execution may be taken out only by the holder of the decree for the larger sum and for so much only as remains after deducting the smaller sum, and satisfaction for the smaller sum shall be entered on the decree for the larger sum as well as satisfaction of the decree for the smaller sum.

This rule shall not be deemed to apply unless –

- i) the decree-holder in one of the suits is the judgment-debtor in the other and each party fills the same character in both suits; and
- ii) the sums due under the decree are definite.

The holder of a decree passed against several persons jointly and severally may treat it as a cross-decree in relation to a decree passed against him singly in favour of one or more of such persons. (Order 21, Rule 18)

Illustrations

- i) A, B, C, D and E are jointly and severally liable for Rs. 1,000/- under a decree obtained by F. A obtains a decree of Rs. 100/- against F singly and applies for execution to the Court in which the joint decree is being executed. F may treat his joint decree as a cross-decree under this rule.
- ii) A holds a decree against B for Rs. 1,000/-. B holds a decree against A for the payment of Rs. 1,000/- in case A fails to deliver certain goods at a further day. B cannot treat his decree as a cross-decree under this rule.
- iii) A and B, co-plaintiffs, obtain a decree for Rs. 1,000/- against C, and C obtains a decree for Rs. 1,000/- against B. C cannot treat his decree as a cross-decree under this rule.
- iv) A obtains a decree against B for Rs. 1,000/-. C, who is a trustee for B, obtains a decree on behalf of B against A for Rs. 1,000. B cannot treat C's decree as a cross-decree under this rule.

1. Essential Conditions

In order to apply the above rule to cross-decrees it is necessary that the following conditions must be fulfilled:

- i) The cross-decrees must be for the payment of two sums of money;
- ii) The decree must have been obtained in separate suits;
- iii) Both the decrees must be capable of execution at the same time;
- iv) The decree-holder in one of the suits in which the decrees have been passed should be the judgment-debtor in the other, and each party fills the same character in both the suits; and
- v) both the decrees must be before the executing Court for execution and applications should have been made for execution of both of them.

The provisions relating to cross-decree for the payment of money also apply to decree for sale in enforcement of a mortgage or charge.

XII. WHEN A DECREE IS NULLITY

A decree is said to be nullity if it is passed by a Court having no inherent jurisdiction. Merely because a Court erroneously passed a decree or there is an error while passing the decree, the decree cannot be called nullity. The decree to be called a nullity is to be understood in the sense that it is *ultra vires* the powers of the Court passing the decree and not merely voidable decree. [*Sardar Ram Singh v. Ill Addl. Distt. Judge, Mathura, 1995 All.*]

- An order imposing compensatory costs under Section 35 A is an appealable order under Section 104 (1) (ff) so it is not a decree.

XIII. DECREE AND ORDER: DISTINCTION

DECREE	ORDER
i) A decree can only be passed in a suit which commenced by presentation of a plaint.	i) An order may originate from a suit by presentation of a plaint or may arise from a proceeding commenced by a petition or an application.
ii) A decree is an adjudication conclusively determining the rights of the parties with regard to all or any of the matters in controversy.	ii) Whereas an order may or may not finally determine such rights.
iii) A decree may be preliminary or final, or partly preliminary and partly final.	iii) There cannot be preliminary order.
iv) Except in certain suits, where two decrees, one preliminary and the other final are passed, in every suit these can be only one decree.	iv) While in the case of a suit or proceeding a number of orders may be passed.
v) Every decree is appealable, unless otherwise expressly provided. [Section 96 CPC]	v) Whereas Every order is not appealable, only those orders are appealable as specified in Section 104 and order 43 Rule 1 CPC.
vi) A second Appeal lies to the High Court on certain grounds from the decree passed in First Appeal [Section 100 CPC]	vi) While no second appeal lies in case of appealable orders.

XIV. DISTINCTION AMONG DECREE, ORDER AND JUDGMENT

- i) A judgment contemplates a stage prior to passing of a decree or an order, and after the pronouncement of the judgment, a decree or order shall follow.
- ii) Judgment means the statement given by the Judge of the grounds of a decree or order. It is not necessary to give a statement by the Judge in a decree/order though it is necessary in a judgment.
- iii) It is not necessary that there should be a "formal expression" of the order in the judgment, though it is desirable to do so. Rule 6A of Order 20, however, enacts that the last paragraph of the judgment should state precisely the relief granted.

XV. PRELIMINARY AND FINAL DECREE: DISTINCTION

The question whether a decision amounts to a preliminary decree or not is of great significance in view of the provisions of Section 97 of the CPC. It states, "Where any party aggrieved by a preliminary decree passed after the commencement of this Code does not appeal from such decree, he shall be precluded from disputing its correctness in any appeal which may be preferred from the final decree."

The object of Section 97 is to prevent preliminary questions being raised in the form of appeal after a case has been decided on merits. Since the passing of a preliminary decree is only a stage prior to the passing of a final decree, if an appeal preferred against a preliminary decree succeeds, the final decree automatically falls to the ground for there is no preliminary decree in support of it.

PRELIMINARY DECREE	FINAL DECREE
i) A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. ii) It determines the rights of the parties with regard to some or one of the matters in controversy in the suit but does not completely dispose of the suit. iii) A preliminary decree ascertains what is to be done. iv) The preliminary decree is not dependent on the final decree. v) There should be only one preliminary decree, but a second preliminary decree is a suit of partition is not impossible where there are facts or circumstances alleged to have come into existence after the passing of the first. In partnership suits, several preliminary decrees are usually passed.	i) A decree is final if it concludes the proceedings of a case. ii) The rights and liabilities of the parties are finally adjudicated by a final decree. iii) While the final decree states the result achieved by means of the preliminary decree. iv) Whereas the final decree is really dependent on and subordinate to the preliminary decree. v) There will be only one final decree in a suit. However, where two or more causes of action are joined together, there can be more than one final decree.

Preliminary decree is passed in suits for possession and for mesne profits, in administration suits, in pre-emption suits, in suits for dissolution of partnership, in partition suits, in mortgage suits, in suits for sale, etc. [Order 20 and or 34]. The Court may pass a preliminary decree in cases not covered by the provisions of Code.

In a partition suit, the preliminary decree declares the rights of the parties and the final decree divides the properties specifically by meter and bounds in terms of the rights so declared, thereby completely disposing of the suit. An executable decree is thus secured to the parties.

Shanker v. Chandrakant, AIR 1995 SC

"A preliminary decree is one which declares the rights and liabilities of the parties leaving the actual result to be worked out in further proceedings. Then, as a result of the further inquiries conducted pursuant to the preliminary decree, the rights of the parties are fully determined and a decree is passed in accordance with such determination which is final. Both the decrees are in the same suit. Final decree may be said to become final in two ways:

- i) When the time for appeal has expired without any appeal being filed against the preliminary decree or the matter has been decided by the highest Court;
- ii) When the time for appeal has expired without any appeal being filed against the preliminary decree the same stands completely disposed of.

It is in the latter sense that the word 'decree' is used in Section 2(2) of CPC."

XVI. IMPORTANT CASES

- i) **Deep Chand v. Land Acquisition Officer, AIR 1994 SC 1901**

"Decree" means a formal expression of an adjudication which the Court conclusively and finally determines the rights of the parties with regard to all or any of the matters in controversy in the suit.

- ii) **State of Gujrat v. Biharilal, [(1999) 3 SCC 294, 296]**

No decree can be passed granting higher rights to the plaintiff than what was available to him under the agreement which he had entered into with the owners of the land.

- iii) **R. Rathinavel Chettiar v. V. Sivaraman, [(1999) 4 SCC 89]**

The important elements of a decree are – (a) Formal expression of an adjudication, (b) Adjudication matters in controversy, (c) convulsive determination of rights, (d) Adjudication must be in a suit.

Also, on passing of the decree, rights of the parties are crystallized and unless the decree is reversed, modified or set aside the parties cannot be diversified of their rights under the decree.

- iv) **Santosh Kumar v. Karam Devi, AIR 2002 P&H 20 (211)**

A decree passed on compromise is not appealable.

- v) **Venkata Reddy v. Pethi, A 1963 SC 992**

A preliminary decree passed in a suit is a final decision and conclusive when not appealed against.

- vi) **Purnimasi Yadav v. N. Tripathi, AIR 1998 All 260, 261**

Rejection of plaint amounts to a "decree".

- vii) **Oriental Insurance Co. v. Sardar Sadhu Singh, AIR 1994 Raj 44, 51**

The award given by a Motors Accident Claims Tribunal is not a decree.

- viii) **Phoolchand v. Gopal Lal, AIR 1967 SC**

There is nothing in the code of Civil Procedure which prohibits passing of more than one preliminary decree, if circumstances justify the same and it may be necessary to do so.

XVII. QUESTIONS BASED ON CASE LAWS

1. Can a decree be passed granting a higher rights to the plaintiff than what was available to him under the agreement which he had entered into with the owners of the land? [20 Words]
2. Is an award given by a Motors Accident Claims Tribunal a decree? Why? [20 Words]
3. Can more than one preliminary decree be passed in a suit? [20 Words]
4. Is the rejection of an application for leave to sue in *forma pauperis* a decree? [20 Words]
5. When is a decree said to be nullity? [20 Words]
6. What will be the effect on the final decree if the preliminary decree in the same suit is set aside? [50 Words]
7. Can a combined appeal against both the preliminary and final decree be filed? [20 Words]
8. Can an appeal from a preliminary decree be heard, although, during its pendency a final decree is passed? [20 Words]

XVIII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS. etc.]

1. Define Decree. [200 Words, RJS-1969]
2. Short Notes: Preliminary Decree [200 Words, RJS-1975, BJE-1979 & 1980]

3. **Short Notes: Decree [200 Words, RJS-1976 & 1979]**
4. **What is a Decree? [15 Words, RJS-1986]**
5. **What is a Preliminary Decree? [15 Words, RJS-1988]**
6. **What is meant by Decree? Distinguish between Preliminary Decree and Final Decree. [300 Words, UPPCS (J)-1987]**
7. **Distinguish between Decree and Order. [200 Words, UPPCS (J)-1991]**
8. a) Define and distinguish between Preliminary Decree and Final Decree.
b) i) What will be the effect on the final decree passed during the pendency of the appeal against the preliminary decree, in case the appeal is allowed?
ii) Can the validity of the preliminary decree be challenged through an appeal which is brought against a final decree? **[500 Words, UPPCS (J)-1992]**
9. **Write Notes on Decree and Judgment. [50 Words, HJS-1998]**
10. **Difference between a Decree and an Order. [200 Words, BJE-1987]**
11. **Distinguish between a Preliminary and Final decree. Examine whether the decree is preliminary or final in the following cases:**
 - a) A, Sues B for recovery of possession of certain land for mesne profit and a decree is passed in A's favour.
 - b) X, the mortgagee of house bring a suit against Y, the mortgagor, for foreclosure of mortgage and the decree is passed in favour of X. **[500 Words, BJE-1986]**
12. **Short Notes: Cross-Decree. [200 Words, BJE-1979]**
13. **Define Decree and Order and bring out the essential distinction between the two. Are the following orders decrees? Give reasons: _____**
 - a) An order dismissing a suit in default,
 - b) An order imposing cost,
 - c) An order rejecting the plaint. **[600 Words, BJE-1977]**

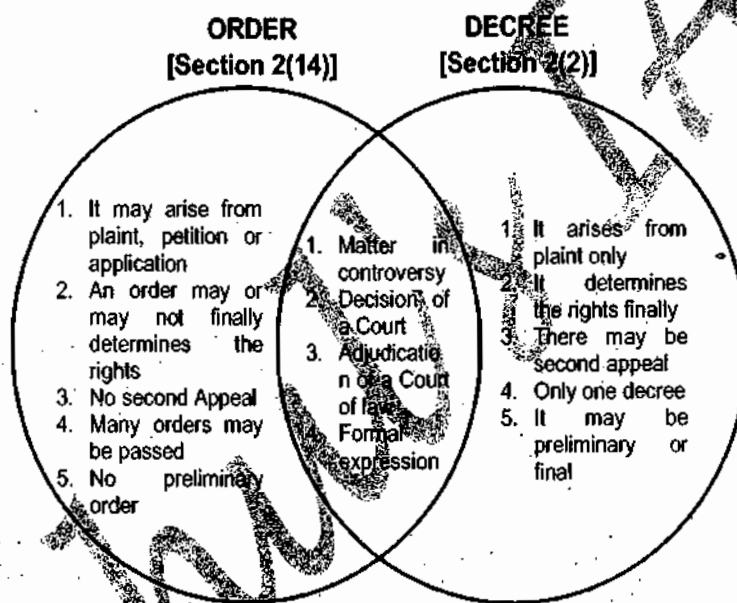
CHAPTER III

ORDER

[SECTION 2(14)]

Dear aspirant,

Section 2(14) CPC, defines the term order, as 'order' means the *formal* expression of any decision of a Civil Court which is not a decree. Thus, the adjudication of a Court, which is not a decree, is an order. The adjudication of a Court of law may be either be a decree or an order, and cannot be both. There are some common elements in both of them both are '*formal expressions*' of a decision given by Court, both are adjudications of a Court of law, and both relate to matters in controversy. The relation between order and decree can be shown with the help of following diagram:



The list of appealable orders is given in Section 104 and Order 43, Rule 1. The distinction between a decree and an appealable order lies in the fact that in case of a decree, second appeal lies, if the requirements of Section 100 are fulfilled while no second appeal lies from an appealable order.

Some orders are decrees because they decide the matter conclusively, viz.

i) An order rejecting a plaint – the definition of 'decree' provides that the rejection of a plaint shall be deemed to be a decree;

ii) An order dismissing a suit for non-payment of Court-fee;

iii) An order discharging some of the defendants for want of cause of action;

iv) An order rejecting a plaint for insufficiency of stamp;

v) An order discharging defendants for failure of the plaintiffs to furnish particulars, as it amounts either to rejection of a plaint or dismissal of a suit;

vi) The decision of a District Court on appeal that the Court below has no jurisdiction;

vii) An order of abatement of a suit;

viii) An order staying execution of a decree;

ix) An order dismissing cross-objection.

There are some orders which are not decrees because they do not conclusively determine the rights and liabilities of the parties to the suit, viz.

- i) An order refusing stay;
- ii) Remand under Section 151;
- iii) An order rejecting an application for leave to sue in *forma pauperis* for no suit has till then been filed;
- iv) An order overruling a plea against the maintainability of a suit;
- v) Decision in plaintiff's favour as to his *locus standi* to sue;
- vi) An order appointing a commissioner to take accounts;
- vii) An interlocutory order in execution deciding a point of the law arising incidentally.

Declarations on questions of limitation, jurisdiction, *res judicata* and maintainability of a suit which determines only the plaintiff's right to sue do not fall within the ambit of decree. The decision on issue as to limitation in favour of plaintiff is not a decree in as much as it decides merely the plaintiff's right to sue.

An interlocutory order is one which is made pending the case and before a final hearing on the merits. An interlocutory order is made to secure some ends and purpose necessary and essential to the progress of the suit, and generally collateral to the issue formed by the pleadings and not connected with the final judgment.

Interlocutory orders can amount to a decree under Section 2(2) if they are sufficient to dispose of the suit as a whole, no matter whether they are passed in suits or execution proceedings.

This Chapter is important for RJS, HJS and UPPCS (J)*. The definition of order is most important. The orders which are not included in the definition of the decree is also an important topics.

Wishing you all the best,

Yours Sincerely,

RAHUL

CHAPTER III

ORDER

[SECTION 2 (14)]

SYNOPSIS

- I. Meaning [Section 2(14)]**
- II. Decree and Order: Similarities**
- III. Distinction between Decree and Order**
- IV. Orders which are Decree**
- V. Orders which are *not* Decree**
- VI. Appealable Orders [Section 104, Order 43, Rule 1]**
- VII. Interlocutory Order [Order 39, Rules 6 to 10]**
- VIII. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]**

CHAPTER III

ORDER

[SECTION 2 (14)]

I. MEANING [SECTION 2(14)]

'Order' means the *formal* expression of any decision of a Civil Court which is not a decree [Section 2(14)]. Thus it is clear that the adjudication of a Court which is not a decree is an order. The terms Judgment, Decree, Decision and Order are more or less cognate as applied in legal proceedings, and closely allied in meaning. The term 'order' is not infrequently used in a more restricted sense than the word judgment. It may be defined to be a command, direction or decision of the Court or Judge on some intermediate point or issue in the case, but without disposing of the main issue or issues in the case. Then it is merely interlocutory. But the term is sometimes given a more extensive signification, even in legal controversies, and is occasionally used as a synonym of judgment and decree.

II. DECREE AND ORDER: SIMILARITIES

The adjudication of a Court of law may either be (a) a decree, or an order, and cannot be both. There are some common elements in both of them; viz.

- i) both relate to matters in controversy;
- ii) both are decisions given by Court;
- iii) both are adjudications of a Court of Law;
- iv) both are *formal* expression of a decision.

III. DISTINCTION BETWEEN DECREE AND ORDER

The essence of distinction between a 'decree' and an 'order' seems to be in the nature of the decision, rather than in the manner or expression. The question is one of substance whether an adjudication is a decree or order.

- i) A *decree* can only be passed in a suit which commenced by presentation of a plaint. An *order* may originate from a suit by presentation of a plaint or may arise from a proceeding commenced by a petition/application.
- ii) A *decree* is an adjudication conclusively determining the rights of the parties with regard to all or any of the matters in controversy. An *order* may or may not finally determine such rights.
- iii) A *decree* may be preliminary or final or partly preliminary and partly final. An *order* cannot be a preliminary one.
- iv) Usually one *decree* is passed in a suit. But in case of suit or proceeding, a number of *orders* may be passed.
- v) Every *decree* is appealable, unless otherwise expressly provided. A first appeal invariably lies from a decree if it is expressly provided viz. Section 96 (3) provides that no appeal shall lie from a decree passed by the Court with the consent of the parties.

Every *order* is not appealable. Only those orders are appealable which are specified in the Code (Section 104 and Order 43, Rule 1).

- vi) A second appeal lies to the High Court on certain grounds from the *decree* passed in first appeal. No second appeal lies in case of appealable *orders*.

IV. ORDERS WHICH ARE DECREE

Following are some of the orders which amount to a decree –

- i) An order rejecting a plaint – the definition of 'decree' provides that the rejection of a plaint shall be deemed to be a decree;
- ii) An order dismissing a suit for non-payment of Court-fee or for failure to pay additional Court-fee demanded. (*Dularin v. Hiranman, 1954 NL*) 32;
- iii) An order for the dismissal of an appeal for non-payment of Court-fee demanded after adjudication as to classification of a suit;

- iv) An order discharging some of the defendants for want of cause of action;
- v) An order rejecting prayer for a final decree for foreclosure;
- vi) An order rejecting a plaint for insufficiency of stamp;
- vii) An order discharging defendants for failure of the plaintiffs to furnish particulars, as it amounts either to rejection of a plaint or dismissal of a suit;
- viii) The decision of a district Court on appeal that the Court below has no jurisdiction;
- ix) Where one issue is settled and the case remanded to the lower Court for the determination of another issue;
- x) An order of abatement of a suit;
- xi) An order dismissing an application by a legal representative to be brought on the record; and
- xii) an order staying execution of a decree;
- xiii) An order dismissing cross-objection.

V. ORDERS WHICH ARE NOT DECREE

The following are, however, some of the orders which do not amount to a decree

- i) An order refusing stay;
- ii) remand under Section 151 or an order from amendment under that Section;
- iii) an order rejecting an application for leave to sue *in forma pauperis* for no suit has till then been filed;
- iv) an order refusing leave to institute a suit for accounts of a religious endowment;
- v) an order on a petition to appoint a new member on the committee of a religious endowment;
- vi) an order under the Indian Trusts Act dismissing an application for the removal of a trustee;
- vii) an order of an appellate Court returning a memorandum of appeal to be presented to the proper Court (but an appeal can be entertained);
- viii) an order rejecting memorandum of appeal for default in payment of Court fee (**Chotey Lal v. Gotainya, AIR 1955 V.P. 46**)
- ix) an order of the District Judge setting aside the rejection of a plaint;
- x) an order overruling a plea against the maintainability of a suit;
- xi) decision in plaintiff's favour as to his *locus standi* to sue;
- xii) an order appointing a commissioner to take accounts;
- xiii) an order directing an execution case to be dismissed for non-prosecution;
- xiv) dismissal for non-compliance with an order of the Court, if the plaintiff can file a fresh suit (**Mohan Lal v. Banmali, 1954**)
- xv) an order of the High Court dismissing an appeal for failure on the part of the appellant to deposit printing charges (**Ram Vijay Prasad Singh v. Parmatma Nand Singh, 1954 ALJ 73**); and
- xvi) an interlocutory order in execution deciding a point of law arising incidentally.

VI. APPEALABLE ORDERS [SECTION 104, ORDER 43, RULE 1]

The term 'decree' expressly excludes an adjudication from which an appeal lies as an appeal from an order. Such orders are specified in Section 104 and Order 43, Rule 1 of the Code. Thus, an order returning the plaint to be presented to the proper Court or an order rejecting an application from an order to set aside *ex parte* decree, or setting aside or refusing to set aside sale under Order 21 or an order rejecting an application for permission to sue as an indigent person, etc., are appealable orders and not decrees.

The distinction between a decree and appealable order lies in the fact that in case of a decree, second appeal lies if the requirements of Section 100 of CPC states, "...an appeal shall lie to the High Court from every decree passed in appeal by any Court subordinate to the High Court, if the High Court is satisfied that the case involves a substantial question of law". [Vide: Section 100 (1)] But no second appeal lies from an appealable order.

VII. INTERLOCUTORY ORDER [ORDER 39, RULES 6 TO 10]

An interlocutory order is one which is made pending the cause and before a final hearing on the merits. An interlocutory order is made to secure some ends and purposes necessary and essential to the progress of the suit, and generally collateral to the issues formed by the pleadings and not connected with the final judgment.

Amar Nath v. State of Haryana, AIR 1977 SC

The term "interlocutory order" merely denotes orders of a purely interim or temporary nature which do not decide or touch the important rights or the liabilities of the parties.

Madhu Limayee v. State of Maharashtra, AIR 1978 SC

The order-taking cognizance of an offence by a Court, whether it is so done illegally or without jurisdiction, will be an interlocutory order.

V. C. Shukla v. State through CBI, AIR 1980 SC

Interlocutory order has to be constructed in contradiction to or in contrast with final order. It means not a final order, but an intermediate order. It is made between the commencement of an action and the entry of the judgment.

VIII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPSCS (J), BJE, HJS, HARYANA JS ETC.]

1. Define Order. [200 Words, RJS-1969]
2. Which Orders are not included in the definition of Decree? [20 Words, RJS-1994]
3. Short Notes: Interlocutory Orders [150 Words, HJS-2001]

CHAPTER IV

FOREIGN JUDGMENT

[SECTIONS 2 (6), 13, 14]

Dear aspirant,

'Foreign Judgment' means a judgment of a foreign court [Section 2(6)]. Foreign court is a court situated beyond the limits of India which has no authority in India and not established or continued by the authority of the Central Government [Section 2(5)].

Section 13 provides that a foreign judgment shall be conclusive as to any matter thereby directly adjudicated upon between the same parties or between parties under whom they or any of them claim litigating under the same title except:

- a) where it has not been pronounced by a Court of competent jurisdiction;
- b) where it has not been given on the merits of the case;
- c) where it appears on the face of the proceedings to be founded on an incorrect view of international law or a refusal to recognize the law of India in cases in which such law is applicable;
- d) where the proceedings in which the judgment was obtained are opposed to natural justice;
- e) where it has been obtained by fraud;
- f) where it sustains a claim founded on a breach of any law in force in India.

Thus, Section 13 provides that a foreign judgment may operate as *res judicata* except in the six cases [Clauses (a) to (f)]. If A sues B in a foreign Court, and if the suit is dismissed, the decision will operate as a bar to a fresh suit by A in India and the same cause of action.

A decree passed by a Court in Ceylon against a native of State (in a suit on a contract) who was not residing in Ceylon in a nullity; and cannot be enforced by an Indian Court.

The crucial date to determine whether a judgment is a foreign Court or not is the date of the judgment and not the date when it is sought to be enforced or executed. Thus, a judgment of a Court, which was a foreign Court at the time of its pronouncement, would not cease to be a foreign judgment by reason of the fact that subsequently the foreign territory has become part of the Union of India.

A judgment given in a case where the defendant puts in no appearance, no evidence is called or considered and in which judgment is given by default by way of summary procedure is not a judgment "on the merits".

When in a suit instituted in England on the basis of a contract made in India, the English Court erroneously applied English law, the judgment of the Court is not conclusive as it is a general principle of private International Law that the rights and liabilities of the parties to a contract are governed by the place where the contract is made.

The expression 'natural justice' relate to the irregularities in procedure rather than to the merits of the case. [*Sankaran v. Lakshmi*, AIR 1974 SC]. A foreign judgment of a competent Court, therefore, is conclusive even if it proceeds on an erroneous view of the evidence or the law, if the minimum requirements of the judicial process are assured.

In *Satya v. Teji Singh* (AIR 1975 SC), a husband obtained a decree of divorce against his wife from American Court averring that he was domiciled in America. Observing that the husband was not bona fide resident or domiciled of America, and he had played fraud on foreign Court falsely representing to it incorrect

jurisdictional fact, the Supreme Court held that the decree was without jurisdiction and nullity. Similarly held in **Narasimha Rao v. Venkata Lakshmi, 1991 SCC (Criminal) 626**, – a decree of divorce passed by a foreign Court cannot be confirmed by an Indian Court if under the Indian Law the marriage is indissoluble.

Section 14 enacts that the Court shall presume, upon the production of any document purporting to be a certified copy of a foreign judgment, that such judgment was pronounced by a Court of competent jurisdiction, unless the contrary appears on the record, but such presumption may be displaced by proving want of jurisdiction so it is a rebuttable presumption of law.

A foreign judgment which is conclusive can be enforced in India in two ways:

- i) by instituting a suit on such foreign judgment, for claiming the relief granted by the foreign judgment. Such a suit must be filed within a period of 3 years from the date of the judgment;
- ii) by proceedings in execution in certain specified cases only (Section 44 and 44 A). The decree may be executed in India as if an Indian Court had passed it.

Following four questions are most important of this Chapter for Rajasthan Judicial Services, UPPCS (J) and Bihar Judicial Exam:

- i) Meaning and Definition of foreign Judgment.
- ii) When a foreign judgment is conclusive?
- iii) When a foreign judgment is not conclusive?
- iv) Execution of foreign Judgment in India.

Wishing you all the best,

Yours Sincerely,

RAHUL

CHAPTER IV

FOREIGN JUDGMENT

[SECTIONS 2 (6), 13,14]

SYNOPSIS

- I. Introduction**
- II. Foreign Judgment [Section 2(6)]**
- III. Foreign Court [Section 2(5)]**
- IV. Nature and Scope**
- V. Object**
- VI. Illustrations**
- VII. When a Foreign Judgment is Conclusive: Section 13**
- VIII. When a Foreign Judgment is not Conclusive: Section 13**
 - 1. Foreign Judgment not by a Competent Court**
 - 2. Foreign Judgment not Merits**
 - 3. Foreign Judgment against International or Indian Law**
 - 4. Foreign Judgment opposed to Natural Justice**
 - 5. Foreign Judgment obtained by Fraud**
 - 6. Foreign Judgment Founded on breach of Indian Law**
- IX. Presumption as to Foreign Judgments: Section 14**
- X. Enforcement of Foreign Judgments**
 - 1. Suit on Foreign Judgment**
 - 2. Execution Proceedings**
- XI. Period of Limitation [Article 101, Limitation Act, 1963]**
- XII. Question Based on Case Laws**
- XIII. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]**

CHAPTER IV FOREIGN JUDGMENT

[SECTIONS 2 (6), 13, 14]

I. INTRODUCTION

Section 13 and 14, CPC enacts a rule of *res judicata* in case of foreign judgments. These provisions embody the principle of private international law that a judgment delivered by a foreign Court of competent jurisdiction can be enforced by an Indian Court and will operate as *res judicata* between the parties thereto except in the cases mentioned in Section 13, clauses (a) to (f).

II. FOREIGN JUDGMENT [SECTION 2(6)]

Section 2(6) states that 'Foreign judgment' means a judgment of a 'Foreign Court'. In other words, a foreign judgment means an adjudication by a foreign Court upon a matter before it [Vide: *Brij Lal v. Govindram*, AIR 1947 PC]. Thus judgments delivered by Courts in England, Zimbabwe, Japan, France, Germany, USA, Privy Council of England, etc. are foreign judgments.

III. FOREIGN COURT [SECTION 2(5)]

'Foreign Court' means a Court situate outside India and not established or continued by the authority of the Central Government. Two conditions must be satisfied in order to bring a Court within the definition of a foreign Court –

- i) It must be situate outside India; and
- ii) It must not have been established or continued by the Central Government.

Thus, the Courts in England, Scotland, Ceylon, Burma, Pakistan and Privy Council are Foreign Courts.

IV. NATURE AND SCOPE

Section 13 embodies the principle of *res judicata* in foreign judgments. This provision embodies the principle of private international law that a judgment delivered by a foreign Court of competent jurisdiction can be enforced in India. The section is not confined in its application to plaintiffs. A defendant is equally entitled to non-suit the plaintiff on the basis of a foreign judgment.

V. OBJECT

The judgment of a foreign Court is enforced on the principle that where a Court of competent jurisdiction has adjudicated upon a claim, a legal obligation arises to satisfy that claim. The rules of private international law of each State must in the very nature of things differ, but by the comity of nations certain rules are recognized as common to civilized jurisdictions. Through part of the judicial system of each State these common rules have been adopted to adjudicate upon disputes involving a foreign element and to effectuate judgments of foreign law in certain matters, or as a result of international conventions. Such a recognition is accorded not as an act of courtesy but on considerations of justice, equity and good conscience.

VI. ILLUSTRATIONS

The principle can be elucidated with the help of the following illustrations:

- i) A sues B in a foreign Court. The suit is dismissed. The judgment will operate as a bar to a fresh suit by A against B in India on the same cause of action.
- ii) A sues B in a foreign Court. The suit is decreed. A then sues B on that judgment in India, B will be precluded from putting in issue the matters which were directly and substantially in issue before the foreign Court and adjudicated upon by the Court.
- iii) A sues B in a foreign Court and obtains a decree. He then sues B on that judgment in India. B is not precluded from raising a plea that the judgment of the foreign Court is not

conclusive and does not operate as *res judicata* since it was obtained by fraud (or was not given on merits; or was contrary to law; or was opposed to natural justice; etc.).

VII. WHEN A FOREIGN JUDGMENT IS CONCLUSIVE: SECTION 13

The Code of Civil Procedure provides that a foreign judgment shall be conclusive as to any matter thereby directly adjudicated upon between the same parties or between parties under whom they or any of them claim litigating under the same title except –

- a) where it has not been pronounced by a Court of competent jurisdiction;
- b) where it has not been given on the merits of the case;
- c) where it appears on the face of the proceedings to be founded on an incorrect view of international law or a refusal to recognize the law of India in cases in which such law is applicable;
- d) where the proceedings in which the judgment was obtained are opposed to natural justice;
- e) where it has been obtained by fraud;
- f) where it sustains a claim founded on a breach of any law in force in India.

VIII. WHEN A FOREIGN JUDGMENT IS NOT CONCLUSIVE: SECTION 13

A foreign judgment is not conclusive as to any matter directly adjudicated upon, if one of the conditions specified in Clauses (a) to (f) of Section 13 is satisfied and it will then be open to a collateral attack.

Dicey rightly states: "A foreign judgment is conclusive as to any matter thereby adjudicated upon and cannot be impeached for any error either of fact or of law".

In following six cases, a foreign judgment shall not be conclusive: _ _ _ _ _

1. Foreign Judgment not by a Competent Court

A judgment of a foreign Court to be conclusive between the parties must be a judgment pronounced by a Court of competent jurisdiction. Such judgment must be by a Court competent both by the law of the State which has constituted it and in an international sense. A 'Competent Court' implies a Court having jurisdiction over the parties and the subject-matter. Thus, if A sues B in a foreign Court, and if the suit is dismissed, the decision will operate as a bar to a fresh suit by A in India on the same cause of action.

In Dicey the rule as to 'competent jurisdiction' has been stated as follows: "~~In an action in personam~~ in respect of any cause of action, the Court of a foreign country have jurisdiction in the following cases:

- i) Where at the time of the commencement of the action the defendant was resident or present in such country, so as to have the benefit, and be under the protection of the laws thereof.
- ii) Where the defendant is, at the time of the judgment in the action, subject or citizen of such country.
- iii) Where the party objecting to the jurisdiction of the Courts of such country has, by his own conduct, submitted to such jurisdiction i.e. has precluded himself from objecting thereto –
 - a) by appearing as plaintiff in the action or counter-claiming, or
 - b) by voluntarily appearing as defendant in such action, or
 - c) by having expressly or impliedly contracted to submit to the jurisdiction of such Courts."

Thus, an action *in personam* lies normally where the defendant is personally within the jurisdiction or submits to the jurisdiction or though outside the jurisdiction may be reached by an order of the Court. In an action *in personam* the Court has jurisdiction to make an order for delivery of movables where the parties submit to the jurisdiction. However, a Court has no jurisdiction to pass a decree in respect of an immovable property situated in a foreign State. A decree passed by a Court in Ceylon against a native of State in a suit on a contract who was not residing in Ceylon is a nullity; and cannot be enforced by an Indian Court.

Bharat Nidhi Limited v. Megh Raj Mahajan (AIR 1964, Del 22)

The defendant was neither a national, nor a domicile, nor a resident of Pakistan on the date of the commencement of the suit (which resulted in the judgment which is pending adjudication before the Delhi High Court) or on the date of the decree. Moreover the defendant did not submit also to the jurisdiction of the Pakistan Court and he was not served while present in Pakistan with summons. Under these circumstances of the case the foreign decree was held to be a nullity. Thus, the case raises a point that the foreign judgment has to be passed only by a foreign Court of competent jurisdiction to operate as *res judicata* in the Indian Courts.

Gurdial Singh v. Rajah of Faridkot, (1895) 22 Cal 222 (PC)

A filed a suit against B in the Court of the Native State of Faridkot, claiming Rs. 60,000/- alleged to have been misappropriated by B, while he was in A's service at Faridkot. B did not appear at the hearing, and an *ex-parte* decree was passed against him. B was a native of another Native State Jhind. When the suit was filed against him, he was neither a resident nor a domicile of Faridkot. It was held that Faridkot Court had no jurisdiction to entertain a suit against B based on a mere personal claim against him. The mere fact that the embezzlement took place at Faridkot, was not sufficient to give jurisdiction to the Faridkot Court. But if B was residing at Faridkot at the date of the suit, it would have had complete jurisdiction to entertain the suit and to pass a decree against him.

It may be noted that the crucial date to determine whether the judgment is of a foreign Court or not is the date of the judgment and not the date when it is sought to be enforced or executed. Thus, a judgment of a Court which was a foreign Court at the time of its pronouncement would not cease to be a foreign judgment by reason of the fact that subsequently the foreign territory has become part of the Union of India. On the other hand, an order which was good and competent when it was made and passed by a tribunal which was domestic at the date of its making and which could at that date have been enforced by an Indian Court, does not lose its efficacy by reason of the partition (*Shitole v. Sanker Saran, AIR SC 1737*).

2. Foreign Judgment not Merits

In order to be conclusive, the foreign judgment must be on the merits i.e. which involves the application of the mind of the Court to the truth or falsity of the plaintiff's case and a judgment passed after a judicial consideration of the matter by taking evidence may be a decision on the merits even though passed *ex-parte*. Thus, a judgment given in a case in which the defendant puts in no appearance, no evidence is called or considered and in which judgment is given by default by way of summary procedure is not a judgment "on the merits" (*Lalji v. Hansraj AIR 1971 SC 974*). A judgment of a foreign Court on compromise is a judgment on merits and must be held to be conclusive.

It may be noted that what is conclusive is the judgment i.e. the final adjudication and not the reasons for the judgment given by the foreign Court (*Vishwanathan v. Abdul Wajid, AIR 1963 SD 105*).

3. Foreign Judgment against International or Indian Law

A judgment based upon an incorrect view of international law or a refusal to recognize law of India where such law is applicable is not conclusive. But the mistake must be apparent on the face of the proceedings. Thus, where in a suit instituted in England on the basis of a contract made in India, the English Court erroneously applied English Law, the judgment of the Court is not conclusive as it is a general principle of Private international Law that the right and liabilities of the parties to a contract are governed by the place where the contract is made (*lex loci contractus*) (*Gurdial Singh v. Rajah of Faridkot (1895) 22 Cal. 222*).

4. Foreign Judgment opposed to Natural Justice

The judgment must observe the minimum requirements of nature justice, i.e., it must give reasonable notice to the parties to the dispute and afford each party adequate opportunity of presenting his case. Thus where a decree is pronounced in the absence of a

party, a party is not properly represented in the proceedings, or where the Judge is biased, the foreign judgment is not conclusive.

It may be noted that the mere fact that the foreign Court did not follow the procedure of Indian Courts or did not observe the Indian rules of evidence will not invalidate a foreign judgment on the ground of proceedings being opposed to natural justice. It is for foreign Court to interpret its own law and rules of procedure.

5. Foreign Judgment obtained by Fraud

It is well established principle of Public International Law that if a foreign judgment is obtained by fraud, it will not operate as *res judicata*. Fraud, in any case bearing on jurisdiction facts, vitiates all judicial acts (**Satya v. Teja Singh AIR 1975 SC 105**). Though it is not permissible to show that the court was 'mistaken' (an erroneous decision), it might be shown that it was 'misled'. There is an essential distinction between mistake and trickery. A 'mistake' of law in a foreign judgment is not ground for vacating it, but it can be set aside if the Court was imposed upon or tricked into giving the judgment.

The fraud may be either fraud on the part of the party invalidating a foreign judgment in whose favour the judgment is given or fraud on the Court pronouncing the judgment. The fraud should not be merely constructive, but must be actual fraud consisting of representations designed and intended to mislead; a mere concealment of fact is not sufficient to avoid a foreign judgment (**Castrique v. Beherens 30 LJ QB 163**).

Satya v. Teja Singh (AIR 1975 SC 105)

A husband obtained a decree of divorce against his wife from American Court averring that he was domiciled in America. Observing that the husband was not *bona fide* resident or domicile of America, and he had played fraud on foreign Court falsely representing to it incorrectly jurisdictional fact, the Supreme Court held that the decree was without jurisdiction and nullity.

Narasimha Rao v. Venkata Lakshmi (1991) 3 SCC 451

A (husband) obtained a decree of divorce against B (wife) from U.S. Court on the ground that he was resident of USA. Then filed a criminal complaint against A and C for bigamy. A and C filed an application for discharge. The Supreme Court dismissed the application and held that the decree of dissolution of marriage was without jurisdiction in as much as neither the marriage was solemnized nor the parties last resided together in USA. It was, therefore, unenforceable in India.

6. Foreign Judgment Founded on breach of Indian Law

Where a foreign judgment is founded on a breach of any law in force in India, it would not be enforced in India. Every case which comes before an India Court must be decided in accordance with Indian law. Thus, a foreign judgment for a claim which is barred under the Law of Limitation in India is not conclusive. Similarly, a decree for divorce passed by a foreign Court cannot be confirmed by an Indian Court if under the Indian Law the marriage is indissoluble. [Vide: **Narasimha Rao v. Venkata Lakshmi, (1991) 3 SCC, 451**]

Section 13 (f) does not require that the procedure of the foreign Court should be identical with or similar to the procedure of the Courts in India. It is for foreign Court to interpret its own law and rules of procedure and its decision that a particular Court was the 'proper' Court (to deal with a particular matter according to the law of the foreign country) must be regarded as conclusive.

IX. PRESUMPTION AS TO FOREIGN JUDGMENTS: SECTION 14

Section 14 of the Code enacts that the Court shall presume, upon the production of any document purporting to be a certified copy of a foreign judgment, that such judgment was pronounced by a Court of competent jurisdiction, unless the contrary appears on the record, or is proved. However, if for admissibility of such copy any further condition is required to be fulfilled, it can be admitted in evidence only if that condition is satisfied. Thus, in **Narasimha Rao v. Venkata Lakshmi (1991) SC** the Supreme Court held that mere production of a Photostat copy of a decree of foreign Court is not sufficient. It is required to be certified by a representative of the Central Government in America.

X. ENFORCEMENT OF FOREIGN JUDGMENTS

A foreign judgment which is conclusive under Section 13 of the Code can be enforced in India in the following ways:

- i) by instituting a suit on such foreign judgment, or
- ii) by instituting execution proceedings

1. Suit on Foreign Judgment

A foreign judgment may be enforced by instituting a suit on such foreign judgment. The general principle of law is that a decision by a foreign Court, tribunal or quasi-judicial authority is not enforceable in a country unless such decision is embodied in a decree of Court of that country. In such suit, the Court cannot go into the merits of the original claim and it shall be conclusive as to any matter thereby directly adjudicated upon between the same parties.

2. Execution Proceedings

A foreign judgment may also be enforced by proceedings in execution in certain specified cases mentioned in Section 44-A of the Code. The said section provides that where a certified copy of a decree of any of the superior Courts of any reciprocating territory has been filed in a District Court, the decree may be executed in India as if it had been passed by the District Court. When a foreign judgment is sought to be executed under Section 44-A, it will be open to the judgment-debtor to take all objections which would have been open to him under Section 13 if a suit had been filed on such judgment. The fact that out of six exceptions there has been due compliance with some of the conditions and there has been no violation of some of the exceptions is of no avail. *The decree can be executed under Section 44-A only if all the conditions of Section 13(a) to (f) are satisfied.*

XI. PERIOD OF LIMITATION [ARTICLE 101, LIMITATION ACT, 1963]

The period of limitation for filing a suit on a foreign judgment is three years from the date of the judgment. [Vide: Article 101, The Indian Limitation Act, 1963]

XII. QUESTION BASED ON CASE LAWS

1. H filed a divorce petition against W in a USA Court. W has been staying in India for the last 5 years and has not visited the USA during this period. H did not serve notice to W at her Indian address but instead a notice was published in a newspaper in the USA. The USA Court granted decree of divorce *ex-parte* to H. Discuss the maintainability of this decree in India. [50 Words]
2. X married Y at Madras in accordance with Hindu rites in 1990. After marriage they started residing in the state of Louisiana, USA. In 1992, they separated and Y came back to Madras. X filed a petition for divorce in USA. X obtained jurisdiction of the Court on the ground that X and Y had stayed at Missouri, USA for more than 90 days. Y sent reply in protest. The Court passed the decree for dissolution of marriage in her absence on the ground that marriage has been irretrievably broken. X married Z at Bangalore in 95. Y filed a criminal complaint against X for the offence of bigamy. X filed an application for discharge in view of decree of dissolution passed by Missouri Court. Y contended that the judgment of Court of Missouri is not conclusive. Decide. [50 Words]
3. A sues B in a foreign Court. The suit is dismissed. Can A file a fresh suit on the same cause of action against B in India? Why? [50 Words]
4. A judgment of a Court which was a foreign Court at the time of its pronouncement would cease to be a foreign judgment by reason of the fact that subsequently the foreign territory has become a part of the union of India. Whether this statement is true give reason. [50 Words]
5. A suit institute in England on the basis of a contract made in India. The English Court applied English Law. The judgment of the Court was filed in Indian Court for execution. Whether the judgment can be enforced in Indian Court? Give reasons. [50 Words]

XIII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Is a judgment given by a Foreign Court conclusive as to matters decided therein and how can such a judgment be enforced in India. **[200 Words, RJS-1974]**
2. Under what circumstances a Foreign Judgment is not conclusive? **[50 Words, RJS-1988]**
3. What is a Foreign Judgment? Under what circumstances is it conclusive? **[300 Words, UPPCS (J)-1985]**
4. What do you understand by a foreign Judgment? In what manner may a decree of a Foreign Court be executed in India? **[300 Words, UPPCS (J)-1991]**
5. Short Notes: Foreign Judgment **[150 Words, BJE-1977]**

CHAPTER V

LEGAL REPRESENTATIVE AND RECOGNIZED AGENTS

Dear aspirant,

The definition of the Legal representative is given under Section 2(11) CPC. It states, "Legal representative" means a person who in law represents the estate of a deceased person, and includes any person who intermeddles with the estate of the deceased and where a party sues or is sued in a representative character the person on whom the estate devolves not the death of the party so suing or sued;

Although in its strictest sense, the term legal representative is limited to the executors, and administrators only, its meaning has been extended in the Civil Procedure Code. Thus, a universal legatee under a will executed by the deceased is his legal representative. Likewise, a person on whom the estate of the deceased devolves would be his legal representative, even if he does not have any actual possession of the estate. The Supreme Court has held that even legatees of portions of an estate are legal representatives [*Andhra Bank v. Shrinivasan*, AIR 192 SC 232].

One who intermeddles with the estate of a deceased person, or even with a part of his estate, would be a legal representative within the meaning of this definition, and would be liable to the extent of the property taken possession of by him. But, he cannot be considered to be a legal representative as regards the property not in his possession.

However, a mere trespasser is not a legal representative, as he does not intermeddle with the estate with the intention of representing the estate [*Nagendra v. Haran*, (1933) 37 CWN 758].

'Pleader' is defined in the Code as "any person entitled to appear and plead for another in Court and includes an advocate, a *Vakil* or an attorney of a High Court" [Section 2(15)]. Rule 3 of Order 3 provides that a pleader can be appointed by a document in writing known as *Vakalatnama*, signed by the party, or by his recognized agent or by some person, duly authorised by him.

Rule 2, Order 3 deals with Recognized agents. It provides that following persons are considered as recognized agents:

- i) Persons holding power of attorney;
- ii) Persons carrying on trade or business for parties not residing within the territorial jurisdiction of the Court in matters connected with such trade or business only provided that there is not other agent; and
- iii) Persons specially appointed by the Government to prosecute or defend on behalf of foreign rules [Section 85].

Short notes on the following topics can be asked in Rajasthan Judicial Services and UPSCS (J):

- i) Legal Representative [Section 2(11)]
- ii) Pleaders [Section 2(15)]
- iii) Recognized Agents [Order 3, Rule 2]
- iv) Examples of Legal Representatives

Wishing you all the best,

Yours Sincerely,

RAHUL

CHAPTER V

LEGAL REPRESENTATIVE AND RECOGNIZED AGENTS

SYNOPSIS

I. Legal Representatives [Section 2(11)]

1. Meaning
2. The persons who are Legal Representatives
3. The person who are not Legal Representatives
4. Decree Against Wrong Representatives

II. Pleader and Recognized Agents

1. Appearance of Parties [Order 3, Rule 1]
2. Recognized Agents [Order 3, Rule 2]
3. Authority of Pleader
4. Duties of Pleader
5. Service of Process [Order 3, Rules 3, 5, 6]

III. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER V

LEGAL REPRESENTATIVE AND RECOGNIZED AGENTS

I. LEGAL REPRESENTATIVES [SECTION 2(11)]

1. Meaning

'Legal Representative' means a person who in law represents the estate of a deceased person, and includes any person who intermeddles with the estate of the deceased and where a party sues or is sued in a representative character the person on whom the estate devolves on the death of the party so suing or sued.

Balco National Ultramarino v. Nalini Bai, AIR 1989 SC

The expression legal representative is inclusive in character, its scope is very wide and, thus, over and above a person who in law represents the estate of a deceased, it includes a person who intermeddles with the estate of a deceased and also a person on whom the estate devolves on the death of the party suing or sued where a party sues or is sued in a representative character.

2. The persons who are Legal Representatives

Following persons are held to be legal representatives:

- i) Executors;
- ii) Administrators;
- iii) Reversioners;
- iv) Hindu Coparceners
- v) Residuary Legatees etc.

3. The person who are not Legal Representatives

Following persons are not legal representatives:

- i) A trespasser is not a legal representative as he does not intermeddle with the intention of representing the estate of the deceased;
- ii) An Executor De-son Tort i.e. Executor of his own wrong is he that "takes upon him the office of an executor by intrusion, not being so constituted by the testator";
- iii) A succeeding Trustee;
- iv) Official Assignee or receiver etc.

4. Decree Against Wrong Representatives

A true legal representative will be bound by a decree passed against the wrong legal representative if the following conditions are fulfilled, viz.:-

- i) The plaintiff decree-holder has acted *bona fide*;
- ii) The decree obtained is free from fraud and collusion;
- iii) The person wrongly impleaded was impleaded in a representative capacity;
- iv) The decree or order was passed against him as representing the estate of the deceased;
- v) The plaintiff was ignorant of the facts which operate to displace the title of the supposed legal representative; and
- vi) The person having the real title did not intervene during the pendency of suit.

II. PLEADER AND RECOGNIZED AGENTS

1. Appearance of Parties [Order 3, Rule 1]

Generally and appearance, application or act in or to any Court may be made or done (i) by a party in person; or (ii) by his recognized agent; or (iii) by a pleader appearing, applying or acting on his behalf. However, the Court can direct any party to appear in person. But

except for good reasons, the Court will not direct the party to appear in person. But after such direction by the Court, if the party fails to appear, the Court can dismiss the suit or process *ex parte*.

2. Recognized Agents [Order 3, Rule 2]

The following person have been considered recognized agents by the Code:

- a) Persons holding power of attorney;
- b) Person carrying on trade or business for parties not residing within the territorial jurisdiction of the Court in matters connected with such trade or business only, provided that there is no other agent; and
- c) Persons specially appointed by the Government to prosecute or defend on behalf of foreign rulers.

3. Authority of Pleader

A pleader stands on the same footing in regard to his authority to act on behalf of his clients. There is inherent in the position of counsel an implied authority to do all that is expedient, proper and necessary for the conduct of the suit and the settlement of disputes. This power, however, must be exercised *bona fide* and for the benefit of his client. Secondly, power is one thing and prudence is another and indeed the latter sometimes bears upon the former. The lawyer must be above board, especially if he is to agree to an adverse verdict. It is prudent and proper to consult his client and take his consent if there is time and opportunity.

4. Duties of Pleader

Lawyers are custodians of civilization. They have to discharge their duties with dignity, decorum and discipline. They are not mere agents of their clients but are officers of the Court and they are expected to assist in the administration of justice. As it is said, a counsel has a tripartite relationship: one with the public, another with the Court and the third with his client. That is a unique feature. Other professions or callings may include one or two of these relationships but no other has the triple duty. Counsel's duty to the public is unique in that he had to accept all work from all clients in courts in which he holds himself out as practicing, however unattractive the case or his client. A counsel has the duty and right to speak freely and independently without fear of authority, without fear of the Judges and also without fear of a stab in the back from his own client. To some extent, he is a Minister of Justice.

5. Service of Process [Order 3, Rules 3, 5, 6]

A process served on the recognized agent or a pleader of the party or left at the office or residence of the pleader will be considered as valid and proper.

III. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HAR, NA JS ETC.]

1. Short Notes: Legal Representative [50 Words, RJS-1975]
2. Short Notes: Recognized Agents and Pleaders [50 Words, RJS-1975]
3. Define a Legal Representative. [20 Words, RJS-1992]
4. Who is a Legal Representative? Give examples of Legal Representative. [300 Words, UPPCS (J)-1988]

CHAPTER VI

MESNE PROFITS

Dear aspirant,

The definition of mesne profits is given in Section 2(12), CPC. Mesne Profit of property means those profit which the person in wrongful possession of such property actually received, or might with ordinary diligence have received therefrom, together with interest on such profits. The expression, does not, however, include profits due to improvements made by the person in wrongful possession.

The object of awarding a decree for mesne profits is to compensate the person entitled to be in possession for his having been kept out of possession and thus deprived of the property. Hence, only a person who is entitled to actual possession can claim mesne profits. On the other hand, the very foundation of the cause of action for mesne profits is wrongful possession of the defendant. Thus, the possession of a mortgagor after the date of a foreclosure decree against him is wrongful possession. So also is the possession of a vendee under a conveyance which is voidable for fraud or undue influence.

The true measure of mesne profits is not what the plaintiff has lost, but what the defendant has gained by his wrongful possession, or what he might reasonably have gained by such possession. Thus, if the person charged has let the land to another, the rent which he has actually received would be the measure of profits for which he would be liable, unless it is proved a higher rent could have been obtained with due diligence.

So also, in one case, when the person in wrongful possession planted indigo on the land, and it was proved that a prudent agriculturist would have grown sugarcane, wheat or tobacco on such land, the Privy Council held that mesne profits should be ascertained on the basis of these more profitable crops. [*Gray v. Bhagumian*, AIR 1930 PC 82]

It may be noted that the possession of one co-sharer is, in law, possession of other co-shares. Of course, if a co-sharer is excluded from the share to which he is entitled, he can claim an account of the profits.

Mesne Profits are in the nature of damages, and therefore, the right to sue for mesne profits is actually a right to sue for damages. Therefore, such a right cannot be attached and sold in execution of a decree against the person who is entitled to such a right. Thus, for instance, if A is entitled to claim mesne profits from B for wrongful possession of his lands, this right of A cannot be attached and sold in execution of a decree against A. Therefore, even if this right is attached and sold to X, X will not be entitled to sue B for mesne profits.

The Supreme Court has held that possession through another person, such as a tenant, may be sufficient to create liability for mesne profits, if such possession is unlawful [*Lucky Kochuvarred v. P. Mariappa Gounder*, AIR 1979 SC 1214].

As a claim for mesne profits is, in reality, a claim for damages, there is no rigid rule for determining the amount of such profits, and this amount should be assessed in every case by a proper exercise of judicial discretion.

It has been held that the burden of proving the amount of mesne profits actually received is on the person who has received them, while the burden of proving the amount of profits which might have been received is on the person claiming them [*Ram Krishnalal v. Abu Abdulla*, (1942) 21 Patna, 735].

This Chapter is important for Rajasthan Judicial Services (RJS), Himachal Judicial Services (HJS) and Haryana Judicial Services Examinations. Following topics are important in this Chapter:

- i) The definition of Mesne Profits
- ii) Guiding principles for determination of Mesne Profits
- iii) Mesne Profits and Movable Property

Wishing you all the best,

Yours Sincerely,

RAHUL

Ranvir's IAS

CHAPTER VI MESNE PROFITS

SYNOPSIS

- I. Meaning [Section 2(12)]**
- II. Object**
- III. Who is liable for Mesne Profits?**
- IV. Assessment**
- V. Principles**
- VI. Illustrations**
- VII. Interest**
- VIII. Deduction**
- IX. Mesne Profits and Movable Property**
- X. Questions Based on Case Laws**
- XI. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]**

CHAPTER VI

MESNE PROFITS

I. MEANING [SECTION 2(12)]

Section 2(12) CPC states, "Mesne profit" of property means those profits which the person in wrongful possession of such property actually received or might with ordinary diligence have received therefrom, together with interest on such profits, but shall not include profits due to improvements made by the person in wrongful possession".

When a person is dispossessed from his immovable property, he has two rights:

- i) He is entitled to receive possession of property;
- ii) He is also entitled to receive damages for wrongful dispossession.

The mesne profits are a compensation which are penal in nature.

II. OBJECT

The object of awarding a decree for mesne profits is to compensate the person who has been kept out of possession and deprived of enjoyment of his property even though he was entitled to possession thereof.

III. WHO IS LIABLE FOR MESNE PROFITS?

A person in wrong possession and enjoyment of immovable property is liable for mesne profits because wrongful possession of the defendant is the essence of a claim for mesne profits.

Following persons are liable for mesne profits:

- i) a trespasser;
- ii) a person against whom a decree for possession has been passed;
- iii) a mortgagor in possession of mortgaged property after a decree for foreclosure has been passed against him;
- iv) a mortgagee in possession of property even after a decree for redemption is passed;
- v) a tenant holding over at will after a notice to quit has been served upon him.

Fateh Chand v. Balkishan Das, AIR 1963 SC.

Where the plaintiff is dispossessed by several persons, every one would be liable to pay mesne profits to the plaintiff even though he might not be in actual possession or the profits might not have been received by him. The Court in such cases may hold all the trespassers jointly and severally liable, leaving them to have their respective rights adjusted in a separate suit for contribution; or, may ascertain and apportion the liability of each of them.

IV. ASSESSMENT

In assessing the mesne profits, usually the Court will take into account what the defendant has gained or reasonably might have gained by his wrongful possession of the property. The test is not what the plaintiff has lost by being out of possession but what the defendant gained or might reasonably and with ordinary prudence have gained by such wrongful possession.

V. PRINCIPLES

The guiding principles for determination of mesne profits are as follows:

- a) the profits must be accounted of by the person in wrongful possession.
- b) restoration of status to the decree holder about the possession of property.
- c) use to which the decree holder would have put the property if he himself was in possession.

VI. ILLUSTRATIONS

In a suit for title and possession where the land is in occupation of tenant, mesne profits should be awarded on the basis of rent and not on the basis of the produce or value of the

property. Further, a person in wrongful possession is not liable for failure to realise the highest possible rates of rent and premium, if a 'fair' (or reasonable) rent has been realized from the land [*Secy. of State v. Saroj Kumar (1935) 62 IA 53*]. So, when a person in wrongful possession plants indigo on the land and it is proved that a prudent agriculturist would have planted sugarcane, wheat or tobacco, the mesne profits should be assessed on the basis of those more profitable crops [*Harry Grey v. Bhagumian, AIR 1930 PC 82*].

VII. INTEREST

Since interest is an integral part of the mesne profits, it has to be allowed in the computation of mesne profits itself. The rate of interest is in the discretion of the Court, subject to the limitation that the said rate shall not exceed 6 percent per annum. Such interest can be allowed till the date of payment.

VIII. DEDUCTION

While awarding mesne profits, the Court may allow deductions to be made from the gross profits of the defendant in wrongful possession of the property; such as land revenue, rent, cesses, cost of cultivation and reaping, the charges of collection or rent, etc. In other words, mesne profits should be net profits.

IX. MESNE PROFITS AND MOVABLE PROPERTY

Mesne profits can be claimed with regard to immovable property only. No mesne profits can be granted in the case of dispossession of movable property. Wrongful possession of the defendant is the essence of a claim for mesne profits and the very foundation of the defendant's liability thereof so a person in wrongful possession and enjoyment of immovable property is liable for mesne profits [*Vide: Lucy v. Mariappa, AIR 1979, SC*]

X. QUESTIONS BASED ON CASE LAWS

1. A person in wrongful possession planted indigo on the land and it was proved that a prudent agriculturist would have planted sugarcane, wheat or tobacco. How should the mesne profits be asserted? Why? [50 Words]
2. A plaintiff was dispossessed by several persons. Only two defendants were in wrongful possession of the property while one of the defendants was not in possession of property notwithstanding that he also used his force in dispossessing the plaintiff from his immovable property. Who are liable for mesne profits? [50 Words]
3. A person is dispossessed from his movable property the possession of movable property is obtained wrongful by Mahesh. Can the plaintiff claim mesne profits from Mahesh? [50 Words]
4. Can right of mesne profits be attached in execution of decree? [20 Words]
5. On whom the burden of proof lies in respect of:
 - a) the amount of profits which might have been received by the defendant.
 - b) the amount of mesne profits actually received by the defendant. [20 Words]

XI. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Short Notes: Mesne Profits [50 Words, RJS-1971, 150 Words, BJE-1975]
2. Define "Mesne Profits". [20 Words, RJS-1986]
3. What do you mean by Mesne Profits? [20 Words, RJS-1992]
4. What do you understand by the expression "Mesne Profits"? What are the principles to guide a Court in determining the amount of mesne profits? Can Mesne profits be awarded for wrongful dispossession of movable property? Give Reasons. [300 Words, HJS-2001].
5. In which of the following provisions, 'mesne profits' has been defined in the Code?
 - a) Section 2(4)
 - b) Section 2(8)
 - c) Section 2(12)
 - d) Section 2(14)[Uttaranchal PCS (J)-2002]
6. Write Short Note on Mesne Profits. [150 Words, HJS-2003]

CHAPTER VII

JURISDICTION OF CIVIL COURT

Dear aspirant,

Jurisdiction of a Court may be defined to be the power or authority of a Court to hear and determine a cause, to adjudicate and exercise any judicial power in relation to it. In other words, jurisdiction of a Court means the extent of the authority of a Court to administer justice prescribed with reference to the subject matter, pecuniary value and local limits.

A decree passed by a Court without jurisdiction is a *coram non judge*. If the Court has no jurisdiction, consent of the parties or their inaction, cannot confer that jurisdiction; nor by consent jurisdiction can be ousted. But if two or more Courts have jurisdiction to try the suit, it is open to the parties to select a particular forum. Such an agreement would be legal, valid and enforceable [Vide: **Hakam Singh v. Gammon India) Ltd., AIR 1971 SC**]

The question whether a Court has jurisdiction or not is determinable "at the commencement, not at the conclusion of the inquiry". Whenever the jurisdiction of the Court is challenged, the Court has inherent jurisdiction to decide the said question. Every Court or tribunal is not only entitled but bound to determine whether the matter in which it is asked to exercise its jurisdiction comes within its jurisdiction or not.

Jurisdiction in a wide sense means the extent of the power of the Court to entertain suits, appeals and applications.

The jurisdiction of a Court may be classified into the following categories:

- i) Jurisdiction over subject matter
- ii) Territorial jurisdiction
- iii) Pecuniary jurisdiction
- iv) Original and Appellate jurisdiction
- v) Writ jurisdiction

Throughout India there are a large number of Civil Courts of different 'grades' having jurisdiction to try suits or hear appeals of different amounts or value. The code provides that a Court will have jurisdiction only over those suits, the amount of which does not exceed the pecuniary limits of its jurisdiction [Section 6].

The expression 'subject matter' in relation to the property involved in the suit, but the relief claimed, and it is that value which determines the jurisdiction. The Suit Valuation Act, 1887 prescribes the mode of valuing certain suits for the purpose of determining jurisdiction. Thus, in a suit for partition, the value, for the purpose of jurisdiction, is not the value of entire estate which is sought to be partitioned, but only the value of the share which is claimed by the plaintiff. If the valuation in the plaint in a suit for accounts is within the Court's pecuniary jurisdiction, the Court may pass a decree in the suit which may be in excess of its pecuniary jurisdiction.

This Chapter is most important for RJS, UP PCS (J), Bihar Judicial Exam and HJS. Following topics are important –

- i) The meaning of jurisdiction
- ii) Pecuniary jurisdiction
- iii) Consent of the Parties and jurisdiction.
- iv) Lack of jurisdictions and irregular exercise of jurisdiction.

Wishing you all the best,

Yours Sincerely,

RAHUL

CHAPTER VII
JURISDICTION OF CIVIL COURT
SYNOPSIS

- I. General**
- II. Jurisdiction: Meaning**
- III. Jurisdiction and Consent**
- IV. Lack of Jurisdiction**
- V. Irregular Exercise of Jurisdiction**
- VI. Basis to Determine Jurisdiction**
- VII. Decision as to Jurisdiction**
- VIII. Kinds of Jurisdiction**
 - 1. Jurisdiction over subject matter
 - 2. Territorial Jurisdiction
 - 3. Pecuniary Jurisdiction
 - 4. Original and appellate Jurisdiction
 - 5. Writ Jurisdiction
- X. Questions Based on Case Laws**
- XI. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]**

CHAPTER VII

JURISDICTION OF CIVIL COURT

I. GENERAL

Ubi jus ibi remedium i.e. where there is a right, there is a remedy is the basic principle of civil law. A litigant having a grievance of a civil nature has a right to institute civil suit in a competent Civil Court unless its cognizance is either expressly or impliedly barred by any statute. A suit for its maintainability requires no authority of law and its is enough that no statute bars it.

II. JURISDICTION: MEANING

Jurisdiction may be defined to be the power or authority of a Court to hear and determine a cause, to adjudicate and exercise any judicial power in relation to it. In other words, by jurisdiction is meant the authority which a Court has to decide matters that are litigated before it or to take cognizance of matters presented in a formal way for its decision. Thus, jurisdiction of a Court means the extent of the authority of a Court to administer justice prescribed with reference to the subject-matter, pecuniary value and local limits.

III. JURISDICTION AND CONSENT

The consent of the parties cannot confer nor take away jurisdiction of a Court. If the Court has no jurisdiction, neither acquiescence nor waiver non-estoppel can create it. A decree passed by a Court without jurisdiction is a *coram non iudice*.

Kiran Singh v. Chaman Paswan, AIR 1954 SC

A defect of jurisdiction strikes at the very authority of the Court to pass any decree, and such a defect cannot be cured even by consent of parties.

Hakam Singh v. Gammon India Ltd., AIR 1971 SC

Where the Court has jurisdiction to decide a dispute, the same cannot be taken away or ousted by consent of parties. An agreement to oust *absolutely* the jurisdiction of the Court would be unlawful and void being against the public policy. (*Ex dolo malo non oritur action*). But if two or more Courts have jurisdiction to try the suit, it is open to the parties to select a particular forum and exclude the other forums. And therefore the parties may agree among themselves that the suit should be brought in one of those Court and not in the other, since there is no inherent lack of jurisdiction in the Court. Such an agreement would be legal, valid and enforceable.

IV. LACK OF JURISDICTION

If there is inherent lack of jurisdiction, the decree passed by a Civil Court is a nullity and that nullity can be set up in any collateral proceedings.

V. IRREGULAR EXERCISE OF JURISDICTION

If the Court has jurisdiction but it is irregularly exercised, the defect does not go to the root of the matter, and the error if any in exercising the jurisdiction can be remedied in appeal or revision and when there is no such remedy or is not availed of, the decision is final.

Mathai v. Varkey Varkey, AIR 1964 SC

The Supreme Court observed, "if the party aggrieved does not take appropriate steps to have that error corrected, the erroneous decree will hold good and will not be open to challenge on the basis of being a nullity".

VI. BASIS TO DETERMINE JURISDICTION

The question whether a Court has jurisdiction or not is determinable 'at the commencement, not at the conclusion of the inquiry'. Whenever the jurisdiction of the Court is challenged, the Court has inherent jurisdiction to decide the said question. Every Court or

tribunal is not only entitled but bound to determine whether the matter in which it is asked to exercise its jurisdiction comes within its jurisdiction or not. The jurisdiction of the Court has to be decided on the basis of allegations made by the plaintiff in the plaint and not on the allegations made by the defendant in the written statement.

The plaintiff chooses his forum and files his suit. If he frames his suit in a manner not warranted by the facts, and goes for his relief to a Court which cannot grant him relief on the true facts, his suit will be dismissed. However, if the jurisdiction is only one relating to territorial limits or pecuniary limits, the plaint will be ordered to be returned for presentation to the proper Court.

VII. DECISION AS TO JURISDICTION

Whether a Court has jurisdiction or not has to be decided with reference to the initial assumption of jurisdiction by that Court. The question depends not on the truth or falsehood of the facts into which it has to enquire, or upon the correctness of its findings on these facts, but upon their nature, and it is determinable "at the commencement, not at the conclusion of the inquiry". Whenever the jurisdiction of the Court is challenged, the Court has inherent jurisdiction to decide the said question.

VIII. KINDS OF JURISDICTION

Jurisdiction of a Court may be classified into the following categories:

1. Jurisdiction over subject matter

Certain Courts are precluded from entertaining suits of particular classes by statute. Thus a small cause Court can try only such suits as a suit for money due on account of an oral loan or under a bond or promissory note, a suit for price of work done, etc., but it has no jurisdiction to try suits for specific performance of contracts, for dissolution of partnership, for an injunction, suits relating to immovable property, or for defamation.

2. Territorial Jurisdiction

Every Court has its own limits, fixed by the Government, beyond which it cannot exercise its jurisdiction. Thus the District Judge is in charge of the district and cannot exercise his powers beyond that district. The Munsif West and the Munsif East are in charge of the areas assigned to them. The High Court has jurisdiction over the whole territory of the State within which it is situated.

3. Pecuniary Jurisdiction

Throughout India there are a large number of Civil Courts of different grades giving jurisdiction to try suits or hear appeals of different amounts or value. Some of these Courts have unlimited pecuniary jurisdiction. Thus the High Court and the Courts of the District Judge and the Civil Judge have unlimited pecuniary jurisdiction, other Courts have only a limited pecuniary jurisdiction.

A Presidency Small causes Courts cannot entertain a suit in which the amount claimed exceeds Rs. 1,000/- in Delhi the District Court has a jurisdiction to hear the cases up to the amounts of Rs. 20,00,000/-. In Rajasthan the pecuniary jurisdiction of the Civil Courts are as follows:

Civil Judge	=	Rs. 25,000/-
Civil Judge	=	Rs. 50,000/-
District Judge	=	Unlimited
High Court	=	Unlimited

4. Original and Appellate Jurisdiction

The jurisdiction of a Court may be *Original* or *Appellate*. In the exercise of original jurisdiction a Court entertains original suits, while in the exercise of its appellate jurisdiction it entertains appeals. The Munsif's Court and the Court of Small Causes have only original jurisdiction; the District Judge's Court and the various High Courts have both

original and appellate jurisdiction. The High Court of Allahabad has limited original jurisdiction. In the first place, it has original jurisdiction with regard to matrimonial, testamentary, probate and company matters. And, in the second place, it can exercise extraordinary jurisdiction in any suit or trial, as it has the power to remove a suit from a subordinate Court to itself for trial and determination.

5. Writ Jurisdiction

The High Courts and the Supreme Court have writ jurisdiction on the violation of Fundamental Rights, any person can apply to High Court under Article 226 and to the Supreme Court under Article 32 of Constitution of India. Writ jurisdiction of the High Court is very vast, on the violation of any legal right, the writ jurisdiction can be knocked at under Article 226.

X. QUESTIONS BASED ON CASE LAWS

1. If the Court has no inherent jurisdiction, can the acquiescence of the parties create it? [20 Words]
2. Can the jurisdiction of the Court be ousted absolutely by the agreement of the parties? Give reasons. [50 Words]
3. Two Courts have concurrent jurisdiction in a particular case. Can the jurisdiction of one of the Courts be ousted by the consent and agreement of the parties? [50 Words]
4. A Court has passed the decree in a suit in which it has no inherent jurisdiction. What is the effect of judgment? [50 Words]
5. If a Court exercises jurisdiction in a suit where it does not have inherent jurisdiction. Which constitutional writ can be issued against it? [20 Words]
6. Who will decide the preliminary issue of jurisdiction whether a particular Court has jurisdiction in a particular case? [20 Words]

XI. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Which is the Court competent to deal with question relating to execution, discharge and satisfaction of a decree? [200 Words, RJS-1977]
2. In which Court and at what place should any suit be instituted? [50 Words, RJS-1989]
3. What is a Pecuniary Jurisdiction of Munsif? [15 Words, RJS-1991]
4. What is the limit of Pecuniary Jurisdiction of the following in Rajasthan? [15 Words, RJS-1986]
 - a) Munsif
 - b) District Judge
5. What is meant by Jurisdiction of a Civil Court? [15 Words, RJS-1992]
6. What are the rules regarding the institution of suits in Civil Courts? How the territorial jurisdiction is defined? [200 Words, RJS-1994]
7. What do you understand by the Pecuniary Jurisdiction of a Court? Will a Court be competent to hear a suit exceeding its limits if the parties to the suit have given their consent? [200 Words, UP-1986]
8. If the Courts have no jurisdiction, consent of the parties or their inaction, cannot confer jurisdiction; nor by consent jurisdiction can be ousted. Elaborate. [150 Words, HJS-2003]
9. Explain the basic rules governing jurisdiction of Civil Courts. [300 Words, BJE-2000]

CHAPTER VIII

SUIT OF A CIVIL NATURE

Dear aspirant,

Section 9 of CPC states, "The Court shall (Subject to the provisions herein contained) have jurisdiction to try all suits of a civil nature excepting suits of which their cognizance is either expressly or impliedly barred". Every suit is cognizable unless it is barred. Where statutory enactments only create rights or liabilities without providing for remedies, any person having a grievance can approach the ordinary Civil Court on the principle of law that "where there is a right, there is a remedy". [i.e. *ubi jus ibi remedium*]

The words 'civil nature' are wider than 'civil proceedings'. A suit is a civil nature if the principle question therein relates to the determination of civil rights and enforcement thereof private rights and obligations of the parties are also included in the definition of a suit of civil nature. Political, Social and religious questions are not covered by that expression.

If the principal question in the suit is of a civil nature i.e. the right to property or to an office and adjudication incidentally involves the determination relating to a caste question or to religious rights and ceremonies, it does not cease to be a suit of civil nature.

The following suits are of a civil nature:

- i) suit relating to right to property;
- ii) suit relating to rights to worship;
- iii) suits relating to taking out of religious procession;
- iv) suits for specific relief;
- v) suit relating to rights of a *pardhanashin* lady to observe *pardha* etc.

The following suits are not of a civil nature:

- i) suits involving principally caste questions;
- ii) suits involving ~~purely~~ religious rites and ceremonies;
- iii) suits for recovery of voluntary payment and offerings;
- iv) a suit for upholding mere dignity or honour.

It is open to a competent legislature to bar jurisdiction of Civil Courts with respect to a particular class of suits of a civil nature.

This Chapter is one of the most important chapters of CPC. Papers of previous years' examinations shows that essay type questions can be asked in RJS, UPPCS (J), DJS, HJS, Bihar JE, Haryana JS, MPPCS(J) etc.

Mainly two types of Essay type questions can be asked from this Chapter:

- i) What is the jurisdiction of a Civil Court?
- ii) What is a suit of Civil Nature?

Short notes can be asked from this Chapter on following subjects:

- i) Suits expressly or impliedly barred -
- ii) Suits of Civil Nature
- iii) Problem based questions base on Court rulings.

This Chapter is most important for interview point of view also so extensive and exhaustive study of this Chapter is indispensable.

Wishing you all the best,

Yours Sincerely,

- RAHUL

CHAPTER VIII

SUIT OF A CIVIL NATURE

SYNOPSIS

- I. Court to try all Civil Suits unless Barred: Section 9**
- II. Comment**
- III. Suit of Civil Nature: Meaning**
- IV. Suit of Civil Nature: Illustrations**
- V. Suit not of Civil Nature: Illustrations**
- VI. Some important rulings of Courts**
 1. Right to an office
 2. Jurisdiction of Courts in Caste matters
 3. Suits relating to Caste Property
 4. Suits relating to dignity attached to an office
 5. Right of Burial
 6. Injury by exhibition of a film
 7. Suit by Hindu Wife for perpetual injunction restraining her husband from contracting second marriage
 8. Brij Jijmani Right
 9. Right to Worship
 10. Right to take out procession
 11. Suit in respect of Voluntary offerings
- VII. Suit Expressly or Impliedly Barred**
- VIII. Presumption as to jurisdiction**
- IX. Cases and References**
- X. Questions Based on Case Laws**
- XI. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS, etc.]**

CHAPTER VIII

SUIT OF A CIVIL NATURE

I. COURT TO TRY ALL CIVIL SUITS UNLESS BARRED: SECTION 9

Section 9 of the Code of Civil Procedure states, "The Courts shall (subject to the provisions herein contained) have jurisdiction to try all suits of a civil nature excepting suits of which their cognizance is either expressly or impliedly barred".

Explanation I – A suit in which the right to property or to an office is contested is a suit of a civil nature, notwithstanding that such right may depend entirely on the decision of questions as to religious rites or ceremonies.

Explanation II – For the purposes of this Section, it is immaterial whether or not any fees are attached to the office referred to in Explanation 1 or whether or not such office is attached to a particular place.

II. COMMENT

Section 9 of the Code confers jurisdiction on Civil Courts to try all suits of a civil nature, excepting suits of which their cognizance is either expressly or impliedly barred.

Explanation 1 to Section 9 clarifies that a suit in which the right to property or to an office is contested, is a suit of a civil nature, even if such a right may depend entirely on the decision of questions as to religious rites or ceremonies.

Explanation 2 to Section 9 further clarifies the position by providing that for the purpose of Section 9, it is immaterial whether or not any fees are attached to such office, and whether or not such office is attached to a particular place.

It is clear that a Civil Court has jurisdiction to try a suit if two conditions are fulfilled:

- i) The suit must be of a civil nature; and
- ii) The cognizance of such a suit should not have been expressly or impliedly barred.

III. SUIT OF CIVIL NATURE: MEANING

The word 'civil' has not been defined in the Code. But according to the dictionary meaning, it pertains to private rights and remedies of a citizen as distinguished from criminal, political, etc.

The word 'nature' has been defined as '*the fundamental qualities of a person or thing; identity or essential character; sort, kind, character*'. It is thus wider in content. The expression 'civil nature' is wider than the expression 'civil proceedings'. Thus, a suit is of a civil nature if the principal question therein relates to the determination of a civil right and enforcement thereof. It is not the status of the parties to the suit, but the subject matter of it which determines whether or not the suit is one of a civil nature.

The expression 'suit of a civil nature' will cover private rights and obligations of a citizen. Political and religious questions are not covered by that expression. A suit in which the principal question relates to caste or religion is not a suit of a civil nature. But if principal question in the suit is of a civil nature (the right to property or to an office) and the adjudication incidentally involves the determination relating to a caste question or to religious rights and ceremonies, it does not cease to be suit of a civil nature and the jurisdiction of a Civil Court is not barred. The Court has jurisdiction to adjudicate upon those questions also in order to decide the principal question which is of a civil nature.

A suit in which the right to property or to an office is contested is a suit of a civil nature, notwithstanding that such rights may depend entirely on the decisions of a question as to religious rites or ceremonies.

IV. SUIT OF CIVIL NATURE: ILLUSTRATIONS

The following are suits of a civil nature;

- i) Suits relating to right to property;

- ii) Suits relating to right of worship;
- iii) Suits relating to taking out of religious procession;
- iv) Suits relating to right to share in offerings;
- v) Suits for damages for civil wrongs;
- vi) Suits for specific performance of contract or for damages for breach of contract;
- vii) Suits for a specific relief;
- viii) Suits for restitution of conjugal rights;
- ix) Suits for dissolution of marriage;
- x) Suits of rent;
- xi) Suits for or on accounts;
- xii) Suits for a right of franchise;
- xiii) Suits for right to hereditary office;
- xiv) Suits for a right to Yajmanvriti;
- xv) Suits against wrongful dismissal from service and for salary, etc.

V. SUIT NOT OF CIVIL NATURE: ILLUSTRATIONS

The following are not suits of a civil nature:

- i) Suits involving principally caste question
- ii) Suits involving purely rites or ceremonies;
- iii) Suits for upholding mere dignity or honour;
- iv) Suits for recovery of voluntary payments or offerings;
- v) Suits against expulsion from caste, etc.

VI. SOME IMPORTANT RULINGS OF COURTS

1. Right to an office

The Supreme Court has laid down certain principles [In, *Sri Vanamallia Ramanuja Jeer v. Shri Ranga Ramanuja Jeer*, AIR 1961 SC 1720] to be applied while deciding the question as to whether a right to a religious office would be a right of a civil nature or not they are as follows:

1. A suit for a declaration with respect to religious honours and privileges simpliciter will not lie in a Civil Court.
2. Whereas a suit to establish one's right to an office in a temple; and to honours, privileges, remuneration or requisites attached to such an office, is maintainable in a Civil Court.
3. The essential condition for the existence of an office is that the holder of the alleged office should be under a legal obligation to discharge the duties attached to the said office for the non-observance of which penalties can be inflicted on him.

2. Jurisdiction of Courts in Caste matters

The term 'caste' is *not* confined to Hindus only. A caste means a combination of persons governed by a distinctive body of usages. A caste question may be defined to be a question, which relates to matters, which affect the internal autonomy of the caste and its social relations. If a caste passes a resolution, depriving one of its members of an invitation to a dinner, or to any ceremony, for an alleged breach of a caste rule, the excluded member has *no remedy at law*. All that he has lost is a *social privilege*, and *not a legal right*, and the caste is the only tribunal to which castemen deprived of that privilege may resort. A Civil Court has no power to compel the members of a caste to invite a casteman to dinner or to any ceremony, [*Raghunath v. Janardhan*, 15 Bom. 599].

A right to assistance in the removal of a dead body is also a right of a similar nature.

However, to wrongfully *expel a member from the caste* is to deprive him of his legal right, which forms a part of his status, and a suit *will* lie for restoration to the caste, or for damages.

Where the principal question, which if of a civil nature, cannot be determined without deciding a caste question relating to religious rites or ceremonies, the court *has* the power to decide the caste question or questions relating to religious rites or ceremonies – to enable it to decide the principal question [*Lalji v. Walji*, 19 Bom. 507].

3. Suits relating to Caste Property

When the question in issue is *not* a matter relating to internal administration and affairs of a caste, *but* to the *property* of the caste, the Civil Court *will* have jurisdiction to interfere.

4. Suits relating to dignity attached to an office

Suits for vindication of a mere dignity attached to an office are *not* suits of a civil nature. Thus, a claim by a *swami* (arch-priest) that he is entitled to be carried on the high road of a town or a village in a palanquin on ceremonial occasions *will not* be entertained by Civil Court. [*Sri Sunkar v. Sidha*, (1843)]

5. Right of Burial

The right to bury a corpse is a *civil right*. Therefore, an interference with the rights of a Mohammedan to recite prayers over a body before burial in front of a particular mosque is an invasion of a civil right, which can be enforced by a suit. [*Kooni Meera v. Mahomed*, (1907) 30 Mad. 15]

6. Injury by exhibition of a film

The Gujarat High Court has *held* that an apprehension that the exhibition of a film certified by the Board of Censors will hurt the religious feelings of the plaintiff does *not* give rise to a legal right. [*Ushaben v. Bhagylakshmi Chitra Mandir*, AIR 1978 Gujarat 13]

7. Suit by Hindu Wife for perpetual injunction restraining her husband from contracting second marriage

A suit brought by a Hindu wife for an injunction perpetually restraining her Hindu Husband from contracting a second marriage falls within Section 9, CPC, and is cognizable by a Civil Court. It is plain that the suit is of a civil nature. Its cognizance is not expressly or impliedly barred by any provisions in the Hindu Marriage Act. The suit is clearly permitted by Section 54 (new Section 38), Specific Relief Act. The plaintiff when she seeks the injunction is *not* seeking the prevention of the breach of an obligation created by Section 5(i), Hindu Marriage Act in her favour and, therefore, entitled to seek that injunction under Section 54 (new Section 38), Specific Relief Act. The expression 'obligation' occurring in the first paragraph of Section 54 (new Section 38), Specific Relief Act, has wide import and it is not necessary that it should be an obligation arising out of contract. [*Shakarappa v. Basamma*, AIR 1964 Mys. 247]

8. Brij Jijmani Right

Brij Jijmani right is a heritable property and is in some cases transferable. An action by a legal heir of a *Panda* for declaration of his right to inheritance and for an injunction restraining the defendants from interfering with the plaintiff's right and for recovery of possession of the pilgrim's *bahis*, is one of a civil nature and maintainable in the Civil Court. [*Mt. Sardar Kumar v. Gajanand*, 1942 AWR (HC) 185]

9. Right to Worship

A suit to establish the right to worship in a temple according to the worshiper's belief is a suit of a civil nature. [*Woman Bahwant Kashikar v. Balu Harshet Shete*, 44 Bom.

410]. A suit to establish a person's right to enter a religious place and a suit to restrain the defendant from entering a place of worship are both entertainable, being suits of a civil nature. It is a civil right of every citizen that he should be entitled to carry on his worship in any method he likes so long as he does not, by his performances, affect others injuriously. Where the plaintiffs claimed to be entitled to enter the temple bareheaded and worship, it was held that the Civil Court has jurisdiction to entertain it. [**Ratan Singh v. Bali Ram, AIR 1952 Punjab 163**]. A right to take part in public worship either in a temple or of a deity while it is being taken out in procession is a civil right, cognizable by a Civil Court. [**Managobinda Panda v. Paramahansa Paribrajakcharaja, AIR 1953 Orissa 151**].

10. Right to take out procession

The right to take out a procession through the public streets is a civil right, and a suit will lie to enforce such a right in a Civil Court. But the carrying of any emblem in a procession along the street is not the taking out of a religious procession and a suit to enforce a right to carry it is barred under Section 9, CPC [**Sanganbaswami Guru v. Baburao Ganesh Kulkarni, ILR (1946) Bom. 437**]. A claim to an exclusive right to hold the lighted torch inside the chariot during the festival in a temple does not amount to an office which could be enforced in a Court within the Explanation to Section 9, CPC, as there is no corresponding compellable duty. [**Kannagati Suryanarayanamurthi v. Piduga Rama Roy, AIR 1953 Mad. 710**].

11. Suit in respect of Voluntary offerings

A suit in respect of voluntary offerings, i.e., for recovery of emoluments received by the defendants for officiating as *purohits* at marriage and other ceremonies conducted by them in the Houses of Vysyas belonged to the plaintiff is not maintainable. [**In Re Venkatarao, 1954 AIR Mad. 346**]

VII. SUIT EXPRESSLY OR IMPLIEDLY BARRED

A litigant having a grievance of a civil nature has a right to institute a civil suit unless its cognizance is barred, either expressly or impliedly.

A suit is said to be "expressly barred" when it is barred by any enactment for the time being in force. It is open to a competent legislature to bar jurisdiction of Civil Courts with respect to a particular class of suits of a civil nature. Thus, the matters falling within the exclusive jurisdiction of Revenue Courts or under the code of Criminal Procedure or the matters dealt with by special tribunals under the relevant statutes (e.g. by Industrial Tribunal, Election Tribunal, Rent Tribunal, Income Tax Tribunal, Motor Accident Claims Tribunal, etc., or by domestic tribunals e.g. Bar Council, Medical Council, etc. are expressly barred from the cognizance of a Civil Court. But if the remedy provided by a statute is not adequate and all questions cannot be decided by a special tribunal, the jurisdiction of a Civil Court is not barred.

A suit is said to be "impliedly barred" when it is barred by general principles of law. Where a specific remedy is given by a statute, it thereby deprives the person who insists upon a remedy of any other form than that given by the statute (**Jitendra Nath v. Empire India and Ceylone Tea Co. AIR 1990 SC 255**). Similarly, certain suits though of a civil nature are barred on the ground of 'public policy'. Thus, suits by a witness to recover money agreed to be paid to him in consideration of his given evidence, suits on agreements void on grounds of public policy, suits for damages against a judicial officer for acts done in the course of his duties, etc.

In **Laxmi Chand v. Gram Panchayat, Kararia (AIR 1996 SC 233)**, it was held that the scheme of the land Acquisition Act is complete in itself and thereby the jurisdiction of the Civil Court to take cognizance of the cases arising under the said Act, by necessary implication, stood barred.

VIII. PRESUMPTION AS TO JURISDICTION

In dealing with the question whether a Civil Court's jurisdiction to entertain a suit is barred or not, it is necessary to bear in mind that every presumption should be made in favour of the

jurisdiction of a Civil Court. The exclusion of jurisdiction of a Civil Court to entertain civil causes should not be readily inferred unless the relevant statute contains an express provision to that effect, or leads to a necessary and inevitable implication of that nature (**Gurbax Singh v. Financial Commr. AIR 1991 SC 435**). A statute ousting the jurisdiction of a Civil Court should be strictly construed. In case of doubt as to the jurisdiction, the Court should lean towards assumption of jurisdiction (**Kamala Mills v. State of Bombay, AIR 1965 SC 1942**).

IX. CASES AND REFERENCES

1. **Shiv Kumar Chadha v. Municipal Corporation of Delhi [(1993) 3 SCC 161]** – Where a statutory enactment only creates rights and liabilities, but does not provides remedial forum, the doors of the Civil Court are always open.
2. But where a complete machinery for redressed is envisaged, Civil Court's jurisdiction is impliedly barred. [**Mafatlal Industries Ltd. v. Union of India (1997) 5 SC 536**]
3. **Raja Ram v. Union of India (AIR 1988 SC 752)** – Ouster of Civil Court's jurisdiction would depend on whether the right was pre-existing in common law or not.
4. **Guda Vijay Lakshmi v. Ramchandra (AIR 1990 SC 255)** – Ouster must be in clear and specific terms.
5. **Section 9 and remedy under Article 226, By way of writ** – Both the jurisdictions are different and are governed by different principles. Article 226 provides a constitutional remedy. It confers the power of judicial review on High Courts. The finality clause in a statute is not a bar to the exercise of this constitutional power whereas the jurisdiction of a Civil Court arises from different statutes such as Section 9 of CPC.

N.T. Abraham v. State of Kerala (AIR 2000 SC 3459) – Where the dispute is whether excess payment has been made by one party to another, the dispute is of civil nature, has to be agitated in the proper forum, cannot be decided in a writ petition.

X. QUESTIONS BASED ON CASE LAWS

1. Whether a suit relating to right to worship is of a civil nature? [20 Words]
2. A plaintiff filed a suit for a declaration that the summons issued by a criminal Court, was illegal and void and consequently the imposition of fine in two of Courts, was without authority of law. Has the Civil Court jurisdiction to grant such a relief? [20 Words]
3. Whether the right to remain in the community or to exercise the right and privileges of the members of the community is of a civil nature? [20 Words]
4. A filed a suit in a Civil Court for declaration and injunction in respect of a right to be carried in a palanquin on certain days through public street. Whether it is a suit of civil nature? [20 Words]
5. Is a claim to officiate as the priest of the deity in a particular temple on the occasion of certain festivals for which the remuneration is payable by the temple an office of civil nature? [20 Words]
6. Whether a suit in respect of voluntary offerings, i.e. for recovery of emoluments received by the defendants for officiating as *purohitis* at marriage and other ceremonies conducted by them in the houses of Vysyas belonged to the plaintiff is of civil nature. [20 Words]

XI. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. What matters can be adjudicated upon by Civil Court? [200 Words, RJS-1974]
2. Short Notes: A Suit of a Civil Nature [200 Words, RJS-1979, BJE-1978]
3. What is a Suit of Civil Nature? [20 Words, RJS-1992]
4. Whether the following can form the subject matter of a Civil Nature: [150 Words, HJS-2003]
 - a) A question of exclusion of a member of a caste from caste ceremonies.
 - b) Right to religious honour unconnected with any office.

- c) Suit by a Hindu Wife for perpetual injunction restraining her husband from contracting second marriage.
5. Explain the expression 'Suit of a Civil Nature'. [200 Words, UPPCS (J)-1986]
6. Discuss "Suit of Civil Nature". [300 Words, UPPCS (J)-1988]
7. How will you decide that a Suit is of a Civil Nature? Are the following suits of Civil Nature: [300 Words, UP-2000]
- a) Right to take out religious procession
 - b) Right of a *Purdanashee* lady to observe *Purda*
 - c) Right to franchise
8. Explain a *Suit of Civil Nature*. [300 Words, BJE-2000]
9. What do you understand by a "Suit of a Civil Nature"? [300 Words, BJE-1991]
10. "Essentials of a Suit". Write short notes. [150 Words, HJS-2003]

Ranvirs IAS

CHAPTER IX

RES SUB JUDICE

Dear aspirant,

Section 10 states, "no Court shall proceed with the trial of any suit in which the matter in issue is also directly and substantially in issue in a previously instituted suit between the same parties (or between parties under whom they or any of them claim litigating under the same title) where such suit is pending in the same or any other Court in India having jurisdiction to grant relief claimed, or in any Court beyond the limits of India established or continued by the Central Government and having like jurisdiction, or before the supreme Court."

Explanation to Section 10 provides that there is no bar on the power of the Indian Court to try a subsequently instituted suit if the previously instituted suit is pending in a foreign Court.

Section 10 applies only to suits and not to applications and complaints. The term 'suit' in this section includes an appeal also. The object of Section 10 is to avoid the frivolous litigation and thus save the judicial system from the wastage of time and money of the state and of the litigants.

The doctrine of *res sub judice* does not bar the institution of a suit, but only bars the trial. The subsequent suit cannot be dismissed by the Court, but is required to be stayed or postponed.

The facts that the subject matter of the previous suit is overlapping with the subsequent suit will not attract the section.

Thus where the earlier suit was for the recovery of rent for a certain period and the subsequent suit is for recovery of the rent for subsequent years and for ejectment, the matter in issue in the two suits would not be deemed to be the same and Section 10 would not apply.

The order staying proceedings in the subsequent suit can be made at any suit. The order under Section 10 is not appealable but a petition for revision can be filed against an order passed for staying the proceedings.

The provisions of Section 10 is mandatory. A decree passed in contravention of Section 10 is not a nullity and therefore, cannot be disregarded in execution proceedings.

Res sub judice is a rule of procedure, pure and simple, which can be waived by a party. Hence, if the parties waive their right and expressly ask the Court to proceed with the subsequent suit, they cannot afterwards challenge the validity of the proceedings.

The Doctrine of *res sub judice* is important for UPPCS (J) and RJS. Difference between *Res sub judice* and *res judicata* is also important. Problem based questions can also be asked from this Chapter.

Wishing you all the best,

Yours Sincerely,

RAHUL

CHAPTER IX
RES SUB JUDICE
SYNOPSIS

- I. Stay of Suits: Section 10
- II. Comment
- III. Conditions
- IV. Illustrations
- V. Difference between *Res Subjudice* and *Res Judicata*
- VI. Appeal and Revision
- VII. Other Provisions of the Code Regarding Stay of Suits
- VIII. Latest Cases
- IX. Questions Based on Case Laws
- X. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER IX

RES SUB JUDICE

I. STAY OF SUITS: SECTION 10

No Court shall proceed with the trial of any suit in which the matter in issue is also directly and substantially in issue in a previously instituted suit between the same parties, or between parties under whom they or any of them claim litigating under the same title where such suit is pending in the same or any other Court in India having jurisdiction to grant the relief claimed, or in any Court beyond the limits of India established or continued by the Central Government and having like jurisdiction, or before the Supreme Court.

Explanation to Section 10 makes it clear that "the pendency of a suit in a foreign Court does not preclude the Courts from trying a suit founded on the same cause of action".

II. COMMENT

Under Section 10 of the Code, a Court *cannot* proceed with the trial of any suit in which the matter in issue is also *directly and substantially in issue in a previously instituted suit* –

- i) between the same parties, or
- ii) between parties under whom they (or any of them) claim, litigating under the same title, – where such a suit is pending in the same or any other Court in India, having jurisdiction to grant the relief claimed or in any Court outside India having such jurisdiction, or before the Supreme Court of India.

However, the pendency of a suit in a *foreign court* does *not* preclude the courts in India from trying a suit founded on the same cause of action.

The *object* of the rule contained in Section 10 is to prevent courts of concurrent jurisdiction from simultaneously entertaining and adjudicating upon parallel litigation in respect of the same cause of action, the same subject-matter and the same relief. The policy of the law is to confine the plaintiff to one litigation. This obviates multiplicity of suits, as also the possibility of contradictory verdicts by two or more courts in respect of the same relief.

III. CONDITIONS

For the application of this section, the following conditions must be satisfied:

- a) There must be two suits, one previously instituted and the other subsequently instituted.
- b) The matter in issue in the subsequent suit must be directly and substantially in issue in the previous suit.
- c) Both the suits must be between the same parties or their representatives.
- d) The previously instituted suit must be pending in the same Court in which the subsequent suit is brought or in any other Court in India or in any Court beyond the limits of India established or continued by the Central Government or before the Supreme Court.
- e) The Court in which the previous suit is instituted must have jurisdiction to grant the relief claimed in the subsequent suit.
- f) Such parties must be litigating under the same title in both the suits.

As soon as the above conditions are satisfied, the Court cannot proceed with the subsequently instituted suit since the provisions contained in Section 10 are mandatory, and no discretion is left with the Court. The order staying proceedings in the subsequent suit can be made at any stage.

IV. ILLUSTRATIONS

B is a merchant residing in New Delhi, and he has an agent A, at Mumbai, to sell his goods in Mumbai. A sues B in Mumbai, claiming a balance due upon an account in respect of dealings between A and B. While this suit is pending in Mumbai, B files a suit against A in New Delhi for an account and for damages caused by A's alleged negligence. In this case,

the matter in issue in B's suit is *directly and substantially in issue* in A's suit; further, both the suits are between the same parties. In these circumstances, the Court in New Delhi must *not* proceed with trial of B's suit, and only the suit in the Mumbai Court, being the one instituted prior in point of time, must be proceeded with. [**Padmasee v. Lakhasee, (1916) 43 Cal. 144**]

As seen above, the two suits should be between the *same parties*. Thus, the mere fact that the first suit is between Z and J as plaintiffs and W, X and Y as defendants, and the second suit is between W as a plaintiff and Z, J and S (not a party to the first suit) as defendants, will *not* take the case out of the scope of Section 10, if the other conditions of the section are satisfied. It is enough that there is a sufficient identity of parties. [**S.K. Rungta & Co. v. Kishore Debi Prasad, AIR 1964 Cal. 373**]

The section only bars the *trial*, and *not* the *institution* of the suit. When the conditions of Section 10 are satisfied, the later suit must be stayed. A court *cannot* dismiss a suit under this section; it can *only postpone the trial*.

When the subject-matter of the two suits *cannot* be said to be identical, one being a *suit for mesne profits* and the other a *suit for title*, Section 10 of the Civil Procedure Code *cannot* be called in aid, so as to claim an unconditional grant of stay. Where it is pre-eminently a case for stay under Section 151 of the Code, the Court is entitled to impose a condition for granting the stay. [**Narendra Nath Nanda v. Wallamji Lalji, (1971) 75 CWN 1010**]

It may also be noted that Section 10 does not empower one court to stay the proceedings of *another* court. Thus, a District Court exercising insolvency jurisdiction *cannot*, under this section, stay a suit pending against the insolvent in a subordinate Court. [**The Official Receiver v. Palaniswami, AIR 1925 Mad. 1051**]

Moreover, Section 10 enacts merely a *rule of procedure*, and a decree passed in contravention of the section is *not* a *nullity*, and *cannot* be disregarded in execution proceedings. [**Sheopat Rai v. Warak Chand, 1919, Lah**]

Sometimes, the contract between the parties provides that all suits under that contract are to be instituted in a specified court only. Such a stipulation is *valid* in law. However, the interesting question that arises in such cases is as follows: Suppose in such a contract between A and B, Mumbai is the agreed venue of filing suits. However, A files a suit on the contract in Jaipur (where the court also has jurisdiction) and subsequently, files a suit in Mumbai. Is the subsequent suit in Mumbai liable to be stayed under Section 10 of the Code? There was a conflict of judicial opinion which was set at rest by the Supreme Court in **Manoharlal v. Sheth Hiralal (AIR 1962 SC 527)**, where it was *held* that the language of Section 10 is clear, definite and mandatory, and prohibits the trial of a subsequent suit, and that it makes no difference that the earlier suit was filed in violation of the agreement between the parties.

V. DIFFERENCE BETWEEN RES SUB JUDICE AND RES JUDICATA

The doctrine of *res judicata* differs from *res sub judice* in that –

Firstly, the former relates to a matter already adjudicated upon (*res judicatum*) while the latter relates to a matter pending judicial enquiry or trial (*sub judice*); and

Secondly, whereas Section 11 bars the trial of a suit or an issue in which the matter directly and substantially in issue has already been adjudicated upon in a previous suit, Section 10 bars the trial of a suit in which the matter directly and substantially in issue is pending adjudication in a previously instituted suit.

VI. APPEAL AND REVISION

An appeal cannot be filed, if a suit is stayed under Section 10 CPC. The order passed under Section 10 is relating to jurisdiction of a Court so a petition for revision can be entertained. [**Vide: P. C. Jairath v. Smt. Amrit Jairath AIR 1967 P&H**]

VII. OTHER PROVISIONS OF THE CODE REGARDING STAY OF SUITS

The following are *other provisions* in the Code relating to stay of suits:

1. In the case of a suit by a firm in the firm's name, the defendant may demand disclosure of

the names and places of residence of the partners. If the plaintiff firm fails to comply with such demand, the court may, upon an application for that purpose, stay all proceedings in the suit: Order 30, Rule 2.

2. Where the plaintiff is a minor, then on the retirement, removal or death of his next friend, further proceedings are to be stayed until the appointment of the next friend in his place: Order 32, Rule 10.
3. Where any of the defendants in an interpleader suit is actually suing the plaintiff in respect of the subject-matter of such suit, the court in which the suit against the plaintiff is pending, must, on being informed by the Court in which the interpleader suit has been instituted, stay the proceedings as against him: Order 35, Rule 3.
4. The Court has inherent power to stay –
 - i) a suit which is an abuse of its process;
 - ii) cross-suits, on the ground of convenience;
 - iii) any suit, even if it does not come under Section 10 above.
5. A High Court has the power to stay a suit pending in a subordinate Court: Section 151.

VIII. LATEST CASES

1. **Desh Bhushan Das v. K.C. Mahajan (1997 AIHC 2530, 2534 All)** – In order to apply Section 10, the court in which the previous suit is pending, should have Jurisdiction to grant the relief sought in the subsequent suit.
2. **Ishwari Devi v. Sham Sunder (1999 AIHC 1098 P & H)** – The court is empowered to stay later suit and not previous suit.
3. **ECE Ltd. v. Action Construction Equipment Pvt. Ltd. (AIR 1999 Del. 73)** – There is nothing in Section 10 to show that if an issue of Jurisdiction has been raised in previously instituted suit, the defendant cannot invoke provision of section 10 in subsequent suits unless he withdraws or waives that objection.
4. **Indian Bank v. M. S Co-operative Marketing Federation Ltd. (AIR 1998 SC 190)** – In view of the object and nature of the provision the word "trial" in section 10 is not used in its widest sense.

IX. QUESTIONS BASED ON CASE LAWS

1. A and B are partners of a firm. They agreed to file all suits in Sri Ganga Nagar Distt. only. Such an agreement is valid in law. The cause of action arises in Delhi so A files a suit in Delhi against B. Pending the suit in Delhi, B files a suit in Sri Ganga Nagar Distt. Court against A in accordance with contract between A and B.
Is the subsequent suit in Sri Ganga Nagar Distt. liable to be stayed under Section 10 of CPC. [100 Words]
2. A C.J. (Union division) passed a decree in contravention of Section 10. What is the effect of it? [20 Words]
3. Can the parties to the suit waive the plea of *res sub judice*? [20 Words]
4. A suit was pending in a Court. The plaintiff filed a second suit in the same Court on the same cause of action against the same defendant. The Court stayed the previous suit under Section 10 of CPC. Do you justify the order of the Court? Give reasons. [50 Words]
5. Can an appeal be filed against the order of stay under Section 10 CPC? [20 Words]

X. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Distinguish, with illustrations, between *res sub-judice* and *res-judicata*.
A sues B for a declaration of title to land and obtains a decree. A then sues C for possession. C's contention is that B is the real owner and C is in possession as a tenant of B. Discuss the validity or otherwise of the defence. [500 Words, RJS-1971]
2. Does the Code of Civil Procedure make any provision for preventing Courts of concurrent jurisdiction from trying at the same time two parallel suits in respect of the same matter in issue? If so, what? Discuss. [200 Words, UP-1986]

CHAPTER X

RES JUDICATA

[SECTION 11]

Dear aspirant,

Section 11 of the Code of Civil Procedure embodies the doctrine of *res judicata* or the rule of conclusiveness of a judgement. The doctrine of *res judicata* is based not *three maxims*:

- a) No man should be vexed twice for the same cause;
- b) It is in the interest of the State that there should be an end to a litigation;
- c) A judicial decision must be accepted as correct.

Res judicata is a rule of universal law pervading every well-regulated system of jurisprudence and is put upon two grounds, embodied in various *maxims* of the common law; the one, public policy and necessity, which makes it to the interest of the State that there should be an end to litigation; the other, the hardship to the individual that he should not be vexed twice for the same cause;

The doctrine operates as a "bar to the trial of a subsequent suit on the same cause of action between the same parties". The Principle of *res judicata* is founded on the Ancient Indian Principle of *Prangnyaya* (Previous Judgment). The Principle is based in *Brihaspati Samiti*: "If a person who has been defeated in a suit according to law files the plaint once again he must be told that he has been defeated already; this plea is called of *prany-nyaya*."

The rule of *res judicata* as indicated in Section 11 of the Code has no doubt some technical aspects, for instance, the rule of constructive *res judicata* may be said to be technical; but the basis on which the said rule rests is founded on consideration of Public Policy. [Vide: *Daryao v. State of UP, AIR 1961 SC*]

Rule of *res judicata* would apply to all judicial proceedings whether civil or otherwise. It equally applies to all quasi-judicial proceedings of the tribunals. It has always been accepted as a plea of defence. The onus to prove that particular issue raised in a subsequent suit is *res judicata* is always upon the defendant who takes the plea.

The following conditions must be satisfied to constitute a bar of *res judicata* viz:

- i) The matter must be directly and substantially in issue in two suits.
- ii) The prior suit must have been between the same parties or persons claiming under them.
- iii) Such parties must have litigated under the same title in the former suit.
- iv) The Court which determined the earlier suit must be competent to try the later suit (subject to the provisions contained in Explanation VIII).
- v) The question directly and substantially in issue in the subsequent suit should have been heard and finally decided in the earlier suit.

It is "*matter in issue*" and not the "*subject matter*" of the suit that forms the essential test of *res judicata*. The rule of *res judicata* requiring the identity of the matter in issue will apply even when the subject matter, the object, the relief and the cause of action are different.

Section 11 provides that no Court shall try any suit or issue. Issue may be of fact or law or both. The question of *res judicata* is a mixed question of law and fact. Section 11 does not deal with the question of jurisdiction, because it does not

affect the cognizability of suits, but only bars their trial. The rule of *res judicata* will not apply if the same person institutes the second suit in a different capacity.

Constructive *res judicata* is a special and artificial form of *res judicata*. It is contained in Explanation IV to Section 11. It states, "any matter which might and ought to have been made ground of defence or attack in a former suit shall be deemed to have been a matter directly and substantially in issue in such suit".

Where a plaintiff is precluded by rules from instituting a further suit in respect of any particular cause of action, he shall not be entitled to institute a suit in respect of such cause of action in any Court to which this code applies. [Vide: Section 12]

This is one of the important Chapters of CPC. In RJS, MPPCS (J), UPPCS (J) simple type of questions such as **what is a Constructive *res judicata***, are asked. In HJS, Haryana JS, Bihar JS, DJS problem based questions are asked. Following topics are most important:

- i) The requisite condition of *res judicata*
- ii) *Res judicata* in Execution proceedings
- iii) Deference between *res judicata* and *estoppel*
- iv) Constructive *Res judicata*
- v) *Res judicata* between co-defendants
- vi) Distinction between *res judicata* and *res-sub judice*
- vii) Problem based questions

Wishing you all the best,

Yours Sincerely,

RAHUL

CHAPTER X
RES JUDICATA
[SECTION 11]

SYNOPSIS

- I. **Res Judicata: Section 11**
- II. **Comment**
- III. **Principal and Scope of Section 11**
- IV. **Section 10 distinguished from Section 11**
- V. **Five Conditions of Res Judicata**
 1. Condition I (Matter directly and substantially in issue)
 2. Condition II (Same Parties)
 3. Condition III (Litigation Under the Same title)
 4. Condition IV (Competent Court)
 5. Condition V (Heard and finally decided)
 - a) Matter finally decided
 - b) Illustration
 - c) Consent decree and ex-parte decree
- VI. **Constructive Res judicata (Explanation IV)**
- VII. **Execution Proceedings**
- VIII. **Res judicata between Co-defendants**
- IX. **Res judicata Between Co-Plaintiffs**
- X. **Relief claimed, but not expressly granted [Explanation V]**
- XI. **Probate Proceedings**
- XII. **Execution Proceedings [Explanation VII]**
- XIII. **Summary Proceedings**
- XIV. **Section 11 Not Exhaustive**
- XV. **Waiver of the Plea**
- XVI. **Bar to Further Suit: Section 12**
- XVII. **Provisions of the Code which Bar Further Suit**
- XVIII. **Res judicata and Estoppels Distinguished**
- XIX. **Latest Cases**
- XX. **Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]**

CHAPTER X
RES JUDICATA
[SECTION 11]

I. RES JUDICATA: SECTION 11

No court shall try any suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties, or between parties under whom they or any of them claim, litigating under the same title, in a Court competent to try such subsequent suit or the suit in which such issue has been subsequently raised, and has been heard and finally decided by such Court.

II. COMMENT

Section 11 of the Code, which embodies the *important doctrine of res judicata*, provides that no court shall try any suit or issue, in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties (or between parties whom they or any of them claim, litigating under the same title) in a competent court, and has been heard and finally decided by such a court.

Section 11 contains eight clarifactory *Explanations*, which are as follows:

Explanation I – The expression “former suit” denotes a suit which has been decided prior to the suit in question, *whether or not it was instituted* prior thereto.

Explanation II – For the purpose of this section, the competence of a court is to be determined irrespective of any provisions as to a right of appeal from the decision of such a court.

Explanation III – The matter above referred to must, in the former suit, have been alleged by one party, and either denied or admitted, expressly or impliedly, by the other.

Explanation IV – Any matter which *might* and ought to have been made a ground of defence or attack in such former suit is to be deemed to have been a matter directly and substantially in issue in such suit.

Explanation V – Any relief claimed in the plaint, which is *not expressly granted by the decree*, is, for the purposes of this section, to be deemed to have been refused.

Explanation VI – Where persons litigate *bona fide* in respect of a public right or of a private right claimed in common for themselves and others, all persons interested in such right are, for the purposes of this section, to be deemed to claim under the persons so litigating.

Explanation VII – The provisions of this section also apply to a proceeding of the execution of a decree, and references in this section to any suit, issue or former suit are to be construed as references, respectively, to a proceeding for the execution of the decree, questions arising in such proceedings and a former proceeding for the execution of that decree.

Explanation VIII – An issue which has been heard and finally decided by a court of limited jurisdiction, competent to decide such issue, operates as *res judicata* in a subsequent suit, notwithstanding that such court of limited jurisdiction was *not* competent to try such subsequent suit or the suit in which such issue has been subsequently raised.

III. PRINCIPAL AND SCOPE OF SECTION 11

Principle and scope of Section 11 – Section 11 embodies the doctrine of *res judicata*, which rests on the principal that *one should not be vexed twice for the same cause*, and that *there should be finality of litigation*. (*Res* mean a “thing” and *judicata* implies “decided” or “adjudicated”). Stated in a simple form, where there has been an executable judgment between the parties, the rule of *res judicata* will prevent a fresh suit between them for the same relief.

The rule is intended *not* only to prevent a new decision, *but* also to prevent a new investigation, so that the same person *cannot* be harassed again and again in various proceedings upon the same question. *Nemo debet bis vexari pro una et eadem causa*: no man should be vexed twice over for the same cause. The section does not deal with the question of jurisdiction, because it does not affect the *cognisability* of suits, but only bars their trial.

As stated above, rule of *res judicata* is broad-based on two grounds, viz. – (i) the hardship to an individual, who could otherwise be vexed twice for the same cause, and (ii) *public policy*, which requires that there should be an end to litigation.

IV. SECTION 10 DISTINGUISHED FROM SECTION 11

Section 10 relates to *res sub judice*, i.e. a matter which is pending judicial inquiry; while Section 11 relates to *res judicata*, i.e. a matter already adjudicated upon – a matter in which judgment is already pronounced. Section 10 bars the trial of a suit in which the matter directly and substantially in issue is *pending adjudication* in a previous suit, whereas Section 11 bars the trial of a suit or an issue in which the matter directly and subsequently in issue *has already been adjudicated upon* in a previous suit.

Suit – A suit, *vide* Section 26, is a proceeding which is commenced by a plaintiff. But, the section is *not exhaustive*, and the doctrine of *res judicata* has been extended to adjudications in proceedings other than suits also.

Former Suit – The expression “former suit” means a previously decided suit. It does *not* matter that it was *instituted* subsequently. (See *Explanation 1* above).

V. FIVE CONDITIONS OF RES JUDICATA

Conditions of *res judicata* – It is to be noted that it is *not every matter* decided in a former suit that can be pleaded as *res judicata* in a subsequent suit. Under Section 11, to constitute a matter *res judicata*, the following *five conditions* must be present:

Condition I – The matter *directly and substantially in issue* in the subsequent suit must be the *same matter* which was *directly and substantially in issue*, either *actually or constructively*, the former suit. (See *Explanation IV* also.)

Condition II – The former suit must have been a suit between the *same parties* or between parties under whom they (or any of them) claim. (*Explanation VI* is also to be borne in mind when considering this condition.)

Condition III – In the former suit, the parties must have litigated under the *same title*.

Condition IV – The court which decided the former suit must have been a court which is *competent* to try this subsequent suit. (*Explanation II* is also relevant in this connection.)

Condition V – The matter which is *directly and substantially in issue* in the subsequent suit must have been *heard and finally decided* by the court in the former suit. (*Explanation V* is also to be read with this condition.)

All these five conditions are discussed below in detail.

1. Condition I (Matter directly and substantially in issue)

To constitute a matter *res judicata*, it is essential that it must have been *directly and substantially in issue*, as distinguished from *collaterally or incidentally in issue*, in the former suit. A matter *cannot* be said to have been *directly and substantially in issue* in a suit, *unless* it was alleged by one party and denied or admitted, either expressly or by necessary implication, by the other.

Every suit involves matters in respect of which relief is claimed by the plaintiff. Such matters are necessarily matters which are “*directly and substantially in issue*”. However, the suit may also involve matters in respect of which relief is not claimed, but which are brought in issue for the purpose of deciding matters for which relief is claimed. The latter class of matters would be *collaterally or incidentally in issue*.

Illustrations

- i) A sues B for the rent of certain lands for the year 2001. B's defence is that no rent is due. Here, the claim for rent is a matter in respect of which relief is claimed. It is, therefore, a matter which is directly and substantially in issue.
- ii) A sues B (i) for a declaration of title to certain lands, and (ii) for the rent of those lands for the year 2001. B denies A's title to the lands and contends that no rent is due. In this case, there are two matters in respect of which relief is claimed, viz. the title to the lands and the claim for rent. Both these matters are, therefore, directly and substantially in issue.
- iii) A sues B for rent. B pleads that lesser rent is payable, because the actual area of the land is lesser than what is mentioned in the lease-deed. The court, however, finds that the actual area is greater than the one shown in the lease. This finding as to excess area is *not res judicata*, because this issue was only *collaterally or incidentally* in issue.

2. Condition II (Same Parties)

Judgments and decrees bind only the parties and privies, that is, those who claim under a party. If the parties are different, there is no *res judicata*. Thus, A sues B for rent. The defence is that C and not A, is the landlord. A fails to prove his title and the suit is dismissed. A then sues B and C for a declaration of his title to the property. The suit is *not barred*, for the parties to the two suits are not the same, C not having been a party to the former suit.

3. Condition III (Litigation Under the Same title)

The third condition of *res judicata* is that the parties in the subsequent suit must have litigated under the same title as in the former suit. *Same title* means *same capacity*. For instance, if a suit by an heir of a deceased *mahant* to recover possession of *math* property from a stranger is dismissed, a subsequent suit by the same plaintiff as manager of the same property is not *barred*, the plaintiff's capacity in the two suits being different.

4. Condition IV (Competent Court)

A decision, to operate as *res judicata*, must be the decision of a competent court. Therefore, a judgment delivered by a court *not* competent to deliver it, *cannot* operate as *res judicata*. So also, a judgment obtained by fraud or collusion does *not* operate as *res judicata*.

In order that a decision in a former suit may operate as *res judicata*, the Court which decided that suit must have been –

- a) a Court of exclusive jurisdiction; or
- b) a Court of concurrent jurisdiction, competent to try the subsequent suit.

Judgment of Court without Jurisdiction– The Supreme Court has *held* that a ruling given by a court beyond its jurisdiction does *not* operate as *res judicata*. [*State of Jammu & Kashmir v. Sanahullah Mir*, (1980) 3 SCC 273]

5. Condition V (Heard and finally decided)

A matter can be said to have been "*heard and finally decided*", in spite of the fact that the former suit was disposed of (a) *ex parte*, or (b) by dismissal for failure of a party to produce his evidence or to perform certain acts under O. 17, r. 3 or (c) by a decree on an award, or (d) by oath tendered under the Indian Oaths Act, 1873.

In order that a matter may be said to have been "*heard and finally decided*", it is further necessary that the decision in the former suit must have been one on the merits. Hence, the matter *cannot* be said to have been "*heard and finally decided*" if the former suit was dismissed:

- i) for want of jurisdiction;
- ii) for failure to furnish security for costs;
- iii) for default on account of plaintiff's appearance; or

- iv) for failure on the part of the plaintiff to produce probate or letters of administration to entitle him to a decree.

a) Matter finally decided

Where the final decision in any matter at issue between the parties is passed by a Court on its decision on more than one point, each of which, by itself, would be sufficient for the ultimate decision, the decision on each of these points operates as *res judicata* between the parties. [*Vithal Yaswant v. Sikandar Khan*, AIR 1963 SC 385]

b) Illustration

The plaintiffs first filed a suit to recover possession of land belonging to them from the defendants who were annual tenants, but the court declined to pass a decree for possession, on the ground that proper notice to quit had not been given and ordered the defendants to pay damages for the use and occupation of the land for three years prior to the suit. The plaintiffs sued again to recover possession of the lands with mesne profits from the defendants, who contended that the plaintiffs were barred by the decree in the first suit from contending that they were entitled to possession of land. The court held that the question of the plaintiff's ownership of the lands and the defendants tenure as ordinary tenants had been heard and finally decided in the first suit, and that the second suit was therefore barred as *res judicata*. [*Bai Sada v. Gangaram*, (1932) 34 BLR 236]

c) Consent decree and ex-parte decree

The binding character of *ex-parte* decree and consent decree rests on equitable estoppel, rather than on principles of *res judicata*.

In some respects, an *ex-parte* decree is different from a consent decree, but in other respects, both are alike. A court passing a consent decree has also to consider whether it is *prima facie* legal. Deliberate non-appearance of the defendant may imply consent or admission so as to obviate the need to frame issues or to decide as in contested cases. Therefore, the binding character of both the types of decrees rests more appropriately on an equitable estoppel, rather than on principles of *res judicata*. [*Trilok Misir v. Deputy Director of Consolidation*, U.P. 1969, All. W.R. 857]

VI. CONSTRUCTIVE RES JUDICATA (EXPLANATION IV)

Explanation IV draws no distinction between a claim that was *actually* made in a suit and a claim which *might and ought* to have been made. If the parties had an opportunity to controverting it, it is the same thing as if the matter had been actually controverted and decided.

Thus, X, a Hindu, was leaving a widow. The widow makes a gift to her brother, B, of certain property belonging to her husband. After the death of the widow, A, alleging that he and X were members of a joint family, sues B for a declaration that he is entitled to the property by right of survivorship. The court finds that A and X were separate, and A's suit is dismissed. Subsequently, A sues B for the recovery of the same property, alleging that as the nearest reversionary heir of X, he became entitled to the property on the death of the widow, and that the alienation made by her in favour of B was not binding upon him. The suit is barred as *res judicata*. A *might and ought* to have set up the title by heirship as a ground of attack in the former suit. The matter will, therefore, be deemed to have been "directly and substantially in issue" in that suit, and it will also be deemed to have been "heard and finally decided" against A. [*Gundappa v. Tilappa*, (1901) 245 Bombay 189]

Thus, the rule of *res judicata* is *not* limited to matters actually alleged by one party and either denied or admitted, expressly or impliedly by the other. It goes further and bars the trial of a subsequent suit on the ground that the matters directly and substantially in issue therein *might and ought* to have been made a ground of attack or defence in a former suit which has been decided between the same parties. This is what is meant by *constructive res judicata* (Explanation IV to Section 11).

VII. EXECUTION PROCEEDINGS

Execution proceedings – While it is true that the doctrine of constructive *res judicata* is applicable to execution proceedings (See *Explanation VII*) the court should be cautious in such application.

Issue of law – The section provides that no court shall try any suit or issue. Now, issues may be of fact or law or both. Hence, an issue of law can also be *res judicata*.

VIII. RES JUDICATA BETWEEN CO-DEFENDANTS

As a matter may be *res judicata* between a plaintiff and a defendant; so also, it may be *res judicata* between co-defendants. Three conditions are to be satisfied in order to apply the rule of *res judicata* as between co-defendants: (1) there must be a conflict of interest between the defendants concerned; (2) it must be necessary to decide this conflict in order to give the plaintiff the relief he claims; (3) the question between the defendants must have been finally decided; and (4) The co-defendants were necessary parties in the former suit. **[Munni Bibi v. Trilaki Nath, AIR 1931 PC]**

The test of *res judicata* as among the co-defendants is whether it was necessary, for the purpose of supporting the actual decision in the prior suit, for the court to decide (directly or by implication) any conflicting issue between the co-defendants. If a plaintiff cannot get his relief without trying and deciding a case between co-defendants, the court will try and decide the co-defendants, will be bound. But if the relief given to the plaintiff does not require or involve a decision of any case between co-defendants, the co-defendants will not be bound, as between each other by any proceedings which may be necessary only to the decree which the plaintiff obtains. **[Cottingham v. Earl of Shrewsbury, (1943) 2 Hare, 627, 638]**

IX. RES JUDICATA BETWEEN CO-PLAINTIFFS

Just as a matter may be *res judicata* between co-defendants, so also, it may be *res judicata* between co-plaintiffs in a subsequent suit in which either of them is the plaintiff and the other defendant, if that matter was directly or substantially in issue between them in the first suit and the adjudication upon the matter was necessary for the determination of that suit. **[Rukhmini v. Dhondo, (1912) 36 Bombay 207]**

X. RELIEF CLAIMED, BUT NOT EXPRESSLY GRANTED [EXPLANATION V]

If a relief is claimed in a suit, but is not expressly granted in the decree, it will be deemed to have been refused, and the matter in respect of which the relief is claimed will be *res judicata*.

When there is an appeal against a part of the decree only, the rest of the decree becomes final and the rest operates as *res judicata*. **[A.J. Pinto v. Sahèbbi Kom Muktum Saheb, AIR 1971, S.C. 2070]**

XI. PROBATE PROCEEDINGS

The Privy Council has held that when a question of the relationship of the parties has been decided in a probate proceeding, a subsequent suit between the same parties involving the same questions is barred by the rule of *res judicata*, although the words of Section 11 are not strictly applicable to such a case. **[Kalipada v. Dwijapada, 1930 57 I.A. 24]**

XII. EXECUTION PROCEEDINGS [EXPLANATION VII]

The general view which formerly prevailed in Indian Courts was that this section was not applicable to execution proceedings. However, in the leading case of **Ram Kirpal v. Rup Kauri (1813-11 I.A. 37)**, the Privy Council held that though the section in terms does not apply to execution proceedings, the principle of *res judicata* applies to such proceedings. The matter is now set at rest by *Explanation VII* (which was introduced by the 1976 Amendment), which lays down that the section also applies to execution proceedings, thereby confirming the view of the Privy Council in the above case.

XIII. SUMMARY PROCEEDINGS

The Calcutta High Court had earlier *held* that the question of *res judicata* can arise in consequence of antecedent summary proceedings. However, the Lahore High Court had *held* that the decision of a District Judge in proceedings of a summary nature does not operate as *res judicata* to bar a subsequent suit for the determination of the same question. This controversy was laid at rest when the Privy Council accepted the view of the Lahore High Court in **Babu Bhagwan Din v. Gir Har Saroop (67 I.A. 1)**. After this decision, the Calcutta High Court has also *held* the rule of *res judicata* does not apply to summary and extra-judicial proceedings.

XIV. SECTION 11 NOT EXHAUSTIVE

This section is *not* exhaustive of the circumstances in which an issue is *res judicata*. The plea of *res judicata* exists apart from the limited provisions of the Code. The application of the rule of *res judicata* by the courts need *not* be influenced by technical considerations of form, but by matters of substance within the limits allowed by law. It has, therefore, been *held* that an issue may be *res judicata*, though it may not have been decided in a 'former suit'. Thus, a decision given by a competent court on question of relationship on an application for letters of administration after trial of the issue is binding as *res judicata* in a subsequent suit between the parties. [**Maung Hamat v. Ma Htay, (1923) 1 Rang. 258**]

XV. WAIVER OF THE PLEA

The plea of *res judicata* is not one which affects the jurisdiction of the court. It is plea which a party may waive. If a party does *not* arise the plea of *res judicata*, it will be deemed to be decided against him.

XVI. BAR TO FURTHER SUIT: SECTION 12

Section 12 provides that if a plaintiff is precluded by the Rules from instituting a further suit in respect of any particular cause of action, he is *not* entitled to institute a suit in respect of such cause of action in any Court to which the Civil Procedure Code applies.

XVII. PREVISIONS OF THE CODE WHICH BAR FURTHER SUIT

The following are *other provisions of the Code* precluding the institution of a further or fresh suit in respect of the same cause of action:

- i) Omission of suit for the *entire* claim bars a suit for a *portion* of the claim so omitted: Order 2, Rule 2.
- ii) Where the defendant appears and the plaintiff does not appear when the suit is called for hearing, and the defendant does not admit the plaintiff's claim, the court will dismiss the suit. Further, the plaintiff is precluded from bringing a fresh suit in respect of the same cause of action: Order 9, Rules 8-9.
- iii) Where a suit abates or is dismissed owing to the death or insolvency of the plaintiff or defendant, no fresh suit can be brought on the same cause of action: Order 22, Rule 9.
- iv) Where the plaintiff withdraws a suit, or abandons a part of claim *without the permission of the court*, he is precluded from instituting any fresh suit in respect of that subject-matter or such part of the claim: Order 23, Rule 1.

XVIII. RES JUDICATA AND ESTOPPELS DISTINGUISHED

Some jurists have treated *res judicata* as part of the *doctrine of estoppel* - but the fact remains that the two are essentially different. Estoppel belongs to the law of evidence, and prevents a man from blowing hot and cold on different occasions (as it suits him), - in other words, from saying one thing at one time, and quite the opposite thing at another time. *Res judicata*, on the other hand, is meant to prevent a party from saying the *same thing* in successive litigation.

As observed by the Calcutta High Court in **Radha Rani v. Binoda Moyee (AIR 1942 Calcutta 92)**, "The operation of the doctrine of *res judicata* is the transformation of a question of fact into a question of law."

The following are the main points of difference between the two:

1. *Res judicata* results from a decision of the Court. Estoppel results from the acts of the parties themselves.
2. The principle of *res judicata* proceeds on the ground of public policy, viz. that there should be an end to litigation. The principle of *estoppel* proceeds upon the doctrine of equity that he who, by his own conduct, has induced another to alter his position to his advantage *cannot* turn around and take advantage of such alteration of the other's position.
3. *Res judicata* prohibits an inquiry *in limine* and ousts the jurisdiction of the court to try the case. Estoppel is only a rule of evidence.
4. The principle of *res judicata* presumes conclusively the truth of the former decision. The rule of estoppel prevents a person from setting up what he calls the truth.
5. *Res judicata* prohibits a man overing the same thing twice in successive litigations, while estoppel prevents him from saying one thing at one time and the opposite at another.

The difference between *res judicata* and *estoppel* has been well summed up by **Mahmud J., in Sitaram v. Amir Begam (1886-8 All 324)**, where he observed:

— "Perhaps the shortest way to describe the difference between the plea of *res judicata* and *estoppel*, is to say that while the former prohibits the court from entering into an inquiry at all as to a matter already adjudicated upon, the latter prohibits a party, after the inquiry has already been entered upon, from proving anything which would contradict his own previous declaration or act to the prejudice of another party, who, relying upon those declarations or acts, has altered his position. In other words, *res judicata* prohibits any inquiry *in limine*, whilst an *estoppel* is only a piece of evidence."

XIX. LATEST CASES

1. **Deva Ram v. Ishwar Chand (AIR 1996 SC 378)** – Section 11 contains the rule of conclusiveness of the judgment which is based partly on the maxim "*Interest republicae ut sit finis litium*" (i.e. it concerns the state that there be an end to law suits) and partly on the maxim "*nemo debet bis vexari pro una at eadem cause*" (i.e. no man should be vexed twice for the same cause).
2. **Rajendra Kumar v. Kalyan (AIR 2000 SC 3335)** – The doctrine of *res judicata* or constructive *res judicata* predominantly is a principle of equity, good conscience and justice. It would neither be equitable nor fair nor in accordance with the principles of Natural Justice that the issue concluded earlier ought to be permitted to be raised in a different proceeding.
3. **R. Govindasamy v. Kasthuri Ammal (AIR 1998 Madras 218)** – Section 11 operates against both the parties to a suit and not against the defendants alone.
4. **Supreme Court Employees Welfare Association v. Union of India (AIR 1990 SC 334, 347)** – When a particular decision has become final and binding between the parties, it cannot be set at naught on the ground that such a decision is violative of Article 14 of the Constitution.
5. **Mathura v. Dossibai (AIR 1971 SC 2355)** – The doctrine of *res judicata* belongs to the domain of procedure.
6. **Rajendra Deva v. Hari Fertilizers [(2002) SCC 130]** – Where an order has reached finality no further relief can be claimed.
7. **Venkata v. Koteswara (41 CWN 257)** – Section 11 is mandatory. Its principle however is modified by Section 44 Evidence Act and one of the parties to the former

suit can only avoid *res judicata* by proving that the Judgment was obtained by fraud or collusion or passed by a court without Jurisdiction.

8. **Sayyed Ali v. A. P. Wakt Board (AIR 1998 SC 972)** – A decision of court or tribunal which is without jurisdiction cannot operate as *res judicata* in subsequent proceedings.
9. **Madhvi Amma Bhawani Amma v. Kunjikutty Pillai Meenakshi Pallai (AIR 2000 SC 2301)** – The sphere of *res judicata* as enshrined in Section 11 is not exhaustive, it is ever growing.
10. **Devidayal Rolling Mills v. Prakash Chimanlal Parikh (AIR 1993 SC 1982)** – Principles of *res judicata* can be invoked not only in separate proceedings but also in subsequent stage of the same proceedings.
11. **Amalgamated Coalfields v. Janapada Sabha (AIR 1964 SC 1013)** – Constructive *res judicata* is a special and artificial form of *res judicata* enacted by Section 11.
12. **Ferro Alloys Corporation v. Union of India (AIR 1999 SC 1236)** – Principle of constructive *res judicata* can be invoked even inter se respondents, but before any plea by contesting respondents could be said to be barred by constructive *res judicata* in future proceedings inter se such contesting respondents, it must be shown that such a plea was required to be raised by the contesting respondents to meet the claim of the appellant in such proceedings.
13. **Mira Chatterjee v. Sunil Kumar Chatterjee (AIR 1998 Calcutta 333)** – Suit by a party for right acquired by him during pendency of previous suit is maintainable and in such case explanation 4 is not attracted.
14. **Adi Pherooshan v. Seervaz (AIR 1971 SC 385)** – In a civil proceeding the decision of a criminal court is not *res judicata*.
15. **Ramu Barman v. Dagripriya Kachari (AIR 1992 Gau 72)** – An *ex-parte* decree can operate as *res judicata* because an *ex-parte* decree is a decree on merits.
16. **A. A. Associates v. Prem Goel (AIR 2002 Del 142)** – A compromise decree or order does not operate as *res judicata* because the same is merely the record of a contract between the parties to a suit to which is superadded the seal of the court and the court does not decide anything. However it is binding upon the parties.
17. **Manohar v. Laxman (AIR 1947 N 248)** – Section 11 does not apply to appeals but whether an appeal is barred by *res judicata* must be decided on general principles.
18. **Amalgamated Coalfields v. Janapada Sabha (AIR 1964 SC 1013)** – It is now well settled that general principles of *res judicata* apply to writ petition under Articles 32 and 226.
19. **M.S.M. Sharma v. Shree Krishna (AIR 1960 SC 1186)** – The decision of a former petition under Article 32 is *res judicata* in subsequent petition under the same Article with respect to the same matter.
20. **Tapan Kr. Mokhoty v. Bank of Madura Ltd. (AIR 1999 Cal 305)**
21. **Sumer Mal v. State of Rajasthan (AIR 2000 Rajasthan 1)**
22. **Smt. Rehana Parveen v. Nalmuddin (AIR 2000 MP 1)**
23. **Singhai Lal Chand Jain v. Rashtriya Swayam Sewak Sangh, Panna [JT 1996 (3) SC 64]**
24. **G.N. Nayak v. Goa University (AIR 2002 SC 790)**

XX. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Discuss whether the rule of *res judicata* laid down in Section 11 of the CPC is exhaustive and can be extended to execution proceedings also. Refer to decided cases. [500 Words, RJS-1970]
2. The Principle of conclusiveness of judgment is a rule of estoppel. Discuss. [500 Words, RJS-1974]

State briefly in any four of the following as to whether the principle of 'RES JUDICATA' would be applicable –

- a) if the previous suit was dismissed for default;
 - b) if the previous case was decided by a Court of exclusive jurisdiction;
 - c) to proceedings in execution of a decree;
 - d) if the previous suit was compromised;
 - e) if the previous decision was given by a Court having no jurisdiction;
 - f) if the previous decision was erroneous in law.
3. What is a *res judicata*? Discuss. [300 Words, RJS-1976]
 4. Is the defendant barred by the principle of *res judicata* where an issue in a previously instituted suit has been decided against the defendant but the suit itself was dismissed? [150 Words, RJS-1976]
 5. What are the requisite conditions of the Principle of *Res judicata*? [300 Words, RJS-1979]
 6. Short Notes: Constructive *res judicata*? [100 Words, RJS-1979]
 7. What is "*res judicata*"? [50 Words, RJS-1984]
 8. Whether the principle of *res judicata* applies between two stages in the same litigation? [15 Words, RJS-1986]
 9. What is the difference between *res judicata* and estoppel? [50 Words, RJS-1986]
 10. A suit is brought for partition on the ground of legitimate son of the deceased. Can a second suit lie on the ground of illegitimate son of the deceased? [50 Words, RJS-1986]
 11. Does the principle of *res judicata* apply between co-defendants? [15 Words, RJS-1988]
 12. As given in the Code of Civil Procedure, 1908 write the headings of the following:
 - a) Section 11 or Section 80
 - b) Order XXI or Order XXXIV[15 Words, RJS-1989]
 13. What is an estoppel? How does it differ from '*Res judicata*'? [200 Words, RJS-1992]
 14. Explain the distinction of *res judicata* with *res sub judice* and Estoppel. [200 Words, UPPCS (J)-1988]
 15. a) Discuss fully the condition which are required to constitute a matter *res judicata* and comment upon the following statements –

"A verdict against a man suing in one capacity will not stop him when he sues in another distinct capacity".

b) 'A' files a suit for declaration that he is entitled to certain lands as heir to 'B'. The suit is dismissed. Can he claim in latter suit title to the same properties on the basis of adverse possession?

c) A *Munsif* decided in a maintenance suit that the husband had abandoned his wife and, therefore, the latter was entitled to maintenance. Does the subsequent petition filed by the husband for judicial separation under Section 10 of The Hindu Marriage Act, 1955 operate as *res judicata*?

Give reasons for your answer. [600 Words, UP-1982]
 16. a) What is the principle of *res judicata* and in what circumstances can this principle be applied?
 - b) Distinguish between *res judicata* and estoppel. [600 Words, UP-1984]
 17. Explain constructive *res judicata*. [200 Words, UP-1986]

18. Explain the doctrine of "*Res judicata*" provided in Section 11 of the Code of Civil Procedure, 1908. How is the doctrine of *Res judicata* different from the rule contained in Section 10 of the said Code? [200 Words, UP-1997]
19. Distinguish between *res judicata* and *res sub judice*. [150 Words, HJS-2003]
20. In which of the following cases the rule/principle of '*res judicata*' will operate? [200 Words, HJS-1998]
- a) A suit was dismissed on the plea of limitation without adjudicating merits. A subsequent suit is filed in which the same pleas are raised.
 - b) A suit was dismissed for default of appearance or for want of jurisdiction and a fresh suit is filed on the same cause of action.
 - c) A suit was dismissed by trial Court. A subsequent suit is filed on the ground of alternative plea which is inconsistent with the main plea of the dismissed suit.
21. A suit is dismissed on technical ground of misjoinder of parties. Thereafter, the defect is removed and the suit is filed against. Will it be affected by the principle of '*res judicata*'? [150 Words, HJS-1998]
22. Short Notes: Constructive *Res judicata*. [150 Words, HJS-1998]
23. A Munsif decided in a maintenance suit that the husband had abandoned his wife and therefore, the latter was entitled to maintenance. Does the subsequent petition filed by the husband for judicial separation under Section 10 of the Hindu Marriage Act, 1955 operate *res judicata*. [150 Words, HJS-2000]
24. a) Discuss fully the conditions which are required to constitute a matter *res judicata* and comment upon the following statement.
"A verdict against a man suing in one capacity will not stop them when he sues in another distinct capacity."
b) 'A' files a suit for declaration that he is entitled to certain lands as heir to 'B'. The suit is dismissed. Can he claim in later suit title to the same properties on the basis of adverse possession?
c) A Munsif decided in a maintenance suit that the husband had abandoned his wife and therefore, the latter was entitled to maintenance. Does the subsequent petition filed by the husband for judicial separation under Section 10 of the Hindu Marriage Act, 1955 operate *res judicata*. Give reasons for your answer. [600 Words, HJS-2000]
25. a) Discuss the principle of *res judicata* in the following proceedings:
i) Application for Amendment of Decree
ii) Application for review
iii) Order of Maintenance
b) Distinguish between '*res judicata* and *res sub judice*'. [600 Words, HJS-2001]
26. Explain the concept of constructive *res judicata* with the help of illustrations. [250 Words, BJE-1991]
27. Difference between '*sub judice* and *res judicata*'. [200 Words, BJE-1987]
28. a) Discuss fully the conditions which are required to constitute a matter *res judicata*.
b) 'A' files a suit for declaration that he is entitled to certain lands as heir to 'B'. The suit is dismissed. Can he claim in later suit the same properties on the basis of adverse possession?
c) 'A' claiming to be entitled to a house as tenant of X, sues B for possession, B is joined as proforma defendant. The suit is dismissed on finding that B is the owner of the house. X then sues B for possession and B pleads that the finding in the previous suit on the issue of ownership operates as *Res judicata*. Is the plea valid?

Give reasons.
1986]

[500 Words, BJE-

29. It is not every matter decided in a former suit that can be pleaded *Res judicata* in a subsequent suit. Examine the condition which must be fulfilled to constitute a matter as *res judicata*. **[250 Words, BJE-1980]**

30. a) Define *Res judicata*. What are its objects?

b) A Hindu H dies leaving two daughters D-1 and D-2 and nephew N. D-1 sues D-2 and N to recover certain property under an oral will of H. D-2 claims the property under a will in writing executed by H. N claims the property as undivided nephew of H. The Court finds that H and N were divided that the will in writing in favour of D-2 is the valid will of H and dismisses the suit of D-1. Subsequently D-2 sues N to recover the property under the writing will. N contends that he and H were joint and he became entitled to the property by survivorship. D-2 pleads the previous judgment as *res judicata*. Will succeed? Give reasons. **[500 Words, BJE-1977]**

31. A became a tenant of seven lots of coconut grove under B. Annual rental agreed was Rs. 3,600/- to be paid in three installments. A filed a suit for declaration and injunction alleging that B with the help of C is trying to cast clouds on his tenancy rights and to dispossess him. The Court found that A had already been dispossessed. The suit was therefore dismissed on the ground that suit for mere declaration does not lie in view of the prohibition contained in the Specific Relief Act, without seeking the consequential relief of possession.

A then filed another suit for possession of the land under his tenancy. The suit was resisted on the ground, *inter alia* that it is barred by principles of *res judicata* and also under Order 2, Rule 2, CPC. Decide giving reasons for your decision, whether the defendant's plea is sustainable. **[300 Words, DJS-1996]**

Revised

CHAPTER XI
PLACE OF SUING
[SECTION 15 TO 21 A]

Dear aspirant,

Sections 15 to 20 of the code regulate the forum of the institution of suits. Section 15 states, "every suit shall be instituted in the Court of lowest grade competent to try it". This rule is one of procedure only and not of jurisdiction and, therefore, exercise of jurisdiction by a Court of higher grade than is competent to try the suit is a mere irregularity and the decree passed by the Court is not a nullity. But, exercise of jurisdiction by a Court of lower grade than is competent to try it, is a nullity as being without jurisdiction.

The Court must be competent to try the suit "at the time of filing the suit subsequent change in value does not effect the jurisdiction". Prima facie, it is the plaintiff's valuation in the plaint that determines the jurisdiction of the Court and not the amount for which ultimately the decree may be passed by the Court. If the suit is undervalued, with the result that the appeal from the decree in a suit is tried and decided by a District Court instead of by a High Court, the decree of the District Court is one passed by a Court without jurisdiction, and therefore, a nullity.

The provisions of the code of civil procedure relating to forum of suit may be explained with the help of following chart:

Kinds of Suits	Forum of Suing
1. Every suit	1. Court of the lowest grade competent to try it [Section 15].
2. Suits for	2. Court within whose jurisdiction the immovable property is situated. [Sections 16 (a) to 16 (e)].
a) Recover of;	3. Court within whose jurisdiction the immovable property is situated [Section 16 (f)].
b) Partition of;	4. Court within whose jurisdiction:
c) Foreclosure, sale or redemption of mortgage of or charge upon;	a) the property is situate, or
d) Determination of any other right to or interest in immovable property.	b) the defendant resides, or carries on business or personally works for gain [Proviso to Section 16].
3. Recovery of movable property under attachment.	5. Court within whose jurisdiction any portion the property is situated [Section 17].
4. a) Relief respecting; or	6. Any of those Courts, provided the Court has pecuniary jurisdiction [Section 18].
b) Compensation for wrong to immovable property held by the defendant; where the relief sought can be entirely obtained through his personal obedience.	7. Any of those Courts [Section 19].
5. a) Relief respecting; or	8. a) Where the cause of action wholly or partly arises; or
b) Compensation for wrong to immovable property situate within the jurisdiction of different Courts.	b) The defendant resides, carries on business or personally works for gain; or
6. Where it is uncertain within whose jurisdiction the immovable property is situate.	c) Where these are two or more

7. Compensation for wrong to a) person, or b) movable property If the wrong is done within the jurisdiction of one Court and the defendant resides or carries on business or personally works for gain within the jurisdiction of another Court.	defendants, where any of them resides, carries on business or personally works for gain, provided that: i) either the leave of the Court is obtained; or ii) the non-resident defendant acquiesce [Section 20].
8. Any other suit.	

Trees standing on land are immovable property, thus Section 16 governs a suit in respect of them. A suit merely for the recovery of rent from a lessee of immovable property is not a suit in respect of immovable property. A suit for mesne profits is a suit for profits/benefits arising out of immovable property and Section 16 governs the suit.

Section 21 states that no objection as to the place of suing will be allowed by an appellate or revisional Court unless the following three conditions are satisfied:

- i) The object was taken in the Court of first instance;
- ii) It was taken at the earliest possible opportunity and in cases where issues are settled, at or before settlement of issues; and
- iii) There has been consequent failure of justice.

All these three conditions must co-exist. The principles of Section 21 apply to execution proceedings also. Section 21 A states that no new suit can be filed to set aside a decree passed by a Court on an objection as to the place of suing.

This Chapter is the most important Chapter of the CPC for RJS, UPPCS (J), UPPCS (J), HJS, DJS, Bihar JE and Haryana Judicial Exam. Mainly two types of questions are asked from this Chapter.

- i). General principles governing the determination of the forum of suing.
- ii). Problem based questions for filing a suit i.e.

"A residing in Delhi publishes a defamatory statement about B in Calcutta. B is resident of Patna. Where can B file a suit against A?"

Wishing you all the best,

Yours Sincerely,

RAHUL

CHAPTER XI
PLACE OF SUING
[SECTION 15 TO 21 A]

SYNOPSIS

- I. Introduction**
- II. Court in which suits to be instituted: Section 15**
- III. Effect of Section 15**
- IV. Suit to be instituted where subject matter is situated: Section 16**
- V. Section 16 deals with Local and Territorial Jurisdiction**
- VI. Suit where immovable property is situated within jurisdiction of different Courts: Section 17**
- VII. Suit where Courts jurisdiction is uncertain: Section 18**
- VIII. Suits for compensation for wrong to Person or Movables: Section 19**
- IX. Other Suits: Section 20**
 1. Leave of the Court
- X. Cause of Action**
- XI. Forum for Institution of Suit: Specific Examples**
 1. Suit for damages for breach of contract
 2. Contract of Sale
 3. Carrier
 4. Partnership Suit
 5. Principal and Agent
 6. Debtor and Creditor
 7. Suit on Negotiable Instruments
 8. Suit for damages for libel or defamation
 9. Mesne Profit
 10. Sale of Immovable Property
 11. Suit relating to Standing Trees
 12. Restitution of Conjugal Rights
 13. Suit on Torts
 14. Copy Right
 15. Infringement of Trade Mark
 16. Suit for Malicious Prosecution
 17. Custody of Ward
 18. Corporation
 19. Insurance Contract
- XII. Object to Jurisdiction: Section 21**
 1. Plea as to lack of jurisdiction

2. Objection Regarding Territorial Jurisdiction does not go to root of jurisdiction
3. Lack of Jurisdiction and Irregular exercise of Jurisdiction

XIII. Bar on Suit to set aside decree on objection as to Place of Suing: Section 21 A

XIV. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

Ranvix IAS

CHAPTER XI

PLACE OF SUING

[SECTION 15 TO 21 A]

I. INTRODUCTION

Sections 15 to 21 A of the CPC regulate the forum for the institution of suits. In India, there are several High Courts – High Courts of Mumbai, Kolkata, Chennai, Allahabad, and Patna and so on. In each Presidency town, there is a High Court and a Small Causes Court. The High Courts have original civil jurisdiction to try *all* suits except those cognizable by the Small Causes Courts. In Mumbai, there are City Civil Courts which try suits upto Rs. 50,000. The pecuniary jurisdiction of Presidency Small Causes Courts is confined to suits of which the value does not exceed Rs. 1,000/-. Now, a suit for Rs. 500 as damages for breach of contract can – at least theoretically – be tried, both by the City Civil Court as well as by the Small Causes Court. But, according to Section 15, it should be brought in the lowest Court competent to try such a suit which is the Small Causes Court. There are, however, certain suits like partition of property; defamation *etc.* which Small Causes Court *cannot* try, even if the value of suit is less than Rs. 1,000/- (One thousand Only).

The following are the several grades of Courts in order:

- i) **High Courts**
- ii) **District Courts:** Just below the High Court is the District Court which is the principal civil Court of original jurisdiction in the District. It is also a Court of Appeal from the decrees and orders of subordinate Courts in certain cases.
- iii) Below the District Courts are **Courts of other Subordinate Judges, Civil Judges, Munsif, etc.**

II. COURT IN WHICH SUITS TO BE INSTITUTED: SECTION 15

Section 15 provides that every suit is to be instituted in the Court of the *lowest grade* competent to try it.

The provision contained in Section 15 is only a rule of *procedure*, and *not* of *jurisdiction*. Thus, both the District Judge and the Subordinate Judge have original jurisdiction over *all* suits cognizable by a Civil Court, subject to a certain procedure, namely, that the suits should be instituted in the Court of the lowest grade competent to try them. The *object* of the Legislature is that the Court of the higher grade should not be over-burdened with suits. However, the section is *not* meant to oust the jurisdiction of Courts of higher grades. Exercise of jurisdiction by a Court of a *higher grade* than is competent to try it is a mere *irregularity*, but exercise of jurisdiction by a Court of a *lower grade* than the one which is competent to try it, is a *nullity*, and such a decree is liable to be set aside.

III. EFFECT OF SECTION 15

A suit which under this section, ought to have been instituted in a Munsif's Court is filed in the Court of a higher grade (as for instance, a Court of Subordinate Judge), and such Court, instead of returning the plaint to be filed in the proper Court, tries the suit, notwithstanding the defendant's objections, and a decree is passed against the defendant. In such a case, the decree would not be a nullity, because the Subordinate Judge does have jurisdiction to try the suit. This is a case of mere irregularity, not affecting the jurisdiction of the Court, within the meaning of Section 99 of the Code.

However, if what happens is *vice-versa*, the position is different. If a suit which ought to have been instituted in a Court of a higher grade is filed in a lower Court, the latter ought to return the plaint to the plaintiff, to be presented to the Court of the higher grade (O.7, r.10). If this is not done, and the suit is heard by the lower Court, *the decree would be a nullity*, being one passed without jurisdiction. It may be noted that this is a *case of want of jurisdiction*, and *not* a case of *mere irregularity* within the meaning of Section 99 of the Code.

It may also be noted that it is the plaintiff's valuation in his plaint which fixes the jurisdiction of the Court, and *not* the amount which may ultimately be decreed by the Court. Thus, if the maximum pecuniary jurisdiction of a Court is Rs. 10,000 and a plaintiff files a claim on account for, say, Rs. 9,800/-, but the amount ultimately found due on taking accounts, is, say, Rs. 10/-, 400, the Court is *not* deprived of its power to pass a decree for that amount.

However, this does *not* mean that a plaintiff can assign *any arbitrary value* to the suit, and thus be free to choose the Court where he files the suit. If the over-valuation or under-valuation, as the case may be, is patent on the face of the plaint, it is the duty of the Court to return the plaint to the plaintiff, for filing the suit in the proper Court.

The Calcutta High Court had *held* that if the suit is undervalued, with the result that the *appeal* from the *decree* in a suit is tried and decided by a District Court instead of by a High Court, the decree of the District Court is one passed by a Court *without jurisdiction*, and therefore, a *nullity* [*Raj Lakshmi v. Katyayani*, (1911) 38 Calcutta 639].

In some suits, however, the subject-matter may *not* be capable of being estimated in terms of money, as for instance, suits for restitution of conjugal rights, suits for direct registration of a document, declaration suits *etc.* In such cases, the Court fees to be paid will be as per the provision of the Suit Valuation Act, 1887.

IV. SUIT TO BE INSTITUTED WHERE SUBJECT MATTER IS SITUATED: SECTION 16

Under Section 16, subject to the pecuniary or other limitation prescribed by any law, suits –

- a) for the recovery of immovable property, with or without rent or profits;
- b) for the partition of immovable property;
- c) for foreclosure, sale or redemption in the case of a mortgage of or charge upon immovable property;
- d) for the determination of any other right to or interest in immovable property;
- e) for compensation for wrong to immovable property;
- f) for the recovery of movable property actually under distraint or attachment: - are to be instituted in the Court within whose jurisdiction the property is situated.

However, a suit to obtain relief respecting, or compensation for wrong to, immovable property, held by or on behalf of the defendant, may, where the relief sought can be entirely obtained through his personal obedience, be instituted *either* in the Court within the local limits of whose jurisdiction the property is situated or in the Court within the local limits of whose jurisdiction the defendant actually and voluntarily resides, or carries on business, or personally works for gain. (*Proviso to Section 16*)

It is also clarified that for the purposes of Section 16, the term property means *property* situated in India.

V. SECTION 16 DEALS WITH LOCAL AND TERRITORIAL JURISDICTION

- a) Suits enumerated in clauses (a) to (f) *must* be instituted in the Court within the local limits of whose jurisdiction the property is situated. As a rule, therefore, Courts have *no* power to decide on rights and interests in property situated outside their local jurisdiction. But the section does *not* preclude the Courts from trying any question in respect of property lying outside their territorial jurisdiction, where such a question arises *incidentally*. (This section does *not* apply to chartered High Courts, vide Section 120)
- b) It may be noted that clause (e) applies to *torts* to immovable property, such as trespass, nuisance, *etc.* Such suits must be instituted in the Court within the local limits of whose jurisdiction the property is situated.

The *proviso* to Section 16 is based on the well-known maxim, *equity acts in personam*, whereby the Court looks for the fulfillment of its decree to the *person* of the defendant. The Court can give relief in suits respecting immovable property situated abroad, by enforcing the judgment by a process in *personam*, i.e. by the *arrest* of the defendant, or by *attachment* of his *personal property*. But in order to do this, it is essential that the defendant must either *reside*, or *carry on business*, or *personally work for gain*, within the local limits of the Court's jurisdiction. Thus, a suit for mesne profits of lands situated outside India can, under this *Proviso*, be

instituted in an Indian Court, if the defendant is residing within its jurisdiction. But if the defendant is a non-resident foreigner, such a suit would not lie in an Indian Court. The expression "defendants" covers *all* the defendants where there is more than one defendant.

VI. SUIT WHERE IMMOVABLE PROPERTY IS SITUATED WITHIN JURISDICTION OF DIFFERENT COURTS: SECTION 17

Section 17 lays down that where a suit is filed to obtain relief respecting, or compensation for wrong to immovable property situated within the jurisdiction of *different* Courts, the suit may be instituted in *any* Court within whose jurisdiction *any* portion of the property is situated. However, in such cases, the *entire claim* in respect of the value of subject-matter of the suit should be cognizable by such a Court.

It is to be noted that Section 17 is only *permissive*, and where the properties are situated in different jurisdictions, the section is no bar to parties bringing separate suits. The *object* of the section is to *avoid plurality of suits*. Before the provisions of this section can come into play, there must be *one* property which is situated in different jurisdictions (This section also does *not*, however, apply to Chartered High Courts exercising their original civil jurisdiction).

VII. SUIT WHERE COURTS JURISDICTION IS UNCERTAIN: SECTION 18

Section 18 lays down that where it is alleged to be uncertain within the local limits of the jurisdiction of which of two or more Courts an immovable property is situated, *any one of those* Courts may, if satisfied that there is a ground for the alleged uncertainty record a statement to that effect, and thereupon proceed to entertain and dispose of any suit relating to that property. The decree of such a Court in the suit will have the same effect as if the property was situated within the local limits of its jurisdiction.

In such cases, it is presumed that the suit is one with respect to which the Court is *competent*, as regard the *nature and value* of the suit, to exercise jurisdiction.

It is further provided that if a statement has *not* been recorded by the Court and an objection is taken before an appellate or Revisional Court that a decree or order in a suit relating to such property was made by a Court *not* having jurisdiction where the property is situated, the appellate or Revisional Court *cannot* allow the objection, *unless* in its opinion, there was, at the time of institution of the suit, no reasonable ground for uncertainty as to the Court having jurisdiction with respect thereto, *and* there has been a *consequent failure of justice*.

VIII. SUITS FOR COMPENSATION FOR WRONG TO PERSON OR MOVABLES: SECTION 19

Under Section 19, if a suit is for compensation for wrong done to person or to movable property, if the wrong was done within the local limits of the jurisdiction of *one* Court and the defendant resides, or carries on business, or personally works for gain, within the local limits of the jurisdiction of *another* Court, the suit may be instituted, at the option of the plaintiff, in *either* of the said Court.

Illustrations

- i) A, residing in Delhi, beats B in Kolkata. B may sue A either in Kolkata or in Delhi.
- ii) A, residing in Delhi, published in Kolkata statements defamatory of B, B sues A either in Kolkata or in Delhi.

IX. OTHER SUITS: SECTION 20

Section 20 then provides that, *subject to all the limitations discussed above*, every suit is to be instituted in a Court within the local limits of whose jurisdiction –

- a) the defendant (or each of the defendants, where there are more than one), at the time of the commencement of the suit, *actually and voluntarily* resides or carries on business or personally works for gain; or
- b) any of the defendants, where there are more than one, at the time of commencement of the suit, *actually and voluntarily* resides, or carries on business, or personally works for gain, *provided that* in such cases, *either* the leave of the Court is given, or the defendants who do not reside, or carry on business, or personally work for gain, as aforesaid, acquiesce in such institution; or

c) the cause of action, wholly or in part, arises. <https://goo.gl/GU7xEZ> (Hard copy)

The *Explanation* to Section 20 provides that a corporation is deemed to carry on business at its sole or principal office in India, or in respect of any cause of action arising at any place, where it also has a subordinate office, at such place.

Illustrations

- i) A is a tradesman in Kolkata. B carries on business in Delhi. B by his agent in Kolkata buys goods from A and requests A to deliver them to the Railway Company. A delivers the goods accordingly in Kolkata. A may sue B for the price of the goods either in Kolkata, where the cause of action has arisen, or in Delhi where B carries on business.
- ii) A resides at Shimla, B at Calcutta and C at Delhi. A, B and C being together at Banaras, B and C make a joint promissory note payable on demand, and deliver it to A. A may sue B and C at Banaras, where the cause of action arose. He may also sue them at Calcutta, where B resides, or at Delhi, where C resides; but in each of these cases, if the non-resident defendant objects, the suit cannot proceed without the leave of the Court.

Section 20 is a general section covering all *personal actions* (i.e. suits relating to person or movable property) and as the opening words state, it is subject to the other limitations (contained in Sections 16 to 19).

1. Leave of the Court

Leave of the Court is required when some of the defendants are within and others are outside the Court's jurisdiction. The Bombay High Court had held that the leave may be given after the institution of the suit [*Narayan v. Sec. Of State, (1906) 30 Bombay 570*].

Likewise, it has also been held that leave of the Court can even be given at the stage of appeal [*Dwarka Das v. Hanuman Das, AIR 1961 Raj. 187*].

However, such leave is not to be granted only by asking, and there is an obligation on the Court to consider the position of the non-resident defendant who does not appear, as well as to consider the objections of those who do not appear, before such leave is granted.

X. CAUSE OF ACTION

"Cause of Action" means the cause or the set of circumstances which leads up to a suit. It may be defined as being the fact or facts which establish or give rise to a right of action or the existence of which entitles a party to seek redress in a Court of law. The term connotes all categories of facts which it is necessary (and not every piece of evidence) for the plaintiff to prove, if traversed, in order to entitle him to a decree in the suit. It is the media upon which the plaintiff asks the Court to arrive at a conclusion in his favour but has no reference to the relief claimed or the defence set up [*Read v. Brown 1888-22 QBD, 126; State of Madras v. C. P. Agencies AIR 1960 SC 1309*].

In its restricted sense, "cause of action" means the immediate occasion for the action. Where the cause of action is fraud, discovery of fraud is no part of the case of action. The cause of action must be antecedent to the institution of the suit, and no cause of action can be founded on any allegations made in the proceedings. However, a new claim made on a new basis constituted by new facts is also included in a cause of action [*A. K. Gupta and Sons Ltd. v. Damodar Valley Corpn. AIR 1967 SC 96*].

In *Dalpatrai v. West End Watch Co. (AIR 1958 MP 38)*, the plaintiff sent his watch for repairs to the defendant in Bombay, asking him to send an estimate of repairs. When the parcel was opened, according to the defendant, he found nothing in it. The plaintiff brought the suit for recovery of the price of watch and damages at Ujjain where he resided. It was held that the cause of action (whether in contract or tort) arose entirely in Bombay and the Ujjain Court had no jurisdiction. Where an order for work is sent by post and without formal acceptance the work is carried out in the district where the order is received, the whole cause of action arises in the latter district. In so far as the suit was one in tort, Section 19, CPC applied and as the wrong to the watch was done at Bombay where the defendant carried on business, the Ujjain Court had no jurisdiction.

Thus, in a suit for damages for breach of contract, the cause of action consists of two parts:

- i) the making of the contract, and
- ii) the breach thereof by the defendant.

Similarly, in the case of life insurance policy, the claimant must prove the death of the insured before he can enforce his claim against the insurance company. Hence, the death of the insured is a part of the cause of action in a suit claiming insurance money. The cause of action is thus antecedent to the institution of the suit.

"Cause of action" means the "cause of action" for which the suit was brought. Cause of action is cause of action which gives occasion for and forms the foundation of the suit. If that cause of action enables a person to ask for a large and wider relief than that to which he limits his claim, he cannot afterwards seek to recover the balance by independent proceedings [*Sidramappa v. Raja Shetty, A 1970 SC 1059*].

The earlier Code of 1882 contained an explanation as to the significance of the term cause of action, when applied to contracts. The explanation provided that in suits arising out of contracts, the cause of action arises at any of the following places namely,

- a) the place where the contract was made,
- b) the place where the contract was to be performed,
- c) the place where any money (under the contract) was payable.

Although the above explanation no longer finds a place in the present Code, it is submitted that the above is nevertheless a correct statement of the law as it stands today.

XI. FORUM FOR INSTITUTION OF SUIT: SPECIFIC EXAMPLES

1. Suit for damages for breach of contract

In a suit for damages for breach of contract the cause of action consists of the making of the contract and of its breach and the suit may be filed either at the place where the contract was made or at the place where it should have been performed and the breach occurred. Where no place of performance is prescribed by the agreement, the place where it is intended by the parties that such contract should be performed ought to supply the forum.

2. Contract of Sale

A suit on account of non-delivery of goods may be brought in a Court of the place where delivery and payment were to be made. Where the contract is by correspondence the place where acceptance is signified is the forum. A contract by correspondence is made at the place where the letter of acceptance is posted; and if acceptance is by performance of a condition, the suit may be instituted at the place where the condition is performed. The cause of action for a suit by the seller for balance of accounts due from the buyer arises at the place of consignment of the goods to the railway.

The performance of a contract is part of the cause of action and a suit in respect of its breach can be filed at the place where the contract should have been performed or its performance completed. Thus in a contract for sale of goods, the suit may be filed at the place where the goods are deliverable or the price payable [*Sheo Charan v. Taj Bai, (1917) 39 All 368*]. Where a buyer at Kasganj ordered dyes from a seller at Delhi, but after paying for and opening the parcel found it to contain only clay, he was entitled to sue for damages at Kasganj [*Ram Lal v. Bhola Nath, (1920) 42 All 629*].

3. Carrier

A suit for refund of freight for damage for short delivery and for general average account should be filed where the freight was collected or where the goods were delivered.

4. Partnership Suit

A suit for accounts of dissolved partnership may be instituted either where the contract of partnership was entered into or where the business of partnership was carried on. Where partnership business was carried on at two places a suit for dissolution can be filed at either place and also at the place where partnership accounts are maintained. A suit for dissolution

The *Explanation* to Section 20 provides that a corporation is deemed to carry on business at its sole or principal office in India, or in respect of any cause of action arising at any place, where it also has a subordinate office, at such place.

Illustrations.

- i) A is a tradesman in Kolkata. B carries on business in Delhi. B by his agent in Kolkata buys goods from A and requests A to deliver them to the Railway Company. A delivers the goods accordingly in Kolkata. A may sue B for the price of the goods either in Kolkata, where the cause of action has arisen, or in Delhi where B carries on business.
- ii) A resides at Shimla, B at Calcutta and C at Delhi. A, B and C being together at Banaras, B and C make a joint promissory note payable on demand, and deliver it to A. A may sue B and C at Banaras, where the cause of action arose. He may also sue them at Calcutta, where B resides, or at Delhi, where C resides; but in each of these cases, if the non-resident defendant objects, the suit cannot proceed without the leave of the Court.

Section 20 is a general section covering all *personal actions* (i.e. suits relating to person or movable property) and as the opening words state, it is subject to the other limitations (contained in Sections 16 to 19).

1. Leave of the Court

Leave of the Court is required when some of the defendants are within and others are outside the Court's jurisdiction. The Bombay High Court had held that the leave may be given after the institution of the suit [*Narayan v. Sec. Of State, (1906) 30 Bombay 570*].

Likewise, it has also been held that leave of the Court can even be given at the stage of appeal [*Dwarka Das v. Hanuman Das, AIR 1961 Raj. 187*].

However, such leave is not to be granted only by asking, and there is an obligation on the Court to consider the position of the non-resident defendant who does not appear, as well as to consider the objections of those who do not appear, before such leave is granted.

X. CAUSE OF ACTION

"Cause of Action" means the cause or the set of circumstances which leads up to a suit. It may be defined as being the fact or facts which establish or give rise to a right of action or the existence of which entitles a party to seek redress in a Court of law. The term connotes all categories of facts which it is necessary (and not every piece of evidence) for the plaintiff to prove, if traversed, in order to entitle him to a decree in the suit. It is the media upon which the plaintiff asks the Court to arrive at a conclusion in his favour but has no reference to the relief claimed or the defence set up [*Read v. Brown 1888-22 QBD, 126; State of Madras v. C. P. Agencies AIR 1960 SC 1309*].

In its restricted sense, "cause of action" means the immediate occasion for the action. Where the cause of action is fraud, discovery of fraud is no part of the cause of action. The cause of action must be antecedent to the institution of the suit, and no cause of action can be founded on any allegations made in the proceedings. However, a new claim made on a new basis constituted by new facts is also included in a cause of action [*A. K. Gupta and Sons Ltd. v. Damodar Valley Corpn. AIR 1967 SC 96*].

In *Dalpatrai v. West End Watch Co. (AIR 1958 MP 38)*, the plaintiff sent his watch for repairs to the defendant in Bombay, asking him to send an estimate of repairs. When the parcel was opened, according to the defendant, he found nothing in it. The plaintiff brought the suit for recovery of the price of watch and damages at Ujjain where he resided. It was held that the cause of action (whether in contract or tort) arose entirely in Bombay and the Ujjain Court had no jurisdiction. Where an order for work is sent by post and without formal acceptance the work is carried out in the district where the order is received, the whole cause of action arises in the latter district. In so far as the suit was one in tort, Section 19, CPC applied and as the wrong to the watch was done at Bombay where the defendant carried on business, the Ujjain Court had no jurisdiction.

Thus, in a suit for damages for breach of contract, the cause of action consists of two parts:

- i) the making of the contract, and
- ii) the breach thereof by the defendant.

Similarly, in the case of life insurance policy, the claimant must prove the death of the insured before he can enforce his claim against the insurance company. Hence, the death of the insured is a part of the cause of action in a suit claiming insurance money. The cause of action is thus antecedent to the institution of the suit.

"Cause of action" means the "cause of action" for which the suit was brought. Cause of action is cause of action which gives occasion for and forms the foundation of the suit. If that cause of action enables a person to ask for a large and wider relief than that to which he limits his claim, he cannot afterwards seek to recover the balance by independent proceedings [*Sidramappa v. Raja Shetty, A 1970 SC 1059*].

The earlier Code of 1882 contained an explanation as to the significance of the term cause of action, when applied to contracts. The explanation provided that in suits arising out of contracts, the cause of action arises at any of the following places namely,

- a) the place where the contract was made,
- b) the place where the contract was to be performed,
- c) the place where any money (under the contract) was payable.

Although the above explanation no longer finds a place in the present Code, it is submitted that the above is nevertheless a correct statement of the law as it stands today.

XI. FORUM FOR INSTITUTION OF SUIT: SPECIFIC EXAMPLES

1. Suit for damages for breach of contract

In a suit for damages for breach of contract the cause of action consists of the making of the contract and of its breach and the suit may be filed either at the place where the contract was made or at the place where it should have been performed and the breach occurred. Where no place of performance is prescribed by the agreement, the place where it is intended by the parties that such contract should be performed ought to supply the forum.

2. Contract of Sale

A suit on account of non-delivery of goods may be brought in a Court of the place where delivery and payment were to be made. Where the contract is by correspondence the place where acceptance is signified is the forum. A contract by correspondence is made at the place where the letter of acceptance is posted; and if acceptance is by performance of a condition, the suit may be instituted at the place where the condition is performed. The cause of action for a suit by the seller for balance of accounts due from the buyer arises at the place of consignment of the goods to the railway.

The performance of a contract is part of the cause of action and a suit in respect of its breach can be filed at the place where the contract should have been performed or its performance completed. Thus in a contract for sale of goods, the suit may be filed at the place where the goods are deliverable or the price payable [*Sheo Charan v. Taj Bai, (1917) 39 All 368*]. Where a buyer at Kasganj ordered dyes from a seller at Delhi, but after paying for and opening the parcel found it to contain only clay, he was entitled to sue for damages at Kasganj [*Ram Lal v. Bhola Nath, (1920) 42 All 629*].

3. Carrier

A suit for refund of freight for damage for short delivery and for general average account should be filed where the freight was collected or where the goods were delivered.

4. Partnership Suit

A suit for accounts of dissolved partnership may be instituted either where the contract of partnership was entered into or where the business of partnership was carried on. Where partnership business was carried on at two places a suit for dissolution can be filed at either place and also at the place where partnership accounts are maintained. A suit for dissolution

of partnership carried on in a foreign territory is maintainable in India if the parties are resident there.

5. Principal and Agent

The proper forum in the case of an ordinary agent is the place where the contract of agency was made or the place where accounts are to be rendered and payment is to be made by the agent.

A suit against a commission agent lies at the place where the commission agent carries on business [*Firm Brij Raj Co. v. Firm Sagarmal Dhan Raj, AIR 1952 Punjab 119*]. A suit on commission agency contract can be filed at the place where it was made.

Commission agents are to be sued where they carry on business in the absence of a contract to the contrary.

Where no place for rendering accounts is specified, it is to be ascertained from the intention of the parties.

6. Debtor and Creditor

Where a place is fixed for payment of debt, the Court of that place will have jurisdiction. In the absence of any stipulation a suit to recover the money borrowed may be brought at the place where the lender resides. Ordinarily the borrower should seek the creditor.

7. Suit on Negotiable Instruments

A suit on a promissory note lies at the place where it is drawn, signed and dated. The common rule that the debtor must seek his creditor does not apply to promissory notes. A suit on promissory note lies at the maker's place.

Where no cash was advanced and the loan was by way of cheque, the place where the defendant got the cheque from the plaintiff gives rise to a part of the cause of action and the plaintiff can file a suit for recovery of the loan in the Court of that place [*Ladli Prasad v. Chandlok, AIR 1952 Peps. 4*].

8. Suit for damages for libel or defamation

A suit for damages for libel or defamation may be brought either in the Court of the place where the publication takes place or where the defendant resides. In the case of a publication in a newspaper, the libel is published wherever the paper is read.

9. Mesne Profit

A suit for mesne profits is a suit for profit or benefit arising out of immovable property and the suit is governed by section 15 of the Code of Civil Procedure. It can, therefore, be instituted in the Court within whose jurisdiction the property is situate or in the Court within the local limits of whose jurisdiction the defendant actually and voluntarily resides, or carries on business, or personally works for gain.

10. Sale of Immovable Property

A suit for specific performance of contract of sale of immovable property is governed by section 16 of the Code of Civil Procedure and can be instituted in the Court within whose jurisdiction the property is situate or in the Court within the local limits of whose jurisdiction the defendant actually and voluntarily resides, or carries on business or personally works for gain.

11. Suit relating to Standing Trees

Trees standing on land are immovable property and therefore the suit must be instituted in the Court within whose local jurisdiction the land is situate unless the relief can be entirely obtained through the personal obedience of the defendant when it can be brought either in the Court within whose jurisdiction the property is situate or in the Court within whose jurisdiction the defendant resides or carries on business or personally works for gain.

12. Restitution of Conjugal Rights

The cause of action in a suit for restitution of conjugal rights is the breach of marital obligation on the part of either party. The suit may be brought either where the husband or

the wife resides, but if the wife has never lived at the husband's house the suit must be brought in the Court of the place where the wife resides.

A suit for breach of contract of betrothal has to be filed where the breach took place. A suit for dower lies in a Court within whose jurisdiction the marriage and divorce took place.

13. Suit on Torts

A suit for a tort may be brought either where the wrong was committed or where the tortfeasor resides or carries on business.

14. Copy Right

A suit for infringement of copyright lies at the place where the defendant resides or the infringement of copyright has taken place.

15. Infringement of Trade Mark

A suit for damages for infringement of a trade mark may be brought in the Court of the place where the defendant resides or in the Court of the place where the defendant publishes advertisements constituting infringement of the trade mark.

16. Suit for Malicious Prosecution

In a suit for malicious prosecution and arrest the cause of action arises at the place where the person is arrested.

17. Custody of Ward

A suit by a guardian for the custody of his ward may be brought in the Court of the place from where the ward was removed or at the place to which the ward was removed.

18. Corporation

A corporation is deemed to carry on business at its sole or principal office in India or in respect of any cause of action arising at any place where it has also a subordinate officer, at such place. The suit can, therefore, be brought at the principal place of business, generally the registered office, or where there are subordinate or branch offices the suit can be brought in the Court where the subordinate office is situated in respect of a cause of action arising there. Where neither of the two conditions is satisfied and the company changed its office from Lahore to Delhi, the Court of Delhi has no jurisdiction to try the suit against the company [*Home Insurance Co. Ltd. v. Jagat Jit Sugar Mills Co.*, AIR 1952 Punjab 142].

19. Insurance Contract

In case of agents who are merely authorized to take proposals and pass on to the head office of the insurance company, no cause of action arises at the place where the agent gets the proposals. The offer and acceptance are made only at the place of the head office where accrues the cause of action.

In the case of an insurance policy payable at death the place of the death of the assured is a place where the cause of action arises and gives jurisdiction to the Court of that place. In the case of a suit on a fire or burglary insurance, a part of the cause of action arises at the place where the fire occurs or at the place where the burglary takes place.

XII. OBJECT TO JURISDICTION: SECTION 21

- i) No objection as to the place of suing shall be allowed by any appellate or Revisional Court unless such objection was taken in the Court of first instance at the earliest possible opportunity, and, in all cases where issues are settled at or before such settlement, and unless there has been a consequent failure of justice.
- ii) No objection to the competence of a Court with reference to the pecuniary limits of its jurisdiction shall be allowed by any appellate or Revisional Court unless such objection was taken in the Court of first instance at the earliest possible opportunity, and, in all cases

where issues are settled, at or before such settlement, and unless there has been a consequent failure of justice.

- iii) No objection as to the competence of the executing Court with reference to the local limits of its jurisdiction shall be allowed by any appellate or Revisional Court unless such objection was taken in the executing Court at the earliest possible opportunity, and unless there has been a consequent failure of justice.

1. Plea as to Lack of Jurisdiction

New plea as to lack of jurisdiction of civil Court can be raised at any stage of the proceedings as it goes to the root of the matter and therefore it can be raised at any stage. Moreover, the decision of this question does not require any investigation into facts. [*Mohan Lal v. Ratan*, AIR 1971 Rajasthan, 167].

The judgment of a Court without inherent jurisdiction, however, precisely certain and technically correct, is a nullity. Section 21 is an exception to the above rule and effects to cure for all purpose defects due to want of territorial jurisdiction except under the conditions specified in it. In other words, section 21 makes it clear that non-compliance with the provisions of sections 15 to 21 does not render the decree a nullity if objection as to the place of suing has not been taken at the proper time. This section, however, does not cure want of jurisdiction over the subject-matter, nor does it apply to cases of want of pecuniary jurisdiction or exclusive jurisdiction.

All conditions mentioned in the section must be fulfilled before the decree can be set aside, viz. the objection as to place of suing must be taken at the earliest opportunity in the Court of first instance and in cases where issues are settled at or before settlement of issues. Even then the Court of appeal or revision will not allow the objection unless there has been a failure of justice. The question of territorial jurisdiction cannot be raised in the executing Court.

The policy underlying Sections 21 and 99 of the Civil Procedure Code and section 11 of the Suits Valuation Act, 1887 is the same, namely, that when a case has been tried by a Court on the merits and judgment rendered, it should not be liable to be reversed purely on technical grounds, unless it had resulted in failure of justice, and the policy of legislature has been to treat objection to jurisdictions both territorial and pecuniary as technical and not open to consideration by an appellate Court, unless there has been a prejudice on the merits [*Kiran Singh v. Chaman Paswan*, AIR 1954 SC 340].

Where in re: part of a suit two conditions envisaged by Section 21, viz. that objection to jurisdiction was taken in the Court of first instance and that the objection was taken before settlement of issues, were satisfied, but the third condition contemplating failure of justice was not satisfied the Court was not justified in allowing objection to jurisdiction of the Court in appeal [*R.S.D.V. Finance Co. Pvt. Ltd. v. Shri Vallabh Works Ltd.*, AIR 1993 SC 2094].

2. Objection Regarding Territorial Jurisdiction does not go to Root of Jurisdiction

It is well settled that the objection as to local jurisdiction of a Court does not stand on the same footing as an objection to the competence of a Court to try a case. Competence of a Court to try a case goes to the very root of the jurisdiction, and where it is lacking, it is a case of inherent lack of jurisdiction. On the other hand, an objection as to the local jurisdiction of a Court can be waived and this principle has been given a statutory recognition by enactments like section 21 of the Code of Civil Procedure.

In order that an objection to the place of suing may be entertained by an appellate or Revisional Court, the fulfillment of the following conditions is essential: (1) The objection was taken in the Court of first instance. (2) It was taken at the earliest possible opportunity and in cases where issues are settled, at or before such settlement. (3) There has been a consequent failure of justice. All these three conditions must co-exist [*Pathumma v. Kuntalam Kutty*, AIR 1981 SC 1683].

The validity of a decree can be challenged in execution proceeding only on the ground that the Court which passed the decree was lacking in inherent jurisdiction in the sense that

it could not have seized of the case because the subject-matter was wholly foreign to its jurisdiction or that the defendant was dead at the time the suit had been instituted or decree passed, or some such other ground which could have the effect of rendering the Court entirely lacking in jurisdiction in respect of the subject-matter of the suit or over the parties to it. [*Hira Lal Patni v. Kali Nath*, AIR 1982 SC 199].

Section 21 is a rule of prudence as well as a rule of guidance. If, by an act of omission or commission, the defendant having raised the plea as to jurisdiction does not even ask for trial of the issue on such jurisdiction as a preliminary issue, and allows the trial to go on in the usual course, on all the issues, he should be deemed in such circumstances to have waived his objection as to jurisdiction [*M/s. Nanak Chand Shadurain v. The Tinnelvely Tuticorin Electric Supply Co. Ltd.*, AIR 1975 Madras 103].

3. Lack of Jurisdiction and Irregular exercise of Jurisdiction

A marked distinction exists between cases in which Courts lack jurisdiction to try them and where jurisdiction is irregularly exercised by Courts. In the former case the Court ought not to have entered upon trial of the suit; in the latter it could have avoided that, but necessarily not. Competency of a Court to try an action goes to the root of the matter and when such competence is not found, it has no jurisdiction at all to try the case. But objection based on irregular exercise of jurisdiction is a matter which parties can waive. Equally well settled is the proposition that where there are two or more competent Courts which can entertain a suit parties to the concerned transaction can contract to vest jurisdiction in one of such Courts to try disputes. If such a contract is clear, unambiguous, not vague, and explicit, it is not hit by section 28 of the Contract Act. This should not be understood as parties contracting against statute. But this is one of many series of contracts available in mercantile practice and forged in the name of commercial expediency.

However, invariably, the whole question resolves itself into one of fact. If the parties at the inception applied their mind and choose one of the competent Courts as the Court in which disputes have to be adjudicated and decided upon, and if such a consensus is demonstrable in a given case, Courts ought not to be astute to find a different contract between the parties [*M/s. Nanak Chand Shadurain v. The Tinnelvely Tuticorin Electric Supply Co. Ltd.*, AIR 1975 Madras 103].

XIII. BAR ON SUIT TO SET ASIDE DECREE ON OBJECTION AS TO PLACE OF SUING: SECTION 21 A

No suit shall lie challenging the validity of a decree passed in a former suit between the same parties, or between the parties under whom they or any of them claim, litigating under the same title, on any ground based on an objection as to the place of suing.

Explanation. The expression "former suit" means a suit which has been decided prior to the decision in the suit in which the validity of the decree is questioned, whether or not the previously decided suit was instituted prior to the suit in which the validity of such decree is questioned.

XIV. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. What are the general principles governing territorial jurisdiction of Courts for the purpose of filing of suits? [500 Words, RJS-1974]

State, in two of the following cases, in which Court a suit should be filed —

- For redemption of mortgage of immovable property.
- For recovery of compensation in respect of breach of contract relating to goods sent by rail from the place A, when the consignor having booked the goods as "self", sent the railway Receipt to a Bank at the place of destination 'B' with directions to deliver the same to the other party against cash payment.
- For compensation for wrong done to movable property at A, where the plaintiff resides at B and the defendant resides at C.

- iv) For recovery of rent of immovable property situated at A and the owner resides at B.
2. a) Where would the following suits lie?
- i) A suit for recovery of immovable property situated outside the State.
 - ii) A suit for partition of immovable property by a member of a joint Hindu family against other members of the family when a small portion of the immovable property is situated in Rajasthan, but the larger part of it is situated in Calcutta.
- b) Under what circumstance can an objection as to place of suing be allowed by an appellate Court? **[500 Words, RJS-1979]**
3. 'A' is a tradesman in Calcutta. 'B' carries on business in Delhi. 'B' by his agent in Calcutta, buys goods of 'A' and requests 'A' to deliver them to the Railway. 'A' delivers the goods accordingly in Calcutta. At what place 'A' can sue 'B' for the price of the goods? **[15 Words, RJS-1986]**
4. a) State the provisions which govern the determination of the place of suing.
- b) In the following cases determine the place of the case:
- i) A, B and C jointly take a loan from D at Varanasi on a promissory note. D lives in Lucknow. A, B and C reside in Faizabad, Varanasi and Kanpur respectively.
 - ii) A residing in Delhi, publishes a defamatory statement about B in Calcutta. B is resident of Patna. **[600 Words, UPPCS (J)-1987]**
5. Determine the place of suing in the following cases:
- i) A, a resident of Delhi. 'B' a resident of Bangalore and 'C' of Calcutta meet at *Kumbh Mela* in Allahabad. There 'B' and 'C' borrowed Rs. 10,000/- from 'A' and jointly executed a promote and handed it over to 'A'. All of them went back to their respective places but the money was not returned. 'A' wants to file a suit for recovery of his money.
 - ii) Father of 'A' and 'B' had a bungalow at Nainital, one house at Lucknow and Delhi each and two big mango-groves in the district of Sitapur. After the death of the father, 'A' took over the management of the entire property and began appropriating the income. 'B' wants to sue for partition of the property. **[300 Words, UPPCS (J)-1991]**
6. A is tradesman in Calcutta. B carries on business in Delhi. B, by his agent in Calcutta, buys goods of A and requests A to deliver them to a transport company. A delivers the goods accordingly in Calcutta. A wants to sue B for the price of the goods. Decide with reasons, the place of suing. **[200 Words, UPPCS (J)-1991]**
7. Discuss those provisions of Civil Procedure Code which are applied in determination of forum for filing a suit relating to immovable property. **[300 Words, UPPCS (J)-1999]**
8. 'X', 'Y' and 'Z' own a house at Delhi, a shop at Bombay, and a farm at Ganga Nagar in Rajasthan. They made a partition of this property by an agreement at Jaipur. 'X', being aggrieved by this partition, files a suit for challenging this partition in a Court at Delhi. 'Y' and 'Z' raise an objection that the suit should have been filed in a Court at Jaipur. How will the Court decide this issue? **[150 Words, HJS-1998]**
9. 'A' a resident of Delhi, 'B', a resident of Simla and 'C' a resident of Calcutta, meet at *Kumbh Mela* in Allahabad. There A and B borrowed Rs. 10,000/- from C and jointly executed a promote and handed it over to C. All of them went back to their respective places, but money was not returned. C wants to file a suit for recovery of his money. Advise him about the place of suing. **[150 Words, HJS-2000]**
10. State the provisions which govern the determination of the place of suing. **[150 Words, HJS-2000]**
11. The head office of a transport company was situated at Chandigarh and the branch offices at Lucknow, Jaipur and Patna. A dispute arises between X and the company in respect of a transaction made through Lucknow office. X files a suit in respect of this dispute against the company in a Court at Jaipur. How the Court will decide? **[200 Words, HJS-2001]**
12. Respondent has its regd. and head office in Delhi. Agreement was executed between it and the petitioner for execution of certain work at Rihand (U.P.). Certain disputes having arisen between the parties, the same were referred to Arbitrator. Award was filed in the Court at Delhi. One of the objections raised by the respondent was that the Court had no jurisdiction as worksite was at Rihand, work was allocated and executed at

Rihand, agreement was executed at Rihand and breach if any was also committed at Rihand. It was contended that as no part of the cause of action has arisen within territorial jurisdiction of the Court, it will have no territorial jurisdiction to entertain the award made. Contention of the petitioner is that since principal/corporate office of the respondent is situated at Delhi, this Court will have territorial jurisdiction. The question to be decided is whether the Court within whose Jurisdiction principal/regd. office of company is situate, will have jurisdiction to try the suit even if no part of cause of action has arisen within its jurisdiction and the cause of action has accrued at a place where the company has its subordinate office. Decide the point. **[200 Words, DJS-1999]**

13. Determine the place of suing the following cases: **[200 Words, BJE-1991]**

- a) A is a tradesman in Calcutta, B carries on business in Delhi, B though has agent in Calcutta buys goods from A and requests A to deliver them to the Eastern Railways in Calcutta. A delivers goods accordingly in Calcutta. At which place A may sue B for the price of goods?
- b) A residing in Delhi, publishes a defamatory statement about B in Calcutta. B is a resident of Patna.

14. Determine the forum for institution of suit in the following cases: **[200 Words, BJE-1986]**

- a) A, who resides in Patna sells a plot of land situated in Rachi to B who resides at Gaya for Rs. 50,000/-. B has paid half the price to A. A now wishes to file a suit for recovery of the remainder of the amount from the B.
- b) X, brings a suit in Patna in respect of two houses, one situated in Patna and the other at Muzaffarpur. Subsequently the claim regarding the Patna house is withdrawn by X. Can the Patna Court now adjudicate in respect of X, claim regarding the Muzaffarpur house?

15. Decide the place of suing when a decree is sought to be set-aside on the ground of fraud? **[150 Words, BJE-1980]**

16. What is the forum for the following suits: **[300 Words, BJE-1979]**

- a) A suit for restitution of conjugal rights.
- b) A suit for accounts against Agent.
- c) A suit for damages for breach of contract.

17. Where can the suit lie in the following cases? **[600 Words, BJE-1978]**

- a) A resides in Gaya, B in Patna and C in Bhagalpur, A, B and C being together in Patna pass a joint promissory note in favour of D payable in Patna. A breach made.
- b) Defendant, a resident of Jamshedpur publishes a libel in Darbhanga against the plaintiff causing him damage's.
- c) A claims for the sale of B's two mortgaged houses situated at Chapra and Muzaffarpur.

18. X residing in Shimla, beats Y in Delhi. At what place Y may sue X? Advise. **[200 Words, HJS-2003]**

19. X residing in Lucknow publishes in Faizabad statements of defamatory of Y. At what place Y may sue X? Advise. **[200 Words, HJS-2003]**

CHAPTER XII

ESSENTIALS OF SUITS

Dear aspirant,

The essentials of a suit are *four* in number. They are:

1. The opposing parties
2. The cause of action
3. The subject matter
4. The relief claimed

A suit is a proceeding by which an individual pursues that remedy which the law affords. In every suit there must be at least one plaintiff and one defendant. Every suit must contain the cause of action, which refers to the set of circumstances which leads up to a suit, the subject matter of the suit is the right or property claimed in the suit. The Court adjudicates upon the right of the parties with regard to the subject matter in dispute. The relief claimed should be stated specifically in the plaint.

Order 1 deals with the parties to suit and inter alia with the joinder, misjoinder and non-joinder of parties and to some extent with the joinder of causes of action. Under Rule 1, all persons having a common cause of action are entitled to join as plaintiff. Similarly, under Rule 3, several persons may be joined as defendants. Under Rule 2, where it appears to the Court that any joinder of plaintiff may embarrass or delay the trial of the suit, the Court may put the plaintiff to their election or order separate trials or make such order as may be expedient. Similarly, under Rule 3A, the Court may order separate trials of the defendants.

A person is a "necessary party" if the suit cannot be effectively disposed of without him i.e. no order can be effectively made. If the decree cannot be effective without the absent parties, the suit is liable to be dismissed. "Proper Parties" are those parties whose presence enables the Court to adjudicate the matter more effectively and completely. In the case of non-joinder of proper parties, the non-joinder is not fatal to the suit.

In cases of suits on contracts, it is specifically provided that the plaintiff may at his option join as parties to the same suit, all or any of the persons severally or jointly and severally liable on any one contract, including parties to bills of exchange, hundis and promissory notes (Rule 6). If the plaintiff is in doubt as to the person from whom he is entitled to obtain redress, he may join two or more defendants (Rule 7). Rules 6 and 7 are instances of cases where certain persons are made defendants, although no right to any relief is alleged against them.

Rule 4 of Order 1 lays down that if several persons joined together as plaintiffs in a suit, but it is found that only some of them are entitled to the relief claimed, a judgment may be given in favour of such persons only, without amendment of the proceedings. Similarly is provided for in respect of defendants.

Where there are more plaintiffs than one and they are joined together in one suit, but the right to relief alleged to exist in each plaintiff does not arise out of the same transaction and if separate suits were brought no common question of law or fact would arise, it is a case of misjoinder of plaintiffs. Misjoinder of defendants takes place when two or more persons are joined as defendants in one suit, but the right to relief alleged to exist against such of them does not arise from the same act or transaction and there is no common question of law or fact. Order 1,

Rule 9 provides that no suit is liable to be defeated by reason of non-joinder or mis-joinder of parties.

Misjoinder of parties and causes of action in a suit is called multifarious. Where in a suit there are two or more defendants and causes of action, the suit will be bad for misjoinder of defendants and causes of action, if different causes of action are joined against different defendants separately.

Rule 10 of Order 1 lays down that the Court may add a party to the suit or allow the striking out of improper parties. If a suit is instituted in the name of a wrong person as a plaintiff, or there is a doubt as to the right plaintiff, the Court may allow the substitution or addition of the plaintiff, if it was a bona fide mistake. Further, if a defendant is added, unless the Court otherwise directs, the plaint must be amended.

A suit filed by one or more persons on behalf of themselves and others having the "same interest" in the suit is called a representative suit (Rule 8, Order 1). Following conditions must be fulfilled before filing a representative suit (Rule 8, Order 1). Following conditions must be fulfilled before filing a representative suit:

1. The parties must be numerous;
2. They must have the same interest in the suit;
3. The permission must have been granted by the Court;
4. Notice must have been issued to the parties whom it is proposed to represent in the suit.

The provisions of Explanation VI to Section 11 (res judicata) apply to such a suit. The Court must give the notice, before any part of the claim in any such suit is abandoned, or before such a suit is withdrawn, or before any agreement, compromise or agreement is recorded in the suit. Where a suit is brought by or against persons in representative capacity the fact should be stated, not only in the plaint but also in the title of the suit viz:

A B on behalf of himself and other creditors of X.Y.	
_____	Plaintiff
Versus	
X.Y.	Defendant

The rules relating to frame of suit is contained in Order 2, Rule 1 of Order 2 states that every suit shall, as far as practicable, be framed so as to afford ground for final decision upon the subjects in dispute and to prevent further litigation concerning them. Where there is a common question of law and fact separate suits are neither necessary nor desirable. Order 2, Rule 2 lays down that every suit shall include the whole of the claim which the plaintiff is entitled to make in respect of the cause of action; but a plaintiff may relinquish any portion of his claim in order to bring the suit within the jurisdiction of any Court. The object of the rule is clearly to avoid splitting up of claims or reliefs and to prevent multiplicity of suits.

The doctrine of res judicata differs from the rule embodied in Order 2, Rule 2, in that the former places emphasis on the plaintiff's duty to exhaust all available ground in support of his claim all relief emanating from the same cause of action. Secondly, while the former (res judicata) refers to both the parties, plaintiff as well as defendant, and precludes a suit as well as a defence, the latter refers only to a plaintiff and bars a suit [Vide: *Inacio Martins v. Narayan Hari*, AIR 1993 SC].

This Chapter is one of the important topics for short notes. In RJS, HJS, DJS, BJE, UPPCS (J) and MPCJ, many short notes are asked from this Chapter. Following topics are important in this Chapter:

- i) Essentials of Suit.
- ii) Necessary and Proper parties.
- iii) Representative suit.
- iv) Non-joinder and mis-joinder of parties.
- v) Multifariousness.
- vi) Cause of action, and
- vii) Misjoinder of cause of action.

Wishing you all the best,

Yours Sincerely,

RAHUL

Rahul

CHAPTER XII
ESSENTIALS OF SUIT
SYNOPSIS

I. Introduction

II. Parties to Suit: Order 1

1. Who may be joined as Plaintiffs?
2. Who may be joined as Defendants?
3. Representative Suits: [Order 1, Rule 8]
 - a) Representative Suit
 - b) Conditions for Representative Suits
 - c) Object of the Rule
 - d) Title of Suit
4. Misjoinder, Non-joinder and Multifarious Suits
 - a) Misjoinder of Plaintiffs
 - b) Misjoinder of Defendants
 - c) Misjoinder of causes of action
 - i) *Misjoinder of Plaintiff and causes of action*
 - ii) *Multifariousness*
 - iii) *Non joinder*
5. Necessary Parties and Proper Parties
6. Miscellaneous Provisions (Order 1)

III. Subject matter in Dispute

IV. Cause of Action

V. Relief claimed

VI. Frame of Suit: Order 2

1. Illustration to Rule 2
2. Scope and object of the rule
3. Obligation and collateral security
4. Omission to sue for all reliefs
5. Set-off
6. Joinder of causes of action
7. Remedy in case of misjoinder
8. Claims by or against executor, administrator or heir
9. Power of Court to order separate trials
10. Objections as to misjoinder

VII. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XII

ESSENTIALS OF SUIT

I. INTRODUCTION

There are *four* essentials of a suit, namely

- i) the opposing parties
- ii) the subject matter in dispute
- iii) the cause of action, and
- iv) the demand of relief. [Sir Lawrence Jenkins, C.J. in *Krishnappa v. Shivappa* (1909) 31 Bombay 393 398]

Section 26 to 35B and orders 1 to 20 deals with the procedure relating to suits. Section 26 and Order 4 provide for institution of suits. Order 1 deal with parties to suit. Order 2 lays down rules relating to frame of suit, splitting and joinder of claims, joinder of causes of action and objections as to misjoinder.

II. PARTIES TO SUIT: ORDER 1

The following five provisions are important under Order 1:

1. Who may be joined as plaintiffs
2. Who may be joined as defendants
3. Representative suits
4. Misjoinder, non-joinder and multifarious suits
5. Miscellaneous provisions.

1. Who may be joined as Plaintiffs?

Order 1, R.1 provides that all persons may be joined in one suit as plaintiff, if –

- a) any right of relief in respect of, arising out of, the same act or transaction (or series of act or transactions) is alleged to exist in such person, whether jointly, severally or in the alternative; and
- b) if such persons brought separate suit, any common question of law or fact would arise.

Thus, suppose A publishes a book bearing the title "*The Oxford and Cambridge Publication*" thereby creating an impression that it is a publication of the Oxford and Cambridge Universities. Both the universities may join as plaintiffs in one suit for an injunction to restrain from using the title as the publications and the impression created thereby are common questions of facts arising out of the same transaction *Universities of Oxford and Cambridge v. G. Gill & Sons* (1899) 1 Ch. 55.

R.2 of O.1 then provides that if it appears to the Court that any joinder of plaintiffs may embarrass or defy the trial of the suit, the Court may put the plaintiffs to their election, or order separate trials or make such other orders, as it may deem expedient.

Moreover, if such several persons join together as plaintiffs in a suit, but it is found that only some of them are entitled to the relief claimed, a Judgment may be given in favour of such persons only, without any amendment of the proceedings (R.4, O.1).

2. Who may be joined as Defendants?

R.3 of O.1, which deals with *joinder of defendants*, provides that all persons may be joined in one suit as defendants, if –

- a) any right to relief in respect of, or arising out of, the same *act or transaction* (or series of acts or transactions), is alleged to exist against such persons, whether jointly, severally or in the alternative, and

- b) if separate suits were brought against such persons, *any common question of law or fact* would arise.

If two or more persons are joined as defendants in one suit, in a case where the aforesaid two conditions do *not exist*, the result would be a *misjoinder of defendants*; (which is discussed later).

Bullock v. L.G.O. Co. (1907) 1 K.B. 264 – B, while riding in an omnibus belonging to L, was injured as a result of a collision between the bus and a cart belonging to C. B sued L and C for damages for personal injury, charging the defendants jointly with joint negligence, and alternatively with separate negligence against each of them. In these circumstances, the Court *held* that the suit was *not bad* for misjoinder of defendants, as the injury to the plaintiff arose from the *same transaction*, and it involved a *common question of fact*.

It is not necessary that all the defendants should be *interested in all* the reliefs, or that the *liability of all* the defendants should be the same. Nor is it necessary that the evidence as regards each of the defendants should be the *same*. It may be noted that an additional power to make certain persons defendants is expressly given by rules 6 and 7 (below), although no right to any relief is alleged against them.

R. 3-A then provides that if it appears to the Court that any joinder of defendants may embarrass or delay the trial of the suit, the Court may order *separate trials*, or make such *other order* as may be expedient in the interests of justice.

Moreover, if several persons are joined together as defendants as it is found that only some of them are liable, a judgment may be given against such persons only, without any amendment of the proceedings. (R.4)

Further, when there are more defendants than one, it is *not necessary* that *every* defendant should be interested in *all* the reliefs claims in the suit. (R.5)

In cases of suits on contracts, it is specifically provided that the plaintiff may, at *his* option, join as parties to the *same suit* *all or any* of the persons *severally*, or jointly and severally, liable on any *one contract*, including parties to bills of exchange; *hundis* and promissory notes. (R.6)

This rule is applicable only to suits on *contracts*, including bills of exchange, *hundis* and promissory notes. Moreover, the rule applies only where the defendants are liable on the *same contract*. It does *not* apply where defendants are liable on *different* contracts. Under this Rule, the drawer and the acceptor of a bill of exchange can be joined as co-defendants in a suit brought by the holder of the bill.

R.7 then provides that, if the plaintiff is in *doubt* as to the *person* from whom he is entitled to obtain redress, he may join *two or more* defendants, in order that the question as to *which* of the defendants is liable, and to *what extent*, may be determined as between all the parties.

Thus, the plaintiff can sue two persons as defendants to recover from either the *one* or the *other*, a sum of money by way of rent for a godown when he is in doubt as to *which* of the two owes the rent to him.

3. Representative Suits: [Order 1, Rule 8]

R. 8 of O.1 provides that where there are numerous persons having the *same interests* in *one suit* –

- i) one or more of such persons may, with the permission of the Court, sue or be sued, or may defend such suit, on behalf of or for the benefit of, all the persons so interested;
- ii) the Court may direct that one or more of such persons may sue or be sued, or may defend such suit, on behalf of, or for the benefit of, all the persons so interested.

When such permission or direction is given, the Court must, at the plaintiff's expense, give notice of the institution of the suit to *all* persons so interested, either by *personal service*, or where, by reason of the number of persons or any other cause, such service is not reasonable, by *public advertisement*, as the Court in each case may direct.

Notice, in the manner specified above, and must be given by the Court to all persons so interested –

- a) before any part of the claim in any such suit is abandoned; or
- b) before such a suit is withdrawn; or
- c) before any compromise or agreement is recorded in any such suit.

If, in any suit, person suing or defending does *not* proceed with due diligence, the Court can substitute in his place, any other person having the same interest in the suit.

It is to be noted that any decree passed in such a suit is binding on *all* persons on whose behalf, or for whose benefit, the suit is instituted, or defended, as the case may be.

a) Representative Suit

A suit filed by one or more persons under this rule on behalf of themselves and others having the same interest in the suit is called a *representative suit*. The provisions of Explanation VI to Section 11 (*res judicata*) apply to such a suit. But, if the suit is one under O.1, r.8, the provisions of that rule must be strictly complied with.

b) Conditions for Representative Suits

In order that r.8 may apply, the following *four conditions* must be satisfied:

- i) The parties must be *numerous*.
- ii) They must have the *same interest* in the suit. The interest need *not* be a *proprietary* one. Thus, the disciples of a *mutt* can sue for setting aside an improper alienation of the *mutt* properties and for restoration thereof to the head of the *mutt*. But an interest merely as a *member of the public* is *not sufficient interest* for the purposes of this rule.
- iii) The Court's *permission* under the rule must be *obtained*.
- iv) Notice must be given to the parties whom it is proposed to represent in the suit.

c) Object of the Rule

This rule is an *exception to the general rule* that *all persons* interested in a suit ought to be made parties thereto. Convenience requires that in suits where there is a *community of interest* amongst a large number of persons, a *few* should be allowed to *represent the whole* so that trouble and expense may be saved. Thus, a suit to set aside a transfer of immovable property on the ground that it is meant to defraud the creditors ~~of the transferor~~ must be brought by or on behalf of *all* the creditors. ~~Such a suit cannot~~ be brought by *someone* only of the creditors for *their* benefit alone.

d) Title of Suit

Where a suit is brought by or against persons in *representative capacity*, the fact should be stated, not only in the *plaint* [see (O.7, r.4)], but also in the *title* of the suit. In other words, when the plaintiff sues or the defendant is sued, on behalf of himself and others under this rule, that fact should be stated in the title of the suit, and not merely in the *plaint*. The *title* of the suit where the plaintiff sues in a representative character is as follows:

A.B., on behalf of himself and all other
creditors of X.Y.

..... Plaintiff

Versus

X.Y.

..... Defendant

4. Misjoinder, Non-joinder and Multifarious Suits

R.9 of O.1 provides that no suit is liable to be defeated by reason of *misjoinder* or *non-joinder* of parties. In such cases, the Court may deal with the matter in controversy as regards the rights and interests of the parties actually before it. However, this rule does *not* apply to cases where there is a *non-joinder of a necessary party*.

The joinder of any person as a party to suit contrary to the provisions of the Code is called *misjoinder*. Misjoinder may be of *three kinds*:

a) Misjoinder of Plaintiffs

Where there are more plaintiffs than one, the provisions of rule 1 apply. It provides in effect that two or more persons may be joined as plaintiffs in one suit, if the right to relief alleged to exist in each plaintiff arises from the *same act or transaction* and there is a *common question of law or fact*, if two or more persons are joined as plaintiffs in one suit in a case not covered by O.1, r.1, (see above), the result is a *misjoinder of plaintiffs*.

The *objection* on the ground of misjoinder of plaintiffs should be taken at the *earliest possible opportunity*; if not, it will be *deemed* to have been waived (O.2, r.13). Where such objection is taken, and the Court finds that it is well-founded, the Court should *not* dismiss the suit (O.1, r.9), but the plaint may be *amended* (O. 6, r.17), by *striking out* the names of such persons as have been improperly joined as plaintiffs (O. 1, r. 10), and the suit may then be proceeded with (O.1, r.9). In other words, an objection on the ground of misjoinder of plaintiffs is *not fatal* to the suit.

b) Misjoinder of Defendants

Where there are more defendants than one, the provisions of rule 3 of this Order apply. This rule provides that two or more persons may be joined as defendants in one suit if the right to relief alleged to exist *against each of them* arises from the *same act or transaction*, and there is a *common question of law or fact*. If two or more persons are joined as defendants in one suit in a case not covered by O. 1, r.3 (seen above), and the result is a *misjoinder of defendants*.

The *objection* on the ground of misjoinder should be taken at the *earliest possible opportunity*; if not, it will be *deemed* to have been waived (O.1, r. 13). Where such objection is taken, and the Court finds that it is well-founded, the Court should *not* dismiss the suit (O.1, r.9), but the plaint may be amended (O.6, r.17) by striking out the names of such persons as have not been properly joined as defendants (O.1, r.10), and the suit may then be proceeded with (O.2, r.9). An objection on the ground of misjoinder of defendants is also *not fatal* to the suit.

c) Misjoinder of causes of Action

A misjoinder of causes of action may be coupled with a misjoinder of plaintiffs, or it may be coupled with a misjoinder of defendants. There may again be a misjoinder of claims founded on several causes of action. Accordingly, this type of misjoinder may be considered under the following *three heads*:

i) Misjoinder of Plaintiff and causes of action

Where, in a suit, there are *two or more plaintiffs and two or more causes of action*, the plaintiffs should be *jointly interested* in *all* the causes of action. If that is *not so*, the suit will be bad on the ground of misjoinder of plaintiffs and causes of action. The *objection* on the ground of misjoinder of plaintiffs and causes of action should be taken at the *earliest possible opportunity*. (O.2, r.7)

ii) Multifariousness

Where, in a suit, there are *two or more defendants and two or more causes of action*, the suit will be bad for misjoinder of defendants and causes of action, if *different causes of action* are joined against different defendants separately. Such a misjoinder is technically called *multifariousness*.

Under O.2, r.7 all objections to the effect that the suit is multifarious must be taken at the *earliest possible opportunity*, and in all cases where issues are settled, *at or before* such settlement. *Unless*, of course, the ground of objection has arisen subsequently. If such objection is *not so* taken, it will be *deemed* to have been waived.

The Allahabad High Court has *held* that if such an objection is taken up in the written statement of the Defendant, but is not pressed, it *cannot* be taken again at a later stage. [*Mst. Ulfat v. Zubaida Khatoon, AIR 1955 All, 361*]

In this connection, it is also relevant to note the provisions of Section 99 of the Code, which lay down that no decree can be reversed or varied on account of any

misjoinder of causes of action *not* affecting the merits of the case or the jurisdiction of the Court.

Under the old Code (of 1882), it was specifically provided that, in such cases, the plaint could be returned to the Plaintiff for amendment at any time before the issues were settled. If the plaint was then *not* amended, it could be rejected by the Court. These specific provisions have *not* been re-enacted on the present Code. However, *even under the present Code*, the Court can allow an amendment (under O.6) if the Plaintiff applies for it, or if the Defendant applies to the Court to call upon the Plaintiff to do so.

Under the present Code (as under the old one), the Court can direct the Plaintiff to elect which Defendants he will proceed against, and then allow all consequential amendments to be made in the plaint within a time prescribed by the Court.

The High Courts of Kerala, Punjab and Rajasthan have enacted a specific rule (O.2, r.8) to provide that in cases of multifarious suits, if an objection is duly taken and allowed by the Court, the Plaintiff is to be permitted to select the cause of action with which he will proceed, and the plaint is to be amended by striking out the remaining causes of action.

iii) Non-joinder

Where a person who is a necessary party to suit is *not* joined as a party to the suit, the case is one of *non-joinder*. A suit should *not* be dismissed on the ground of non-joinder. The objection on this ground should be taken before the first hearing (O.1, r.13), and the plaint may be amended by addition of the omitted party, either as Plaintiff or as Defendant, bearing in mind that no person can be added as a plaintiff without his consent, though he may be added as Defendant without such consent.

R. 13 then provides that all objections as to non-joinder or misjoinder of parties must be taken at the *earliest possible opportunity*, and before the settlement of issues, and any such objection *not* so taken is to be deemed to have been waived.

When such an objection is taken, and the Court upholds it, the suit is *not* to be dismissed by reason of such misjoinder or non-joinder of parties (r.9); rather, the Court may, in such suits, deal with the matter in controversy as regard the rights and interests of the parties actually before it. The only exception to the rule is *non-joinder of a necessary party*.

5. Necessary Parties and Proper Parties

Necessary parties are those parties who *ought to have been joined* in a suit, i.e. parties necessary to the constitution of the suit, *without whom no decree can be passed at all*. *Proper parties*, on the other hand, are those parties whose presence enables the Court to *adjudicate the matter more effectively and completely*.

As to when it can be said that a defendant is a *necessary party* will depend on the facts of a particular case. In general, it can be said that a *person is a necessary party if the suit cannot be effectively disposed of without his presence*.

Under O.1 R. 10 (2), the Court may order that a person be added to a suit (-whether as a plaintiff or a defendant-), in the following two cases:

- when he *ought to have joined* (as plaintiff or defendant), and is *not* so joined (i.e. when he is a *necessary party*); and
- when, his presence before the Court would enable the Court to *effectually and completely adjudicate upon and settle all the questions involved in the suit* (i.e. when he is a *proper party*).

Thus, for an effectual and complete adjudication of questions arising in the suit, a third party would be added by the Court if he is a *proper party* - *although he may not be a necessary party* - to such a suit [*Knanaya Catholic Congress v. Biju Uthup, AIR 1990 Kerala 239*].

It may be noted that a Court can add a party *only in the two cases (a) and (b) referred to above*. The Court has *no jurisdiction to add a party in any other case*. Moreover, parties cannot be added so as to introduce a totally new cause of action.

6. Miscellaneous Provisions (Order 1)

Order 1 contains other miscellaneous provisions as regards *parties to suits*, which may be summarised as under:

- a) while trying a suit, the Court may allow a person (or a body of persons) to present his (or its) opinion, and take such part in the suit proceedings as the Court may specify, if it is satisfied that such a person (or body of persons) is interested in any question of law which is directly and substantially in issue in the suit *and that it is necessary to do so in the public interest* (R. 8A).
- b) if a suit is instituted in the name of a wrong person as the Plaintiff, or if it is doubtful if the suit is instituted in the name of the right Plaintiff, the Court may allow any other person to be substituted or added as the Plaintiff, if it is shown that there was a *bona fide* mistake. [R. 10(1)]
- c) at any stage of the suit, the Court may order that the name of any party who is improperly joined be *struck out*, and the name of any person who ought to have been joined be added, to the suit. [R. 10(2)]
- d) if a Defendant is added *unless* the Court otherwise directs, the Plaint must be amended, and the amended copy of the Plaint and Summons *must* be served on the new Defendant, and if the Court deems fit, also on the original Defendant. [R. 10(4)]

In this connection, it should be remembered that the Limitation Act provides that when, after the institution of a suit, a party is added as a plaintiff or a defendant, the date of *addition* is to be considered as regards that party as the date of *institution* of the suit. It has been *held* that where necessary parties are not joined *within* the period of limitation, the suit must be *dismissed*.

- e) the Court is also empowered to request any pleader to address it as to any interest which is likely to be affected by its decision on any matter in issue in any suit or proceedings if the party having the interest which is likely to be so affected is *not* represented by any pleader.
- f) the Court may give the conduct of a suit to such person as it may deem proper. (R. 11)

where there are more Plaintiffs than one, any one or more of them may be authorized in writing by the others to appear, plead or act for such other parties in any proceeding. The same rule applies in a case where there are more Defendants than one. (R. 12)

III. SUBJECT MATTER IN DISPUTE

The subject matter is the second essential element of a suit. Subject matter is the right or property claimed in a suit. The Court adjudicates upon the rights of the parties with regard to the subject matter in dispute.

IV. CAUSE OF ACTION

It is the third essential element of a suit. Cause of action is a fact or combination of facts which gives rise to right to sue. [Section 20 and Order 7, Rule 1 (e), CPC, 1908]

Section 17 of the Court Fees Act, 1870 defines the cause of action as follows:

"Cause of action includes the right which the plaintiff asserts and the infringement of that right by the defendant. Where the plaintiff's right is infringed by more persons than one and by different acts done separately by each of them, the plaintiff has a separate cause of action against each of these persons."

Cause of action may be described as "a bundle of essential facts, which it is necessary for the plaintiff to prove before he can succeed." A cause of action is the foundation of a suit. It must be antecedent to the institution of a suit and on the basis of it the suit must have been

filed. If a plaint does not disclose a cause of action, a Court will reject such plaint. (Justice C. K. Thakkar, Civil Procedure, P. 27]

V. RELIEF CLAIMED

Every suit shall be instituted by presenting a plaint to Court or any officer appointed in this behalf. Every plaint shall comply with Rules contained in Orders 6 and 7 as far as they are applicable. The plaint shall contain the following particulars:

- a) Name of the Court in which suit is brought.
- b) Name, description and place of residence of the plaintiff.
- c) Name, description and place of residence of the defendant, so far as they can be ascertained.
- d) Facts constituting cause of action and when it arose.
- e) Valuation of subject-matter for the purposes of jurisdiction and Court fees.
- f) Reliefs claimed.

Every plaint shall state specifically the reliefs which the plaintiff claims.

In suit is for recovery of money, precise amount must be stated unless suit itself is for accounts or mesne profits or debts which cannot be estimated. In such cases, approximate amount must be mentioned. Reliefs can be claimed simultaneously or in the alternative. In fact, it is convenient to file a suit for specific performance and in the alternative, for damages. Where the subject-matter of suit is an immovable property, there must be proper description of such property sufficient to identify it and whenever applicable, its boundaries and number in revenue records must be provided.

Ubi jus, ibi remedium, that is to say, where there is a right, there is a remedy. The word *jus* has reference to the cause of action; the word *remedium* to relief. The nature of the relief or remedy to which a plaintiff is entitled depends upon the nature of his rights or his cause of action.

Reliefs in suits on contracts

In suits on contracts, there are three remedies open to the party aggrieved according to the nature of the contract, namely:

- a) Specific performance;
- b) Damages; and
- c) Injunction.

As a general rule, it may be stated that where there is a breach of a contract to transfer immovable property, the plaintiff is entitled to specific performance of the contract, but where the breach is of a contract to transfer movable property, the plaintiff is not entitled to specific performance, but to damages only. Thus, if I agree to sell you my house for Rs. 400000/- and I fail to transfer my house to you, you are entitled to a decree directing me to convey the house to you on your paying the purchase money to me. But if I agree to sell you 100 maunds of sugar at the rate of Rs. 3 per maund on a certain day and fail to deliver similar quality in the market, and if you have to pay more for it, say, at the rate of Rs. 4 per maund, you may claim from me as damages Rs. 100, being the difference between the contract price and the market price.

Injunction also is one of the remedies in the case of certain contracts. Thus, if I let you may land on condition that you should not dig sand or gravel thereout, and you threaten to do so, I am entitled to sue you for an injunction to restrain you from digging in violation of your contract.

Reliefs in suits for torts

Where a tort has been committed, the remedy open to the party aggrieved is damages. Where a tort is about to be committed the appropriate remedy is injunction. Thus, if you are about to publish statements defamatory of me, I may sue you for an injunction to restrain you from publishing them. But if you have already published them, I may sue you for damages.

Reliefs in suits on mortgage

In suits on mortgage, there is one remedy open to the mortgagor, namely, redemption, and there are two remedies open to the mortgagee, namely, sale or foreclosure, according to the nature of the mortgage.

Illustration

A borrows Rs. 5000 from B. It is agreed that A should repay the amount with interest on 1st January 2003. As security for the debt A transfers the house to B, subject to a proviso that he (B) will re-transfer the house to A upon payment of the mortgage-money on 1st January 2003. If A tenders the mortgage-money to B on or after the due date, but B refuses to accept it alleging that more is due to him, and refuses also to transfer the house to A, A may sue B for redemption of the mortgage. On the other hand, if A fails to repay the mortgage-money to B on the due date, B may sue A either for foreclosure of the mortgage or for sale of the house. The effect of a final decree for foreclosure in favour of B is to debar A from all right to redeem the mortgaged property.

The reliefs claimed in a plaint are called prayers; they are contained in the last paragraph of the plaint.

VI. FRAME OF SUIT: ORDER 2

As far as practicable, every suit should be framed so as to afford a ground for a final decision on the subjects in dispute, and to prevent further litigation on such subjects. (O.2, r.1)

The object of this rule is that all matters in dispute between the parties should be disposed of in the same suit. The penalty for non-compliance with the rule is provided partly by Section 11, Explanation IV, and partly by O.2, r.2. Explanation IV of Section 11 provides that any matter which might and ought to have been made a ground of attack or of defence in a former suit will be deemed to have been a matter directly and substantially in issue in such suit, and will not be allowed to be re-opened in a subsequent suit between the same parties, although it was not actually adjudicated upon in the former suit. O.2, r.2 provides that every suit should include the whole of the claim which the plaintiff is entitled to make in respect of the same cause of action, and that if he omits to include any portion of such claim, he shall not be entitled to sue again in respect of it.

R.2 (of O.2) lays down that every suit must include the whole claim which the plaintiff is entitled to make in respect of that cause of action. It is of course, open to him to relinquish any portion of his claim so as to bring the suit within the jurisdiction of a particular Court. However, when he does so, he cannot afterwards file a suit in respect of the portion of the claim so relinquished. The same rule applies if the plaintiff, for any reason, omits to sue in respect of a part of his claim. Likewise, if a person is entitled to more than one relief in respect of the same cause of action, he may sue for all or any of such reliefs. But, if he omits, without the leave of the Court, to sue for all such relief, he cannot afterwards sue for any relief so omitted.

The Explanation to r.2 clarifies that, for the purpose of r.2, an obligation and a collateral security for its performance, and successive claims arising under the same obligation, are to be deemed respectively to constitute one cause of action.

1. Illustration to Rule 2

A lets a house to B at a yearly rent of Rs. 1200/-. The rent for the whole of the years 1998, 1999 and 2000 is due and unpaid. A sues B in 2001, for the rent due in 1999. A cannot afterwards sue B for the rent in respect of 1998 and 2000.

2. Scope and object of the rule

O.2, r.2 is based on the principle that the defendant should not be twice vexed for one and the same cause. The rule is directed against *two evils* – the splitting of claim and the splitting of remedies. To make the rule applicable, *two conditions* must be satisfied, namely, *firstly*, the previous and the present suits must arise out of the same cause of action, and *secondly*, they must be between the same parties.

3. Obligation and collateral security

Under the Explanation, an obligation and a collateral security for its performance constitute only one cause of action.

Successive claims arising under the same obligation— Under the same Explanation, successive claims arising under the same obligation constitute a single cause of action. Thus, in the case of suit on instalment bonds, the plaintiff should claim the amount of all the instalments in arrears at the same time. Otherwise, he will be barred from suing for the instalments omitted to be claimed. So also, where rent for several successive years is in arrears, but the plaintiff sues only for rent of some years, and omits to sue for the rents due and in arrears for the other years, he cannot subsequently sue for such omitted rents.

4. Omission to sue for all reliefs

If a plaintiff omits, without the leave of the Court, to sue for any of the reliefs, he cannot afterwards sue for relief so omitted by him. There are, however, two exceptions to this rule:

- i) Where the right to relief in respect of which a further suit is brought did not exist at the date of the former suit, the second suit is not barred.
- ii) By virtue of the express provisions of O.34, r.14, where a mortgagee has asked for and obtained only a personal decree against the mortgagor for the mortgage amount, he may, notwithstanding O.2, r.2, subsequently institute a suit for sale in enforcement of the mortgage.

5. Set-off

A defendant who claims a set-off under O.8, r.6, is in the position of a plaintiff [O.8, R.6(2)], and if omits any portion of the claim which he is entitled to make by way of set-off, he cannot subsequently sue in respect of such portion of the claim.

6. Joinder of causes of action

Rules 3 and 4 of O.2 deal with joinder of causes of action, and provide as follows:

A plaintiff can, in the same suit against the same Defendant, (or the same defendants jointly) unite several causes of action. Likewise, if several plaintiffs have causes of action in which they are jointly interested against the same defendant (or the same defendants jointly) they may unite such causes of action in the same suit. However, in such cases, the jurisdiction of the Court as regards the suit will depend on the amount or value of the aggregate subject matters at the date of instituting the suit. (R.3)

7. Remedy in case of misjoinder

Under Section 99 and Order 2, Rule 7, a misjoinder is regarded only as an irregularity, and the suit will not be dismissed on the mere ground of misjoinder of causes of action.

However, as far as suits for recovery of immovable property are concerned, no cause of action can be joined without the leave of the Court, except in the following three cases:

- i) claims for mesne profits or arrears of rent in respect of the property claimed or any part thereof;
- ii) claim for damages for breach of any contract under which the property or any part thereof is held; and
- iii) claims in which the relief sought is based on the same cause of action.

However, a party in a suit for foreclosure or redemption may ask the Court to be put into possession of the mortgaged property.

8. Claims by or against executor, administrator or heir

Under R.5, no claim by or against an executor, administrator or heir as such, can be joined with claims by or against him personally, unless the last mentioned claims are alleged to arise with reference to the estate in respect of which the plaintiff or defendant sues or is used as executor, administrator or heir, or are such as he was entitled to, or liable for, jointly with the deceased person whom he represents.

Thus, this rule prohibits the joining in one suit of a claim by or against an executor, administrator or heir as such i.e., in his representative capacity, except when —

- a) the claims by or against him in his personal capacity are alleged to arise with reference to the estate he represents; or
- b) the claims are such that he was entitled to or liable for them jointly with the deceased whom he represents.

9. Power of Court to order separate trials

If it appears to the Court that the joinder of causes of action in one suit may embarrass or delay the trial, or is otherwise inconvenient, the Court may order separate trials, or make such other order as may be expedient in the interests of justice. (R.6)

10. Objections as to Misjoinder

Rule 7 provides that all objections on the ground of misjoinder of causes of action must be taken at the earliest possible opportunity and, in all cases where issues are settled, at or before such settlement, unless the ground of objection has subsequently arisen, and any such objection not so taken is to be deemed to have been waived.

The plea of misjoinder cannot be taken up for the first time in appeal or in second appeal. The defence of misjoinder is not a ground for reversing a decree. Section 99 provides that no decree can be varied or reversed on account of misjoinder of causes of action, unless the defect has affected the merits of the case or the jurisdiction of the Court.

VII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. What remedies are available to the plaintiff when there are numerous persons having the same interest in the subject matter of the suit? [100 Words, RJS-1974]
2. Short Notes: Necessary and Proper Parties [100 Words, BJE-1984]
3. A owned some land which B was cultivating as a tenant. A had four sons C, D, E and F. On A's death, the land was sold by C, D, E and G, son of the pre-deceased son F, to H vide registered sale deed dated 12-2-68. H filed a suit for recovery of possession against B. B contested the suit on the ground *inter alia* that there are other co-owners of the property and since all the co-owners have not joined in filing the suit, the suit is bad for non-joinder of necessary parties. In the written statement, he also gave the pedigree table of A but did not lead any evidence in this regard. The revenues record also did not show that there was any other legal heir of A except C, D, E and G at the time of sale. So H contended that he is the sole owner and suit is not bad for non-joinder of other co-owner. Decide the question of non-joinder of parties by a reasoned order. [250 Words, DJS-1996]
4. Write a short note on "Essentials of a suit". [150 words, HJS - 2003]
5. a) What do you understand by representative suit? By whom and under what circumstances can such suit be brought?
b) A, who was treasurer of an association, misappropriates the funds of the association. By a resolution of the association 'B', a member, was authorised to recover the amount misappropriated. Can 'B' successfully sue 'A'? Give reasons for your answer.
c) 'A', 'B' and 'C', three persons were chosen by a community to represent them in a suit against 'K', but 'X', 'Y' and 'Z' other members of the same community supported the defendant 'K'. Does it affect the representative character of the suit? Give reasons of your answer. [600 Words, UPPCS (J)-1983]
6. What is a representative suit? By whom and under what circumstances can such a suit be filed? [200 Words, UPPCS (J)-1985, HJS-2000]
7. What do you understand by multifariousness? [200 Words, RJS-1969]
8. Short Notes: Misjoinder of causes of action? [150 Words, RJS-1969]
9. A plaintiff brings a suit on the basis of several course of action against the defendant. What should the Court do in such a cases? [150 Words, RJS-1969]
10. Short Notes: Cause of action? [150 Words, RJS-1971]

11. In what cases a plaintiff is precluded from filing a fresh suit in respect of the same case of action? **[150 Words, RJS-1974]**
12. Discuss why every suit shall as far as possible, be framed so as to afford ground for final decision upon the subjects in dispute. What is the penalty for non-compliance of the above rule? What is the effect if the plaintiff omits to sue in respect of, or intentionally relinquishes, any proportion of the claim? **[500 Words, RJS-1977]**
13. What is case of action? **[20 Words, RJS-1992]**
14. What do you understand by cause of action? **[250 Words, BJE-1979, 1986]**
15. What remedies are available to a plaintiff whose suit is dismissed for default? Discuss each remedy? **[200 Words, RJS-1974]**
16. Discuss why every suit shall as far as possible, be framed so as to afford ground for final decision upon the subjects in dispute. What is the penalty for non-compliance of the above rule? What is the effect if the plaintiff omits to sue in respect of, or intentionally relinquishes, any portion of the claim? **[300 words, RJS - 1977]**

CHAPTER XIII
PLEADINGS
[ORDER VI]

Dear aspirant,

The term "*pleading*" means a plaint or a written statement. Thus, an application to sue as pauper is not a pleading as it becomes a plaint only after the application is granted. A defendant's pleading is his written statement.

In **Ganesh Trading Co. v. Moji Ram, (AIR 1978 SC)**, the Supreme Court held that "provisions relating to pleadings in civil cases are meant to give to each side intimation of the case of the other so that it may be met, to enable Courts to determine what is really at issue between parties".

Order 6 lays down general rules governing pleadings in a Court:

- i) Every pleading must state affirmatively the material facts (facts *probanda*) as the basis of claim or defence, but not the evidence by which they are to be proved.
- ii) All necessary particulars must be stated in the pleading.
- iii) Particulars are especially important in fraud, misrepresentation, breach of trust, willful default or undue influence.
- iv) The performance of condition precedent need not be alleged, but the non-performance of such conditions, if relied on, be pleaded.
- v) No pleading can, except by way of amendment, raise any new ground of claim or allege any fact, inconsistent with previous pleadings of a party. This rule called "*departure*". (Rule 1)
- vi) A base denial of a contract alleged by the opposite party is not to be constituted as a denial of the legality or sufficiency in law of such a contract.
- vii) Mental elements such as knowledge, malice etc. may be alleged as a fact, without setting out the circumstances. Notice may be alleged as a fact. Implied contracts or relations between persons may be alleged as a fact.
- viii) Presumptions of law need not be specifically pleaded. (Rule 13)

Rule 14 lays down that every pleading should be signed by the party and his pleader. Every pleading should be verified at the foot thereof, by the party or by one of the parties. The person verifying must also state which of the paragraphs he verifies of his own knowledge, and what he verifies upon information received and believed to be true. The person verifying the pleadings is also to furnish an "affidavit" in support of his pleading. (Rule 15)

The object of "*verification*" is to fix on the party verifying responsibility for the statement that it contains. Omission to verify or a defective verification can be remedied at a later stage, and is mere irregularity within the meaning of Section 99. Pleadings are required by law to be true. Any party can be prosecuted for giving or fabricating false evidence under Section 191 and 193 of IPC.

Every pleading must be accompanied by a signed statement indicating the address of the party. It is called registered address of the parties.

Order 6, Rule 16 empowers the Court, at any stage of the pleadings, to strike out any matter contained in it if it is unnecessary, scandalous, frivolous or vexatious; if it tends to prejudice, embarrass or delay the fair trial of suit.

Order 6, Rule 17 states that the Court may at any stage of the proceedings allow either party to alter or amend his pleadings in such manner and on such terms as

may be just, and all such amendments shall be made as may be necessary for the purpose of determining the real question in controversy between the parties. Some amendments has been made in Order 6 by the Code of Civil Procedure (Amendment) Act, 2002 to avoid delay in civil litigation.

Following topics are important for RJS, DJS, Bihar Judicial Exam and UPPCS (J):

- i) Contents of Pleadings
- ii) Inconsistent and alternative pleading
- iii) Amendment of Pleading
- iv) Verification
- v) Problem based questions on amendment of pleadings

Wishing you all the best,

Yours Sincerely,
RAHUL

Rahul

CHAPTER XIII
PLEADINGS
[ORDER VI]
SYNOPSIS

- I. General Rules as to Pleadings**
- II. Definition: Order 6, Rule 1**
- III. Object**
- IV. General Principles**
- V. Some Special Rules**
 1. Fraud
 2. Breach of trust
 3. Misconduct
 4. Negligence
 5. Agreement
 6. Defamation
- VI. Verification of Pleadings**
- VII. Address for service of notice**
- VIII. Alternative and Inconsistent Pleadings**
 1. Alternative pleadings
 2. Inconsistent pleadings
 3. Application of the rules to plaintiff's pleadings
 4. Application of the rules to defendant's pleadings
 5. Mutually destructive and inconsistent alternative pleas
 6. Power of Court
 7. Inconsistent pleas must be shown to be maintainable
 8. Effect of Inconsistent pleadings
- IX. Striking out and amendment of pleadings**
 1. Different kinds of Amendment
 2. Amending the opponent's pleading
 3. Leave to amend pleadings when granted
 4. Leave to amend pleadings when refused
- X. The Code of Civil Procedure (Amendment) Act, 2002**
- XI. Latest Case - Laws**
- XII. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MP PCS (J), BJE, HJS, Haryana JS etc.]**

CHAPTER XIII

PLEADINGS

[ORDER VI]

I. GENERAL RULES AS TO PLEADINGS

Order VI of the Civil Procedure Code lays down the general rules governing pleadings in Court. Rule 1 defines pleading, while Rule 2 lays down the fundamental principles of pleadings. Rules 3 to 13 require the parties to supply necessary particulars. Rules 14 and 15 provide for signing and verification of pleadings. Rule 16 enables a Court to strike out unnecessary pleadings. Rules 17 and 18 contain provisions relating to amendment of pleadings.

II. DEFINITION: ORDER 6, RULE 1

Pleading is defined as plaint or written statement (R. 1) According to *Mogha*, [*Mogha's law of pleading* (1974), P. 1] "*pleadings are statement in writing drawn up and filed by each party to a case in answer*".

A plaintiff's pleading is his plaint, a statement of claim in which the plaintiff sets out his cause of action with all necessary particulars, and a defendant's pleading is his written statement, a defence in which the defendant deals with every material fact alleged by the plaintiff in the plaint and also states any new facts which tell in his favour, adding such legal objection as he wishes to take to the claim. Where the defendant, in his written statement pleads a set off, the plaintiff may file his written statement thereto. Again, in some cases, the defendant after filing his written statement may file an additional written statement with the leave of the Court.

III. OBJECT

The whole object of pleadings is to bring parties to definite issues and to diminish expense and delay and to prevent surprise at the hearing. A party is entitled to know the case of his opponent so that he can meet it. The sole object of pleadings is to ascertain the real disputes between the parties, to narrow down the area of conflict and to see where the two sides differ, to preclude one party from taking the other by surprise and to prevent miscarriage of justice [*Someshwar v. Tribhuvan*, AIR 1934 PC 130 (149)].

In, the leading case of *Throp v. Holdsworth*; *Jessel, M. R.* stated "the whole meaning of the system is to narrow the parties to definite issues, and thereby to diminish expense and delay, especially as regards the amount of testimony required on either side at a hearing".

IV. GENERAL PRINCIPLES

Every pleading must also be divided into paragraphs to be numbered consecutively; each allegation should, as far as possible, be contained in a separate paragraph. Dates, sums and other numbers should be expressed in figures as well as in words (Rule. 2). Sub-rule (1) of Rule 2 lays down the fundamental principles of pleadings. It reads as under; "2(1), every pleading shall contain, and contains only a statement in a concise form of the material facts on which the party pleading relies for his claim or defence, as the case may be, but not the evidence by which they are to be proved."

On analysis of the above provision, the following general principles emerge:

- a) pleading should state facts not law;
- b) the facts stated should be material facts;
- c) pleadings should not state the evidence; and
- d) the facts should be stated in a concise form.

The following eleven rules which have to be borne in mind while drafting pleadings:

- i) A pleading must contain only material facts on which the party pleading relies.
- ii) It must not contain evidence of facts (Order 6, Rule 2)

- iii) All necessary particulars must be stated in the pleading (O.6, r. 4 and 5)
- iv) The performance of conditions precedent need not be alleged, but the non-performance of such conditions, if relied on, must be pleaded. (O.6, r.6)
- v) No pleading can, except by way of amendment, raise a new ground of claim or allege any fact inconsistent with the previous pleadings of a party. (O. 6, r.7)
- vi) A bare denial of a contract alleged by the opposite party is not to be constituted as a denial of the legality or sufficiency in law of such a contract. (O. 6, r.8)
- vii) Documents need not be set out at length, unless the precise words are material. (O. 6, r.9)
- viii) Conditions of the mind such as notice, knowledge, etc, may be alleged as a fact, without setting out the circumstances from which the same is to be implied. (O. 6, r.10)
- ix) Notice may be alleged as a fact without setting out the form or the precise terms of such notice, or the circumstances from which it is to be inferred. (O. 6, r.11)
- x) Implied contracts or relations between persons may be alleged as a fact, and the series of letters, conversations or circumstances from which the contracts are to be inferred, need only be set out generally, and not in detail. (O. 6, r.12)
- xi) Facts which the law presumes in a party's favour or as to which the burden of proof lies on the other side need not be pleaded, unless denied. (O. 6, r.13)

R. 4 then lays down that particulars are to be specified in the pleadings. It provides that in all cases in which the party pleading relies on any misrepresentation, frauds, breach of trust, willful default or undue influence, and in all other cases in which particulars may be necessary beyond such as are exemplified in the said forms, particulars (with dates and items if necessary) are to be stated in the pleading.

The object of particulars is to prevent surprise at the trial, by informing the opposite party what case he has to meet, to define and narrow the issues to be tried, and thereby save unnecessary expense.

V. SOME SPECIAL RULES

1. Fraud

In suits on the basis of fraud, the allegations of fraud must be clear, definite and specific. General allegations of fraud, however strong the words in which they are stated maybe, if unaccompanied by particulars, are insufficient to amount to an averment of fraud which any Court ought to take notice.

2. Breach of trust

Particulars of the specific acts constituting a breach of trust be given, so as to enable a plaintiff to get relief.

3. Misconduct

Where the dismissal of a servant or an agent is justified or on the ground of misconduct, the party so alleging must specify the acts of misconduct.

4. Negligence

Where negligence or contributory negligence is charged, full details must be given of the acts on which the party pleading relies as constituting negligence.

5. Agreement

Where an agreement is alleged, the pleading should state the date of the agreement, the name of the parties to it, and whether it was in writing or verbal. If it is an implied agreement, it should appear from what fact or circumstances it is to be implied.

6. Defamation

In an action for slander, the plaintiff must give particulars of the name of the person to whom the alleged slander was made.

Prior to the 1999 Amendment, R. 5 provided for delivery of further and better particulars, as may be ordered by the Court. R. 5 has now been deleted by the 1999 Amendment.

R. 6 then lays down that if there is any condition precedent, the performance or occurrence of which is intended to be contested, such a condition precedent must be distinctly specified in the pleading by the Plaintiff or the Defendant, as the case may be. However, the performance or occurrence of such a condition precedent need not be expressly averred in the pleading, as this will be implied in the pleading. It is for the other party, if he contends that there was a condition precedent and that it has not been duly performed, to say what that condition is and to plead its non-performance. Otherwise, its due performance will be presumed.

R. 7 (which deals with what is technically called "departure") provides that no pleading can raise any new ground of claim or contain any allegation of fact inconsistent with the previous pleadings of the party pleading the same. This can be done only by way of amendment of pleadings (which is governed by R. 17 below).

After the parties have filed pleadings, they will not be allowed to depart from the grounds taken up, or to plead anything new or inconsistent with the previous pleadings. If any addition or alteration is desired, either party may apply for amendment under O. 6, r. 17, or an additional statement may be filed under O. 8, r. 9. Where pleadings contravene this rule (i.e. O. 6, r. 7) the Court would be justified in ignoring them. A departure takes place when in any pleadings the party gives up the ground that he took up in his previous pleading, and resort to another and different ground. The object of this rule is to prevent such a "departure".

Presumptions of law need not specifically be pleaded. R. 13 lays down that a party need not, in any pleading allege any matter of fact —

- a) which the law presumes in his favour, or
- b) as to which the burden of proof lies on the other party,

unless the same has specifically been denied, as for instance, consideration for a bill of exchange, where the Plaintiff sues only on the bill, and not for the consideration as a substantive ground of claim.

VI. VERIFICATION OF PLEADINGS

R. 14 of O. VI provides that every pleading should be signed by the party and his pleader, if any. If the party is unable to sign the pleadings, it may be signed by any other person who is duly authorised to sign the same, or to sue or defend on his behalf. —

Pleadings are also to be verified. R. 15, therefore, provides that every pleading is to be verified at the foot thereof, by the party or by one of the parties, or by some other person acquainted with the facts of the case. Thus, if there are two or more Plaintiffs, only one of them need verify the plaint. The persons verifying must also state which of the paragraphs (or parts thereof) he verifies of his own knowledge, and what he verifies upon information received and believed to be true.

Under the 1999 Amendment, the person verifying the pleadings is also required to furnish an affidavit in support of his pleadings.

The object of verifying a pleading is to fix on the party verifying, responsibility for the statements that it contains. Verifications should not be treated as mere formalities.

It is incumbent on the Courts to see that pleadings are verified by the parties in person, except when they are unable to do so by reason of absence or other good cause. Omission to verify or a defective verification can be remedied at a later stage, and is mere irregularity within the meaning of S. 99.

Effect of false verification

Pleadings are required by law to be true. A false verification will render the party verifying, liable to prosecution for giving or fabricating false evidence under Ss. 191 and 193 of the Indian Penal Code.

VII. ADDRESS FOR SERVICE OF NOTICE

R. 14A provides that every pleading when filed by a party, must be accompanied by assigned statement in the prescribed form, indicating the address of the party. Such an address can be changed from time to time, by lodging in the Court a duly filled up form stating the new address, accompanied by a verified petition.

Such an address is called the "registered address" of the party, and services of all processes are to be effected at that address.

If the Court discovers that the registered address furnished by a party is incomplete, false or fictitious, it may order –

- a) in the case where such registered address is furnished by a plaintiff, - a stay of the suit; or
- b) in the case where such registered address is furnished by a defendant, - that his defence be struck out and he be placed in the same position as if he had not put up any defence.

When a suit is stayed, or a defence is struck out (as above), the Plaintiff or the Defendant, as the case may be, may furnish his true address and apply to the Court to set aside its earlier order. The order can also be set aside if the party satisfies the Court that he was prevented by sufficient cause from filing his true address at the proper time.

Notwithstanding what is stated above, it is also open to the Court to direct service of any process at any other address, if it thinks it fit to do so for any reason.

VIII. ALTERNATIVE AND INCONSISTENT PLEADINGS

1. Alternative Pleadings

A plaintiff may rely upon several different rights alternatively so a defendant may raise, as many distinct and separate defence as he may think proper. The authority on the points is **Firm Srinivas Ram Kumar v. Mahavir Prasad, AIR 1951 SC 177 (179)** where it has been held that there is nothing in the Code of Civil Procedure which prevents the parties doing so. Thus, there can be a petition for divorce or in the alternative for judicial separation. It has been held that a plea of the defendant that the document was a gift deed shall not be defeated merely because he also pleaded in the alternative that the document could also be construed as a release deed. Again in a suit against destruction to a flow of water through drain, the plaintiff can allege in the plaint that he was a co-sharer of the plot and in the alternative that he had acquired a right of easement by user for more than 25 years. So also in a suit for the possession of a house belonging to X the plaintiff may claim ownership on the basis that he is the adopted son of X or on the ground that X has written a will to that effect in plaintiff's favour. To take one more example in a suit on a promissory note the defendant may state that he did not execute it, and in the alternative that the claim under the suit is barred by limitation. Pointing out the reason behind allowing alternative pleas it has been stated in **N. N. Barar v. A. D. Chattopadhyaya, ILR 34 Cal. 51 (53)** that the trial of the claim in the alternative in one suit tends to avoid multiplicity of suit, in compliance with Order II, Rule 1 of the Code of Civil Procedure which provides that every suit shall as far as practicable be framed so as to afford ground for final decision upon the subject in dispute and to prevent further litigation concerning them. Although there is no prohibition against stating alternative pleas yet the Courts have pointed out a caution in this regard, namely: whenever such alternative cases are alleged, the facts belonging to them respectively should not be mixed up, but should be stated separately so as to show on what facts each alternative claim or defence is based.

2. Inconsistent Pleadings

Either party in a litigation may in a proper case include in his pleading two or more inconsistent sets of facts and claim relief thereunder. A plaintiff may rely upon several different rights alternatively, although they may be inconsistent, so, a defendant may raise as many distinct and separate inconsistent defences as he likes. This is fully established by the Supreme Court decisions in **Firm Srinivas Ram Kumar v. Mahavir Prasad, AIR 1951 SC 177 (179)**, **Prem Raj v. D. L. F. H. & Co., AIR 1968 SC 1355** and **Chapaibhai v. Purshottam, AIR 1971 SC 1878**.

3. Application of the rules to plaintiff's pleadings

Illustrations of the application of this doctrine to inconsistent claim by the plaintiff may be found in the following case:

In *Vyas Gopi Chand v. Mathoo Lal*, AIR 1971 Raj, 237 (239), the plaintiff claimed a right of passage on the basis of joint ownership and in the alternative as on easement. Allowing the plaintiff to adopt that course that Court observed:

"It is true that no plaintiff can be allowed to take the impossible position of being the owner of and of having a simultaneous right of easement over the same land. But where the reliefs claimed upon ownership and upon the right of easement in respect of the same property are not claimed simultaneously, but in the alternative, there is no law which bars the plaintiff from relying on the alternative claim even though the action of the plaintiff, may not be commendable."

4. Application of the rules to defendant's pleadings

In *Raj Kuer v. Rajendra Bahadur*, AIR 1951 All. 443 (445), the defendant pleaded that the deed of gift was a fictitious document and that if it is not so, the deed was intended to defeat and delay creditors. The Court held that there was nothing to prevent these two pleas being taken in the alternative.

In *Atma Ram v. Paras Ram*, AIR 1971 HP 11, it has been held that it is open to the defendant to plead tenancy and adverse possession or tenancy and limitation in the alternative.

In *Khatti v. Khatri*, AIR 1991 All 72, the Allahabad High Court while dealing with a suit for declaration of title held that the plea of Benami and one of long possession may be inconsistent, the defendants can resist the suit by such pleas.

5. Mutually destructive and inconsistent alternative pleas

The above discussion should be sufficient to show that inconsistent alternative pleas may well be raised in a suit. However, a distinction has to be drawn between ordinary inconsistency and inconsistency that goes to the extent of contradiction. The former points towards a case where though the pleas are inconsistent yet the facts on which those pleas are based are not inconsistent. For example, defendant may plead in her alternative written statement that she was never married to the plaintiff and, in the negative, that if the ceremony which she went through with the plaintiff were sufficient to constitute marriage, it was null and void as her consent was not obtained. On the other hand, the second type of inconsistency which goes to the extent of contradiction refers to a situation in which two or more such alternative pleas are stated which are so absolutely inconsistent that the evidence required to prove one will be destructive of the other. In other words, such pleas are destructive of each other. The trend of decisions in our country is that such inconsistent alternative pleas should not be allowed.

6. Power of Court

The power has been given to the Court under Order VI, Rule 16 of the Code to strike out any matter in a pleading that may tend to embarrass a fair trial of the suit. A claim or defence which a party is not entitled to make use of or a pleading which contains irrelevant allegations may be embarrassing. The question whether a plea is embarrassing within the meaning of Order VI, Rule 16 is to be decided by the Court in view of the facts and circumstances of a particular case. For example in a suit based on a pronote the plea of the defendant that he had not executed the pronote and his defence that the plaintiff was only a benamidar for his father have been held to be inconsistent pleas based on contradictory facts. In fact the pronote was executed by the defendant in favour of the plaintiff and he wanted to make use of the and defence of benami transaction because such transactions are not recognised under the Negotiable Instruments Act. Such pleas are liable to be struck out under Order VI, Rule 16 on the ground that they will embarrass and delay the trial of the suit.

7. Inconsistent pleas must be shown to be maintainable

No doubt, a party to a suit can plead inconsistent pleas in the alternative but, as has been held by the Supreme Court in *Prem Rai v. D. B. F. H. & Co. Ltd.*, AIR 1968 SC 1854 (1856), but it must be shown by him that each of such pleas is maintainable.

8. Effect of Inconsistent pleadings

Although there is nothing in law to prevent a party from raising inconsistent pleas yet it should be noted that the use of such pleas:

- a) leads to waste of time;
- b) makes the litigation expensive;
- c) makes the case weak.

IX. STRIKING OUT AND AMENDMENT OF PLEADINGS

R. 16 empowers the Court, at any stage of the proceedings, to strike out or amend any matter in any pleadings, –

- a) which may be unnecessary, scandalous, frivolous or vexatious, or
- b) which may tend to prejudice, embarrass or delay the fair trial of the suit; or
- c) which is otherwise an abuse on the process of the Court.

1. Different kinds of Amendment

The occasion for amendment arises, in five different ways, namely:

- i) S. 152 (amendment of clerical and arithmetical mistakes in judgments, decrees and orders.)
- ii) S. 154 (amendment of proceedings in a suit by the Court, whether moved by the parties or not, for the purpose of determining the real question or issue between the parties.)
- iii) O. 1, r. 10 sub – r. (2) (Striking out or adding parties)
- iv) O. 6, r. 16 (amending the opponent's pleading: compulsory amendment)

2. Amending the opponent's pleading

A party may approach the Court for an amendment of his opponent's pleading. This is also known as compulsory amendment. The Court would allow such an amendment in any other of the three cases referred to in clauses (a), (b) and (c) of R. 16, above.

Unnecessary pleadings of an opponent may be amended (or even struck off) under R. 16. Thus, unnecessary allegation of misconduct against the defendant can be struck off under this rule.

Likewise, scandalous matter in the opponent's leadings are also covered by this rule, however, it must be remembered that nothing can be scandalous which is relevant. Thus, matters pleaded for aggravation of damages are relevant; they cannot be struck off – even if scandalous. Similarly, allegations of dishonesty or fraud or conspiracy will not be struck off as scandalous – if they are relevant to the facts in issue.

So also, any pleadings which tend to prejudice or embarrass a party at any stage of the proceedings, would be covered by R. 16.

3. Leave to amend pleadings when granted

The general rule is that leave to amend will be granted so as to enable the real questions in controversy between the parties to be raised on the pleadings. Amendment should ordinarily be allowed if it can be made without injustice to the other side. There is no injustice if the other side can be compensated by costs.

4. Leave to amend pleadings when refused

- i) Where the amendment is not necessary for the purpose of determining the real questions in controversy between the parties, as where it is merely technical, or of no substance.

- ii) Where the plaintiff's suit would be wholly displaced by the amendment proposed to be made by the defendant.

Steward v. The N. M. Tramways Co., (1886) 16 Q. B. D. 178

A sued a Tramway Company for damages caused by their negligence in allowing their tramway to be in an improper condition. The Company by their defence denied negligence. More than six months after the delivery of their defence, the company applied for leave to amend their defence by alleging that by a contract between the defendant Company and the Local Board of the district, the liability to maintain the roadway had been transferred to the Board and the company had ceased to be responsible for the roadway. At the date of the application for amendment, A's remedy against the Board had become barred by limitation. It was held that the application should be refused. If the Court had allowed the amendment, A would have failed against the company, and any action that A might take against the Board would be too late as being barred by limitation. It will, therefore, be seen that if the application for leave to amend were granted by the Court, A's suit against the Company would be wholly displaced.

- iii) Where the effect of the proposed amendment would be to take away from the defendant a legal right which has accrued to him by lapse of time, except in the special circumstances of a case: ***Charan Das v. Amir Khan, (1920) 47 I. A. 255.***

Weldon v. Neal, (1880) 19 Q. B. D. 394

P sued D for damages for slander. P afterwards applied for leave to amend the plaint by adding fresh claims in respect of assault and false imprisonment. These claims were at the date of the application time-barred, though they were not so barred at the date of the suit. The application was refused, for the effect of allowing it would have been to take away from D a legal right (bar of limitation), which had accrued, to him by lapse of time.

- iv) Where the amendment would introduce a totally different, new and inconsistent case.

The general rule is that any amendment allowed must be such as is either in the pleading, or is consistent with the case as originally filed, and that the State of facts and the equities and ground of relief originally alleged and pleaded by the plaintiff should not be departed from:

Eshen Chunder v. Shama Churn (1860) 11 M. I. A. 7

Courts do not permit amendments substituting a new cause of action, in place of the cause of action which the suit was filed, nor the addition of a new and distinct cause of action which was not available to the plaintiff at the commencement of the suit.

But, as a cause of action may entitle a plaintiff to several reliefs which may be claimed by him, the Court may, in suitable cases, where subsequent events necessitate such a course, permit the plaintiff to add a new cause of action which has arisen subsequent to the filing of the suit, but which entitled him the one or the other relief already claimed by him in the suit, or to claim new or additional relief in respect of the cause of action on which the suit had been filed. But, in all such cases, the 'real controversy' test is to be satisfied.

Where the 'real controversy' was regarding the claim for compensation for five years prior to the filing of the suit, and the claim of the five years subsequent to the filing of the suit was never in controversy between the parties, on the basis of the suit as originally filed, nor was this latter claim germane to any of the reliefs claimed in the suit nor could this claim be said to be an additional relief in respect of the cause of action which was available to the plaintiff when the suit was instituted, the Court did not allow the plaintiff to amend his plaint by including the claim for five years subsequent to the filing of the suit. [***Mst. Vidya Bai v. Lal Narayandas, 1971 M.P.L.J. 925***]

Note: No appeal lies from an order granting or refusing an amendment under this rule.

X. THE CODE OF CIVIL PROCEDURE (AMENDMENT) ACT, 2002

Amendment of Order VI - In the First Schedule, in Order VI, for rules 17 and 18 [as they stood immediately before their omission by clause (iii) of section 16 of the Code of Civil Procedure (Amendment) Act, 1999], the following rules shall be substituted, namely: -

"17. Amendment of pleadings - the Court may at any stage of the proceedings allow either party to alter or amend his pleadings in such manner and on such terms as may be just, and all such amendments shall be made as may be necessary for the purpose of determining the real questions in controversy between the parties:

Provided that no application for amendment shall be allowed after the trial has commenced, unless the Court comes to the conclusion that in spite of due diligence, the party could not have raised the matter before the commencement of trial.

18. Failure to amend after order - If a party who has obtained an order for leave to amend does not amend accordingly within the time limited for the purpose by the order, or if no time is thereby limited then within fourteen days from the date of the order, he shall not be permitted to amend after the expiration of such limited time as aforesaid or of such fourteen days, as the case may be, unless the time is extended by the Court."

XI. LATEST CASE - LAWS

1. **Kamla Bai v. Arjun Singh (A 1991 MP 275)** - Where a contract or transaction is illegal there need not be pleadings of the parties raising the issue of illegality and a Court is bound to take judicial notice of a service.
2. **Mani Nariman Daruvala v. Firoz N. Bhatena [1997 AIHC 3527, 3530 (MP)]** - Courts gets jurisdiction on the basis of averments contained in the plaint and not on the defence taken by the opposite party.
3. **Gopal Prasad v. Bhushidhar Singh (AIR 2000 PAT. 240)** - A party asserting right of pre-emption need not by regular suit, he may file a petition for the same before a Court having jurisdiction. Such petition shall be registered as a miscellaneous judicial case.
4. **Kishore Narsingh v. Prakash Narsingh Shah, 2001 AISC 777 (781, Bombay)** - A payer in the plaint cannot be read in isolation and it has to be read in consumption with the allegation in the plaint. A payer even if wrongly wanted cannot deprive the plaintiff of the claim of which peace found otherwise entitled.
5. **Material Facts - Debyshire v. Leigh, 1896, 1 QB 554** - Material facts are all facts upon which the plaintiff's cause of action or defendant's defence depends. That is, those facts which they must prove or fail. The question whether a particular fact as material or not depends on special circumstances of each case.
6. **Rohit Dhaman v. G.K. Malhotra [AIR 2002 Del. 151 (158)]**, when the factual base is not laid in the plaint itself no legal arguments arising there from can be entertained.
7. **Shravan Singh v. Kankar Singh, [(2001) 2 Punj. LR (645) (650) (P&H)]** - Every pleading shall contain only a statement in concise form of the material facts on which the party pleading relies for his claim or defence, as the case may be but not the evidence by which they are to be proved.
8. **Syed Mehdi Ispahani v. Sakil-ur-Rehman [2001 AISE (1074) (1077) Mad.]** - In an eviction suit for demolition and construction, the absence of pleading and the evidence as to the age of the constructions would not denude the plaintiff of the relief brought for, if plaintiff would otherwise is entitled to same of the facts established.
9. **Imtiyaz Ali v. Nizam Ahmed, (A 1987 Del. 36, 39)** - In an eviction petition, if there is a relationship of landlord and tenant, it is not necessary to plead and the petitioner became the owner of the property.
10. **Harichand v. Daulatram [A 1987 SC 94, 98]** - The plaintiff who file a suit on the allegation of encroachment by the defendant did not choose to plead the partition by metes and bounds between his vendor and the defendants and so fail to establish his claim.

XII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. What are the circumstances and the stages in which amendment of pleadings of the parties can be allowed? Is it permissible to allow the plaintiff to introduce by way of amendment as new cases or a new cause of action, when a suit on such new case or cause of action is barred by limitation? **[600 Words, RJS-1977]**
2. a) What are the basic principles governing the amendment of pleadings?
b) Plaintiff sues the defendant for rendition of accounts. Subsequently, the plaintiff moves an application for amendment claiming specific amount as commission on contracts. Is the amendment permissible? Give reason for your answer. **[500 Words, RJS-1979]**
3. What constitute pleadings? **[15 Words, RJS-1984]**
4. What are 'inconsistent' and 'alternative' pleadings? **[50 Words, RJS-1988]**
5. State the circumstances in which a party to a suit be refused to amend his pleading. **[250 Words, UPPCS (J)-1991]**
6. What are the circumstances in which Court can order amendment of pleadings? What will be the result, if he does not make the desired amendment after the order of the Court? **[250 Words, UP-1992]**
7. State the circumstances in which a party to a suit be refused permission to amend his pleading? **[250 Words, UP-2000]**
8. Short Notes: Verification **[200 Words, BJE-1979]**
9. Discuss the circumstances under which the amendment of the pleading is allowed by Court. **[250 Words, BJE-1975]**
10. A entered into agreement with B for carrying out certain work from 4.4.73 till 4.4.75. Agreement contained a clause for arbitration in case of dispute. On 3.4.78, A filed civil suit against B for recovery of some dues etc. On 4.4.78 B filed application under Section 20 of the Arbitration Act. B moved an application for stay in civil suit filed by A but the application for stay was dismissed and his appeal against dismissal was also dismissed on 1.8.85. On 13.3.1986, B filed an application under Order VI, Rule 17, CPC for amendment of his pending application under Section 20 of the Arbitration Act for converting it into suit for recovery of amount from A. Application for amendment is opposed on the ground that it proposes to change nature and character of the suit and that claim of B was barred by Limitation. B contends that his pending application under Section 20 of the Arbitration Act contains all the particulars which should contain in regular suit, difference is only in regard to reliefs prayed for, no prejudice will be caused to the opposite party, claim is not time-barred and prayer can be granted even by resorting to inherent powers under Section 151, CPC. Deal with the respective contentions of the parties and pass an order on that application under Order VI, Rule 17 of Code of Civil Procedure. **[250 Words, DJS-1999]**
11. "Essentials of a Suit" Write short notes. **[150 Words, HJS-2003]**

CHAPTER XIV

PLAINT

[SECTION 26, ORDER VII]

Dear aspirant,

Section 26 lays down that every suit is to be instituted by the presentation of plaint, or in such other manner as may be prescribed. In every such plaint, the facts are to be proved by an Affidavit. A plaint is to be presented in duplicate, to the Court or to such officer as may be appointed by the Court. Every plaint shall comply with the rules contained in Orders VI and VII, so far as they are applicable. The Court has also to keep the particulars of every suit entered in a book called 'Register of Suits' [Order 4, Rule 2]. A suit is instituted or commenced when the plaint is presented, and not when the suit is registered.

Presentation of a plaint must be by delivery, in duplicate, to the Court or to an officer either personally (or through agent) or pleader. So, the sending of the plaint by post or the placing thereof at a table when the officer is not present, would not amount to proper presentation.

Order 7 lays down detailed rules regarding the plaint. A plaint must contain the following particulars:

- i) Name of the Court
- ii) Name, description and place of residence of the plaintiff and the defendant.
- iii) A statement when the plaintiff or defendant is a minor or person of unsound mind.
- iv) Facts constituting the cause of action, and when it arose.
- v) Facts showing that the Court has jurisdiction.
- vi) The relief the plaintiff claims.
- vii) Any set-off or relinquishment of his claim by the plaintiff.
- viii) Value of the subject matter of the suit for the purposes of jurisdiction and of Court fees.
- ix) Signature and verification.

Some specific provisions are also laid down in Order 7 for plaints in specific cases. Under Order 7, Rule 10, at any stage of the suit, the plaint can be returned to be presented to the proper Court.

Rule 11 lays down that a plaint is to be rejected in the following cases:

- a) Non-disclosure of cause of action.
- b) Undervalued relief, and the plaintiff's failure to correct it.
- c) Insufficiently stamped paper, and the plaintiff's failure to correct it.
- d) Suit appears to be barred by law.
- e) Plaint not filed in duplicate.
- f) Plaintiff has not complied with Rule 9.

A plaint cannot be rejected in part and retained in part. It should be rejected as a whole.

In RJS, UPPCS (J), MPCJ Examination, UAPCS (J) etc. generally one question is asked on drafting a plaint on given topic. Following are important topics for writing a plaint:

- i) Malicious Prosecution
- ii) Specific Performance of Contract
- iii) Eviction of tenant

Wishing you all the best,

Yours Sincerely,
RAHUL

CHAPTER XIV

PLAINT

[SECTION 26, ORDER VII]

SYNOPSIS

- I. Introduction**
- II. Presentation of Complaint**
- III. Contents of a Complaint**
- IV. Complaint in some specific cases**
- V. Return of Complaint**
- VI. Rejection of Complaint**
- VII. Procedure to be followed on admission of the Complaint (Order 7, Rule 9)**
- VIII. Drafted Complaint**
- IX. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPSCS (J), BJE, HJS, Haryana JS etc.]**

RAJESH

CHAPTER XIV

PLAINT

[SECTION 26, ORDER VII]

I. INTRODUCTION

Section 26 lays down that every suit is to be instituted by the presentation of plaint, or in such other manner as may be prescribed. In every such plaint, the facts are to be proved by affidavit. Such a plaint is to be presented in duplicate to the Court or to such officer as may be appointed by the Court.

A suit is instituted when the plaint is presented, and not when the suit is registered. A suit always commences with the presentation of a plaint. Therefore, a proceeding, which does not commence with a plaint, is not a suit.

It may also be noted that a written statement claiming set-off is deemed, to that extent, to be a plaint.

However, it is essential, in all cases that the plaint must be presented to a Court having jurisdiction.

II. PRESENTATION OF PLAINT

Presentation of a plaint must be by delivery, in duplicate, to the Court or to an officer either personally or by a pleader.

The Court in whom the plaint has to be presented is the Court of the lowest grade competent to try the matter under Sections 15 to 20. It may be validly received on a Court holiday or at the Judge's club or at his residence. But the Court is not bound to accept it in such a manner. It can be presented by delivery to the Court, either by a party in person or by a recognized agent or pleader. So, the sending of the plaint by post or the placing thereof on a table when the officer is not present, would not amount to proper presentation.

The Court has also to keep the particulars of every suit entered in a book called the register of civil suits. The entries are to be numbered every year according to the order in which the plaints are admitted. (O.IV, r.2)

III. CONTENTS OF A PLAINT

O.VII then provides detailed rules regarding the plaint itself. Rule 1 of O.VII lays down that a plaint must contain the following particulars:

- i) the name of the Court in which the suit is brought;
- ii) the name, description and place of residence of the plaintiff;
- iii) the name, description and place of residence of the defendant, so far as they can be ascertained;
- iv) where the plaintiff or the defendant is a minor or a person of unsound mind a statement to that effect;
- v) the facts constituting the cause of action, and when it arose;
- vi) the facts showing that the Court has jurisdiction;
- vii) the relief which the plaintiff claims;
- viii) where the plaintiff has allowed a set-off or relinquished a portion of his claim, the amount so allowed or relinquished; and
- ix) a statement of the value of the subject-matter of the suit for the purposes of jurisdiction and of the Court-fees, so far as the case admits.

IV. PLAINT IN SOME SPECIFIC CASES

In addition to the above, provisions are also made as follows for plaints in specific cases:

- i) If the plaint is filed for recovery of money, the plaint must mention the exact amount claimed. If, however, the suit is for mesne profits, or for an amount which will be due on taking accounts, or a debt the value whereof cannot be estimated with reasonable diligence, the approximate amount may be stated (instead of the exact amount).
- ii) If the suit is concerning immovable property, the plaint must contain a proper description of the property, sufficient to identify such property, along with boundaries or survey numbers, wherever possible.
- iii) If the plaintiff is suing in a representative character, the plaint must show, not only that he has an actual existing interest in the subject-matter, but also that he has taken the necessary steps (if any) to enable him to institute a suit concerning such subject-matter.

The following are instances of representative suits:

- a) A suit by one or more persons on behalf of community of persons having the same interest: O.1, r.8.
- b) Where a person dies leaving a will, the executor named in the will may obtain a probate of the will. Where a person dies intestate, his heirs may apply for letters of administration. The person to whom letters of administration are granted is called the administrator. The executor or the administrator, as the case may be, of the deceased person, is his legal representative, for all the property of the deceased vests in him as such. A suit by a person as executor or administrator of a deceased person is a suit by him in a representative character.
- c) A suit under section 92 of the Code by two or more persons having an interest in a trust.
- d) A suit concerning property vested in a trustee where the connection is between beneficiaries and third persons: O.31.
- e) A suit on behalf of a partnership in the name of the firm: O.30.
- iv) If the suit is instituted after the expiry of the limitation period, the plaint must show the ground on which exemption from the law of limitation is claimed.

It may be noted that even if such ground is not set out, the Court may permit the plaintiff to claim such exemption if the ground is not inconsistent with the grounds set out in the plaint.
- v) If the plaintiff seeks relief in respect of several distinct claims or causes of action founded on separate and distinct grounds, they should be stated separately and distinctly, as far as possible.
- vi) The plaint must also specifically state the relief claimed by the plaintiff, either simply or in the alternative. It is not necessary to ask for general or other relief which may always be given as the Court may think fit, to the same extent as if it had been asked for. (This rule also applied to the defendant as regards his written statement.)

V. RETURN OF PLAINT

Under O. VII, r.10, at any stage of the suit, the plaint can be returned to be presented to the Court in whom the suit ought to have been instituted. Even a Court of appeal or revision can, after setting aside the decree passed in the suit, direct return of the plaint to the proper Court. When doing so the Judge must also endorse on the plaint, a brief statement of the reasons for returning the plaint.

Under Section 15, every suit is to be instituted in the Court of the lowest degree competent to try it. Where a suit is instituted in a wrong Court, i.e., in a Court of the lowest grade competent to try it, the plaint should be returned, under the provisions of this rule, to be presented to the proper Court. It may be noted that this rule applies to plaints, and not to applications. Thus, a Court cannot, under this rule, return an application for leave to sue in *forma pauperis*.

An order under this rule, returning a plaint to be presented to the proper Court is appealable under O.43, r. 1 (a).

R. 10 A provides that in cases where the defendant has appeared, and the Court is of the opinion that plaint should be returned, it must, before doing so, intimate its decision to the plaintiff. On being intimated, the plaintiff may make an application to the Court –

- a) Specifying the Court in which he proposes to present the plaint after its return;
- b) Praying that the Court may fix a date for the appearance of the parties in the said Court; and
- c) Requesting that the notice of the date so fixed may be given to him and to the defendant.

VI. REJECTION OF PLAINT

R.11 lays down that a plaint is to be rejected in the following cases:

- a) where it does not disclose a cause of action;
- b) where the relief claimed is undervalued, and the plaintiff, on being required by the Court to correct the valuation within a time to be fixed by the Court, fails to do so;
- c) where the relief claimed is properly valued, but the plaint is written upon paper insufficiently stamped, and the plaintiff, on being required by the Court to supply the requisite stamp-paper within a time to be fixed by the Court, fails to do so;
- d) where the suit appears from the statement in the plaint to be barred by any law;
- e) where it is not filed in duplicate; and
- f) where the plaintiff has not complied with R.9 (above).

It is also provided the time fixed by the Court for correcting the valuation or for supplying the requisite stamp-paper is not to be extended, unless the Court is satisfied (for reasons to be recorded) that the plaintiff was prevented by some exceptional cause from correcting the valuation or supplying the stamp-paper, as the case may be, and that refusal to extend such time would result in grave injustice to him.

A plaint cannot, under this rule, be rejected in part and retained in part. It should be rejected as a whole, if at all.

An order rejecting a plaint is a decree under Section 2(2), and hence, is appealable as such.

When a plaint is rejected under r.11, the judge must record an order to that effect, with the reasons for such an order.

It is also to be noted that a rejection of a plaint (on any of the above grounds) does not, by itself, preclude the plaintiff from presenting a fresh plaint on the same cause of action.

VII. PROCEDURE TO BE FOLLOWED ON ADMISSION OF THE PLAINT (ORDER 7, RULE 9)

The procedure on admitting plaint is laid down in Rule 9 of Order VII which is amended by the Code of Civil Procedure Amendment Act, 2002 (w.e.f. 01. 07. 2002). It states that where the Court orders that the summons be served on the defendants in the manner provided in rule 9 of Order V, it will direct the plaintiff to present as many copies of the plaint on plain paper as there are defendants within seven days from the date of such order alongwith requisite fee for service of summons on the defendants. (Order 7, Rule 9).

The plaintiff shall within the time fixed by the Court pay the requisite fee for the service of summons on the defendants. [Order 7, r. 9 (1-A)].

VIII. DRAFTED PLAINT

In RJS, UPPCS (J), MPCJ Exam, UAPCS (J), Haryana Judiciary Examinations etc., generally one question is asked on drafting a plaint on a given topic. The forms of Plaints are given in Appendix A of Civil Procedure Code, 1908. Drafting a plaint is an art but the knowledge of relevant provisions of law is indispensable. A model of plaint is given below. Please study the model plaint carefully and try to write plaints on given topics in question of previous years' examinations.

IN THE COURT OF DISTRICT JUDGE, SRI GANGA NAGAR (RAJASTHAN)

Civil Suit No. of 2003.

Ram Narayan Yadav S/O Sh. Munshi Ram Yadav, Caste Yadav,
age 35, R/O 4 -E - 22, Jawahar Nagar, SGNR.

..... Plaintiff

Versus

Hitender Sharma S/O Sh. Mahavir Prasad Sharma, Caste Brahmin,
age 26, R/O 76 - p - Block, Sri Ganga Nagar (Rajasthan)

..... Defendant

Suit for damages for malicious prosecution

1. That the plaintiff's wife was the owner of a touring cinema known as "Kautilya Cinema Co. Pvt. Ltd." and one Naresh Charaya was the manager.
2. That in 2002 shows were being given at Bharat Nagar in the district of Sri Ganga Nagar (Rajasthan).
3. That during the said period Naresh Charaya made purchases of daily necessities from the defendant who was a grocer at Bharat Nagar and was also a registered money lender and that during the same period Naresh Charaya also incurred loans of rupees 50,000/- (fifty thousand only) under a promissory note of the same amount from the defendant by pledging some cinema implements.
4. That in December, 2002, when it was planned that the cinema would shift to Sudama Nagar, Naresh Charaya approached the defendant for release of the cinema implements and promised that payment would be sent from Sudama Nagar but the defendant did not agree to do so until he was paid off.
5. That the plaintiff, who is a salesman at Jawahar Nagar, stepped in and gave a letter to the defendant on 15th January, 2003, standing surety for repayment but even then the defendant did not release the said implements.
6. That the defendant was paid from Sudama Nagar in instalments and that on 15th March, 2003, the entire money due to the defendant had been paid off.
7. That thereafter on 20th March, 2003, the plaintiff called upon the defendant to settle the accounts and release the cinema implements but the defendant did not release the same and claimed more money, and since then the parties had a strained relationship.
8. That with a view to harassing the plaintiff, the defendant on 24th March, 2003, filed a complaint under Section 420 of Indian Penal Code for cheating in the Court of Additional Session Judge, Sri Ganga Nagar.
9. That as a result of the said complaint, the plaintiff was arrested on 26th March, 2003 and was released on bail on 15th April, 2003.
10. That the said criminal case continued for five months and ultimately ended in plaintiff's acquittal on 10th September, 2003.
11. That the said complaint against the plaintiff was false and that the defendant had filed it maliciously and without a reasonable or probable cause.
12. That in consequence of the said prosecution, the plaintiff has suffered pain of body and mind, and has been lowered in the estimation of his friends, and was prevented from transacting his business, and incurred expenses in defending himself against the said complaint.
13. That the total amount of damages, special and general, as claimed by the plaintiff, amounts to Rupees 57000/- as detailed below:

PARTICULARS OF DAMAGES

A. Special Damages

- | | |
|---|---------------|
| i) Fee paid to Sh. Bhuvnesh Sharma Advocate for defence | = Rs. 5000/- |
| ii) Travelling and diet expenses of five defence witnesses | = Rs. 2000/- |
| iii) Loss of business as a salesman for 50 days, 500/- per day x 50 | = Rs. 25000/- |

B. General Damages

- | | |
|--|---------------|
| i) For physical and mental pain and loss of reputation | = Rs. 25000/- |
|--|---------------|

Total = Rs. 57,000/-

14. That cause of action for the suit arose on 10th September, 2003, when the said criminal proceedings terminated in acquittal of the plaintiff.

15. That the defendant resides at 76 - P - Block, Sri Ganga Nagar within the jurisdiction of this Court.
16. That the valuation of the suit for purposes of jurisdiction and payment of Court fees is Rs. 57000/- on which proper Court fees has been paid.

Therefore the plaintiff claims:

- a) Rs. 57000/- as damages, special and general.
- b) Interest on the decretal amount from the date of suit to that of payment.
- c) Costs of the suit.

Place: Ravi Chowk, Sri Ganga Nagar, Rajasthan

Date: 15th September, 2003

(Signature)
Advocate

(Signature)
Plaintiff

VERIFICATION

I, the above named plaintiff, do hereby verify that the contents of Paragraphs 1 to 13 of the above plaint are true to my personal knowledge and the contents of Paragraphs 14 to 16, I believe to be correct on credible information received by me from my legal advisor.

(Signature)
Plaintiff

IX. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MP PCS (J), BJE, HJS, HARYANA JS ETC.]

1. Draft a plaint claiming damages for malicious prosecution. [200 Words, RJS-1969]
2. Setting out your own facts draw up a plaint in an inter pleader suit. [200 Words, RJS-1970]
3. Imagining your own facts draw up a plaint and a written statement and also write a short judgment in a suit either for malicious prosecution or for a breach of warranty. [600 Words, RJS-1971]
4. Imagine your own facts and draft a plaint for the recovery of damages for malicious prosecution and prepare a written statement as well. Also write a short judgment. [600 Words, RJS-1975]
5. Short Notes: Rejection of Plaint [200 Words, RJS-1974]
6. Short Notes: Verification of Pleadings [150 Words, RJS-1974]
7. Draft a plaint in a suit for pre-emption on the ground of being a co-sharer in a house, portion of which has been sold. What defences are available in such a case? Also write a short judgement? [600 Words, RJS-1974]
8. Draw up a plaint and a written statement in a suit for specific performance of a contract of sale of immovable property and also write a short judgment. [600 Words, RJS-1974]
9. A has a right of way from his house over the land of B to the public highway. B obstructs A and his servants passing along the way. A wants to bring a suit. Please draft a suitable plaint for him. Also attempt a written statement. Frame issues and write a short judgment. [600 Words, RJS-1976]
10. B makes a false representation to A that C is solvent and in good credit. A is induced to sell goods to C on credit. C fails to pay. Can A bring a suit against C and B both and if so, please draft a plaint and also the written statement, frame issues and write a short judgment. [600 Words, RJS-1976]
11. Draw up a plaint setting out your own facts for a suit brought by the sons for setting aside alienation of joint family property by the father as the Karta and also draft a suitable written statement. Also write a short judgment. [600 Words, RJS-1977]

12. a) Draft a plaint and written statement in suit for specific performance of a contract to sell immovable property. Also write a short judgment.
b) Is it necessary for the plaintiff in such a suit to ask specifically for the relief of possession in the plaint? **[600 Words, RJS-1977]**
13. A filed a suit against B alleging that B had mortgaged his house on September 1, 1978 for a sum of Rs. 5000/- stipulating to pay interest at the rate of 9 percent per annum on the mortgage loan, B denied the fact of having taken loan and the execution of the mortgage deed. A examined two witnesses in his evidence who deposed that B had put his signature on the mortgage deed in their presence. No attesting witness of the mortgage deed was examined although they were alive. Draft a plaint on behalf of A, prepare a written statement on behalf of B and frame the issues. Also write a judgment in the above matter. **[600 Words, RJS-1979]**
14. A leased out his house on a monthly rent of Rs. 60/- on March 1, 1976. A sued B for eviction. A issued a notice on March 10, 1978 to B calling upon him to vacate the premises by March 27, 1978. B pleaded the tenancy was not validly terminated, so the suit is liable to be dismissed. Draft a plaint for the eviction of B. Also prepare written statement, frame issues and write judgment in the above matter. **[600 Words, RJS-1979]**
15. Draft a plaint on behalf of a Government servant for arrears of his pay for six months which the State Government has failed to pay in spite of his representation to the Government. Also prepare a written statement on behalf of the Government, frame issues and write out a short judgment. **[600 Words, RJS-1979]**
16. Draw a plaint for the cancellation of a sale deed on ground of fraud or misrepresentation. Also prepare a written statement on behalf of the defendant, frame issues and write out a short judgment. **[600 Words, RJS-1979]**
17. Prepare a plaint and a written statement and frame issues on the following facts —
A died leaving behind a will bequeathing his properties in favour of his friend B to the exclusion of A's widow and children. The will included recitals that X and Y had secured possession of the properties belonging to A in pursuance of an alleged deed of sale, that its true nature was not sale and that it was actually a transaction of mortgage, B claimed title to the properties in suit on the strength of the will in his favour and instituted a suit challenging the previous sale of properties by A in favour of X and Y and seeking possession of the properties. A's widow and children do not contest the suit. X and Y contest the suit.
[400 Words, RJS-1980]
18. Short Notes: Rejection of Plaint **[200 Words, RJS-1986]**
19. Imagine your own facts and draft a petition for judicial separation by a wife against her husband under the Hindu Marriage Act? **[200 Words, RJS-1988]**
20. Draft a plaint for the recovery of Mahr by a Muslim wife who has been recently divorced by her husband. **[200 Words, RJS-1988]**
21. What are the valid grounds for rejection of a plaint? **[50 Words, RJS-1989]**
22. On 1st July 1980, A let out a shop to B monthly rent of Rs. 150/- situated at Jaipur belonging to his joint family. B is not paying rent since 1st July, 1986. A served notice of demand and ejectment upon B on June 16, 1989. On June 30, 1989, A died leaving behind his widow C, major son D, minor son B and married daughter F. After the death of A, B has started denying their title. A suit is to be filed against B for the recovery of arrears of rent and ejectment on the grounds of default in payment of rent and denial of title. Draft plaint and written statement. **[200 Words, RJS-1989]**
23. A borrowed Rs. 3000/- from B against a promote. He acknowledged the debt within three years. He refused to pay his debt. B wants to sue A. Draft a plaint and written statement taking all possible defences. **[400 Words, RJS-1991]**
24. Assuming necessary facts draft: **[400 Words, RJS-1992]**
a) a plaint and
b) a written statement taking all possible defences in a suit for malicious prosecution.
25. Assuming necessary facts draft: **[400 Words, RJS-1994]**

- a) a plaint and
 - b) a written statement taking all defences in a suit for specific performance of a contract.
26. Draft a plaint, giving details in a suit for libel by innuendo. **[200 Words, UPPCS (J)-1982]**
27. Draft a plaint, giving details in a suit for false imprisonment by a police officer. **[200 Words, UPPCS (J)-1983]**
28. Draft a plaint, giving details in a suit for the recovery of damages for Malicious Prosecution. **[200 Words, UPPCS (J)-1984]**
29. Draft a plaint, giving details in a suit for the recovery of damages for injuries caused by negligent driving of car. **[200 Words, UPPCS (J)-1985]**
30. Draft a plaint for the recovery of arrears of rent and ejectment of a tenant on ground of default. **[200 Words, UPPCS (J)-1986]**
31. Draft a plaint either claiming damages for malicious prosecution or for specific performance of contract. **[200 Words, UPPCS (J)-1987]**
32. Draft a plaint in a suit in which a demand has been made by the landlord against a tenant for arrears of rent in respect of residential house and for the tenant's ejectment therefrom on the ground that the tenancy which was from month to month as been terminated by a notice for ejectment given by the landlord. **[200 Words, UPPCS (J)-1988]**
33. 'B' agreed with 'A' to sell his house for Rs. 40,000/- in pursuance of the agreement, which was registered also. 'A' gave Rs. 35,000/- to 'B' towards the price and promised to pay the balance of 5,000/- at the time of registration of sale-deed. B gave possession of the house to 'A' and assured him that he would execute the sale-deed as early as possible. However, B avoided to execute sale-deed on the pretext of the other.

On the above facts, draft a plaint on behalf of 'A' claiming specific performance of contract. **[200 Words, UPPCS (J)-1991]**

34. Plaintiff 'A' is owner of a house. In one of its portions, defendant 'B' resides. The defendant has not paid rent for last 10 months. On this very ground, the plaintiff wants to get his house vacated and also to recover arrears of rent due. **[200 Words, UPPCS (J)-1992]**
35. On 5th January, 1994, Mohan Lal Kashyap instituted a criminal complaint against Ghanshyam Das Sharma, who was a shopkeeper. Consequently, Ghanshyam Das Sharma had to remain in prison and his shop was also closed. After trial the Criminal Court acquitted Ghanshyam Das Sharma on 5th July, 1994 on the ground that the criminal complaint of Mohan Lal Kashyap was false and baseless.
- Now, Ghanshyam Das Sharma wants to file a suit against Mohan Lal Kashyap for malicious prosecution. In the light of the above mentioned facts draft a plaint for the plaintiff Ghanshyam Das Sharma. **[200 Words, UPPCS (J)-1997]**
36. 'B' obtains a house from 'A' on rent and continues to pay monthly rent to 'A'. 'S' on the ground that the said house has been sold to him by 'A' on 1.1.96 wants to file a suit for rent since 1.1.96. Prepare a plaint on behalf of 'S' and write a short judgment. **[600 Words, UPPCS (J)-1999]**
37. 'A' and 'B' were neighbours. On 5th Jan. 1998 'B' instituted a criminal complaint against 'A', who was an employee in the Bank. Consequently 'A' has to remain in prison. After trial the criminal Court acquitted 'A' on 11th Feb, 1999 on the ground that the criminal complaint of 'B' false and baseless. Now 'A' wants to file suit against 'B' for malicious prosecution. Draft a plaint on behalf of 'A' and write a short judgement. **[600 Words, UPPCS (J)-2000]**

CHAPTER XV

WRITTEN STATEMENT

[ORDER VIII]

Dear aspirant,

A written statement ordinarily means a reply to that plaint filed by the plaintiff; it is the pleading of the defendant. Under Order 8, Rule 1, the defendant must, at or before the first hearing or within such time as permitted by the Court (not more than 30 days from the date of service of summons), present a written statement of his defence.

Under 2002 Amendment, Rule 1 lays down that the defendant shall, within 30 days from the date of service of summons on him, present a written statement; if he fails to do so, he shall be allowed to file the same on such other day as specified by the Court, for reasons to be recorded in writing, but which shall not be later than 90 days from the date of service of summons.

A defendant is bound to produce all the documents in support of his defence, or claim for set - off or counter claim which are in his possession or power. Any such document, if not produced, shall not without the Court's leave, be received in evidence. Nothing in this rule shall apply to documents produced for the cross - examination of the plaintiff's witnesses or handed over to a witness merely to refresh his memory (Rule 1A, Order 8).

— In a written statement, the defendant is required to deal with every material fact alleged by the plaintiff, and also state new facts in his favour or take legal objections against the plaintiff's claim.

Rule 2 of Order 8 lays down that "new facts", such as the suit is not maintainable, or that the transaction is void etc., and all such grounds of defence, if not raised, would take the plaintiff by surprise, or would raise issues of fact not arising out of the plaint such as fraud, limitation, payment, release, performance or facts showing illegality etc. must be raised.

The effect of this rule is to require that the defendant to tell his opponent what he is going to prove in the Court. Thus, if the plea is not taken, it may be presumed that it has been waived. And the defendant will not be entitled, as of right, to rely on any ground of defence which he has not taken in his written statement. However, a plea of limitation or other pure questions of law could be taken up at a later stage.

Rules 3, 4 and 5 deal with the manner in which allegations of fact in the plaint should be traversed or denied. The written statement must deal specifically with each allegation of fact (except damages) in the plaint and when a defendant denies any such fact, he must not do so evasively or vaguely, but answer the point of substance, otherwise the said fact shall be taken to be admitted.

Rule 6 provides that every allegations of fact in the plaint, if not denied or stated to be not admitted in the pleadings of the defendant, shall be taken to be admitted, except against a person under disability (i.e. minor). Further, if the defendant has not filed a pleading at all, the Court can pronounce a judgment on the basis of facts in the plaint, except against a person under disability. However, the Court may, in its discretion, require any such fact to be proved.

Any new ground of defence, which has arisen after the institution of the suit or presentation of a written statement claiming a set - off or counter - claim, may be raised by the defendant or plaintiff, as the case may be, in his written statement (Rule 8, Order 8).

Rule 9 (as amended by 2002 Amendment) lays down that no pleading subsequent to the written statement of a defendant other than by way of defence to

set - off or counter - claim shall be presented except by the Court's leave. But the Court may at any time require a written statement or additional written statement from any of the parties and fix a time of not more than 30 days for presenting the same.

Rule 10 (as amended by 2002 Amendment) provides that where any party from whom a written statement is required under Rule 1 or Rule 9 fails to present the same within the time permitted by the Court, the Court shall pronounce judgment against him, or make such order in relation to the suit as it thinks fit. A decree will be drawn according to the said judgment.

Rules 5 and 10 are permissive in nature i.e. enable the Court to pronounce a decree straightway on the basis of the plaint. It is not mandatory for the Court to pass a decree in plaintiff's favour because a written statement has not been filed.

In RJS, UPPCS (J), UAPCS (J), Bihar Judiciary Exam, MPPCS (J), a compulsory question of plaint and written statement is asked. In the given question, you will have to prepare a plaint and a written statement. So the practice of writing a plaint and a written statement is indispensable. You should try to draft a plaint and a written statement on the basis of questions given in the end of the chapter. Important topics for writing a plaint and written statement are given below:

- i) Written statement in suit for malicious prosecution.
- ii) Written statement in a suit for specific performance of contract.
- iii) Written statement in a suit for eviction of a tenant.

Wishing you all the best,

Yours Sincerely,
RAHUL

CHAPTER XV

WRITTEN STATEMENT

[ORDER VIII]

SYNOPSIS

I. Meaning

II. Period for filing a written statement (Order 8, Rule 1)

III. General rules for drafting a written statement (Rules 1-5, 7-10)

IV. Special rules of defence

V. Drafted plaint and written statement

1. Plaint
2. Written statement

VI. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XV

WRITTEN STATEMENT

[ORDER VIII]

I. MEANING

The expression "written statement" has not been defined in the Code, it is "a term of specific connotation ordinarily signifying a reply to the plaint filed by the plaintiff". In other words, a written statement is the pleading of the defendant wherein he deals with every material fact alleged by the plaintiff in his plaint and also states any new facts in his favour or takes legal objections against the claim of the plaintiff.

II. PERIOD FOR FILING A WRITTEN STATEMENT (ORDER 8, RULE 1)

A defendant should, within thirty days from the service of summons on him, present a written statement of his defence. The said period, however, can be extended up to ninety days.

III. GENERAL RULES FOR DRAFTING A WRITTEN STATEMENT (RULES 1-5, 7-10)

A written statement should be drafted carefully and artistically. Before proceeding to draft a written statement it is absolutely necessary to examine the plaint carefully. Like a plaintiff, a defendant may also take a number of defences, either simply or in the alternative, even though they may be inconsistent, provided they are maintainable at law and are not embarrassing.

IV. SPECIAL RULES OF DEFENCE

Over and above the general defences, Rules 1 to 5 and 7 to 10 deal with special points regarding filing of a written statement:

- a) Like a plaintiff, a defendant is also bound to produce all the documents in support of his defence, or claim for set - off or counter - claim which are in his possession. If the defendant fails to produce them, they will not be received in evidence except with the leave of the Court. This provision, however, does not apply to the following documents:
 - i) documents reserved for the purpose of cross - examination of the plaintiff's witnesses; or
 - ii) documents handed over to a witness merely to refresh his memory.
- b) New facts, such as the suit is not maintainable, or that the transaction is either void or voidable in law, and all such grounds of defence as, if not raised, would take the plaintiff by surprise, or would raise issues of fact not arising out of the plaint, such as fraud, limitation, release, payment, performance or facts showing illegality etc. must be raised.
- c) The denial must be specific. It is not sufficient for a defendant in his written statement to deny generally the grounds alleged by the plaintiff, but he must deal specifically with each allegation of fact which he does not admit, except damages.
- d) The denial should not be vague or evasive. Where a defendant wants to deny any allegation of fact in the plaint, he must do so clearly, specifically and explicitly and not evasively or generally. Thus, if it is alleged that he received a certain sum of money, it shall not be sufficient to deny that he received that particular amount, but he must deny that he received that sum or any part thereof, or else set out how much he received.
- e) Every allegation of fact in the plaint, if not denied specifically or by necessary implication, or stated to be not admitted in the pleadings of the defendant, shall be taken to be admitted except as against a person under disability. The Court may, however, require proof of any such fact otherwise than by such admission. When the defendant has not filed a written statement the Court may either pronounce the judgment on the basis of the facts stated in the plaint (except as against a person under disability), or may require any such fact to be proved. If a judgment is pronounced by the Court, a decree shall be drawn up in accordance with it.

A few illustrative cases will make the position clear:

In an action against a lessee to set aside the lease, the plaintiff alleges in his plaint that defendant offered to the manager of the plaintiff a bribe of Rs. 5000 at the defendant's office.

January 15, 1997; and the defendant in his written statement states that he did not offer to the plaintiff's manager a bribe of Rs. 5000 at the defendant's office on January 15, 1997; the denial is evasive. Here the point of substance is that a bribe was offered (neither the day nor the amount) and that is not met. The defendant might have offered any other amount on another day at a different place. Since the point of substance is the offer of bribe, it must be clearly and specifically denied and the defendant should state that he never offered a bribe of Rs. 5000 or of any other sum, on any day, at any place, to the plaintiff's manager as alleged or at all.

Similarly, if the plaintiff asserts:

The defendant broke and entered into the shop of the plaintiff and seized, took and carried away all the furniture, stock - in - trade, and other effects which were therein.

The correct traverse will be:

The defendant never broke or entered into the shop of the plaintiff or seized, took or carried away any of the furniture, stock - in - trade, and other effects which were therein.

If the plaintiff alleges that the defendant took possession of the plaintiff's house and the defendant wants to deny both the allegations of having taken possession of the house as well as the plaintiff's ownership of the house, he must do so expressly by saying:

- i) The defendant never took possession of the house.
- ii) The said house is not of the plaintiff.

A single traverse, "the defendant denies that he took possession of the plaintiff's house", would not be specific since it may mean that the defendant only denies having taken possession of the house and not the ownership of the plaintiff.

- f) Where the defendant relies upon several distinct grounds of defence or set - off or counter - claim founded upon separate and distinct facts, they should be stated separately and distinctly.
- g) Any new ground of defence which has arisen after the institution of the suit or presentation of a written statement claiming a set - off or counter - claim may be raised by the defendant or plaintiff, as the case may be, in his written statement. Here the Court is empowered to take notice of subsequent events.
- h) No pleading after the written statement of the defendant other than by way of defence to a set - off or counter - claim can be filed. The Court may, however, allow any party to file his pleading upon such terms as it thinks fit.
- i) If the defendant fails to present his written statement within the time permitted or fixed by the Court, the Court will pronounce the judgment against him or pass such order in relation to the suit as it thinks fit and a decree will be drawn up according to the said judgment.

V. DRAFTED PLAINT AND WRITTEN STATEMENT

In RJS, UPPCS (J), MPPCS (J), UAPCS (J), Haryana Judiciary Examination etc., generally two questions are asked on drafting a plaint and a written statement on a given topic. Drafting a plaint and a written statement is an art but the knowledge of relevant provisions of law is indispensable. A model of plaint and written statement is given below. Please study the models carefully and try to write plaints and written statement on given topics in questions of previous years' examinations.

1. Plaint

IN THE COURT OF DISTRICT JUDGE, JAIPUR (Rajasthan)

Civil Suit No. 0562 of 2003

Hitender Sharma S/O Sh. Mahavir Prasad Sharma,
Caste - Brahmin, age - 26, residing at 76 - P Block,

Jaipur (Rajasthan)

..... Plaintiff

Versus

Somesh Gupta S/O Sh. Shanti Swaroop Gupta,
Caste - Gupta, age 28, residing at W. D. No. 4,

Jaipur (Rajasthan)

..... Defendant

Suit for specific performance of contract

The Plaintiff, above named, most respectfully states as under:

- i) That by an agreement in writing dated January 1, 2002, signed by the defendant, the defendant contracted to sell to the plaintiff his house referred to in the said agreement for Rs. 5,00,000/-. An amount of Rs. 50,000/- was paid by the plaintiff to the defendant as earnest money at the time of agreement.
- ii) That the plaintiff was ready and willing to perform his part of the contract and on June 1, 2002, he tendered Rs. 4,50,000/- the balance of consideration to the defendant and called upon him to execute a sale deed, but the defendant refused to do so.
- iii) That the plaintiff has always been and is still ready and willing to perform his part of the contract by paying the balance of purchase price to the defendant.
- iv) That the cause of action arose on January 1, 2002 when the defendant executed the agreement to sell the suit property to the plaintiff; and on June 1, 2002, when the plaintiff tendered the balance amount to the defendant and showed his readiness and willingness to perform his part of the contract but the defendant refused to execute the sale deed and thereby failed to perform his part of the contract.
- v) That the cause of action arose in Jaipur because the agreement was made in Jaipur, the suit property is situate in Jaipur and the defendant also resides in Jaipur within the jurisdiction of this Court and this Court has, therefore, jurisdiction to try this suit.
- vi) That the value of the property, i.e. the subject matter of the suit for the purpose of jurisdiction as well as Court fees is Rs. 5,00,000/-.
- vii) The plaintiff, therefore, prays:
 - a) that the defendant may be ordered to transfer the suit property by executing a sale deed in favour of the plaintiff;
 - b) that in the alternative, the defendant may be ordered to refund to the plaintiff the amount of Rs. 50,000/- paid as earnest money and also to pay Rs. 4,50,000/- as damages for committing breach of the contract;
 - c) that the defendant may be ordered to pay the plaintiff's costs of this suit.
- viii) The description of the suit property is given in the schedule annexed to this plaint.

(Signature)

Plaintiff's Advocate

(Signature)

Plaintiff

VERIFICATION

I, Hitender Sharma, the plaintiff above - named do solemnly declare that what is stated in paras 1 to 4 is true to my knowledge and that what is stated in the remaining paras is true on the basis of the information received by me from my counselor.

Place: Jaipur

Date: 01/09/2003

(Signature)

Plaintiff

SCHEDULE

Description of the Suit Property

The House is situated in Jawahar Nagar. Its number is 22, in 'E' Block and Sector No. 4 i.e. 4 - E - 22, Jawahar Nagar, Jaipur. The boundaries of the suit property are as under:

- i) **To the East** - Main road leading to Government Civil Hospital.

- <https://goo.gl/GU7xEZ> (Hard copy)
- ii) **To the West** – A Public Park i.e. Swami Vivekananda Public Park.
 - iii) **To the North** – The House of Dr. Arun Moga.
 - iv) **To the South** – The House of Justice Krishna Srivastava.

2. Written Statement

IN THE COURT OF DISTRICT JUDGE, JAIPUR (Rajasthan)

Civil Suit No. 0562 of 2003

Hitender Sharma S/O Sh. Mahavir Prasad Sharma,
Caste - Brahmin, age 26, residing at 76 - P - Block, Jaipur (Rajasthan)

..... Plaintiff

Versus

Somesh Gupta S/O Sh. Shanti Swaroop Gupta,
Caste - Gupta, age 28, residing at W. D. No. 4,
Near Microscope Tower, Old Abadi, Jaipur (Rajasthan)

..... Defendant

Written statement in a suit for specific performance of contract

The written statement on behalf of the defendant above - named:

- i) That the defendant denies that he entered into an agreement to sell the suit property to the plaintiff on January 1, 2002 or on any other date and that the plaintiff paid Rs. 50,000/- or any other amount to him as earnest money as alleged in para 1 of the plaint.
- ii) That the defendant denies that on June 1, 2002 or on any other date, the plaintiff tendered Rs. 4,50,000/- or any other amount to him and called upon him to execute the sale deed as alleged in para 2 of the plaint. The defendant says that since it is not true that he executed any agreement to sell the suit property to the plaintiff, the question of the plaintiff tendering the balance of consideration and the plaintiff being ready and willing to perform his part of the alleged contract did not arise at all and the whole story is got up and false.
- iii) That the defendant says that in view of what is stated above, the plaintiff has no cause of action to file the suit against him.
- iv) The defendant, therefore, submits that the plaintiff is not entitled to any of the relief claimed by him in the plaint and the suit filed by him be dismissed with costs.

Place: Jaipur

Date: 20/09/2003

(Signature)

Defendant's Advocate

(Signature)

Defendant

VERIFICATION

I, Somesh Gupta, the defendant above - named do solemnly declare that what is stated in paras 1 and 2 is true to my knowledge and that what is stated in the remaining paras is stated on information received by me and I believe it to be true.

(Signature)

Defendant

VI. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MP PCS (J), BJE, HJS, HARYANA JS ETC.]

- 1. Draft a plaint claiming damages for malicious prosecution. Prepare a written statement denying the claim. Frame issues and write a judgment in Plaintiff's favour. [600 Words, RJS-1969]

2. Setting out your own facts draw up a plaint and a written statement in an inter pleader suit and write a short judgment. **[600 Words, RJS-1970]**
3. Imagining your own facts draw up a plaint and a written statement and also write a short judgment in a suit either for malicious prosecution or for a breach of warranty. **[600 Words, RJS-1971]**
4. Imagine your own facts and draft a plaint for the recovery of damages for malicious prosecution and prepare a written statement as well. Also write a short judgment. **[600 Words, RJS-1975]**
5. Draw up a plaint and a written statement in a suit for specific performance of a contract of sale of immovable property and also write a short judgment. **[600 Words, RJS-1974]**
6. A has a right of way from his house over the land of B to the public highway. B obstructs A and his servants passing along the way. A wants to bring a suit. Please draft a suitable plaint for him. Also attempt a written statement. Frame issues and write a short judgment. **[600 Words, RJS-1976]**
7. B makes a false representation to A that C is solvent and in good credit. A is induced to sell goods to C on credit. C fails to pay. Can A bring a suit against C and B both and if so, please draft a plaint and also the written statement, frame issues and write a short judgment. **[600 Words, RJS-1976]**
8. Draw up a plaint setting out your own facts for a suit brought by the sons for setting aside alienation of joint family property by the father as the Karta and also draft a suitable written statement. Also write a short judgment. **[600 Words, RJS-1977]**
9. a) Draft a plaint and written statement in suit for specific performance of a contract to sell immovable property. Also write a short judgment.
b) Is it necessary for the plaintiff in such a suit to ask specifically for the relief of possession in the plaint? **[600 Words, RJS-1977]**
10. A filed a suit against B alleging that B had mortgaged his house on September 1, 1978 for a sum of Rs. 5000/- stipulating to pay interest at the rate of 9 percent per annum on the mortgage loan. B denied the fact of having taken loan and the execution of the mortgage deed. A examined two witnesses in his evidence who deposed that B had put his signature on the mortgage deed in their presence. No attesting witness of the mortgage deed was examined although they were alive. Draft a plaint on behalf of A, prepare a written statement on behalf of B and frame the issues. Also write a judgment in the above matter. **[600 Words, RJS-1979]**
11. A leased out his house on a monthly rent of Rs. 60/- on March 1, 1976. A sued B for eviction. A issued a notice on March 10, 1978 to B calling upon him to vacate the premises by March 27, 1978. B pleaded the tenancy was not validly terminated, so the suit is liable to be dismissed. Draft a plaint for the eviction of B. Also prepare written statement, frame issues and write judgment in the above matter. **[600 Words, RJS-1979]**
12. Draft a plaint on behalf of a Government servant for arrears of his pay for six months which the State Government has failed to pay in spite of his representation to the Government. Also prepare a written statement on behalf of the Government, frame issues and write out a short judgment. **[600 Words, RJS-1979]**
13. Draw a plaint for the cancellation of a sale deed on ground of fraud or misrepresentation. Also prepare a written statement on behalf of the defendant, frame issues and write out a short judgment. **[600 Words, RJS-1979]**
14. Prepare a plaint and a written statement and frame issues on the following facts –
A died leaving behind a will bequeathing his properties in favour of his friend B to the exclusion of A's widow and children. The will included recitals that X and Y had secured possession of the properties belonging to A in pursuance of an alleged deed of sale, that its true nature was not sale and that it was actually a transaction of mortgage. B claimed title to the properties in suit on the strength of the will in his favour and instituted a suit challenging the previous sale of properties by A in favour of X and Y and seeking possession of the properties. A's widow and children do not contest the suit. X and Y contest the suit. **[400 Words, RJS-1980]**

15. On 1st July 1980, A let out a shop to B monthly rent of Rs. 150/- situated at Jaipur belonging to his joint family. B is not paying rent since 1st July, 1986. A Served notice of demand and ejectment upon B on June 16, 1989. On June 30, 1989, A died leaving behind his widow C, major son D, minor son B and married daughter F. After the death of A, B has started denying their title. A suit is to be filed against B for the recovery of arrears of rent and ejectment on the grounds of default in payment of rent and denial of title. Draft plaint and written statement. **[200 Words, RJS-1989]**
16. A borrowed Rs. 3000/- from B against a pronote. He acknowledged the debt within three years. He refused to pay his debt. B wants to sue A. Draft a plaint and written statement taking all possible defences. **[400 Words, RJS-1991]**
17. Assuming necessary facts draft: **[400 Words, RJS-1992]**
a) a plaint and
b) a written statement taking all possible defences in a suit for malicious prosecution.
18. Assuming necessary facts draft: **[400 Words, RJS-1994]**
a) a plaint and
b) a written statement taking all defences in a suit for specific performance of a contract.
19. Draft a plaint, giving details in a suit for libel by innuendo. Draft a written statement in a suit. **[400 Words, UPPCS (J)-1982]**
20. Draft a plaint, giving details in a suit for false imprisonment by a police officer. Draft a written statement in a suit. **[200 Words, UPPCS (J)-1983]**
21. Draft a plaint and a written statement giving details in a suit for the recovery of damages for Malicious Prosecution. **[400 Words, UPPCS (J)-1984]**
22. Draft a plaint and a written statement giving details in a suit for the recovery of damages for injuries caused by negligent driving of car. **[400 Words, UPPCS (J)-1985]**
23. Draft a plaint and written statement for the recovery of arrears of rent and ejectment of a tenant on ground of default. **[400 Words, UPPCS (J)-1986]**
24. Draft a plaint either claiming damages for malicious prosecution or for specific performance of contract. Draft a written statement in a suit. **[400 Words, UPPCS (J)-1987]**
25. Draft a plaint and written statement in a suit in which a demand has been made by the landlord against a tenant for arrears of rent in respect of residential house and for the tenant's ejectment therefrom on the ground that the tenancy which was from month to month as been terminated by a notice for ejectment given by the landlord. **[400 Words, UPPCS (J)-1988]**
26. 'B' agreed with 'A' to sell his house for Rs. 40,000/- in pursuance of the agreement, which was registered also. 'A' gave Rs. 35,000/- to 'B' towards the price and promised to pay the balance of 5,000/- at the time of registration of sale-deed. 'B' gave possession of the house to 'A' and assured him that he would execute the sale-deed as early as possible. However, 'B' avoided to execute sale-deed on the pretext or the other.
- On the above facts, draft a plaint and written statement on behalf of 'A' claiming specific performance of contract. **[400 Words, UPPCS (J)-1991]**
27. Plaintiff 'A' is owner of a house. In one of its portions, defendant 'B' resides. The defendant has not paid rent for last 10 months. On this very ground, the plaintiff wants to get his house vacated and also to recover arrears of rent due. Write a plaint and written statement. **[400 Words, UPPCS (J)-1992]**
28. On 5th January, 1994, Mohan Lal Kashyap instituted a criminal complaint against Ghanshyam Das Sharma, who was a shopkeeper. Consequently, Ghanshyam Das Sharma had to remain in prison and his shop was also closed. After trial the Criminal Court acquitted Ghanshyam Das Sharma on 5th July, 1994 on the ground that the criminal complaint of Mohan Lal Kashyap was false and baseless.
- Now, Ghanshyam Das Sharma wants to file a suit against Mohan Lal Kashyap for malicious prosecution. In the light of the above mentioned facts draft a plaint and a written statement for the plaintiff Ghanshyam Das Sharma. **[400 Words, UPPCS (J)-1997]**
29. 'A' and 'B' were living in Chennai as on 18.11.1989. 'A' lent Rs. 28,000/- to 'B'. This amount was paid through a cheque issued at Chennai. 'B' executed a promissory note on the same date favouring 'A' and promising to repay the amount with interest @ 18% p.a. In 1994 'A'

shifted to Delhi even though 'B' continued to live in Chennai. Because 'A' had not either repaid the principle loan or interest or any part thereof, 'A' filed a suit in 1997 in a Civil Court at Delhi for injunction against 'B' with a prayer to the Court to pass decree of injunction against 'B' to pay entire loan amount with interest to 'A'.

'B' has engaged you as his Counsel. Draft a written statement on his behalf limited to raising of all legal pleas against the suit. Each legal plea must be raised in a separate paragraph. [400 Words, Jharkhand Judicial Exam-2000]

Ranvix IAS

CHAPTER XVI

SET OFF AND COUNTER CLAIM

Dear aspirant,

In a suit for recovery of money by the plaintiff, when the defendant finds that he has also a claim of some amount against the plaintiff, he can claim a set - off in respect of the said amount (Order 8, Rule 6). The doctrine of set - off may be defined as "the extinction of debts of which two persons are reciprocally debtors to one another by the credits of which they are reciprocally creditors to one another." Thus, it is a "reciprocally acquittal of debts between two persons."

Rule 6 obviates the necessity of filing a fresh suit by the defendant. When a defendant pleads set - off, he is put in the position of plaintiff as regards the amount claimed by him. A defendant may claim a set - off even if the plaintiff's suit is dismissed. The defendant should present a written statement for the claim of set - off at the first hearing of the suit, but not afterwards. The plaintiff may present a written statement in respect of set - off at the defendant.

Following conditions must be fulfilled for filing a set - off:-

- i) The suit must be for recovery of money.
- ii) The amount claimed to be set-off must be an ascertained sum of money and legally recoverable.
- iii) It must be recoverable by the defendant or by all the defendants, from the plaintiff or all the plaintiffs.
- iv) It must not exceed the pecuniary jurisdiction of the Court in which the suit is brought.
- v) Both the parties must fill, in the defendant's claim to set - off, the same character as they fill in the plaintiff's suit.

Rule 6 deals with legal set-off only. Legal set-off was allowed by Courts of Common Law. The provisions of legal set - off are not exhaustive. There are cases where the defendant is allowed to set - off even an unascertained sum by the Courts of Equity in England, by taking the view that if the plaintiff's claim and defendant's claim arise out of the same transaction, it would be inequitable to drive the defendant to a separate suit. It is called equitable set - off.

Legal set - off can be claimed as of right whereas the equitable set - off is dependent on the Court's discretion. Further, in legal set - off, it is not necessary that the cross - demands should arise out of the same transaction. A claim by way of equitable set - off may be allowed even if it is time - barred when there is a fiduciary relationship between the parties. It may be noted that equitable set - off is recognised under Order 20, Rule 19 (3).

A defendant in a suit may, in addition to his right to plead a set - off, set up a counterclaim to defeat the plaintiff's relief. It may be defined as "a claim made by the defendant in a suit against the plaintiff." It is substantially a cross - action or cross - suit. Before the Amendment Act of 1976, there was no provision for it. The Supreme Court, however, held the right to make a counterclaim, as statutory in **Laxmidas v. Nanabhai (AIR 1964 SC)**.

Rules 6A to 6G of Order 8 contain provisions regarding a counter - claim. The Court may pronounce a final judgment both on the original claim and the counter - claim. The counter - claim is to be treated as a plaint and the plaintiff can file a written statement in answer to it. This is the exceptional case where a plaintiff files a written statement. The plaintiff can argue that the defendant's claim ought not to

be disposed of by way of a counter - claim, but by a separate suit, and the Court may pass an order to that effect under Rule 6C of Order 8. Even if the plaintiff's suit is stayed, discontinued, dismissed or withdrawn, the counter - claim will be decided is important for RJS, DJS, Bihar JE, MPCJ, UPPCS (J), HJS and Haryana Judicial Exam. Short Notes type questions are asked from this chapter. Following topics are most important:

- i) Distinction between legal set - off and equitable set - off.
- ii) Distinction between counter - claim and set - off.
- iii) Legal and Equitable set - off: Comparison
- iv) Set - off: Meaning
- v) Counter - claim: Meaning

Wishing you all the best,

Yours Sincerely,
RAHUL

RAHUL

CHAPTER XVI

SET OFF AND COUNTER CLAIM

SYNOPSIS

A. SET-OFF [ORDER 8, RULE 6]

- I. Meaning: Legal set-off**
- II. Illustrations**
- III. Conditions for Legal set-off**
- IV. Equitable set-off**
- V. Legal and Equitable set-off: Distinction**

B. COUNTER CLAIM [ORDER 8, RULE 6A TO 6G]

- I. Meaning**
- II. Effect**
- III. Set - off and counter claim: Distinction**

C. QUESTIONS SECTION

- I. Questions based on case - laws and illustrations**
- II. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]**

Review

CHAPTER XVI

SET OFF AND COUNTER CLAIM

A. SET-OFF [ORDER 8, RULE 6]

I. MEANING: LEGAL SET-OFF

Where in a suit for recovery of money by the plaintiff, the defendant finds that he has also a claim of some amount against the plaintiff, he can claim a set-off in respect of the said amount. The doctrine of set-off may be defined as "the extinction of debts of which two persons are reciprocally debtors to one another by the credits of which they are reciprocally creditors to one another. A plea of set-off is "a plea whereby a defendant acknowledges the justice of the plaintiff's demand, but sets up another demand of his own, to counterbalance that of the plaintiff; either in whole or in part". Thus, it is a "reciprocal acquittal of debts between two persons". The rights of the defendant to claim set-off has been recognized under Rule 6. It obviates the necessity of filing a fresh suit by the defendant.

II. ILLUSTRATIONS

- i) A bequeaths Rs. 2000/- to B and appoints C his executor and residuary legatees. B dies and D takes out administration to B's effects, C pays Rs. 1000/- as surety for D: then D sues C for the legacy. C cannot set-off the debt of Rs. 1000/- against the legacy, for neither C nor D fills the same character with respect to the legacy as they fill with respect to the payment of Rs. 1000/-.
- ii) A dies intestate and in debt to B. C takes out administration to A's effects and B buys part of the effects from C. In a suit for the purchase-money by C against B, the latter cannot set-off the debt against the price, for C fills two different characters, one as the vendor to B, in which he sues B, and the other as representative to A.
- iii) A sues B on a bill of exchange. B alleges that A has wrongfully neglected to insure B's goods and is liable to him in compensation which he claims to set-off. The amount not being ascertained cannot be set-off.
- iv) A sues B on a bill of exchange for Rs. 500/-. B holds a judgment against A for Rs. 1000/-. The two claims being both definite, pecuniary demands may be set-off.
- v) A sues B for compensation on account of trespass. B holds a promissory note for Rs. 1000/- from A and claims to set-off that amount against any sum that A may recover in the suit. B may do so, for as soon as A recovers, both sums are definite pecuniary demands.
- vi) A and B sue C for Rs. 1000/-. C cannot set-off a debt due to him by A alone.
- vii) A sues B and C for Rs. 1000/-. B cannot set-off a debt due to him alone by A.
- viii) A owes the partnership firm of B and C Rs. 1000/-. B dies, leaving C surviving. A sues C for a debt of Rs. 1500/- due in his separate character. C may set-off a debt of Rs. 1000/-.

III. CONDITIONS FOR LEGAL SET-OFF

A defendant may claim a set-off, if the following conditions are satisfied:

- a) The suit must be for the recovery of money (e.g. suit in a negotiable instrument). A suit for merely for dissolution of partnership or for accounts is not a suit for money unless there is a prayer for payment of balance.
- b) The amount, claimed to be set-off must be an ascertained sum of money.
- c) The amount claimed to be set-off must be legally recoverable.
- d) It must be recoverable by the defendant or by all the defendants from the plaintiff or all the plaintiffs.
- e) It must not exceed the pecuniary jurisdiction of the Court in which the suit is brought.
- f) Both the parties must fill the same character.

IV. EQUITABLE SET-OFF

Rule 6 deals with legal set-off only. It was allowed by the Court of Common Law in England. It is always in respect of an ascertained sum of money. But there may be cases in which the defendant may be allowed a set-off in respect of an unascertained sum of money. The provisions of Rule 6 are not exhaustive. In addition to legal set-off, equitable set-off, as allowed by the Courts of Equity in England, may be claimed by the defendant in respect of even an unascertained sum

of money provided that both the cross-demands arise out of one and the same transaction or are so connected in the nature and circumstances, that they can be looked upon as parts of one transaction. In such a case, it would be inequitable to drive the defendant to a separate suit. Order 20, Rule 19 (3) of the Code recognises an equitable set-off. Thus, in a suit by a washerman for his wages, the defendant-employer may set off the price of the clothes lost by the plaintiff.

V. LEGAL AND EQUITABLE SET-OFF: DISTINCTION

The distinction between legal and equitable set-off may now be noted:

- i) In a legal set-off the amount claimed must be an ascertained sum of money, but in an equitable set-off the claim must be allowed even with respect to an unascertained sum of money.
- ii) In a legal set-off the Court is bound to entertain the adjudicate upon the plea when raised. In the case of an equitable set-off, however, it is not obligatory on the Court to adjudicate upon it and the defendant cannot claim it as a matter of right. The Court has the discretion to refuse to take notice of the equitable set-off if the investigation into the equitable claim is likely to result in delay.
- iii) In a legal set-off it is not necessary that the cross-demands arise out of the same transaction, but an equitable set-off is allowed only when the cross-demands arise out of the same transaction as the plaintiff's claim.
- iv) In a legal set-off the amount claimed to be set off must be legally recoverable and not barred by limitation at the date of the suit, but a claim by way of equitable set-off can be allowed even if it is barred at the date of the suit where there is fiduciary relationship between the plaintiff and the defendant.
- v) If the defendant's claim is barred at the date of the written statement but not barred at the date of the suit, the defendant can get an equitable set-off to the extent of the plaintiff's claim only but not for the balance found due to him. In a legal set-off the whole claim is admissible and the defendant can even get a decree for the balance.
- vi) A legal set-off requires a Court-fee because it is a claim that might be established by a separate suit in which a Court-fee would have to be paid. But there is no such fee required in an equitable set-off which is for an amount that may equitably be deducted from the claim of the plaintiff where a Court-fee has been paid on the gross amount. [*Madan Mohan Garg v. Bohra Ram La*, 1934 ALJ 421]

B. COUNTER CLAIM [ORDER 8, RULE 6A TO 6G]

I. MEANING

One of the pleas open to a defendant to defeat the relief sought by the plaintiff against him is a counter-claim. Counter-claim may be defined as 'a claim made by the defendant in a suit against the plaintiff'. Therefore, a defendant in a suit may, in addition to his right to plead a set-off, set up a counter-claim. It may be set up only in respect of claim for which the defendant can file a separate suit. Thus, a counter-claim is substantially a cross-action. Before the Amendment Act of 1976, there was no specific provision for counter-claim in the Code.

II. EFFECT

Such counter-claim has the effect of a cross-suit and the Court can pronounce a final judgment both on the original claim and the counter-claim. The counter-claim of the defendant will be treated as a plaint and the plaintiff has a right to file a written statement in answer to the counter-claim of the defendant. The effect of the counter-claim is that even if the suit of the plaintiff is stayed, discontinued, dismissed or withdrawn, the counter-claim will be decided on merits, and the defendant will have a right to get a decree for a counter-claim as claimed in the written statement. If the plaintiff does not file any reply to the counter-claim made by the defendant, the Court may pronounce the judgment against the plaintiff in relation to counter-claim made against him or make such order in relation to the counter-claim as it thinks fit. The counter-claim shall be treated as plaint and governed by the rules applicable to plaints. Similarly, a reply filed in answer

to a counter-claim shall be treated as written statement and governed by rules applicable to written statements.

III. SET-OFF AND COUNTER CLAIM: DISTINCTION

The distinction between a set-off and a counter-claim is very important and therefore, must be carefully considered:

- i) Set-off is a statutory defence to a plaintiff's action, whereas a counter-claim is substantially a cross-action.
- ii) Set-off must be for an ascertained sum or it must arise out of the same transaction; a counter-claim need not arise out of the same transaction.
- iii) Set-off is a ground of defence to the plaintiff's action. In other words, the former is a ground of defence, a shield, which if established, would afford an answer to the plaintiff's claim *in toto* (as a whole) or *pro tanto* (in proportion); the latter is a weapon of offence, a sword, which enables the defendant to enforce the claim against the plaintiff effectually as an independent action.
- iv) In the case of a legal set-off, the amount must be recoverable at the date of the suit, while in the case of a counter-claim the amount must be recoverable at the date of the written statement.
- v) When the defendant demands in a plaintiff's suit an amount below or up to the suit claim, it is a set-off *stricto sensu*, but when it is for a larger amount, the claim for excess amount is really a counter-claim.
- vi) In the case of set-off, the period of limitation under Limitation Act, 1963 will be counted on the date of filing the original suit in which set-off is claimed while in counter-claim the period of limitation will be reckoned from the date of filing the written statement.

C. QUESTIONS SECTION

I. QUESTIONS BASED ON CASE - LAWS AND ILLUSTRATIONS

1. A owes the partnership firm of B and C Rs. 1000/-. B dies leaving C surviving. A sues C for a debt of Rs. 1500/- due in his separate character. C wants to set-off the debt of Rs. 100/-. Can C claim set-off? Give reasons. [50 Words]
2. A sues B for Rs. 15000/-. The Court in which the suit filed by A has pecuniary jurisdiction upto Rs. 20,000/- only. Can B set-off an amount of Rs. 30,000/-? Why? [50 Words]
3. A sues B for Rs. 10,000/-. Can B claim set-off of any amount due to him towards salary for performing illegal or immoral activities of A? Give reasons. [50 Words]
4. A sues B for Rs. 10,000/-. Can B set-off any amount due to him on a promissory note executed by A before five years? Give answer with reference to Limitation Act, 1963. [50 Words]

II. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA IS ETC.]

1. Explanatory Notes: Set-off. [200 Words, RJS-1970]
2. Short Notes: Set-off [150 Words, RJS-1975, 1979, BJE-1978]
3. What remedies are available to the defendant in a suit for the recovery of money when the defendant also has a claim legally recoverable from the plaintiff? [200 Words, RJS-1974]
4. Explain Set-off, counter-claim and equitable set off under the Civil Procedure Code, 1908. [150 Words, HJS-1998]
5. a) What is set-off? Discuss the provisions regarding set off as provided under the Civil Procedure Code and distinguish between legal and equitable set-off.
b) A sues B, on a Bill of Exchange. B alleges that A has wrongfully neglected to insure B's goods and is liable to him in compensation which he claims to set off. Can the amount be set-off? Discuss. [600 Words, RJS-2001]
6. Short Notes: Equitable Set-off [200 Words, BJE-1975, 1977]
7. In which of the following cases, can C set-off the claim?

- a) A sues C on a bill of exchange. C alleges that A has wrongfully neglected to insure C's goods and liable to pay compensation.
 - b) A sues C on a Bill of exchange for Rs. 500/-. C holds a judgment against A for recovery of debt of Rs. 1000/-.
 - c) A sues B and C for Rs. 1000/-. The debt is due to C alone by A.
 - d) A and B sues C for Rs. 1000/-. The debt is due to C by A alone.
8. What is a counter - claim? **[15 words, RJS - 1989]**
9. What do you understand by "set-off" and "counter-claim"? What are the differences between them? **[200 words, UPPCS (J) - 1997]**

CHAPTER XVII NON - APPEARANCE OF PARTIES

[ORDER 9]

Dear aspirant,

Order 9 of the Code enacts the law with regard to the appearance of the parties to the suit and the consequence of their non - appearance. Rule 1 requires the parties to the suit to attend the Court in person or by their pleaders on the day fixed in the summons for the defendant to appear. Rule 2 enacts that the suit may be dismissed where the summons is not served upon the defendant in consequence of the plaintiff's failure to pay costs for service of summons or to present copies of the plaint. However, no such order shall be made if the defendant or his agent appears and answers (as amended by the 2002 Amendment).

Where neither the plaintiff nor the defendant appears, the Court may dismiss the suit (Rule 3). However, there is no bar to a fresh suit (where the suit has been dismissed under Rules 2 - 3), subject to the law of limitation, in respect of the same cause of action; or the plaintiff may apply to set aside dismissal order (Rule 4). If sufficient cause is shown by the plaintiff for his non - appearance, the Court may set aside the dismissal order.

Rule 5 provides for dismissal of suit where plaintiff, after summons returned unserved, fails for 7 days to apply for fresh summons (as amended by the 1999 Amendment); unless the plaintiff satisfies the Court that:

- i) he has failed after using his best endeavours to discover the residence of the defendant, or
- ii) such defendant is avoiding service of process, or
- iii) there is any other sufficient cause of extending the time. Where the suit is dismissed under the above circumstances, the plaintiff may bring a fresh suit.

Rule 6 lays down that where the plaintiff appears and the defendant does not appear, the plaintiff has to prove service of summons on the defendant. If the service of summons is proved, the Court may proceed *Ex-parte* against the defendant (i.e. proceed with the case viz. taking of evidence, cross - examination, etc. in the absence of the defendant) and may pass a decree in favour of the plaintiff, if the plaintiff proves his case.

Where it is not proved that the summons is duly served on the defendant, the Court will direct a fresh summons to be served on the defendant. Where it is proved that the summons is duly served on the defendant but there was not sufficient time to enable him to appear, the Court shall postpone the hearing of the suit to a future day and give notice of such day to the defendant. In both these cases, the plaintiff will pay the costs occasioned by the postponement.

Where the Court has adjourned the hearing of the suit *Ex-parte*, and the defendant, at or before such hearing appears and assigns good cause for his previous non - appearance, the Court may hear him upon such terms as it directs as to the costs or otherwise; he may be heard in answer to the suit as if he had appeared on the day fixed for his appearance (Rule 7).

Ex-parte proceedings does not mean that the defendant cannot be allowed to appear at all in the subsequent proceedings of the suit. It only relates to the particular day of hearing on which the defendant remains absent. The rule merely authorises the Court to proceed *Ex-parte* on the day when the defendant does not appear. The right to proceed *Ex-parte* is a right which accrues from day to day; it is not a mortgaging of the future.

Where the defendant appears and the plaintiff does not appear, and the defendant does not admit the plaintiff's claim, wholly or partly, the Court shall pass an order dismissing the suit. But if the defendant admits the plaintiff's claim as a whole or a part thereof, the Court will pass a decree against the defendant upon such admission and dismiss the suit for the rest of the claim (Rule 8).

Rule 9 precludes the plaintiff thereafter from filing a fresh suit on the same cause of action. He may, however, apply for an order to set aside the order of dismissal. If sufficient cause is shown by the plaintiff for his non-appearance, reopening is mandatory, but when sufficient cause is not shown, it is directory. Further, the plaintiff cannot appeal from the order of dismissal, but he can apply for a review.

The Court has no power to dismiss the suit where the plaintiff does not appear owing to death.

An *Ex-parte* decree is a decree passed in the absence of the defendant, which may be passed either at the first hearing or at an adjourned hearing. Such a decree is neither null and void nor inoperative but is merely voidable and unless and until it is annulled, it has all the force of a valid decree. The following remedies are available to set aside an *Ex-parte* decree: Application under Order 9, Rule 13; Appeal; Review; and Suit – if such decree was obtained by the plaintiff by fraud.

Rule 13 requires an application by the defendant to set aside *ex-parte* decree passed against him if there exists sufficient grounds for it, if the defendant satisfies the Court that:

- i) The summons was not duly served, or
- ii) He was prevented by any sufficient cause from appearing when the suit was called out for hearing the Court will set aside the decree on such terms as it thinks fit. Thus, it is a discretionary power of the Court.

The application under Rule 13 should be made within 30 days from the date of the decree; or where the summons is not duly served, within 30 days from the date of his knowledge of the decree. But no *Ex-parte* decree can be set aside without notice to the opposite party (Rule 14).

An appeal lies against an order rejecting an application to set aside an *Ex-parte* decree (Order 45, Rule 1). However, no appeal lies against an order setting aside an *Ex-parte* decree. Such order is revisable under Section 115.

The inherent power under Section 151 of the Code cannot be invoked for setting aside an *Ex-parte* decree when the defendant fails to establish existence of sufficient cause for his non-appearance.

The effect of setting aside an *Ex-parte* decree is that the suit is restored, the trial commences *de novo* (afresh) and the evidence recorded in the *Ex-parte* proceedings is not taken into account.

Following topics are important from this Chapter:

- i) Consequences of non-appearance of plaintiff.
- ii) Consequences of non-appearance of defendant.
- iii) Remedies.
- iv) *Ex-parte* decree and remedies.

Wishing you all the best,

Yours Sincerely,
RAHUL

CHAPTER XVII NON - APPEARANCE OF PARTIES

[ORDER 9]

SYNOPSIS

I. Introduction: Order 9

II. Appearance of Parties: Rules 1 and 12

III. Consequences of non-appearance of parties

1. Non-appearance of both the parties: Rule 3
2. Non-appearance of defendant: Rule 6, 10
3. Non-appearance of plaintiff: Rules 7 - 11

IV. *Ex-parte* Decree

1. Meaning
2. Remedies
 - a) *Application* [Order 9, Rule 13]
 - b) *Appeal* [Section 96 (2)]
 - c) *Review* [Order 47, Rule 1]
 - d) *Revision* [Section 115]
 - e) *Suit*
3. Effect of setting aside *Ex-parte* Decree

V. Questions based on Case - Laws

VI. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XVII

NON - APPEARANCE OF PARTIES

[ORDER 9]

I. INTRODUCTION: ORDER 9

The provisions of the Code of Civil Procedure are based on a general principle that, as far as possible, no proceeding in a Court of law should be conducted to the detriment of any party in his absence. Order 9 of the Code enacts the law with regard to the appearance of the parties to the suit and the consequences of their non-appearance. It also provides a remedy for setting aside an order of dismissal of the suit as also the setting aside of an *Ex-parte* decree passed against the defendant.

II. APPEARANCE OF PARTIES: RULES 1 AND 12

Rule 1 requires the parties to the suit to attend the Court in person or by their pleaders on the day fixed in the summons for the defendant to appear. Rule 12 provides that where a plaintiff or a defendant, who has been ordered to appear in person, does not appear in person or show sufficient cause for non-appearance, the Court may dismiss the suit if he is the plaintiff, or proceed *Ex-parte* if he is the defendant.

III. CONSEQUENCES OF NON-APPEARANCE OF PARTIES

The consequences of non-appearance of the parties can be divided into three parts:

- a) If both the parties are absent, the suit will be dismissed (Rule 3). But second suit is not barred.
- b) If plaintiff is absent, the suit will be dismissed and the second suit on the same cause of action is barred under Rule 9 of Order 9.
- c) If defendant is absent, an *Ex-parte* decree can be passed (Rule 6)

1. Non-appearance of both the parties: Rule 3

Where neither the plaintiff nor the defendant appears when the suit is called out for hearing, the Court may dismiss it. The dismissal of the suit under Rule 3, however, does not bar a fresh suit in respect of the same cause of action. The plaintiff may also apply for an order to set aside such dismissal. And if the Court is satisfied that there was sufficient cause for his non-appearance, it shall pass an order setting aside the dismissal of the suit and shall fix a day for proceeding with the suit.

2. Non-appearance of defendant: Rule 6, 10

Where the plaintiff appears and the defendant does not appear, the plaintiff has to prove service of summons on the defendant. If the service of summons is proved, the Court may proceed *Ex-parte* against the defendant and may pass a decree in favour of the plaintiff, if the plaintiff proves his case.

3. Non-appearance of plaintiff: Rules 7-11

Where the defendant appears and the plaintiff does not appear, and the defendant does not admit the plaintiff's claim, wholly or partly, the Court shall pass an order dismissing the suit. But if the defendant admits the plaintiff's claim as a whole or a part thereof, the Court will pass a decree against the defendant upon such admission and dismiss the suit for the rest of the claim. (Rule 2)

It may be noted that this rule (Rule 8) will apply to a case where there is only one plaintiff and he does not remain present, or there are two or more plaintiffs and all of them remain absent. Where there are more plaintiffs than one, and one or more of them appear, Rule 10 will apply.

Rule 9 precludes the plaintiff thereafter from filing a fresh suit on the same cause of action. He may, however, apply for an order to set aside the order of dismissal. And if the Court is satisfied that there was sufficient cause for his non-appearance the Court may

set aside the order of dismissal and fix a day for proceeding with the suit. [*Vide: Lachi Tewari v. Director of Land Records, AIR 1984 SC*]

In deciding whether a suit dismissed for default be restored, what has really to be considered is whether the plaintiff was really trying to appear on the day fixed. If he honestly intended to appear though in a stupid way, he should not be deprived of hearing. If sufficient cause is shown by the plaintiff for his non-appearance, reopening is mandatory, but when sufficient cause is not shown, it is directory.

Before such order is passed by the Court, notice must be served to the opposite party.

Raja Devi Baksh v. Habib Shah, (1913) PC

The Privy Council held that the Court has no power to dismiss the suit where the plaintiff does not appear owing to death. Such an order is a nullity inasmuch as this rule applies to a defaulter and not to a dead man.

Arjun Singh v. Mahindra, AIR 1964 SC

Where the Court has adjourned the hearing of the suit *Ex-parte*, and the defendant, at or before such hearing, appears and assigns good cause for his previous non-appearance, the Court may hear him upon such terms as it directs as to the costs or otherwise. In that case, the defendant might have the earlier proceedings recalled, "set the clock back", and have the suit heard in his presence. On the other hand, he might fail to show good cause. Even in such a case, he is not penalised in the sense of being forbidden to take part in the further proceedings of the suit or whatever might still remain of the trial; only he cannot claim to be relegated to the position that he occupied at the commencement of the trial.

IV. *EX-PARTE* DECREE

1. Meaning

An *Ex-parte* decree is a decree passed in the absence of the defendant (in absent). Where the plaintiff appears and the defendant does not appear when the suit is called out for hearing and if the defendant is duly served, the Court may hear the suit *Ex-parte* and pass a decree against him. Such a decree is neither null and void nor inoperative but is merely voidable and unless and until it is annulled on legal and valid grounds, it is legal, valid, operative and enforceable like a *bi-parte* decree and it has all the force of a valid decree.

2. Remedies

The defendant, against whom an *Ex-parte* decree has been passed, has the following remedies available to him—

- a) to apply to the Court by which such decree is passed to set it aside: Order 9, Rule 13;
- b) to prefer an appeal against such decree: Section 96 (2); or
- c) to apply for review: Order 47, Rule 1; or
- d) to file a suit on the ground of fraud.

The above remedies are concurrent and they can be prosecuted concurrently.

Rani Choudhury v. Surat Jit Choudhury, AIR 1982 SC

It was held by the Supreme Court that where the proceedings or two remedies are provided by a statute, one of them must not be taken as operating in derogation of the other. The remedies in setting aside an *Ex-parte* decree are concurrent and they can be prosecuted concurrently.

a) Application [Order 9, Rule 13]

Rule 13 deals with setting aside of *Ex-parte* decree passed against the defendant. Whereas the remedies by way of appeal and review are available to any person against whom a decree is passed, whether such decree is *Ex-parte* or *bi-parte*, the remedy provided by this Rule can be availed of only by the defendant for whose default of appearance an *Ex-parte* decree is passed.

This rule requires an application by the defendant to set aside an *Ex-parte* decree passed against him if there exist sufficient grounds for it. If the defendant satisfies the Court that (i) the summons was not duly served; or (ii) he was prevented by any sufficient cause from appearing when the suit was called out for hearing, the Court will set aside the decree passed against him and appoint a day for proceeding with the suit.

As provided in Rule 6, the suit may proceed *Ex-parte* against the defendant only when it is proved by the plaintiff to the satisfaction of the Court that the defendant did not appear even though the summons was duly served. In that case, an *Ex-parte* decree may be passed against him. Therefore, if the defendant satisfies the Court that the summons was not duly served upon him, the Court must set aside the *Ex-parte* decree passed against him.

The proviso, as added by the Amendment Act of 1976, however, lays down that the Court shall not set aside an *Ex-parte* decree merely on the ground of irregularity in service of summons in a case where the defendant had adequate notice of the date of hearing of the suit, and had sufficient time to appear and answer the plaintiff's claim.

The words "sufficient cause" must be liberally construed to enable the Court to exercise powers *ex debito justitiae*. A party should not be deprived of hearing unless there has been something equivalent to misconduct or gross negligence on his part. Necessary materials should be placed on record to show that the applicant was diligent and vigilant.

The following grounds have been held to be sufficient cause for the absence of a party –

- i) bona fide mistake as to the date of hearing;
- ii) late arrival of a train;
- iii) sickness of counsel;
- iv) fraud of the opposite party;
- v) mistake of pleader in noting wrong date in diary;
- vi) negligence of next friend or guardian in case of minor plaintiff or defendant;
- vii) death of relative of a party;
- viii) imprisonment of party;
- ix) strike of advocates;

An application for setting aside *Ex-parte* decree can be made within thirty days from the date of the decree. (Article 123, Limitation Act, 1963)

An *Ex-parte* decree cannot be set aside without issuing notice to the opposite party and without giving him an opportunity of hearing. This is in consonance with the principles of natural justice and fair play.

The Court has a very wide discretion in imposing such terms on the defendant as it thinks fit before setting aside the *Ex-parte* decree. It may order the payment of costs, or may order the defendant even to deposit the decretal amount in the Court in an appropriate case.

b) Appeal [Section 96 (2)]

An appeal lies against an order rejecting an application to set aside *Ex-parte* decree. An *Ex-parte* decree is a decree under Section 2 (2) of the Code and, therefore, an aggrieved party can also file an appeal under Section 96 (2) of the Code.

c) Review [Order 47, Rule 1]

Since all the remedies against an *Ex-parte* decree are concurrent, an aggrieved party can also file an application for review if the conditions laid down in Order 47, Rule 1 are satisfied.

d) Revision [Section 115]

An order setting aside an *Ex-parte* decree is a 'case decided' within the meaning of Section 115 of the Code and is, therefore, revisable. A High Court may also

exercise supervisory jurisdiction under Article 227 of the Constitution in appropriate cases.

e) Suit

A suit to set aside an *Ex-parte* decree is not maintainable. But if the *Ex-parte* decree is alleged to have been obtained by the plaintiff by fraud, the defendant can file a regular suit to set aside such decree. It is settled law that fraud vitiates the most solemn transactions. In such suits, the onus is on the party who alleges that the *Ex-parte* decree passed against him was fraudulent.

3. Effect of setting aside *Ex-parte* Decree

The effect of setting aside an *Ex-parte* decree is that the suit is restored, and the Court should proceed to decide the suit as it stood before the decree. The trial should commence de novo and the evidence that had been recorded in the *Ex-parte* proceedings should not be taken into account.

V. QUESTIONS BASED ON CASE - LAWS

1. Is a suit to set aside an *Ex-parte* decree maintainable? Give reasons. [50 Words]
2. A defendant against whom an *Ex-parte* decree was passed, applied for setting aside the decree under Order 9, Rule 13 as well as under Order 47, Rule 1. Can both the remedies be invoked concurrently? Cite case law. [50 Words]
3. A plaintiff's suit was dismissed for non-appearance, can he file a fresh suit in following two circumstances?
 - a) When both the parties were absent.
 - b) When defendant was present but the plaintiff was absent. [50 Words]
4. A plaintiff could not appear in the Court owing to death and the Court dismissed his suit. Examine the legality of the order of the Court. [50 Words]
5. Only one plaintiff out of three is present on the day of hearing. What will be the effect of non-appearance of two plaintiffs on the suit? [50 Words]

VI. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MP PCS (J), BJE, HJS, HARYANA JS ETC.]

1. "An *ex-parte* decree is passed against A". What remedies are available to A? Give Reasons. [200 Words, RJS-1971]
2. What order a Court should pass if the plaintiff absents himself?
 - a) on the first date of hearing of the suit?
 - b) on an adjourned date of hearing and
 - i) there is no evidence on record, or
 - ii) there is some material on record.
 - c) on the date fixed for delivery of Judgment.

[300 Words, RJS-1974]
3. Discuss the provisions of the Civil Procedure Code relating to *ex-parte* proceedings. What remedies are available to a party whose suit is dismissed under Order IX, Rule 8 for default of appearance on the date of hearing? [250 Words, BJE-1984]
4. Where an application under Order 9 Rule 7 CPC is dismissed and *Ex-parte* decision follows, what remedies are open to the defendant? [15 Words, RJS-1986]
5. Short Notes: *Ex-parte* proceeding [150 Words, BJE-1987]
6. What are the consequences of non-appearance of parties in general in a suit? What are the remedies? [200 Words, RJS-1994]
7. Plaintiff could not reach the Court on the date fixed, so his suit was dismissed for default. Advise the plaintiff as to the steps he should take. [200 Words, UP PCS (J), 1991]
8. What remedies are available for setting aside an *ex-parte* decree? [250 Words, BJE-2000]

CHAPTER XVIII

ISSUES

[ORDER 14]

Dear aspirant,

The machinery of a Court is set in motion by the presentation of a plaint. It is the first stage in the suit. The second stage is the filing of the written statement. The third important stage in the suit is the framing and settlement of issues. The day on which the Court applies its mind to the case either for framing issues or for taking evidence can be said to be "the first day of hearing of the suit."

Order 10 provides for "Examination of parties by the Court". The Court shall, at the first hearing of the suit, ascertain from each party or his pleader whether he admits or denies such allegations/facts as are made in the pleadings of the opposite party. Under the 1999 Amendment (Rules 1A TO 1C), after recording the admissions and denials, the Court must direct the parties to opt for one of the modes of alternate dispute resolution specified in Section 89 of the Code i.e. arbitration, conciliation, judicial settlement, mediation. If the parties exercise this option, the Court fixes the date of appearance before such forum or authority. However, after such reference, if the presiding officer of such forum etc. is satisfied that it would be proper to refer case back to the Court, then the parties must appear before the Court.

Order 10, Rule 2 provides for oral examination of the parties and person accompanying them with a view to elucidating matter in controversy in the suit. At subsequent hearings also, the Court may orally examine any party. The Court may put, in the course of the examination, questions suggested by either party.

Order 14 deals with "Settlement of Issues". Rule 1 of it provides for "framing of issues". An issue is said to arise when a material proposition of fact or law is affirmed by one party and denied by the other party. Material propositions are those proposition which a plaintiff must allege in order to show a right to sue or a defendant must allege in order to constitute his defence.

Issues are mainly of three kinds:

- i) Issues of Facts
- ii) Issues of Law
- iii) Mixed Issues of Facts and Law.

At the first hearing of the suit, the Court must ascertain upon what material propositions of facts or law the parties are at variance and thereafter proceed to frame and record the issues on which the correct decision of the case appears to depend. The Court is not required to frame issues where the defendant at the first hearing makes no defence.

State of Gujarat v. Jaipal Singh, (1994) 2 Guj. C. D.

It was held by the Gujarat High Court that "Issues" are rival contentions of the parties based on their pleadings. Issues are backbone of a suit. They are also the lamp - post which enlightens the parties to the proceedings, the trial Court and even the Appellate Court as to what is controversy, what is evidence and where lies the way to truth and justice.

Thus, the framing of issues has a very important bearing on the trial and decision of a case. The importance of the issues can be described in the following points:

- i) Issues, and not the pleadings, guide the parties in the matter of leading evidence.

- ii) The Court cannot refuse to decide the point on which an issue has been framed and evidence led, even if the point involved is not mentioned in the pleadings.
- iii) The Court should not frame an issue which does not arise on the pleadings.
- iv) Issues must be confined to the material questions of fact or law (facta probanda) and not on subordinate facts or evidence by which material questions of fact or law are proved or disproved (facta probantia).
- v) One issue should cover only one fact or law in dispute between the parties.

Order 14, Rule 2 provides that where issues both of law and fact arise in the same suit, notwithstanding that a case may be disposed of on a preliminary issue, the Court should pronounce judgment on all issues. But if the Court is of the opinion that the case or any part thereof may be disposed of on an issue of law only, it may try that issue first, if that issue relates to (i) Court's jurisdiction or (ii) a bar to the suit created by any law for the time being in force. For this purpose, the Court may postpone the settlement of other issues until the determination of that issue, and may deal with the suit in accordance with decision on that issue. Such issues are referred to as preliminary issues.

The materials from which the Court may frame the issues are:

- i) allegations made on oath by the parties.
- ii) allegations made in the pleadings or in answer to interrogatories.
- iii) documents produced by the parties (Rule 3).

The Court may examine witnesses and documents (not produced in the suit) before framing issues. For that, it may adjourn the framing of issues up to 7 days (inserted by 1999 Amendment) and may issue summons (Rule 4). The Court may at any time before a decree, strike out wrongly framed issues or amend the issues or frame additional issues. All such amendments or additional issues as may be necessary for determining the matters in controversy between the parties shall be so made or framed (Rule 5, as amended by 2002 Amendment).

The duty to frame proper issues rests primarily on the Court. But the pleaders also should assist the Court in this regard.

Kamleshwaram v. Subbarao, AIR 1963 SC 884

Mere omission to frame an issue is not necessarily fatal to the suit. It is an irregularity which may or may not be a material one. If such omission affects the disposal of a suit on merits, the case may be remanded to the trial Court for a fresh trial. On the other hand, where the parties went to trial with full knowledge that a particular point was at issue, absence of an issue is not fatal to the case.

Generally no direct question is asked from this chapter in judiciary examinations. In exceptional cases any direct question can be asked i.e. what is a preliminary issue? Notwithstanding it, this chapter is most important for RJS, UPSC, UPPSC (J) and MPPSC (J). In the above mentioned examinations, three questions are asked on writing a plaint, a written statement and framing issues on the basis of plaint and written statement respectively. In RJS, you have to go one step further i.e. writing a judgment on the basis of plaint, written statement and issues. Thus, it is clear that framing issues is an important topic for judiciary examinations.

Wishing you all the best,

Yours Sincerely
RAHUL

CHAPTER XVIII

ISSUES

[ORDER 14]

SYNOPSIS

- I. Introduction
- II. Meaning
- III. Framing of Issues: [Order 14, Rule 1]
- IV. Kinds of Issues: [Rules 1 - 2]
- V. Importance of Issues
- VI. Court's power and duty as to Issues
- VII. Materials for framing Issues: Rule 3
- VIII. Omission to frame Issues
- IX. Complaint, written statement and Issues
 1. Complaint
 2. Written statement
 3. Issues
- X. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XVIII

ISSUES

[ORDER 14]

I. INTRODUCTION

The plaint and written statement constitute 'pleadings'. The dispute between the parties thus becomes clear. The Court thereafter in the light of pleadings of the parties will frame issues'. Order 14 deals with issues. Order 10 enjoins the Court to examine parties with a view to ascertaining matters in controversy in the suit. Order 15 enables the Court to pronounce judgment at the 'first hearing' in certain cases.

The first hearing of a suit means the day on which the Court goes into the pleadings of the parties in order to understand their contentions. The machinery of a Court is set in motion by the presentation of a plaint, which is the first stage in the suit. The second stage is the filing of the written statement by the defendant. The third important stage in the suit is the framing and settlement of issues and the day on which such issues are framed is the first hearing of the suit. In cases in which no issues need be framed, e.g. a small cause suit, the first hearing would be the day on which the trial starts.

The day on which the Court applies its mind to the case either for framing issues or for taking evidence can be said to be 'the first day of hearing of the suit'.

Order 10, Rule 1 provides that the Court shall, at the first hearing of the suit, ascertain from each party or his pleader whether he admits or denies such allegations or facts as are made in the plaint or in the written statement, if any, of the opposite party. After recording admissions and denials, the Court shall direct the parties to the suit to settle the matter out of Court through conciliation, arbitration, mediation or Lok Adalat. [Order 10, Rule 1A]

Rule 2 provides for oral examination of the parties to the suit with a view to elucidating matters in controversy in the suit.

II. MEANING

According to the dictionary meaning, "issue" means a point in question; an important subject of debate, disagreement, discussion, argument or litigation. In other words, an issue is that which, if decided in favour of the plaintiff, will in itself give a right to relief; and if decided in favour of the defendant, will in itself be a defence.

III. FRAMING OF ISSUES: [ORDER 14, RULE 1]

Issues arise when a material proposition of fact or law is affirmed by one party and denied by the other. Material propositions are those propositions of law or fact which a plaintiff must allege in order to show a right to sue or a defendant must allege in order to constitute his defence. Each material proposition affirmed by one party and denied by the other shall form the subject matter of a distinct issue.

IV. KINDS OF ISSUES: [RULES 1 - 2]

Rule 1 (4) enacts that issues are of two kinds: (a) issues of fact; and (b) issues of law. Issues, however, may be mixed issues of fact and law. Rule 2 of Order 14 provides that where issues both of law and fact arise in the same suit, notwithstanding that a case may be disposed of on a preliminary issue, the Court should pronounce judgment on all issues. But if the Court is of the opinion that the case or any party thereof may be disposed of on an issue of law only, it may try that issue first, if that issue relates to (i) the jurisdiction of the Court; or (ii) a bar to the suit created by any law for the time being in force. For that purpose, the Court may, if it thinks fit, postpone the settlement of the other issues until the issues of law have been decided.

V. IMPORTANCE OF ISSUES

Issues are the backbone of a suit. The framing of issues, therefore, has a very important bearing on the trial and decision of a case. Firstly, it is the issues framed and not the

pleadings that guide the parties in the matter of leading evidence. Secondly, the Court cannot refuse to decide the point on which an issue has been framed and evidence led by the parties, even if the point involved is not mentioned in the pleadings. Thirdly, the Court should not frame an issue which does not arise in the pleadings. Fourthly, the issues must be confined to the material questions of fact or law (facta probanda) and not on subordinate facts or evidence by which material questions of fact or law are proved or disproved (facta probantia). Fifthly, one issue should cover only one fact or law in dispute between the parties. Finally, if the case goes in appeal, it must be dealt with by the appellate Court on the issues settled for trial. After the amendment in the Code in 1976, all issues should normally be tried at the suit and decided at one and the same time. It is, therefore, essential to the right decision of a case that appropriate issues should be framed.

*** State of Gujarat v. Jaipal Singh, (1994) 2 Guj. C. D.**

The High Court of Gujarat stated: "Such framing of issues in the first instance would facilitate the applicant to lead necessary evidence in support of the claim and the reliefs prayed pursuant thereto. In the second instance, it will avail the opponent an opportunity to confront and contradict the particular witness and thereafter to lead the evidence (if he so desires) to bring home the defence pleaded, and in the third instance, enlighten the trial Court to test and appreciate the same in proper perspective to enable it to reach a just decision. It is hardly required to be told that issues are the backbone of a suit.

VI. COURT'S POWER AND DUTY AS TO ISSUES

The duty to frame proper issues rests primarily on the Court. The judge must apply his mind and understand the facts of the case before framing issues. But the pleaders appearing for both the parties also should assist the Court in framing issues. If proper issues are not framed, the parties may move the Court to get the proper issues framed. Issues must be specific and clear and not vague or evasive. The Court may examine witnesses or inspect documents before framing issues, to amend the issues, to frame additional issues or to strike out issues that may appear to it to be wrongly framed.

VII. MATERIALS FOR FRAMING ISSUES: RULE 3

The Court may frame issues from all or any of the following materials:

- a) Allegations made on oath by the parties, or by any persons present on their behalf, or statements made by the pleaders appearing for the parties;
- b) Allegations made in the pleadings or in answers to interrogatories; and
- c) Documents produced by the parties.

VIII. OMISSION TO FRAME ISSUES

Even though it is the duty of the Court to frame proper issues, mere omission to frame an issue is not necessarily fatal to the suit. Omission to frame an issue is an irregularity which may or may not be a material one. If such omission affects the disposal of the suit on merits, the case must be remanded to the trial Court for a fresh trial. On the other hand, where the parties went to trial with full knowledge that a particular point was at issue, they have not been prejudiced and substantial justice has been done, absence of an issue is not fatal to the case so to vitiate the proceedings.

IX. PLAINT, WRITTEN STATEMENT AND ISSUES

In RJS, UPPCS (J), UAPCS (J), MPPCS (J) etc. Generally, three questions are asked i.e. (1) Write a complaint (2) Write a written statement and (3) Prepare issues on the basis of complaint and written statement. For instance, in RJS 2000, the following question was asked:

"Assuming necessary facts in a suit for damages for breach of contract, write (a) a complaint (b) a written statement, (c) prepare issues on the basis of complaint and written statement and (d) write a judgment." Solutions of first three parts of this question are given here. The solution of the fourth part is given in the chapter name 'Judgment'.

Please study this model answer carefully and try to give answer of the questions of previous years' examination which are provided in the end of this chapter.

1. **Plaint**

IN THE COURT OF DISTRICT JUDGE, JAIPUR (Rajasthan)

Civil Suit No. 0562 of 2003

A, S/O Sh. B, caste Jain, age 28 years
R/o, 1250, Mukherjee Nagar, Jaipur (Raj.)

..... Plaintiff

Versus

C, S/O Sh. D, caste Jain, age 35 years
R/o, 45, Malviya Nagar Jaipur (Raj.)

Defendant

Suit for recovery of damages of Rs. 82,500/- under Section 73 of Indian Contract Act, 1872

The plaintiff most respectfully states as follows:

- i) That the plaintiff made a contract with the defendant for purchasing 550 tons of mustard oil at the rate of 1600/- rupees per ton and he paid to the defendant Rs. 40,000/- in advance on 01/01/2003.
- ii) That the defendant had to provide the contracted oil on 10th January, 2003 but he refused to fulfil his part of contract due to rise in the price of mustard oil.
- iii) That the plaintiff had to purchase the mustard oil from open-market at the rate of 1750/- rupees per ton so he had to pay Rs. 9,62,500/- [550 tons x 1750 = 9,62,500/-] instead of Rs. 880,000/- [550 tons x 1600 = 8,80,000/-], the contracted price. Thus the plaintiff has to face a loss of Rs. 82,500/-.
- iv) That the cause of action arose on 10th January, 2003 when the defendant had to provide the mustard oil so the suit is under period of limitation.
- v) That the value of the subject matter of the suit for the purpose of jurisdiction as well as Court fees is Rs. 82,500/-.
- vi) That the defendant resides in Jaipur, the contract was made in Jaipur and the suit property was to be delivered in Jaipur so the Court has jurisdiction to try the suit.
- vii) The plaintiff, therefore, prays –
 - a) that the defendant may be ordered to pay Rs. 82,500/- as damages.
 - b) that the defendant may be ordered to return the earnest money of Rs. 40,000/- to the plaintiff.
 - c) that the defendant may be ordered to pay interest at the rate of 18% p.a. on the decreed amount.
 - d) that the defendant may be ordered to pay the plaintiff's cost of this suit.

(Signature)

(Signature)

Plaintiff's Advocate

Plaintiff

VERIFICATION

I, A, the plaintiff above - named do solemnly declare that what is stated in paras 1 to 3 is true to my knowledge and that what is stated in the remaining paras is stated on the information received by me and I believe it to be true.

Place: Jaipur
(Signature)

Date: 10/09/2003

Plaintiff

2. Written Statement

IN THE COURT OF DISTRICT JUDGE, JAIPUR (Rajasthan)

Civil Suit No. 0562 of 2003

A, S/O Sh. B, caste Jain, age 28 years,
R/o 1250, Mukherjee Nagar, Jaipur (Raj.)

..... Plaintiff

Versus

C, S/O Sh. D, caste Jain, age 35 years
R/o 45, Malviya Nagar, Jaipur (Raj.)

..... Defendant

Written statement in a suit for damages:

The defendant most respectfully states as under:

- i) That the defendant denies the first point. He never made a contract with plaintiff as described by the plaintiff. He did not get Rs. 40,000/- as an earnest money. This point is totally got up.
- ii) That the defendant denies the second point also. As he made no contract with the plaintiff so there is no question arises at off delivering mustard oil to the plaintiff.
- iii) That the third point is also denied. The plaintiff has to face no loss at all.
- iv) That the suit is time barred so the Court has no jurisdiction to try the suit.
- v) That the point no. 5 and 6 are need not to be answered.

(Signature)

Defendant's Advocate

(Signature)

Defendant

VERIFICATION

I, C, the defendant above named do solemnly declare that what is stated in paras 1 to 3 is true to my knowledge and that what is stated in the remaining paras is stated on the information received by me and I believe it to be true.

Place: Jaipur

Date: 20/09/2003

(Signature)

Defendant

3. Issues

IN THE COURT OF DISTRICT JUDGE, JAIPUR (Rajasthan)

Civil Suit No. 0562 of 2003

A, S/O Sh. B, caste Jain, age 28,
R/o 1250, Mukherjee Nagar, Jaipur (Rajasthan)

..... Plaintiff

Versus

C, S/O Sh. D, caste Jain, age 35,
R/o 45, Malviya Nagar, Jaipur (Rajasthan)

..... Defendant

Issues

The following issues are framed at Ex. 18:

- i) Whether the plaintiff proves that the defendant entered into a contract to provide him 550 tons of mustard oil at the rate of 1600/- per ton?
- ii) Whether the plaintiff proves that the defendant was paid of Rs. 40,000/- as earnest money?
- iii) Whether the plaintiff proves that he has to face of loss of Rs. 82,500/-?
- iv) Whether the defendant proves that the suit is barred by the Limitation Act, 1963?
- v) To what relief, if any, the plaintiff is entitled to?
- vi) What order and decree?

Date: 25/09/2003

(Signature)

District Judge

X. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Draft a plaint claiming damages for malicious prosecution. Prepare a written statement denying the claim. Frame issues and write a judgment in Plaintiff's favour.

[600 Words, RJS-1969]

2. What is an Issue? [15 Words, RJS-1988]

3. a) Draft a plaint, giving details in a suit for libel by innuendo.
b) Draft a written statement in the suit mentioned in question no. 3 (a) above.
c) Frame issues on the pleadings in question No 3 (a) and (b) above.

[600 Words, UPPCS (J)-1982]

4. a) Draft a plaint, giving details, in a suit for false imprisonment by a police officer.
b) Draft a written statement in the suit mentioned in question No. 4 (a) above.
c) Frame issues on the pleadings in question No. 4 (a) and (b) above.

[600 Words, UPPCS (J)-1983]

5. a) Draft a plaint, giving details, in suit for the recovery of damages for Malicious Prosecution.
b) Draft a written statement in the suit mentioned in question No. 5 (a) above.
c) Frame issues on the pleadings in question No. 5 (a) and (b) above.

[600 Words, UPPCS (J)-1984]

6. a) Draft a plaint, giving details, in suit for recovery of damages for injuries caused by negligent driving of car.
b) Draft a written statement in the suit mentioned above.
c) Frame issues on the pleadings aforementioned.

[600 Words, UPPCS (J)-1985]

7. a) Draft a plaint for recovery of arrears of rent and ejectment of a tenant on ground of default.
b) Draft a written statement in the suit mentioned above.
c) Frame issues on the pleadings aforementioned.

[600 Words, UPPCS (J)-1986]

8. a) Draft a plaint either claiming damages for malicious prosecution or for specific performance of contract.
b) Draft a written statement in the suit mentioned above.
c) Frame issues on the pleadings aforementioned.

[600 Words, UPPCS (J)-1987]

9. a) Draft a plaint in a suit in which a demand has been made by the landlord against a tenant for arrears of rent in respect of residential house and for the tenant's ejectment therefrom on the ground that the tenancy which was from month to month has been terminated by a notice for ejectment given by the landlord.
- b) Draft a written statement in the suit mentioned in question No. 9 (a) above.
- c) Frame issues on the pleadings in question No. 9 (a) and (b) above.

[600 Words, UPPCS (J)-1988]

10. a) 'B' agreed with 'A' to sell his house for Rs. 40,000/- in pursuance of the agreement, which was registered also. 'A' gave Rs. 35,000/- to 'B' towards the price and promised to pay the balance of 5,000/- at the time of registration of sale-deed. 'B' gave possession of the house to 'A' and assured him that he would execute the sale-deed as early as possible. However, 'B' avoided to execute sale-deed on the pretext or the other.

On the above facts, draft a plaint on behalf of 'A' claiming specific performance of contract.

- b) Draft a written statement in the suit mentioned in question No. 10 (a) above.
- c) Frame issues on the pleading in question No. 10 (a) and (b) above.

[600 Words, UPPCS (J)-1991]

11. What is a Preliminary Issue? **[15 Words, RJS-1986]**

RAJAN

CHAPTER XIX
DISCOVERY AND INSPECTION
[ORDER 11]

Dear aspirant,

Order 11 of the CPC provides for the interrogatories and inspection. A party to a suit may require information from his adversary as to all material facts or as to documents in the possession or power of such adversary relevant to the issue. This is done for the purpose of maintaining one's own case or for rebutting the case of the adversary. When information as to facts is required, the party is allowed to administer a series of questions to his adversary. These questions are called "*interrogatories*", which if considered proper by the Court, the other party is compelled to answer them on oath before the trial. This is called "*discovery of facts*".

Every party is entitled to know the nature of his opponent's case, so as to enable him to know before hand what case he has to meet at the hearing. But he is not entitled to know the facts which constitute exclusively the evidence of his opponents' case, or the name of his witnesses. In any suit, the plaintiff or the defendant may deliver interrogatories in writing for the examination of the opposite parties. Interrogatories which do not relate to any matters in question in the suit shall be deemed irrelevant, notwithstanding that they might be admissible on the cross - examination of a witness. [Rule 1]

Leave of the Court is necessary for the delivery of interrogatories. The Court shall decide the application made for leave to deliver interrogatories within 7 days from the date of filing of application (as amended by 1999 Amendment). The Court should consider that the interrogatories are necessary for the fair disposal of the suit; that the interrogatories are necessary for saving costs.

Objections to interrogatories could be made by a party if a scandalous, irrelevant or mala fide or privileged. The Court may set aside an interrogatory on the ground that they have been exhibited unreasonably or vexatiously or that they are prolix, oppressive, unnecessary or scandalous. An application to set aside an interrogatories must be made within 7 days of the service of interrogatories.

The interrogatories are to be answered by an Affidavit [Order 19] to be filed within 10 days or such other time as allowed by the Court. At the trial of suit, any party may use in evidence any one or more of the answers or any part of an answer of the opposite party (without putting in the others or the whole of such answer) in reply to the interrogatories. However, the Court can look at the whole of the answer. [Rule 22].

Order 11, Rule 12 relating to the discovery and production of documents also applies to minor plaintiffs and defendants. Any party may (without filing an affidavit) apply to the Court for an order directing any other party to any suit to make discovery on oath of the documents which are in his possession; the Court may either refuse or adjourn the same; the discovery shall not be ordered if it is not necessary for disposing fairly of the suit or for saving costs [Rule 12]. It shall be lawful for the Court, at any time during the pendency of a suit, to order the production of documents by any party. [Rule 13]

A party may give a notice to the other party to produce a document [referred to in the latter's pleading, or in his affidavit, or in his list of documents] at or before the settlement of issues for inspection of the party giving such notice: If any body does not comply with such a notice, he cannot afterwards use any such

documents in his evidence, unless he satisfies the Court for non-compliance with the notice [Rule 15].

The party to whom the notice to produce is given must, within 10 days of the receipt of such notice, give the other party a time at which such documents may be inspected at his pleader's office, and stating which (if any) of the documents he objects to produce, and on what ground (Rule 17). If he fails to do so, the other party may apply to the Court for an order of inspection. It may be noted that the Court can inspect the document for deciding the claim of privilege, unless the document relates to matters of state.

The Court may order the discovery of documents, despite the objection of a party and before applying its mind as to objection, to determine any issue or question in dispute [Rule 20].

If any party fails to comply with any order to answer interrogatories or for discovery or inspection of documents, the Court may dismiss the suit for want of prosecution, if he is plaintiff; the Court may struck down the defence of the defendant. The plaintiff shall be precluded from bringing a fresh suit on the same cause of action. [Rule 21]

This chapter is not much important for main examination. In Preliminary Judiciary Examination, some objective type questions can be asked from this Chapter. Short notes on following two topics should be prepared for RJS and Bihar Judicial Examination:

- i) Discovery; and
- ii) Interrogatories.

Wishing you all the best

Yours sincerely
RAHUL

CHAPTER XIX
DISCOVERY AND INSPECTION
[ORDER 11]
SYNOPSIS

I. Meaning: Order 11

II. Interrogatories: Rules 1 to 11

1. Object
2. Rules
3. Interrogatories which may be allowed
4. Interrogatories which may not be allowed

III. Discovery of documents: Rules 12 - 14

1. Nature and scope
2. Object
3. Rules

IV. Inspection of documents: Rules 15 - 19

V. Privileged Documents

VI. Premature Discovery: Rule 20

VII. Non compliance with order for discovery [Rule 21]

VIII. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MP PCS (J), BJE, HJS, Haryana JS etc.]

RAVINDRA

CHAPTER XIX DISCOVERY AND INSPECTION

[ORDER 11]

I. MEANING: ORDER 11

"Discovery" means to compel the opposite party to disclose what he has in his possession or power. After settlement of issues, a party to a suit may require information from his adversary as to facts or as to documents in possession or power of such party, relevant to the issue in the suit. Where information as to facts is required, the party is allowed to put a series of questions to his adversary. These questions are called interrogatories. The judge will go through the proposed questions and, if he considers them proper, he will compel the other side to answer them on oath before trial. This is called discovery of facts. On the other hand, if information as to documents is required, the party may apply for an order compelling the other party to make a list of the relevant documents in his possession or power, and, in certain circumstances, for permission to inspect and take copies of those documents. This is known as discovery of documents.

II. INTERROGATORIES: RULES 1 TO 11

1. Object

"Interrogatory" means to ask questions or to make inquiry closely or thoroughly. Where a party to a suit requires information as to facts from the opposite party, he may administer to his adversary a series of questions. Those questions are called interrogatories. They are delivered in order to ascertain the nature of his opponent's case either for the purpose of proving his case or for destroying the case of the other side.

The object of interrogatories is twofold: (i) firstly, to know the nature of the case of the opponent; and (ii) secondly, to support his own case, either (a) directly, by obtaining admissions; or (b) indirectly, by impeaching or destructing the case of his opponent.

2. Rules

The following rules should be kept in mind regarding discovery by interrogatories:

- a) Interrogatories may be administered in writing only by the leave of the Court and subject to such conditions and limitations as may be prescribed by it.
- b) The particulars of interrogatories proposed to be delivered should be submitted to the Court, which shall be decided by the Court within seven days from filing of the application. [Rule 2]
- c) Interrogatories may be administered either by the plaintiff to the defendant or by the defendant to the plaintiff and also by one defendant to another defendant, provided there is some question or issue between them in the action or proceeding, as, for example, where the plaintiff's case is that if one of them is not liable, the other is.
- d) No party can deliver more than one set of interrogatories to the same party without an order for that purpose. [Rule 1]
- e) Generally, no leave can be granted to the plaintiff for administering interrogatories until the written statement is filed by the defendant or the time to file the written statement has expired. Similarly, no such leave can be granted to the defendant until he has filed his written statement.
- f) Interrogatories must be as to questions of fact and not as to conclusions of law, inferences of facts or construction of documents.
- g) Where a party to a suit is a corporation or a body of persons empowered to sue or be sued, interrogatories may be administered to an officer or member of such corporation or body.
- h) Where a party to a suit is a minor or a lunatic, interrogatories may be administered to his next friend or guardian *ad litem*. [Rule 23]

- i) Interrogatories and an affidavit in answer to interrogatories should be delivered in the prescribed form. [Rules 4, 9 & 10]
- j) Interrogatories shall be answered by affidavit to be filed within ten days after the service of the interrogatories or within such period as the Court may allow. [Rule 8]
- k) Where any person interrogated omits to answer or answers insufficiently, the party interrogating may obtain an order from the Court requiring him to answer or to answer further, as the case may be, either by affidavit or by viva voce (oral) examination. [Rule 11]
- l) Generally, the costs of the interrogatories shall be borne by the party administering the interrogatories. But the Court is empowered to direct the party at fault to pay the costs of the interrogatories irrespective of the result of the suit. [Rule 3]
- m) Any party may, at the trial of a suit, use in evidence any one or more of the answers or any part of an answer of the opposite party to interrogatories without putting in the others or the whole of such answer. [Rule 22]

3. Interrogatories which may be allowed

As a general rule, interrogatories can be allowed whenever the answers to them will serve either to prove the case of the party administering the interrogatories or to destroy the case of his adversary. The right is a valuable one and the party should not lightly be deprived of that right.

4. Interrogatories which may not be allowed

The power must be exercised with considerable care and caution so that it may not become oppressive and be used for an improper purpose by the other side. Interrogatories may not be allowed in the following circumstances:

- a) Interrogatories for obtaining discovery of facts which constitute exclusively the evidence of the case of his adversary.
- b) Interrogatories as to any confidential and privileged communications between a party and his legal advisers. [Sections 121 to 129 Evidence Act, 1872]
- c) Interrogatories which would involve disclosures injurious to public interest.
- d) Interrogatories which are scandalous, irrelevant or not bona fide for the purpose of the suit or not sufficiently material at that stage.
- e) Interrogatories which are really in the nature of cross-examination.
- f) Interrogatories on questions of law.
- g) Interrogatories which are 'fishing' in nature. In other words, the interrogatories must refer to some definite and existing state of circumstances and should not be put merely in the hope of discovering something which may help the party interrogating to make out some case or with the object of plugging a loophole.
- h) Any interrogatories may be set aside on the ground that they have been administered unreasonably or vexatiously, or struck off on the ground that they are prolix, oppressive, unnecessary or scandalous.

III. DISCOVERY OF DOCUMENTS: RULES 12 - 14

1. Nature and scope

Discovery is of two kinds, namely – (i) discovery by interrogatories; and (ii) discovery of documents. If a party wants inspection of documents in the possession of the opposite party, he cannot inspect them unless the other party produces them. The party wanting inspection must, therefore, call upon the opposite party to produce the document. Rule 12 enables a party without filing an affidavit to apply to the Court for the purpose of compelling his opponent to disclose the documents in the possession or power, relating to any matter in question in the suit. If the Court makes an order for discovery, the opposite party is bound to make an affidavit of documents and, if he fails to do so, he will be subject to the penalties specified in Rule 21. An affidavit of documents shall set forth all the documents which are, or have been, in his possession or power relating to the matter in question in the proceedings. And as to the documents which are not, but have been in

<https://goo.gl/GU7xEZ> (Hard copy)
his possession or power, he must state what has become of them and in whose possession they are, in order that the opposite party may be enabled to get production from the persons who have possession of them.

After he has disclosed the documents by affidavit, he may be required to produce for inspection such of the documents as he is in possession of and as are relevant. The documents sought to be discovered need not be admissible in evidence in the enquiry or proceedings. It is sufficient if the documents would be relevant for the purpose of throwing light on the matter in controversy.

2. Object

The object of this procedure is twofold – (i) firstly, to secure, as far as possible, the disclosure on oath of all material documents in possession or power of the opposite party under the sanction of penalties attached to a false oath; and (ii) secondly, to put an end to what might otherwise lead to a protracted enquiry as to the material documents actually in possession or power of the opposite party.

3. Rules

- i) Any party to a suit may apply to the Court for an order directing the other party to make discovery on oath of the documents which are or were in possession or power, relating to any matter in question in the suit. [Rule 12]
- ii) The Court may either refuse or adjourn such application if satisfied that such discovery is not necessary or not necessary at that stage of the suit or make such order as it thinks fit. [Rule 12]
- iii) The Court may exercise this power at any stage, either of its own motion or on an application of any party and subject to such conditions and limitations as may be prescribed by it. [Order 11, Rule 14; Section 30]
- iv) Generally, no order of discovery, inspection or production of documents will be passed by the Court on the application of the plaintiff until the written statement is filed by the defendant or the time to file it has expired. And no such order will be passed on the application of the defendant until he has filed his written statement.
- v) Discovery cannot be ordered by the Court if it is of the opinion that it is not necessary either for the fair disposal of the suit or for saving costs. [Rule 12]
- vi) A party against whom an order for discovery of documents has been made by the Court is, as a general rule, bound to produce all the documents in his possession or power. However, such party considers that he is entitled to legal protection in respect of a particular document which he has been ordered to produce by the Court, he is at liberty to take such objection. [Order 11, Rule 13]
- vii) When such privilege is claimed for any document, the Court will inspect such document for the purpose of deciding the validity of the claim of privilege, unless the document relates to matters of State. [Rule 19]

IV. INSPECTION OF DOCUMENTS: RULES 15 - 19

Rules 15 to 19 deal with inspection of documents. For the purpose of inspection, documents may be divided into two classes –

- i) documents referred to the pleadings or affidavits of parties; and
- ii) other documents in the possession or power of the party but not referred to in the pleadings of the parties.

As regards the first class of documents, a party to a suit is entitled to inspection. And without intervention of the Court every party may give notice in the prescribed form to the other party in whose pleadings they are referred to, to produce such documents for his inspection. The party to whom such notice is given should, within ten days from the receipt of such notice, give notice to the party claiming such inspection, stating the time and place at which the documents may be inspected and stating his objections, if any, to the production of any of the documents. If he fails to do so, the Court may make an order of inspection.

As regards the second class of documents, the party desiring the inspection can only proceed by way of an application to the Court along with an affidavit satisfying the Court that the document is relevant to the case.

V. PRIVILEGED DOCUMENTS

The following classes of documents have been recognised as privileged documents and they are, therefore, protected from production:

- a) Documents which "of themselves evidence exclusively the party's own case or title".
- b) Confidential communications between a client and his legal adviser. [Sections 126 & 129, Evidence Act, 1872]
- c) Public official records relating to affairs of the State and confidential official communications, if their production would be injurious to public interest. [Sections 123 & 124, Evidence Act, 1872]

It may, however, be noted that where, in an application for an order for inspection, privilege is claimed for any document, the Court may inspect the document for the purpose of deciding the validity of the claim of privilege, unless the document relates to matters of State. [Rule 19 (2)]

VI. PREMATURE DISCOVERY: RULE 20

The Court is empowered to postpone a premature discovery or inspection. A discovery is premature when the right to discovery depends upon the determination of any issue or question in dispute, or for any other reason it is desirable that any issue or question in dispute in a suit should be determined before deciding upon the right to discovery.

VII. NON COMPLIANCE WITH ORDER FOR DISCOVERY [RULE 21]

Where any party fails to comply with any order to answer interrogatories or for discovery or production of documents, if such party happens to be a plaintiff, his suit may be dismissed for want of prosecution, and if he happens to be a defendant, his defence will be struck off and will be placed in the same position as if he had not defended. Such order, however, can be passed only after giving notice and a reasonable opportunity of being heard to the plaintiff or the defendant, as the case may be. If the suit of the plaintiff is dismissed on this ground, he cannot file a fresh suit on the same cause of action.

A reference may be made to an important decision of the Supreme Court in **Babbar Sewing Machine Co. v. Trilok Nath, AIR 1978 SC**. In that case, the Court ordered the defendant to produce certain documents. The defendant did not comply with that order and his defence was therefore struck off. At the trial, he was not allowed to cross-examine the witnesses of the plaintiff. The defendant challenged that action.

Before the Supreme Court, two important questions of law were raised: (i) whether the Court was justified in striking out the defence of the defendant; and (ii) whether the defendant had no right to cross-examine witnesses of the plaintiff.

Setting aside the decision, the Court held that the stringent provisions of Order 11, Rule 21 should not be lightly invoked and must be applied only in extreme cases as a last resort.

VIII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Explanatory Notes: Discoveries [150 Words, RJS-1970]
2. Short Notes: Discovery? [150 Words, RJS-1971]
3. Short Notes: Interrogatories [150 Words, RJS-1975]
4. Describe in short the procedure for obtaining the discovery and inspection of documents? [200 Words, RJS-1975]
5. Short Notes: Discovery of documents [200 Words, RJS-1979, BJE-1978]

CHAPTER XX

COMMISSIONS

[SECTIONS 75 - 78, ORDER 26]

Dear aspirant,

Sections 75 to 78 deal with the powers of the Court to issue commissions and the detailed provisions have been made in Order 26 of CPC. Sometimes, a witness may be unable to attend the Court because of sickness or infirmity or detriment to the public interest, or because he resides beyond the local limits of the Court's jurisdiction. In such cases, the Court issues a commission. However, where a party accused of fraud seeks to examine himself on commissions, the Court may refuse the prayer since the opportunity of noting his demeanour may be lost. The power, however, should not be exercised on the ground that witness is a man of rank or having social status.

Section 75 enacts that a Court may issue a commission:

- i) to examine any witness.
- ii) to make local investigation.
- iii) to examine accounts.
- iv) to make partitions.
- v) to hold scientific investigation.
- vi) to conduct sale of a property.
- vii) to perform any ministerial act.

It is noticeable that Section 75 is not exhaustive but illustrative so the Court may issue commission for any other purpose also.

Section 76 lays down that a commission may be issued to any Court (not being a High Court), situated in any other State, and having jurisdiction in the place where the person to be examined resides. The Court receiving such a commission duly executes it, by examining such a person and returns it to the issuing Court along with the evidence taken.

The evidence taken on a commission shall form part of the record. It shall, however, not be read in evidence in the suit without the consent of the party against whom it is offered, unless –

- a) the person who gave the evidence, is beyond the Court's jurisdiction, or dead or unable from sickness or infirmity to attend the Court, or exempted from personal appearance in Court, or is a Government servant, or
- b) the Court in its discretion dispenses with the proof of any such circumstances.

It may be noted that the commissioner, appointed by the Court does not perform any judicial function. The commissioner is deemed to be a Civil Court; however, he is not a judge, and is, therefore, incompetent to impose any penalty. However, the commissioner may summon and procure the attendance of parties or witnesses and examine them, call for and examine documents, enter upon a land, etc. or proceed ex-parte (Rules 16-18).

The report of a commission is not conclusive; if a party has objection, it can move to the Court. If the report is incomplete, the Court can issue another commission. An order refusing appointment of a commission is appealable.

The provisions governing the execution and return of commission for the examination of witnesses also apply to commissions by or at the instance of

Courts situated in India to which the Code do not extend, or Courts under the authority of Central Government outside India, or a foreign Court. [Section 78]

The provisions of Order 26 are also apply to proceedings in execution of a decree or order. The expenses of a commission are to be paid by the party at whose instance the commission is issued.

This chapter is not much important but short notes on the following topics can be asked from this chapter:

- i) Commission for examination of witnesses.
- ii) Circumstances under which commission may be issued.

Wishing you all the best,

Yours Sincerely
RAHUL

Ranv's IAS

CHAPTER XX
COMMISSIONS
[SECTIONS 75 - 78, ORDER 26]
SYNOPSIS

I. Introduction [Order 26, Sections 75 - 78]

II. Purposes [Section 75]

1. Commission for Examination of Witnesses [Section 76, Rules 1 - 8]
2. Commission for Local Investigation [Rules 9 - 10]
3. Commission for Scientific Investigation [Rules 10A]
4. Commission for Performance of Ministerial Act [Rule 10B]
5. Commission for Conducting Sale of Movable Property [Rule 10C]
6. Commission for Examination of Accounts [Rules 11 - 12]
7. Commission for Partition [Rules 13 - 14]

III. Expenses of Commission [Order 26, Rule 15]

IV. Powers of Commission [Rules 16 - 18]

V. Commissions for Foreign Tribunals [Rules 19 - 22]

VI. Letter of Request [Section 77]

VII. Commission issued by Foreign Courts [Section 78]

VIII. Questions of Previous Years' Exam - [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XX
COMMISSIONS
[SECTIONS 75 - 78; ORDER 26]

I. INTRODUCTION [ORDER 26, SECTIONS 75 - 78]

Sections 75 to 78 deal with the powers of the Court to issue commissions and the detailed provisions have been made in Order 26 of the Code.

As a general rule, the evidence of a witness in an action, whether he is a party to the suit or not, should be taken in open Court and tested by cross-examination. Inability to attend the Court on grounds of sickness or infirmity or detriment to the public interest may justify issue of a commission. The Court has a discretion to relax the rule of attendance in Court where the person sought to be examined as a witness resides beyond the local limits of the jurisdiction of the Court or on any other ground which the Court thinks sufficient, e.g. a witness, who being a *paramhansa*, always remained in naked condition, can be examined on commission. Similarly, if a party or a witness is apprehending danger to his life if he appears before the Court, he can be examined on commission.

II. PURPOSES [SECTION 75]

Section 75 enacts that the Court may issue a commission for any of the following purposes:

- a) to examine witnesses [Sections 76, Order 26, Rules 1 - 8]
- b) to make local investigation [Order 26, Rules 9 - 10]
- c) to hold scientific investigation [Order 26, Rule 10A]
- d) to perform a ministerial act [Order 26, Rule 10B]
- e) to conduct sale [Order 26, Rule 10C]
- f) to examine accounts [Order 26, Rules 11 - 12]
- g) to make partition [Order 26, Rules 13 - 14]

1. Commission for Examination of Witnesses [Section 76, Rules 1 - 8]

The Court may issue a commission for the examination on interrogatories or otherwise of any person in the following circumstances:—

- a) if the person to be examined as a witness resides within the local limits of the Court's jurisdiction, and (i) is exempted under the Code from attending the Court; or (ii) is from sickness or infirmity unable to attend the Court; or
- b) if he resides beyond the local limits of the jurisdiction of the Court; or
- c) if he is about to leave the jurisdiction of the Court; or
- d) if he is a Government servant and cannot, in the opinion of the Court, attend without detriment to the public service; or
- e) if he is residing out of India and the Court is satisfied that his evidence is necessary.

The Court may issue such a commission either *suo motu* (of its own motion) or on the application of any party to the suit or of the witness to be examined. The evidence taken on a commission shall form part of the record. It shall, however, not be read in evidence in the suit without the consent of the party against whom it is offered, unless (a) the person, who gave the evidence, is beyond the jurisdiction of the Court, or dead or unable from sickness or infirmity to attend to be personally examined, or exempted from personal appearance in Court, or is a person in the service of the Government who cannot, in the opinion of the Court, attend without detriment to the public service, or (b) the Court in its discretion dispenses with the proof of any of such circumstances.

Examination of witnesses on commission is in the discretion of the Court. It should examine witnesses on commission only for adequate reasons, which are broadly mentioned above.

The Court is empowered to issue a commission for examination of a person on interrogatories or otherwise.

It is open to the Court to cancel the earlier order and to drop the proceeding for examination on commission. [*Smt. Yashoda Devi v. Prakash Bholatia and another*, 1995 All. C. J., 540]

A commissioner was appointed by the Court to inspect how much noise would be created by saw mill. The commissioner was the Court's officer, and obstructing an officer of the Court is a serious violation of law. Anyone who resorts to this kind of tactic will not be entitled to any relief under Article 226 of the Constitution. [*Bishambhar Nath Agarwal v. District Judge, Jhansi and others*, 1995 All C. J., 953]

2. Commission for Local Investigation [Rules 9 – 10]

A commission to make local investigation may be issued for the purposes of elucidating any matter in dispute, or of ascertaining the market value of any property or the amount of any mesne profits or damages or annual net profits. (Order 26, r. 9)

The judicial function of a Court cannot, however, be delegated to a commissioner.

The commissioner should return his report after making an inspection along with the evidence, if any, recorded by him to the Court.

Such report and the evidence taken by him shall be evidence in the suit and shall form part of the record, but the Court or the parties, with the permission of the Court, may also examine the commissioner in Court touching any of the matters referred to him or mentioned in his report, or as to his report, or as to the manner in which he has made the investigation. A further inquiry may be directed by the Court where for any reason it is dissatisfied with the proceedings of the commissioner. (Order 26, r. 10)

Rule 10 of Order 26 does not make the report of the commissioner as concluding the question of valuation. On the contrary, the rule gives clear indication that the report of the commissioner is only one of the pieces of evidence amongst other evidence to be led by the parties for determination of the issue on valuation of the suit. [*Harihar Misra v. Narhari Setti*, AIR 1966 Orissa, 121]

3. Commission for Scientific Investigation [Rules 10A]

Where any question arising in a suit involves any scientific investigation which cannot, in the opinion of the Court, be conveniently conducted before the Court, the Court may, if it thinks it necessary or expedient in the interest of justice so to do, issue a commission to such person as it thinks fit, directing him to inquire into such question and report thereon to the Court.

4. Commission for Performance of Ministerial Act [Rule 10B]

Where any question arising in a suit involves the performance of any ministerial act which cannot, in the opinion of the Court, be conveniently performed before the Court, the Court may, if, for the reasons to be recorded, is of opinion that it is necessary or expedient in the interest of justice so to do, issue a commission to such person as it thinks fit, directing him to perform that ministerial act and report thereon to the Court.

5. Commission for Conducting Sale of Movable Property [Rule 10C]

Where, in any suit, it becomes necessary to sell any movable property which is in the custody of the Court pending the determination of the suit and which cannot be conveniently preserved, the Court may, if, for reasons to be recorded, it is of opinion that it is necessary or expedient in the interest of justice so to do, issue a commission to such person as it thinks fit, directing him to conduct such sale and report thereon to the Court.

6. Commission for Examination of Accounts [Rules 11 – 12]

The Court may issue a commission to such person as it thinks fit in a suit in which an examination or adjustment is necessary. The proceedings and report of the commissioner shall be evidence in the suit unless the Court directs further inquiry. (Order 26, rr. 11 and 12).

7. Commission for Partition [Rules 13 – 14]

Where a preliminary decree for partition of immovable property has been passed, the Court may issue a commission to such person as it thinks fit to make a partition of

separation according to the rights as declared in such decree. The Commissioner shall, after such inquiry as may be necessary, divide the property into the required number of shares and allot them to the parties. He will then prepare a report appointing the share of each party and distinguishing the same by metes and bounds and transmit it to the Court. The Court shall, after hearing the objections of different parties, make the final allotment.

Munnalai v. Rajkumar, AIR, 1962 SC, 1493

The Supreme Court held that in a suit for partition of joint family property. The trial Court appoints a commissioner directing him to submit his proposals for partition of the property, and for that purpose authorises him to ascertain the property which was available for partition and to ascertain the liability of the joint family and for deciding those questions, the commissioner was empowered to record statements of the parties, frame issues and to record evidence as might be necessary, the Court does not, so authorising the commissioner, abdicate its functions to the commissioner. The commissioner was merely called upon to make proposals for partition on which the parties would be heard, and the Court would adjudicate upon such proposals in the light of the preliminary decree and the contentions of the parties. The proposals of the commissioner cannot from their very nature be binding upon the parties nor the reason in support thereof.

III. EXPENSES OF COMMISSION [ORDER 26, RULE 15]

Rule 15 provides that the Court may, if it thinks fit, order the party requiring the commission to deposit the necessary expenses within the fixed period.

IV. POWERS OF COMMISSION [RULES 16 - 18]

The Commissioner may (i) summon and procure the attendance of parties and their witnesses and examine them; (ii) call for and examine documents; (iii) enter into any land or building mentioned in the order; (iv) proceed ex-parte if the parties do not appear before him in spite of the order of the Court. Rule 18 - B empowers the Court to fix the date for return of a commission.

V. COMMISSIONS FOR FOREIGN TRIBUNALS [RULES 19 - 22]

Rules 19 to 22 provide that if a High Court is satisfied that a foreign Court wishes to obtain the evidence of a witness residing within its appellate jurisdiction in a proceeding of a civil nature, it may issue a commission for the examination of such witness.

VI. LETTER OF REQUEST [SECTION 77]

In lieu of issuing a commission the Court may issue a letter of request to examine a witness residing at any place not within India.

VII. COMMISSION ISSUED BY FOREIGN COURTS [SECTION 78]

Subject to such conditions, and limitations as may be prescribed, the provisions as to the execution and return of commissions for the examination of witnesses shall apply to commission issued by or at the instance of -

- a) Courts situate in any part of India to which the provisions of this Code do not extend; or
- b) Courts established or continued by the authority of the Central Government outside India;
- c) Courts of any State or country outside India.

VIII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. In what manner and under which circumstances Commissions can be issued by Courts in Rajasthan? [250 Words, RJS-1974]
2. Discuss the provisions of the Civil Procedure Code regarding the issue of commission. Illustrate your answer. [250 Words, UPPCS(J)-1985]
3. Describe the principal features of commissions to examine witnesses. [50 Words, RJS-1980-81]

CHAPTER XXI

ARREST AND ATTACHMENT BEFORE JUDGMENT

[SECTION 95, ORDER 38]

Dear aspirant,

Order 38, Rules 1-4 lay down provisions for the arrest of defendant before the judgment, under special circumstances. Where at any stage of the suit, the court is satisfied, either by affidavit or otherwise, that the defendant with intent to delay the plaintiff, or to avoid any process of the court, or to avoid any process of the court, or to obstruct/delay the execution of any decree that may be passed against him, has absconded or left (or about to abscond or leave) the local limits of the court's jurisdiction, or has disposed of or removed from such local limits his property or, is about to leave India, the court may issue a warrant to arrest the defendant and bring him before the court to show cause why he should not furnish security for his appearance (Rule 1). However, he shall not be arrested if he pays the sum specified in the warrant as sufficient to satisfy the plaintiff's claim.

The plaintiff may make an application for arrest at any time after the plaint is presented, even before the service of summons. However, the plaintiff's suit must be prima facie unimpeachable. Further, the court must have reason to believe that unless this extraordinary power is exercised there is a real danger of the defendant escaping.

When the defendant fails to furnish security, the court may commit him to civil prison until the decision of the suit/execution of decree. However, no such person can be detained in prison for more than six weeks if the amount/value of the subject matter of the suit does not exceed Rs. 50/- and for more than 6 months in any other case. When such person complies with the order, he cannot be detained in prison any longer.

Section 95 lays down that where in any suit in which the plaintiff has obtained an order of arrest or attachment of property of the defendant on insufficient grounds, the court may order the plaintiff to pay compensation up to Rs. 5000/- to the defendant.

Rule 5 of Order 38 lays down that an attachment before judgment could be made if the court is satisfied that the defendant is about to dispose of the whole or a part of his property or is about to remove the property from the local limits of the court's jurisdiction.

Where the defendant fails to show cause why he should not furnish security, or fails to furnish the security required, within the time fixed by the court, the court may order that the property (specified) sufficient to satisfy any decree in the suit which may be passed, be attached. [Rule 6]

The court in the order may also direct conditional attachment. If an attachment order is made without complying with the provisions of Rule 5, such attachment shall be void.

An order of attachment will be withdrawn if the defendant furnishes security or the suit is dismissed. [Rule 9] Where the property is under attachment, and a decree is subsequently passed in the plaintiff's favour, it is not necessary to apply for fresh attachment of the property in execution under Order 21, Rule 11, CPC.

An attachment before judgment cannot be ordered in the following two cases –

- a) in respect of any agricultural produce or its production in the possession of an agriculturist, and

- b) no such order in respect of immovable property can be made by a Small Causes Court.

"Attachment before judgment" is comparatively more important than "Arrest before judgment". A short notes on it can be asked in Rajasthan, U. P., Bihar, Himachal, Haryana and Delhi Judicial Examination.

Wishing you all the best,

Yours Sincerely

RAHUL

Ranvix IAS

CHAPTER XXI

ARREST AND ATTACHMENT BEFORE JUDGMENT

[SECTION 95, ORDER 38]

SYNOPSIS

I. Arrest before Judgment [Order 38, Rules 1-4]

1. General
2. Grounds [Rule 1]
3. Principles
4. Security [Rules 2 - 4]
5. When arrest before judgment not allowed
6. Arrest on insufficient grounds [Section 95]
7. Period of detention [Order 38, Rule 4]

II. Attachment before Judgment [Order 38, Rules 5-12]

1. Object
2. Grounds [Rule 5]
3. Principles
4. Mode of attachment [Rule 7]
5. Exemption [Rule 12]
6. Rights of third party [Rule 1]
7. Adjudication of claims [Rule 8]
8. Re-attachment not necessary [Rule 11]
9. Withdrawal of attachment [Rule 9]
10. Attachment on insufficient grounds [Section 95]
11. Private alienation of property void [Section 64]

III. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XXI

ARREST AND ATTACHMENT BEFORE JUDGMENT

[SECTION 95, ORDER 38]

I. ARREST BEFORE JUDGMENT [ORDER 38, RULES 1-4]

1. General

Generally a creditor having a claim against his debtor has first to obtain a decree against him and then execute the said decree by having him arrested or his property attached in execution under the provisions of Order 21. Under the special circumstances, however, the creditor can move for the arrest of the debtor or for the attachment of his property even before the judgment. The object underlying these provisions is to enable the plaintiff to realise the amount of decree if one is eventually passed in his favour and to prevent any attempt on the part of the defendant to defeat the execution of such decree passed against him.

2. Grounds [Rule 1]

Where at any stage of the suit, the court is satisfied, either by affidavit or otherwise, (a) that the defendant with intent to delay the plaintiff, or to avoid any process of the court, or to obstruct or delay the execution of any decree that may be passed against him, (i) has absconded or left the local limits of the jurisdiction of the court, or (ii) is about to abscond or leave the local limits of the jurisdiction of the court his property or any part thereof, or (b) that the defendant is about to leave India under the circumstances affording reasonable probability that the plaintiff will or may thereby be obstructed or delayed in the execution of any decree that may be passed against the defendant in the suit, the court may issue a warrant to arrest the defendant and bring him before the court to show cause why he should not furnish security for his appearance. The defendant shall not, however, be arrested if he pays to the officer entrusted with the execution of the warrant any sum specified in the warrant as sufficient to satisfy the plaintiff's claim.

3. Principles

An application for arrest may be made by the plaintiff at any time after the plaint is presented, even before the service of summons is effected on the defendant. However, before this extraordinary power can be exercised, the court must be satisfied about the following two conditions:

- i) The plaintiff's suit must be bona fide and his cause of action must be prima facie unimpeachable subject to his proving the allegations in the plaint; and
- ii) The court must have reason to believe on adequate materials that unless this extraordinary power is exercised there is a real danger that the defendant will remove himself or his property from the ambit of the powers of the court.

4. Security [Rules 2-4]

- a) Where the defendant fails to show cause why he should not furnish security for his appearance, the court shall order him either to deposit in court money or other property sufficient to answer the claim against him, or to furnish security for his appearance at any time when called upon.
- b) Every surety for the appearance of a defendant shall bind himself, in default of such appearance, to pay any sum of money which the defendant may be ordered to pay in the suit.
- c) Where the defendant fails to furnish security or to find fresh security after the original surety has been discharged from his obligation by the court, the court may commit him to civil prison until the decision of the suit, or, where a decree is passed against him, until the decree has been executed.

5. When arrest before judgment not allowed

An order for arrest of the defendant before judgment cannot be obtained in any suit for land or immovable property specified in clauses (a) to (d) specify four grounds. They are:

- a) Suits for the recovery of immovable property.
- b) Suits for partition of immovable property.
- c) Suits for foreclosure, sale or redemption in case of a mortgage/charge upon immovable property, and
- d) Suits for the determination of any right/interest in immovable property.

6. Arrest on insufficient grounds [Section 95]

Where in any suit in which an order of arrest of the defendant has been obtained on insufficient grounds by the plaintiff, or where the suit of the plaintiff fails and it appears to the court that there was no reasonable or probable ground for instituting it, on application being made by the defendant, the court may order the plaintiff to pay as compensation such amount not exceeding five thousand rupees, as it seems reasonable to the defendant for the expense or injury including injury to reputation caused to him.

7. Period of detention [Order 38, Rule 4]

No person shall be detained in prison for a longer period than six months if the amount or value of the subject-matter exceeds Rs. 50/-, nor for a longer period than six weeks when the amount or value of the subject-matter of the suit does not exceed Rs. 50/- [Order 38, Rule 4]

II. ATTACHMENT BEFORE JUDGMENT [ORDER 38, RULES 5-12]

1. Object

The primary object for attachment before judgment is to prevent any attempt on the part of the defendant to defeat the realisation of the decree that may be passed against him. In *Sardar Govindrao v. Devi Sahai*, AIR 1982 SC, the Supreme Court observed:

The sole object behind the order levying attachment before judgment is to give an assurance to the plaintiff that his decree if made would be satisfied. It is a sort of a guarantee against decree becoming *infructuous* for want of property available from which the plaintiff can satisfy the decree.

2. Grounds [Rule 5]

Where, at any stage of a suit, the court is satisfied, by affidavit or otherwise, that the defendant, with intent to obstruct or delay the execution of any decree that may be passed against him, (a) is about to dispose of the whole or any part of his property, or (b) is about to remove the whole or any part of his property from the local limits of the jurisdiction of the court; the court may direct the defendant, within a time to be fixed by it, either to furnish security in such sum as may be specified in the order, to produce and place at the disposal of the court, when required, the said property or the value of the same, or such portion thereof as may be sufficient to satisfy the decree, or to appear and show cause why he should not furnish security. Where the defendant fails to show cause why he should not furnish security, or fails to furnish the security required, within the time fixed by the court, the court may order that the property specified, or such portion thereof as appears sufficient to satisfy any decree which may be passed in the suit, be attached.

3. Principles

The remedy of an attachment before judgment is an extraordinary remedy and must be exercised sparingly and strictly in accordance with law and with utmost care and caution so that it may not become an engine of oppression. Before an order of attachment can be made, the court must be satisfied about the following two conditions –

- a) that the defendant is about to dispose of the whole or any part of his property; and
- b) that the disposal is with the intention of obstructing or delaying the execution of any decree that may be passed against him.

Bharat Tobacco Co. v. Maula Saheb, AIR 1980 Gujarat

The High Court of Gujarat has rightly observed: "In order to invoke the jurisdiction of the court under Order 38, Rule 5 of the Code, it is not sufficient to reproduce the language of that rule but the party seeking the order must establish by affidavit or otherwise facts which would satisfy the court that the opposite party is about to dispose of the whole or any part of his property with a view to obstructing or delaying the execution of the decree that may be passed in the suit".

It is the duty of the court to take care to see that it is not used as an instrument to coerce the opposite party to settle the matter with the party armed with an order of attachment before judgment on the latter's terms.

Premraj v. Maneck Gazi, AIR 1951 Cal 156

The power to attach property before judgment has for flung consequences, and should not, therefore, be exercised lightly. The mere fact that the defendant had left his usual place of residence, or that he was planning to sell off his property would not be sufficient ground to order attachment, unless it is further established that this was done to defeat or delay execution of the decree.

4. Mode of Attachment [Rule 7]

Rule 7 enacts that the attachment shall be made in the manner provided for the attachment of property in execution of decree.

5. Exemption [Rule 12]

The court cannot order the attachment or production of any agricultural produce in possession of an agriculturist.

6. Rights of Third Party [Rule 1]

Order 38, Rule 10, CPC provides that attachment before judgment shall not affect the rights existing prior to the attachment of persons not parties to the suit. Under Section 40 of the Transfer of Property Act, a purchaser under a contract of sale of land is entitled to the benefit of an obligation arising out of that contract and it provides that obligation may be enforced *inter alia* against a transferee with notice. Section 91 of the Trusts Act also recognises this principle that the transferee with notice of an existing contract of which specific performance can be enforced must hold the property for the benefit of the party of the contract. The right of the attaching creditor shall not be allowed to override the contractual obligation arising from an antecedent agreement for sale of the attached property. The attaching creditor cannot ignore that obligation and proceed to bring the property to sale as if it remained the absolute property of the judgment-debtor. [V. K. Sreedharan v. C. Balakrishnan, 1991 (9) Lucknow Civil Decisions, 258]

7. Adjudication of claims [Rule 8]

Rule 8 provides that any claim preferred to the property attached before judgment, shall be adjudicated upon in the manner provided for the adjudication of claims to property attached in execution of a decree for the payment of money.

8. Re-attachment not necessary [Rule 11]

Where the property is under attachment, and a decree is subsequently passed in favour of the plaintiff, it is not necessary to apply for fresh attachment of the property in execution. The provisions of Order 21 applicable to an attachment made in execution of a decree will also apply to an attachment before judgment continuing after judgment.

9. Withdrawal of attachment [Rule 9]

An order of attachment will be withdrawn if the defendant furnishes security or the suit is dismissed.

10. Attachment on insufficient grounds [Section 95]

Where in any suit in which an order of attachment of the property of the defendant has been obtained on insufficient grounds by the plaintiff, or where the suit of the plaintiff fails

and it appears to the court that there was no reasonable or probable ground for instituting it, on application being made by the defendant, the court may order the plaintiff to pay as compensation such amount not exceeding five thousand rupees, as it deems reasonable to the defendant for the expense or injury including injury to reputation caused to him.

11. Private alienation of property void [Section 64]

Section 64 lays down that where an attachment has been made, any private transfer or delivery of the property attached or of any interests therein and any payment to the judgment-debtor of any debt, dividend or other moneys contrary to such attachment shall be void as against all claims enforceable under the attachment. The attachment, however, merely prevents and avoids private alienation and confers no right on the attaching creditor. It does not invalidate a judicial sale in execution of another decree. Again, a private transfer pending the attachment would be void only as against all claims enforceable under the particular attachment and no other. [*Ambi v. Kelan*, I. L. R. 1937 Mad. 979]

III. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Under what circumstances can a defendant be arrested before judgement and when can such order be given? Explain also the procedure for such arrest. [250 Words, UPPCS(J)-1992]
2. Short Notes: Attachment Before Judgment [150 Words, RJS-1974, BJE-1977, 1984]
3. Describe the principal features of Attachment Before Judgment [150 Words, RJS-1980-81]
4. Under what circumstances may a Court order attachment before judgment? [150 Words, RJS-1988]
5. Explain attachment before Judgment. [150 Words, RJS-1992]
6. In what circumstances can the property of defendant be attached before Judgment? [200 Words, UPPCS(J)-1984]
7. Under what circumstances can a defendant's property be attached before judgment? What will be the procedure for such attachment? [200 Words, UPPCS(J)-1992]
8. In what circumstances can the property of defendant be attached before Judgment? [300 Words, HJS-2000]
9. 'B' filed a suit for declaration of partnership and accounts against 'A'. In order to deprive 'B' of the benefits, 'A' began to shift the goods and assets of the business establishment in hurry. [200 Words, UPPCS (J) - 1991]

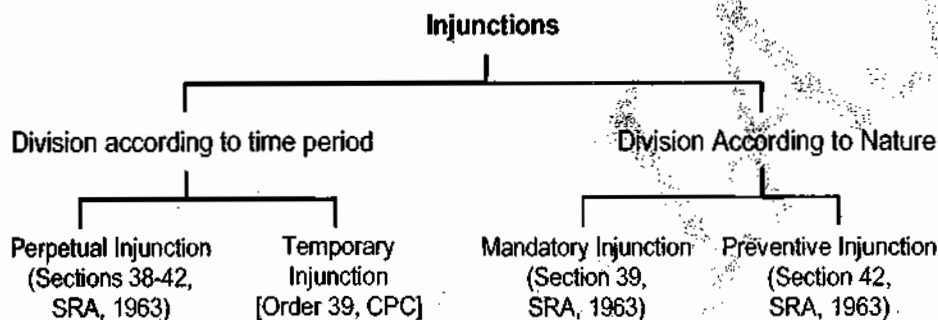
CHAPTER XXII

TEMPORARY INJUNCTION AND INTERLOCUTORY ORDERS

[ORDER 39]

Dear aspirant,

A court possesses the power to grant interim relief during the pendency of the suit. The primary purpose being preservation of property in dispute till legal rights and conflicting claims of the parties before the court are adjudicated. Injunction is an order or judgment by which a party to an action is required to do or refrain from doing a particular thing. The classification of injunctions can be shown with the help of following chart:



A permanent injunction restrains a party forever from doing the specified act and can be granted only on merits at the conclusion of the trial after hearing both the parties in the suit [Sections 38 – 42, Specific Relief Act, 1963]. A temporary or interim injunction restrains a party temporarily from doing the specified act and can be granted only until the disposal of the suit or until the further order of the court.

It is regulated under the provisions of Order 39 of the Civil Procedure Code, 1908 and may be granted at any stage of the suit. A "Mandatory" injunction is one which commands the defendant to do some positive act [Section 39, Specific Relief Act, 1963]. An injunction restraining a person from doing a thing is called prohibitory injunction [Section 42, Specific Relief Act, 1963].

Rules 6 to 10 of Order 39, mention certain interlocutory orders. These orders are passed by a court during the pendency of a suit. They relate to matters of procedure as they arise during the trial of the suit or in the course of execution proceedings. They are passed to assist the parties in the prosecution of their case, or for the purpose of protecting the subject matter of the suit or for ensuring the determination of the merits of the case. They, however, do not determine the substantive rights of the parties in respect of subject matter of the suit.

Temporary injunction and interlocutory order are an important chapter of CPC. In RJS, UPPCS (J), HJS, Haryana Judiciary Examinations, Bihar Judicial Examinations, M. P. Civil Judge Examinations, DJS, etc. following questions can be asked:

- i) Short notes on interlocutory orders.
- ii) Short notes on temporary injunction.
- iii) Distinction between temporary injunction and perpetual injunction.
- iv) Grounds/conditions/circumstances under which temporary injunction can be granted.
- v) Ex-parte injunction.
- vi) Consequences of disobedience of injunction.

Wishing you all the best,

Yours Sincerely

RAHUL

CHAPTER XXII

TEMPORARY INJUNCTION AND INTERLOCUTORY ORDERS

[ORDER 39]

SYNOPSIS

I. Temporary injunction [Order 39, Rules 1 – 5]

1. Introduction
2. Grounds for granting Temporary Injunction
 - a) *Prima facie* case
 - b) Irreparable Loss and Injury
 - c) Balance of Convenience
 - d) Plaintiff's conduct – Fair and Honest
3. Injunctions which may be granted
4. Injunctions which may not be granted
5. Notice [Rule 3]
6. Distinction – Temporary and Perpetual Injunction
7. Ex-parte Injunction
8. Temporary Injunction in Favour of Defendant
9. Consequences of Disobedience of Injunction
10. Effect of Private Alienation after the issue of Injunction
11. Variation and Cancellation of Order [Order 39, Rule 4]

II. Interlocutory Orders [Order 39, Rules 6 – 10]

1. Meaning
2. Certain Interlocutory Orders [Order 39, Rules 6 – 10]
3. Interlocutory Orders and Views of Courts

III. Questions of Previous Years' Exams [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XXII

TEMPORARY INJUNCTION AND INTERLOCUTORY ORDERS

[ORDER 39]

I. TEMPORARY INJUNCTION [ORDER 39, RULES 1 – 5]

1. Introduction

A temporary injunction is an order by which a party to an action is required to do, or refrain from doing, a particular thing until the suit is disposed of or until further orders of the court. A temporary injunction is interim in nature, granted on an interlocutory application of the plaintiff.

2. Grounds for granting Temporary Injunction

Before granting of the temporary injunction, the following conditions are required to be satisfied, namely:

- a) Prima facie the case is in favour of the plaintiff and against the defendant;
- b) Irreparable injury is likely to be caused to the plaintiff which cannot be compensated for in terms of money;
- c) Balance of convenience lies in favour of the plaintiff and against the defendant;
- d) The conduct of the plaintiff should be fair and honest.

For proving all the aforesaid points, the burden is on the plaintiff praying for the relief. Mere proof of one of these conditions does not entitle a person to an order of temporary injunction. Thus the proof that the plaintiff has a prima facie case does not entitle him to get injunction as of right, if the balance of convenience does not justify the granting of the same.

a) *Prima facie case*

The court must be satisfied that the applicant has a prima facie case to go to trial i.e. there is a probability of the plaintiff getting relief asked for by him. It is not necessary that the plaintiff should establish his title to the property in suit. It is enough for him to show that he has a 'fair question' (or seriously arguable question) to raise as to the existence of the right which he alleges and can satisfy the court that the property in dispute should be preserved in its present actual condition until such question can be disposed of [*Paidsetti Bhankanarayana v. Paidsetti Rajeshwar Rao AIR 1991 Ori 92*]. The court should not examine the merits of the case closely at that stage, but it is to be guided by the plaintiff's case as revealed in the plaints, affidavits, etc.

To sustain an application for temporary injunction a probability of right is sufficient. But, if the legal right which is alleged to have been infringed is doubtful, the mere existence of the doubt is enough to refuse temporary injunction. The party seeking the aid of the court for an injunction must show that the act complained of is in violation of right or is at least an act which, if carried into effect, will necessarily result in a violation of the right [*Mathew Philips v. P. O. Koshy, AIR 1960 Mys 74*].

That the suit would become infructuous if the court did not issue an injunction is by itself no ground in law, if there was no prima facie case made out in support of it. Further, the fact that the defendant has no right/title to the suit land cannot, by itself, be a ground for an order of temporary injunction against him at the instance of the plaintiff, if the latter does not make out a prima facie case therefore (that is, the plaintiff has to satisfy the court that he has both ownership and possession of the suit land) [*Tshering Norbu v. Smt. Basant Kumari, AIR 1982 NOC, 188 Sikkim*].

b) *Irreparable Loss and Injury*

Before the granting of the temporary injunction, the court has of necessity to satisfy itself that the failure to grant the temporary injunction is likely to inflict upon the plaintiff the loss or injury which cannot be compensated in terms of money; and that

there is no other remedy available except the injunction and he needs protection from the consequences of apprehended injury or dispossession.

Irreparable injury does not mean that there must be no physical possibility of repairing the injury, but means only that the injury must be a material one, namely one that cannot be subsequently compensated by way of damages. [*Triloki Nath v. Ganesh Prasad*, 1995 All CJ 930]. If the loss is likely to be cause to the plaintiff in the case of failure to grant of injunction, can be compensated in terms of money, injunction as a matter of course should not be allowed. Though, every loss of a civil nature can be compensated in terms of money, it is the proportionate amount that is required to be paid to compensate for the loss and injury that is material. An injury will be regarded as 'irreparable' where there exists no certain pecuniary standard for measuring damages.

c) Balance of Convenience

The court will first see that there is a bona fide contention between the parties and then on which side, in the event of success of the main suit for permanent injunction, will lie the balance of inconvenience if the temporary injunction is not issued. For granting of interim injunction the balance of convenience must be in favour of the applicant.

In other words, the temporary injunction has to be allowed only in the cases where the chances of the success of the plaintiff's suit for permanent injunction are reasonably fair. And presuming that if the suit for permanent injunction will succeed ultimately, the court has to see that balance of convenience at the time when the suit is finally decided will lie in whose favour if the temporary injunction is issued at present.

In considering an application under Order 39, Rules 1 and 2, the court cannot exclude considering of the 'balance of convenience and inconvenience' of the parties. Where the court has granted temporary injunction without considering the mutual prejudice of the parties (comparative equities) and other necessary elements required by law to be considered, the exercise of jurisdiction by the court would be deemed to be materially irregular and the order would be open to challenge in revision.

The Supreme Court while considering the question of the balance of convenience observed in *Dalpat Kumar v. Prahlad Singh*, AIR 1993 SC 276: "The court while granting or refusing to grant injunction should exercise judicial discretion to find the amount of substantial mischief or injury which is likely to be caused to the other side if the injunction is granted. If on weighing competing possibilities or probabilities of likelihood of injury and if the court considers that pending the suit, the subject matter should be maintained in *status quo*, an injunction would be issued".

Where a court grants interim injunction which results in injustice to the opposite party, it is not only power but duty of the court at the time of passing final order to undo injustice and to restore *status quo* - ante [*Prabodh v. State of U.P.*, AIR 1985 SC 167].

d) Plaintiffs Conduct – Fair and Honest

Relief by injunction should be granted or withheld according to real equity of the case in view of all facts and circumstances. The aspects of comparative equities, balance of convenience and irreparable injury have to be satisfied.

Since the relief is wholly equitable in nature, the party invoking the jurisdiction of the court has to show that he himself was not at fault and that he himself was not responsible for bringing about the state of affairs complained of and that he was not unfair or inequitable in his dealings with the party against whom he was seeking relief. His conduct should be fair and honest. These considerations will arise not only in respect of the person who seeks an injunction order under Order 39, but also in respect of the party approaching the court for vacating the ad - interim injunction order already granted in the pending suit or proceeding [*M/S. Gujarat Bottling Co. Ltd. v. Coca Cola Co.*, AIR 1995 SC 2372].

In a case, a lessee under a permanent lease has already raised permanent structures on the leasehold land long back without any objection in this regard on the part of the lessor. The lessor later, sought the grant of interim injunction commanding the lessee to pull down constructions, as there was no express agreement to raise such structures. Held that the interim injunction as sought for, could not be granted, especially when the lessor had not made out what prejudice would be caused to him if the injunction was not granted, and the grant of injunction would cause irreparable loss to the lessee.

3. Injunctions which may be granted

In accordance with the above principles, interim injunction of maintaining *status quo*, against transfer of property, disposal of goods, making construction, effecting recovery of dues, attachment of property, appointment of receiver or commission, against prosecution, etc., can be granted by a court.

4. Injunctions which may not be granted

Since the power can be exercised judicially and in public interest, no interim injunction causing administrative inconvenience or resulting in public mischief should be granted. Thus, ordinarily no injunction should be granted against recovery of tax or octroi, enforcement of contractual rights and liabilities, transfer or suspension of employees, delaying election process, interfering with inquiry or investigation, etc.

5. Notice [Rule 3]

The court shall, before granting an injunction give notice to the opposite party, except where it appears that the object of granting the injunction would be defeated by the delay. But the proviso added by the Amendment Act of 1976 lays down that when an *ex-parte* injunction is proposed to be given, the court has to record reasons for coming to the conclusion that the object of granting injunction would be defeated by delay. In such a situation, the court shall order the applicant to send a copy of the application and other documents immediately to the opposite party. In such a case, the court shall make an endeavour to finally dispose of the application within 30 days from the date on which the *ex-parte* injunction was granted. Where the court finds it difficult to dispose of the application within the period of 30 days, reasons are required to be recorded.

6. Distinction – Temporary and Perpetual Injunction

The main differences between perpetual and temporary injunctions may be summed up as follows:

- i) While a temporary injunction may be granted at any time after the commencement of the suit, a perpetual injunction can be granted only after the plaintiff has established his right to it at the trial.
- ii) A temporary injunction is passed by an order while a perpetual injunction can only be granted by a decree.
- iii) A temporary injunction is provisional and continues until a specified time or until the orders of the court, while a permanent injunction is granted and holds good without any time limit.
- iv) Perpetual injunction is a final determination of the rights of the parties and restrains the defendant for ever from doing the act complained of, while temporary injunction lasts till the pendency of the suit. "The perpetual injunction is in effect a decree and concludes a right. The interlocutory injunction is a remedy provisional in its nature and does not conclude a right."
- v) The effect and object of a temporary injunction is to preserve the property in dispute in *status quo* whereas that of the perpetual one is to give effect to and protect the plaintiff's right.
- vi) A temporary injunction restrains the defendant for a particular time only while a perpetual injunction restrains him for ever.

- vii) Temporary injunctions are regulated by the Code of Civil Procedure; perpetual injunctions are governed by Sections 38, 39, 40 and 41 of the Specific Relief Act, 1963.

7. Ex-parte Injunction

Rule 3 of Order 39 requires the applicant to issue notice to the opposite party before injunction is granted. Though the Court has power to grant *ex-parte* injunction without issuing notice or hearing to the party who will be affected by such order, the said power can be exercised sparingly and under exceptional circumstances.

In **Morgan Stanley v. Kartick Das, AIR 1994 SC**, the Supreme Court indicated the factors which should weigh with the court in the grant of *ex-parte* injunction:

- a) whether irreparable or serious mischief will ensue to the plaintiff;
- b) whether the refusal of *ex-parte* injunction would involve greater injustice than the grant of it would involve.
- c) the court will also consider the time at which the plaintiff first had notice of the act complained so that the making of improper order against a party in his absence is prevented;
- d) the court will consider whether the plaintiff had acquiesced for sometime and in such circumstances it will not grant *ex-parte* injunction;
- e) the court would expect a party applying for *ex-parte* injunction to show utmost good faith in making the application;
- f) even if granted, the *ex-parte* injunction would be for a limited period of time;
- g) general principles like *prima facie* case, balance of convenience and irreparable loss would also be considered by the court.

8. Temporary Injunction in Favour of Defendant

From the language of Rule 2 of Order 39 it is plain beyond controversy that a temporary injunction can be asked for by and granted only to the plaintiff and this contention is also supported by **Kangabam Birmongal Singh v. Laimayam Ningol Aribam Ongbi Madhabi Devi, [AIR 1962 Manipur 550]**. It was contended that a temporary injunction could not be granted in favour of the defendant under Section 151, Code of Civil Procedure, also. This contention must be rejected as untenable in view of the Supreme Court decision in the case of **Manohar Lal Chopra v. Rai Bahadur Rao Seth Hira Lal [AIR 1962 SC 527]**. In this case, the Supreme Court held that the courts possess power to grant temporary injunction in a given case not strictly covered by Order 39 with a view to do justice to the parties. The question still remains whether temporary injunction could be granted by the trial court in favour of the defendant in exercise of inherent powers under Section 151, Code of Civil Procedure. Such injunction can be granted by a court in suitable cases under its inherent powers for the ends of justice in favour of the defendant and against the plaintiff as held by the Supreme Court in **Manohar Lal Chopra's Case**. If a temporary injunction can be granted under Section 151 in favour of the plaintiff, there appears to be no reason why in suitable cases temporary injunction cannot be granted by the Court under its inherent powers in favour of the defendant also; and there is no substance in the agreement that this relief could be obtained by the defendant only by filing a regular suit for permanent injunction against the plaintiff. **[Kumar v. Ch. Ram Saran Vakil, 1972 A. L. J. (Lucknow) p. 379]**

9. Consequences of Disobedience of Injunction

- i) In the case of disobedience of any injunction granted or other order made under Rule 1 or Rule 2 or breach of any of the terms on which the injunction was granted or the order made, the Court granting the injunction or making the order, or any Court to which the suit or proceeding is transferred, may order the property of the person guilty of such disobedience or breach to be attached, and may also order such person to be detained in the civil person for a term not exceeding three months, unless in the mean time the court directs his release.

- ii) No attachment made under this rule shall remain in force for more than one year, at the end of which time, if the disobedience or breach continues, the property attached may be sold and, out of the proceeds, the Court may award such compensation as it thinks fit to the injured party and shall pay the balance, if any, to the party entitled thereto. [Order 39, Rule 2A]

A person is liable to be proceeded against under Order 39, Rule 2A, CPC even if he was not personally a party to the suit provided he is shown to have been agent or servant of the defendant and to have violated the order of injunction in spite of knowledge that there was such an order. [*Ram Prasad Singh v. Subodh Prasad Singh*, AIR 1983 Patna, 278; *Brijendra Prasad Narain Singh v. State of Bihar*, AIR 1963 Pat. 449, relief on].

10. Effect of Private Alienation after the issue of Injunction

The effect of a temporary injunction is not to make a subsequent alienation of the property void. Any mortgage or sale of property by a party in contravention of an injunction is not illegal and void. The only penalty that the person disobeying the order of injunction incurs is that prescribed by Rule 2A of Order 39, namely that the court granting an injunction may order the property of the person guilty of such disobedience or breach to be attached and sold for awarding out of the sale proceeds compensation to the party on whose application the injunction was granted and he may also be detained in the civil prison for a term not exceeding three months.

11. Variation and Cancellation of Order [Order 39, Rule 4]

An order for an injunction may be discharged, or varied, or set aside by the court on application made thereto by any party dissatisfied with such order:

Provided that in an application for temporary injunction or in any affidavit supporting such application, a party has knowingly made a false or misleading statement in relation to a material particular and the injunction was granted without giving notice to the opposite party, the Court shall vacate the injunction unless, for reasons to be recorded, it considers that it is not necessary so to do in the interests of justice:

Provided further that where an order of injunction has been passed after giving to the party an opportunity of being heard, the order shall not be discharged, varied or set aside on the application of the party except where such discharge, variation or setting aside has been necessitated by a change in the circumstances, or unless the Court is satisfied that the order has caused undue hardship to the party. [Order 39, Rule 4]

II. INTERLOCUTORY ORDERS [ORDER 39, RULES 6 – 10]

1. Meaning

An interlocutory order is one which is made pending the cause and before a final hearing on the merits. An interlocutory order is made to secure some end and purpose necessary and essential to the progress of the suit, and generally collateral to the issues formed by the pleadings and not connected with the final judgment.

***Amar Nath v. State of Haryana*, AIR 1977 SC**

The term "interlocutory order" merely denotes orders of a purely interim or temporary nature which do not decide or touch the important rights or the liability of the parties.

***Madhu Limayee v. State of Maharashtra*, AIR 1978 SC**

The order taking cognizance of an offence by a court, whether it is so done illegally or without jurisdiction, will be an interlocutory order.

***V. C. Shukla v. State through CBI*, AIR 1980 SC**

Interlocutory order has to be construed in contradiction to or in contrast with final order. It means not a final order, but an interlocutory order. It is made between the commencement of an action and the entry of the judgment.

Interlocutory orders are orders passed by a court during the pendency of a suit, which do not determine the substantive rights of the parties in respect of the subject-matter of the suit or terminate the suit, but relate to the protection or otherwise of the subject-matter of the suit. They are also passed in the cases of execution proceedings after the judgment has been obtained. In short, they relate to matters of procedure as they arise during the trial of the suit or in the course of execution proceedings. They are passed to assist the parties in the prosecution of their case, or for the purpose of protecting the subject-matter of the suit or for ensuring the determination of the merits of the case.

2. Certain Interlocutory Orders [Order 39, Rules 6-10]

Rules 6 to 10 of Order 39 mention certain interlocutory orders. The court has the power to order interim sale of movable property, which is the subject-matter of the suit, or is attached before judgment in such suit, which is subject to speedy and natural decay. [Order 39, Rule 6]. It can order for the detention, preservation or inspection of any property which is the subject-matter of such suit; it can authorise any person for the aforesaid purposes to enter upon or into any land or building in the possession of any other party to such suit, or authorise any samples to be taken or observation to be made or experiment to be tried for obtaining full information or evidence. [Order 39, Rule 7]. An application by the plaintiff for an order under Rules 6 and 7 may be made at any time after institution of the suit. An application by the defendant for a like order may be made at any time after appearance. Before making an order under Rule 6 and Rule 7 on an application made for the purpose, the court shall except where it appears that the object of making such order would be defeated by the delay, direct notice thereof to be given to the opposite party. [Order 39, Rule 8]. When the land in suit is liable to Government revenue or is a tenure liable to sale and the party in possession neglects to pay the revenue or rent, the court may order any other party to the suit in case of an order for sale of the land to be put in immediate possession of the property. [Order 39, Rule 9]. Where the subject-matter of the suit is money or some other thing capable of delivery, and any party thereto admits that he holds such money or thing as a trustee for another party, or that it belongs or is due to another party the Court may order the same to be deposited in Court, or delivered to such last named party. [Order 39, Rule 10]. Orders directing the appointment of a receiver also fall within the meaning of interlocutory orders.

3. Interlocutory Orders and Views of Courts

The Supreme Court observed in *Union of India v. Swadesh Cotton Mills Co. Ltd.*, AIR 1978 SC 1818: "We should have hesitated to interfere with an interlocutory order following the usual practice in the Court. But, where repercussions are incalculable and the basis of a direction, though interlocutory, is obscure the ends of justice dominate and we may interfere if public interest so dictates."

According to the considered view of the Calcutta High Court after amendment was introduced in 1976 with regard to Order 39, Rule 8 of the Code of Civil Procedure, no ex-parte order is capable of being passed without substantive compliance of clause (3) of Order 39, Rule 9 of the Code of Civil Procedure. The ex-parte order passed under Order 39, Rule 7 being a non-speaking order, is vitiated by patent jurisdictional infirmity which can be set aside in revision. The order impugned is absolutely vitiated by the mischief of jurisdictional infirmity and the learned Munsif did not pass the order in accordance with the present provision of Order 39, Rule 8 of the Code of Civil Procedure after the same was introduced by amendment. [*Electrosteel Castings Ltd. v. Apurba Kumar Dewan and others*, AIR 1995 Calcutta, 369].

Rule 11 (1), CPC lays down that failure to comply with the Court's order leads to a specified consequence and on fair construction thereof, it is clear that if a party commits default in complying Court's order or contravenes it then the consequence as provided therein has to follow. The whole purpose of Rule 11 (1) would be frustrated if the word 'may' would receive construction to mean 'discretionary' or 'directory'. The provision is mandatory in nature. [*Ratnakar D. Pande v. Smita Pandurang Dalvi and others*, AIR 1996 Bombay, 69].

III. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Discuss the circumstances in which and grounds on which a temporary injunction can be granted? What are the consequences if such injunction is not complied with? **[250 Words, RJS-1976]**
2. What are the conditions upon the fulfillment of which the Court may grant a temporary injunction under Order 39, Rule 1 and Rule 2 of the Code of Civil Procedure? Has the Court any inherent jurisdiction to injunction in circumstances which are not covered by Order 39 of Code? What is the remedy for obedience of an order of injunction? **[500 Words, RJS-1977]**
3. As given in the Code of Civil Procedure, write the headings of order XXXIX. **[15 Words, RJS-1989]**
4. What is the criterion to grant temporary injunction by a Civil Court? **[50 Words, RJS-1992]**
5. On what basis temporary injunction is issued in a suit? Can an injunction be issued without giving notice of application to the opposite party? **[50 Words, RJS-1994]**
6. When can a temporary injunction be granted by a Civil Court? **[200 Words, UPPCS(J)-1984]**
7. Can an injunction be granted for the following purposes **[200 Words, HJS-1998]**
 - a) to stay the proceedings for the recovery of any dues recoverable as land revenue;
 - b) to restrain any election;
 - c) to affect the internal management or affairs of a minority education institution;
 - d) to restrain a private limited company to hold its annual General Meeting
8. When a temporary injunction may be granted and when it may be refused? Is notice necessary before granting it? **[200 Words, HJS-2000]**
9. When can a temporary injunction be granted by a Civil Court? **[150 Words, HrJS-2000]**
10. Explain the rules governing the grant of temporary injunction. **[250 Words, BJE-2000]**
11. Short Notes: Introductory Orders? **[150 Words, HJS-2001]**
12. What do you understand by interlocutory order? **[20 Words, RJS - 1999]**

CHAPTER XXIII

RECEIVER

[ORDER 40]

Dear aspirant,

Order 40 lays down the rules governing the appointment of a receiver, his duties etc. A "receiver" is an impartial person between the parties to a cause, appointed by the Court (Section 94) to receive and preserve the property (movable or immovable) or fund in litigation *pendente lite*, when it does not seem reasonable to the Court that either party should hold it. It is protective relief.

It is one of the harshest remedies as it deprives the opposite party the possession of property before a final judgment is pronounced. Thus, it should not be lightly resorted to [Vide: *Krishna Kumar v. Grindlays Bank*, AIR 1991 SC 899]. Where it appears to the Court to be just and convenient, it may appoint a receiver (before or after the decree) of any property [Rule 1 (a)], and remove any person from the possession/custody of the property. A receiver is an officer or representative of Court and he functions under its directions.

The appointment of a receiver is a discretionary power of the Court. The power to appoint a receiver under Order 40 is, however, subject to the controlling provisions of Section 94, and is to be exercised for preventing the ends of justice being defeated. The Court can appoint a receiver not only on the application of a party to the suit, but any person who is interested in the preservation of property. The Court can also do so on its own motion.

The Court may confer upon the receiver any of the following powers: to institute and defend suits; to collect, apply and dispose of the rents/profits; to execute documents; etc. [Rule 1 (d)]. A receiver cannot sue or be sued for acts done in his official capacity by a third party without the leave of the Court. Property in the hands of receiver cannot be attached without the Court's leave. Since he is *custodia legis*, any obstruction or interference by anyone with his possession without the Court's leave is interference with the Court's proceedings and is liable for contempt of Court.

A receiver is entitled to the remuneration fixed by the Court for the services rendered by him (Rule 2). A receiver is entitled to be indemnified for the debts incurred or contracts entered into by him in the course of the management of the estate. A receiver has to furnish security as the Court thinks fit, duly to account for what he shall receive in respect of the property. He has to pay the amount due from him as per the Court's directions (Rule 3). If the receiver fails to submit accounts, or fails to pay the amount due, or occasions loss to the property by his wilful default or negligence, the Court may direct his property to be attached and sold and make good any account found to be due from him (Rule 4).

The Court has an inherent power to remove the receiver appointed by it, when he does not comply with the orders of the Court or abuses his power or authority. A collector may be appointed as a receiver in cases where the property in question is land paying revenue to the Government (Rule 5, Order 40).

Section 94 summarizes the general powers of the Court in regard to interlocutory proceedings. It lays down that in order to prevent the ends of justice from being defeated, the Court may -

- a) issue a warrant to arrest the defendant;
- b) direct the defendant to furnish security, to produce any property and place it at the Court's disposal, or order the attachment of any property;

- c) grant a temporary injunction, and in case of disobedience, commit the guilty person to the civil person, etc.;
- d) appoint a receiver of any property, and enforce the performance of his duties by attaching and selling his property;
- e) make other interlocutory orders.

Under Section 95, the *Court*, if satisfied that an arrest, attachment or injunction was applied for on "insufficient grounds", or that there was no reasonable ground for instituting the suit by the plaintiff, may award against the plaintiff, such amount not exceeding 5000/- rupees, as it deems reasonable compensation to the defendant for the expense/injury caused to him. The *Court*, however, cannot award any amount exceeding the limits of its pecuniary jurisdiction.

Section 95, thus, provides a summary remedy for an injured defendant to enable him to seek compensation by an application to the *Court* instead of by a suit. An order determining any such application shall bar any suit for compensation in respect of such arrest, attachment or injunction.

This Chapter is not much important for Main Judiciary Examinations. But a short notes can be asked in RJS, UPPCS (J) or Bihar Judiciary Exam. For preliminary examinations, the study of this chapter is also indispensable.

Wishing you all the best,

Yours Sincerely
RAHUL

CHAPTER XXIII

RECEIVER

[ORDER 40]

SYNOPSIS

I. Meaning [Order 40]

II. Appointment [Rule 1 (a)]

III. Principles

IV. Powers [Rule 1 (d)]

V. Duties [Rule 3]

VI. Liabilities [Rule 4]

VII. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

Ramdas

CHAPTER XXIII

RECEIVER

[ORDER 40]

I. MEANING [ORDER 40]

The term "receiver" has not been defined in the Code of Civil Procedure. According to Kerr, he is "an impartial person appointed by the Court to collect and receive, pending the proceedings, the rents, issues and profits of land, or personal estate, which it does not seem reasonable to the Court that either party should collect or receive, or for enabling the same to be distributed among the persons entitled". In other words, he is an indifferent person between the parties to a cause, appointed by the Court to receive and preserve the property or fund in litigation *pendente lite*, when it does not seem reasonable to the Court that either party should hold it.

II. APPOINTMENT [RULE 1 (A)]

Where it appears to the Court to be just and convenient, it may appoint a receiver. Courts in India have very wide jurisdiction to appoint as well as to remove a receiver in the exercise of their discretion. The discretion, however, is not absolute, arbitrary and unregulated. It is a sound and judicial discretion and must be exercised cautiously, judicially and after taking into account all the circumstances of the case for the purpose of serving the ends of justice and protecting the rights of all the parties interested in the controversy.

III. PRINCIPLES

The following principles must be borne in mind before a receiver is appointed by a Court:

- a) The appointment of a receiver is a discretionary power of the Court.
- b) It is a protective relief. The object is preservation of the property in dispute pending a judicial determination of the rights of the parties to it.
- c) A receiver should not be appointed unless the plaintiff *prima facie* proves that he has very excellent chance of succeeding in the suit.
- d) It is one of the harshest remedies which the law provides for the enforcement of rights, and therefore, should not be lightly resorted to. Since it deprives the opposite party possession of property before a final judgment is pronounced, it should only be granted for the prevention of a manifest wrong or injury. A Court will never appoint a receiver merely on the ground that it will do no harm.
- e) Generally, an order appointing a receiver will not be made where it has the effect of depriving the defendant of a *de facto* possession, since that might cause irreparable loss to him. But if the property is shown to be *in medio*, that is to say, in enjoyment of no one, it will be in the common interest of all the parties to appoint a receiver.

The Court should look at the conduct of the party who makes an application for appointment of a receiver. He must come with clean hands and should not have disentitled himself to this equitable relief by laches, delay or acquiescence.

IV. POWERS [RULE 1 (D)]

A receiver is an officer or representative of the Court and he functions under its directions. The Court may confer upon the receiver any of the following powers:

- a) to institute and defend suits;
- b) to realize, manage, protect, preserve and improve the property;
- c) to collect, apply and dispose of the rents and profits;
- d) to execute documents; and
- e) such other powers as it thinks fit.

But he has no power except such as are conferred upon him by the order by which he was appointed.

V. DUTIES [RULE 3]

A receiver has to furnish such security, as the Court thinks fit, duty to account for what he shall receive in respect of the property. He has to submit accounts for such period and in such forms as the Court directs. He has to pay the amount due from him as per the direction of the Court. Being a representative of the Court, he is bound to discharge his duties personally and cannot delegate or assign any of his rights or duties entrusted to him by the Court.

Jagat Tarini Dasi v. Naba Gopal Chaki, ILR (1907) Cal

The receiver is appointed for the benefit of all concerned; he is the representative of the Court, and of all parties interested in the litigation, wherein he is appointed. He is the right arm of the Court in exercising the jurisdiction invoked in such cases for administering the property; the Court can only administer through a receiver. For this reason, all suits to collect or obtain possession of the property must be prosecuted by the receiver, and the proceeds received and controlled by him alone.

VI. LIABILITIES [RULE 4]

If the receiver fails to submit accounts, or fails to pay the amount due, or occasions loss to the property by his wilful default or negligence, the Court may direct his property to be attached and sold and make good any amount found to be due from him. A receiver is bound to exercise the same diligence in keeping down expenses and in caring for the estate in his possession as a prudent man would observe in connection with his own property under similar circumstances. Where he fails to pay the amount ordered by the Court, the Court would be justified in directing the attachment and sale of his property. The Court has also an inherent power to remove the receiver appointed by it, when he does not comply with the orders of the Court or abuses his powers or authority.

VII. QUESTIONS OF PREVIOUS YEARS EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. What are the circumstances under which the Court can appoint a receiver under Order 40, Rule 1 of the Code? Can a receiver be appointed in suit for –
 - a) partition of joint family property
 - b) dissolution of partnership and rendition of accounts? If not, give reasons.

[500 Words, RJS-1977]
2. Discuss the principles governing the appointment of Receivers. What are their powers and duties? Can a Collector be appointed as a Receiver? **[500 Words, UPPCS(J)-1984]**
3. When is a Court entitled to appoint a Receiver? **[250 Words, BJE-1975]**

ROM

CHAPTER XXIV
WITHDRAWAL AND COMPROMISE OF SUITS
[ORDER 23]

Dear aspirant,

Under Order 23, at any time after the institution of the suit, the plaintiff may as against all or any of the defendants abandon his suit or part of his claim [Rule 1 (1)]. However, the leave of the Court is required where the plaintiff is a minor, etc. under Order 32.

If the Court is satisfied that a suit must fail by reason of some "formal defect", or that there are sufficient grounds for allowing the plaintiff to institute a fresh suit, it may allow the withdrawal from suit with liberty to institute a fresh suit in respect of the subject matter of the suit or part of the claim [Rule 1 (3)]. The expression "formal defect" covers every kind of defect which does not affect the merits of a case. Thus, a misjoinder of parties or an erroneous valuation of the subject matter of a suit are formal defects.

Where a plaintiff withdraws a suit [under Rule 1 (3)] or withdraws from a suit without the permission of the Court [under Rule 1 (3)], he shall be liable to costs and precluded from instituting a fresh suit against the same defendant in respect of the same subject matter. However, when there were several plaintiffs, the Court cannot allow one of them to withdraw, unless the other co-plaintiffs consent to such withdrawal. So, if the Court allows two out of five plaintiffs to withdraw with liberty to file a fresh suit and the other three plaintiffs do not consent, the Court acts without jurisdiction and the two plaintiffs will not be able to file a second suit in respect of the same subject matter.

If the plaintiff withdraws or abandons a suit and a defendant applies to be transposed as a plaintiff [under Order 1], the Court must, when considering such an application, have due regard to the question whether the applicant has a substantial question to be decided as against any of the other defendants. [Rule 1A]

If any fresh suit instituted on the permission granted under Rule 1, the plaintiff is bound by the law of limitation in the same manner as if the first suit had not been instituted. [Rule 2]

Where it is proved to the satisfaction of the Court that a suit has been adjusted, wholly or in part, by an unlawful agreement or compromise or where the defendant satisfies the plaintiff in respect of the whole or any part of the subject matter of the suit, the Court must order such agreement, compromise or satisfaction to be recorded, and then pass a decree accordingly as it relates to the parties in the suit. It does not matter that the subject matter of the agreement, etc. is the same as the subject matter of the suit. [Order 23, Rule 3]

Proviso to Rule 3 lays down that where it is alleged by one party and denied by the other that an adjustment or satisfaction has been arrived at, the Court shall decide the questions; but no adjournment to be granted unless the Court thinks fit to grant it. An agreement or compromise which is void or voidable under the Indian Contract Act shall not be deemed to be lawful within the meaning of this rule [Explanation to Rule 3]. No suit can be filed to set aside a decree on the ground that the compromise on which the decree is based was not lawful [Rule 3A]. No agreement or compromise in a representative suit can be entered into without the leave of the Court, otherwise it shall be void [Rule 3B]. Nothing in this Order shall apply to any proceedings in execution of a decree or order. [Rule 4]

This chapter is not much important but sometimes a simple question can be asked in RJS. In DJS, HJS & Haryana JE, problem based question can be asked.

Wishing you all the best,

Yours, Sincerely
RAHUL

CHAPTER XXIV WITHDRAWAL AND COMPROMISE OF SUITS

[ORDER 23]

SYNOPSIS

I. Withdrawal of Suits [Order 23, Rules 1 & 2]

1. Introduction
2. Withdrawal of Suit [Order 23, Rules 1 & 2]
 - a) *Withdrawal without leave of Court [Rule 1 (4)]*
 - b) *Withdrawal with leave of Court [Rule 1 (3)]*
3. Suit by minor [Rule 1 (2)]
4. Withdrawal by one of the Plaintiff [Rule 1 (5)]
5. Limitation [Rule 2]
6. Applicability to other proceedings

II. Compromise of Suits [Order 23, Rules 3, 3A, 3B]

1. Introduction
2. Satisfaction of Court
3. Compromise on behalf of minor
4. Compromise by pleader
5. Representative Suit [Rule 3B]
6. Compromise decree and *res judicata*
7. Compromise decree and estoppel
8. Execution of compromise decree
9. Bar to suit [Rule 3A]
10. Appeal

III. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XXIV
WITHDRAWAL AND COMPROMISE OF SUITS
[ORDER 23]

I. WITHDRAWAL OF SUITS [ORDER 23, RULES 1 & 2]

1. Introduction

Order 23 deals with withdrawal and compromise of suits. It provides for two types of withdrawals:

- a) Absolute withdrawal, i.e. withdrawal without the leave of the Court; and
- b) Qualified withdrawal, i.e. withdrawal with the leave of the Court.

2. Withdrawal of Suit [Order 23, Rules 1 & 2]

a) *Withdrawal without leave of Court [Rule 1 (4)]*

At any time after the institution of a suit, the plaintiff may abandon his suit or abandon a part of his claim against all or any of the defendants without the leave of the Court. This right is absolute and unqualified and the Court cannot refuse permission to withdraw a suit and compel the plaintiff to proceed with it, unless any vested right comes into existence before such prayer is made. However, in case of such abandonment withdrawal of a suit or part of a claim without the leave of the Court, the plaintiff will be precluded from instituting a fresh suit in respect of the same cause of action. The plaintiff also becomes liable for such costs as the Court may award to the defendant.

b) *Withdrawal with leave of Court [Rule 1 (3)]*

Where the Court is satisfied that a suit must fail by reason of some formal defect, or there are sufficient grounds for allowing the plaintiff to institute a fresh suit for the subject-matter of a suit or part of a claim, it may grant permission to withdraw such suit or such part of the claim with liberty to file a fresh suit in respect of the subject-matter of such suit or such part of the claim on such terms as it thinks fit.

Though the expression "formal defect" has not been defined in the Code, it connotes some defect of form or procedure not affecting the merits of the case, such as want of statutory notice under Section 80 of the Code, misjoinder of parties or of causes of action, non-payment of proper Court fee or stamp fee, failure to disclose cause of action, mistake in not seeking proper relief, improper or erroneous valuation of the subject-matter of the suit, absence of territorial jurisdiction of the Court, or defect in prayer clause, etc. But a defect affecting the merits of the case, or a defect which goes to the root of the plaintiff's case cannot be said to be formal defect; e.g. non-joinder of a necessary party, omission to substitute heirs, omission to include all the causes of action in the plaint, non-registration of a partnership firm, bar of limitation, deliberate undervaluation of the subject-matter of the suit, addition of a new factual plea, failure to bring legal representatives on record, etc.

It is at the discretion of the Court to grant such permission and it can be granted by the Court either on an application of the plaintiff or even *suo motu*. Such permission may be granted on such terms as to costs, etc. as the Court thinks fit. The granting of permission to withdraw a suit with liberty to file a fresh suit removes the bar of *res judicata*. It restores the plaintiff to the position which he would have occupied had he brought no suit at all.

3. Suit by minor [Rule 1 (2)]

By the Amendment Act of 1976, a specific provision has been made that where the plaintiff is a minor, neither the suit nor any part of the claim can be abandoned without the leave of the Court.

4. Withdrawal by one of the Plaintiff [Rule 1 (5)]

Where there are two or more plaintiffs in a suit, the suit or part of the claim cannot be abandoned or withdrawn without the consent of all the plaintiffs. One of such plaintiffs, however, may abandon or withdraw from the suit to the extent of his own interest in it.

5. Limitation [Rule 2]

A plaintiff withdrawing a suit with liberty to file a fresh suit is bound by the law of limitation in the same manner as if the first suit has not been filed at all.

6. Applicability to other proceedings

The provisions of this order apply to withdrawal of appeals and revisions. The appellant has a right to withdraw his appeal unconditionally and if he makes such an application, the *Court* must grant it, subject to costs, and has no power to say that it will not permit the withdrawal and will go on with the hearing of the appeal.

Where the plaintiff sues in a representative character, he cannot abandon or withdraw the suit or a part of the claim. He may, however, get out of the suit, but that does not put an end to the litigation where other persons are interested in it and have a right to come in and continue the litigation.

The general principles for withdrawal of suits also apply to petitions under Article 32 or Article 226 of the Constitution. Ordinarily, therefore, a *High Court* or the *Supreme Court* would not refuse the prayer of the petitioner or his advocate to allow him to withdraw the petition, if such withdrawal is unconditional. But he cannot thereafter institute a fresh petition on the same cause of action.

The provisions of Order 23 do not apply to execution proceedings.

II. COMPROMISE OF SUITS [ORDER 23, RULES 3, 3A, 3B]

1. Introduction

After the institution of the suit, it is open to the parties to compromise, adjust or settle it by an agreement or compromise.

Rule 3 of Order 23 lays down that (i) where the *Court* is satisfied that a suit has been adjusted wholly or in part by any lawful agreement in writing and signed by the parties; or (ii) where the defendant satisfies the plaintiff in respect of the whole or any part of the subject matter of the suit, the *Court* shall record such agreement, compromise or satisfaction and pass a compromise decree accordingly.

2. Satisfaction of Court

It is the duty of the *Court* to satisfy itself with regard to the terms of agreement. The *Court* must be satisfied that the agreement is lawful and it can pass a decree in accordance with it. The *Court* should also consider whether such a decree can be enforced against all the parties to the compromise.

An agreement or compromise which is void or voidable under the Indian Contract Act, 1872, shall not be deemed to be lawful within the meaning of Rule 3.

The *Court* in recording compromise should not act in a casual manner. Where it is alleged by one party that a compromise has not been entered into or is not lawful, it is the duty of the *Court* to decide that question.

3. Compromise on Behalf of Minor

No next friend or guardian of a minor shall, without the leave of the *Court*, enter into any agreement or compromise on behalf of the minor with reference to the suit, unless such leave is expressly recorded in the proceedings.

4. Compromise by Pleader

A pleader stands in the same position as his client with regard to his authority to compromise the suit. An advocate appearing for a party, therefore, has always an implied authority to enter into a compromise on behalf of his client.

5. Representative Suit [Rule 3B]

No agreement or compromise in a representative suit can be entered into without the leave of the Court. Before granting such leave, notice to the persons interested should be given by the Court.

6. Compromise Decree and *Res judicata*

The Supreme Court has delivered contradictory decisions on this topic. In **Subba Rao v. Jagannadha Rao, AIR 1967 SC**, the Supreme Court held that a compromise decree cannot operate as *res judicata* while in **Shankar Sitaram v. Balkrishna Sitaram, AIR 1954 SC** and **Sudhendu v. Renuka, AIR 1992 SC**, the Apex Court observed that a consent decree would also operate as *res judicata*.

It is submitted that the view expressed in Subba Rao's case is correct. The reasons are:

- a) In a consent decree, it cannot be said that a suit is heard and finally decided by the Court on merits.
- b) A compromise decree is not a decision of the Court. It is acceptance by the Court of something to which the parties had agreed. A compromise decree merely sets the seal of the Court on the agreement of the parties.

Prithvi Chand v. Shinde, AIR 1993 SC

A compromise decree may create an estoppel between the parties.

7. Compromise Decree and Estoppel

A compromise decree is not a decision on merits as it cannot be said that the case was "heard and finally decided". Nevertheless, it is based on consent or compromise of parties and, therefore, will operate as an estoppel.

8. Execution of compromise decree

A consent decree is executable in the same manner as an ordinary decree. But if the decree gives effect to an unlawful compromise or is passed by the Court having no jurisdiction to pass it, it is a nullity and its validity can be set up even in the execution.

9. Bar to Suit [Rule 3A]

No suit can be filed to set aside a compromise decree on the ground that it is not lawful.

10. Appeal

No appeal lies against a decree passed by the Court with consent of parties [Section 96 (3)], nor a suit can be instituted to set aside a compromise decree on the ground that such compromise is not lawful. However, Rule 1-A (2) of Order 43 lays down that in an appeal against a decree passed after recording or refusing to record a compromise, the order recording or refusing to record a compromise can also be questioned. A party challenging the compromise can file an appeal under Section 96 (1) of the Code and Section 96 (3) shall not bar such an appeal. Likewise, such a decree can be challenged by filing a suit on the ground of fraud, undue influence or coercion. [Vide: **Barwari Lal v. Chando Devi, AIR 1993 SC**]

III. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPSC (J), BJE, HJS, HARYANA JS ETC.]

1. State the law as laid down in the Code of Civil Procedure relating to the withdrawal of a suit. Can the plaintiff after withdrawal bring another suit on the same cause of action? If so, under what circumstances? [150 Words, RJS-1988]
2. Plaintiff filed suit against S (widow of his brother) for declaration of title in the suit property, to put him in possession and for arrears of rent with further mesne profits. Suit was decreed on 5.9.83. Three days thereafter, the plaintiff sold the suit properties to B. That widow filed appeal. During pendency of the appeal B was impleaded as respondent under Order 22 Rule 10, CPC since the property in suit had been assigned to him. The plaintiff filed an application for dismissing the suit as not pressed as he had compromised the dispute with S and wanted the compromise to be recorded. It is opposed by B contending that he being transferee-pendente-litae was virtually interested in decree remaining intact.

Plaintiff contended that under order 23 Rule 1, CPC he has right to compromise suit with S against whom he had filed suit and he cannot be forced by any of the parties to continue to prosecute the suit. Decide the application of the plaintiff. **[150 Words, DJS-1999]**

3. A party to a suit states in a Court that the suit has been compromised. Discuss the procedure for securing an order recording the compromise and getting decree in accordance thereof. **[500 Words, RJS-1971]**

Ranvika

CHAPTER XXV DEATH OF PARTY [ORDER 22]

Dear aspirant,

Order 22 deals with the creation, assignment or devolution of interest during the pendency of suits or appeals, but not to the execution proceedings [Rule 12]. Such creation, assignment or devolution may arise in the following circumstances:

- i) Death of a party [Rules 1 - 6];
- ii) Marriage of a party [Rule 7];
- iii) Insolvency of a party [Rule 8];
- iv) Other circumstances [Rule 10].

"Abatement" implies a suspension or termination of proceedings in an action for want of proper parties or owing to a defect in writ of service. A cause or matter shall not be abated by the marriage, death or bankruptcy of any of the parties, if the cause of action survives, nor shall it abate by changes in title during the pendency of suit. Abatement of a proceeding takes place on its own force by passage of time. No specific order for abatement is envisaged under Order 22. This Order is not applicable to writ proceedings.

Order 22, Rule 1 provides that the death of a plaintiff or defendant shall not cause the suit to abate if the right to sue survives. Rule 11 provides the word "plaintiff" shall be held to include an appellant, the word "defendant" a respondent, and the word "suit" an appeal. "Right to sue" means the right to bring a suit asserting a right to the same relief which the deceased plaintiff asserted at the time of his death. The cause of action in the original and revived suit must be the same and no fresh cause of action can be imported into the revived suit.

A suit filed in a "representative capacity" does not abate on the death of one of the plaintiffs. But in cases of personal actions, the right to sue will not survive to or against his representatives. In these cases, the maxim *actio personalis moritur cum persona* (a personal action dies with the person) applies. This principle is to be found in Section 37 of the Indian Contract Act and Section 306 of the Indian Succession Act.

In the following cases, the right to sue survives:

- i) A suit by a landlord against his tenant for possession of the rented house after the death of the landlord;
- ii) A suit for rendition of accounts against a trustee where the trustee died;
- iii) A suit for specific performance of contract after the death of the plaintiff;
- iv) A suit for partition of ancestral property by a coparcener after his death.

In the following cases, the right to sue does not survive:

- i) A suit for damages for assault, personal injury or for malicious prosecution, or for defamation (i.e. torts).
- ii) A suit for breach of contract of betrothal.
- iii) A suit for dissolution of marriage.
- iv) A suit for specific performance of a contract involving exercise of a special skill like a promise to paint a picture.
- v) A suit for right to future maintenance.
- vi) A suit for personal cause of action, such as the personal requirement of the premises by the landlord, must perish with the death of the plaintiff.

Where one of the several plaintiffs or defendants dies and the right to sue survives in favour of the surviving plaintiff or defendant alone, the Court shall record such fact and proceed with the suit [Rule 2]. Where one of the several plaintiffs dies and the right to sue does not survive to the surviving plaintiff or plaintiffs alone, or where a sole surviving plaintiff dies and the right to sue survives, the Court, on an application made in that behalf, shall make the legal representatives of the deceased plaintiff a party and proceed with the suit. If no such application is made within the prescribed period (i.e. within 90 days of the death), the suit shall abate so far as the deceased plaintiff is concerned [Rule 3]. This rule does not apply where a plaintiff dies after the decree; the death must occur pending the suit.

Rule 4 similarly provides for in the case of defendant. Rule 4 (a) further provides that the Court may, in its discretion, exempt a plaintiff from the necessity of substituting the legal representatives of a non-contesting defendant (who has failed to file the written statement or does not appear to contest the suit) and pronounce the judgment notwithstanding the death of such defendant. The provisions of Rules 3 and 4 are mandatory.

When the suit is abated for not applying for the substitution of legal representative of the deceased defendant within the prescribed period of 90 days, the Court may revive the suit on the application of the plaintiff because the plaintiff was ignorant of the fact of death of the defendant: [Rule 4 (5), Order 22, CPC]

Rule 4 - A lays down that if any party has died leaving behind no legal representative, the Court may, on the application of any party to the suit, proceed in the absence of a person representing the estate of the deceased person, or may by order appoint the Administrator - General or other officer of the Court to represent the estate of the deceased person for the purpose of the suit. Before making such order, the Court may give notice to the persons having an interest in estate, and shall ascertain that the appointed person has no interest adverse to that of the deceased person.

Rule 5 provides that where the question arises as to whether any person is or is not the legal representative of a deceased plaintiff/defendant, it is the duty of the Court to decide such question; where such question arises before an appellate Court, it may direct a subordinate Court to determine the question, and then determine the question itself taking into consideration the findings of the lower Court.

Rule 6 provides that where either party to suit dies between the conclusion of the hearing and the pronouncement of the judgment, the suit shall not abate whether the cause of action survives or not.

Rule 10 - A makes it the duty of the pleader appearing for a party to a suit to inform the Court about his client's death when he comes to know of it, so that the Court can, in turn, give notice of such death to the opposite party. The marriage of a female plaintiff or defendant shall not cause the suit to abate. Where the decree is passed against a female defendant, it may be executed against her alone. A decree in favour or against a wife, where the husband is legally entitled to the subject-matter of the decree or is liable for the debt of his wife may, with the Court's permission, be executed by or against him. [Rule 7, Order 22]

The insolvency of a plaintiff shall not cause the suit to abate and can be continued by his Assignee/Receiver for the benefit of his creditors [Rule 8]. Rule 8 does not apply where the defendant becomes an insolvent. The Court may, in such cases, stay the suit pending against the defendant which is adjudicated insolvent. A receiver will become a representative of the defendant - debtor by virtue of Rule 10.

Where a suit abates or is dismissed for the non-substitution of the legal representatives of the deceased party, no fresh suit can be filed on the same

cause of action. However, the cause of action of the abated suit may be invoked as a defence in a subsequent suit. [Rule 9 (1)]

Where the suit is abated or is dismissed under Order 22, the plaintiff/his legal representatives/or assignee/receiver may apply for an order to set aside the abatement or dismissal, and if it is proved that the applicant was prevented by a sufficient cause from continuing the suit, the Court will set aside the abatement or dismissal upon such terms as it thinks fit. [Rule 9 (2)]

Rule 10 provides that if during the pendency of the suit, any interest in the suit (viz. attachment of a decree pending an appeal) has passed from the plaintiff or defendant to any other person, the suit may with the leave of the Court be continued by or against the person to or upon whom such interest has come or devolved.

This chapter is important for Main Judicial Examinations but it is most important for preliminary examinations. The summary of this chapter is given in the shape of letter which you have already studied. Following questions are important for Main Judicial Examinations:

- i) Abatement of suit.
- ii) Consequences of death of plaintiff/defendant.
- iii) The procedure for bringing on record the legal representatives of the deceased plaintiff/defendant.
- iv) The cases in which right to sue cease on the death of the plaintiff/defendant.

Wishing you all the best,

Yours Sincerely
RAHUL

X

D

V

V

V

V

I

I

I

I

CHAPTER XXV
DEATH OF PARTY

[ORDER 22]

SYNOPSIS

- I. Death of Plaintiff**
- II. Death of Defendant**
- III. Right to Sue**
- IV. Applicability to other proceedings**
- V. Determination of question as to legal representative**
- VI. Duty of pleader to communicate death of party**
- VII. Effect of abatement**
- VIII. Suit against dead person**
- IX. Execution of decree against legal representatives of deceased judgment debtor**
- X. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]**

Raw

CHAPTER XXV DEATH OF PARTY

[ORDER 22]

I. DEATH OF PLAINTIFF

Where the sole plaintiff dies, the suit will not abate, if the right to sue survives. It can be continued by the heirs and legal representatives of the deceased plaintiff. If the right to sue does not survive, the suit will come to an end. [Order 22, Rule 1]

Where one of the several plaintiffs dies and the right to sue survives to the surviving plaintiff or plaintiffs, the Court will make an entry to that effect and proceed with the suit by the surviving plaintiff or plaintiffs. [Rule 2]

Where one of the several plaintiffs dies and the right to sue does not survive to the surviving plaintiff or plaintiffs or where the sole plaintiff dies and the right to sue survives, the Court on an application by the legal representative of the deceased plaintiff will make him a party and proceed with the suit. [Rule 3 (1)]

Where no such application is made within the period of limitation (ninety days), the suit shall abate so far as the deceased plaintiff is concerned. On an application by the defendant, the Court may award costs, which might have been incurred by him in defending the suit, from the estate of the deceased plaintiff. [Rule 3 (2)]

Where the plaintiff dies after hearing and before pronouncement of judgment, the suit shall not abate.

II. DEATH OF DEFENDANT

Where the sole defendant dies, the suit shall not abate, if the right to sue survives. It can be continued against the heirs and legal representatives of the deceased defendant. [Rule 1]

Where one of the several defendants dies and the right to sue survives against the surviving defendant or defendants, or where the sole surviving defendant dies and the right to sue survives, the Court, on an application by the legal representatives of the deceased defendant, will make him a party and proceed with the suit. [Rule 2]

III. RIGHT TO SUE

When a party to a suit dies, the first question to be decided is whether the right to sue survives or not. If it does not, there is an end to the suit. If it does, the suit will not abate. It can be continued by or against the heirs and legal representatives of the deceased party. [Rule 1]

The expression "right to sue" has not been defined in the Code, but it may be interpreted to mean "right to seek relief". In other words, "right to sue" survives if the cause of action survives or continues.

The general rule is that all rights of action and all demands whatsoever, existing in favour of or against a person at the time of his death, survive to or against his representatives. But in cases of personal actions, i.e. actions where the relief sought is personal to the deceased or the rights intimately connected with the individuality of the deceased, the right to sue will not survive to or against his representatives. In these cases, the maxim *actio personalis moritur cum persona* (a personal action dies with the person) applies. This principle is to be found in Section 37 of the Indian Contract Act, 1872 and Section 306 of the Indian Succession Act, 1925.

Section 37, Contract Act, 1872 reads as under:

"The parties to a contract must either perform, or offer to perform their respective promises, unless such performance is dispensed with or excused under the provisions of this Act, or of any other law.

Promises bind the representatives of the promisors in case of death of such promisors before performance, unless a contrary intention appears from the contract.

Illustrations

- i) A promises to deliver goods to B on certain day on payment of Rs. 1000. A dies before that day. A's representatives are bound to deliver the goods to B, and B is bound to pay Rs. 1000 to A's representatives.
- ii) A promises to paint a picture for B by a certain day, at a certain price. A dies before that day. The contract cannot be enforced either by A's representatives or by B."

Section 306, the Succession Act, 1925 reads:

"All demands whatsoever and all rights to prosecute or defend any action or special proceedings existing in favour of or against a person at the time of his decease, survive to and against his executors and administrators; except causes of action for defamation, assault, as defined in the Indian Penal Code, or other personal injuries not causing the death of the party; and except also cases where, after the death of the party, the relief sought could not be enjoyed or granting it would be nugatory.

Illustrations

- i) A collision takes place on a railway station in consequence of some neglect or default of an official, and a passenger is severely hurt, but not so as to cause death. He afterwards dies without having brought any action. The cause of action does not survive.
- ii) A sues B for divorce. A dies. The cause of action does not survive to his representative."

A personal action dies with the death of the person. (*actio personalis moritur cum persona*). Where the right to sue survives in spite of the death of the person, the suit does not abate. Hence, whenever a party to a suit dies, the first question to be decided is as to whether the right to sue survives or not. If the right is held to be a personal right which extinguishes with the death of the person concerned and does not devolve on the legal representatives, there is an end to the suit. But if the right to sue survives against the legal representatives of the plaintiff, the suit can continue.

IV. APPLICABILITY TO OTHER PROCEEDINGS

The maxim *actio personalis moritur cum persona* (a personal action dies with the person) does not apply only to suits in those cases where the plaintiff dies during the pendency of a suit but also to cases where the plaintiff dies during the pendency of appeal or appeals.

A representative suit or appeal does not abate on the death of one of the plaintiffs or appellants. The remaining plaintiff/plaintiffs or appellant/appellants may continue the proceedings.

V. DETERMINATION OF QUESTION AS TO LEGAL REPRESENTATIVE

Rule 5 deals with the determination of the question as to legal representatives. It provides that where the question arises as to whether any person is or is not the legal representative of a deceased plaintiff or a deceased defendant, it is the duty of the Court to decide such question. Wherever there is a dispute as to who is the legal representative of the deceased plaintiff or the deceased defendant, the Court may hold an inquiry and determine the question. A lengthy or elaborate inquiry is, however, not necessary. Where such question arises before the appellate Court, that Court may direct the subordinate Court to inquire into and give its findings on the dispute as to who is the legal representative of a deceased party. [Proviso to Rule 5]

VI. DUTY OF PLEADER TO COMMUNICATE DEATH OF PARTY

Rule 10 - A, as inserted by the Amendment Act of 1976 imposes an obligation on the pleader of the parties to communicate to the Court the fact of the death of the party represented by him.

VII. EFFECT OF ABATEMENT

Where the suit abates or is dismissed due to failure of the plaintiff to bring the legal representative or representatives of the deceased party, no fresh suit will lie on the same cause of action. The only remedy available to the plaintiff or the person claiming to be the legal representative is to get the abatement set aside. [Rule 9]

Such abatement or dismissal of the suit, however, does not operate as *res judicata*.

VIII. SUIT AGAINST DEAD PERSON

No suit can be filed against a dead person. Such a suit is non est and has no legal effect. Likewise, a decree passed against a dead man is a nullity. [Vide: *Hira Lal v. Kali Nath*, AIR 1962 SC]

But where a suit is filed against a dead person by the plaintiff without knowledge of such death, on the application by the plaintiff, the Court may permit the legal representatives of the defendant to be brought on record. On such impleadment, the suit shall be deemed to have been instituted on the day the plaint was presented. The Court's satisfaction breathes life into the suit.

IX. EXECUTION OF DECREE AGAINST LEGAL REPRESENTATIVES OF DECEASED JUDGMENT DEBTOR

Section 50 lays down that if a judgment debtor dies before the decree has been fully satisfied, the decree - holder may execute the same against all the legal representatives of the deceased. When such a decree is executed against such a representative, he is liable only to the extent of the property of the deceased which has come to his hands and has not been fully disposed of. It may be noted that if the legal representative also dies, his legal representative will be liable.

Section 51 enumerates the various modes of the execution of a decree:

- i) Delivery of any property specifically decreed.
- ii) Attachment and sale or sale without attachment of property.
- iii) Arrest and detention in prison of the judgment-debtor.
- iv) By appointing a receiver.
- v) Such other modes as the nature of the relief granted may require.

Section 52 deals with the execution of decree against the legal representative of the deceased. It states -

- i) Where a decree is passed against a party as the legal representative of a deceased person and the decree is for the payment of money out of the property of the deceased, it may be executed by the attachment and sale of such property.
- ii) Where no such property remains in the possession of the judgment - debtor and he fails to satisfy the Court that he has duly applied such property of the deceased as is proved to have come into his possession, the decree may be executed against the judgment - debtor to the extent of the property in respect of which he has failed so to satisfy the Court in the same manner as if the decree had been against him personally.

For the purposes of Section 50 and Section 52, property in the hands of a son or other defendant which is liable under Hindu Law for the payment of the debt of a deceased ancestor in respect of which a decree has been passed, shall be deemed to be property of the deceased which has come to the hands of the son or other descendant as his legal representative. [Section 53 of CPC]

X. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Describe the procedure for bringing on record the legal representatives in case of the death of a plaintiff or defendant. What result would ensue if the legal representatives are not brought on record within limitation? Would it make any difference if there are more than one defendants and one of them dies? [500 Words, RJS-1974]
2. How and to what extent a decree can be executed against legal representative of a deceased judgment-debtor? [250 Words, UPPCS(J)-1999]
3. Short notes: Abatement of suit [150 Words, RJS - 1979, 200 Words, BJE - 1978]
4. What is meant by Abatement of a suit? [150 Words, RJS - 1992]

CHAPTER XXVI

SERVICE OF SUMMONS

[SECTIONS 27 - 32; ORDERS 5, 16 AND 16A]

Dear aspirant,

A "summons" is a document issued from the office of a *Court* of justice, calling upon the person to whom it is directed to attend before a judge or an officer of the *Court* for certain purposes. This chapter can be divided into two parts:

- i) Summons to defendants [Sections 27 - 29, Order 5]
- ii) Summons to witnesses [Sections 31 - 32, Orders 16 and 16A]

Section 27 provides that when a suit has been duly instituted, a summons may be issued to the defendant to appear and answer the claim. The summons should be sent to defendants within 30 days of the institution of the suit.

Section 28 provides that when the defendant resides in another state, the summons may be sent for service to such *Court* in that state as may be prescribed by the rules in force in that other state.

Section 29 lays down rule as to service of foreign summons i.e. a summons issued by a *Court* to which the Code do not extend or by a *Court* outside India. In such cases, summons may be sent to the *Court* to which the Code extends and served as if they were summons issued by such *Court*.

Section 30 lays down that the *Court* may, at any time, either on its own motion or on the application of the party, make such orders relating to production of documents, issuance of summons or proving a fact by affidavit.

Section 31 lays down that the provisions in Sections 27, 28 and 29 shall apply to "summons to witness". Section 32 provides that the *Court* may compel the attendance of any person to whom a summons has been issued by:

- a) Issuing an arrest - warrant;
- b) Attaching and selling his property;
- c) Imposing a fine up to Rs. 5000/= and
- d) Ordering him to furnish security for his appearance and in default committing him to civil prison.

Order 5, Rules 1 - 8 lays down general provisions relating to issuance summons. The defendant is required to answer the claim and to file the written statement within 30 days of service of summons; but the *Court* for reasons to be recorded in writing can extend such date up to 90 days. No summons is to be issued if the defendant has appeared at the time of the presentation of the plaint and admitted the plaintiff's claim. [Rule 1]

At the time of issuing the summons, the *Court* must determine whether the summons will be only for settlement of issues or for the final disposal of the suit, and the summons must contain the appropriate direction. If a suit is heard by Small Causes Courts, the summons is always for final disposal of the suit [Rule 5]. Whenever the summons is for the final disposal of a suit, it must direct the defendant to produce all witnesses. [Rule 8]

The Code prescribes five principal modes of serving a summons to a defendant:

- i) Rules 10 to 16 and 18 of Order 5 deal with personal or direct service of summons upon the defendant. This is an ordinary mode of service of summons.

- ii) Rule 9 provides the service of summons by the Court. It states that summons to defendant residing within the jurisdiction of the Court shall be served through Court officer or approved courier service. Summons can also be served by registered post, speed post, courier service, fax, e-mail or by any other permissible means of transmission.
- iii) The Court may also permit service of summons by the plaintiff in addition to service of summons by the Court. [Rule 9 - A]
- iv) Rule 20 deals with the substituted service of the summons. There are two modes of substituted service of summons:-
 - a) by affixing a copy of the summons in some conspicuous place in the Court house; and also upon some conspicuous part of the house in which the defendant is known to have last resided, carried on business or personally worked for gain; or
 - b) in such manner as the Court thinks fit (such as by an advertisement in a local daily of the defendant's area).
- v) The fifth and last mode of service of summons is service by post. When an acknowledgement purporting to be signed by the defendant or his agent is received by the Court or the defendant refused to take delivery of summons when tendered to him, the Court issuing the summons shall declare that the summons had been duly served on the defendant [Sarkar v. Pal, AIR 1976 Cal.] Where the summons was properly addressed, pre-paid and duly sent by registered post acknowledgement due, the declaration shall be made notwithstanding the fact that the acknowledgement was lost or mislaid or has not been received by the Court - within 30 days from the date of service of summons. [Rule 9 (5)]

Rule 9 - A (inserted by the 1999 Amendment) provides for a simultaneous issue of summons by the Court (in addition to service of summons under Rule 9 by the plaintiff). The Court may deliver the docti summons to the plaintiff for service; the plaintiff or his agent may serve the summons by delivering or tendering to the defendant personally. If such summons, when tendered, is refused or such summons cannot be served personally, the Court shall, on the application of the party, re-issue such summons to be served by the Court. If the defendant is a person of rank, the Court may substitute for a summons a letter [Rule 30, Order 5]

When a plaintiff knew the whereabouts of the defendant and in spite of that fact, A obtained by false representation an order for substituted service by giving to Court to understand that the defendant had been deliberately avoiding service, the plaintiff is liable for giving or fabricating false evidence [Sections 191 and 192, IPC]. The defendant is not properly served in this case and the mode of substituted service is adopted only when the defendant is keeping out of the way, or when the summons cannot be served in the ordinary course.

Order 16 of CPC lays down that on or before the date fixed by the Court and not later than 15 days from the date of settlement of issues, the parties to the suit must present in the Court, a "list of witnesses" whom they propose to call, either to give evidence or to produce documents, and also obtain summons to such persons for their attendance in the Court. The Court may permit a party to call any witness, other than those whose names appear in the list, if such party shows sufficient cause for the omission to mention the name of such witness in the list. [Rule 1, Order 16]

Order 16A deals with summoning a prisoner to give evidence. The Court may also issue a commission for examination of a witness in prison.

The Code of Civil Procedure (Amendment) Act, 2002 has prescribed a limitation period for each and every activity of proceedings. It prescribes that within 30 days from the date of presentation of plaint, a summons, under Order 5, Rule 1 must be issued to the defendant, the defendant has to present his written statement within 30 days from the date of summons. In special circumstances, this

period can be increased up to 90 days. Issues are to be framed as soon as possible. The parties to the suit have to produce the list of witnesses within 15 days after the settlement of issues. The summons to the witnesses are issued within 5 days of presenting the list of witnesses by the parties. a party must pay into the Court a sum of money as determined by the Court for the travelling and other expenses of the witnesses within 7 days of the date of making an application for summoning witnesses.

This Chapter is one of the most important chapters of CPC. In RJS, UPPCS (J), MPCJ, HJS, Bihar Judicial Exam, Haryana Judicial Exam, DJS, UAPCS (J) etc., questions are asked from this chapter. Following topics are most important in this chapter:

- i) Substituted service of summons.
- ii) The different modes of affecting service of summons on defendant.
- iii) What steps can be taken by the Court to compel the attendance of witnesses and defendant under Section 32 CPC.
- iv) Service of summons on defendant who is in jail.

Wishing you all the best

Yours Sincerely
RAHUL

RAHUL

CHAPTER XXVI

SERVICE OF SUMMONS

[SECTIONS 27 - 32; ORDERS 5, 16 AND 16A]

SYNOPSIS

I. Summons to defendant [Sections 27 - 29, Order 5]

1. Meaning
2. Essentials of summons [Rules 1 - 2]
3. Summons to defendant [Section 27; Order 5, Rule 1]
4. Appearance of defendant [Rule 3]
5. Exemption from appearance in person [Section 132 - 133, Rule 4]
6. Contents of summons [Rules 5 - 8]
7. Modes of service of summons [Rules 9 - 30]
 - a) *Personal or direct service* [Rules 10 - 16, 18]
 - b) *Service by Court* [Rule 9]
 - c) *Service by plaintiff* [Rule 9 - A]
 - d) *Substituted service* [Rule 20]
 - e) *Service by post*
8. Service of summons in particular cases

II. Summoning and attendance of witness [Sections 31 and 32, Order 16 and 16A]

1. Introduction
2. General rules of Order 16
3. Attendance of witnesses who are in prison [Order 16A]

III. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XXVI

SERVICE OF SUMMONS

[SECTIONS 27 - 32; ORDERS 5, 16 AND 16A]

I. SUMMONS TO DEFENDANT [SECTIONS 27 - 29, ORDER 5]

1. Meaning

When the plaintiff files a suit, the defendant has to be informed that the suit has been filed against him, and that he is required to appear in the Court to defend it. The intimation which is sent to the defendant by the Court is technically known as 'summons'. Thus, it is clear that a summons is a document issued from the office of a Court of justice, calling upon the person to whom it is directed to attend before a judge or officer of the Court for a certain purpose.

2. Essentials of Summons [Rules 1 - 2]

Every summons shall be signed by the judge or such officer appointed by him and shall be sealed with the seal of the Court, and must be accompanied by a plaint.

3. Summons to Defendant [Section 27; Order 5, Rule 1]

Order 5 deals with summons to a defendant while Order 16 deals with summons to witnesses. When a suit has been duly filed by presentation of a plaint, the Court must issue summons to the defendant calling upon him to appear on a day specified therein and answer the claim of the plaintiff within thirty days from the institution of the suit by filing a written statement. No summons, however, will be issued by the Court if, at the time of presentation of a plaint, the defendant is present and admits the plaintiff's claim.

4. Appearance of Defendant [Rule 3]

A defendant to whom a summons has been issued, may appear (1) in person; or (2) by a pleader duly instructed and able to answer all material questions relating to the suit; or (3) by a pleader accompanied by some person able to answer all such questions. The Court, however, may order the defendant or plaintiff to appear in person.

5. Exemption from appearance in person [Section 132 - 133, Rule 4]

No party shall be ordered to appear in person -

- unless he resides (a) within the local limits of the Court's ordinary original jurisdiction; or (b) outside such limits, but at a place less than (i) 50 miles; or (ii) 200 miles (where public conveyance is available) from the Court - house; or
- who is a woman not appearing in public; or
- who is entitled to exemption under Section 133 of CPC.

6. Contents of Summons [Rules 5 - 8]

The summons must contain a direction whether the date fixed is for settlement of issues only or for final disposal of the suit. In the latter case, the defendant should be directed to produce his witnesses. The Court must give sufficient time to the defendant to enable him to appear and answer the claim of the plaintiff on the day fixed. The summons should also contain an order to the defendant to produce all documents or copies thereof in his possession or power upon which he intends to rely on in support of his case.

7. Modes of service of Summons [Rules 9 - 30]

The code prescribes five principal modes of serving a summons to a defendant:

a) Personal or direct service [Rules 10 - 16, 18]

Rules 10 to 16 and 18 deal with personal or direct service of summons upon the defendant. This is an ordinary mode of service of summons. Here the following principles must be remembered:

- i) Wherever it is practicable, the summons must be served to the defendant in person or to his authorised agent. [Rule 12]
- ii) Where the defendant is absent from his residence at the time of service of summons and there is no likelihood of him being found at his residence within a reasonable time and he has no authorized agent, the summons may be served on any adult male or female member of the defendant's family residing with him. [Rule 15]

A servant, however, cannot be said to be a family member.

- iii) In a suit relating to any business or work against a person, not residing within the territorial jurisdiction of the Court issuing the summons, it may be served to the manager or agent carrying on such business or work. [Rule 13]
- iv) In a suit for immovable property, if the service of summons cannot be made on the defendant personally and the defendant has no authorised agent, the service may be made on any agent of the defendant in charge of the property. [Rule 14]
- v) Where there are two or more defendants, service of summons should be made on each defendant. [Rule 1]

In all the above cases, service of summons should be made by delivering or tendering a copy thereof. Where the serving officer delivers or tenders a copy of summons to the defendant personally or to his agent or other person on his behalf, the person to whom the copy is delivered or tendered must make an acknowledgment of service of summons. The serving officer, thereafter, must make an endorsement on the original summons stating the time and manner of service thereof and the name and address of the person, if any, identifying the person served and witnessing the delivery or tender of summons. —

b) Service by Court [Rule 9]

Summons to defendant residing within the jurisdiction of the Court shall be served through Court officer or approved courier service. Summons can also be served by registered post, speed post, courier service, fax, e - mail or by any other permissible means of transmission. Where the defendant is residing outside the jurisdiction of the Court, the summons shall be served through an officer of the Court within whose jurisdiction the defendant resides. The Court shall treat refusal of acceptance as a valid service. Where summons is properly addressed, prepaid and duly sent by registered post acknowledgment due (RPAD) there will be a presumption of valid service of summons even in the absence of an acknowledgement slip. [Proviso to Rule 9 (5)]

c) Service by Plaintiff [Rule 9 - A]

The Court may also permit service of summons by the plaintiff in addition to service of summons by the Court. [Rule 9 - A]

d) Substituted Service [Rule 20]

"Substituted Service" means the service of summons by a mode which is substituted for the ordinary mode of service of summons. There are two modes of substituted service. They are:

- a) i) where the defendant or his agent refuses to sign the acknowledgment; or
- ii) where the serving officer, after due and reasonable diligence, cannot find the defendant who is absent from his residence at the time of service of summons and there is no likelihood of him being found at his residence within a reasonable time and there is no authorised agent nor any other person or whom service can be made, the services of summons can be made by affixing a copy on the outer door or some other conspicuous part of the house in which the defendant ordinarily resides or carries on business or personally works for gain. The serving officer shall then return the original to the Court from which it was issued with a report endorsed thereon stating the fact about affixing the copy, the circumstances under which he did so, and the name and address of

<https://goo.gl/GU7xEZ> (Hard copy)
the person, if any, by whom the house was identified and in whose presence the copy was affixed. If the Court is satisfied, either on the affidavit of the serving officer or on his examination on oath, that the summons has been duly served, it may make further enquiry in the matter as it thinks fit, and shall either declare that the summons has been duly served or order such service as it thinks fit.

b) Where the Court is satisfied that there is reason to believe that the defendant avoids service or for any other reason the summons cannot be served in the ordinary way, the service may be effected in the following manner –

- i) by affixing a copy of the summons in some conspicuous place in the Court house; and also upon some conspicuous part of the house in which the defendant is known to have last resided, carried on business or personally worked for gain; or
- ii) in such manner as the Court thinks fit. [advertisement in newspapers]

It, however, must be remembered that this is not a regular mode of service and hence, it should not normally be allowed and can be effected only as a last resort.

Where the Court orders service by an advertisement in a newspaper, the newspaper should be a daily newspaper circulating in the locality in which the defendant is last known to have actually or voluntarily resided, carried on business or personally worked for gain.

Under Rule 20, the service of summons is effected by the order of the Court only after the Court is satisfied that the defendant avoids service of summons or it cannot be served in the ordinary way. Such satisfaction must be recorded by the Court in writing. Substituted service is as effective as personal service. The Court must fix a time for the appearance of the defendant and give him a reasonable time to appear before the Court.

e) Service by Post

When an acknowledgment purporting to be signed by the defendant or his agent is received by the Court, or the defendant or his agent refused to take delivery of summons when tendered to him, the Court issuing the summons shall declare that the summons had been duly served on the defendant. The same principle applies in a case where the summons was properly addressed, prepaid and duly sent by registered post, acknowledgement due; and the acknowledgment is lost or not received by the Court within thirty days from the date of issue of the summons.

8. Service of summons in particular cases

a) **Suit relating to business** – In a suit relating to any business or work, against a person not residing within the jurisdiction of the Court issuing the summons, service on any manager or agent carrying on such business or work is sufficient.

The master of a ship is the agent of the owner or charterer. [Order 5, Rule 13]

b) **Where defendant resides within the jurisdiction of another Court** – Service outside jurisdiction can only be done by an officer of the Court with an order from a Court having jurisdiction over the place where he resides. Rule 21 of Order 5 lays down that a summons may be sent by the Court by which it is issued, whether within or without the State, either by one of its officers or by post to any Court (not being the High Court) having jurisdiction in the place where the defendant resides.

c) **Where the defendant is confined in prison** – Where the defendant is confined in prison, the summons shall be delivered or sent by post or otherwise to the officer in charge of the prison for service on the defendant [Order 5, Rule 24]. The Court shall take judicial notice of the signature of the jailor on its return.

d) **Service where defendant resides out of India and has no agent** – Where the defendant resides out of India and has no agent in India empowered to accept service, the summons shall be addressed to the defendant at the place where he is residing and send to him by post, if there is postal communication between such place and the place where the Court is situate.

Where the defendant resides in Bangladesh or Pakistan – Where the defendant resides in Bangladesh and Pakistan, the summons, together with a copy thereof, may be sent for service on the defendant, to any Court in that country (not being the High Court) having jurisdiction in the place where the defendant resides. And where any such defendant is a public officer in Bangladesh or Pakistan (not belonging to Bangladesh or Pakistan Military, Naval or Air Force) or is a servant of a railway company or local authority in that country, the summons, together with a copy thereof, may be sent for service on the defendant, to such officer or authority in that country as the Central Government may, by notification in the official Gazette, specify in this behalf. [Order 5, Rule 25]

The rule relating to service on defendants residing in Pakistan was added by the Amending Act XIX of 1951. This amendment aims at implementing the agreement entered into with the Pakistan Government on reciprocal basis. 'Bangladesh' has been included in the rule by the Amendment Act, 1976.

- e) **Where the defendant is a public officer or servant of railway company or local authority** – Where the defendant is a public officer (not belonging to the Indian Military, Naval or Air Force) or is a servant of a railway company or local authority, the Court may send the summons for service on the defendant to the head of the office in which he is employed, together with a copy to be retained by the defendant. [Order 5, Rule 27]
- f) **Service on soldiers, sailors or airmen** – Where the defendant is a soldier, sailor or airman, the Court shall send the summons for service to his commanding officer together with a copy to be retained by the defendant. [Order 5, Rule 28]
- Duty of person to whom summons is sent for service** – Where a summons is delivered or sent to any person for service under Rule 24, 27 or 28, such person is bound to serve it, if possible, and return it under his signature, with the written acknowledgment of the defendant, and such signature is deemed to be evidence of service. If for any cause service is impossible, the summons has to be returned to the Court with a full statement of such cause and of the steps taken to procure service, and such statement is deemed to be evidence of non-service. [Order 5, Rule 29]
- g) **Substitution of letter of summons** – Where the defendant is, in the opinion of the Court, of a rank entitling him to such mark of consideration, the Court may substitute for a summons, a letter signed by the judge or such officer appointed by him, containing all the particulars of a summons. Such a letter appointed by him containing all the particulars of a summons. Such a letter may be sent to the defendant by post, by a special messenger or in any other manner, and where the defendant has an agent empowered to accept service, the letter may be delivered or sent to such agent. [Order 5, Rule 30]
- h) Where the defendant resides within the jurisdiction of another Court or in another State, the summons may be sent to the Court where he resides. Such Court will serve summons on the defendant.
- i) Service of foreign summons may be effected by sending them to the Courts in the territories in which the provisions of this Code apply and served as if they were summonses issued by such Courts.
- j) Where the summons is to be served within the Presidency Towns of Bombay, Madras and Calcutta, it may be sent to the Court of Small Causes within whose jurisdiction it is to be served.
- k) Where the defendant resides in a foreign country, the service of summons may be effected through the political agent there or a Court established there with authority to serve summons.
- l) Where the defendants are partners in any firm, the summons should be served upon any one or more of the partners; or upon any person having the control or management of the partnership business at its principal place of business in India. But if the plaintiff knows that the partnership firm has been dissolved before the institution of the suit, the summons shall be served upon every person sought to be held liable in India.

II. SUMMONING AND ATTENDANCE OF WITNESS [SECTIONS 31-32, ORDER 16 AND 16A]

1. Introduction

Section 31 of the Code provides that the provisions of Sections 27, 28, 29 and 30 also apply to summonses to give evidences or the produce documents or other material objects.

When a summons is issued to a person, he is bound to comply with it, and if he does not, the Court may (under Section 32) compel the attendance of such a person, and for that purpose, may –

- a) issue a *warrant* for his arrest;
- b) attach and sell his property;
- c) impose a *fine* upon him, not exceeding Rs. 5,000/-;
- d) Order him to furnish security for his appearance, and in default commit him to the civil prison.

2. General rules of Order 16

The detailed rules regarding the summoning and attendance of witnesses are contained in Order 16 and are summarised hereunder:

On or before the date fixed by the Court, and not later than 15 days from the date of settlement of issues, the parties to the suit must present in Court, a list of witnesses whom they propose to call, either to give evidence or to produce documents and also obtain summonses to such persons for their attendance in the Court. Under the 1999 Amendment, summons are to be issued *within five days of presenting the list of witnesses*. Before such a summons is granted, the party applying for it must pay into the Court (within the stipulated period) such a sum of money as may appear to the Court to be sufficient to defray the travelling and other expenses of the person summoned to and from the Court and for his attendance. In case an expert is summoned, the amount must include reasonable remuneration for the time spent by him in giving evidence and in performing any work of an expert character necessary for the case.

If the amount paid as aforesaid is insufficient, the Court may direct further payment to be made, and if there is a default in doing so, –

- a) the Court may Order such sum to be levied by attachment and sale of the movable property of the person obtaining the summons; or
- b) the Court may discharge the person summoned without requiring him to give the evidence; or
- c) the Court may Order attachment and sale (clause (a) above), and discharge the witness (clause (b) above)

Every summons issued by the Court must specify the time and place where the person is required to attend. It must also specify whether his attendance is required to give evidence or the produce a document or for both purpose. If a person is summoned only to produce a document, he may cause the document to be produced, instead of attending personally to produce the same.

If any person is actually present in the Court, he may be required by the Court to give evidence, or to produce any document then and there in his possession or power. (Rule 7)

If the evidence of a witness of production of documents is material and the person concerned has, without lawful excuse, failed to attend, or produce the document, as the case may be, or has intentionally avoided service of the summons, the Court may issue a proclamation requiring him to give evidence or produce the document at a time and place mentioned therein, and a copy of such proclamation is to be affixed on the outer door or other conspicuous part of the house in which he ordinarily resides. In lieu of such a proclamation, or at the time of making such a proclamation, or at any time afterwards, the Court may also issue a warrant for the arrest of such a person, and may also pass an Order for the attachment of the *immovable property* of such a person (Rule 10) –

If at any time after the attachment of his property, such a person appears and satisfies the Court –

- a) that he did not, without lawful excuse, fail to comply with the summons or intentionally avoid services; and
- b) where he failed to appear at the time and place named in a proclamation issued under the last preceding rule, that he had no notice of such proclamation in time to attend,

The Court may direct that the property be released from attachment, and may make such Order as to the costs of the attachment as it thinks fit (Rule 11).

If such a person does not appear, or appears, but fails to satisfy the Court as stated above, he may be ordered to apply such fine as the Court thinks fit (but not exceeding Rs. 500), and the Court may also order the attachment and sale of his property for the purpose of satisfying all costs of such attachment and the costs and fine (referred to above), the Court would Order the property to be released from attachment (Rule 12).

Under Rule 14, the Court may, of its own accord, summons as a witness any person (including a party to the suit) not called as a witness, and require him to give evidence or produce documents as the case may be.

A person who is summoned as a witness must attend at each hearing until the suit is disposed of, unless the Court otherwise directs. The Court may also require such a person to furnish a security to attend at the next hearing. If default is made in furnishing such a security, the Court may Order him to be detained in the civil prison (Rule 16).

If a party to a suit who is present in the Court refuses, without lawful excuse, when required by the Court, to give evidence or produce any document then and there is his possession or power, the Court may pronounce judgement against him or make such Order in relation to the suit as it thinks fit.

Lastly, it is provided that no one can be ordered to attend in person to give evidence, unless he resides –

- a) within the local limits of the Court's ordinary original jurisdiction; or
- b) outside such limits but at a place less than one hundred or (where there is railway or steamer communication or other established public conveyance for five – Sixths of the distance between the place where he resides and the place where the Court is situate) less than five hundred kilometers distance from the Court house. (Rule 19)

3. Attendance of witnesses who are in prison [Order 16A]

Order 16A makes provisions for attendance of witnesses who are confined or detained in prison (including in preventive detention), and the various rules falling under this Order may be summarized as under:

If it appears to the Court that the evidence of a person confined or detained in a prison within the State is material in a suit, it may Order the officer-in-charge of the prison to produce such a person before the Court to give evidence. It then becomes the duty of such officer to cause such a person to be taken to the Court at the time mentioned in the Order, and cause him to be kept in custody in or near the Court, until he has been examined or until the Court authorises him to be taken back to the prison.

However, if the person in respect of whom such an Order is made –

- a) is certified, by the medical officer attached to the prison, as unfit to be removed from the prison by reason of sickness or infirmity; or
- b) is under committal for trial or under remand pending trial or pending preliminary investigation, or
- c) is in custody for a period which would expire before the expiration of the time required for complying with the Order and for taking him back to the prison in which he is confined or detained; or
- d) is a person whom an order made by the State Government under Rule 4 (Below) applies.

the officer-in-charge of the prison must abstain from carrying out the Court's Order and must send to the Court a statement of reasons for so abstaining.

Under Rule 4, the State Government is authorised to direct that any person or class of persons shall not be removed from their prisons. However, before passing any such Order, the State Government must have regarded to the following matters, viz., --

- a) the nature of the offence for which, or the grounds on which, the person or class of persons have been ordered to be confined or detained in prison;
- b) the likelihood of the disturbance of public Order if the person or class of persons is allowed to be removed from the prison; and
- c) the public interest, generally.

Provisions are also made for examination of such persons on commission in cases where their evidence is material in a suit, but the attendance of such a person cannot be secured due to any other above provisions.

III. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. What remedies are available to the plaintiff where the defendant either refuses to sign the acknowledgement regarding the services of summons or cannot be found and has no agent empowered to accept services on his behalf? [150 Words, RJS-1974]
2. In what circumstances and in what manners "substituted services" are made? [50 Words, RJS-1989, MPCJ (Main) - 1996/2002]
3. a) Define Summons? What are the objects of service of summons? What are modes of affecting service summons on defendant? Discuss fully.
b) 'A' the plaintiff, knew the whereabouts of 'B', the defendant and in spite of that fact, A obtained by false representation an order for substituted service by giving to Court to understand that 'B' has been deliberately avoiding service. Discuss whether 'B' had been properly served. [500 Words, UPPCS(J)-1982]
4. What are the modes of effecting service of summons on the defendants? [150 Words, UPPCS(J)-1985]
5. The Court issues a summons against A under Section 30 of the Code of Civil Procedure, 1908 but he does not appear before the Court. What steps can be taken by the Court to compel his attendance? [150 Words, UPPCS(J)-1997]
6. A suit was duly instituted on March 1, 2000 and summons were issued to the defendant to appear and answer the claim. The summons were to be served in the prescribed manner on May 4, 2000. Discuss the validity for service of summons in the light of proposed amendment in the code of Civil Procedure. [150 Words, HJS-2000]
7. 'A' the plaintiff, knew the whereabouts of 'B', the defendant and in spite of that fact, 'A' obtained, by false representation, an order for substituted service, by giving to the Court to understand that 'B' had deliberately been avoiding service. Discuss whether 'B' had been properly served? [150 Words, HJS-2000]
8. Explanatory Notes: Substituted Service of summons [150 Words, HJS-2001]
9. Short Notes: Substituted Service [150 Words, BJE-1984]
10. Define summons. What are the objects of service of summons? What are the modes of affecting service of summons on defendant? Discuss fully. [500 Words, MPCJ (M) - 1996]
11. A summons for defendant was properly addressed, prepaid and duly sent by registered post acknowledgment due but the acknowledgement has not been received by the Court within 30 days from the date of the issue of the summons. Whether the Court can presume the service of summons on the defendant? Give reason. [MPCJ (Main) - 2002]
12. How the summons on defendant who is in jail or who resides out of India and has no agent in India will be served? [150 Words, MPCJ (Main) - 2002]

CHAPTER XXVII

JUDGMENT AND DECREE

[SECTION 33, ORDER 20]

Dear aspirant,

Section 33 provides that after the case has been heard, the court shall pronounce its judgment, and a decree shall follow on such judgment. Order 20 lays down the detailed rules regarding judgments and decrees. Order 20, Rule 1 (1) lays down that the court shall pronounce judgment in an open court, either at once or as soon as thereafter, as may be practicable and if pronouncement is to be made on future day, the court shall fix a day for that purpose, of which due notice shall be given to the parties or their pleaders.

When the judgment is not pronounced at once, it should be pronounced within 30 days from the conclusion of hearing. In exceptional and extraordinary cases, the court shall fix a future day for the pronouncement. It must not be more than 60 days from the conclusion of hearing (a) amended by 2002 Amendment Act. The judge need not read out the whole judgment and it would be sufficient if the findings on each issue and the final order is pronounced [Rule 1 (2)]. The words "but a copy of the whole judgment shall be made available to the parties or their pleaders immediately after the pronouncement" have been deleted by the 1999 Amendment.

—Rule 2, Order 20, enables a judge to pronounce a judgment written but not pronounced by his predecessor. The judgment must be dated and signed by the judge; once signed, it cannot be altered or added to, save as provided by Section 152 (clerical mistakes, etc.) or on review (Rule 3).

Pronouncement of judgment is essential for the validity of judgment. The judgment must be based on the grounds and points in the pleadings only. A statement of fact recorded in the judgment is conclusive proof of fact so stated. Judgment other than those of a Court of Small Causes should contain:-

- a) a concise statement of the case,
- b) the points for determination,
- c) the decision thereon, and
- d) the reasons for such decision.

The judgment of small causes court should contain (2) and (3) only (Rule 4). In suits in which issues have been framed, the court must record its finding on each separate issue with the reasons therefore, unless the finding on any one or more of the issues is sufficient for the decision of the suit (Rule 5). Rule 5-A states that where the parties are not represented by pleaders, the court should inform the parties as to where an appeal lies against the judgment.

The provision that "the judgment should state precisely the relief granted" has been deleted by the 1999 Amendment. Rule 6-B lays down that the copies of the judgment shall be made available to the parties immediately after the pronouncement of judgment for preferring an appeal on payment of such charges as may be specified in the rules made by the High Court [as per Amendment Act, 1999].

Rule 6-A lays down that every endeavour shall be made to ensure that the decree is drawn up as expeditiously as possible and in any case, within 15 days from the date of the pronouncement of judgment. An appeal can be preferred against the decree without filing a copy of the decree and in such a case the copy of judgment made available to the party by the court is to be treated as a decree for the purpose of Order XLI (41). But as soon as the decree is drawn, the judgment shall cease to have the effect of a decree for the purposes of execution or for any other purpose (as amended by the 1999 Amendment Act).

The decree shall agree with the judgment; it shall contain the number of the suit, the name and description of parties, their registered addresses, and particulars of the claim, the relief granted and provisions as to costs (Rule 6). The decree shall bear the date on which the judgment was pronounced and the signature of the judge (Rule 7). Rules 9 to 19 deal with decree in particular cases and lay down some special rules. Rule 20 lays down that "certified copies" of the judgment and the decree are to be furnished to the parties on their application to the court, and at their expenses.

This chapter is one of the most important chapter of CPC. For RJS, UPPCS (J), UAPCS (J) and MPCJ, it is the most important chapter. In the above mentioned state Judicial Examinations, a question (generally compulsory question) is asked relating to plaint, written statement, framing issues and writing judgment. These questions contains about $\frac{1}{4}$ of the total marks of the paper. So you can obtain about 25% marks in Civil Law paper without special preparation. You have to do practice of writing a judgment. A model judgment is given in the end of this chapter, study it carefully and try to solve other questions of similar nature which are given in the end of this chapter. Some other topics are also important i.e.

- i) The definition of judgment.
- ii) The ingredients of a judgment.
- iii) Amendment of judgment after its pronouncement.
- iv) Difference between judgment and decree.

Wishing you all the best,

Yours Sincerely,

RAHUL

CHAPTER XXVII
JUDGMENT AND DECREE
[SECTION 33, ORDER 20]

SYNOPSIS

I. Judgment

1. General
 - a) First hearing
 - b) Hearing of the suit and examination of witnesses
2. Judgment (Definition)
3. Essentials
4. Pronouncement [Rule 1, Order 20]
5. Alterations of Judgment

II. Decree

1. Definition
2. Essentials
3. Types of Decrees
4. Contents of Decree
5. Preparation of Decree
6. Copies of judgment when to be made available
7. Date of Decree
8. Distinction between Decree, Order and Judgment
9. Additional contents of decrees in particular cases
10. Preliminary decree for profits and mesne profits
11. Final Decree
12. Decree for specific performance of Contract
13. Administration Suit
14. Dissolution of partnership
15. Partition of Property

III. How to write an Excellent Judgment

IV. Model Plaint, Written Statement and Judgment

1. Plaint
2. Written Statement
3. Judgment

V. Questions of Previous Years' Exam-- [DJS, RJS, UP PCS (J), MP PCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XXVII
JUDGMENT AND DECREE
[SECTION 33, ORDER 20]

I. JUDGMENT

1. General

After the hearing is completed, the court will pronounce the judgment. Rules 1 to 5 of Order 20 deal with judgments and Rules 6 to 19 with decrees. Rules 6-B and 20 provide for furnishing of copies of judgment and decree to the parties on application made by them on payment of specified charges.

If you want to be a unique Judge, you have to write a good judgment. The knowledge of hearing of the suit and examination of witnesses is indispensable for writing an excellent judgment. Before you come to the main point "How to write an excellent judgment", you should study the following points carefully which will help you in achieving your main goal of being an impartial, dutiful and honest judge.

a) First hearing

The suit is now ripe for hearing. In a large majority of Courts outside the Presidency – towns, the hearing is split into two parts, namely:

- i) The first hearing at which issues are settled; and
- ii) The hearing when evidence is taken of the parties and their witnesses.

I have already told you that every pleading should contain a statement of the material facts on which the party pleading relies for his claim or defence. Issues arise when a material proposition of fact or law is affirmed by the one party and denied by the other. Issues then are of two kinds, namely, (1) issues of fact, and (2) issues of law. Every material proposition affirmed by one party and denied by the other shall form a subject of a distinct issue. No issues should be raised on subsidiary matters of fact. The object of framing issues is to direct the attention of the parties to the principal questions on which they are at variance. What you have got to prove at the hearing is the existence or non-existence of facts in issue. These you have to prove by facts, which are called evidentiary facts. These evidentiary facts must be relevant facts, that is, they must be relevant to the facts in issue. You should, at the hearing of the suit, direct your attention to the facts in issue, in other words, the issues and the evidence which you lead to prove either the existence or non-existence of the fact in issue must be relevant to the fact in issue. Remember that it is not every fact which has a bearing of some sort on the fact in issue that is a relevant fact. You will find relevant facts in Section 5 to 55 of the Indian Evidence Act, 1872. To be a successful Judge, you must have the substance of these sections by heart.

At the first hearing of the suit what the parties have to do is –

- i) To appear in Court either in person or by a pleader who is able to answer all material questions relating to the suit, or to send some person on his behalf who is able to answer such questions;
- ii) To produce in Court all documents on which he intends to rely and which have not already been filed in Court, when the plaint was presented [O.13, R.1.; O.7, R.14-18]. No document which is not produced at the first hearing will be received in evidence at any subsequent stage of the proceedings, unless good cause is shown [O.13, R.2].

At the first hearing of the suit what the Court has to do is, after reading the plaint and the written statement, the answer to interrogatories (if any), and such documents as it think proper:

- i) To ascertain from the party or his pleader which material facts in the pleading of either party are admitted or denied by the other, and for that purpose, to examine, if necessary, the parties or any person on their behalf who is able to answer material questions relating to the suit [O.10] and, after so doing;

- ii) To frame and record the issues on which decision of the case appears to depend;
- iii) At once to pronounce judgment, if it appears that the parties are not at issue on any questions of law or fact [O.15, R.1]. It will thus be seen that the principal object of the first hearing is to settle issues, and that issues are framed from the following materials:
 - (a) Pleadings;
 - (b) Answers to interrogatories;
 - (c) Documents produced by the parties; and
 - (d) Statements made on oath by the parties or by any persons present on their behalf, and statements made by the pleaders of the parties [O.14, R.3];
 - (e) Where it appears to the Court that issues cannot be framed properly without examination of any person or inspection of any document not produced on record, it may order examination of the person or documents as the case may be.

Issues which do not arise from pleadings or other aforesaid materials should not be framed.

Though under the Code it is the duty of the Court to frame issues, in practice they are raised by the defendant's pleader. It is then for the Court to see that they are proper issues, and that all necessary issues have been raised. The Court has the power under the Code at any time before passing the decree to amend the issues, to frame additional issues, and to strike out issues that appear to it to be wrongly framed [O.14, rule 1(5) and rule 5]. You have to be careful at the time when issues are framed. Burden of proof is, sometimes, reflected in the way in which they are framed. No important issue should be omitted to be raised because it may vitiate the trial.

b) Hearing of the suit and examination of witnesses

There is no such thing as a first hearing in Courts in the Presidency-towns. The following is the practice followed in the High Courts at the hearing of suits:

- i) Plaintiff's counsel reads pleadings, i.e. plaint and written statement;
- ii) Defendant's counsel raises issues;
- iii) Plaintiff's counsel opens the case by stating briefly the facts of the case and giving a short outline of the evidence he intends to call to prove the issues as to which the burden of proof lies on him;
- iv) Then follows the examination, cross-examination and re-examination of the plaintiff and his witnesses;
- v) Plaintiff's counsel then closes his case by saying "I close my case", or "This is my case";
- vi) Defendant's counsel opens the defence by stating shortly what the defence is and what evidence he proposes to call;
- vii) Then follows the examination, cross-examination and re-examination of the defendant and his witnesses;
- viii) Defendant's counsel then closes his case, and addresses the Court generally on the whole case;
- ix) Plaintiff's counsel then replies generally on the whole case, and thus finishes the hearing of the suit [O.17, R.1, 2].

If it be proved after the pleadings are read and issues raised, that the burden of proving the whole case lies on the defendant, the defendant's counsel has to begin, that is to say, he has to state the defendant's case and call evidence in support of his case. The plaintiff's counsel then states his case and calls evidence in support of his case, and then addresses the Court generally on the whole case. The defendant's counsel then replies generally on the whole case. Thus if A sues B for money lent and advanced, and if B admits the loan but contends that the loan has been repaid, the burden of proof lies on B, the defendant. Similarly, if A sues B for damages for breach of contract, and if B admits the contract, but denies liability on the ground that it is a wagering transaction, the burden of proof lies on B. [O.18, R.1]

<https://goo.gl/GU7xEZ> (Hard copy)

Where there are several issues the burden of proving some of which lies on the plaintiff, and some on the defendant, the procedure laid down in O.18, R.3 is to be followed. That procedure may be explained by an illustration. A sues B for damages for breach of a contract. B denies the contract, and contends that, if there was any contract at all, it was one by way of wager, and that he is not therefore liable. Here there are two issues, (i) as to the factum of the contract, and (ii) as to whether the contract was wagering contract. The burden of proving the first issue lies on A, and of proving the second issue on B. Here A must begin and prove the contract. He may then adopt one of the courses, namely, (a) produce his evidence on the other issue and then close his case, or (b) reserve it by way of answer to the evidence that may be produced by B. In the latter case B has to produce his evidence on the issue as to wager, and A may then call his evidence in the rebuttal. B may then reply specially on the evidence produced by A. A is then entitled to reply generally on the whole case.

The rules as to burden of proof are laid down in Section 101 - 114 of the Evidence Act. The rules as to the examination, cross-examination and re-examination of witnesses are laid down in Sections 135-166 of the same Act. As regards witnesses, it may be observed that they are to be examined orally in open Court at the hearing of the suit. But a witness may be examined before the hearing when he is about to leave the jurisdiction of the Court, or if there is other sufficient cause to examine him immediately. This is called examination de bene esse [O.18, R.16]. A witness may also be examined on commission in the cases specified in O.26, rr.1, 4 and 5. One of these cases is where he resides beyond the local limits of the Court's jurisdiction. See also in this connection O.5, R.4 [when defendant cannot be ordered to attend in person] and O.16, R.9 [when witness cannot be so ordered].

As a general rule, the plaintiff has right to begin in leading evidence. However, if his claim or facts are admitted by the defendant but who contends that the plaintiff is disentitled to any relief ~~on other grounds of facts~~, the defendant has a right to begin in such cases. Whoever begins evidence, it is necessary that the parties must give evidence before their respective witnesses. (See O.18, R. 3A). This provision is salutary because no party can be allowed to fill up the lacuna found in the evidence given by their witnesses. But the prohibition is not absolute. It is possible to obtain permission from Court for later examination of the party. Such permission should be obtained before witnesses are examined. But there are judicial decisions which grant such permission even if it is sought after witnesses are examined.

The order of adducing evidence outlined above is liable to be disturbed or disregarded by the Court. It can examine any witness at any stage; for reasons to be recorded for such deviation from the order. Suppose if a witness is suffering from disease and it is not likely that he may survive till trial takes place in its sequence, he may be examined before recording evidence of any party or witness. The Court will exercise its discretion looking to the exigencies. If it appears that insistence on normal sequence is likely to result in loss of evidence or non-availability of material or valuable evidence, the order can be departed from and such witness may be examined at any stage. The Court has also discretion to receive any evidence at any stage if it is satisfied that party could not produce that evidence at the proper time even after exercise of due diligence (see Order 18, Rule 17A). The party has to prove that such evidence was not in his knowledge or could not be produced despite due diligence.

2. Judgment (Definition)

Judgment means the statement given by the Judge of the grounds of a decree or order [Section 2 (9).]

Every judgment other than that of a court of small causes should contain (1) a concise statement of the case; (2) the points for determination; (3) the decision thereon; and (4) the reasons for such decision.

Judgment of a court of small causes need contain only points Nos. 2 and 3.

It was laid down in Gajraj Singh vs. Deohu (reported in Summary of Cases of 1951 A. L. J. R., July Number) that sketchy orders by judicial officers which are not self-contained and which cannot be appreciated by the appellate or revisional court without an examination of the record are to be regarded unsatisfactory and are looked upon with disfavour by the High Court.

3. Essentials

The essential element of a judgment is that there should be a statement of the grounds of the decision. Every judgment other than of a Court of Small Causes should contain (i) a concise statement of the case; (ii) the points for determination; (iii) the decision thereon; and (iv) the reasons for such decision. A judgment of a Court of Small Causes may contain only points (ii) and (iii). The sketchy orders which are not self-contained and cannot be appreciated by the appellate or revisional court without examining all the records are, therefore, unsatisfactory and cannot be said to be judgments in that sense. Even the Small Causes Court's judgments must be intelligible and must show that the judge has applied his mind. The judgment need not, however, be a decision on all the issues in a case. Thus, an order deciding need not, however, be a decision on all the issues in a case. Thus, an order deciding a preliminary issue in the case, e.g. constitutional validity of a statute, is a judgment.

Even an ex parte judgment should satisfy the description of 'judgment' as laid down in Order 20, Rule 4 (2), CPC, which visualise that the judgment of a court other than the court of small causes "shall contain a concise statement of the case, points for determination, decision and the reasons for such decision. A 'judgment' for its sustenance must contain not only findings on the points, but must also contain what evidence consists of, and how does it prove the plaintiff's case. A judgment unsupported by reasons is no judgment in the eye of law. It is well settled that reasons are the links between the material on record and the conclusion arrived at by the Court. Mere fact that the defendant absented himself on the date of hearing and the suit proceeded ex parte, did not by itself entitle the plaintiff to get a decree in his favour. The court was under an obligation to apply its mind to whatever ex parte evidence or affidavit filed under Order 19 of the Code is on the record of the case, and application of mind must be writ large on the face of the record. This is possible only if the court directs itself to whatever material is on record of the case, analyses the same and then comes to any conclusion on the basis of evidentiary value of the ex parte evidence or affidavit brought on record by the plaintiff. It may also be observed that the written statement already filed in the case could not be deemed to have been wiped off the record merely because the defendant did not appear on the date of issues and the suit was ordered to proceed ex parte. [*Commissioner of Income Tax vs. Surendra Singh Patwa and others*, 1995 (13) LCD, 805.]

In suits in which issues have been framed, the court shall state its finding or decision, with the reasons therefore, upon each separate issue, unless the finding upon any one or more of the issues is sufficient for the decision of the suit. (Order 20, Rule 5).

It is not sufficient for the trial court merely to state in its judgment that on a careful consideration of the evidence it has come to this or that conclusion. The material evidence on a particular issue for and against the parties to the suit must be set out in the judgment and reasons stated for its acceptance or rejection. [*Ambor Ali vs. Nichar Ali*, AIR 1950 Assam, 79].

Order 20, Rule 4, requires a court not only to state the points for determination and the decision thereon but also to give reasons for such a decision. In the case of the findings of fact arrived at by a court of first appeal this is all the more necessary because those findings are binding on the court of second appeal and it is necessary that, if such matter comes before a court of second appeal, the court shall be able to judge whether the first appellate court has applied its mind to consideration of the evidence or not. [*Sabharaj v. Mahesh Narain*, AIR 1948 Oudh 27].

Where the judgment is extremely brief and unintelligible it is invalid. [*Harbaghwan vs. Ahmed*, 1922 Lah. 122]. Where the judge has applied his mind to the points for determination and recorded his decision it is sufficient. But where the judge does refer to the evidence and the judgment indicated that he failed to consider material portion of the evidence the judgment can be assailed. [*Moolji Sicka and Co. vs. The Bengal Nagpur Rly. Co. Ltd.*, 35 CWN 1242].

Where the judgment of the trial judge in a small cause suit only contains a bald statement about the operative order, such a decision is clearly not in accordance with law and cannot be sustained. [*M/S Krishna Fine Art Printers vs. Ram Chandra Sharma*, 1979 All. L. J. 615: 1979 AWC 365].

<https://goo.gl/GU7xYZ> (Hard copy)

It is true that while deciding a suit as Judge, Small Causes, the trial judge is not required to write out an elaborate judgment, yet it is essential in law for him to mention in the judgment the necessary facts relating to the controversy, the points for determination arising therein and his decision thereon. Rule 4 of Order 20, CPC specifically provides that the judgment of a court of small causes must contain the points for determination and the decision thereon. The judgment in the instant case contains a bald statement about the operative order. Such a decision is clearly not in accordance with law. **[M/S Krishna Fine Art Printers vs. Ram Chandra Sharma, 1979 AIR 453, vol. 5 1979 All. L. J. 615].**

4. Pronouncement [Rule 1, Order 20]

The court, after the case has been heard, shall pronounce judgment, and on such judgment a decree shall follow. [Section 33]

The court, after the case has been heard, shall pronounce judgment in open court, either at once, or as soon thereafter as may be practicable, and when the judgment is to be pronounced on some future day, the court shall fix a day for that purpose, of which due notice shall be given to the parties or their pleaders:

Provided that where the judgment is not pronounced at once, every endeavour shall be made by the court to pronounce the judgment within thirty days from the date on which the hearing of the case was concluded but, where it is not practicable so to do on the ground of the exceptional and extraordinary circumstances of the case, the court shall fix a future day for the pronouncement of the judgment, and such day shall not ordinarily be a day beyond sixty days from the date on which the hearing of the case was concluded, and due notice of the day so fixed shall be given to the parties or their pleaders. (Order 20, Rule 1)

The proviso added to Rule 1 states that where the judgment is not pronounced at once, every endeavour shall be made by the court to pronounce the judgment within fifteen days from the date on which the hearing of the case was concluded, but where it is not practicable so to do, the court shall fix a future day for the pronouncement of the judgment, and such day shall not ordinarily be a day beyond thirty days from the date on which the hearing of the case was concluded and due notice of the day so fixed shall be given to the parties or their pleaders. Further, where a judgment is not pronounced within thirty days from the date on which the hearing of the case was concluded, the court shall record the reasons for such delay and shall fix a future day on which the judgment will be pronounced and due notice of the day so fixed shall be given to the parties or their pleaders. In order to avoid inordinate delay in delivery of judgments after the conclusion of the hearing of cases a time-limit for the same has been fixed, and if the judgment is not delivered even within 30 days, the court shall be required to record the reasons for such delay and shall fix a future date for the pronouncement of the judgment after notice to the parties or their pleaders.

It is not necessary that the court should read out the whole judgment, but may only pronounce the result of the case or read the operative portion of the judgment, but a copy of the whole judgment shall be made available for the perusal of the parties or the pleaders immediately after the judgment is pronounced. [Order 20, Rule 1 (2)]. The judge is not expected to write his judgment before the finishing of the entire evidence and hearing the arguments of the counsel and if he does so he commits a gross irregularity in the trial of the case. **[Mst. Kaushilya vs. Arai Lal, 1933 A. 196].**

The judgment may be pronounced by dictation in open court to a shorthand writer if the judge is specially empowered by the High Court in this behalf, provided that where the judgment is pronounced by dictation in open court, the transcript of the judgment so pronounced shall, after making such correction therein as may be necessary, be signed by the judge, bear the date on which it was pronounced, and form a part of the record. [Order 20, Rule 1 (3)]

A Judge shall pronounce a judgment written but not pronounced by his predecessor. [Order 20, Rule 2]

Again, pronouncement of judgment is essential for the validity of judgment. It is a judicial act which must be performed in a judicial way. Small irregularities in the manner of pronouncement or the mode of delivery may not matter much but the substance must be present and it should neither be vague nor left to inference or conjecture. Again, the judgment must be based on the ground and points in the pleadings and not outside the case

put forward by the parties in their pleadings. On the one hand, the court should record findings on all the points raised by the parties. And on the other hand, it should not decide any question which does not arise from the pleadings of the parties or is unnecessary.

5. Alterations of Judgment

The judgment shall be dated and signed by the Judge in open court at the time of pronouncing it, and, when once signed, shall not afterwards be altered or added save in cases of (1) (a) clerical or arithmetical mistake; or (b) errors arising from any accidental slip or omission (section 152); or (2) on review (section 114).

Except within the well-known limit where a court can exercise its inherent jurisdiction, there is no inherent jurisdiction in the court to rehear a case and alter or add to a judgment which has been duly pronounced and deliberately signed and sealed in accordance with law even with the consent of the parties. It follows that it is not competent to a judge who has once pronounced and signed the judgment to recall and alter that judgment at the request of either party. No such practice in derogation of law can grow up or be recognized. [*Allah Raddul Almin vs. Ganga Sahai, 1947 ALJ 215*]

In a civil case a judgment delivered in open court and dictated to a shorthand writer before the transcript of the same is signed by the Judge or Judges concerned does not amount to a final disposal of the case. Where the stage of dating and signing the judgment is not reached, the jurisdiction of the court to reconsider and to rehear the case continues. [*Beni Madho Prasad Singh vs. Edit, ILR (1933) 1 All. 632*]

The Supreme Court has held that though no court has undoubted power to alter or modify a judgment delivered but not signed, such power should be exercised judicially, sparingly and for adequate reasons. [*Vinod Kumar vs. Banaras Hindu University, AIR 1988 SC 371*]

II. DECREE.

1. Definition

The adjudications of a court of law may be divided into two classes: (i) decrees, and (ii) orders. Section 2 (2) of the Code defines the term 'decree' in the following words:

"Decree" means the formal expression of an adjudication which, so far as regards the court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit and may be either preliminary or final. It shall be deemed to include the rejection of a plaint and the determination of any question within Section 144, but shall not include—

- a) any adjudication from which an appeal lies as an appeal from an order, or
- b) any order of dismissal for default.

Explanation — A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. It is final when such adjudication completely disposes of the suit. It may be partly preliminary and partly final."

2. Essentials

In order that a decision of a court may be a 'decree', the following elements must be present:

- a) There must be an adjudication.
- b) Such adjudication must have been given in a suit.
- c) It must have determined the rights of the parties with regard to all or any of the matters in controversy in the suit.
- d) Such determination must be of a conclusive nature; and
- e) There must be a formal expression of such adjudication.

3. Types of Decrees

According to Section 2 (2), a decree may be preliminary or final or partly preliminary and partly final; it shall be deemed to include the rejection of a plaint and the determination of any question with Section 144, but shall not include (a) any adjudication from which an appeal lies as an appeal from an order, or (b) any order of dismissal for default.

- <https://goo.gl/GU7xEZ> (Hard copy)
- a) **Preliminary Decree** – A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. Such a decree determines the rights of the parties with regard to some or one of the matters in controversy in the suit but does not completely dispose of the suit. In other words, a preliminary decree is only a stage in working out the rights of the parties which are to be finally adjudicated by a final decree. Such decrees are passed in suits for possession and for mense profits, in administration suits, in pre-emption suits, in suits for dissolution of partnership, in partition suits, in mortgage suits, in suits for sale, etc. [Order 20 and Order 34]. The court may pass a preliminary decree in cases not covered by the provisions of Code.

There should be only one preliminary decree, but a second preliminary decree in a suit of partition is not impossible where the facts or circumstances alleged to have come into existence after the passing of the first. In partnership suits, several preliminary decrees are usually passed.

The question whether a decision amounts to a preliminary decree or not is of great significance in view of the provisions of Section 97 of the Code: "Where any party aggrieved by a preliminary decree..... does not appeal from such decree, he shall be precluded from disputing its correctness in any appeal which may be preferred from the final decree."

The object of Section 97 is to prevent preliminary questions being raised in the form of appeal after a case has been decided on merits. Since the passing of a preliminary decree is only a stage prior to the passing of a final decree, if an appeal preferred against a preliminary decree succeeds, the final decree automatically falls to the ground for there is no preliminary in support of it [*Sital Parshad vs. Kishori Lal*, AIR 1967 SC 1236].

- b) **Final Decree** – A final decree is one which completely disposes of the suit and finally settles all the questions in controversy between the parties and nothing further remains to be decided thereafter. While a preliminary decree ascertains what is to be done, the final decree states the result achieved by means of the preliminary decree. The preliminary decree is not dependent on the final one, but the latter is really dependent on and subordinate to the former, which is not extinguished by the passing of the final decree. Thus, in a partition suit, the preliminary decree declares the rights of the parties and the final decree divides the properties specifically by metes and bounds in terms of the rights so declared, thereby completely disposing of the suit. An executable decree is thus secured to the parties. The function of the final decree is merely to restate and apply with precision what the preliminary decree has ordained.

Ordinarily, there will be only one final decree in a suit. However, where two or more causes of action are joined together, there can be more than one final decree.

- c) **Partly Preliminary and Partly Final** – Such a 'composite decree' is passed in certain cases viz. in a suit for possession of land and mense profits, the court orders possession of the land in suit in favour of the plaintiff, and directs an enquiry into profits. The first part of the decree is final as it directs delivery of possession to the plaintiff, while the second part is preliminary in as much as it directs an enquiry as to mense profits.

4. Contents of Decree

- a) The decree shall agree with the judgment, it shall contain the number of the suit, the [names and descriptions of the parties, their registered addresses] and particulars of the claim, and shall specify clearly the relief granted or other determination of the suit.
- b) The decree shall also state the amount of costs incurred in the suit, and by whom or out of what property and in what proportions such costs are to be paid.
- c) The court may direct that the costs payable to one party by the other shall be set off against any sum which is admitted or found to be due from the former to the latter. [Order 20, Rule 6]

5. Preparation of Decree

- i) Every endeavour shall be made to ensure that the decree is drawn up as expeditiously as possible and, in any case, within fifteen days from the date on which the judgment is pronounced.

- ii) An appeal may be preferred against the decree without filing a copy of the decree and in such a case the copy made available to the party by the court shall for the purposes of rule 1 of Order XXI be treated as the decree. But as soon as the decree is drawn, the judgment shall cease to have the effect of a decree for the purposes of execution or for any other purpose. (Order 20, Rule 6-A)

6. Copies of judgment when to be made available

Where the judgment is pronounced, copies of the judgment shall be made available to the parties immediately after the pronouncement of the judgment for preferring an appeal on payment of such charges as may be specified in the rule made by the High Court. [Order 20, Rule 6-B]

7. Date of Decree

The decree shall bear date the day on which the judgment was pronounced, and, when the Judge has satisfied himself that the decree has been drawn up in accordance with the judgment, he shall sign the decree. [Order 20, Rule 7]

8. Distinction between Decree, Order and Judgment

A judgment contemplates a stage prior to passing of a decree or an order, and after the pronouncement of the judgment, a decree/order shall follow.

Judgment means the statement given by the judge of the grounds of a decree or order. It is not necessary to give a statement by the judge in a decree/order though it is necessary in a judgment.

It is not necessary that there should be a 'formal expression' of the order in the judgment, though it is desirable to do so. Rule 6-A of Order 20, however, enacts that the last paragraphs of the judgment should state precisely the relief granted.

9. Additional contents of decrees in particular cases

- i) In a suit relating to *recovery of immovable property* the decree shall also contain a description of such property sufficient to identify the same specifying the boundaries or number in the settlement record. (Order 20, Rule 9).
- ii) A *decree for delivery of movable property* shall also state the amount of money to be paid as an alternative if delivery cannot be had. (Order 20, Rule 10).
- iii) In a *decree for payment of money*, the court may for sufficient reason incorporate in the decree, after hearing such of the parties who had appeared personally or by pleader at the last hearing, before judgment, an order that payment of the amount decreed shall be postponed or shall be made by instalments, with or without interest. [Order 20, Rule 11(1)].

But after the passing of a decree for the payment of money the court can subsequently order the postponement of the decretal amount or payment by instalments only on the application of the judgment-debtor, which must be made within six months from the date of the decree, and with the consent of the decree-holder. [Order 20, Rule 11(2)].

Each of the sub-rules (1) and (2) of Order 20, Rule 11, C.P.C. empowers the court to postpone payment of the decretal amount or to make it payable by instalments and provide for award of interest from the date of decree or order. There is, therefore, no scope or need to resort to section 34 in such cases, so far as the award of interest is concerned and the limitation as to rate of interest specified in section 34 cannot be invoked where the court is acting under Order 20, Rule 11, (1) or (2).

Section 34 is a general provision dealing with the question of interest in a decree for the payment of money. Where therefore the court passes a decree without anything more, the rate at which the court can award interest on the principal sum from the date of the decree to the date of payment cannot exceed six per cent, per annum. But where the court makes a decree and postpone payment of the decretal amount or makes it payable in instalments in exercise of its powers under Order 20, Rule 11, the provision made in Order 20, Rule 11 would govern the question of interest and not the provision under Section 34. [Gordhandas Madhavji vs. M/s. Vianji Khestia Firm, ILR (1967) Guj. 183.]

The instalment decree provided that on the judgment-debtor defaulting in payment of three instalments the decree shall be executed to recover the entire balance decree amount. Instalments were regularly paid till April 1972. Under Article 136, Limitation Act, 1963, the decree-holder could execute the decree within 12 years from the date it becomes enforceable and since the default committed in 1972 rendered it enforceable the execution petition filed in 1978 was not barred by limitation. The defendant contended that a default was committed in 1970, that execution ought to have been levied within 3 years of the default under Article 137 and that therefore the decree had become barred by limitation and unexecutable. It was held that the default of the year 1970 did not render the decree enforceable since it was not a default of three instalments in terms of the decree. [*Champak Lal Jajodia vs. Life Insurance Corporation of India*, AIR 1984 Cal. 158]

- iv) a) A decree in a *pre-emption* suit, where the purchase money has not been paid into court, shall specify a date on or before which the purchase money shall be paid and direct that on payment into court of such purchase money with costs the defendant shall deliver possession of the property to the plaintiff; but that if the payment is not made the suit shall be dismissed with costs.
- b) Where court has adjudicated upon rival claims to pre-emption the decree shall direct (i) if claims are equal in degree, that the claim of each pre-emptor shall take effect in respect of a proportionate share of the property; and (ii) if the claims decreed are different in degree, the claim of the inferior pre-emptor shall not take effect until the superior pre-emptor has failed to pay. [Order 20, Rule 14].
- v) In a decree where the defendant has been allowed a set off or counter-claim against the claim of the plaintiff, it shall state what amount is due to the plaintiff, and what amount is due to the defendant. (Order 20, Rule 19).

10. Preliminary decree for profits and mesne profits

In a suit for the *recovery of possession of immovable property* and for rent or mesne profits the court may pass a preliminary decree (a) for the possession of the property prior to the institution of the suit or directing an inquiry as to such rent; (b) for the rents which have accrued on the property during the period prior to the institution of the suit or directing an inquiry as to such rent; (c) for the mesne profits or directing an inquiry as to such mesne profits; (d) directing an inquiry as to rent or mesne profits from the institution of the suit until (i) the delivery of possession to the decree-holder, (ii) the relinquishment of possession by the judgment-debtor, or (iii) the expiration of three years from the date of the decree, whichever event first occurs. [Order 20, Rule 12(1)].

11. Final Decree

Where an inquiry is directed under clause (b) or clause (d) above, a final decree in respect of the rent or mesne profits shall be passed in accordance with the result of such inquiry. [Order 20, Rule 12(2)].

12. Decree for specific performance of Contract

Where a decree for the specific performance of a contract for the sale or lease or immovable property orders that the purchase money or other sum be paid by the purchaser or lessee, it shall specify the period within which the payment shall be made, (Order 20, Rule 12-A).

Normally there is no doubt that a successful plaintiff would be entitled to mesne profits for 3 years and not more. But where court is dealing with a claim made by the plaintiff on behalf of the trust and the decision in their favour has rendered it necessary to adjust equities between the trust and the respective alienees, alienations in whose favour have been set aside as invalid, the court has jurisdiction to award mesne profits for more than 3 years by way of an equitable adjustment. [*Janakirama Iyer vs. Nikanta Iyer*, AIR 1962 SC 633]

13. Administration Suit

In a suit for an account of any property and for its due administration under the decree of the court, the court shall, before passing the final decree, pass a preliminary decree ordering such accounts and inquiries to be taken and made.

If the property of a deceased person which is being administered by the court proves insufficient for the payment in full of his debts and liabilities, the same rule shall be observed as may be in force with respect to the estate of insolvent persons; and all persons entitled to be paid out of such property may come in under the preliminary decree (Order 20, Rule 13).

14. Dissolution of Partnership

In a suit for dissolution of a partnership, or the taking of partnership accounts, the court, before passing a final decree, may pass a preliminary decree declaring the proportionate shares of the parties, fixing the day on which the partnership shall stand dissolved and directing accounts to be taken and other acts to be done. (Order 20, Rule 15).

15. Partition of Property

In a decree passed in a suit for the partition of property or separate possession of a share therein, if the estate is assessed to the payment of revenue to the Government, the decree shall declare the rights of several parties interested in the property, but shall direct the partition or separation to be made by the Collector. But if it is any other immovable property or movable property and the partition or separation cannot conveniently be made without further inquiry, the court may pass a preliminary decree declaring the rights of the several parties interested in the property and giving further necessary direction. (Order 20, Rule 18).

III. HOW TO WRITE AN EXCELLENT JUDGMENT

In RJS, UPPCS (J), UAPCS (J), MPCJ (M), generally one compulsory question is asked on Judgment writing. In RJS, UPPCS (J) and UAPCS (J), generally three questions are asked one on plaint writing, second on written statement and third on framing issues and writing a judgment. While writing a judgment, you should remember following perform:

1. NAME OF COURT
2. Civil Suit No..... of
3. Name of presiding Judge
4. Name, description and registered address of parties i.e. plaintiff and defendant
5. Title of suit i.e. suit for damages etc.
6. Name of advocates
 - a) For plaintiff:
 - b) For defendant:

JUDGMENT

- i) The facts of the case as described in the plaint. (first paragraph).
- ii) The facts of the case as described in the written statement. (second paragraph)
- iii) Framing of issues, on the basis of plaint and written statement. (generally third paragraph).
- iv) After framing issues, you have to deliver your judgment in each and every issue. First of all you have to analyse the oral and documentary evidence and on the basis of your analysis, you have to conclude your judgment. While deciding a particular issue, you have to decide on whom the burden of proof lies. For deciding on whom the burden of proof lies, the detailed study of Sections 101 to 114 of Indian Evidence Act, 1872 is indispensable.

Each and every issue is to be decided on the basis of deep analysis and sound reasoning. This is the cardinal principle of justice that justice must not only be done but must manifestly appear to be done. It is the sound reasoning of the judgment which will prove that the judge was applied its mind. Each issue should be decided in separate paragraph.

- v) When all the issues would have been decided, you have to conclude your final judgment, it must be based on the analysis of evidence and sound reasoning.
- vi) After the conclusion, you have to decide what relief is to be granted to the plaintiff or defendant. These material must be written under the title of "Relief"

- vii) The next step for writing a judgment is "Order". You have to touch two points –
- (a) What order has been given to the plaintiff or defendant, must be written very short.
 - (b) As a judge, you have to order to the subordinate officers that a decree to be prepared accordingly.
- After giving such an order, you have to sign in the right corner of the order.
- viii) After the final order, you have to disclose that the judgment is pronounced in the open court on (date of delivering judgment) After it you have to put your signature with date in the right corner and mark your seal.
- ix) Last but not least, the deep knowledge of relevant law is indispensable for writing on excellent judgment.

IV. MODEL PLAINT, WRITTEN STATEMENT AND JUDGMENT

You have studied "How to write an excellent judgment". Now, I am going to solve a question of UPPCS (J) Examination – 2000. Please study this model answer and try to write judgments on different topics.

Question: 'A' and 'B' were neighbours. On 5th January, 1998 'B' instituted a criminal complaint against 'A', who was an employee in the bank. Consequently, 'A' has to remain in prison. After trial the criminal court acquitted 'A' on 11th February, 1999 on the ground that the criminal complaint of 'B' was false and baseless. Now 'A' wants to file a suit against 'B' for malicious prosecution. Draft a plaint on behalf of 'A' and write a short judgment. [UPPCS (J) – 2000]

Note: In the given question, you have to write only a plaint and judgment but in RJS you have to write a written statement also. In the given model answer, a plaint, a written statement and a judgment have been given for those students who are planning to appear in RJS also.

1. Plaint

IN THE COURT OF DISTRICT JUDGE NORTH KANPUR (U. P.)

Civil Suit No. 0562 of 2000

A, S/O Sh. X, caste Jain, age 39 years,
r/o 155, Adarsh Nagar, North Kanpur (U. P.)

..... Plaintiff

Verses

B, S/O Sh. Y, caste Agarwal, age 30 years,
r/o 156, Adarsh Nagar, North Kanpur (U. P.)

..... Defendant

Suit for damages for malicious prosecution

The plaintiff above named humbly states as under:

- i) That the plaintiff and defendant are neighbours. The defendant is a businessman while the plaintiff is a professional officer (P. O.) in Bank of India.
- ii) That the defendant commits cruelty against her wife so the plaintiff informed the police about it and showed sympathy with her wife.
- iii) That the defendant acquitted on the technical ground but he continued to commit cruelty against her wife so her wife used to come at plaintiff's house to express her sorrows to the plaintiff's wife.
- iv) That due to above mentioned incidents, the defendant and the plaintiff had a strained relationship.
- v) That with a view to harassing the plaintiff, the defendant on 5th January, 1998 instituted a criminal complaint against the plaintiff under Section 497, IPC for committing adultery with her wife.
- vi) That the above mentioned criminal complaint was filed without reasonable cause, falsely and maliciously.

- vii) That as a result of the said complaint, the plaintiff was arrested on 10th January, 1998 and was released on bail on 20th January, 1998.
- viii) That the criminal case continued for more than one year and ultimately ended in plaintiff's acquittal on 11th February, 1999.
- ix) The Judicial Magistrate first class Sh. Ranjan Kumar held in his decision that the criminal complaint against the plaintiff was false and that the defendant had filed it maliciously and without a reasonable or probable cause.
- x) That in consequence of the said prosecution, the plaintiff has suffered pain of body and mind, and has been lowered in the estimation of his friends and was prevented from transacting his business and incurred expenses in defending himself against the said complaint.
- xi) That the total amount of damages, special and general, as claimed by the plaintiff, amounts to Rs. 3,15,500/= as detailed below:

Particulars of Damages

a) Special damages	Rupees
(i) Fee paid to Rajender Singh Advocate	5000/-
(ii) Travelling and diet expenses of 10 witnesses	3000/-
(iii) Loss of employment as P. O. for 395 days (395 x 500)	1,97,500/-
b) General damages	
(i) For physical and mental pain	10,000/-
(ii) For loss of reputation	100,000/-
Total	3,15,500/-

- xii) That cause of action for the suit arose on 11th February, 1999 when the said criminal proceedings terminated in acquittal of the plaintiff.
- xiii) That the defendant resides at North Kanpur within the jurisdiction of this court.
- xiv) That the valuation of the suit for purposes of jurisdiction and payment of court fee is Rs. 3,15,500/= on which proper court fees has been paid.

Wherefore the plaintiff claims:

- a) Rs. 3,15,500/= as damages, special and general.
- b) Interest on the decretal amount from the date of suit to that of payment.
- c) Costs of the suit.

(Signature)

Plaintiff's Advocate

(Signature)

Plaintiff

VERIFICATION

I, the above named plaintiff 'A' do hereby verify that the contents of paragraphs 1 to 11 are true to my personal knowledge, and the contents of paragraphs 12 to 14, I believe to be true on credible information received.

Signed and verified on 16th January, 2000 at North Kanpur.

(Signature)

Plaintiff

2. Written Statement

IN THE COURT OF DISTRICT JUDGE

NORTH KANPUR (U. P.)

Civil Suit No. 0562 of 2000

A, S/O Sh. X, caste Jain, age 39 years
r/o 155, Adarsh Nagar, North Kanpur (U. P.)

..... **Plaintiff**

B, S/O Sh. Y, caste Agarwal, age 30 years
r/o 156, Adarsh Nagar, North Kanpur (U. P.)

..... Defendant

Written Statement on behalf of B, defendant

The defendant, above named, most respectfully states as under:

- i) That the defendant admits the allegations in paragraph 1 of the plaint.
- ii) That the defendant denies the allegations made in paragraph 2 of the plaint. The defendant never committed cruelty against her wife and he has very cordial and affectionate relations with her wife.
- iii) That the allegations of the paragraph 3 is denied. That the information given by the plaintiff was totally false and gotten up so the defendant acquitted by the Judicial Magistrate.
- iv) That the contents of para no. 4 is admitted.
- v) That the contents of paragraph no. 5 is partly admitted. It is true that defendant instituted a criminal complaint against the plaintiff under Section 497 IPC for committing adultery with her wife but this allegation was totally true and was based on reasonable and probable cause.
- vi) That the contents of para no. 6 of plaint is denied.
- vii) That the contents of para no. 7 is admitted.
- viii) That the contents of the para no. 8 is partly admitted. The defendant admits that the criminal case continued for more than one year but denies that it terminated in plaintiff's acquittal.
- ix) That the contents of para no. 9 is denied.
- x) That the defendant does not admit that the plaintiff suffered any loss or damages as alleged in paragraph 10 of the plaint, that in alternative, the defendant states that if the plaintiff suffered any loss, it was due to his own criminal activity of committing adultery with her wife.
- xi) That the defendant does not admit damages claimed in paragraph 11 of the plaint.
- xii) That no cause of action ever accrued to the plaintiff.
- xiii) That the jurisdiction of the court is admitted.
- xiv) That the defendant does not dispute the payment of court fees as alleged in paragraph no. 14 of plaint.

Additional Pleas

- xv) That on 4th January, 1998 the defendant found her wife and the plaintiff in one room in compromising position so he filed a criminal complaint on 5th January, 1998 against the plaintiff.
- xvi) That on 11th February, 1999 the Judicial Magistrate Sh. Ranjan Kumar found the plaintiff guilty of committing adultery but he released him on Probation under section 360 of Cr.P.C., 1973.
- xvii) That the plaintiff's suit is liable to be dismissed with costs.

(Signature)

Defendant's Advocate

(Signature)

Defendant

VERIFICATION

I, B, the above named defendant, do hereby verify that the contents of paragraphs 1 to 11 and 15 and 16 are true to my personal knowledge and the contents of paragraph no. 12 to 14 and 17 are true according to the advice of my legal advisor.

Signed and verified on 26th January, 2000 at North Kanpur.

(Signature)

Defendant

3. Judgment

THE COURT OF DISTRICT JUDGE

NORTH KANPUR (U. P.)

Civil Suit No. 0562 of 2000

Presiding Judge – Nihal Chand Arora (H. J. S.)

A, S/O Sh. X, caste Jain, age 39 years,
r/o 155, Adarsh Nagar, North Kanpur (U. P.)

..... Plaintiff

Verses

B, S/O Sh. Y, caste Agarwal, age 30 years,
r/o 156, Adarsh Nagar, North Kanpur (U. P.)

..... Defendant

Names of Advocates

For Plaintiff – Sh. Shailender Singh

For Defendant – Sh. Randeep Singh

Suit for damages for malicious prosecution

JUDGEMENT

- i) Plaintiff A filed a suit on 17th January, 2000 stating that the defendant B filed a criminal complaint against him on 5th January, 1998 under Section 497 IPC for committing adultery with her wife. He stated that the criminal complaint was false, without reasonable and probable cause and malicious. As a result of the said complaint, the plaintiff was arrested on 10th January, 1998 and was released on bail on 20th January, 1998 and was released on bail on 20th January, 1998. He alleged that the criminal case continued for more than one year and ultimately ended in his acquittal on 11th February, 1999. He also stated that in consequence of the said prosecution he suffered pain of body and mind and has been lowered in the estimation of his friends and was prevented from transacting his service as a bank employee. He claimed damages special and general of Rs. 3,15,500/-.
- ii) In his written statement, the defendant B admitted that he filed a criminal complaint against plaintiff but he denied that it was malicious, false and without reasonable cause. He also stated that the plaintiff committed the offence of adultery, in fact, and the judge held him guilty of the offence under Section 497 IPC but he was released on probation under Section 360, Cr.P.C., 1973. He denied that the plaintiff has suffered any loss.
- iii) On the basis of plaint and written statement following issues are framed:
 - a) Whether the criminal complaint was false, malicious and without probable and reasonable cause? [Burden of proof is on plaintiff]
 - b) Whether the plaintiff was acquitted in the offence of adultery under Section 497, IPC? [Burden of proof is on plaintiff]
 - c) Whether the plaintiff suffered a loss of Rs. 3,15,500/- [Burden of proof is on plaintiff]
 - d) What relief (if any)?
- iv) Issue No. 1:

The issue no. 1 is whether the criminal complaint was false, malicious and without probable and reasonable cause? The burden of proof was on the plaintiff. Plaintiff produced two witnesses (i) Ram Singh, who stated that A is a person of good character and nobody can believe that he can do such a heinous crime as adultery is. He also stated that B's wife was died on 10th December, 1997 so there was no reason for believing that A committed adultery with her wife on 4th January, 1998. (ii) The second witness, Sarita Devi, the mother-in-law of B stated that her daughter was a woman of good character and she also confirmed that the daughter (B's wife) was died on 10th December, 1997. (iii) The plaintiff also produced a death certificate of B's wife which showed that she died on 10th December, 1997. [Exhibit A]

The defendant B produced no evidence in this regard.

After studying the testimonies of Ram Singh and Sarita Devi and observing the death certificate which is exhibited at No. A, I come to the conclusion that B filed a criminal complaint against A without reasonable and probable causes and maliciously. As he stated that he found the plaintiff committing adultery with her wife on 4th January, 1998 but it is clear that her wife died on 10th December, 1997. So, this issue is decided in the favour of plaintiff and against the defendant.

v) *Issue No. 2:*

The second issue is whether the plaintiff was acquitted from the offence of adultery under Section 497, IPC? The burden of proof was on the plaintiff.

The plaintiff produced the certified copy of the judgment of Judicial Magistrate Sh. Ranjan Kumar [exhibited at B]. This judgment clearly states that the criminal complaint was false, malicious and without reasonable and probable cause. It also shows that the plaintiff is acquitted from the charge of Adultery under Section 497, IPC. The defendant produced no evidence in this regard.

This issue is also decided in the favour of plaintiff and against the defendant.

vi) *Issue No. 3:*

The third issue is whether the plaintiff suffered a loss of Rs. 3,15,500/= ? The burden of proof was on the plaintiff. The plaintiff stated that he paid Advocates' fees Rs. 5000/= and bore the expenses of witnesses of Rs. 3000/=. He claimed Rs. 10,000/= for physical and mental pain and Rs. 1,00,000/= for loss of reputation but he failed to show that he suffered loss of service for 395 days. The defendant proved that he has to face loss of service only for 10 days when he has to remain in jail. Thus, it is clear that he faced loss of service only for 10 days. His salary is 9000/= p.m. Thus, he suffered loss of 3000/= only.

I come to conclusion that the plaintiff has suffered loss as described below:

a) Advocates' fees	= Rs. 5000/-
b) Witnesses' fees	= Rs. 1500/-
c) Loss of services for ten days	= Rs. 3000/-
d) Loss of reputation (damages)	= Rs. 10,000/-
e) Damages for physical and mental pain	= Rs. <u>5000/-</u>
Total	= Rs. <u>24500/-</u>

vii) *Issue No. 4:*

What reliefs?

After hearing both the parties on the point of relief, I came to the conclusion that the plaintiff should be granted following reliefs:

a) Damages special and general	= Rs. 24500/-
b) Costs of the suit	= Rs. <u>5000/-</u>
Total	= Rs. <u>29,500/-</u>

ORDER

The plaintiff's suit is decreed for Rs. 29,500/-. The defendant has to pay this amount till 30th September, 2003. The defendant has to pay this amount with an interest at the rate of 6%. The interest will be paid from the date of institution of suit till the date of payment. A decree is to be prepared accordingly.

(Signature)
District Judge

This judgment is pronounced today i.e. 23.09.2003 in open court and thereby signed.

Seal of Court

(Signature)
District Judge

V. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Draft a plaint claiming damages for malicious prosecution. Prepare a written statement denying the claim. Frame issues and write judgment in a plaintiff's favour? **[600 Words, RJS-1969]**
2. Setting out your own facts draw up a plaint and a written statement in an inter-pleader suit and write a short judgment? **[600 Words, RJS-1970]**
3. Imagine your own facts draw up a plaint and a written statement and also write a short judgment in a suit either for malicious prosecution or for a breach of warranty. **[600 Words, RJS-1971]**
4. Imagine your own facts and draft a plaint for the recovery of damages for malicious prosecution and prepare a written statement as well. Also write a short judgment. **[600 Words, RJS-1975]**
5. Draft a plaint in a suit for pre-emption on the ground of being a co-sharer in a house, portion of which has been sold. What defences are available in such a case? Also write a short judgement? **[600 Words, RJS-1974]**
6. Draw up a plaint and a written statement in a suit for specific performance of a contract of sale of immovable property and also write a short judgment. **[600 Words, RJS-1974]**
7. A has a right of way from his house over the land of B to the public highway. B obstructs A and his servants passing along the way. A wants to bring a suit. Please draft a suitable plaint for him. Also attempt a written statement. Frame issues and write a short judgment. **[600 Words, RJS-1976]**
8. B makes a false representation to A that C is solvent and in good credit. A is induced to sell goods to C on credit. C fails to pay. Can A bring a suit against C and B both and if so, please draft a plaint and also the written statement, frame issues and write a short judgment. **[600 Words, RJS-1976]**
9. Draw up a plaint setting out your own facts for a suit brought by the sons for setting aside alienation of joint family property by the father as the Karta and also draft a suitable written statement. Also write a short judgment. **[600 Words, RJS-1977]**
10. a) Draft a plaint and written statement in suit for specific performance of a contract to sell immovable property. Also write a short judgment.
b) Is it necessary for the plaintiff in such a suit to ask specifically for the relief of possession in the plaint? **[600 Words, RJS-1977]**
11. A filed a suit against B alleging that B had mortgaged his house on September 1, 1978 for a sum of Rs. 5000/- stipulating to pay interest at the rate of 9 percent per annum on the mortgage loan, B denied the fact of having taken loan and the execution of the mortgage deed. A examined two witnesses in his evidence who deposed that B had put his signature on the mortgage deed in their presence. No attesting witness of the mortgage deed was examined although they were alive. Draft a plaint on behalf of A, prepare a written statement on behalf of B and frame the issues. Also write a judgment in the above matter. **[600 Words, RJS-1979]**
12. A leased out his house on a monthly rent of Rs. 60/- on March 1, 1976. A sued B for eviction. A issued a notice on March 10, 1978 to B calling upon him to vacate the premises by March 27, 1978 B pleaded the tenancy was not validly terminated, so the suit is liable to be dismissed. Draft a plaint for the eviction of B. Also prepare written statement, frame issues and write judgment in the above matter. **[600 Words, RJS-1979]**
13. Draft a plaint on behalf of a Government servant for arrears of his pay for six months which the State Government has failed to pay in spite of his representation to the Government. Also prepare a written statement on behalf of the Government, frame issues and write out a short judgment. **[600 Words, RJS-1979]**
14. Draw a plaint for the cancellation of a sale deed on the ground of fraud or misrepresentation. Also prepare a written statement on behalf of the defendant, frame issues and write out a short judgment. **[600 Words, RJS-1979]**
15. State the ingredients of a judgment, by reference to the provisions of law. In what circumstances is the Court competent to amend the judgment after his pronouncement? **[300 Words, RJS-1980-81]**

16. On 1st July 1980, A let out a shop to B monthly rent of Rs. 150/- situated at Jaipur belonging to his joint family. B is not paying rent since 1st July, 1986. A Served notice of demand and ejectment upon B on June 16, 1989. On June 30, 1989, A died leaving behind his widow C, major son D, minor son B and married daughter F. After the death of A, B has started denying their title. A suit is to be filed against B for the recovery of arrears of rent and ejectment on the grounds of default in payment of rent and denial of title. Draft plaint and written statement. On the basis of the plaint and written statement, write a judgment. **[200 Words, RJS-1989]**
17. A borrowed Rs. 3000/- from B against a pronote. He acknowledged the debt within three years. He refused to pay his debt. B wants to sue A. Draft a plaint and written statement taking all possible defences. Write a judgment on the facts of the above case. **[200 Words, RJS-1991]**
18. Assuming necessary facts draft: **[200 Words, RJS-1992]**
a) a plaint and
b) a written statement taking all possible defences in a suit for malicious prosecution.
Write a Judgment on the facts of the above-mentioned plaint and written statement.
19. Assuming necessary facts draft: **[200 Words, RJS-1994]**
a) a plaint and
b) a written statement taking all defences in a suit for specific performance of a contract.
Write a Judgment on the facts of the above-mentioned plaint and written statement.
20. Define Judgment. **[150 Words, RJS-1974]**
21. Discuss: "Ordinarily the judgement binds only the parties to it" **[200 Words, RJS-1984]**
22. 'B' obtains a house from 'A' on rent and continues to pay monthly rent to 'A'. 'S' on the ground that the said house has been sold to him by 'A' on 1.1.96 wants to file a suit for rent since 1.1.96: Prepare a plaint on behalf of 'S' and write a short judgment. **[500 Words, UPPCS(J)-1999]**
23. 'A' and 'B' were neighbours. On 5th January 1998 'B' instituted a criminal complaint against 'A', who was an employee in the Bank. Consequently 'A' has to remain in prison. After trial the criminal Court acquitted 'A' on 11 February 1999 on the ground that the criminal complaint of 'B' was false and baseless. Now 'A' wants to file suit against 'B' for malicious prosecution. Draft a plaint on behalf of 'A' and write a short judgment. **[500 Words, UPPCS(J)-2000]**
24. What is the difference between a judgment rendered in a suit governed by the CPC and as award of an arbitrator? **[50 Words, RJS-1980]**
25. Short Notes: Decree in a suit for redemption or sale of immovable property. **[50 words, RJS - 1974]**

Revised

CHAPTER XXVIII

PAYMENT OF INTEREST AND COSTS

[SECTIONS 34, 35, 35A, 35B, ORDER 20A, 24, 25]

Dear aspirant,

Section 34 of CPC makes provisions for payment of interest in a money-decree. In respect of "interest prior to the institution of the suit", the court will normally allow the rate of interest as was stipulated between the parties or as according to mercantile usage (if any) or a statutory right of interest (e.g. under the Negotiable Instruments Act). In respect of pendent lite interest i.e. "interest from the date of the suit till the date of the decree", the court has discretion. Courts normally award interest at the rate agreed to between the parties, unless it is inequitable to do so. The court may disallow such interest altogether. Or, it may allow even if there is a contrary contract between the parties. In respect of future interest i.e. interest from the date of the decree till realization or date of payment, the court has a discretion and it may award at such rate as it deems reasonable, not exceeding 6 per cent per annum, except in case of commercial transactions in which rate may exceed 6%. However, such rate cannot exceed the contractual rate of interest or the rate at which money is lent by nationalized banks in relation to commercial transactions. It is open to the court to allow compound interest from the date of the institution of the suit.

There is one panacea which heels every sore in litigation and that is costs. Section 35 lays down that subject to the provisions of the other laws in force, the costs of and incidental to, all suits are in the discretion of the court. The power as to payment of costs is vested in the court even if it has no jurisdiction to try the suit. The expression "costs shall follow the event" implies that the successful party is entitled to his costs. If the court directs that costs shall not follow the event, it must state in writing reasons for doing so. An appeal may lie for costs. Where the suit is instituted in good faith for the benefit of an estate, the costs of the suit will be ordered to be paid out of estate.

The following rules in CPC contain express provisions as to costs which the parties have to deposit in court –

- i) Costs of interrogatories [Order 11, Rule 3]
- ii) Costs of proof of a document [Order 12, Rule 3]
- iii) Costs of an application to set aside a sale [Order 21, Rule 72]
- iv) Costs of a withdrawal of a suit [Order 23, Rule 1 (3)]
- v) Costs on payment into court [Order 24, Rule 4]
- vi) Costs of next friend and guardians [Order 32, Rules 4 and 9]
- vii) Costs in pauper suits [Order 33, Rules 10, 11 and 16]
- viii) Costs in mortgage suits [Order 34]
- ix) Costs in inter-pleader suits [Order 35, Rule 3]

Section 35A provides for payment of compensatory costs if the claim (or defence) is false or vexatious and subsequently disallowed, or abandoned or withdrawn. It is a discretionary power on the part of the court, but it must record its reasons for holding a claim as false or vexatious.

Section 35A is an exception to the general rule that the award of costs to a litigant is to secure to him the litigation expenses, and not to enable him to get money by way of penalty or punishment on the opposite party. The amount of compensatory costs awarded cannot exceed Rs. 3000 or the limit of the court's pecuniary jurisdiction, whichever is less. Imposition of costs under Section 35A does

not absolve a person from criminal liability that may arise therefrom. Section 35A applies only to suits and proceedings, but not to an appeal or revision. An order for compensation under Section 35A is appealable.

Section 35B provides for the imposition of costs as the plaintiff or the defendant for causing delay. The power exercised by the court is directory. Such costs can be awarded irrespective of the outcome of the litigation.

Order 20A provides that the court may award costs in respect of the following six items:

- i) Expenditure incurred for the giving of any notice required to be given by law before the institution of the suit.
- ii) Expenditure incurred on any notice with, though not required by law, had been given by any party before the institution of the suit.
- iii) Expenditure incurred on the typing, writing or printing of pleading filed by any party.
- iv) Charges paid by a party for inspection of the records of the court for the purposes of the suit.
- v) Expenditure incurred by a party for producing witnesses, even though not summoned through court.
- vi) In the case of appeal – charges incurred by a party for obtaining copies of judgments and decrees required for the purpose.

Order 24 of the CPC lays down that the defendant in any suit to recover debt or damages may, at any stage of the suit, deposit in court such sum of money as he considers a satisfaction in full of the claim. The rule does not apply to suits for accounts.

Order 25 of the CPC lays down rules as to security for payment of costs to be furnished by the plaintiff at any stage of the suit. The object is to provide for the protection of the defendants in certain cases. Where, in the event of success, they may have difficulty in raising their costs from the plaintiff. Security for costs is to be made in all cases where it appears to the court that the plaintiff is residing out of India and does not possess sufficient immovable property in India – other than the suit property. The court may pass an order under Order 25 either on its own motion (suo motu) or on the application of the defendant. It must record its reason for doing so, though the court's power is discretionary.

The suit can be dismissed in consequence of the security not being furnished within the time fixed by the court. Such a suit, however, can be restored by the same court if the plaintiff satisfies the court for his inability to furnish security in time. The mere poverty or even insolvency of the plaintiff is not a sufficient ground for ordering him to give security for costs.

This chapter is not much important for examination point of view but short notes can be asked on following topics:

- i) Cost ordinarily follow the event [Section 35].
- ii) Exceptions of the principle that cost ordinarily follow the event.
- iii) Security for payment of defendant's costs [Order 25].
- iv) Costs for causing delay [Section 35B]
- v) Compensatory costs [Section 35A]
- vi) Interest in money decree [Section 34]

The above mentioned (1) and (2) topics are most important for RJS, BJE; UPPCS (J) and MPCJ.

With best wishes

Yours Sincerely
-RAHUL

CHAPTER XXVIII

PAYMENT OF INTEREST AND COSTS

[SECTIONS 34, 35, 35A, 35B, ORDER 20A, 24, 25]

SYNOPSIS

I. Payment of interest [Section 34]

1. General principles [Section 34]
 - a) Prior to filing of suit
 - b) From date of suit to date of decree
 - c) From date of decree to date of payment
2. Decree silent as to interest [Effect]

II. Costs ordinarily follow the event [Section 35]

1. Introduction
2. Object
3. Principles
4. General rules

III. Compensatory costs [Section 35A]

1. Introduction
2. Object
3. Conditions
4. Pecuniary jurisdiction of court for awarding compensation

IV. Costs for causing delay [Section 35B]

V. Order as to Costs [Order 20A]

1. Costs [Order 20A]
 - a) Provisions relating to certain items [Rule 1]
 - b) Costs to be awarded in accordance with the rules made by High Court [Rule 2]
2. Comment

VI. Payment into Court [Order 24]

VII. Security for Costs [Order 25]

1. Applicability [Rule 1, Order 25]
2. Object
3. Failure to furnish security [Rule 2, Order 25]

VIII. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XXVIII

PAYMENT OF INTEREST AND COSTS

[SECTIONS 34, 35, 35A, 35B, ORDER 20A, 24, 25]

I. PAYMENT OF INTEREST [SECTION 34]

1. General principles [Section 34]

Section 34 provides for awarding interest in cases of money decrees. The interest may be awarded to the decree-holder in a suit for money in the following circumstances:

a) *Prior to filing of suit*

Section 34 has no application to interest prior to the institution of the suit since it is a matter of substantive law. It can be awarded only when there is an agreement, express or implied, between the parties; or mercantile usage; or under a statutory provision; or by way of damages.

b) *From date of suit to date of decree*

The award of interest from the date of the suit to the date of the decree is in the discretion of the court. The discretion, however, must be exercised on sound judicial principles. As a general rule, the court should award interest at the contractual rate except where it would be inequitable to do so.

c) *From date of decree to date of payment*

The award of interest from the date of decrees to the date of payment is also in the discretion of the court. The proviso as added by the Amendment Act of 1976 empowers the court to grant further interest at a rate exceeding six per cent per annum but not exceeding contractual rate of interest, and in absence of contract to that effect, at the rate at which moneys are lent or advanced by nationalised banks in relation to commercial transactions provided that the liability arises out of a commercial transaction.

The award of interest in mortgage suits is provided in Order 34, Rule 11 of the Code.

2. Decree silent as to interest [Effect]

Where the decree does not provide for interest, it will be deemed to have been refused.

II. COSTS ORDINARILY FOLLOW THE EVENT [SECTION 35]

1. Introduction

Section 35 deals with costs. It provides that (1) the costs of and incident to all suits shall be in the direction of the court; (2) the court shall have full power to determine by whom or out of what property and to what extent costs are to be paid; and (3) where costs are not to follow the event the court shall state its reasons in writing.

2. Object

Section 35 deals with general costs. The object in awarding costs to a litigant is to secure to him the expenses incurred by him in the litigation. It neither enables the successful party to make any profit out of it nor punishes the opposite party.

3. Principles

The primary rules in respect of award of general costs are as under:

- a) Costs are in the discretion of the court. The said discretion, however, must be exercised on sound legal principles and not by caprice, chance or humour. No hard and fast rules can be laid down and the discretion must be exercised considering the facts and circumstances of each case.
- b) Normally, costs should follow the event and the successful party is entitled to costs unless there are good grounds for depriving him of that right. To put it differently, the loser pays costs to the winner. However, it does not always depend on who wins and who loses in the end. Even a successful party may be deprived of the costs if he is guilty

of misconduct or there are other reasons to do so. Sub-section (2) of Section 34, however, expressly provides that when the court orders that costs should not follow the event, it must record reasons for doing so.

4. General rules

The general rule is that the successful party is entitled to costs unless he is guilty of misconduct, negligence or omission or unless there is some other good cause for not allowing costs. The same rule is expressed by the expression "Costs follow the event", i.e. costs follow the result of the suit. The following are the main rules with regard to the provision of costs:

- i) The general rule is that costs shall follow the event unless the court, for good reasons, otherwise orders.

Normally costs should follow the event and it is not the rule that costs should be left to be borne by the parties. [*Jugra Singh v. Jawant Singh, 1971 (1) SCJ 141*]

- ii) Where a party successfully enforces a legal right and in no way misconducts himself, he is entitled to costs as of right.
- iii) Everything which is done by a party to increase the litigation and costs, i.e., raising unnecessary issues, is a good cause for depriving him of his costs.
- iv) A person wrongfully made a party should get his costs.
- v) If a plaintiff succeeds only with regard to part of his claim and fails on important issues, he may be ordered to pay the whole cost of the suit to the defendant.
- vi) If the defence is common to all the defendants, separate costs are not to be awarded.
- vii) Orders for costs on any application should be made when the application is disposed of.
- viii) In case of unreasonable, vexatious and improper interrogatories the costs occasioned by the said interrogatories and the answers thereto shall be paid in any event by the party in fault.
- ix) Where the plaintiff withdraws from a suit or abandons part of a claim without the permission of the court, he shall be liable for such costs as the court may award.
- x) When a court refuses costs no separate suit for it is maintainable.

In case of disconnection of telephone on account of non-payment of bill, evidence showed that the subscriber was making payment of bills regularly and nothing was due against him. On failure of the authorities to inform the subscriber about disconnection on account of non-payment of bill, the authorities were found to have acted arbitrarily in disconnecting the telephone. In view of the facts and circumstances of the case, special costs of Rs. 20,000 was awarded to the subscriber, a medical practitioner. [*Dr. Azeemur Rehman Siddiqui v. Union of India, Ministry of Post and Telegraphs and others, AIR 1995 Allahabad 317*]

Under Section 35, CPC, the court may in exceptional cases award costs even against a stranger to the litigation. The court will not, and cannot, award costs against a person without giving him an opportunity of being heard. [*Chander v. Mahnohar Lal, 1942 ALJ 367, FB*]

III. COMPENSATORY COSTS [SECTION 35A]

1. Introduction

Section 35A of the Code lays down the conditions under which the court may award compensatory costs in respect of false or vexatious claims or defences. There must be a suit or other proceeding, including an execution proceeding (but excluding an appeal) in which any party objects to the claim or defence on the ground that the claim or defence or any part of it, as against the objector, false or vexatious to the knowledge of the party by whom it has been put forward; and if thereafter as against the objector, such claim or defence is disallowed, abandoned or withdrawn in whole or in part, the court, if it so thinks fit, may, after recording its reasons for holding such claim or defence to be false or vexatious, make an order for the payment to the objector by the party by whom such claim or defence has been put forward, of costs by way of compensation, to the extent of Rs. 3000 or within the limits of its pecuniary jurisdiction whichever is less.

2. Object

Section 35A provides for compensatory costs. This section is an exception to the general rule on which Section 35 is based; viz. that the "costs are only an indemnity, and never more than indemnity". This section is intended to deal with those cases in which Section 35 does not afford sufficient compensation in the opinion of the court. Under this provision, if the court is satisfied that the litigation was inspired by vexatious motive and altogether groundless, it can take deterrent action. This section applies only to suits and not to appeals or to revisions.

3. Conditions

The following conditions must exist before this section can be applied:

- The claim or defence must be false or vexatious;
- Objections must have been taken by the other party that the claim or defence was false or vexatious to the knowledge of the party raising it; and
- Such claim must have been disallowed or withdrawn or abandoned in whole or in part.

The maximum amount that can be awarded by the court is Rs. 5000.

A suit involving arguable and complicated questions of fact and law cannot be held to be "frivolous and vexatious" to warrant the awarding of compensatory costs. [*Kotturuswami v. Virawa*, (1942) 2 MLJ 582]

4. Pecuniary jurisdiction of court for awarding compensation

The pecuniary jurisdiction of a Court is not decided on the strength of the valuation of the suit put forth by the plaintiff. It depends upon distribution memo issued under Civil Courts Act and not upon by the Court fee paid by the plaintiffs. [*Bhupendra Singh Babara vs. Municipal Council, Ambikapur*, AIR 2002 Chhat 71]

IV. COSTS FOR CAUSING DELAY [SECTION 35B]

Section 35B is added by the Amendment Act of 1976. It is inserted to put check upon the delaying tactics of the litigating parties. It empowers the court to impose compensatory costs on the parties who are responsible for causing delay at any stage of the litigation. Such costs would be irrespective of the ultimate outcome of the litigation. The payment of costs has been a condition precedent for further prosecution of the suit, if the party concerned is a plaintiff and the defence, if he is a defendant. The provisions of this section are mandatory in nature and, therefore, the court should not allow prosecution of suit or defence, as the case may be, in the event of party failing to pay costs as directed by the court. If, however, the party is unable to pay costs due to the circumstances beyond his control, such as strike of advocates or staff, declaration of the last day of payment of costs as holiday, etc. the court can extend the time.

Section 35B is a procedural provision. Its language indicates that it is directory. If the provision is taken to be mandatory it will take away the court's right to exercise its discretion in the interest of justice. [*Kasi Biswanath Dey v. Paramananda Routrai*, AIR 1982 Orissa, 82]

Under Section 35B payment of costs for adjournment is a condition precedent to further prosecution of the suit by the plaintiff where the plaintiff is ordered to pay such cost. It is reasonable to conclude from the section that where the costs imposed are not paid on that very date when the costs are ordered to be paid, attention of the court should be drawn so that further prosecution of the suit may take place only if necessary compliance has been made. If no such step is taken by the party who intends to invoke the provisions of Section 35B and remains silent and allows the court to proceed with the suit he cannot thereafter be allowed to agitate the alleged non-payment, if any, after that date. In such a situation the provisions of section 35B are not at all attracted. [*Assa Nand v. Harish Kumar*, AIR 1983 P & H. 23]

V. ORDER AS TO COSTS [ORDER 20A]

1. Costs [Order 20A]

Order 20A of CPC deals with power of the court to award costs in certain cases. It states:

- Provisions relating to certain items [Rule 1]*

Without prejudice to the generality of the provisions of this Code relating to costs, the Court may award costs in respect of –

- i) Expenditure incurred for the giving of any notice required to be given by law before the institution of the suit;
- ii) Expenditure incurred on any notice which, though not required to be given by law, has been given by any party before the institution of the suit;
- iii) Expenditure incurred on the typing, writing or printing of pleadings filed by any party;
- iv) Charges paid by a party for inspection of the records of the Court for the purposes of the suit;
- v) Expenditure incurred by a party for producing witnesses, even though not summoned through Court; and
- vi) In the case of appeals, charges incurred by a party for obtaining any copies of judgments and decrees which are required to be filed along with the memorandum of appeal.

b) Costs to be awarded in accordance with the rules made by High Court [Rule 2]

The award of costs under this rule shall be in accordance with such rules as the High Court may make in that behalf.

2. Comment

Order 20A makes specific provision with regard to the power of the court to award costs in respect of certain expenses incurred in giving notices, typing charges, inspection of records, producing witnesses and obtaining copies.

VI. PAYMENT INTO COURT [ORDER 24]

As it is open to the plaintiff to abandon his suit, so also it is open to the defendant in a suit for debt or damages to deposit in court such sum of money as he considers a satisfaction in full of the plaintiff's claim. The deposited amount shall be paid to the plaintiff on his application unless the court otherwise directs. No interest shall be allowed to the plaintiff on the sum deposited by the defendant. If the plaintiff accepts such sum as payment in full satisfaction of his claim, the court shall record his statement to that effect and pronounce the judgment accordingly. On the other hand, if the plaintiff accepts such payment as satisfaction in part only of his claim, he is entitled to prosecute the suit for the balance. But if ultimately it is found that the deposit was in full satisfaction of the plaintiff's claim, the plaintiff shall pay all costs incurred after such deposit.

Illustration

A sues B to recover Rs. 15,000. B deposits Rs. 10,000 in full satisfaction of the plaintiff's claim. If A accepts the amount as satisfaction in full of his claim, the Court shall pronounce the judgment to that effect. On the other hand, A accepts the amount as satisfaction in part only of his claim, he may prosecute his suit for the balance. But if the Court ultimately decides that A is entitled only to Rs. 10,000, he will have to pay the costs incurred by B after depositing Rs. 10,000 in the Court.

VII. SECURITY FOR COSTS [ORDER 25]

1. Applicability [Rule 1, Order 25]

Rule 1 of Order 25 provides for the taking of security for the costs of the suit. Rule 10 of Order 41 provides for the taking of security for the costs of the appeal. The court may, at any stage of the suit, order the plaintiff to give security for the payment of costs of the defendant. In the following circumstances, however, the court shall make such order:

- a) where the plaintiff resides outside India or where there are two or more plaintiffs and all of them reside outside India; and
- b) the sole plaintiff or none of the plaintiffs has sufficient immovable property within India other than the suit property.

2. Object

The object of the rule is to provide for the protection of the defendants in certain cases where in the event of success, they may have difficulty in realizing their costs from the plaintiff. It is a discretionary power which can be exercised only in exceptional

circumstances, where it is shown that the exercise of power is necessary for the reasonable protection of the interest of the defendant. An order for security of costs may be passed by the court either *suo motu* (of its own motion) or on application of the defendant and must be a reasoned one. The provisions of this order apply even to a minor plaintiff.

3. Failure to furnish security [Rule 2, Order 25]

If the security is not furnished within the time fixed or extended, the court shall dismiss the suit unless the plaintiff or plaintiffs are permitted to withdraw therefrom. Sub-rule (2) of Rule 1 empowers the court to restore the suit dismissed under sub-rule (1). The dismissal shall not, however, be set aside without giving notice to the defendant.

VIII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS, (J), MPSC (J), BJE, HJS, HARYANA JS ETC.]

1. *Short Notes:* Costs ordinarily follow the event [150 Words, RJS-1971]
2. What are the circumstances in which the plaintiff can be ordered to give security for payment of defendant's cost of the suit? Explain. [250 Words, RJS-1979]
3. How costs are imposed for causing delay? [20 Words, RJS-1994]
4. Explain and illustrate the rule that costs shall follow the event. Are there any exceptions to this rule? Discuss. [250 Words, BJE-1975]
5. *Short Notes:* Compensatory Costs [150 Words, BJE-1974]
6. Explain and illustrate the rule that costs shall follow the event. Are there any exceptions to this rule? Discuss. [250 Words, BJE-1980]
7. What are the circumstances in which the plaintiff can be ordered to give security for the payment of the defendant's cost of the suit? [250 Words, BJE-1978]
8. How interest is awarded in a Money Decree? [15 Words, RJS-1994]

Ram Singh

CHAPTER XXIX

SUIT BY OR AGAINST GOVERNMENT AND PUBLIC SERVANTS

[SECTIONS 79 - 82, ORDER 27]

Dear aspirant,

Sections 79 to 82 deal with substantive law relating to suit by or against Government and public servants. Order 27 deals with rules in such suits. In a suit by or against the Government, the authority to be named as plaintiff or defendant, as the case may be, shall be –

- a) in the case of a suit by or against Central Government, the Union of India, and
- b) in the case of a suit by or against a State Government, the State. [Section 79]

Section 80 (1), CPC provides that no suit can be filed, until expiration of two months next after notice in writing (stating the cause of action, the name, description and place of residence of the plaintiff and the relief which he claims) has been served to the Government. The plaint should contain a statement that a notice under Section 80, has been served on the Government failure to comply with this requirement will entail dismissal of the suit.

It may be noted that a suit instituted before the expiry of the two months of notice is liable to be rejected under Order 7. Further, if a suit instituted (after the notice period) is withdrawn with liberty to file a fresh suit, it is not necessary to give a fresh notice for the second suit. [*Amar Nath v. Union of India*, AIR 1963 SC]

In ordinary suits, the plaintiff before filing of the suit need not give notice to the defendant. Such notice, however, is a condition precedent before filing a suit against the government or against a public servant. However, against a public servant, notice is necessary only where the suit is in respect of "any act purporting to be done by such officer in his official capacity. Thus, where he insults or assaults his employees, no notice is needed; similar would be the case if at the time of institution of suit he has ceased to be a public officer. A public officer may be an official assignee/receiver/liquidator or trustee.

A suit against the Government can only be brought in the court within the local limits of whose jurisdiction the cause of action arose. The words "dwell" or "reside" or "carry on business" or "personally work for gain" which occur in Sections 16, 19 and 20 of the Code do not apply to the Government. Section 79 and 80 enact only the rules of procedure and do not in any manner affects the claims and liabilities enforceable by or against the Government. They are to be determined in accordance with the provisions of the constitution of India. [Articles 294 to 300]

Section 80 (2) provides that a suit may be instituted with the leave of the court for obtaining an "urgent or immediate relief" against the Government or public officer, without serving a statutory notice. But in such case, the court shall not grant any relief in the suit, except after giving to the government a reasonable opportunity of showing cause in respect of the relief prayed for in the suit. However, the courts have always deprecated such practice.

Order 27, Rule 1 lays down that in any suit by or against the government, the plaint shall be signed and verified by any person appointed by the government who is acquainted with the facts of the case. For the purpose of receiving summons/process, the government pleader is the agent of the Government [Rule 4]. Rule 5B casts a duty on the court in suits against government to assist in arriving at a settlement. The court shall exempt an officer from appearing in person if it is satisfied that he cannot absent himself from his duty without detriment to the public service. [Section 81]

A public officer shall not be liable to arrest, nor his property shall be liable to be attached otherwise than in execution of a decree [Rule 8]. No execution shall be issued on any decree passed against the government or a public officer unless it remains unsatisfied for 3 months from the date of decree. [Section 82]

This chapter is important for RJS, UPPCS (J), DJS, HJS, Hr. J. S., MPCJ and UAPCS (J). Generally, short answer type question is asked from this chapter. It is noticeable that this chapter is also important for interview.

Wishing you all the best,

Yours Sincerely,

RAHUL

Ranvish IAS

CHAPTER XXIX

SUIT BY OR AGAINST GOVERNMENT AND PUBLIC SERVANTS

[SECTIONS 79 - 82, ORDER 27]

SYNOPSIS

I. General

1. Substantive Law [Article 300]
 - a) Suit and proceedings [Article 300]
 - b) Comment
 - c) Form and cause
 - d) Extent of liability
 - e) Liability in tort
 - f) Liability in contract
2. Procedural Law [Sections 79 - 82, Order 27]
 - a) Title [Section 79]
 - b) Notice [Section 80]
 - c) Scope
 - d) Object of notice
 - f) Urgent or immediate relief [Section 80 (2)]
 - g) Exclusion of period of notice [Section 15 (2), Limitation Act, 1963]
 - h) Waiver of notice
 - i) Plaint
 - j) Suit may be for any civil relief
 - k) Procedure
 - l) Duty of court
 - m) Exemption from arrest and personal appearance [Section 81]
 - n) Execution of decree [Section 82]

II. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XXIX

SUIT BY OR AGAINST GOVERNMENT AND PUBLIC SERVANTS

[SECTIONS 79 - 82, ORDER 27]

I. GENERAL

This Chapter can be divided into two parts –

1. Substantive Law
2. Procedural Law

The Substantive Law is given in Articles 224 to 300 of the Constitution of India. Mainly, it is dealt with by Article 300 of Indian Constitution. The Procedural Law is laid down by Sections 79 to 82 and Order 27 of CPC.

1. Substantive Law [Article 300]

a) Suit and proceedings [Article 300]

- i) The Government of India may sue or be sued by the name of the Union of India and the Government of a State may sue or be sued by the name of the State and may, subject to any provisions which may be made by Act of Parliament or of the Legislature of such State enacted by virtue of powers conferred by this Constitution, sue or be sued in relation to their respective affairs in the like cases as the Dominion of India and the corresponding Provinces or the corresponding Indian States might have sued or been sued if this Constitution had not been enacted.
- ii) If at the commencement of this Constitution –
 - (a) any legal proceedings are pending to which the Dominion of India is a party, the Union of India shall be deemed to be substituted for the Dominion in those proceedings; and
 - (b) any legal proceedings are pending to which a Province or an Indian State is a party, the corresponding State shall be deemed to be substituted for the Province or the Indian State in those proceedings.

b) Comment

Article 300(1) consists of three parts. The first part deals with the question about the form and the cause title for a suit intended to be filed by or against the Government of India or the Government of a State. The second part provides, inter alia, that the Union of India or a State may sue or be sued in relation to its affairs in cases like those in which the Dominion of India or a corresponding if the Constitution had not been enacted. The third part provides that it would be competent to the Parliament or the Legislature of a State to make appropriate provisions in regard to the topic covered by Article 300(1)

c) Form and cause

The first part of Article 300 prescribes the way in which suits and proceedings by or against the Government may be instituted. It enacts that the Government of India may sue and be sued by the name of the Union of India, a State may sue and be sued by the name of the State. There is a difference between the "Government of India" and the "Union of India". The Government of India is not a legal entity, the Union of India is a legal entity, a corporate body which possesses rights and obligations. Likewise, each State has been endowed with juristic personality, with power to sue and the liability to be sued. Except as provided in Article 131, suits or proceedings by or against the Government or its officers will be brought in the ordinary courts of the land.

d) Extent of liability

The liability of the Dominion and the Provinces of India before the commencement of the present Constitution was described in Section 176 of the Government of India Act, 1935 as follows:

"The Federation may sue or be sued by the name of Federation of India and a Provincial Government may sue or be sued by the name of the Province, and, without

prejudice to the subsequent provisions of this chapter, may, subject to any provisions which may be made by the Act of the Federal or a Provincial Legislature enacted by virtue of powers conferred on that Legislature by this Act, sue or be sued in relation to their respective affairs in the like cases as the Secretary of State-in-Council might have sued or been sued if this Act had not have been passed."

Section 176, it will be noticed, instead of directly stating the liability, refers back to the legal position as it obtained before the enactment of that Act, that is to say, as it existed on the enactment of Section 32 of the Government of India Act, 1915. Sub-sections (1) and (2) of Section 32 were in these words:

- (i) The Secretary of State-in-Council may sue and be sued by the name of Secretary of State-in-Council, as a body corporate.
- ii) Every person shall have the same remedies against the Secretary of State-in-Council as he might have had against the East India Company, if the Government of India Act, 1858, and this Act had not been passed."

Accordingly, under Section 32, the remedies against the Secretary of State-in-Council shall be the same as against the East India Company, if the Government of India Act, 1858 and the Government of India Act, 1915 had not been passed. We are thus referred further back to the Act of 1858. This Act transferred the Government of India to Her Majesty and made provisions for succession of power, authority, rights and liabilities. Section 65 of the Act of 1858 which is relevant for our present purposes is in the following terms:

"The Secretary of State-in-Council shall and may sue and be sued as well in India as in England by the name of the Secretary of State-in-Council as a body corporate; and all persons and bodies politic shall and may have and take the same suits, remedies and proceedings, legal and equitable, against the Secretary of State-in-Council of India as they could have done against the said company, and the property and effects hereby vested in Her Majesty for the purposes of the Government of India, or acquired for the said purposes, shall be subject and liable to the same judgments and executions as they would while vested in the said company have been liable to in respect of debts and liabilities lawfully contracted and incurred by the said company."

It will thus be seen that by the chain of enactments beginning with the Act of 1858 the Government of India and the Government of each State are in the line of succession of the East India Company. In other words, the liability of the Government is the same as that of the East India Company before 1858. In every case, therefore, the question that has got to be answered is: Would such a suit lie against the East India Company, had the case arisen prior to 1858? This liability could be either tortious, contractual or otherwise. But in each case the same question had to be answered.

e) Liability in Tort

First, we shall consider the extent of vicarious liability of the Government for the tortious acts of its employees acting in the course of their employment as such. The question, therefore, is: What was the extent of liability of the East India Company for the tortious acts of its servants committed in the course of their employment as such? This important question arose before the Supreme Court of Calcutta in 1861 in the leading case of **P. & O. Steam Navigation Co. v. Secretary of State for India, (1861) 5 Bom HCR App. 1.**

The Supreme Court (Chief Justice Peacock, and Wells and Jackson, JJ.) delivered a very learned judgment through the Chief Justice. The court pointed out the principle of law that "the Secretary of State-in-Council of India is liable for the damages occasioned by the negligence of servants in the service of Government if the negligence is such as would render an ordinary employer liable".

There are observations in the judgment which suggest that the liability of the Government in that case arose because the act was done in the course of a non-sovereign functions, i.e. the maintenance of a dockyard was a function which could have been undertaken by any private person without any delegation of sovereign power and, therefore, the East India Company would have been held liable for the wrong complained of. On the other hand, if the act had arisen in the course of exercise of sovereign powers, there would have been no liability of the East India Company and so

of the Secretary of State for India-in-Council, its successor. Peacock, C. J. recognised the distinction between the sovereign and non-sovereign functions of the Government and said:

"There is a great and clear distinction between acts done in exercise of what are usually termed sovereign powers and acts done in the conduct of undertakings which might be carried on by private individuals without having such powers delegated to them."

and added, -

"Where an act is done, or a contract is entered into, in the exercise of powers usually called sovereign powers, by which we mean powers which cannot be lawfully exercised except by a sovereign, or private individual delegated by a sovereign to exercise them, no action will lie."

Again, in the judgment it was pointed out that the Company would not have been liable for any act done by its officers or soldiers in carrying on hostility or in seizing property as prize property or while engaged in military or naval action. In such cases, no action will lie for the negligence of their servants or officers "in navigating a river steamer or in repairing the same or in doing any act in connection with such repairs".

In view of the fact that in *P. & O. Steam Navigation Co. Case*, the plaintiff got relief on the principle that for the tortious acts of the government servants the Secretary of State-in-Council was as much liable as private employer for similar acts of his employees, the additional remarks of the Chief Justice could have very well been treated as obiter.

f) Liability in Contract

In regard to the contractual liability of the Government, the generally accepted view has been that the Government's contractual liability is the same as that of a private individual. In fact, Article 299 of the Constitution leaves no doubt that the contractual liability is the same as that of a private person.

The rule of English Law that a civil servant cannot maintain a suit against the Crown for the recovery of the arrears of salary does not prevail in India, and has been negated by the provisions of the statute law in India. What could be claimed in England by a Petition of Right can be claimed in this country by ordinary process.

2. Procedural Law [Sections 79 - 82, Order 27]

a) Title [Section 79]

In a suit by or against the government, the authority to be named as plaintiff or defendant, as the case may be, shall be -

- i) in the case of a suit by or against the Central Government, the Union of India; and
- ii) in the case of a suit by or against the State of Government, the State.

b) Notice [Section 80]

In ordinary suits, notice need not be given to the defendant by the plaintiff before filing of the suit. Such notice, however, is a condition precedent before filing a suit against the government or against a public servant in respect of any act purporting to be done by such public officer in his official capacity, except where an urgent or immediate relief is required to be obtained. And no suit can be filed, until expiration of two months next after such notice in writing which has to be delivered to, or left at the office of -

- i) in the case of a suit against the Central Government, except where it relates to railway, a Secretary to that government;
- ii) in the case of a suit against the Central Government where it relates to railway, the General Manager of that railway;
- iii) in the case of a suit against the Government of the State of Jammu and Kashmir, the Chief Secretary to that government or any other officer authorised by that government in this behalf;
- iv) in the case of a suit against any other State Government, a Secretary to that government of the Collector of the district; and
- v) in the case of a public officer, such public officer.

c) Scope

Sections 79 and 80 enact only the rules of procedure and do not in any manner affect the claims and liabilities enforceable by or against the government. They are to be determined in accordance with the provisions of the Constitution of India (Article 294 to 300).

Section 80 deals with two classes of cases:

- i) suits against governments; and
- ii) suits against public officers in respect of acts purporting to be done by those public officers in their official capacity.

With regard to the first class of cases, the notice must be given in all cases. But with regard to the second class of cases, notice is necessary only where the suit is in respect of any act purporting to be done by such public officer in his official capacity. The expression act also includes illegal omissions. Therefore, if the suit does not relate to any 'act' or 'illegal omission' purported to be done by a public officer in his official capacity, Section 80 will have no application and the notice is not necessary. For instance, if any public officer use any defamatory language or commits an act of assault, it would not amount to an act purporting to be done by him in his official capacity.

A public servant can only be said to act or purport to act in the discharge of his official duty, if his act is such as to lie within the scope of his official duty. If the act was one such as it ordinarily done by the officer in the course of his official duties, and he considers himself to be acting as a public officer and desired other persons to consider that he was so acting, the act clearly purports to be done in his official capacity. **[Dr. Bishambar Sahai Gupta v. Shambhu Dayal, 1930 A 704]** Two conditions are clearly necessary for the section to apply: (1) he must be a public officer; and (2) he must purport to act in his official capacity **[Gill v. The King, 75 IA 41]**.

A public servant can only be said to purport to act in the discharge of his official duty, if his act is such as to lie within the scope of his official duty. A kick administered by him is not an act which lies within the sphere of his official duty **[Vishnu v. Smith Pearce, I. L. R. (1949) Nag 232]**.

d) Object of Notice

The object of notice is to give the government or the public servant concerned, an opportunity to reconsider its or his legal position and, if that course is justified, to make amendments or settle the claim out of court. It is intended to alert the government to negotiate a just settlement or at least have the courtesy to tell the aggrieved person why the claim is being resisted.

Bhopar Ramendra Singh v. State of Madhya Pradesh, 1970 (1) SCJ 118

The object of the notice under Section 80, CPC, is to give to the Government or the public servant concerned an opportunity to reconsider its or his legal position and if that course is justified to make amends or settle the claim out of court. The section is no doubt imperative for the plaintiff to serve notice complying with the requirements of the statute. Failure to do so will entail dismissal of the suit. But the notice must be reasonably construed. Any unimportant error or defect cannot be permitted to be treated as an excuse for defeating a just claim. In considering whether the provisions of the statute are complied with the court must take into consideration the following matters in each case: (1) whether the name, description and residence of the plaintiff are given so as to enable the authorities to identify the person serving the notice; (2) whether the cause of action and the relief which the plaintiff claims are set out with sufficient particularity; (3) whether a notice in writing has been delivered to or left at the office of the appropriate authority mentioned in the section; and (4) whether the suit is instituted after the expiration of two months next after notice has been served, and the plaintiff contains a statement that such a notice has been delivered or left. In construing the notice the court cannot ignore the object of the Legislature, viz, to give to the Government or public servant concerned an opportunity to reconsider its or his legal position. If on a reasonable reading of the notice the plaintiff is shown to have given the information which the State requires him to give, any incidental defects or irregularities should be ignored. It is true that terms of Section 80, CPC must be strictly complied with but that does not mean that the terms of the notice should be scrutinised in an artificial or pedantic manner.

f) Urgent or immediate relief [Section 80 (2)]

Sub-section (3) of Section 80 has been added by the Amendment Act of 1976 with a view to ensuring that the just claims of aggrieved persons should not be defeated on technical grounds. It, therefore, enacts that the suit against the government or public officers shall not be dismissed merely by any technical defect or error in notice or any irregularity in the service thereof.

g) Exclusion of period of notice [Section 15 (2), Limitation Act, 1963]

In computing the period of limitation for instituting the suit, the period of notice under Section 80 must be excluded.

h) Waiver of Notice

A notice under Section 80 is given for the benefit of the defendant and there is nothing to prevent him from waiving it.

i) Complaint

The complaint must be filed after the expiration of two months of notice, and it shall contain a statement that the notice as required by Section 80 has been so delivered or left as required. If the complaint does not contain this statement, it would be the duty of the court to reject it.

j) Suit may be for any civil relief

Section 80 as it stands applies to all suits, whether they are suits for declaration or suits for injunction, mandatory or prohibitory, and suits for damages. The expression "act purporting to be done" takes in past as well as future acts. The expression "in respect of" is of very wide amplitude as the contemplated suit may be for any relief which flowed from the allegations in the complaint, but the suit must have relation to or must have reference to an act purporting to be done by a public officer in his official capacity. If the allegations in the complaint relate to acts purporting to be done by such public officer, whatever the relief may be that is prayed for, the section is attracted and the notice is mandatory. In the case of a threatened injury which is sought to be restrained by an injunction, it is difficult to imagine a complaint which does not contain allegations on which the fear of the threat complained of could be justified. Hence, in a suit where there is prayer for declaration and for injunction, a notice under section 80 is necessary.

k) Procedure

In any suit by or against the government, the complaint or written statement shall be signed by such person as the Government may, by general or special order, appoint in this behalf and shall be verified by any person whom the Government may so appoint and who is acquainted with the facts of the case (O. 27, r. 1).

In suits by or against the Government, instead of inserting in the complaint the name and description and place of residence of the plaintiff or defendant, it shall be sufficient to insert the appropriate name as provided in section 79 (O. 27, r. 3).

The Government pleader in any court shall be the agent of the Government for the purpose of receiving processes against the Government issued by such court (O. 27, r. 4).

The court, in fixing the day for the Government to answer to the complaint, shall allow a reasonable time for the necessary communication with the Govt through the proper channel, and for the issue of instruction to the Government pleader to appear and answer on behalf of the Government, and may extend the time at its discretion but the time so extended shall not exceed two months in the aggregate (O. 27, r. 5).

Where a suit is instituted against a public officer for damages or other relief in respect of any act alleged to have been done by him in his official capacity, the Government shall be joined as a party to the suit (O. 27, r. 5-A).

l) Duty of Court

In every suit or proceeding to which the Government, or a public officer acting in his official capacity, is a party, it shall be the duty of the court to make, in the first instance, every endeavour, where it is possible to do so consistently with the nature and circumstances of the case, to assist the parties in arriving at a settlement, in respect of

the subject-matter of the suit. If in any such suit or proceeding at any stage, it appears to the court that there is a reasonable possibility of a settlement between the parties, the court may adjourn the proceeding for such period as it thinks fit, to enable attempts to be made to effect such a settlement (O. 27, r. 5-B).

m) Exemption from arrest and personal appearance [Section 81]

In a suit instituted against a public officer in respect of any act purporting to be done by him in his official capacity –

- i) the defendant shall not be liable to arrest nor his property to attachment otherwise than in execution of a decree, and
- ii) where the court is satisfied that the defendant cannot absent himself from his duty without detriment to the public service, it shall exempt him from appearing in person.

n) Execution of Decree [Section 82]

- i) Where in a suit be or against the government or by or against a public officer in respect of any act purporting to be done by him in his official capacity, a decree is passed against the Union of India or a State, or, as the case may be, the public officer, such decree shall not be executed except in accordance with the provisions of sub-section (2).
- ii) Execution shall not be issued on any such decree unless it remains unsatisfied for the period of three months computed from the date of such decree.
- iii) These provisions of sub-sections (1) and (2) shall apply in relation to an order or award as they apply in relation to a decree if the order or award –
 - (a) is passed or made against the Union of India or a State or a public officer in respect of any such act as aforesaid, whether by a court or by any other authority, and
 - (b) is capable of being executed under the provisions of this Code or of any other law for the time being in force as if it were a decree.

II. QUESTIONS OF PREVIOUS YEARS' EXAM – [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

- 1. Discuss the provisions of the Civil Procedure Code with regard to suit against Government and its officials. **[150 Words, UPPCS (J)-1987]**
- 2. Explanatory Notes: Suit by or Against Government **[150 Words, HJS-2003]**

CHAPTER XXX
SUIT BY OR AGAINST PARTNERSHIP FIRM
[ORDER 30]

Dear aspirant,

The procedural law relating to suits by or against Partnership Firm is laid down in Order 30 CPC but the substantive law is dealt under Section 69 of the Indian Partnership Act, 1932. The study of both the provision is necessary for grasping the subject completely.

Under Order 30, Rule 1, two or more persons claiming or being liable as partners and carrying on business in India may sue or be sued in the firm name; the pleading may be signed and verified by any one of the partners. Any party to the suit may apply to the Court for a statement of the names and addresses of partners. It may be noted that Rule 1 is permissive and does not affect the right of the plaintiff to implead all the partners. This privilege is, however, not extended to persons who are doing business as partners outside India. In their case, they have to sue in their individual names.

Rule 2 enables the defendant to ask for the disclosure of the names of the partners where the suit is filed by the partners in the firm's name; if the plaintiffs so fail to declare, the Court may stay the suit.

The summons are to be served upon any one or more of the partners; or at the principal place at which the firm's business is carried on; upon any person having the control or management of the business, as the Court may direct [Rule 3].

If any of the partners dies before filing or during the pendency of the suit, it is not necessary to join his legal representative as a party to the suit. However a legal representative may apply to be made a party to the suit or to enforce any claim [Rule 4].

Rule 5 provides that a notice is to be served along with summons to inform whether the summons is served as a partner or manager or in both capacities. In the absence of any notice, the person served is to be deemed to be served as a partner.

A person having the control or management of firm's business need not appear in the Court, unless he is a partner. Rule 8, i.e. a partner may appear and deny that he was partner at any material time. If the Court holds that he was not a partner, the plaintiff can proceed with the suit, but such a person cannot be made liable as a partner.

Rule 30 applies also the suits between a firm and one or more of its partners and to suits between firms having one or more partners in common. No execution, however, can be issued in such suits without the leave of the Court. It may be noted that Order 20, Rule 15 provides for passing of preliminary decree by the Court before passing a final decree in a suit for dissolution of Partnership firm or taking dissolution of Partnership firm or taking accounts. Further, Order 21, Rule 49-50 provide for execution of a decree against a firm and for attachment of Partnership Property.

This Chapter is not important for examination point of view but its substantive law i.e. Section 69 of the Indian Partnership Act, 1932 which deals with the effects of non-registration of firm is most important. Any objective type question in preliminary Judicial Examination may be asked so please study this chapter for General Knowledge only.

Wishing you all the best,

Yours Sincerely

RAHUL

CHAPTER XXX
SUIT BY OR AGAINST PARTNERSHIP FIRM
[ORDER 30]
SYNOPSIS

- I. Introduction**
 - II. Suit by or Against Partners: Rule 1, Order 30**
 - III. Service of Summons: Rule 3**
 - IV. Appearance by Partners: Rule 6-8**
 - V. Suit between Co-Partners: Rule 9**
 - VI. Suit against Persons carrying on business in names other than their own: Rule 10**
 - VII. Decree in Partnership Suits**
 - VIII. Execution of Decree against Firm**
 - IX. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]**
-

Ram

CHAPTER XXX

SUIT BY OR AGAINST PARTNERSHIP FIRM

[ORDER 30]

I. INTRODUCTION

The procedure relating to the suits by or against firms is given in Order 30 of the Code of Civil Procedure, 1908. But the substantive law is laid down in Section 69 of the Indian Partnership Act, 1932. Section 69 deals with the effect of Non-registration of firm. It states

- i) A partner of an unregistered firm cannot sue the firm or his present or past co-partners for the enforcement of any right arising from a contract or conferred by the Partnership Act. Only a partner of a registered firm whose name appears in registration can sue for the enforcement of such rights [Section 69 (1), IPA, 1932].
- ii) An unregistered firm cannot sue any third party for the enforcement of any right arising from contract. A suit can be brought only by or on behalf of a registered firm and that also by persons whose names appear as partners in the register of firms [Section 69(2)].
- iii) The above two disabilities also apply to a claim of set-off or other proceedings to enforce a right arising from a contract [Section 69 (3)].

Section 69 admits of the following exceptions of the above mentioned general rule of non-registration:

- i) An unregistered firm and its partners can bring an action for the dissolution of the firm or for accounts of a dissolved firm.
- ii) The official assignee, receiver or Court acting for the insolvent partner may bring an action for realization of the insolvent's share, whether the firm was registered or not.
- iii) An unregistered firm or its partners may sue or claim a set off where the subject matter of the suit does not exceed Rs. 100/- in value.
- iv) Statutory and non-contractual rights are outside the scope of the disability inflicted by Section 69 of Indian Partnership Act, 1932 (IPA, 1932).
- v) Third Parties can always sue a firm whether registered or not. The disability is that of the firm and not of persons outside it.

Registration of firms is not compulsory. It is optional and there is no penalty for non-registration. Yet registration becomes necessary at one time or the other, because Section 69 seriously cuts short the capacity of an unregistered firm and its partners to sue. The disabilities imposed by Sections 69(1), 69(2) and 69(3) may be removed by getting the firm registered before an action is brought.

II. SUIT BY OR AGAINST PARTNERS: RULE 1, ORDER 30

Two or more persons claiming or being liable as partners and carrying on business in India may sue or be sued in the name of the firm of which they were partners when the cause of action accrued. Any party to a suit may, in such a case, apply to the Court for a statement of the names and addresses of the persons, who were, at the time of the accrual of the cause of action, partners in such firm. In a suit by or against a firm any pleading may be signed and verified by any one of the partners. Rule 2 enables the defendant to ask for the disclosure of the names of the partners where the suit is filed by the partners in the name of the firm. If any of the partners dies before filing or during the pendency of the suit, it is not necessary to join his legal representative as a party to the suit.

III. SERVICE OF SUMMONS: RULE 3

Rule 3 provides for service of summons upon the firm and the partners. Rule 5 lays down that when a summons is issued to a firm under Rule 3, every person served shall be informed by notice whether he is served as a partner or as a person having control or management of the partnership business, or in both capacities. In the absence of such notice, the person shall be deemed to be served as a partner.

IV. APPEARANCE BY PARTNERS: RULE 6-8

The defendant-partners shall appear individually in their own names. All subsequent proceedings, however, shall continue in the name of the firm. If a notice is served upon a person having the control or management over the partnership business, he need not appear unless he is a partner. Rule 8 enables a person who is served with a summons as a partner to appear under protest and deny that he was a partner at the material time and have the issue as to his being a partner tried at the trial. If the Court holds that he was a partner at the material time, it does not preclude him from denying the liability of the firm. On the other hand, if the Court holds that he was not a partner of the firm and is not liable as such, it does not preclude the plaintiff from serving a summons on the firm and proceeding with the suit.

V. SUIT BETWEEN CO-PARTNERS: RULE 9

Order 30 applies also to suits between a firm and one or more of its partners therein and to suits between firms having one or more partners in common. No execution, however, can be issued in such suits except with the leave of the Court.

VI. SUIT AGAINST PERSONS CARRYING ON BUSINESS IN NAMES OTHER THAN THEIR OWN: RULE 10

Any person carrying on business in a name or style other than his own name, or a Hindu undivided family carrying on business under any name, may be sued in such name or style as if it were a firm name, and insofar as the nature of such case permits, all rules under Order 30 shall apply accordingly.

VII. DECREE IN PARTNERSHIP SUITS

Order 20, Rule 15 of the Code provides for passing of a preliminary decree by the Court before passing a final decree in a suit for dissolution of partnership or taking of partnership accounts.

VIII. EXECUTION OF DECREE AGAINST FIRM

Order 21, Rules 49 and 50 provide for execution of a decree against a firm and for attachment of partnership property.

IX. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. What is the procedure prescribed for suit by or against a firm? [150 Words, UPPCS(J)-1983, HJS-2000]

Raw

CHAPTER XXXI

SUIT BY OR AGAINST MINORS AND LUNATICS

[ORDER 32]

Dear aspirant,

Order 32 prescribes the procedure of suits to which minors or person of unsound mind are parties. Order 32 has been specially enacted to protect the interest of minors and persons of unsound mind and to ensure that they are represented in a suit or proceedings by a person who is qualified to act as such. A decree passed against a minor or a lunatic without appointment of a guardian is a nullity and is void and not merely voidable.

Every suit by minor shall be instituted in his name by his next friend. Rule 3 lays down that where the defendant is a minor, the Court shall appoint proper person to be guardian for the suit, called *Guardian Ad litem* for such minor. Any person can be a next friend or a guardian of a minor if:

- i) he is of sound mind;
- ii) he is major;
- iii) his interest is not adverse to that of the minor;
- iv) he is not the opposite party in the suit; and
- v) he gives his consent in writing.

Rules 6 and 7 provides that no next friend or guardian for the suit shall, without the leave of the Court:

- i) receive any money or other movable property on behalf of a minor either by way of compromise before decree or order in favour of minor.
- ii) enter into an agreement or compromise on behalf of a minor with reference to the suit, unless such leave is expressly recorded in the proceedings. Any compromise entered into without the leave of the Court shall be voidable against all the parties other than the minor. Therefore, it is good unless the minor during the pendency of a suit against hostile, negligent or collusive acts of a guardian.

A next friend cannot retire without first procuring a fit person to be put in his place and giving security for the costs already incurred. The Court may remove a next friend and a guardian in certain circumstances enumerated in Rules 9 and 10 of Order 32 on the retirement, removal or death of next friend, further proceedings shall be stayed until another next friend is appointed under Rule 10 of Order 32.

Rule 3A lays down that no decree passed against a minor shall be set aside merely on the ground that the next friend or guardian for the suit of the minor had an interest in the subject matter of the suit adverse to that of minor. But if the minor is prejudiced by reason of such adverse interest, it shall be a ground for setting aside the decree. On attaining majority, a minor plaintiff may adopt any of the courses enumerated in Rules 12-14 of Order 32.

It is noticeable where no proper guardian is appointed in a suit in which some of the defendants are minors, the whole proceedings are void, but as mere absence of formal order appointing a guardian when all necessary steps were taken will amount only to an irregularity and will not invalidate the whole proceedings.

This Chapter is not much important for main Judicial Examinations but short answer type questions can be asked from this Chapter. For Preliminary Judicial Examination it is an important Chapter.

Wishing you all the best,

Yours Sincerely

RAHUL

CHAPTER XXXI
SUIT BY OR AGAINST MINORS AND LUNATICS
[ORDER 32]
SYNOPSIS

- I. Introduction: Order 32**
- II. Who is a Minor? [Section 3, Indian Majority Act, 1875]**
- III. Next Friend or *Guardian Ad litem***
 1. Appointment
 2. Qualification
 3. Procedure
 4. Rights and Liabilities
 5. Retirement, Removal or Death
- IV. Decree Against Minor**
- V. When Minor Attains Majority [Rules 12-14]**
- VI. Persons of unsound Mind [Rule 15]**
- VII. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]**

CHAPTER XXXI

SUIT BY OR AGAINST MINORS AND LUNATICS

[ORDER 32]

I. INTRODUCTION: ORDER 32

Order 32 has been specially enacted to protect the interest of minors and lunatics (persons of unsound mind) and to ensure that they are represented in a suit or proceeding by a person who is qualified to act as such. Owing to his want of capacity and judgment, a minor/lunatic is disabled from binding himself except where it is for his benefit. Thus the law will, as a general principle, treat all acts of an infant which are for his benefit on the same footing as that of an adult, but will not permit him to do anything prejudicial to his own interests. Thus, a decree passed in favour of a minor/lunatic without appointment of a guardian is not nullity, but a decree passed against a minor/lunatic without appointment of a guardian is a nullity.

It may be noted that the purpose and scope of inquiry under Order 32 is limited to give 'proper representation' to the plaintiff who is a minor or insane at the time of suing. The scope of inquiry has to be limited only for the procedural purpose i.e. to give proper representation to the plaintiff if he is found to be insane or minor on the date when the suit was instituted. Any order passed under Order 32 does not finally decide as to whether the plaintiff was insane or minor at the time when the transactions attacked in the suit were entered into by him. That is a matter which has to be decided in the suit itself.

II. WHO IS A MINOR? [SECTION 3, INDIAN MAJORITY ACT, 1875]

'Minor' is a person who has not completed the age of 18 years, and in the case of a minor of whose person or property a guardian has been appointed by a Court or whose property is under a Court of Wards, the age of majority is completion of 21 years.

III. NEXT FRIEND OR GUARDIAN AD LITEM

1. Appointment

Every suit by a minor shall be instituted in his name by his 'next friend' (Rule 1). If such suit is filed by or on behalf of a minor (plaintiff) without a next friend, on application being made by the defendant, the plaint will be taken off the file (Rule 2). Under Rule 2-A, the Court has the power to order the next friend to furnish security for costs of the defendant. The object is to discourage vexatious litigations by the next friend of the minor.

Rule 3 lays down that where the defendant is a minor, the Court shall appoint a proper person to be 'guardian' for the suit, called *guardian ad litem* for such minor. Such order may be obtained upon an application on behalf of the minor or by the plaintiff supported by affidavit that the proposed guardian is a fit person and has no interest in the suit adverse to that of the minor.

Qualification

Any person can be a next friend or a guardian or a minor, if (i) he is of sound mind, (ii) major, (iii) his interest is not adverse to that of the minor, (iv) he is not the opposite party in the suit, and (v) gives consent in writing (Rule 4).

In the interest of minor the court may permit a person other than the certified guardian to act for the minor. In the absence of a fit and willing person to act as a guardian, the Court may appoint any of its officers to be such guardian (Rule 4).

3. Procedure

Every application to the Court on behalf of a minor, other than an application for the appointment of a new next friend, should be made by his next friend or guardian. Any order made in a suit or an application made without the minor being presented by a next friend or guardian does not bind him, and such order is liable to be discharged (Rule 5).

4. Rights and Liabilities

In all suits to which any person under disability is a party, any consent or agreement to a proceeding shall, if given or made with the express leave of the Court by the next

friend/guardian for the suit, be valid and binding on the minor (*Section 147*). But he has no power without the leave of the Court, expressly recorded in the proceedings, to enter into any such agreement or compromise on behalf of a minor with reference to the suit in which he acts as next friend/guardian (*Rule 7*).

Similarly, a next friend/guardian shall not, without the leave of the Court receive any money or other movable property on behalf of a minor either by way of compromise before decree or order, or under a decree or order in favour of the minor (*Rule 6*). But there is nothing in this rule to prevent the father or the *karta* of a Hindu Family to receive money before or after the decree on behalf of a minor unless the father/*karta* is appointed guardian.

An order under these rules has to be passed by the Court after carefully considering the facts and the interest of the minor; the order should show that the Court had applied its mind to the question whether the compromise was or was not for the minor's benefit. Any compromise entered into without the leave of the Court shall be *voidable* against all parties other than the minor. Therefore, it is good unless the minor chooses to avoid it. But once it is avoided by a minor, it ceases to be effective as regards the other parties also [*Kaushalya Devi v. Baijanth AIR 1961 SC 790*].

Rule 6 and 7 are designed to safeguard the interest of a minor during the pendency of a suit against hostile, negligent or collusive acts of a guardian. They are based upon the general principle that an in fact litigant becomes the ward of the Court and the Court has got the right/duty to see that the guardians act properly and *bona fide* in the interests of the minors [*Dhirendra Kumar v. Sugandhini Bain AIR 1989 SC 147*].

The onus of proving fraud or negligence on the part of the next friend or guardian would be upon the minor [*Sant Bhushan Lal v. Brij Bhushan Lal AIR 1967 Del 137*].

5. Retirement, Removal or Death

A next friend cannot retire without first procuring a fit person to be put in his place and giving security for the costs already incurred (*Rule 8*). The Court may remove a next friend if (i) his interest is adverse to that of a minor, or (ii) he is so connected with the defendant as to make it unlikely that the minor's interest will be properly protected by him, or (iii) he does not do his duty, or (iv) he ceases to reside within India during the pendency of suit, or (v) for any other sufficient cause (*Rule 9*). On the retirement, removal or death of a next friend, further proceedings shall be stayed until another next friend is appointed (*Rule 10*).

A person appointed to be a guardian shall, unless the appointment is terminated by retirement, removal or death, continue as such throughout all proceedings arising out of the suit including proceedings in any appellate/revisorial Court and any proceeding in the execution of a decree. Where the guardian desires to retire or does not do his duty, or where other sufficient ground is made to appear, the Court may permit such guardian to retire or may remove him, and shall appoint a new guardian in his place if the suit is pending (*Rule 11*).

IV. DECREE AGAINST MINOR

Rule 3 – A lays down that no decree passed against a minor shall be set aside merely on the ground that the next friend or guardian for the suit of the minor had an interest in the subject matter of the suit adverse to that of minor. But if the minor is prejudiced by reasons of such adverse interest, it shall be a ground for setting aside the decree.

A decree passed against a minor or a lunatic without appointment of a guardian is a nullity and is void and not merely voidable [*Ram Chandra v. Man Singh AIR 1968 SC 954*]. This view was affirmed in *Sheo Baran Singh v. Tej Singh* (1992 Revenue Judgement, p. 115). Though a decree obtained against a minor without there being a guardian for him is nullity, yet there is no authority for the proposition that an appeal against a minor without a proper guardian is an incompetent appeal filed or a suit against a minor without showing a guardian for the minor is an incompetent suit [*Laxman Karan v. Bansidhar, 1960 ALJ 423*].

A decree passed in favour of a minor without a next friend is only an irregularity which is deemed to be waived by the defendant if he does not apply to have the plaint taken off the file under Order 32, Rule 2. The decree is consequently valid [*Raja Ram v. Naveen Chand, 1995 (13) LDC 622*].

Where no proper guardian is appointed in a suit in which some of the defendants are minors, the whole proceedings are void. But a mere absence of formal order appointing a guardian when all necessary steps were taken will amount only to an irregularity and will not invalidate the whole proceedings.

A decree obtained against a person treating him as a minor while in reality he was a major at the date thereof is not a nullity, but is only an irregularity which is curable. But a decree against a minor treating him as a major is a nullity.

A decree passed against a person, who was a minor at the date of the institution of the suit with a properly appointed guardian but attains majority during the pendency of the suit without any steps being taken to remove such guardian with the result that the decree is passed against him as a minor, is a valid decree as the guardian does not automatically cease to function on the minor attaining majority, but continues to represent him throughout all proceedings.

In case of a decree against a minor, the minor can file a suit to set aside the decree if there is a gross negligence on the part of his next friend or guardian [*Ashari Lal v. Smt. Koili* AIR 1995 SC 440].

V. WHEN MINOR ATTAINS MAJORITY [RULES 12-14]

On attaining the age of majority, a minor plaintiff may adopt any of the following courses:

- i) He may proceed with the suit. In that case he shall apply for an order discharging the next friend and for leave to proceed in his own name., the title of the suit will be corrected so as to read henceforth thus –

"A. B., late minor, by C.D., his next friend, but now having attained majority".

- ii) He may abandon the suit and apply for its dismissal on repayment of costs to the defendant or to his next friend.
- iii) He may apply for the dismissal of the suit on the ground that it was unreasonable or improper. If the Court is satisfied of such unreasonableness or impropriety it may grant the application and order the next friend to pay the costs of all parties or make such other order as it thinks fit.
- iv) Where he is a co-plaintiff, he may repudiate the suit and may apply to have his name struck off as co-plaintiff. If the Court finds that he is not a necessary party, it may dismiss him from the suit. But if he is a necessary party, the Court may make him a defendant.

VI. PERSONS OF UNSOUND MIND [RULE 15]

All the above rules (except Rule 2 A) equally extends to persons adjudged to be of unsound mind or who, though not so adjudged, are on inquiry, found by the Court, by reason of mental infirmity incapable of protecting their interest when suing or being sued.

Lunatics are under the special protection of the Court and the decree will not be effective even if by ignorance of the Court no enquiry was made. A person who is not of unsound mind may yet be "mentally infirm" within the meaning of Order 32, Rule 15, if by reason of a physical ailment such as paralysis he has been rendered so weak and helpless that his mental outfit is by no means the outfit of a normal and healthy man [*Ram Lal v. Laxmi* AIR 1940 Ajmer 48].

VII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. What safeguards have been provided by the Code of Civil Procedure for the protection of the rights and interests of parties in a Civil Suit who are either minors or persons of unsound mind?

In a suit filed by a person against a number of defendants, some of whom are minors, a compromise was effected between the plaintiff and the major defendants and a decree was obtained on the basis of such compromise, adversely affecting the right and the property of the minors. Would such a decree be enforceable against (a) the minor defendants, (b) the other defendants? What difference would be caused if the guardian of minor defendants also was a party to the compromise. [500 Words, RJS-1975]

2. What is meant by guardian-ad-litem? [20 Words, RJS-1992]

3. Where the plaintiff is a minor, then on the retirement, removal or death of his next friend, will the proceedings be stayed, until the appointment of a next friend in his place. [250 Words, BJE-1987]

CHAPTER XXII
INTERPLEADER SUIT
[SECTION 88, ORDER 35]

Dear aspirant,

An interpleader suit is one in which the real dispute is with the defendants only and the defendants interplead (i.e. plead against each other), instead of pleading against the plaintiff as in an ordinary suit. The plaintiff is not really interested in the matter. In fact, each of the defendant so interpleading is virtually in the position of a plaintiff. Section 88 and Order 35 deals with such suits.

Section 88 lays down that where two or more persons claim adversely to one another the same debt, sum of money or other property movable or immovable from another person who does not claim any interest in it except the charges of costs and is ready to pay or deliver it to the rightful claimant, such person may file an interpleader suit. However, there must be no suit pending in which the rights of the rival claimants can be properly decided. This principle can be explained with the help of following illustration:

P is in possession of a jewel box, wherein he claims no interest himself, and is ready and willingly to hand over to the rightful owner. The box is claimed by A and B. P may file an interpleader suit against A and B, and the Court will decide as to who is the rightful owner as between A and B.

Order 35, Rule 1 lays down that in every interpleader suit, the plaintiff must also state:

- a) that the plaintiff claims no interest in the subject matter in dispute, other than for charges or
- b) that the claims made by the defendants severally, and
- c) that there is no collusion between the plaintiff and any of the defendants.

Thus the plaintiff must be in impartial position. An illustration may be cited in this respect: X has a sum of Rs. 10,000/- which sum is claimed from him both by Y and Z, adversely to each other. X entered into an agreement with Y, before the institution of suit, that if Y succeeded in the suit, he should accept from X Rs. 7,500/- only in full satisfaction of his claim. Because Z has an interest in the subject matter of suit, he is not entitled to institute an interpleader suit.

The Court may order the plaintiff to place the thing claimed in the custody of the Court and provide his costs by giving him a charge on the claimed [Rules 2,6]. Where any of the defendants in an interpleader suit files a suit against the plaintiff in another Court in respect of the subject matter of the suit, that Court shall stay the proceedings [Rule 3]. At the first hearing, the Court may declare that the plaintiff is discharged from all liability, award him his costs and dismiss him from the suit; or if it thinks that justice or convenience so requires, retain all parties until the final disposal of the suit. If necessary, the Court may direct that an issue or issues be framed and tried and that any claimant be made a plaintiff in lieu of or in addition to the original plaintiff [Rule 4].

An agent cannot sue his principal or a tenant his landlord for the purpose of compelling them to interplead with persons other than persons claiming through such principals or landlords [Rule 5].

This Chapter is most important for RJS, UPPCS (J) and Bihar Judicial Examination. Following questions should be prepared from this Chapter:

- i) Basic characteristics of an interpleader suit.
- ii) Essentials of an interpleader suit
- iii) Explanatory notes on interpleader suit.

Wishing you all the best,

Yours Sincerely
RAHUL

INTERPLEADER SUIT

[SECTION 88, ORDER 35]

SYNOPSIS

I. Meaning

II. Nature and Scope

III. Object

IV. Conditions: [Section 88]

V. Test

VI. Procedure: [Order 35, Rule 1-4]

VII. Who cannot File Interpleader Suit: [Rule 5]

VIII. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPSC (J), BJE, HJS, Haryana JS etc.]

Ranvix IAS

INTERPLEADER SUIT

[SECTION 88, ORDER 35]

I. MEANING

"To interplead" means "to litigate with each other to settle a point concerning a third party". In *Halsbury's Laws of England*, it has been stated:

"Where a person is under liability in respect of a debt or in respect of any money, goods or chattels and he is, or expects to be, sued for or in respect of that debt or money, or those goods or chattels, by two or more persons making adverse claims thereto, he may apply to the Court for relief by way of interpleader."

II. NATURE AND SCOPE

An interpleader suit is a suit in which the real dispute is not between a plaintiff and a defendant but between the defendants who interplead against each other, unlike in an ordinary suit. In a majority of cases, there is a dispute between a plaintiff and a defendant. In an interpleader suit, the plaintiff is not really interested in the subject matter of the suit. Section 88 of the Code enacts that two or more persons claiming adversely to one another the same debt, sum of money or other property, movable or immovable, from a person who does not claim any interest therein except the charges and costs incurred by him and is ready to pay or deliver the same to the rightful claimant, may file an interpleader suit.

III. OBJECT

The primary object of filing an interpleader suit is to get claims of rival defendants adjudicated. It is the process wherein the plaintiff calls upon the rival claimants to appear before the Court and get their respective claims decided. The decision of the Court in an interpleader suit affords indemnity to the plaintiff on payment of money or delivery of property to the person whose claim has been upheld by the Court.

IV. CONDITIONS: [SECTION 88]

Before an interpleader suit can be instituted, the following conditions must be satisfied:

- i) There must be claiming it adversely to one another;
- ii) Two or more persons must be claiming it adversely to one another;
- iii) the person from whom such debt, money or property is claimed must not be claiming interest therein other than the charges and costs and he must be ready and willing to pay or deliver it to the rightful claimant; and
- iv) There must be no suit pending wherein the rights of rival claimants can be properly adjudicated.

V. TEST

In order to decide whether a suit is in the nature of an interpleader suit, the Court must have regard to all the prayers in the plaint. A suit does not become an interpleader suit merely because the plaintiff requires the defendants to interplead with each other as regards one of the prayers in the plaint.

VI. PROCEDURE: [ORDER 35, RULES 1-4]

Order 35 lays down the procedure for interpleader suits. In every interpleader suit, in addition to other statements, the plaint also must state (i) that the plaintiff claims no interest in the subject-matter in dispute other than the charges and costs; (ii) the claims have been made by the defendants severally; and (iii) there is no collusion between the plaintiff and any of the defendants. The Court may order the plaintiff to deposit the amount or place the property in the custody of the Court and provide costs incurred by him by giving him a charge on the thing claimed. At the first hearing, the Court may declare that the plaintiff is discharged from all liability, award him costs and dismiss him from the suit. On the basis of evidence available, the Court may also adjudicate the title to the thing claimed. Where it is not possible, the Court may direct

that an issue or issues between the parties be framed and tried, one of the claimants be made a plaintiff in lieu of or in addition to the original plaintiff and the suit shall proceed in an ordinary manner.

VII. WHO CANNOT FILE INTERPLEADER SUIT: [RULE 5]

An agent cannot sue his principal or a tenant his landlord for the purpose of compelling them to interplead with persons other than persons claiming through such principals or landlords. The reason for the rule seems to be that ordinarily an agent cannot dispute the title of his principal. Likewise, a tenant cannot dispute the title of his landlord during the subsistence of the tenancy.

VIII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Setting out your own facts draw up a plaint and a written statement in an interpleader suit and write a short judgment? **[600 Words, RJS-1970]**
2. What is an interpleader suit? **[50 Words, RJS-1992]**
3. What is an interpleader suit? When and by whom can it be instituted? **[150 Words, UPPCS(J)-1984, 1985]**
4. Explain with illustration, the basic characteristics of an 'interpleader suit'. **[150 Words, UPPCS(J)-1997]**
5. a) What are the essentials of an Interpleader Suit? Discuss.
b) i) X lets out certain lands to Y. A alleges that the lands never belonged to X and claims rent from Y. Y institutes an interpleader Suit against A and X. Will it lie?
ii) X deposits ornaments with Y as his agent. He then writes to A for making ornaments as security for a debt due from himself to A. X afterwards alleges that A's debt is satisfied but X. A refuses it. Both claim ornaments from Y. Does an interpleader suit lie on behalf of Y.
[500 Words, BJE-1984]
6. Short Notes: Interpleader Suit **[200 Words, BJE-1975, 1977, 1980, 1987, RJS-1974 & 1986]**
7. What is an interpleader suit? When and by whom can it be instituted? **[200 Words, MPPCS (Mains)-1998]**

CHAPTER XXXIII
SUITS BY INDIGENT PERSONS
[PAUPER SUITS]
[ORDER 33]

Dear aspirant,

Order 33 is intended to enable the indigent persons (or paupers) to institute and prosecute suits without payment of Court fees. An indigent person is allowed to prosecute any suit in forma pauperis, provided he satisfies certain conditions. The Court also has inherent power to allow a defendant to defend in forma pauperis. An indigent person who is minor may sue through a next friend, although the latter is not an indigent person.

A person is an "indigent person" if

- a) he is not possessed of sufficient means to enable him to pay the prescribed fee for the plaint in such suit, or
- b) where no such fees is prescribed, when he is not entitled to property worth Rs. 1000/-

In both the cases, the property exempt from attachment in execution of a decree and the subject matter of the suit should be excluded. Any property acquired by him after the presentation of his application is to be taken into account ~~in considering his status as a pauper~~. [Explanation II, Rule 1]. Initial inquiry into the means of applicant, should be made by the chief ministerial officer of the Court [Rule 1-A]. The applicant has to appear in person in the Court, unless exempted by the Court.

Application if granted by the Court, is deemed to be plaint, and the suit is then to proceed in the ordinary manner, except that the plaintiff is not liable to pay any Court fees for service of any process or appointment of a pleader or any other proceeding connected with the suit [Rule 8].

In the following seven cases, the application for permission to sue as an indigent person is to be rejected:

- i) application not framed and presented properly;
- ii) applicant is not an indigent person;
- iii) applicant has, within 2 months before the presentation of the application, disposed of any property fraudulently in order to be able to apply as an indigent person;
- iv) his allegations in plaint or application do not show a cause of action;
- v) he had entered into an agreement with reference to the subject matter of the proposed suit;
- vi) the allegations show that the suit would be barred by any law;
- vii) any other person has entered into an agreement with him to finance the litigation.

Where the application is not rejected, the Court shall fix a day for receiving evidence in proof or disproof of the applicant's indigency. At least 10 day's notice must also be given of this date to the opposite party and the Government pleader [Rule 7].

Dispaupering can be done by the Court on an application of the defendant or Government pleader of which at least 7 days notice has been given to the plaintiff on the following three grounds:

- <https://goo.gl/30PZ2> (best copy)
- i) He is guilty of vexatious or improper conduct in the course of the suit,
 - ii) his means are such that he ought not to continue to sue as an indigent person, or
 - iii) he has entered into an agreement under which another person has obtained an interest in the subject matter of the suit [Rule 9].

Rule 9 – A empowers the Court to assign a pleader to an indigent person who is not represented by any pleader. Rule 8 empowers the state or Central Government to make provisions for providing free legal services to indigent persons.

Rule 10 – 11A are intended to secure to the Government its right to recover Court fees. It may be noted that the payment of Court fees is merely postponed. If the indigent person succeeds in the suit, the amount of Court fees shall be recoverable by the Government as a first charge on the subject matter of the suit from any party ordered by the decree to pay the same [Rule 10]. If he fails in the suit, he shall pay the Court fees, so also would be the case when he is dispaupered or where the suit is withdrawn or dismissed [Rule 11]. If a pauper suit abates on the death of the plaintiff, the fees payable on the plaint shall be recoverable from the estate of the deceased plaintiff [Rule 11 A].

In the Court refuses an application to sue in forma pauperis, this operates as bar to subsequent similar application, but the application may sue in the ordinary manner provided applicant may sue in the ordinary manner provided he pays the costs incurred by the Government and the opposite party in opposing the application for leave to sue as an indigent person [Rule 15]. Thus, such refusal order does not operate as res judicata.

Further, when rejecting an application, the Court can also grant time to the applicant to pay requisite Court fees, and on such fees being paid, the suit is deemed to have been instituted from the date of the presentation of the application to sue in forma pauperis [Rule 15 – A].

Rule 17 allows the defendant who is an indigent person to plead a set-off or counter claim in that capacity. It is important to note that an order rejecting an application for permission to sue in forma pauperis is appealable under Order 43. Further, Order 44 deals with appeal by indigent persons.

This Chapter is one of the most important of CPC. Short as well as long answer type questions are asked from this Chapter. Following topics should be prepared from this Chapter:

- i) Explanatory notes on Pauper suit
- ii) Short Notes: Indigent Person
- iii) Procedure for instituting a suit in forma Pauperis
- iv) Can a defendant be allowed to defend in forma pauperis?
- v) Rejection of application for leave to sue in forma pauperis
- vi) Effect of the death of the pauper
- vii) Can A suit be continued by the legal representative of the pauper after his death?
- viii) Problem based questions.

Wishing you all the best,

Yours Sincerely
RAHUL

CHAPTER XXXIII

SUITS BY INDIGENT PERSONS

[PAUPER SUITS]

[ORDER 33]

SYNOPSIS

I. Nature and Scope

II. Object

III. Indigent Person: Meaning [Order 33, Rule 1]

IV. Contents of Application [Rule 2]

V. Rejection of Application [Rule 5]

VI. Inquiry [Rule 1-A]

VII. Where Permission is granted [Rules 8 to 9 A]

VIII. Where Permission is Rejected [Rules 15 to 15 A]

IX. Revocation of Permission [Rule 9]

X. Whether the legal Representative continue the suit

XI. Rajasthan Legal Aid Rules

XII. Realization of Court-Fees [Rule 14]

XIII. Appeals by indigent Persons [Order 44]

XIV. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XXXIII

SUITS BY INDIGENT PERSONS

[PAUPER SUITS]

[ORDER 33]

I. NATURE AND SCOPE

Order 33 provides for filing of suits by indigent persons. It enables persons who are too poor to pay Court-fees and allows them to institute suits without payment of requisite Court fees.

II. OBJECT

The provisions of Order 33 are intended to enable indigent persons to institute and prosecute suits without payment of any Court fees. Generally, a plaintiff suing in a Court of law is bound to pay Court fees prescribed under the Court Fees Act at the time of presentation of plaint. But a person may be too poor to pay the requisite Court-fee. This order exempts such person from paying the Court-fee at the first instance and allows him to prosecute his suit in *forma pauperis*, provided he satisfies certain conditions laid down in this order.

III. INDIGENT PERSON: MEANING [ORDER 33, RULE 1]

A person is an "indigent person" (i) if he is not possessed of sufficient means to enable him to pay the fee prescribed, when he is not entitled to property worth one thousand rupees. In both the cases, the property exempt from attachment in execution of a decree and the subject matter of the suit should be excluded.

Explanation II enacts that the property acquired by the applicant after the presentation of the application for permission to sue as an indigent person and the decisions thereon should also be taken into consideration for deciding the question whether the applicant is an indigent person.

The word "person" includes juristic person.

IV. CONTENTS OF APPLICATION [RULE 2]

Every application for permission to sue as an indigent person should contain the following particulars:

- i) The particulars required in regard to plaints in suits;
- ii) A schedule of any movable or immovable property belonging to the applicant with the estimated value thereof; and
- iii) Signature and verification as provided in Order 6, Rules 14 and 15.

The application should be presented by the applicant to the Court in person unless exempted by the Court. Where there are two or more plaintiffs, it can be presented by any of them. The suit commences from the moment an application to sue in *forma pauperis* is presented.

V. REJECTION OF APPLICATION [RULE 5]

The Court will reject an application for permission to sue as an indigent person in the following cases:

- i) Where the application is not framed and presented in the prescribed manner; or
- ii) Where the applicant is not an indigent person; or
- iii) Where the applicant has, within two months before the presentation of the application, disposed of any property fraudulently or in order to get permission to sue as an indigent person; or where there is no cause of actions; or
- iv) Where the applicant has entered into an agreement with reference to the subject-matter of the suit under which another person has obtained interest; or
- v) Where the suit appears to be barred by law; or
- vi) Where any other person has entered into an agreement with the applicant to finance costs of the litigation.

VI. INQUIRY [RULE 1-A]

<https://goo.gl/GU7xEZ> (Hard copy)

In first instance, an inquiry into the means of the applicant should be made by the Chief Ministerial Officer of the Court. The Court may adopt the report submitted by such officer or may itself make an inquiry.

Where the application submitted by the applicant is in proper form and is duly represented, the Court may examine the applicant regarding the merits of the claim and the property of the applicant. The Court shall then issue notice to the opposite party and to the Government Pleader and fix a day for receiving evidence as the applicant may adduce in proof of his indigency or in disproof thereof by the opposite party or by the Government Pleader. On the day fixed, the Court shall examine the witness (if any), produced by either party, hear their arguments and either allow or reject the application.

VII. WHERE PERMISSION IS GRANTED [RULES 8 TO 9 A]

Where an application to sue as an indigent person is granted, it shall be deemed to be a plaint in the suit and shall proceed in the ordinary manner, except that the plaintiff will not have to pay Court fees or process fees. The Court may assign a pleader to an indigent person if he is not represented by a pleader. The Central Government or the State Government may make provisions for rendering free legal aid and services to indigent persons to prosecute their cases. A defendant can also plead set-off or counter-claim as an indigent person.

VIII. WHERE PERMISSION IS REJECTED [RULES 15 TO 15 A]

Where the Court rejects an application to sue as an indigent person, it will grant time to the applicant to pay Court fees. An order refusing to allow an applicant to sue as an indigent person shall be a bar to a subsequent similar application. However, this does not debar him from suing in an ordinary manner, provided he pays the costs incurred by the Government Pleader and the opposite party in opposing the application.

IX. REVOCATION OF PERMISSION [RULE 9]

The Court may, on an application by the defendant or by the Government Pleader, revoke permission granted to the plaintiff to use as an indigent person in the following cases:

- i) Where he is guilty of vexatious or improper conduct in the course of the suit; or
- ii) Where his means are such that he ought not to continue to sue as an indigent person; or
- iii) Where he has entered into an agreement under which another person has obtained an interest in the subject matter of the suit.

X. WHETHER THE LEGAL REPRESENTATIVE CONTINUE THE SUIT

L.M. Mandal v. S.C. Das, 33 Cal. 1163

It was held that if the indigent plaintiff dies and the suit is represented by his legal representative, he also must be an indigent person otherwise he cannot continue the suit as pauper suit.

Chhayamani Tirpathi v. Dharmanand, Air 1993 Orissa

A legal representative cannot take the advantage of his ancestor's poverty he must be pauper otherwise he has to pay proper Court fees to continue the suit.

Cavery v. Yarahi, 51 Mad. 697

If during the pendency of the application for filing a suit as an indigent person, the applicant dies, his legal representative cannot continue the suit or application. As it is on personal right, so, if his legal representative is also pauper, he can file a second application.

XI. RAJASTHAN LEGAL AID RULES

The present Code makes provisions for free legal aid to the poor persons of the society. It is a prospective step towards socialistic society.

According to Rule 18 of order 33

- i) Subject to the provisions of this Order, the Central or State Government may make such supplementary provisions as it thinks fit for providing free legal services to those who have been permitted to sue as indigent persons.

- ii) The High Court may, with the previous approval of the State Government, make rules for carrying out the supplementary provisions made by the Central or State Government for providing free legal services to indigent persons referred to in sub-rule (1), and such rules may include the nature and extent of such legal services, the conditions under which they may be made available, the matters in respect of which, and the agencies through which, such services may be rendered.

Effective steps have been taken in Rajasthan towards providing free legal aid to the poor persons of the society. Under, Rajasthan legal Aid Rules, 1984, the persons whose income is less than Rs. 6000/- per annum are competent to get free legal aid from Government.

XII. REALIZATION OF COURT-FEES [RULE 14]

Where an indigent person succeeds in a suit, the State Government can recover Court fees from the party as per the direction in the decree and it will be the first charge on the subject matter of the suit. Where an indigent person fails in the suit, the Court fees shall be paid by him. Where the suit abates on account of the death of a plaintiff, such Court fees would be recovered from the estate of the deceased plaintiff.

XIII. APPEALS BY INDIGENT PERSONS [ORDER 44]

A person unable to pay Court fees on memorandum of appeal may apply to allow him to appeal as an indigent person. The necessary inquiry as prescribed in Order 33 will be made before granting or refusing the prayer. But where the appellant was allowed to sue as an indigent person in the trial Court, no fresh inquiry will be necessary if he files an affidavit that he continues to be an indigent person.

XIV. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Explanatory Notes: *Pauper Suit*? [150 Words, RJS-1970]
2. How can a *pauper* institute a suit? Can a person who is once allowed to sue in form of a *pauper* be *dispaupered* and how? [250 Words, RJS-1974]
3. Short Notes: *Indigent Person, Pauper Suit* [150 Words, RJS-1979]
4. Describe the procedure for instituting a suit in *forma pauperis*? [50 Words, RJS-1980-81]
5. Describe the procedure prescribed for institution of a *pauper* suit? [50 Words, RJS-1989]
6. How an *indigent* person has been defined under Civil Procedure Code? [20 Words, RJS-1994]
7. a) Who is entitled to file a *pauper* suit? State the procedure for filing for such suits. Can a defendant be allowed to defend in *forma pauperis*? Give reasons.
b) When the Court shall reject an application for permission to sue as *pauper*? Discuss fully.
c) Answer the following:
'A' presented an application for leave to sue in *forma pauperis* but 'A' dies pending the hearing of the application. Can the application be continued by 'B' who is a legal representative of 'A'? Give reasons.
'A' disposed his property worth Rs. 1000/- in August 1980 to enable himself to sue as *pauper* and applies for leave in September 1980. Will the application of 'A' be accepted or rejected by the Court? Give Reasons. [500 Words, UPPCS(J)-1982]
8. Who is an *indigent* person? What is the mode of instituting suit by such persons? [150 Words, UPPCS(J)-1986, (250 Words, 1988)]
9. Give brief description of rules contained in Order 33 of the Code of Civil Procedure, 1908. [150 Words, UPPCS(J)-1997]
10. a) Who can file a *pauper*-suit?
b) Can a person be defendant in a suit as *pauper*?
c) 'A' filed an application/plaint as *pauper*. 'A' died before the disposal of his application. Can his legal representative continue with that application?

d) 'A' after filing an application <https://goo.gl/GU7x5Z> (Hard copy) as pauper sold his property worth Rs. Fifteen thousand. Will A's application be accepted? **[500 Words, UPPCS(J)-1999]**

11. A presented an application for leave to sue in *forma pauperis*. A dies pending the hearing of the application. Can the application be continued by B, who is legal representative of A? **[150 Words, HJS-2000]**

12. Short Notes: *Forma Pauperis* **[150 Words, BJE-1979]**

13. Short Notes: *Pauper Suit* **[150 Words, BJE-1975]**

14. Who is entitled to file a *pauper suit*? State the procedure for filing such suits. Can a defendant be allowed to defend in *forma pauperis*? Give reason. **[250 Words, MPSCJ (Mains)-1996]**

Ranveer AS

CHAPTER XXXIV

SUMMARY PROCEDURES

[ORDER 37]

Dear aspirant,

Order 37 provides for a "summary procedure" in respect of certain suits. Under it, the defendant is not allowed to defend his case unless he obtains leave to defend from the Court. When a leave to defend is not applied or if applied, is not granted by the Court, the plaint of the plaintiff is decreed immediately. The primary object of this procedure is to prevent unreasonable obstruction by the defendant who has no defence and expeditious disposal of the suit [Vide: **State of Orissa v. Chamanlal**, AIR 1965 SC].

The provisions of Order 37 are merely rules of procedure. They do not alter the nature of the suit or the jurisdiction of the Courts. They are not repugnant to Article 14 of the Constitution. The provisions of Order 37 apply to High Courts, City Civil Courts, Courts of Small Causes and other Courts [the High Court may restrict the operation of this Code to such suits as it deems proper] to:

- a) Suits upon bills of exchange, hundies and promissory notes, and
- b) Suits in which the plaintiff seeks only to recover a debt or liquidated demand in money payable by the defendant, with or without interest arising –
 - i) on a written contract, or
 - ii) on an enactment, where the sum sought to be recovered is a fixed sum of money or in the nature of a debt other than a penalty,
 - iii) on a guarantee, where the claim against the principal is in respect of a debt or liquidated demand only. [Rule 1]

The defendant must appear within 10 days of service of summons. On the day of entering the appearance, the defendant shall give notice of such appearance to the plaintiff. After such appearance, the plaintiff will serve a summons for judgment on the defendant. [Rule 3]

Rule 5 (3) lays down that the defendant must apply for "leave to defend" within 10 days from the date of service of summons for judgment upon him and such leave will be granted only if the affidavit filed by the defendant discloses such facts as may be deemed sufficient to entitle him to defend. Such leave may be granted to the defendant unconditionally or upon such terms as may appear to the Court or Judge to be just.

At the hearing of such summons for judgment, if the defendant does not apply for leave to defend or such leave is refused, the plaintiff is entitled to a decree forthwith. If the defendant is permitted to defend, the Court may direct him to give security within a fixed time; on failure to do so, the plaintiff shall be entitled to judgment forthwith. The Court may, for sufficient cause shown by the defendant, excuse the delay of the defendant in entering an appearance or in applying for leave to defend the suit. [Rule 3 (6)]

After the decree the Court may, under special circumstances, set aside the decree and, if necessary, stay the execution and may grant leave to the defendant to appear and defend the suit [Rule 4]. However, inherent powers under Section 151 of the Code cannot be exercised for setting aside such decree. The Court may also order the bill, promissory note, etc. on which the suit is founded to be deposited with the Court, and further stay all proceedings until the plaintiff furnishes security of all costs. [Rule 5]

The criteria for the determination of whether the leave to defend is to be granted or not is the examination whether there are any "triable issues" which needs to be

looked into and it includes the decision of the question whether a particular suit cannot be filed under the summary procedure. Save as provided by this Order, the procedure in summary suits shall be the same as the procedure in ordinary suits. [Rule 7 of Order 37]

This chapter is not much important but a short notes might be asked from this chapter.

Wishing you all the best.

Yours Sincerely
RAHUL

Ranvix IAS

SUMMARY PROCEDURES

[ORDER 37]

SYNOPSIS

I. Nature and Scope

II. Object

III. Extent and Applicability

IV. Procedure

V. Difference between summary suit and ordinary suit

VI. Principles

VII. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPSCS (J), BJE, HJS, Haryana JS etc.]

SUMMARY PROCEDURES

[ORDER 37]

I. NATURE AND SCOPE

Order 37 provides summary procedure in suits based on negotiable instruments or where the plaintiff seeks to recover debt or liquidated amount. The essence of summary suits is that the defendant is not, as in an ordinary suit, entitled as of right to defend the suit. He must apply for leave to defend within the stipulated period of ten days. Such leave will be granted only if the affidavit filed by the defendant discloses such facts as will make it incumbent upon the plaintiff to prove consideration or such other facts as the Court may deem sufficient. The provisions of Order 37 are merely rules of procedure. They do not alter the nature of the suit or jurisdiction of Courts.

II. OBJECT

The object underlying the summary procedure is to prevent unreasonable obstruction by the defendant who has no defence and to assist expeditious disposal of cases.

III. EXTENT AND APPLICABILITY

The provisions of Order 37 apply to High Courts, City Civil Courts, Courts of Small Causes and other superior Courts. They apply to –

- a) suits based upon bills of exchange, hundies and promissory notes; and
- b) suits in which the plaintiff seeks to recover a debt or liquidated amount payable by the defendant with or without interest arising –
 - i) on a written contract; or
 - ii) on an enactment, where the sum sought to be recovered is a fixed sum of money or debt other than penalty; or
 - iii) on a guarantee, where the claim against the principal is in respect of a debt or liquidated amount.

IV. PROCEDURE

Rules 2 and 3 provide the procedure of summary suits. Rule 2 provides that after the summons of the suit has been issued to the defendant, the defendant must appear and the plaintiff will serve a summons for judgment on the defendant. The defendant is not entitled to defend a summary suit unless he enters an appearance. In default of this, the plaintiff will be entitled to a decree which will be executed forthwith. Rule 3 prescribes the mode of service of summons and leave to defend. The defendant must apply for leave to defend within ten days from the date of service of summons upon him and such leave will be granted only if the affidavit filed by the defendant discloses such facts as may be deemed sufficient to entitle him to defend. Such leave may be granted to the defendant unconditionally or upon such terms as may appear to the Court or judge to be just. Leave to defend, however, should not be refused unless the Court is satisfied that the facts disclosed by the defendant do not indicate that he has a substantial defence to raise or that the defence intended to be put by him is frivolous or vexatious. If a part of the amount claimed by the plaintiff is admitted by the defendant to be due from him, leave to defend should not be granted unless such admitted amount is deposited by him in the Court.

At the hearing of such summons for judgment, if the defendant does not apply for leave to defend or such leave is refused, the plaintiff is entitled to a decree forthwith. The Court or Judge may, for sufficient cause shown by the defendant, excuse the delay of the defendant in entering an appearance or in applying for leave to defend the suit. No hard and fast rule can be laid down as to in what cases leave to defend can be granted. Each case must be decided on its own facts and circumstances and the discretion must be exercised judicially and in consonance with the principles of natural justice which form the foundations of our laws.

Under special circumstances, the Court can set aside the decree and stay the execution and may grant leave to the defendant to appear and defend the suit. However, inherent power under Section 151 of the Code cannot be exercised for setting aside such decree.

V. DIFFERENCE BETWEEN SUMMARY SUIT AND ORDINARY SUIT

S.No.	Summary Suit [Order 37]	S.No.	Ordinary Suits
1.	In summary suit, the defendant is not entitled to defend the suit except with the permission of Court.	1.	Whereas in an ordinary suit, the defendant is entitled to defend the suit as of right.
2.	The trial Court may set the decree aside under special circumstances.	2.	While in an ordinary suit, the decree cannot be set aside by the trial Court except on review.
3.	Only simple kinds of suits such as suits based on promissory notes, hundies, bills of exchange etc. fall under the purview of summary procedure.	3.	All kinds of suits fall under the purview of ordinary suits. The period of limitation is three years in both summary and ordinary suits.

VI. PRINCIPLES

In *Kiranmoyee Dassi v. Chatterjee (AIR 1949 Cal)*, the High Court of Calcutta – laid down the following principles relating to suits of a summary nature:

- If the defendant satisfies the Court that he has a good defence to the claim on its merits, the plaintiff is not entitled to leave to sign judgment and the defendant is entitled to unconditional leave to defend.
- If the defendant raises a triable issue indicating that he has a fair or bona fide or reasonable defence although not a positively good defence, the plaintiff is not entitled to sign judgment and the defendant is entitled to unconditional leave to defend.
- If the defendant discloses such facts as may be deemed sufficient to entitle him to defend, that is to say, although the affidavit does not positively and immediately make it clear that he has a defence yet, shows such a state of facts as leads to the inference that at the trial of the action he may be able to establish a defence to the plaintiff's claim, the plaintiff is not entitled to judgment and the defendant is entitled to leave to defend to the time or mode of trial but not as to payment into Court or furnishing security.
- If the defendant has no defence or the defence set up is illusory or sham or practically moonshine then ordinarily the plaintiff is entitled to leave to sign judgment and the defendant is not entitled to leave to defend.
- If the defendant has no defence or the defence is illusory or sham or practically moonshine then although ordinarily the plaintiff is entitled to leave to sign judgment, the Court may protect the plaintiff by only allowing to defence to proceed if the amount claimed is paid into Court or otherwise secured and give leave to the defendant on such condition, and thereby show mercy to the defendant by enabling him to try to prove a defence.

VII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

- What is the procedure in a summary trial? Which cases are subjected to summary trial? [150 Words, RJS-1980-81]
- What is the procedure prescribed for the institution and disposal of Summary Suits? [50 Words, RJS-1994]

CHAPTER XXXV

SUIT RELATING TO PUBLIC NUISANCE AND CHARITIES

(SUITS BY ADVOCATE GENERAL)

[SECTIONS 91 & 92]

Dear aspirant,

This chapter can be divided into two parts:

- a) Suits relating to public nuisance
- b) Suits relating to public charities

A suit relating to public nuisance and public charities can be filed by the Advocate General or by two or more persons with the leave of Court. A suit may also be filed by a private person if he has sustained special damages.

Section 91 provides for filing of a suit in respect of "Public Nuisance". Public nuisance is an act or omission which causes any common injury or annoyance to the public or which cause injury, obstruction, etc. to persons in use of any public right [Section 268, IPC]. Where a person commits a public nuisance, he is liable to criminal prosecution under IPC, or he may proceed against under Section 91, CPC, or he may be sued for damages by a private individual if he has suffered special damages due to such nuisance. These remedies are concurrent and one does not bar the other.

It may be noted that under Section 91, CPC, an action can be maintained even without proof of special damage. This section authorises the filing of a suit (for a declaration and injunction or for some other relief) by the Advocate General, or by him at the instance of relators, or by two or more persons (called "relators") with the leave of the Court. The injury complained of must be either irreparable or continuous. An injunction may be granted to restrain the act, without proof of any actual injury to the public.

Section 92 provides for filing of a suit in respect of breach of trust created for public purposes of a charitable or religious nature by the advocate-General or two or more persons having an interest in the trust with the leave of the Court for reliefs specified therein. The suit may be filed in the principal Civil Court of original jurisdiction, or any other Court empowered so within the local limits of whose jurisdiction the subject matter of trust is situated. The suit is basically on behalf of all persons interested in the trust. The suit is thus a representative suit, meant for the protection of public rights in public trusts and charities and to stop misuse of charities and charitable institution.

In order that Section 92 may apply, the following conditions must be satisfied:

1. The trust is created for public purposes;
2. There is a breach of trust and a direction of Court is necessary in the administration of such trust;
3. The suit must be a representative one on behalf of the public;
4. The relief claimed in the suit must be one or more of the reliefs mentioned below:-
 - a) removing or appointing a trustee;
 - b) vesting any property in the trust or a particular trustee;
 - c) directing an ex-trustee to deliver possession of any trust property;
 - d) directing accounts and inquiries;
 - e) declaring what proportion of trust property shall be allotted to any particular object of the trust;
 - f) authorising the whole or part of the trust property to be let, mortgaged or exchanged;

<https://goo.gl/GU7xEZ> (Hard copy)

g) settling a scheme, or
h) granting other reliefs.

The doctrine of *cy pres* is embodied in Section 92 (3) CPC. According to it, when the particular purpose for which a charitable trust is created fails or by reasons of certain circumstances the trust cannot be carried into effect or where there is surplus left after exhausting the purposes specified by the settlor, the Court would not allow the trust to fail but would execute it *cy pres* i.e. in some way as nearly as possible to that which the author of the trust intended. In such cases, the Court can frame a scheme and give suitable directions regarding the objects upon which the trust money can be spent. **[Ratlil v. State of Bombay, AIR 1954 SC]**

The powers conferred by Sections 91 and 92 on the advocate-General may, outside the Presidency towns, be exercised also by the collector or other officer as the Government may appoint.

This chapter is not much important for examination point of view but a short note can be asked on "Public Nuisance" in RJS, UPPCS (J) and Bihar JE.

With best wishes,

Yours Sincerely

RAHUL

CHAPTER XXXV

SUIT RELATING TO PUBLIC NUISANCE AND CHARITIES

(SUITS BY ADVOCATE GENERAL)

[SECTIONS 91 & 92]

SYNOPSIS

I. Suit relating to Public Nuisance [Section 91]

1. Nature and Scope
2. Public Nuisance: Meaning
3. Who may sue
4. Remedies

II. Suits relating to Public Trusts [Section 92]

1. Nature and scope
2. Extent and applicability
3. Object
4. Conditions
5. Section whether mandatory
6. Who may sue
7. Who may be sued
8. Notice
9. Relief [Section 92 (1)]
10. Doctrine of *cy pres*
 - a) Meaning
 - b) Doctrine explained
 - c) Recommendation of Law Commission

III. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

SUIT RELATING TO PUBLIC NUISANCE AND CHARITIES

(SUITS BY ADVOCATE GENERAL)

[SECTIONS 91 & 92]

I. SUIT RELATING TO PUBLIC NUISANCE [SECTION 91]

1. Nature and Scope

Section 91 of the Code provides for filing of a suit in the case of public nuisance or other wrongful acts affecting the public at large. It states that such a suit can be instituted for declaration, injunction or such other relief which may be appropriate in the circumstances of the case.

2. Public Nuisance: Meaning

The expression "public nuisance" has not been defined in the Code. It can, however, be said to be an act or omission which causes common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity or which must necessarily cause injury, obstruction, danger or annoyance to the persons who may have occasion to use public rights. Thus, obstruction of a public highway, pollution of public waterways, storage of inflammable materials, endangering life, health or property of public, ringing of bell day and night, etc. are instances of public nuisances.

3. Who may sue

A suit relating to public nuisance may be filed by the Advocate-General or by two or more persons with the leave of the Court. A suit may also be filed by a private person if he has sustained special damage. [Section 91, CPC]

4. Remedies

The following remedies are available against public nuisance:

- A person committing a public nuisance may be punished under the Indian Penal Code; [Section 290, IPC]
- Magistrates may remove public nuisance in certain circumstances by exercising summary powers; [Sections 133-143, CPC]
- A suit can be instituted for declaration, injunction or other appropriate relief without proof of special damage, and [Section 91 (1), CPC]
- A suit may also be filed by a private individual, where he has suffered special damage. [Section 91 (2), CPC]

II. SUITS RELATING TO PUBLIC TRUSTS [SECTION 92]

1. Nature and Scope

Section 92 of the Code provides for filing of a suit in respect of breach of trust created for public purposes of a charitable or religious nature by the Advocate-General or two or more persons having an interest in the trust with the leave of the Court for relief specified therein.

2. Extent and Applicability

A suit under Section 92 of the Code is of a special nature for the protection of public rights in public trusts and charities. Such a suit is basically on behalf of all persons interested in the trust. The beneficiaries choose two or more persons for filing the suit and that is how their names are shown as plaintiffs. But the plaintiffs are merely representatives of all the beneficiaries and the action is instituted on behalf of all. The suit is thus a representative suit and a decision in such suit would also attract the doctrine of *res judicata*. [Vide: *Venugopala Naidu v. Venkatarayulu*, AIR 1990 SC]

3. Object

The main object of this provision is to afford protection to public trusts of a charitable or religious nature from being subjected to harassment by suits being filed against them

<https://goo.gl/GU7yEZ> (Hard copy)
and to prevent multifarious and vexatious suits being filed by irresponsible persons against the trustees whose duty is to administer such trusts. Before the Advocate-General files a suit or before the Court grants leave for filing a suit under Section 92, prima facie satisfaction regarding breach of trust or of the necessity for obtaining directions of the Court must be there.

4. Conditions

Before an action can be taken under this section, the following conditions must be fulfilled:

- a) The trust must have been created for public purposes of a charitable or religious nature;
- b) There must be a breach of trust or direction of the Court must be necessary in the administration of such a trust; and
- c) The relief claimed must be one or the other of the reliefs specified in Section 92.

If any of the three conditions is not satisfied, the suit falls outside the scope of the said Section.

5. Section whether mandatory

The provisions are mandatory and must be complied with. Where the conditions laid down in the section have not been fulfilled, no suit can be instituted. The defect is basic and fundamental and goes to the root of the matter.

6. Who may sue

A suit can be instituted by the Advocate-General and outside the Presidency Towns by the Collector or such officer as the State Government may appoint in this behalf; or by two or more persons having an interest in the trust, who have obtained leave of the Court for filing such suit.

7. Who may be sued

A suit may be brought against the persons in possession of trust property who claim adversely to the trust or against trustees who have committed breach of trust

8. Notice

Considering the object underlying Section 92 of the Code, the Court should normally issue a notice to the defendants before granting leave to file a suit. The defendants may satisfy the Court that the allegations made in the plaint are false and frivolous, or the persons who have applied for leave want to harass the trust. But if the suit is filed without notice to the defendants, it would not be bad and non-maintainable.

9. Relief [Section 92 (1)]

A suit may be instituted for any one or more of the following reliefs:

- a) removing any trustee;
- b) appointing a new trustee;
- c) vesting any property in a trustee;
- d) directing a trustee who has been removed or a person who has ceased to be a trustee, to deliver possession of any trust property in his possession to the person entitled to the possession of such property;
- e) directing accounts and inquiries;
- f) declaring what proportion of the trust property or of the interest therein shall be allotted to any particular object of the trust;
- g) authorizing the whole or any part of the trust property to be let, mortgaged or exchanged;
- h) settling a scheme;
- i) granting such further or other relief as the nature of the case may require.

a) Meaning

Cy pres means "as early as possible to the testator's or donor's intentions when these cannot be precisely followed".

b) Doctrine explained

Where there is a gift or trust for a charity which can be substantially, but not literally, fulfilled, it will be effectuated by moulding it so that as nearly as practicable the intention of the benefactor may be carried out. The doctrine of cy pres, thus, makes possible the application of funds to purposes as nearly as possible to those selected by the donor.

In *Ratilal v. State of Bombay (AIR 1954 SC)*, the Supreme Court explained the doctrine thus:

"When the particular purpose for which a charitable trust is created fails or by reason of certain circumstances the trust cannot be carried into effect either in whole or in part, or where there is a surplus left after exhausting the purposes specified by the settlor, the Court would not, when there is a general charitable intention expressed by the settlor, allow the trust to fail but would execute it cy pres, that is to say, in some way as nearly as possible to that which the author of the trust intended. In such cases, it cannot be disputed that the Court can frame a scheme and give suitable directions regarding the objects upon which the trust money can be spent."

c) Recommendation of Law Commission

On the recommendation of the Law Commission, the doctrine of cy pres has been applied to suits under Section 92 of the Code. Sub-section 3 to Section 92 as inserted by the Code of Civil Procedure (Amendment) Act, 1976 incorporates the doctrine of cy pres, which is similar to Section 13 of the English Charities Act, 1960.

The application of the doctrine of cy pres, however, has its own limitations. The Court has no power, authority or jurisdiction to deviate from the intention expressed by the settlor on the ground of expediency or on what the Court considers to be much more beneficial than what the settlor directed.

III. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. a) In what case an Advocate-General of a State can bring a suit and what relief or reliefs can be claimed in such a suit?
b) Can any other person bring a suit to obtain those reliefs and in what manner?

[300 Words, RJS-1975]

2. Discuss the provisions of the Civil Procedure Code with regard to:

Suits relating to public nuisance. [150 Words, UPPCS(J)-1987]

3. Short Note: Remedies for Public Nuisance [150 Words, BJE-1980]

CHAPTER XXXVI

POWERS OF APPELLATE COURT

[SECTIONS 96-108, ORDER 41, RULES 23-33]

Dear aspirant,

Sections 96-108 and Rules 23-33 of Order 41 enumerate the powers of an appellate Court while hearing first appeals. They may be summarised in the following points:

- a) Where the evidence on record is sufficient to enable the appellate Court to pronounce judgment, it may finally determine the case under Section 107 (1) (a) and Rule 24 of Order 41 notwithstanding that the judgment of the trial Court has proceeded wholly upon some ground other than that on which the appellate Court proceeds.
- b) The appellate Court has power to remand a case [under Section 107 (1) (b), Rules 23 and 23 - A of Order 41]. Where the trial Court has decided the suit on a preliminary point without recording findings on other issues and if the appellate Court reverses the decree so passed, it may send back the case to the trial Court to decide other issues and determine the suit. It is called remand.
- c) Where the lower Court has omitted (i) to frame any issue; or (ii) to try any issue; or (iii) to determine any question of fact, which is essential to the right decision of the suit upon merits, the appellate Court may frame issues and refer them for trial to the lower Court under Section 107 (1) (c) and Rules 25 and 26 of Order 41, CPC.
- d) The appellate Court is, under Section 107 (1) (d), competent to take additional evidence or require such evidence to be taken subject to the conditions laid down in Rule 27 of Order 41.
- e) Rule 33 of Order 41 empowers an appellate Court to make whatever order it thinks fit, not only as between the appellant and the respondent but also as between one respondent and another respondent.
- f) Section 107 (2) of the Code enacts that over and above the aforesaid powers, an appellate Court has the same powers as an Original Court. Thus, an appellate Court is empowered to re-appreciate the evidence, to add, transpose or substitute the parties, to permit the withdrawal of proceedings, to return a plaint or memorandum of appeal for presentation to the proper Court, to allow amendments in pleadings, to take notice of subsequent events, to take into consideration a change in law and to apply the existing law, to order restitution, to enlarge time for doing certain acts, etc.

This chapter is an important chapter for RJS, UPPCS (J), UAPCS (J), HJS, DJS, HJS, BJE and MPCJ. Following short notes can be asked from this chapter:

- i) Remand
- ii) Modification of Decree
- iii) Powers of Appellate Court
- iv) Power of Appellate Court to admit additional evidence.

With best wishes.

Yours Sincerely

RAHUL

POWERS OF APPELLATE COURT

[SECTIONS 96-108, ORDER 41, RULES 23-33]

SYNOPSIS

I. Final Determination [Section 107 (1) (a), Rule 24, Order 41]

II. Remand [Section 107 (1) (b), Rules 23 and 23 - A]

1. Meaning
2. Scope
3. Conditions
 - a) *The suit must have been disposed of by the Trial Court on a preliminary point*
 - b) *The decree under appeal must have been reversed*
 - c) *Other grounds*
4. Effect
5. Duty of Trial Court
6. Conclusion

III. Framing issues and referring them for trial [Section 107 (1) (c), Rules 25 & 26]

1. Scope
2. Effect
3. Rules 23 and 25: Distinction

IV. Additional Evidence [Section 107 (1) (d), Rules 27-29]

1. General
2. Principles
3. Nature and Scope
4. Circumstances
5. Recording of reasons
6. Mode of taking additional evidence

V. Modifications of Decree [Rule 33 of Order 41]

1. General
2. Illustrations
3. Object
4. Conditions
5. Ambit and scope
6. Limitations

VI. Other Powers [Section 107 (2)]

VII. Questions of Previous Years Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

POWERS OF APPELLATE COURT

[SECTIONS 96-108, ORDER 41, RULES 23-33]

I. FINAL DETERMINATION [SECTION 107 (1) (A), RULE 24, ORDER 41]

Section 107 (1) (a) and Rule 24 of Order 41 enable the appellate Court to dispose of a case finally. Where the evidence on record is sufficient to enable the appellate Court to pronounce judgment, it may finally determine the case notwithstanding that the judgment of the trial Court has proceeded wholly upon some ground other than that on which the appellate Court proceeds. The general rule is that a case should, as far as possible, be disposed of on the evidence on record and should not be remanded for fresh evidence, except in rare cases.

II. REMAND [SECTION 107 (1) (B), RULES 23 AND 23 - A]

1. Meaning

Remand means to send back. Where the trial Court has decided the suit on a preliminary point without recording findings on other issues and if the appellate Court reverses the decree so passed, it may send back the case to the trial Court to decide other issues and determine the suit. This is called remand.

2. Scope

By passing an order of remand, an appellate Court directs the lower Court to reopen and retry the case. On remand, the trial Court will readmit the suit under its original number in the register of civil suits and will proceed to determine it as per the directions issued by the appellate Court.

3. Conditions

The appellate Court has power to remand a case under Rule 23. A remand cannot be ordered lightly. It can be ordered only if the following conditions are satisfied:

a) *The suit must have been disposed of by the Trial Court on a Preliminary Point*

Before the Court can exercise the power of remand under Rule 23, it is necessary to show that the lower Court has disposed of the suit on a preliminary point. A point can be said to be a preliminary point, if it is such that the decision thereon in a particular way is sufficient to dispose of the whole suit, without the necessity for a decision on the other points in the case. Such preliminary point may be one of fact or of law, but the decision thereon must have avoided the necessity for a full hearing of the suit. Thus, where the lower Court dismisses the suit as being time barred; or barred by limitation; or res judicata; or as disclosing no cause of action; it does so on a preliminary point of law. On the other hand, where the lower Court dismisses the suit on the ground that the plaintiff is estopped from proving his case; or that it was motivated; or that the plea raised at the hearing was different from that raised in the plaint, it does so on a preliminary point of fact.

b) *The decree under appeal must have been reversed*

No remand can be ordered by the appellate Court under this rule unless the decision of the lower Court on the preliminary point is reversed in appeal. Where such is not the case, the appellate Court cannot order remand simply because the judgment of the lower Court is not satisfactory; or that the lower Court had misconceived or misread the evidence; or had ignored the important evidence; or had acted contrary to law; or that the materials on which the conclusion is reached are scanty; and the appellate Court must decide the appeal in accordance with law.

c) *Other grounds*

Rule 23 - A of Order 41, as inserted by the Amendment Act of 1976, empowers the appellate Court to remand a case even when the lower Court has disposed of the case otherwise than on a preliminary point and the remand is considered necessary by the appellate Court in the interests of justice.

4. Effect

<https://goo.gl/GU7xEZ> (Hard copy)

An order of remand reverses the decision of the lower Court and reopens the case for retrial by the lower Court except in regard to the matters decided by the appellate Court. An order of remand is appealable. If the party aggrieved by an order of remand does not appeal therefrom, he cannot subsequently question its correctness under the inherent powers of the Court under Section 151 of the Code.

5. Duty of Trial Court

Once an order of remand is made by a superior Court, an inferior Court has to decide the matter as per the direction of the Superior Court. In **Commissioner of Wealth Tax v. Aluminium Corporation, AIR 1973 SC**, the High Court of Calcutta expressed 'doubts' about the 'competence' of the Supreme Court to remand the case. When the matter reached the Supreme Court again, the Apex Court observed that the High Court clearly exceeded its jurisdiction in examining the 'competence' of the Apex Court to remand the case. It declared: "It would have been done well to remind itself that it was bound by the orders of this Court and could not entertain or express any argument or views challenging their correctness. The judicial tradition and propriety required that Court not to sit on judgment over the decision and orders of this Court."

6. Conclusion

The appellate Court should not exercise the power of remand very lightly. As far as possible it should dispose of the appeal finally unless remand is imperative.

III. FRAMING ISSUES AND REFERRING THEM FOR TRIAL [SECTION 107 (1)(C), RULES 25 & 26]

1. Scope

Where the lower Court has omitted (i) to frame any issue; or (ii) to try any issue; or (iii) to determine any question of fact, which is essential to the right decision of the suit upon merits, the appellate Court may frame issues and refer them for trial to the lower Court and shall direct that Court to take the additional evidence required. The lower Court shall try such issues and shall return the evidence and the findings within the time fixed by the appellate Court.

2. Effect

Such evidence and findings shall form part of the record in the suit, and either party may file in the appellate Court a memorandum of objections to any such finding of the lower Court within a time fixed by the appellate Court. The appellate Court should, thereafter, hear the whole appeal and the hearing should not be confined to the points on which the findings were called for.

3. Rules 23 and 25: Distinction

The points of distinction between Rule 23 and Rule 25 are as under:

- While after remand under Rule 23, the whole case goes back for decision to the lower Court (except on the point on which the appellate Court has reversed the finding of the lower Court), under Rule 25 the case is retained in the file of the appellate Court and only issues are remitted to the lower Court for trial and findings thereon.
- An order of remand under Rule 23 is a final order which cannot be reconsidered by the Court which passed it except on review, while an order under Rule 25 is an interlocutory order which is open to be reconsidered by the Court which has passed it.
- Whereas an order under Rule 23 is appealable, an order under Rule 25 is not appealable.

IV. ADDITIONAL EVIDENCE [SECTION 107 (1) (D), RULES 27-29]

1. General:

As a general rule, the appellate Court shall decide an appeal on the evidence led by the parties before the trial Court and should not admit additional evidence for the purpose of disposal of an appeal. Sub-rule (1) of Rule 27 also reads thus: "The parties to an appeal shall not be entitled to produce additional evidence, whether oral or documentary, in the appellate Court." Section 107 (1) (d), however, is an exception to the general rule, and empowers an appellate Court to take additional evidence or require such evidence to be taken subject to the conditions laid down in Rule 27 of Order 41.

2. Principles

The basic principle of admission of additional evidence is that the person seeking the admission of additional evidence should be able to establish that with the best efforts such additional evidence could not have been adduced at the first instance. *Secondly*, the party affected by the admission of additional evidence should have an opportunity to rebut such additional evidence. *Thirdly*, the additional evidence must be relevant for the determination of the issue.

3. Nature and Scope

When a party is unable to produce the evidence in the trial Court under the circumstances mentioned in the Code, he should be allowed to produce the same in an appellate Court. The power is discretionary and should be exercised on sound judicial principles and in the interests of justice.

4. Circumstances

Rule 27 enumerates the circumstances in which the appellate Court may admit additional evidence, whether oral or documentary, in appeal. They are as under:

- Where the lower Court has improperly refused to admit evidence which ought to have been admitted; or
- Where such additional evidence was not within the knowledge of the party or could not, after exercise of due diligence, be produced by him at the time when the lower Court passed the decree; or
- Where the appellate Court itself requires such evidence either (a) to enable it to pronounce judgment; or (b) for any other substantial cause.

In *Shivajirao Patil v. Mahesh Madhav* (AIR 1987 SC), the Supreme Court stated: "The basic principle of admission of additional evidence is that the person seeking the admission of additional evidence should be able to establish that with the best efforts such additional evidence could not have been adduced at the first instance. Secondly, the party affected by the admission of additional evidence should have an opportunity to rebut such additional evidence. Thirdly, that additional evidence was relevant for the determination of the issue."

5. Recording of reasons

Whenever the appellate Court admits additional evidence, it should record reasons for doing it. The underlying object of this provision is to keep a clear record of what weighed with the appellate Court in allowing the additional evidence to be produced.

6. Mode of taking additional evidence

Rules 28 and 29 lay down the mode of taking additional evidence when the appellate Court admits additional evidence in appeal. The appellate Court may take the evidence itself or direct the lower Court from whose decree the appeal is preferred or any other subordinate Court to take it. Where the appellate Court directs the lower Court to record evidence, it should retain the appeal on its file and dispose it of on receipt of the additional evidence.

V: MODIFICATIONS OF DECREE [RULE 33 OF ORDER 41]

1. General

Rule 33 of Order 41 empowers an appellate Court to make whatever order it thinks fit, not only as between the appellant and the respondent but also as between one respondent and another respondent. It empowers an appellate Court not only to give or refuse relief to the appellant by allowing or dismissing the appeal, but also to give such other relief to any of the respondents as the case may require.

2. Illustrations

- A claims a sum of money as due to him from X or Y, and in a suit against both obtains a decree against X. X appeals and A and Y are respondents. The appellate Court decides in favour of X. It has power to pass a decree against Y.
- A claims a sum of money as due to him from X or Y. The suit is decreed partly against X and partly against Y. X appeals but Y does not. The appellate Court can discharge X making Y liable for the whole amount.

3. Object

<https://goo.gl/GU7xEZ> (Hard copy)

The underlying object of Rule 33 is to enable the appellate Court to do full and complete justice between the parties. It is true that the power of the appellate Court is discretionary. But it is a proper exercise of judicial discretion to determine all questions in order to render full justice to the parties. The Court should not refuse to exercise the discretion on mere technicalities.

4. Conditions

The language of Rule 33 is very wide. The following requirements, however, must be satisfied before it can be invoked:

- a) The parties before the lower Court must also be there before the appellate Court; and
- b) The question raised must have properly arisen out of the judgment of the lower Court.

If these conditions are fulfilled, the appellate Court can consider any objection against any part of the judgment or decree of the lower Court. It may be urged by any party to the appeal.

5. Ambit and Scope

The sweep of power under Rule 33 is wide enough to determine any question not only between the appellant and the respondent but also between the respondent and co-respondents. The appellate Court can pass any decree or order which ought to have been passed in the facts and circumstances of the case. The words "as the case may require" used in Rule 33 enable the appellate Court to pass any order or decree to meet the ends of justice. The only constraint on the power of the Court is that the parties before the lower Court should also be there before the appellate Court.

6. Limitations

The Rule does not confer an unrestricted right to reopen decrees which have become final merely because the appellate Court does not agree with the opinion of the Court appealed from. While exercising powers under this Rule the Court should not lose sight of other provisions of the Code itself nor the provisions of other laws, viz., the law of limitation or the law of Court-fees, etc. The expression "which ought to have been passed" means "which ought in law to have been passed". Such a power is to be exercised in exceptional cases when its non-exercise will lead to difficulties in the adjustment of rights of the various parties. [Vide: *Rameshwar Prasad Shyam Behari Lal*, AIR 1963 SC]

VI. OTHER POWERS [SECTION 107 (2)]

Section 107 (2) of the Code enacts that over and above the aforesaid powers, an appellate Court has the same powers as an original Court. This provision is based on the general principle that an appeal is a continuation of a suit and therefore, an appellate Court can do, while the appeal is pending, what the original Court could have done while the suit is pending. Thus, an appellate Court is empowered to re-appreciate the evidence, to add, transpose or substitute the parties, to permit the withdrawal of proceedings, to return a plaint or memorandum of appeal for presentation to the proper Court, to allow amendments in pleadings, to take notice of subsequent events, to take into consideration a change in law and to apply the existing law, to order restitution, to enlarge time for doing certain acts, etc.

VII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Comment upon the powers of the appellate Court where:
 - a) The trial Court has failed to frame proper issues; and
 - b) The appellant desires to adduce additional evidence. [250 Words, RJS-1979]
2. What are the powers of Appellate Court? [50 Words, RJS-1986]
3. 'Unless a right of appeal is clearly given by statute, it does not exist'. Comment can an appellate Court reverse a decree on the ground of misjoinder of parties? [150 Words, UPPCS(J)-1986, 250 Words, HJS-2001]
4. Short Notes: Remand [150 Words, BJE-1979]

CHAPTER XXXVII

FIRST APPEAL

[SECTIONS 96-99A, ORDER 41]

Dear aspirant,

The appeal may be defined as "the judicial examination of the decision by a higher Court of the decision of an inferior Court". It is thus a remedy provided by law for getting the decree of the lower Court set aside. The interference by the appellate Court is usually on the "question of law", and not on a finding of fact. The general rule is that the appellant cannot be allowed to raise in his memorandum of appeal a new plea or ground which he had not taken in the trial Court.

The right to prefer an appeal from the judgment of the Court of first instance is derived from the provisions of Section 96. Save where otherwise expressly provided in this code or by any other law for the time being in force, an appeal shall lie from every decree passed by any Court exercising jurisdiction to the Court authorised to hear appeals from the decision of such Court. An appeal may lie from an original decree passed *ex-parte*. No appeal shall lie from a decree passed by the Court with the consent of parties. No appeal shall lie, except on a question of law from a decree in any suit of the nature cognizable by Courts of small causes. When the amount or value of the subject-matter of the original suit does not exceed Rs. 10,000/- [ten thousand only]. This provision is made by CPC, Amendment Act, 1999.

The right to appeal is not a mere matter of procedure, but it is a substantive right. However, as the remedy of appeal is a creation of statute, it is not an inherent right of a person like the right to suit. Still it is a vested right and can be taken away only by a subsequent legislation. The right accrues to a party on the date of institution of the suit, although it may be actually exercised when adverse judgment is pronounced. The right is governed by the law prevailing at the date of institution of the suit. An appeal is considered as continuation of the original suit rather than as the inception of a new action.

Under Section 96, a person "aggrieved by a decree" has a right of appeal although the decree in specific term may not have been passed against him. However, the party appealing must have been adversely affected by the decree. If the plaintiff discloses that the plaintiff will be satisfied either of the reliefs claimed by him, he cannot be allowed to appeal if one of the relief is granted. One who gets what he wants cannot be said to be a "person aggrieved". In an appeal against *ex parte* decree the appellant can only be heard on the merits of the case. The appellate Court cannot go into the question as to why the appellant had not appeared on the date of final hearing before the trial Court. According to Section 96 (3), a consent or compromise decree is not appealable; however, it may be set aside by a separate suit on the ground that the consent was obtained by coercion, fraud etc. A lawful agreement whereby the parties agree not to appeal from a decree is binding upon the parties thereto. Where a party has accepted the benefits under decree of the Court, he can be estopped from questioning the legality of the decree.

Section 97 provides that if any party aggrieved by a preliminary decree passed against him does not appeal from such a decree, he is precluded from disputing its correctness in any appeal which may be preferred from the final decree. Section 98 lays down that when a Bench of two or more judges hears an appeal, the appeal is to be decided in accordance with the opinion of such judges or of the majority of such judges. Where there is no such majority which concurs in a judgment varying or reversing the decree appealed from, such decree shall be confirmed i.e. the appeal fails. No decree is to be reversed or modified for error or irregularity not affecting merits or jurisdiction (Section 99). A case cannot be remanded in appeal on account of any misjoinder or non-joinder of parties or causes of action; however, Section 99 does not apply to non-joinder of a necessary party. When a case has been tried by a

Section 99-A lays down that no order under Section 47 is to be reversed or modified unless the decision of the case is prejudicially affected. Section 107 lays down that the appellate Court shall have power –

- a) to determine a case finally,
- b) to remand a case,
- c) to frame issues and refer them for trial,
- d) to take additional evidence or to require such evidence to be taken.

Such Court shall have the same powers and shall perform as nearly as may be the same duties as are conferred and imposed by this Code on Courts of original jurisdiction in respect of suits instituted therein. Order 41 lays down the detailed rules governing appeals from original decrees.

If, after an appeal has been filed, a respondent to the appeal desires to prefer an appeal and does not prefer it, his appeal shall be called a cross-appeal. Rule 23 of Order 41 provides that where the Court from whose decree an appeal has been preferred has disposed of the suit upon a preliminary point, and the decree is reversed on appeal, the appellate Court may, remand the case, and also direct what issue or issues are to be tried. The High Court has inherent power under Section 151 of remand in cases not falling within Order 41, Rule 23.

A party to an appeal cannot produce additional or fresh evidence in the appellate Court. But, Rule 27 allows it under certain circumstances –

- a) if the trial Court has refused to admit evidence which ought to have been admitted;
- b) the party seeking to produce it establishes that despite due diligence, such evidence was not within his knowledge or could not be produced by him at the time of passing of the decree;
- c) the appellate Court requires any document to be produced or any witness to be examined to enable it to pronounce judgment, or for any other substantial cause.

~~After hearing the parties, the appellate Court pronounces a judgment in open~~ Court. Copies of the whole judgment must be given to the parties [Rule 30, Order 41]. The judgment shall be in writing and shall contain: the points for determination; the decision thereon; the reasons for the decision; where the decree appealed from is reversed or varied, the relief to which the appellant is entitled [Rule 31]. A decree follows on the judgment of the appellate Court. A dissenting judge need not sign the decree; however, he must state the decision in writing in the judgment and may also state the reasons for his dissent [Rules 34-35, Order 41].

This chapter is not much important for examination point of view. However, following short notes should be proposed from this chapter:

- i) Unless a right of appeal is clearly given by statute, it does not exist i.e. appeal is a creature of statute.
- ii) Can an appellate Court reverse a decree on the ground of misjoinder of parties [Section 99, CPC]?
- iii) Whether a new plea can be raised in an appeal?

With best wishes,

Yours Sincerely
RAHUL

CHAPTER XXXVII

FIRST APPEAL

[SECTIONS 96-99A, ORDER 41]

SYNOPSIS

- I. Appeal: Meaning
- II. Right of Appeal
- III. Right to Appeal is a creature of statute
- IV. Appeal is continuation of suit
- V. Section 96, CPC
- VI. Who may appeal
- VII. Who cannot appeal
- VIII. Appeal against ex-parte decree [Section 96 (2)]
- IX. Consent decree [Section 96 (4)]
- X. No appeal in petty cases [Section 96 (4)]
- XI. Appeal from final decree ~~where no appeal from preliminary decree~~ [Section 97]
- XII. Form of appeal [Rules 1 – 4 of Order 41]
- XIII. Limitation [Article 116, Limitation Act, 1963]
- XIV. Stay of proceedings and execution [Rules 5 – 8, Order 41]
- XV. New pleas
- XVI. Procedure at hearing [Rules 16 – 21, Order 41]
 - a) Right to begin [Rule 16]
 - b) Dismissal for default and restoration [Rules 17 – 19]
 - c) Ex-parte hearing and rehearing [Rules 17 – 21]
 - d) Addition of respondent [Rule 20]
- XVII. Decisions where appeal heard by two or more judges [Section 98]
- XVIII. No decree to be reversed or modified for error or irregularity not affecting merits or jurisdiction [Section 99]
- XIX. No appeal under Section 47 to be reversed or modified unless decision of the case is prejudicially affected [Section 99-A]
- XX. Decree in appeal
- XXI. Appeal to Supreme Court
- XXII. Questions of Previous Years' Exam– [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XXXVII

FIRST APPEAL

[SECTIONS 96-99A, ORDER 41]

I. APPEAL: MEANING

The expression "appeal" has not been defined in the Code, but it may be defined as "the judicial examination of the decision by a higher Court of the decision of an inferior Court". It means removal of a cause from an inferior Court to a superior Court for the purpose of testing the soundness of the decision of the inferior Court.

II. RIGHT OF APPEAL

A right of appeal is not a natural or inherent right. It is well settled that an appeal is a creature of statute and there is no right of appeal unless it is given clearly and in express terms by a statute. Again, the right of appeal is a substantive right and not merely a matter of procedure. It is a vested right and accrues to the litigant and exists as on and from the date the *lis* commences and although it may be actually exercised when the adverse judgment is pronounced, such right is to be governed by the law prevailing at the date of the institution of the suit or proceeding and not by the law that prevails at the date of its decision or at the date of the filing of the appeal. This vested right of appeal can be taken away only by a subsequent enactment if it so provides expressly or by necessary implication, and not otherwise. Thus, if an appeal lies against an order passed by a Single Judge of the High Court under Sections 397 and 398 of the Companies Act, 1956, to the Division Bench, the said right cannot be taken away on the ground that the High Court has not framed necessary rules for filing such appeal. Substitution of a new forum of appeal should not be readily inferred. The right being a creature of statute. Similarly, no one has a vested right to have one's appeal heard by a specified number of judges since it is merely a matter of procedure. Sections 96, 100, 104 and 109 of the Code of Civil Procedure confer right of appeal on an aggrieved person in cases mentioned therein. Sections 96 to 99 and 107 read with Order 41 deal with first appeals.

III. RIGHT TO APPEAL IS A CREATURE OF STATUTE

The remedy of appeal is a creation of statute and is not an inherent right of a person. If the Legislature in its wisdom thinks in a particular case that no appeal should be provided, it cannot be held that the legislation is bad. [*Ishar Das v. State of Haryana*, AIR 1975 P & H 29]

A litigant may have a right to institute a suit unless specifically barred, but there is no right of appeal unless conferred. For filing a suit, right is not required to be conferred by any statute whereas since the right of appeal is the right from the statutory provision by which it is created, such a right has got to be conferred. It does not inhere in a litigant. The right of appeal conferred or acquired has to be exercised only in the manner prescribed. The Legislature can enact a law taking away the vested right of appeal by making a provision to that effect or by expressing an intention to the contrary. [*Pratap Narayan Agarwal v. Ram Narayan Agarwal*, AIR 1980 Allahabad 42 F. B.]

It is indeed axiomatic that a pre-existing right to appeal is a vested right which inheres in a party. *Lis* once originated gives birth to a vested right to take the *lis* to its ultimate end or terminus *a quo* is due course of the existing law. Principles emerging from the rulings can best be summed up as under:

- The legal pursuit of a remedy, suit, appeal and second appeal are really but steps in a series of proceedings all connected by an intrinsic unity and are to be regarded as one legal proceeding.
- The right of appeal is not a matter of procedure but is a substantive right.
- The institution of the suit carries with it the implication that all rights of appeal then in force are preserved to the parties thereto till the rest of the career of the suit.
- The right of appeal is a vested right and such a right to enter the superior Court accrues to the litigant and exists as on and from the date the *lis* commences and although it may be actually exercised when the adverse judgment is pronounced such right is to be governed by the law prevailing at the date of the institution of the suit or proceeding and not by the law that prevails at the date of its decision or at the date of the filing of the appeal.

- e) This vested right of appeal can be taken away only by a subsequent enactment, if it so provides expressly or by necessary intendment and not otherwise.
- f) When a lis commences, all rights get crystallised and no clog upon a likely appeal can be put, unless the law was made retrospective, expressly or by implication. [*Sonya Dagdu v. Manhu Dagdu*, AIR 1980 Bombay, 62]

IV. APPEAL IS CONTINUATION OF SUIT

An appeal is a continuation of suit. A decree passed by an appellate Court would be construed to be the decree passed by the Court of the first instance. Appeal is virtually rehearing of the matter. The appellate Court possesses the same powers and duties as the original Court. Once again the entire proceedings are before the appellate Court which can review the evidence as a whole subject to a statutory limitations, if any, and can come to its own conclusion on such evidence.

In *Dayawati v. Inderjit*, AIR 1966 SC 1423, speaking for the Supreme Court, Hidayatullah, J. (as he then was) stated:

"An appeal has been said to be 'the right of entering a superior Court, and invoking its aid and interposition to redress the error of the Court below.' The only difference between a suit and an appeal is that an appeal only reviews and corrects the proceedings in a cause constituted but does not create the cause."

Moreover, where an appeal is provided by law and is filed against a decree or order passed by a lower Court, the decision of the appellate Court will be the operative decision. The decree or order passed by the appellate Court. It is obvious that when an appeal is made, the appellate authority can do one of the three things, namely: (i) it may reverse the order under appeal (ii) it may modify that order; and (iii) it may merely dismiss the appeal and thus confirm the order without any modification. In all these three cases after the appellate authority has disposed of the appeal, the operative order is the order of the appellate authority whether it has reversed the original order or modified it or confirmed it. (i) is the appellant decision alone which subsists and is operative and capable of enforcement.

V. SECTION 96, CPC

Section 96 reads as under:

- i) Save where otherwise expressly provided in the body of this Code or by any other law for the time being in force, an appeal shall lie from every decree passed by any Court exercising original jurisdiction to the Court authorized to hear appeals from the decisions of such Court.
- ii) An appeal may lie from an original decree passed ex parte.
- iii) No appeal shall lie from a decree passed by the Court with the consent of parties.
- iv) No appeal shall lie, except on a question of law, from a decree in any suit of the nature cognizable by Courts of small causes, when the amount or value of the subject-matter of the original suit does not exceed ten thousand rupees.

VI. WHO MAY APPEAL

The following persons are entitled to appeal under this section:

- i) A party to the suit who is aggrieved or adversely affected by the decree, or is such party is dead, his legal representatives.
- ii) A person claiming under a party to the suit or a transferee of the interests of such party, who, so far as such interest is concerned, is bound by the decree, provided his name is entered on the record of the suit.
- iii) A guardian *ad litem* appointed by the Court in a suit by or against a minor.
- iv) Any other person, with the leave of the Court, if he is adversely affected by the decree.

VII. WHO CANNOT APPEAL

If a party agrees not to appeal or waives his right to appeal, he cannot file an appeal and will be bound by an agreement if otherwise such agreement is valid. Such agreement, however, must be clear and unambiguous. Whether a party has or has not waived his right of appeal depends upon the facts and circumstances of each case. Similarly, where a party has accepted the benefits under decree of the Court, he can be estopped from questioning the legality of the

decreed. Finally, the vested right of appeal is destroyed if the Court to which an appeal lies is abolished altogether without any forum being substituted in its place.

VIII. APPEAL AGAINST EX-PARTE DECREE [SECTION 96 (2)]

In an appeal against an *ex parte* decree the appellant can only be heard on the merits of the case. The appellate Court cannot go into the question as to why the appellant had not appeared on the date of final hearing before the trial Court. [*Rajjan Lal v. Rukmani Devi*, 1979 All. L. J. 1237]

In *Syed Mazhar Hussain v. Rafiq Hussain*, AIR 1925 Oudh, 645 it was pointed that when a specific remedy with a particular limited period of limitation is provided, the party must avail himself of it and cannot make it a ground of appeal under the general provision granting him a right of appeal from an *ex parte* decree. This was also the view taken in *Ganesh Das Verma v. Harish Chandra* [AIR 1934 Oudh, 131]. In *Rajjan Lal v. Rukmani Devi & Other* [1979 A. L. J. 1237], following the decisions above mentioned, it was reiterated that in the appeal against the decree the appellate Court cannot go into the question why the appellant had not appeared on the date of final hearing before the trial Court. That is the scope of an application under Order 9, Rule 13, CPC. An appeal against a decree cannot take the place of miscellaneous application for setting aside an *ex parte* decree.

IX. CONSENT DECREE [SECTION 96 (4)]

A consent or compromise decree is not appealable, but on proper grounds it may be set aside by a separate suit.

No appeal will lie against an order recording a compromise when the parties settled their disputes amicably and there was no contest about the terms of the compromise. The proper remedy for an aggrieved party is to reopen the matter in the trial Court by way of review or otherwise.

The rule contained in Section 96 (3) of the Civil Procedure Code is based on the principle that a person who gives his consent to a decree being passed against him, is later on estopped from challenging the same. Therefore, once a decree is passed with the consent of parties and the decree *ex facie* shows that both the parties had consented to it, no appeal can lie against such decree on the ground that the consent to such decree was not free and was obtained by fraud, misrepresentation, coercion, undue influence, etc.

In order to set aside a consent decree on the ground that the consent was obtained by coercion, the proper remedy is to file a separate suit and not an appeal or an application for review against that decree or an application under Section 152 of the Code.

If one of the parties to the litigation asserts before the appellate Court that his consent to the decree was not free and it was obtained under coercion, the appellate Court obviously cannot decide the dispute on the material before it unless it allows both the parties to adduce additional evidence to prove that fact. Such a procedure is not covered by Order 41, Rule 27 which is the only provision under which additional evidence is produced before the appellate Court. Such evidence can be adduced properly in a separate suit for that purpose. [AIR 1970 Punj. 176]

X. NO APPEAL IN PETTY CASES [SECTION 96 (4)]

New Section 96 (4) has been inserted by the Amendment Act of 1999, sub-section (4) bars appeals on facts from the decrees passed in petty suits where the amount or value of the subject-matter of the original suit does not exceed ten thousand rupees, if the suits in which such decrees are passed are of the nature cognizable by the Courts of small causes. The underlying object in enacting the said provision is to reduce appeals in petty cases. Such restrictions are necessary in the interests of the litigants themselves. They should not be encouraged to appeal on facts in trivial cases.

XI. APPEAL FROM FINAL DECREE WHERE NO APPEAL FROM PRELIMINARY DECREE [SECTION 97]

Where any party aggrieved by a preliminary decree passed after the commencement of this Code does not appeal from such decree, he shall be precluded from disputing its correctness in any appeal which may be preferred from the final decree.

Recording of finding by Court without considering all issues and evidence led by parties is erroneous and illegal. [*Madhukar v. Sangram*, AIR 2001 SC 2171] -

<https://goo.gl/GU7xEZ> (Hard copy)
The passing of a final decree subsequent to the institution of the appeal against the preliminary decree will not affect the maintainability of the appeal. There is no provision in the Code making an appeal filed against the preliminary decree infructuous, if an appeal against the final decree is not filed. [*Madhao Rao Paikaji v. Eknathrao*, 194 N. L. J. 259]

XII. FORM OF APPEAL [RULES 1 – 4 OF ORDER 41]

Sections 96 to 99-A enact the substantive law as regards First Appeals, while Order 41 lays down the procedure relating thereto. The expressions appeal and memorandum of appeal denote two distinct things. The appeal is the judicial examination by a higher Court of the decision of an inferior Court. The memorandum of appeal contains the grounds on which the judicial examination is invited. For purposes of limitation and for purposes of the rules of the Court, it is required that a memorandum of appeal shall be filed. In order that an appeal may be said to be validly presented, the following requirements must be complied with:

- a) It must be in the form of a memorandum setting forth the grounds of objections to the decree appealed from;
- b) It must be signed by the appellant or his pleader;
- c) It must be presented to the Court or to such officer as it appoints in that behalf;
- d) The memorandum must be accompanied by a certified copy of the decree;
- e) It must be accompanied by a certified copy of the judgment unless the Court dispenses with it; and
- f) Where the appeal is against a money decree, the appellant must deposit the decretal amount or furnish the security in respect thereof as per the direction of the Court.

XIII. LIMITATION [ARTICLE 116, LIMITATION ACT, 1963]

The Code of Civil Procedure confers a right of appeal, but does not prescribe period of limitation for filing an appeal. The Limitation Act, 1963, however, provides the period for filing appeals. It states that an appeal against a decree or order can be filed in a High Court within ninety days and in any other Court within thirty days from the date of decree or order appealed against.

XIV. STAY OF PROCEEDINGS AND EXECUTION [RULES 5 – 8, ORDER 41]

Rule 5 provides for stay of execution of decree or order. After an appeal has been filed, the appellate Court may order stay of proceedings under the decree or the execution of such decree. But mere filing of an appeal does not suspend the operation of a decree. Stay may be granted if sufficient grounds are established. The object underlying Rule 5 is to safeguard the interests of both, the decree-holder and the judgment-debtor. It is the right of the decree-holder to reap the fruits of his decree. Similarly, it is the right of the judgment-debtor not merely to get a barren success in case his appeal is allowed by the appellate Court. This rule thus strikes a just and reasonable balance between these two opposing rights. The following conditions must, therefore, be satisfied before stay is granted by the Court –

- a) the application has been made without unreasonable delay;
- b) substantial loss will result to the applicant unless such order is made; and
- c) security for the due performance of the decree or order has been given by the applicant.

XV. NEW PLEAS

The general rule is that the appellant cannot be allowed to raise in his memorandum of appeal a new ground; nor can he raise in his memorandum of appeal any objection which, if it had been taken in the trial Court, might have been cured by appropriate amendment. It is true that there are certain exceptions to this rule such as question of law, question of limitation, *res judicata*, etc., which can be substantiated on the facts already on the record. But a matter which though of law depends upon questions of fact for its determination cannot be raised for the first time in appeal. [*Mohammed Abdul Razack v. Syed Meera Ummal*, (1966) 1 M. L. J. 565]

XVI. PROCEDURE AT HEARING [RULES 16 – 21, ORDER 41]

a) Right to begin [Rule 16]

The appellant has right to begin. After hearing the appellant in support of the appeal, if the Court finds no substance in the appeal, it may dismiss the appeal at once without

<https://goo.gl/GU7xEZ> (Hard copy)
calling upon the respondent to reply. But if the appellate Court does not dismiss the appeal at once, it will hear the respondent against the appeal and the appellant shall then be entitled to reply.

b) Dismissal for default and restoration [Rules 17 – 19]

If the appellant does not appear when the appeal is called on for hearing, the Court may dismiss the appeal in default. The Court, however, cannot dismiss it on merits. The Court may also dismiss the appeal where the notice has not been served to the respondent for non-payment of process fee by the appellant or where the notice is returned unserved and the appellant has failed to deposit process fee for serving notice to the respondent once again. The appeal, however, cannot be dismissed although the notice has not been served upon the respondent, if the respondent appears when the appeal is called on for hearing.

Where the appeal has been dismissed for default or for non-payment of process fees, the appellant may apply to the appellate Court for the restoration of appeal. On sufficient cause being shown, the appellate Court shall restore the appeal on such terms as to costs or otherwise as it thinks fit. The Court may require the counsel to go on for hearing after restoration and may refuse to restore the matter for further adjournment.

c) Ex-parte hearing and rehearing [Rules 17 – 21]

Where the appellant appears and the respondent does not appear when the appeal is called on for hearing, the appeal shall be heard ex parte. If the judgment is pronounced against the respondent, he may apply to the appellate Court for rehearsing of the appeal. If he satisfies the Court that the notice of appeal was not duly served upon him or that he was prevented by sufficient cause from appearing when the appeal was called on for hearing, the Court shall rehear the appeal on such terms as to costs or otherwise as it thinks fit. However, ordinarily, no ex parte decree should be passed by a Court except on reliable evidence.

d) Addition of respondent [Rule 20]

Where it appears to the appellate Court at the hearing of the appeal that any person who was a party to the suit in the trial Court but who has not been made a party to the appeal is interested in the result of the appeal, the Court may adjourn the hearing of the appeal and direct that such person be joined as a respondent. Such addition of a respondent cannot be ordered after the expiry of the period of limitation for appeal, unless the reasons are recorded for doing so. The Court can also make an order as to costs. The object of Rule 20 is to protect parties to the suit who have not been made respondents in the appeal from being prejudiced by modifications being made behind their back in the decree under appeal. Over and above Rule 20, the appellate Court has inherent power to add a party respondent or to transpose a party from one category to another.

XVII. DECISIONS WHERE APPEAL HEARD BY TWO OR MORE JUDGES [SECTION 98]

i) Where an appeal is heard by a Bench of two or more judges, the appeal shall be decided in accordance with the opinion of such Judges or of the majority (if any) of such Judges.

ii) Where there is no such majority which concurs in a judgment varying or reversing the decree appealed from, such decree shall be confirmed:

Provided that where the Bench hearing the appeal is composed of two or other even number of Judges belonging to a Court consisting of more Judges than those constituting the Bench, and the Judges composing the Bench differ in opinion on a point of law, they may state the point of law upon which they differ and the appeal shall then be heard upon that point only by one or more of the other Judges, and such point shall be decided according to the opinion of the majority (if any) of the Judges who have heard the appeal, including those who first heard it.

iii) Nothing in this section shall be deemed to alter or otherwise affect any provision of the Letters patent of any High Court.

Where, however, there is difference of opinion on a point of law between the members of a Bench composed of two judges, they may state the point of law upon which they differ for decision by a third or more of the other Judges and such point shall be decided according to the opinion of the majority of the Judges who have heard the appeal, including those who first heard it.

<https://goo.gl/GU7xEZ> (Hard copy)
A finding of fact recorded by the Courts below cannot be interfered with when there is a difference of opinion between the Judges constituting the Bench. In such a case sub-section (2) of Section 98 will be applicable as respects that finding alone on which there is a difference of opinion and not to the result of appeal itself when in the opinion of the Judge the lower Court has misapplied the law on the facts found but the other Judge does not concur in that view. Where the opinion of the third Judge on the legal point is severable from his opinion on the finding of fact that becomes conclusive by the application of Section 98 (2) irrespective of the opinion recorded by the third Judge. [Baboo Ram v. Ishrat Ali, AIR 1975 All. p. 80]

XVIII. NO DECREE TO BE REVERSED OR MODIFIED FOR ERROR OR IRREGULARITY NOT AFFECTING MERITS OR JURISDICTION [SECTION 99]

No decree shall be reversed or substantially varied, nor shall any case be remanded, in appeal on account of any misjoinder or non-joinder of parties or causes of action or any error, defect or irregularity in any proceedings in the suit, not affecting the merits of the case or the jurisdiction of the Court:

Provided that nothing in this section shall apply to non-joinder of a necessary party.

Where parties do not appear to have been prejudiced in any manner by an alleged misjoinder of defendants or cause of action, the defect, if any, is completely cured by Section 99, CPC. [Ram Chander Singh v. Raghunandan Ahir, 1949 R. D. 91]

XIX. NO APPEAL UNDER SECTION 47 TO BE REVERSED OR MODIFIED UNLESS DECISION OF THE CASE IS PREJUDICIALLY AFFECTED [SECTION 99-A]

Without prejudice to the generality of the provisions of Section 99, no order under Section 47 shall be reversed or substantially varied, on account of any error, defect or irregularity in any proceedings relating to such order, unless such error, defect or irregularity has prejudicially affected the decision of the case.

XX. DECREE IN APPEAL

Date and contents of Decree – (i) The decree of the appellate Court shall bear the date on which the judgment was pronounced; (ii) it shall contain the number of the appeal, the names and descriptions of the appellant and respondent, and a clear specification of the relief granted or other adjudication made; (iii) it shall also state the amount of costs incurred in the appeal, and by whom or out of what property, and in what proportions such costs and the costs in the suit are to be paid; and (iv) finally, it shall be signed and dated by the Judge or Judges who passed it. Where there is difference of opinion between the Judges hearing the appeal the dissenting Judge need not sign the decree. [Order 41, Rule 35]

XXI. APPEAL TO SUPREME COURT

Sections 109 and 112 provide for appeals to the Supreme Court in certain circumstances. Order 45 prescribes procedure for such appeals.

XXII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. 'Unless a right of appeal is clearly given by statute, it does not exist'. Comment can an appellate Court reverse a decree on the ground of misjoinder of parties? [250 Words, HJS-2001]
2. Discuss the provisions of the Civil Procedure Code relating to First Appeal and Second Appeal. Whether a new plea can be raised in an Appeal. [250 Words, BJE-1987]
3. Under which sections of CPC are civil first appeals, civil second appeals and miscellaneous appeals filed? [20 Words, Jharkhand JE-2001]

CHAPTER XXXVIII

SECOND APPEAL

[SECTIONS 100 – 103, ORDER 42]

Dear aspirant,

The provisions relating to second appeal are contained in Sections 100 – 103 and Order 42. Section 100 lays down that:

- i) Save as otherwise expressly provided in this Code or by any other law for the time being in force, an appeal shall lie to the High Court from every decree passed in appeal by any Court subordinate to the High Court, if the High Court is satisfied that the case involves a substantial question of law.
- ii) An appeal may lie under this section from an appellate decree passed ex-parte.
- iii) The memorandum of appeal shall precisely state the substantial question of law involved in the appeal.
- iv) Where the High Court is satisfied that a substantial question of law is involved in any case, it shall formulate that question.
- v) The appeal shall be heard on the question so formulated and the respondent shall, at the hearing of the appeal, be allowed to argue that the case does not involve such question. The proviso provides that nothing in this sub-section shall be deemed to take away or abridge the power of the Court to hear, for reasons to be recorded, the appeal on any other substantial question of law, not formulated by it, if it is satisfied that the case involves such question.

Section 100 A (as amended by the 2002 Amendment) lays down that notwithstanding anything contained in any Letters Patent for any High Court or in any other law for the time being in force, where any appeal from an original or appellate decree/order is heard and decided by a single judge of a High Court, no further appeal shall lie from the judgment and decree of such single judge. Section 100 only applies to appeals from Courts subordinate to the High Court. Section 101 lays down that no second appeal shall lie except on the grounds mentioned in Section 100. Thus, no Court has power to abridge or enlarge the grounds of appeal as are mentioned in Section 100. No second appeal lies from an order; it lies only from an appellate decree. Section 102 (as amended by the 2002 Amendment) provides that no second appeal shall lie from any decree, when the subject matter of the original suit is for recovery of money not exceeding Rs. 25,000/-.

Where any section of the Code has declared that any decision shall be final, no second appeal will lie from such a decision (viz. Sections 102, 104 and Order 47, Rule 7). The principle on which Section 100 is based is that there should be an end of litigation on the question of fact even at the cost of occasional error. There is no jurisdiction to entertain a second appeal on the ground of an erroneous finding of fact based on appreciation of the relevant evidence [*Kashibai v. Parbatibai* (1995) 6 SCC 213]. Re-appreciation of evidence is not permitted unless the judgment is perverse or it is based upon evidence admitted illegally or the finding is without evidence or there has been wrong construction of documents or misreading of evidence.

A finding on a question of benami or bona fide or negligence are all questions of fact. However, there are cases where the questions of law and fact are intricately mixed. In such cases, the Court will go into the question of fact in order to determine the question of law. Further, there are cases where a legal inference drawn from facts may be faulty or defective. In such cases also the appellate Court may interfere. Points of law can be allowed to be urged and put forward in a second appeal, even though such points were available on facts before the Courts below, but were not urged or put forward. Thus, new plea can be taken in second appeal.

The appellate Court is not bound by the findings recorded by the trial Court in the same manner as a second appellate Court is not bound by the findings of fact recorded by a lower appellate Court.

A second appeal lies only on a substantial question of law. The 1976 Amendment to Section 100 has barred entertainment of second appeal on the ground of error of law or procedure. In **Chunnilal Mehta & Sons v. Century Spinning & Mfg. Co. (AIR 1962 SC 1314)**, the Supreme Court held that the construction of a document of title which is foundation of the rights of parties, necessarily raises a question of law. It laid down the following principles to determine whether a question of law is a "substantive question of law".

- i) If the question is of general public importance, or it directly and substantially affects the rights of the parties.
- ii) A substantial question of law is a substantial question of law between the parties in the case involved and does not necessarily mean a question of general importance.
- iii) Whether it is either an open question in the sense that it is not finally settled by this Court (Supreme Court) or by the privy council or by the Federal Court, or is not free from difficulty or calls for discussion of alternative views; then it is a substantial question of law.
- iv) If the question is settled by the Highest Court or the general principles to be applied in determining the question are well settled and there is a mere question of applying those principles (thus a misapplication of principle of law does not raise any substantial question) or that the plea raised is palpably absurd, the question would not be a substantial question of law.

The following questions may be said to be "substantial question of law" –

- i) Recording of a finding without any evidence on record;
- ii) Disregard or non-consideration of relevant or admissible evidence;
- iii) Taking into consideration irrelevant or inadmissible evidence;
- iv) Misconstruction of evidence or documents;
- v) Inference from or legal effect of proved or admitted facts;
- vi) A question of admissibility of evidence;
- vii) A question on which there is conflict of judicial opinion;
- viii) Placing onus of proof on a wrong party, and
- ix) Disposal of appeal before disposing an application for additional evidence under Order 41.

Section 103 lays down that in any second appeal, the High Court may, if the evidence on the record is sufficient, determine any issue necessary for the disposal of the appeal:

- a) which has not been determined by the lower appellate Court, or both by the Court of first instance and the appellate Court; or
- b) which has been wrongly determined by such Court or Courts by reason of a decision on such question of law as is referred in Section 100.

Many short answer type questions [word limit: 20 words] can be asked in RJS but for UPSCS (J), DJS, HJS, HJS, MPPCS (J) etc. Only one question is most important from this chapter that is "what is a substantial question of law?" Please prepare this questions with the help of decided case laws and illustration. A complete answer of this question is given in the notes.

With best wishes,

Yours Sincerely
RAHUL

SECOND APPEAL

[SECTIONS 100 – 103, ORDER 42]

SYNOPSIS

I. General

II. Section 100

III. Nature and Scope

IV. Substantial Question

- a) Meaning
- b) Scope
- c) Illustrative Cases

V. No further appeal in certain cases [Section 100 A]

VI. Second appeal on no other ground [Section 101]

VII. No second appeal in certain cases [Section 102]

VIII. Power of High Court to determine question of fact [Section 103]

IX. Limitation [Article 116, Limitation Act, 1963]

X. General Principles

XI. Distinction: First Appeal and Second Appeal

XII. Questions of Previous Years' Exam– [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

SECOND APPEAL

[SECTIONS 100 – 103, ORDER 42]

I. GENERAL

Sections 100 to 103, 107 – 108 and Order 42 deal with second appeals. As stated above, a right of appeal is not a natural or inherent right attaching to litigation and it does not exist unless expressly conferred by a statute. Section 100 of the Code provides for filing of second appeals in the High Court, if the High Court is satisfied that "the case involves a substantial question of law" but not on any other ground.

II. SECTION 100

Section 100 reads as under:

- i) Save as otherwise expressly provided in the body of this Code or by any other law for the time being in force, an appeal shall lie to the High Court from every decree passed in appeal by any Court subordinate to the High Court, if the High Court is satisfied that the case involves a substantial question of law.
- ii) An appeal may lie under this section from an appellate decree passed ex parte.
- iii) In an appeal under this section, the memorandum of appeal shall precisely state the substantial question of law involved in the appeal.
- iv) Where the High Court is satisfied that a substantial question of law is involved in any case, it shall formulate that question.
- v) The appeal shall be heard on the question so formulated and the respondent shall, at the hearing of the appeal, be allowed to argue that the case does not involve such question:
Provided that nothing in this sub-section shall be deemed to take away or abridge the power of the Court to hear, for reasons to be recorded, the appeal on any other substantial question of law, not formulated by it, if it is satisfied that the case involves such question.

III. NATURE AND SCOPE

After the amendment in Section 100, the following consequences ensue:

- i) The High Court must be satisfied that the case involves a substantial question of law;
- ii) The memorandum of appeal must precisely state such question;
- iii) The High Court at the time of admitting the appeal should formulate such question;
- iv) The appeal shall be heard only on that question;
- v) At the hearing of the appeal, the respondent can argue that the case does not involve such question;
- vi) The High Court is, however, empowered to hear the second appeal on any other substantial question of law, not formulated by it, if it is satisfied that the appeal involves such question. The High Court, however, has to record reasons for doing so.

IV. SUBSTANTIAL QUESTION

a) Meaning

Though the expression substantial question of law has not been defined in the Code, in the case of *Chunnilal Mehta v. Century Spinning & Manufacturing Co. Ltd.*, AIR 1962 SC, the Supreme Court observed:

The proper test for determining whether a question of law raised in the case is substantial would, in our opinion, be whether it is of general public importance or whether it directly and substantially affects the rights of the parties and if so, whether it is either an open question in the sense that it is not finally settled by this Court or by the Privy Council or by the Federal Court or is not free from difficulty or calls for discussion of alternative views. If the question is settled by the highest Court or the general principles to be applied in determining the question are well settled and there is a mere question of applying those principles or that the plea raised is palpably absurd, the question would not be a substantial question of law.

At the same time, however, it should be remembered that for the purpose of invoking the jurisdiction of the High Court under Section 100 of the Code, the substantial question of law need not be of general importance. The Law Commission in its Fifty-fourth Report made it clear by observing:

"It should be noted that we are not limiting the scope of second appeal to questions of law of general importance. If the law has been clearly laid down by the High Court, and the decision of the subordinate Court is in a clear violation of the law as pronounced by the High Court, the power of the High Court to correct it should be left intact. This situation would not be covered if the limitation of general importance is inserted."

In other words, substantial question of law means a substantial questions of law as between the parties in the case involved. A question of law is substantial as between the parties if the decision turns one way or the other on the particular view of law. If it does not affect the decision, it cannot be said to be substantial as between the parties. Ultimately, what is a substantial question of law would depend upon facts and circumstances of each case.

In *Ratanlal v. Kishorilal*, AIR 1993 Cal., the Full Bench of the High Court of Calcutta after referring to the Fifty-fourth report of the Law Commission and a number of decisions, observed:

"(B)y importing the expression substantial question of law, the Commission can be said only to have sought to eliminate frivolous, flimsy and fragile second appeals and exhorted the High Courts to be on the strictest vigil against entry to appeals on inconsequential but ingenious grounds. It does not by its own avowal preclude admission of appeal in cases where there has been judicial misconduct in the assessment or admission of evidence. This predicates that facts found upon such misconduct of the proceedings and misapplication of the procedure with regard to evidence will necessarily be a question of law touching the legality of inference on proved facts....."

c) Illustrative Cases

Whether or not in a particular matter, a substantial question of law is involved depends upon the facts and circumstances of each case. Moreover, the expression "involves" implies a considerable degree of necessity. It does not mean that in certain contingencies such a question might possibly arise. Similarly, the mere fact that such a question is raised in the second appeal is also not sufficient. It must definitely and clearly arise in the case. Finally, if a question of law has already been settled by the highest Court, that question however important and difficult may have been regarded in the past and however large may be its effect on any of the parties, would not be regarded as a substantial question of law.

The following questions may be said to be substantial question of law:

- i) Recording of a finding without any evidence on record;
- ii) Inference from or legal effect of proved or admitted facts;
- iii) Disregard or non-consideration of relevant or admissible evidence;
- iv) Taking into consideration irrelevant or inadmissible evidence;
- v) Misconstruction of evidence or documents;
- vi) Interpretation or construction of material documents;
- vii) A question on which there is conflict of judicial opinion;
- viii) A question of admissibility of evidence;
- ix) Placing onus of proof on a wrong party;
- x) Disposal of appeal before disposing an application for additional evidence under Order 41, Rule 27, etc.

Like first appeal, where second appeal involves construction of material documents and if more than one view is possible, even if the High Court dismisses the appeal summarily, it should record reasons for doing so.

V. NO FURTHER APPEAL IN CERTAIN CASES [SECTION 100 A]

Notwithstanding anything contained in any Letters Patent for any High Court or in any other instrument having the force of law or in any law for the time being in force, where any appeal

from an original or appellate decree or order is heard and decided by a single Judge of a High Court, no further appeal shall lie from the judgment, decision or order of such single Judge.

Where the Letters Patent provided for an appeal from the decision of a single Judge of a High Court in an appellate decree, that virtually amounted to a third appeal and in order to minimise delay in the final disposal of litigation, it has been provided that there shall be no further appeal against the decision of a single Judge in a second appeal.

VI. SECOND APPEAL ON NO OTHER GROUND [SECTION 101]

No second appeal shall lie except on the grounds mentioned in Section 100.

An appellate Court cannot partly admit and partly reject the appeal under Sections 100 and 101 and Order 41, rr. 9 and 23, CPC. It must admit wholly or reject wholly. [*Ramji Bhagata v. Krishnarao Karirao Bagra*, (1982) 1 SCC 433]

VII. NO SECOND APPEAL IN CERTAIN CASES [SECTION 102]

No second appeal shall lie from any decree, when the subject matter of the original suit is for recovery of money not exceeding twenty-five thousand rupees.

VIII. POWER OF HIGH COURT TO DETERMINE QUESTION OF FACT [SECTION 103]

In any second appeal, the High Court may, if the evidence on the record is sufficient, determine any issue necessary for the disposal of the appeal –

- a) which has not been determined by the lower appellate Court or both by the Court of first instance and the lower appellate Court; or
- b) which has been wrongly determined by such Court or Courts by reason of a decision on such question of law as is referred to in Section 100.

The High Court has the power to dispose of a second appeal on a necessary issue if the evidence on the record is sufficient for the disposal of the appeal, and the issue has not been determined by the first appellate Court or both by the Court of first instance and the lower appellate Court, or it has been wrongly determined by such Court or Courts by reason of a decision on such question of law as is referred to in Section 100, viz., a substantial question of law.

Section 103 of the Code of Civil Procedure confers powers on the High Court to decide questions of facts in second appeal even in cases where the facts have not been decided by the lower appellate Court. Thus, in an eviction petition on the ground that the tenant has acquired vacant possession of residence within the meaning of Section 14 (1) (h) of the Rent Act, although the Tribunal has not expressed its opinion on the question of fact, whether the tenant has or has not acquired vacant possession of residence, the High Court in second appeal has power to decide such question, when the evidence on record is sufficient for the decision of that question. [*Vardesh Chander Channa v. Prem Nath*, AIR 1981 NOC 110, Delhi]

IX. LIMITATION [ARTICLE 116, LIMITATION ACT, 1963]

A second appeal lies to a High Court within a period of ninety days from the date of decree appealed against.

X. GENERAL PRINCIPLES

From the aforesaid discussion, the following general principles can be deduced regarding second appeals:

- a) A second appeal lies in the High Court;
- b) Such appeal is maintainable on a substantial question of law alone;
- c) An appeal lies also against an ex parte decree;
- d) No second appeal lies except on grounds mentioned in Section 100; i.e. except on a substantial question of law. Thus, no appeal can be filed on a question of fact, question of law, or mixed question of fact and law;
- e) No second appeal lies in a suit cognizable by a Court of small causes where the amount does not exceed rupees Twenty five thousand;
- f) The memorandum of appeal must state substantial question of law;

- <https://goo.gl/GU7xE2> (Hard copy)
- g) The High Court should formulate substantial question of law while admitting appeal;
 - h) The appeal will be heard only on such question;
 - i) The High Court, however, has power to hear the appeal on other substantial question of law not formulated by it at admission stage by recording reasons;
 - j) At the hearing the respondent can argue that such question does not involve in the appeal;
 - k) A substantial question of law does not mean a question of general importance but a question arising between the parties to appeal;
 - l) In certain circumstances, a High Court can also decide an issue of fact;
 - m) Procedure at hearing will be the same as that of first appeal;
 - n) No letters patent appeal lies against the decision in second appeal;
 - o) The provisions of the Amendment Act of 2002 do not apply to second appeals already admitted prior to the amendment and pending for hearing.

XI. DISTINCTION: FIRST APPEAL AND SECOND APPEAL

- i) Whereas first appeal lies from a decree passed by a Court exercising original jurisdiction, second appeal lies from a decree passed by a Court exercising appellate jurisdiction.
- ii) A first appeal lies to superior Court, which may or may not be a High Court, second appeal lies only in the High Court.
- iii) The grounds of first appeal and second appeal are different. Whereas first appeal can be filed on a question of fact, or of law, or of fact and law, second appeal can lie only on a substantial question of law.
- iv) Where an amount of decree does not exceed Twenty five thousand rupees, first appeal is maintainable on a question of law, but second appeal does not lie in such cases.
- v) In first appeal, an appellate Court has power to decide issues of fact, but in second appeal, a High Court can decide issues of fact only in certain cases. (Section 103)
- vi) Period of limitation for filing first appeal is ninety days in case such an appeal lies to a High Court and thirty days if it lies in any other Court. Second appeal, however, can be filed only in a High Court within ninety days.
- vii) Letters patent appeal is maintainable against a 'judgment' of a Single Judge of a High Court to a Division Bench of the same Court, but no such appeal is maintainable against a decision of a Single Judge in second appeal (Section 100-A).

XII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. On what grounds and in which Court second appeal shall lie. **[15 Words, RJS-1986]**
2. Discuss the concept of "Substantial Question of Law" on which the second appeal is filed before the High Court under Section 100 of Civil Procedure Code. Whether the second appeal can lie in the following cases? Give exact answer with reasons:
 - a) Ex-parte decree
 - b) Decision being contrary to law
 - c) Legal inferences drawn from finding of fact
 - d) Usages having the force of law**[250 Words, UPPCS(J)-2000]**
3. What is the bar created by Section 100-A CPC? **[20 words, Jharkhand JE-2001]**

CHAPTER XXXIX
REFERENCE
[SECTION 113, ORDER 46]

Dear aspirant,

Section 113 provides that "subject to such conditions and limitations as may be prescribed, any Court may state a case and refer the same for the opinion of the High Court and the High Court may make such order thereon as it thinks fit." Section 113 contains a proviso. It states that where the Court is satisfied that a case pending before it involves a question as to the validity of any Act, Ordinance or Regulation, the determination of which is necessary for the disposal of the case, and is of the opinion that such Act, etc. is invalid or inoperative but has not been so declared by the High Court or the Supreme Court, the Court shall state a case setting out its opinion and refer the same for the opinion of the High Court.

The object of Section 113 is to enable the subordinate Court to obtain, in non-appealable cases, the opinion of the High Court in advance on a question of law and thereby avoid the commission of an error which could not be remedied later on. When the High Court hears a reference, it acts like a Court of Appeal.

Order 46 prescribes the conditions to be satisfied to enable a subordinate Court to make a reference, either of its own motion or on the application of the parties. The conditions which permits a reference are:

- i) There arises a question of law in any suit, appeal or execution from which no appeal lies;
- ii) There is a reasonable doubt on such question;
- iii) The Court draws up a statement of the facts of the case and the point on which doubt is entertained; and
- iv) The Court expresses its own opinion on the point [Rule 1, Order 46]

The Court making a reference may either stay the proceedings or proceed in the case and may pass a decree/order contingent upon the decision of the High Court on the point referred. The High Court after hearing the parties (if they appear and desired to be heard) decides the point, transmit a copy of its judgment to the Court which made the reference. The High Court may on reference return the case for amendment, or alter, cancel or set aside any decree/order which the Court making the reference has passed or made, and make such order as it think fit. Such Court shall then dispose of the case in conformity with the decision of the High Court.

This Chapter is not much important for Main Judicial Examination but in Preliminary Exam, one question can be asked from this Chapter.

With best wishes,

Yours Sincerely
RAHUL

CHAPTER XXXIX

REFERENCE

[SECTION 113, ORDER 46]

SYNOPSIS

I. Nature and Scope

II. Object

III. Conditions

IV. Procedure at hearing

V. Section 113, CPC and Section 395 Cr.P.C. – Comparison

VI. Section 113, CPC and Article 229, Constitution of India – Distinction

VII. Questions of Previous Years' Exam– [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

RAJESH

CHAPTER XXXIX

REFERENCE

[SECTION 113, ORDER 46]

I. NATURE AND SCOPE

Section 113 of the Code empowers a subordinate Court to state a case and refer the same for the opinion of the High Court. Such an opinion can be sought when the Court itself feels some doubt about a question of law. The High Court may make such order thereon as it thinks fit. A right of reference is fundamentally different from a right of appeal; the former vests in the Court, whereas the latter vests in the suitor.

II. OBJECT

The underlying object for the provision for reference is to enable the subordinate Courts to obtain in non-appealable cases the opinion of the High Court in absence on a question of law and thereby avoid the commission of an error which could not be remedied later on. The reference must, therefore, be made before passing of the judgment in the case.

III. CONDITIONS

The right of reference, however, is subject to the conditions prescribed by Order 46, Rule 1 and unless they are fulfilled, the High Court cannot entertain a reference from a subordinate Court. The rule requires the following conditions to be satisfied to enable a subordinate Court to make a reference:

- a) There must be a pending suit or appeal in which the decree is not subject to appeal or a pending proceeding in execution of such decree;
- b) A question of law or usage having the force of law must arise in the course of such suit, appeal or proceeding; and
- c) The Court trying the suit or appeal or executing the decree must entertain a reasonable doubt on such question.

Questions of law on which a subordinate Court may entertain a doubt may be divided into two classes:

- i) Those which relate to the validity of any Act, Ordinance or Regulation; and
- ii) Other questions.

In the latter case, the reference is optional, but in the former case it is obligatory if the following conditions are fulfilled:

- a) It is necessary to decide such question in order to dispose of the case;
- b) The subordinate Court is of the view that the impugned Act, Ordinance or Regulation is ultra vires; and
- c) There is no determination either by the Supreme Court or by the High Court to which such Court is subordinate that such Act, Ordinance or Regulation is ultra vires.

The object of this provision is to see that the Act of legislature should be interpreted by the highest Court in the State.

IV. PROCEDURE AT HEARING

A reference may be made by the Court either of its own motion (*suo motu*) or on the application of any party. The referring Court should draw up a statement of the facts of the case, formulate the question of law on which the opinion is sought and give its opinion thereon. The Court may either stay the proceedings or pass a decree or order contingent upon the decision of the High Court on the point referred, which cannot be executed until receipt of a copy of the judgment of the High Court on the reference. The High Court after hearing the parties, if they so desire, shall decide the point so referred and transmit a copy of its judgment to the Court which shall dispose of the case in accordance with the said decision. Where the referring Court has not complied with the conditions laid down for making reference, the High Court has power to return

<https://goo.gl/CU7rEZ> (Hard copy)
the case for amendment. The High Court can even quash the order of reference. The High Court may alter, cancel or set aside any decree or order passed or made by the Court making the reference and make such order as it thinks fit. The costs of the reference to the High Court shall be costs in the case. If the reference is altogether unwarranted, the High Court may direct the concerned judge to pay personally the costs of the reference.

V. SECTION 113, CPC AND SECTION 395 CR. P. C. – COMPARISON

Section 395 (1) of the Code of Criminal Procedure, 1973 provides that where any Court is satisfied that a case pending before it involves a question as to the validity of any Act, Ordinance or Regulation, the determination of which is necessary for the disposal of the case, and is of the opinion that such Act, Ordinance or Regulation or provision is invalid or inoperative but has not been declared by the High Court to which that Court is subordinate or by the Supreme Court, the Court shall state a case setting out its opinion and the reason therefore and refer the same for the decision of the High Court.

Sub-section (2) of Section 395 enables a Court of Session or a Metropolitan Magistrate to make reference for the decision of the High Court any question of law arising in a case pending before the Court.

VI. SECTION 113, CPC AND ARTICLE 229, CONSTITUTION OF INDIA – DISTINCTION

Article 228 of the Constitution provides for transfer of certain cases to a High Court. Section 113 of the Code refers to the questions regarding the validity of any "Act, Ordinance or Regulation or of any provision", while Article 228 of the Constitution refers to a substantial question of law as to the "interpretation of the Constitution". An interpretation of an Act or statute does not necessarily involve an interpretation of the Constitution, nor vice versa. But a question as to the validity of an Act or provision may involve the interpretation of the Constitution in one form or the other.

Again, under Section 113 of the Code, the subordinate Court trying the case can go into the question of vices of any Act, Ordinance or Regulation and can make a reference only when prima facie it is of the opinion that such Act, Ordinance or Regulation is invalid or inoperative; under Article 228 of the Constitution, on the other hand, a subordinate Court cannot even investigate into such question. It is the duty of a subordinate Court to refer the case to the High Court as soon as it discovers that it involves a substantial question of law as to the interpretation of the Constitution. It is also the duty of the High Court to withdraw such a case from a subordinate Court.

VII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Analyse the grounds, procedure and powers of the High Court in relation to "Reference" and "Revision". [150 Words, UPPCS(J)-1997]

CHAPTER XL

REVIEW

[SECTION 114, ORDER 47]

Dear aspirant,

Section 114 provides that any person considering himself aggrieved:

- a) by a decree or order from which an appeal is allowed by this Code, but from which no appeal has been preferred;
- b) by a decree or order from which no appeal is allowed by the Code of Civil Procedure, or
- c) by a decision on a reference from a Court of Small Causes, may apply for a review of the judgment to the Court which passed the decree or made the order, and the Court may make such order thereon as it thinks fit.

Review means to look once again. The main object of granting a review of judgment is re-consideration of the same matter by the same judge under certain circumstances. The power of review inheres in every Court to prevent miscarriage of justice. The review provision constitutes an exception to the general rule that once the judgment is signed and pronounced by the Court it becomes *functus officio* (ceases to have control over the matter) and has no jurisdiction to alter it.

Review proceedings are not by way of an appeal and have to be strictly confined to the scope and ambit of Order 47. All orders or decrees cannot be reviewed. The following conditions have to be satisfied before granting an application for review [Rule 1]:

- a) Discovery by the applicant of new and important matter or evidence, after the exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or made, or
- b) On account of some mistake or error apparent on the face of the record or
- c) For any other sufficient reason.

The fact that the decision on a question of law on which the judgment of the Court is based has been reversed or modified by the subsequent decision of a superior Court in any other case, shall not be a ground for the review of such judgment.

Rule 1 also lays down that a party who is not appealing from a decree or order may apply for a review of judgment notwithstanding the pendency of an appeal by some other party except where the ground of such appeal is common to the applicant and to the appellant, or when, being respondent, he can present to the appellate court the case on which he applies for review. The underlying object of Section 114 is neither to enable the Court to write a second judgment nor to give a second innings to the party who has lost the case because of his negligence or indifference. [*Sow Chandra Kante v. Sheikh Habib, AIR 1975 SC*]

The case cannot be re-opened because the law has been modified by the subsequent legislation or a judgment. The ground for review viz. new matter or evidence must be something which existed at the date of the decree; the decree cannot be reviewed on the ground of the happening of some subsequent event. [Explanation to Rule 1, Order 47]

The error, whether of fact or law, has to be patent, and an ordinary error of law or a mere failure to interpret a complicated point of law correctly is not an error apparent on the face of the record. But, failure of the Court to take into consideration an existing decision of the Supreme Court taking a different or contrary view on a point covered by its judgment would amount to a mistake or error apparent on the face of record.

When a review application has been granted, the notice should be given to the opposite party Order 47; Rule 7 lays down that an order of the Court rejecting the review application shall not be appealable; but an order granting the application is appealable. Further, there cannot be a review of a review i.e. no review application can be made to review the order made on a review application.

The Court has an inherent power under Section 151 to review its wrong orders or decisions passed previously. But the recourse to the inherent powers of the Court is not permissible to justify a Court in granting a review which is specifically provided for in Rule 1, Order 47.

This Chapter is an important Chapter of CPC. Generally, one short notes is asked from this Chapter. You should prepare following short notes for RJS, UPPCS (J), UAPCS (J), MPCJ, Hr.JS, DJS, HJS and Bihar JE:

- i) Grounds of review of judgment.
- ii) Short notes on review of judgment.

In interview, some questions can be asked from this chapter such as "can there be a review of a review?", so you are suggested to prepare this chapter thoroughly.

With best wishes

Yours Sincerely

RAHUL

CHAPTER XL

REVIEW

[SECTION 114, ORDER 47]

SYNOPSIS

I. General

II. Who may apply

III. Nature and scope

IV. Grounds

- a) Discovery of new and important matter or evidence
- b) Mistake or error apparent on the face of record
- c) Any other sufficient reason

V. To whom application can be made

VI. Form of application

VII. Procedure at hearing

- a) First stage
- b) Second stage
- c) Third stage

VIII. Limitation

IX. Effect

X. Appeal

XI. Conclusion

XII. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XL

REVIEW

[SECTION 114, ORDER 47]

I. GENERAL

State simply, review means to look once again. In legal parlance, review is a judicial re-examination of the case by the same judge in certain circumstances. Section 114 of the Code gives a substantive right of review in certain circumstances and Order 47 provides the procedure therefore. The provision relating to review constitutes an exception to the general rule that once the judgment is signed and pronounced by the Court it becomes *functus officio* (ceases to have control over the matter) and has no jurisdiction to alter it.

II. WHO MAY APPLY

Any person aggrieved by a decree or order may apply for a review of judgment where no appeal is allowed or where an appeal is allowed but no appeal has been filed against such decree or order. A "person aggrieved" means a person who has suffered a legal grievance or against whom a decision has been pronounced which has wrongfully deprived him of something or wrongfully refused him something or wrongfully affected his title to something. A person who is not a party to the decree or order cannot apply for review since on general principle of law, such decree or order is not binding on him and, therefore, he cannot be said to be an aggrieved person within the meaning of Section 114 and Order 47, Rule 1 of the Code. Where a third party is affected by an order of the Court, the Court may review its order under inherent powers. [Vide: *Shivdeo Singh v. State of Punjab*, AIR 1963 SC]

III. NATURE AND SCOPE

A well-settled principle of law is that a judgment pronounced by a competent Court must be accepted and implemented and departure therefrom is permissible only on fulfilment of certain conditions. It should not be forgotten that a review is not an appeal in disguise whereby an erroneous decision is reheard and corrected. As a general rule, where a litigant has obtained a judgment in a Court of justice, he is by law entitled not to be deprived of the fruits thereof without solid grounds. The object of this provision is neither to enable the Court to write a second judgment nor to give a second innings to the party who has lost the battle because of his negligence or indifference. [Vide: *Meera v. Nirmala*, AIR 1995 SC]

IV. GROUNDS

A review of a judgment is a serious step and reluctant resort to it is proper only where a glaring omission or patent mistake or like grave error has crept in earlier by judicial fallibility. A mere repetition through different counsel of old and overruled arguments cannot create a good ground for review. An application for review of a judgment may be made on any of the following grounds:

a) Discovery of new and important matter or evidence

The party seeking review must show that he exercised greatest care in adducing all possible evidence and that the new evidence is such as is relevant and that if had been given in the suit it might possibly have altered the judgment. It is not the discovery of new and important evidence, alone which entitles a party to apply for a review, but the discovery of any new and important matter, which was not within the knowledge of the party when the decree was made. The case cannot be reopened because the law has been modified by subsequent legislation. The ground for review, viz. new matter or evidence must be something, which existed at the date of the decree; the decree cannot be reviewed on the ground of the happening of some subsequent event.

Accordingly, a subsequent reversal of a judgment on which the decision was based, a subsequent decision in another case between the parties or a different view of the law taken by the Court in a subsequent case are not grounds for review.

An application for review on the ground of discovery of new evidence should show that (i) such evidence was available and of undoubted character; (ii) that the evidence was so material

that its absence might cause a miscarriage of justice; and (iii) that it could not with reasonable care and diligence have been brought forward at the time of the decree. The applicant has, however, to satisfy that there was no remissness on his part.

b) Mistake or error apparent on the face of record

It is not limited to a mistake of fact. It may be of law. Further to consider a ruling is not such an error. It should be an error, which can be seen by a mere perusal of the record without reference to any other extraneous matter. Where, therefore the legal position is clearly established by a well-known authority, but the Judge has by some oversight failed to notice the same and thus gone wrong, it will be a case coming within the category of an error apparent on the face of the record. The error has to be patent, and an ordinary error of law or a mere failure to interpret a complicated point of law correctly is not an error of law apparent on the face of the record.

An error of law will justify a review because an error apparent on the face of the record will also include an error of law. In a review petition the Court may correct an error apparent on the face of the record but cannot pass a fresh decree for the first time. In returning the plaint the Court directed that costs incurred should abide the result of the suit. But in review application the Court directed the plaintiff to pay the costs of the defendants. The Court is not justified in doing so. [*Duvvuri Chegal Reddi v. Devareddi Venkatasubboreddi*, (1967) 2 An. WR 432]

c) Any other sufficient reason

These words have been interpreted by their Lordships of the Judicial Committee in *Chajju Ram v. [AIR 1922 P. C. 112]* to mean a reason sufficient on grounds at least analogous to those specified in (1) and (2).

There Lordships observed in Chajju Ram's case that the Code contemplates procedure by way or review by the Court, which has already given judgment as being different from that by way of appeal to a Court of appeal. The three cases in which alone review is permitted are those of a new material overlooked by excusable misfortune, mistake or error apparent on the face of the record, or any other sufficient reason.

The phrase "any other sufficient reason" means a reason at least analogous to those specified in the rule immediately previously, namely, excusable failure to bring to the notice of the Court new and important matter or evidence or mistake or error apparent on the face of the record. [*Moran Mar Catholics v. Mar Poulse Athansius*, I. L. R. 1952. T. C. 1031]

The rule set out above is definitive of the grounds on which a review is permissible, but apart from it the Court has an inherent power under S. 151 to review its wrong orders or decisions passed previously. But recourse to the inherent powers of the Court is not permissible to justify a Court in granting a review, which is specifically provided for in O. 47, r. 1.

In view of the explanation added by the amendment of 1976, a subsequent decision of the Supreme Court or a large Bench of the same Court taking a contrary view on the point covered by the judgment does not amount to a mistake or error apparent on the face of the record. [*The Nalagarh Dehati Co-operative Transport Society Ltd., Nalagarh v. Beli Ram*, AIR 1981 H.P. 1, F. B.] Failure of the Court to take into consideration an existing decision of the Supreme Court taking a different or contrary view on a point covered by its judgement would amount to a mistake or error apparent on the face of the record. But a failure to take into consideration a decision of the High Court would not amount to any mistake or error apparent on the face of the record.

G.S. Gupta v. Basheer Ahmed [AIR 1977 Karnataka 193]

The High Court is a Court of plenary jurisdiction and therefore is in a position always to prevent miscarriage of justice or to correct grave and palpable errors committed by it. The principles set down in O. 47, r. 1, C.P.C. may be employed by way of analogy, and a case of review directly covered under that provision would nevertheless be considered a case of plenary jurisdiction for correction of grave and palpable error committed by the Court. With that point of view, the court has to refer to the provisions contained in O. 47, r. 1. If the Court decides a legal question incorrectly, that cannot be ground for review. It is for the higher Court to set right that finding.

Substantially allowing a petition for review of its judgment in a case relating to the partitioning of the assets of the former Cochin royal family, the Supreme Court comprising

<https://goo.gl/GU7xEZ> (hard copy)
Justice V. P. Krishna Iyer, Justice D. A. Desai and Justice A. D. Koshal, observed on March 27, 1980, that once an error in their judgment was revealed, no sense of shame or infallibility complex obsessed them or dissuaded the Court from the anxiety to be ultimately right, not consistently wrong. The Court said that it was amending its judgment of July 30, 1979, having found "an error" therein.

Section 114 of the Code of Civil Procedure has to be read with O. 47, r. 1. Rule 1 of Order 47 prescribes the ground upon which an application for review can be granted. Under the rule, a person aggrieved by a decree or order may apply for review of the decree or order on discovery of new and important matter or evidence which, after the exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or order made, or on account of some mistake or error apparent on the face of the record, for any other sufficient reason. In the case in hand, however, it is not the case of the first respondent that the judgment was required to be reviewed because of the discovery of new and important matter or evidence.

His case is that there was a bona fide mistake and error in the judgment apparent on the face of record and, therefore, it was necessary to review the judgment. Whether there is a mistake or error apparent on the face of record in a case depends on facts. However, it must be borne in mind, that in order to come to the conclusion that there is a mistake or error apparent on the face of record, it must be one, which must be manifest on the face of record. The error or mistake is so manifest, so clear, that no Court would permit such an error or mistake to remain on the record. In coming to the finding that a mistake or error is apparent on the face of record, the Court is not required to look into other evidence. Such mistake or error should appear in the order itself or from any other document, which it referred in the said order. If such error occurs then the Court is definitely bound to review such judgment.

Where therefore the Court affirmed the judgment of the appellate Court in declaratory and injunction suit under an apparent wrong impression that the suit land was physically possessed by the plaintiff, the review of earlier judgment was proper. [*Naresh Ch. Deb Barma v. Gopal Chandra Banerjee*, AIR 1994 Gauhati 37]

V. TO WHOM APPLICATION CAN BE MADE

An application for review should be made to the very judge who passed the decree or made the order. But if that judge is not available, it will be heard by another judge or his successor in office.

VI. FORM OF APPLICATION

An application for review should be in the form of a memorandum of appeal.

VII. PROCEDURE AT HEARING

An application for review may be divided into the following three stages:

a) First stage

An application for review commences ordinarily with an *ex parte* application by the aggrieved party. The Court may reject it at once if there is no sufficient ground or may issue a notice calling upon the opposite party to show cause why review should not be granted.

b) Second stage

The application for review shall then be heard by the same judge who passed the decree or made the order, unless he is no longer attached to the Court, or is precluded from hearing it by absence or other cause for a period of six months after the application. If the rule is discharged, the case ends and the application will be rejected. If, on the other hand, the rule is made absolute, the application will be granted for rehearing of the matter.

c) Third stage

In the third stage, the matter will be reheard on merits by the Court either at once or at any time fixed by it. After rehearing the case, the Court may either confirm the original decree or vary it.

No review lies from an order granting or rejecting an application for review, nor from the decree or order passed or made on a review.

VIII. LIMITATION

The period of limitation for an application for review of judgment by a Court other than the Supreme Court is 30 days from the date of the decree or order.

IX. EFFECT

The effect of allowing an application for review is to recall the decree already passed. Any order made subsequently whether reversing, confirming or modifying the decree originally passed will be a new decree superseding the original one.

X. APPEAL

An order granting an application for review is appealable, but an order rejecting an application is not appealable. No record appeal lies from an order made an appeal from an order granting review.

XI. CONCLUSION

It is submitted that the following observations of Pathak, J. (as he then was) in the leading case of **Northern Indian Caterers Ltd. v. Lt. Governor of Delhi (AIR 1980 SC)**, lay down correct principle of law on the power of review and, therefore, are worth quoting:

"The normal principle is that a judgment pronounced by the Court is final, and departure from that principle is justified only when circumstances of a substantial and compelling character make it necessary to do so..... Whatever the nature of the proceeding, it is beyond dispute that a review proceeding cannot be equated with the original hearing of the case, and the finality of the judgment delivered by the Court will not be re-considered except where a glaring omission or patent mistake or like grave error has crept in earlier by judicial fallibility."

XII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Short Notes: Review of Judgment [150 Words, RJS-1974, 1975]
2. State the grounds on which a Civil Court may review a judgement. [200 Words, RJS-1992]
3. Short Notes: Review [200 Words, BJE-1977]
4. In what circumstances will an application for review be in civil cases? Is an application for review of a reviewed judgment possible? [150 Words, HJS-1998]
5. What errors in a judgment, decree or order can be corrected by the Court after signing and pronouncing the same without there being an application made for review? [150 Words, UPPCS(J)-1985]

CHAPTER XLI
REVISION
[SECTION 115]

Dear aspirant,

Section 115 (1) states that the High Court may call for the record of "any case which has been decided" by any Court subordinate to it and in which no appeal lies thereto, and if such subordinate Court appear:

- a) to have exercised a jurisdiction not vested in it by law, or
- b) to have failed to exercise a jurisdiction so vested, or
- c) to have acted in the exercise of its jurisdiction illegally or with material irregularity.

The High Court may make such order in the case as it thinks fit but the High Court shall not vary or reverse any decree or order against which an appeal lies either to the High Court or to any Court subordinate thereto. A revision shall not operate as a stay of suit or other proceeding before the Court except where such suit, etc. is stayed by the High Court.

It may be noted that by the 1999 Amendment, clause (b) of the proviso to Section 115 has been deleted viz. the order, if allowed to stand, would occasion a failure of justice or cause irreparable injury to the party against whom it was made. The effect would be to bar High Court's interference in revision against interlocutory orders, even when there is failure of justice.

The provision that revision shall operate as a stay of suit has also been inserted by the said amendment. In accordance with the provisions of Section 115, it is necessary to establish the *three* conditions for the exercise of revisional jurisdiction:

- i) Order impugned amounts to be a "case decided";
- ii) Order impugned is not directly liable to be challenged by way of appeal; and
- iii) Order impugned suffers from jurisdictional error.

The underlying object of Section 115 is to prevent the subordinate Courts from acting arbitrarily, capriciously and illegally or irregularly in the exercise of their jurisdiction. However, the High Court cannot enter into the merits of the evidence; the mere fact that the decision of the lower Court is erroneous, whether it be upon a question of fact or law, does not amount to an illegality or material irregularity.

Under Section 115, the High Court can call for the record of the case *suo motu* (on its own motion) and revise the same. The remedy by way of revision is discretionary and not a matter of right. The Court will decline to exercise its revisional jurisdiction if the matter is sub judice in an appeal filed by another party to the same suit. The Court always takes into consideration the petitioner's conduct; if he has not disclosed his entire case, revisional jurisdiction will not be exercised.

Section 115 applies to cases in which no appeal (first or second) lies. If an appeal lies against the decision directly or indirectly to the High Court, the revisional jurisdiction cannot be exercised. But where the decision itself is not appealable to the High Court, exercise of revisional jurisdiction by the High Court would not be deemed excluded. A revision does not abate on the death of the applicant.

This chapter is most important for RJS, UPPCS (J), BJE, DJS, HJS, MPCJ, UAPCS (J) etc. You should prepare following short notes from this chapter:

- i) Difference between revision and review.
- ii) Difference between revision and appeal.
- iii) Difference between revision and reference.

- <https://goo.gl/GU7xEZ> (Hard copy)
- iv) Difference between second appeal and revision.
 - v) Grounds of revision.
 - vi) Problem based questions on revision.

With best wishes,

Yours Sincerely
RAHUL

RAHUL

CHAPTER XLI

REVISION

[SECTION 115]

SYNOPSIS

I. General

II. Section 115

III. Object

IV. Nature and Scope

V. Conditions

- a) Cases decided
- b) Subordinate Court
- c) No appeal lies
- d) Jurisdictional error
 - i) *General*
 - ii) *Unauthorised assumption of jurisdiction [Section 115 (1) (a)]*
 - iii) *Failure to exercise jurisdiction [Section 115 (1) (b)]*
 - iv) *Illegal exercise of jurisdiction [Section 115 (1) (c)]*

VI. Form of Revision

VII. Limitation [Article 131, Limitation Act, 1963]

VIII. Revision and Writ

IX. Revision and Power of Superintendence

X. Appeal, Reference, Review and Revision – Distinction

- a) Revision and Review of Judgment
- b) Appeal and Reference
- c) Appeal and Revision
- d) Second appeal and Revision
- e) Reference and Revision
- f) Reference and Review
- g) Review and Appeal

XI. Questions of Previous Years' Exam– [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XLI

REVISION

[SECTION 115]

I. GENERAL

Section 115 of the Code of Civil Procedure empowers a High Court to interfere in revision in any case decided by any subordinate Court in certain circumstances. This jurisdiction is known as revisional jurisdiction.

II. SECTION 115

- a) The High Court may call for the record of any case which has been decided by any Court subordinate to such High Court and in which no appeal lies thereto, and if such subordinate Court appears –
 - i) to have exercised a jurisdiction not vested in it by law, or
 - ii) to have failed to exercise a jurisdiction so vested, or
 - iii) to have acted in the exercise of its jurisdiction illegally or with material irregularity.

The High Court may make such order in the case as it thinks fit:

Provided that the High Court shall not, under this section, vary or reverse any order made, or any order deciding an issue, in the course of a suit or other proceeding, except where the order, if it had been made in favour of the party applying for revision, would have finally disposed of the suit or other proceeding.

- b) The High Court shall not, under this section, vary or reverse any decree or order against which an appeal lies either to the High Court or to any Court subordinate thereto.
- c) A revision shall not operate as a stay of suit or other proceeding before the Court except where such suit or other proceeding is stayed by the High Court.

Explanation: In this section, the expression "any case which has been decided" includes any order made, or any order deciding an issue, in the course of a suit or other proceeding.

III. OBJECT

The underlying object of Section 115 is to prevent the subordinate Courts from acting arbitrarily, capriciously and illegally or irregularly in the exercise of their jurisdiction. It clothes the High Court with the powers to see that the proceedings of the subordinate Courts are conducted in accordance with law within the bounds of their jurisdiction and in furtherance of justice. It enables the High Court to correct, when necessary, errors of jurisdiction committed by the subordinate Courts and provides the means to an aggrieved party to obtain rectification of a non-appealable order. In other words, for the effective exercise of its superintending and visitatorial powers, revisional jurisdiction is conferred upon the High Court.

IV. NATURE AND SCOPE

Section 115 empowers the High Court to satisfy itself on three matters: (a) that the order of the subordinate Court is within jurisdiction; (b) that the case in which the Court ought to exercise its jurisdiction; and (c) that in exercising jurisdiction the Court has not acted illegally, that is, in breach of some provision of law, or with material irregularity, that is, by committing some error of procedure in the course of the trial which is material in that may have affected the ultimate decision. The High Court is satisfied with these three matters, it has no power to interfere because it differs, however profoundly, from the conclusion of the subordinate Court on questions of fact or of law. It is well established that where there is no question of jurisdiction the decision cannot be corrected for a Court has jurisdiction to decide wrongly as well as rightly.

In *Pandurang v. Maruti* (AIR 1966 SC), Gajendragadkar, J. (as he then was) rightly pronounced:

"The provisions of Section 115 of the Code have been examined by judicial decisions on several occasions. While exercising its jurisdiction under Section 115, it is not competent to the High Court to correct errors of fact, however gross they may be, or even errors of law, unless the

<https://goo.gl/3U7wE2> (Hard copy)
said errors have relation to the jurisdiction of the Court to try the dispute itself. As clauses (a), (b) and (c) of Section 115 indicate, it is only in cases where the subordinate Court has exercised a jurisdiction not vested in it by law, or has failed to exercise a jurisdiction so vested, or has acted in the exercise of its jurisdiction illegally or with material irregularity that the revisional jurisdiction of the High Court can be properly invoked. It is conceivable that points of law may arise in proceedings instituted before subordinate Courts which are related to questions of jurisdiction. It is well-settled that a plea of limitation or a plea of res judicata is a plea of law which concerns the jurisdiction of the Court which tries the proceedings. A finding on these pleas in favour of the party raising them would oust the jurisdiction of the Court, and so, an erroneous decision on these pleas can be said to be concerned with questions of jurisdiction which fall within the purview of Section 115 of the Code. But an erroneous decision on a question of law reached by the subordinate Court which has no relation to questions of jurisdiction of that Court, cannot be corrected by the High Court under Section 115."

V. CONDITIONS

The following conditions must be satisfied before the revisional jurisdiction can be exercised by the High Court –

- a) a case must have been decided;
- b) the Court which has decided the case must be a Court subordinate to the High Court;
- c) the order should not be an appealable one; and
- d) the subordinate Court must have (i) exercised jurisdiction not vested in it by law; or (ii) failed to exercise jurisdiction vested in it; or (iii) acted in the exercise of its jurisdiction illegally or with material irregularity.

a) Cases decided

The term "case decided" used in Section 115, C.P.C. is not equivalent of a suit or appeal decided. The word "case" is something wider but not wide enough to include every order passed by a Court during the pendency of a suit. It would include a decision on any substantial question in controversy between the parties affecting their rights, even though such order be passed in the course of the trial of the suit. The decision of part of a case or purely an *ad interim* order that does not effectually dispose of the matter before the Court would not be "case decided". A Full Bench of the Allahabad High Court has held that an order granting an application for leave to sue in forma pauperis is a "case decided" within the meaning of Section 115, C.P.C. and hence can be revised. [*Ramzan Ali v. Satul Bibi*, I.L.R 1947 All. 812]

Numerous cases of the various High Courts have taken different views in regard to the interpretation of the expression "case decided". The decisions of the Allahabad and Lahore High Courts had taken a narrower view. So did the Rajasthan High Court. The other High Courts have taken a liberal view. The narrower view was canvassed for acceptance of the Supreme Court in *Major S.S. Khanna v. F. J. Dhillon*, AIR 1964 S.C. 497, but it was not accepted. Repelling the narrower view, Shah, J. (as he then was) said at page 501:

"The expression 'case' is a word of comprehensive import; it includes civil proceedings other than suits, and is not restricted by any thing contained in the section to the entirety or the proceeding in a civil Court. To interpret the expression 'case', as an entire proceeding only and not a part of proceeding would be to impose a restriction upon the exercise of powers of superintendence with the jurisdiction to issue writs, and the supervisory jurisdiction are not subject, and may result in certain cases in denying relief to an aggrieved litigant where it is most needed, and may result in the perpetration of gross injustice."

A few years later, a question arose before the Supreme Court in *Baldevdas Shival v. Filmistan Distributors (India) Pvt. Ltd.*, AIR 1970 S.C. 406 that if the expression "case" did not mean only the entire proceeding but also meant a part of the proceeding as held by that Court in the case of *Major S.S. Khanna* AIR 1964 S.C. 497 then could it lead to the conclusion that every interlocutory order of the Court, if it suffers from an infirmity of error of jurisdiction, should be taken to be a case decided so as to clothe the High Court with the power of interference". The question was answered in the negative and Shah, J. (as he then was) said at page 410:

"A case may be said to be decided, if the Court adjudicates for the purpose of the suit some right or obligation of the parties in controversy; every other in the suit cannot be regarded as a case decided within the meaning of Section 115 of the Code of Civil Procedure." [*Ramgulum Chaudhary and others v. Nawin Choudhary and others*, AIR 1972 Patna 499]

The expression 'case' is not limited to its import to the entirety of the matter in dispute in an action. As already stated, the Supreme Court observed in **Major S.S. Khanna v. Brig. F. J. Dhillon, (1964) 4 S.C. 409**, that the expression 'case' is a word of comprehensive import; it includes a civil proceeding and is not restricted by anything contained in Section 115 of the Code to the entirety of the proceeding in a Civil Court. To interpret the expression 'case' as an entire proceeding only and not a part of the proceeding imposes an unwarranted restriction on the exercise of powers of superintendence and may result in certain cases in denying relief to the aggrieved litigant where it is most needed and may result in the perpetration of gross injustice. But it was not decided in Major S.S. Khanna's case that every order of the Court in the course of a suit amounts to a case decided. As stated above, a case may be said to be decided, if the Court adjudicates for the purposes of the suit some right or obligation of the parties in controversy; every order in the suit cannot be regarded as a case decided within the meaning of Section 115 of the Code of Civil Procedure. [**Baldevdas Shival v. Filmstan Distributors (India) Pvt. Ltd. (1970) 1 S.C.J. 342**]

The "case decided" is to be construed in its wider amplitude given realistic meaning to these words. "Case decided" does not necessarily mean case finally adjudicated, rather each decision which terminates a part of the controversy though the suit of the case may not be finally decided, shall come within the ambit of the term "case decided".

In other words, where any controversy is raised in an application in the pending suit and that controversy is resolved by any order, that order will also be construed as "case decided". It cannot be interpreted and construed only to mean final adjudication of the suit.

Thus, if the petitioner's application raising for submission of framing additional issue has been rejected by the trial Court, indeed that order also falls within the purview of "case decided" and the same is undoubtedly amenable to the Revisional jurisdiction under Section 115, C.P.C. [**Bhagwati Shanker Srivastava & Ors. v. VIII Addl. Munsif. Allahabad & Ors. 1996 All. Civil Journal, p. 5**]

In **Baldevdas Shival v. Filmstan Distributors (India) Pvt. Ltd. AIR 1970 S.C. 406**, it was held:

"...A case may be said to be decided, if the Court adjudicates for the purpose of the suit some right or obligation of the parties in controversy; every order in the suit cannot be regarded as a case decided within the meaning of S. 115 of the Code of Civil Procedure."

S.S. Khanna vs. F.J. Dhillon [1963 A.L.J. 1068, S.C.]

The High Court is not obliged to exercise its jurisdiction when a case is decided by a subordinate Court and the conditions in Cl. (a), (b) or (c) are satisfied. Exercise of the jurisdiction is discretionary; the High Court is not bound to interfere merely because the conditions are satisfied. The interlocutory character of the order, the existence of another remedy to an aggrieved party by way of an appeal, from the ultimate order or decree in the proceeding or by a suit, and the general equities of the case being served by the order made are all matters to be taken into account in considering whether the High Court, even in cases where the conditions which attract the jurisdiction exist, should exercise its jurisdiction.

If an appeal lies against the adjudication directly to the High Court or to another Court from the decision of which an appeal lies to the High Court, it has no power to exercise its Revisional jurisdiction, but where the decision itself is not appealable to the High Court, directly or indirectly, exercise of the Revisional jurisdiction by the High Court would not be deemed excluded. [**S.S. Khanna v. F.J. Dhillon 1963 A.L.J. 1068 S.C.**]

b) Subordinate Court

The High Court cannot exercise revisional jurisdiction unless the case is decided by a Court and such Court is subordinate to the High Court. A Court means a Court of civil judicature. It does not include any person acting in an administrative capacity. As a general rule, where it is provided that a matter should be decided by a particular Court; the presiding officer of such Court will act as a Court. But where it is provided that a particular judge should decide a matter, the provisions of the statute will have to be considered for the purpose of determining whether the judicial officer acts as a Court or as a *persona designata*. It is the intention that determines the question. If the intention is that the prescribed officers should enforce the rights and liabilities created by the statute in the exercise of the existing jurisdiction of the Courts, they act as Courts. If, on the other hand, the intention is to create

new Courts, they act as persons designate. Again, while judicial functions are essential for a Court, the mere fact that a person exercises judicial functions is not sufficient to constitute him a Court. Further, a Court will be said to be subordinate to the High Court, when it is subject to its appellate jurisdiction. However, the mere fact that a statute provides an appeal to a Court from a particular body does not necessarily constitute that body of a Court.

c) No appeal lies

The revisional jurisdiction of the High Court can be invoked in respect of any case in which no appeal lies to the High Court. The word "appeal" includes first appeal as well as second appeal. Therefore, where an appeal lies to the High Court either directly or indirectly, revision under Section 115 does not lie. On the other hand, where no first or second appeal lies to the High Court, the revision is competent. As has been rightly observed by the Supreme Court in the case of *Major Khanna v. Brigadier Dhillon (AIR 1964 SC)*, "If an appeal lies against the adjudication directly to the High Court, or to another Court from the decision of which an appeal lies to the High Court, it has no power to exercise its revisional jurisdiction, but where the decision itself is not appealable to the High Court directly or indirectly, exercise of the revisional jurisdiction by the High Court would not be deemed excluded."

d) Jurisdictional error

i) General

The power conferred by Section 115 of the Code is clearly limited to the keeping of the subordinate Courts within the bounds of their jurisdiction. Section 115 is concerned with jurisdiction and jurisdiction alone involving a refusal to exercise jurisdiction where one exists, an assumption of jurisdiction where none exists, and lastly, acting with illegality or material irregularity. Where there is no question of jurisdiction in this manner, the decision cannot be corrected because a Court has jurisdiction to decide wrongly as well as rightly.

ii) Unauthorised assumption of jurisdiction [Section 115 (1) (a)]

A revision lies where a subordinate Court has exercised a jurisdiction not vested in it by law. The following cases have been held to be cases of unauthorised assumption of jurisdiction by the subordinate Court: (i) where the lower Court assumes jurisdiction which it does not possess on account of the pecuniary or territorial limits or by reason of the subject-matter of the suit; or (ii) entertains an appeal from an order which is not appealable; or (iii) entertains a suit or appeal which it has no jurisdiction to entertain; or (iv) makes an order which it has no jurisdiction to make; or (v) grants an injunction without considering whether a prima facie case is made out; or (vi) allows withdrawal of a suit on a ground not contemplated under Order 23, Rule 1; or (vii) directs a subordinate Court to try a suit not triable by it; etc.

iii) Failure to exercise jurisdiction [Section 115 (1) (b)]

A revision also lies where a subordinate Court has failed to exercise jurisdiction vested in it by law. A Court having jurisdiction to decide a matter, thinks erroneously under a false apprehension of law or of fact that it has no such jurisdiction and declines to exercise it; the High Court can interfere in revision. The following cases have been held to be cases of failure to exercise jurisdiction by the subordinate Court: (i) refusal by the Court to summon the deponent of an affidavit for cross-examination; or (ii) failure of the executing Court to construe the decree; (iii) failure on the part of the Court in considering the principles for the grant of ad interim injunction and refusing to grant it; or (iv) refusal to entertain or rejection of a plaint, application, memorandum of appeal or review application on the erroneous view that it has no jurisdiction to entertain; or (v) rejection of a counter-claim on the ground that the original suit is dismissed for default; or (vi) refusal to make a reference under Order 46, Rule 7; or (vii) an erroneous interpretation of statutory provisions as obligatory instead of directory; etc.

iv) Illegal exercise of jurisdiction [Section 115 (1) (c)]

Finally, a revision also lies where the subordinate Court has acted in the exercise of its jurisdiction illegally or with material irregularity. The Supreme Court observed in the case of *Keshardeo v. Radha Kishen (AIR 1953 SC)*, the errors contemplated relate to material defects of procedure and not to errors of either law or fact after the formalities which the law prescribes have been complied with. They do not refer to the decision

arrived at but the manner in which it is reached. In that case, the Supreme Court approved the following observations of the Privy Council in the leading case of **Rajah Amir Hassan Khan v. Sheo Bakhsh Singh (AIR 1853 PC)**:
<https://goo.gl/6U7xEZ> (Hard copy)

"The question then is, did the judges of the lower Courts in this case, in the exercise of their jurisdiction, act illegally or with material irregularity. It appears that they had perfect jurisdiction to decide the case, and even if they decided wrongly, they did not exercise their jurisdiction illegally or with material irregularity."

In the case of **D. L. F. Housing and Construction Co. Ltd. v. Sarup Singh (AIR 1971 SC)**, the Supreme Court observed:

"The position thus seems to be firmly established that while exercising the jurisdiction under Section 115, it is not competent to the High Court to correct errors of fact however gross or even errors of law unless the said errors have relation to the jurisdiction of the Court to try the dispute itself..... The words 'illegality' and 'with material irregularity' as used in this clause [clause (c)] do not cover either errors of fact or of law; they do not refer to the decision arrived at but merely to the manner in which it is reached. The errors contemplated by this clause may, in our view, relate either to breach of some provision of law or to material defects of procedure affecting the ultimate decision, and not to errors either of fact or of law, after the prescribed formalities have been complied with."

VI. FORM OF REVISION

No particular form of revision is prescribed in the Code. Such petition, however, must contain grounds as to error of jurisdiction covered by Section 115 of the Code.

VII. LIMITATION [ARTICLE 131, LIMITATION ACT, 1963]

The period of limitation for preferring a revision application is ninety days from the decree or order sought to be revised.

VIII. REVISION AND WRIT

The revisional power under Section 115 of the Code is clearly in the nature of power to issue a writ of certiorari. It is, however, not as wide as certiorari since it can be exercised only in case of jurisdictional error and not in case of any other error. Power of the High Court in revision is not in any manner wider than the power under Article 226 of the Constitution. Again, if the petitioner has already filed a revision in the High Court under Section 115 and has obtained an order, he cannot thereafter invoke the jurisdiction of the High Court under Article 226. If there are two modes of invoking the jurisdiction of the High Court and one of those modes has been chosen and exhausted, it would not be a proper and sound exercise of discretion to grant relief in the other set of proceedings in respect of the same order of the subordinate Court.

In **Major Khanna v. Brigadier Dhillon (AIR 1964 SC)**, Hidayatullah, J. (as he then was) stated: "The power given by Section 115 of the Code is clearly limited to the keeping of the Subordinate Courts within the bounds of their jurisdiction. It does not comprehend the power exercisable under the writ of prohibition or *mandamus*. It is also not a full power of certiorari inasmuch as it arises only in a case of jurisdiction and not in a case of error..... Where there is no question of jurisdiction, the decision cannot be corrected for it has been ruled that a Court has jurisdiction to decide wrongly as well as rightly. But once a flaw of jurisdiction is found the High Court need not quash and remit as is the practice in English Law under the writ of certiorari but pass such order as it thinks fit."

IX. REVISION AND POWER OF SUPERINTENDENCE

A revision under Section 115 of the Code and petition under Article 227 of the Constitution are two separate and distinct proceedings. One cannot be identified with the other. Firstly, while the revisional power is only judicial, the power of superintendence is both judicial as well as administrative. Secondly, the revisional power is statutory and it can be taken away by a legislation. But the power of superintendence is constitutional and cannot be taken away or curtailed by a statute. Finally, the revisional powers of the High Court are restricted and can be exercised on all the conditions laid down in Section 115 of the Code being fulfilled, none of those restrictions apply to exercise of supervisory powers of the High Court under Article 227 of the Constitution.

X. APPEAL, REFERENCE, REVIEW AND REVISION – DISTINCTION

a) Revision and Review of Judgment

- i) The power of revision is exercised by the Court superior to the Court which decides the case but the power of review is exercised by the very Court which passed the decree or order.
- ii) The power of revision is conferred on the High Court only while it is not so in the case of review. Any Court can review its judgment.
- iii) Revisional powers by the High Court can be exercised only in a case when there is no appeal to the High Court but review can be made even when appeal lies to the High Court therein.
- iv) The grounds on which the powers of revision and review can be exercised are different. The grounds for revision relate to jurisdiction, viz., want of jurisdiction, failure to exercise a jurisdiction or illegal or irregular exercise of jurisdiction, while the grounds for review may be (a) the discovery of new and important matter or evidence, (b) some apparent mistake or error on the face of the record, or (c) any other sufficient reason.
- v) In revision the High Court can of its own accord send for the case, but for review and application has to be made by the aggrieved party.
- vi) No appeal lies from an order made in the exercise of revisional jurisdiction, but the order granting review is appealable.

b) Appeal and Reference

- i) A right of appeal is a right conferred on the suitor, while the power of reference is vested in the Court.
- ii) Reference is always made to the High Court, while an appeal is preferred to a superior Court, which need not necessarily be a High Court.
- iii) The grounds of appeal are wider than the grounds of reference.
- iv) Reference is made pending a suit, appeal or execution proceeding in order to enable the Court to enable the Court to arrive at a correct conclusion, while an appeal is preferred after the decree is passed or an appealable order is made.

c) Appeal and Revision

- i) An appeal lies to a superior Court, which may not necessarily be a High Court, but an application for revision lies only to the High Court.
- ii) An appeal lies only from appealable orders and decrees, but an application for revision can be made only when the relief by way of appeal to the High Court is not available.
- iii) A right of appeal is a substantive right given by statute. There is no right of revision. It is only a privilege. A party may move the High Court to invoke its revisional jurisdiction or the High Court may of its own motion exercise revisional jurisdiction, but this power is discretionary.
- iv) Any appeal abates if the legal representatives of a deceased party are not brought on the record within the time allowed by law. A revision does not abate in case of the death of the party even if legal representatives are not brought on the record. The High Court has a right to bring the proper parties before the Court at any time.
- v) The grounds of appeal and revision are different. An application in revision can lie only on the ground of jurisdiction and the High Court in exercise of its revisional jurisdiction is not a Court of appeal on a question of law or fact. In an appeal the Court has the power to decide both questions of fact and law.
- vi) Section 115 does not require that there should be an application in revision. The High Court can move of its own accord in exercising revisional jurisdiction. In case of appeal there must be a memorandum of appeal filed before the same can be considered by the appellate Court.
- vii) An essential distinction between an appeal and a revision is based on difference implicit in the said two expressions. An appeal is a continuation of the proceedings. In effect, the entire proceedings are before the appellate authority and it has power to review the evidence subject to the statutory limitations prescribed. But in the case of a revision, whatever powers the revisional authority may or may not have, it has not the power to review the evidence unless the statute expressly confers on it that power. [*State of Kerala v. K.M. Chari Abdulla & Co., AIR 1965 S.C. 1585*]

viii) A revision is nonetheless an appeal to the High Court for dispensation of justice but circumscribed by jurisdiction as provided in Section 115. The difference between an appeal or a revision lies in the limit and scope of jurisdiction. The right of appeal is one of entering a superior Court and invoking its aid and interposition to redress the error of the Court below. Two things, which are required to constitute appellate jurisdiction, are the existence of the relation of superior and inferior Courts and the power on the part of the former to review decisions of the latter. When the aid of the High Court is invoked on the revisional side it is done because it is a superior Court and it can interfere for the purpose of rectifying the error of the Court below. Section 115 circumscribes the limits of revisional jurisdiction but the jurisdiction, which is being exercised, is a part of the general appellate jurisdiction of the High Court as a superior Court. It is only one of the modes of exercising power conferred by the statute; basically and fundamentally it is the appellate jurisdiction of the High Court, which is being invoked and exercised in a wider, and large sense. [*Smt. Sarat Kumari Naik v. Smt. Santilata Rautray*, AIR 1963 NOC 63 Orissa]

ix) The distinction between an appeal and revision is a real one. A right to appeal carries with it right of re-hearing on law as well as on fact, unless the statute conferring the right to appeal limits it in some way as we find this has been done in second appeal arising under the Code of Civil Procedure. The power to hear a revision is generally given to a superior Court so that it may satisfy itself that a particular case has been decided according to law. [*Hari-Sharika v. Rao Girdhari Lal Chowdhury*, AIR 1963 S.C. 698;] [*Lachman Dass v. Santokh Singh*, JT 1995 (7) SC 437]

In the case of *Neta Ram and others v. Jiven Lal and another*, AIR 1963 SC 499, Hidayatullah, J. (as he then was) speaking for the Court observed that the revisional jurisdiction of the High Court does not include the power to reverse concurrent findings without showing how those findings are erroneous.

In the case of *State of Kerala vs. K.M. Chania Abdulla & Co.*, [(1965) 1 SCR 601] the Supreme Court expressed the view that when the legislature orders a right to appeal in one case and discretionary remedy of revision in another, it may be deemed to have created two jurisdictions different in scope and content.

d) Second appeal and Revision

- i) A second appeal lies to the High Court from every decree passed in appeal by a subordinate Court only if the High Court is satisfied that the case involves a substantial question of law. The grounds of revision are, however, different – they relate to jurisdiction.
- ii) The revisional powers of the High Court can be invoked in a case in which no appeal or second appeal lies to the High Court. This is not so in second appeal.
- iii) The High Court will not in its revisional jurisdiction enter into the merits of the case however erroneous the decision of the lower Court is on an issue of law or of fact but will interfere only to see that the requirements of law or of fact but will interfere only to see that the requirements of law have been properly obeyed by the Court whose order is the subject of revision. Although no second appeal can be preferred on question of fact, yet, when such an appeal is already before the High Court, it may determine issues of fact where such issues have not been determined by the lower appellate Court or have been wrongly determined provided the evidence on the record is sufficient for the determination. The power of interference in revision is much more limited than in the case of second appeal.
- iv) In revisional matters the High Court may decline to interfere if it is satisfied that substantial justice has been done. But, on substantial questions of law in second appeal, no discretion vests in the High Court and it has no right to decide merely on equitable grounds.

e) Reference and Revision

- i) In reference the case is referred to the High Court by a Court subordinate to it. On the other hand, in revision the party aggrieved moves the High Court for the exercise of its revisional jurisdiction, or the High Court may *suq motu* sent for the case and examine the record.
- ii) The ground for reference is the entertainment of some reasonable doubt by the Court trying the suit, appeal or executing the decree with regard to a question of law or usage having the force of law. The ground for revision, on the other hand, relates to jurisdiction, viz., want of jurisdiction, failure to exercise a jurisdiction or illegal or irregular exercise of jurisdiction.

f) Reference and Review <https://goo.gl/GU7xEZ> (Hard copy)

- i) In reference the subordinate Court refers the case to the High Court, while in review an application is made by the aggrieved party.
- ii) The High Court alone can decide matters on reference, while an application for review is made to the Court which passed the decree or made the order.
- iii) Reference is made during the pendency of a suit, appeal or execution proceedings, while an application for review is made to the Court after it has passed the decree or made the order.
- iv) The grounds for reference and review are different. Reference is made by the Court trying the suit, appeal or executing the decree when it entertains reasonable doubt with regard to any question of law or usage having the force of law. The grounds for review may be the discovery of new and important matter or evidence, some apparent mistake or error on the fact of the record, or any other sufficient reason.

g) Review and Appeal

- i) An application for review lies to the same Court while an appeal lies to a higher Court.
- ii) The main object of granting a review of judgment is reconsideration of the same matter by the same judge, while an appeal is heard by another judge.
- iii) The grounds for review are narrower than grounds of appeal.
- iv) There is no second review, but there is second appeal, on a substantial question of law.

XI. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. What is the difference between a revision and review? Which Courts exercise the respective jurisdictions? Indicate the provisions of law. [50 Words, RJS-1980-81]
2. On what grounds and in which Court a revision shall lie? [50 Words, RJS-1988]
3. Which Court has jurisdiction to hear revision of civil cases? [15 Words, RJS-1991]
4. Can revision be filed against an order of a Court disallowing an important question put to a witness? [150 Words, UPPCS(J)-1986]
5. Explain the distinction between Review and Revision, Second Appeal and Revision. [250 Words, UPPCS(J)-1988]
6. Difference between revision and appeal. [150 Words, BJE-1984]

CHAPTER XLII

NOTICE

[SECTION 80]

Dear aspirant,

Section 80 (1) states that no suit can be filed, until expiration of two months next after notice in writing (stating cause of action, the name, description and place of residence of the plaintiff and the relief which he claims) which has to be delivered to, or left at the office of:

- a) In the case of a suit against the Central Government, a Secretary to the Government;
- b) In case of railways, to the General Manager of that railway;
- c) In the case of a suit against the Government of Jammu and Kashmir, the Chief Secretary to that Government or any other authorized officer;
- d) In the case of a suit against any other State Government, a Secretary to that Government or the district collector;
- e) In the case of a Public officer, such public officer.

In ordinary suits, the plaintiff before filing of the suit need not give notice to the defendant. Such notice, however, is a condition precedent before filing a suit against the Government or against a public servant. However, against a "public servant", notice is necessary only where the suit is in respect of any act purporting to be done by such officer in his official capacity. Thus, where he insults or assaults his employees, no notice is needed; similar would be the case if at the time of institution of suit he has ceased to be a public officer. A public officer includes official assignee, receiver, liquidator or trustee.

The object of Section 80 is the advancement of justice [*Bihari Chowdhary v. State of Bihar, AIR 1984 SC*]. It is intended to alert the Government to negotiate a just settlement or at least have the courtesy to tell the aggrieved person why the claim is being resisted. It is to be noted that the notice under Section 80 is given for the benefit of the defendant and there is nothing to prevent him from waiving it. However, such notice has become an "empty formality" because the administration is often unresponsive. The Law Commission in its 14th Report advocated for deleting Section 80 of the Code.

Section 80 imposes statutory and unqualified obligation on the Court to see that its terms are strictly complied with. If on a reasonable reading, but not so as to make undue assumptions, the plaintiff is shown to have given the information which the statute requires him to give, any incidental defects or errors may be ignored [Section 80(3)]. The notice need not be practically a copy of the plaint. Thus, the non-mention of the quantum of damages, mis-description of the person to whom the communication is addressed, etc. would not be fatal to the claim of the plaintiff so as to invalidate a notice. Section 80 applies to all suits, whether they are suits for injunctions or suits for declarations, and suits for damages. However, it does not apply to the writs and complaints filed before the High Courts or the Supreme Court and the Tribunals.

Section 80 (2) provides that a suit may be instituted with the leave of the Court for obtaining an "urgent or immediate relief" against the Government/public officer, without serving a statutory notice. But in such a case, the Court shall not grant relief (interim or otherwise) in the suit, except after giving to the Government or public officer a reasonable opportunity of showing cause in respect of the relief prayed for in the suit. However, the Court have always deprecated such practice while granting urgent relief. If the Court is satisfied that no urgent relief is needed, it must return the plaint to the plaintiff, who can present it again after giving the statutory notice.

<https://goo.gl/GU7xEZ> (Hard copy)
This is an important chapter of CPC. Generally, one short notes is asked from this chapter. For RJS, UPPCS (J), UAPCS (J), MPCJ, HJS, DJS, Hr.J.S., Bihar J.E. and Jharkhand J.S., you should prepare following short notes from this chapter –

- i) Essentials of statutory notice under Section 80, CPC
- ii) Effect of not serving a notice
- iii) A short notes on notice [word limit – 150]
- iv) Exception to the general rule of serving the mandatory and statutory notice under Section 80 (2) CPC.

With best wishes.

Yours Sincerely
RAHUL

CHAPTER XLII

NOTICE

[SECTION 80]

SYNOPSIS

- I. Notice [Section 80]
- II. Requirements of Notice [Section 80 (1)]
- III. Nature and Scope
- IV. Object of Notice
- V. Essentials
- VI. Statutory Notice whether empty formality
- VII. Mandatory provisions
- VIII. Construction of Notice
- IX. Waiver of Notice
- X. Form of Notice
- XI. Mode of Service
- XII. Technical defect in Notice [Section 80 (3)]
- XIII. Exclusion of period of Notice [Section 15 (2), Limitation Act, 1963]
- XIV. Urgent relief [Section 80 (2)]
- XV. Questions of Previous Years Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XLII

NOTICE

[SECTION 80]

I. NOTICE [SECTION 80]

1. Save as otherwise provided in sub-section (2), no suits shall be instituted against the Government (including the Government of the State of Jammu & Kashmir) or against a public officer in respect of any act purporting to be done by such public officer in his official capacity, until the expiration of two months next after notice in writing has been delivered to, or left at the office of –

a) in the case of a suit against the Central Government, except where it relates to a railway, a Secretary to that Government;

b) in the case of a suit against the Central Government where it relates to railway, the General Manager of that railway;

(bb) in the case of a suit against the Government of the State of Jammu and Kashmir, the Chief Secretary to that Government or any other officer authorised by that Government in this behalf;

c) in the case of a suit against any other State Government, a Secretary to that Government or the Collector of the district;

and, in the case of a public officer, delivered to him or left at this office, stating the cause of action, the name, description and place of residence of the plaintiff and the relief which he claims; and the plaint shall contain a statement that such notice has been so delivered or left.

2. A suit to obtain an urgent or immediate relief against the Government (including the Government of the State of Jammu and Kashmir) or any public officer in respect of any act purporting to be done by such public officer in his official capacity, may be instituted, with the leave of the Court, without serving any notice as required by sub-section (1); but the Court shall not grant relief in the suit, whether interim or otherwise, except after giving to the Government or public officer, as the case may be, a reasonable opportunity of showing cause in respect of the relief prayed for in the suit.

Provided that the Court shall, if it is satisfied, after hearing the parties, that no urgent or immediate relief need be granted in the suit, return the plaint for presentation to it after complying with the requirements of sub-section (1).

3. No suit instituted against the Government or against a public officer in respect of any act purporting to be done by such public officer in his official capacity shall be dismissed merely by reason of any error or defect in the notice referred to in sub-section (1), if in such notice –

a) the name, description and the residence of the plaintiff had been so given as to enable the appropriate authority or the public officer to identify the person serving the notice and such notice had been delivered or left at the office of the appropriate authority specified in sub-section (1), and

b) the cause of action and the relief claimed by the plaintiff had been substantially indicated.

II. REQUIREMENTS OF NOTICE [SECTION 80 (1)]

In ordinary suits, i.e. suits between individuals and individuals, notice need not be given to the defendant by the plaintiff before filing a suit. Section 80 of the Code, however, declares that no suit shall be instituted against the Government or against a public officer in respect of any act purporting to be done by such public officer in his official capacity, until the expiration of two months next after notice in writing has been delivered to, or left at the office of –

a) in the case of a suit against the Central Government, except where it relates to a railway, a Secretary to that Government;

b) in the case of a suit against the Central Government where it relates to a railway, the General Manager of that railway;

c) in the case of a suit against the Government of the State of Jammu and Kashmir, the Chief Secretary to that Government or any other officer authorized by that Government in that behalf;

- d) in the case of a suit against any other State Government, a Secretary to that Government or the Collector of the district; and
- e) in the case of a public officer, such public officer.

III. NATURE AND SCOPE

Section 80 of the Code enacts a rule of procedure and clarifies that no suit shall be instituted against the Government or against a public officer until a statutory notice required by the section is served. The section enumerates two types of cases:

- i) Suits against the Government; and
- ii) Suits against public officers in respect of acts done or purporting to be done by such public officers in their official capacity.

Regarding the first class of cases, the notice must be given in all cases. Regarding the second class of cases, however, notice is necessary only where the suit is in respect of any act 'purporting to be done' by such public officer in the discharge of his duty, and not otherwise.

The expression "any act purporting to be done by such public officer in his official capacity" takes within its sweep acts as also illegal omissions. Likewise, it also covers past as well as future acts. All acts done or which could have been done under the colour or guise by an officer in the ordinary course of his official duties would be included therein. If the allegations in the plaint relate to an act purporting to be done by a public officer, whatever the relief prayed for, the section is attracted and a notice is mandatory.

IV. OBJECT OF NOTICE

The primary object underlying Section 80 is to afford an opportunity to the Government or the public officer to consider the legal position and to settle the claim put forward by the prospective plaintiff if the same appears to be just and proper. The Government, unlike private parties, is expected to consider the matter objectively and dispassionately and after obtaining proper legal advice, it can take an appropriate decision in the public interest within a period of two months allowed by the section by saving public time and money and without driving a person to avoidable litigation. The legislative intent behind the provision is that public money should not be wasted for unnecessary litigation. The section has been intended to alert the Government or a public officer to negotiate just claims and to settle them if well-founded without adopting an unreasonable attitude by inflicting wasteful expenditure on the public exchequer.

In *Bihari Chowdhary v. State of Bihar (AIR-1984 SC)*, the purpose behind the provision has been highlighted by the Apex Court thus:

"When we examine the scheme of the section it becomes obvious that the section has been enacted as a measure of public policy with the object of ensuring that before a suit is instituted against the Government or a public officer, the Government or the officer concerned is afforded an opportunity to scrutinise the claim in respect of which the suit is proposed to be filed and if it be found to be a just claim, to take immediate action and thereby avoid unnecessary litigation and save public time and money by settling the claim without driving the person, who has issued the notice, to institute the suit involving considerable expenditure and delay. There is clearly a public purpose underlying the mandatory provision contained in the section insisting on the issuance of a notice setting out the particulars of the proposed suit and giving two months' time to Government or a public officer before a suit can be instituted against them. The object of the section is the advancement of justice and the securing of public good by avoidance of unnecessary litigation."

V. ESSENTIALS

A notice under Section 80 must contain (i) name, description and place of residence of the person giving notice; (ii) a statement of the cause of action; and (iii) relief claimed by him

In considering whether the essential requirements of the section have been complied with, the Court should ask the following questions:

- a) Whether the name, description and residence of the plaintiff are given so as to enable the authorities to identify the person giving the notice?
- b) Whether the cause of action and the relief which the plaintiff claims have been set out with sufficient particulars?

- c) whether notice in writing has been delivered to or left at the office of the appropriate authority mentioned in the section? and <https://goo.gl/GU7xEZ> (Hard copy)
- d) Whether the suit has been instituted after the expiration of two months after notice has been served, and the plaint contains a statement that such a notice has been so delivered or left?

VI. STATUTORY NOTICE WHETHER EMPTY FORMALITY

Statutory notice is not an empty formality. The object is to afford an opportunity to the Government or a public officer to re-consider the matter in the light of the settled legal position and take an appropriate decision in accordance with law. Such notice has, however, become an empty formality. The administration is often unresponsive and shows no courtesy even to intimate the aggrieved party why his claim is not accepted.

The Law Commission, [Law Commission's 14th Report] therefore, recommended for the deletion of Section 80. It stated:

"The evidence disclosed that, in a large majority of cases, the Government or the public officer made no use of the opportunity afforded by the section. In most cases, the notice given under Section 80 remained unanswered till the expiry of the period of two months provided by the section. It was also clear that, in a large number of cases, Government and public officer utilized the section merely to raise technical defences contending either that no notice had been given or that the notice actually given did not comply with the requirements of the section. These technical defences appeared to have succeeded in a number of cases defeating the just claims of citizens."

VII. MANDATORY PROVISIONS

The provisions of Section 80 are express, explicit and mandatory and admit no implications or exceptions. They are imperative in nature and must be strictly complied with. They impose absolute and unqualified obligation on the Court. No Court can entertain a suit unless the notice is duly served under sub-section (1) of Section 80.

VIII. CONSTRUCTION OF NOTICE

The provisions of Section 80 of the Code must be strictly complied with. But it cannot be overlooked that it is a procedural provision, a machinery by which Courts impart justice. A notice under this section, therefore, should not be construed in a pedantic manner divorced from common sense.

IX. WAIVER OF NOTICE

Though issuance of a notice under Section 80 is mandatory and a condition precedent for the institution of a suit, the provision is merely procedural in nature and not a substantive one. It does not affect the jurisdiction of the Court. A notice under Section 80 is for the benefit of the Government or public officer. It is, therefore, open to the Government or public officer to waive such benefit. The question whether, in fact, there is waiver or not would necessarily depend on the facts of each case and is liable to be tried by the same Court if raised.

X. FORM OF NOTICE

A notice under Section 80 need not be in a particular form as no form has been prescribed by the Code for the purpose. It is sufficient if the notice complies with the requirements of the section. It should contain details sufficient to inform the party of the nature and basis of the claim and the relief sought.

XI. MODE OF SERVICE

A notice under Section 80 of the Code should be delivered to, or left at the office of, the appropriate authority specified in the section. It should be given to the Secretary of the department of the Government or the Collector of the District. Personal delivery of the notice is, however, not necessary. If such interpretation is adopted, the words "or left at his office" will become nugatory. Hence, such notice can either be served personally or be sent by registered post.

XII. TECHNICAL DEFECT IN NOTICE [SECTION 80 (3)]

Sub-section (3) to Section 80 as inserted by the Code of Civil Procedure (Amendment) Act, 1976 clarifies that no suit instituted against the Government or public officer shall be dismissed

merely on the ground of error or defect in the notice. If in such notice, the name, description and residence of the plaintiff had been so given as to enable the authority or public officer to identify the person serving the notice and such notice had been delivered or left at the office of the authority or public officer and the cause of action and the relief claimed by the plaintiff had been substantially indicated therein.

The above sub-section has been added with a view to ensuring that just claims of aggrieved parties will not be defeated on technical grounds.

XIII. EXCLUSION OF PERIOD OF NOTICE [SECTION 15 (2), LIMITATION ACT, 1963]

In computing the period of limitation for instituting a suit against the Government or public officer, the period of notice has to be excluded.

XIV. URGENT RELIEF [SECTION 80 (2)]

Sub-section (2) of Section 80 as inserted by the Code of Civil Procedure (Amendment) Act, 1976 enables the plaintiff to institute a suit against the Government or public officer for obtaining urgent or immediate relief with the leave of the Court even without serving notice to the Government or public officer. This sub-section, thus, engrafts an exception to the rule laid down in sub-section (1) of Section 80 and allows the plaintiff to obtain urgent relief in grave cases even without issuing notice.

The object underlying this provision is to prevent failure or miscarriage of justice in urgent cases. It is the urgency and immediate relief which would weigh with the Court while dealing with a prayer to dispense with the requirement of a notice and not the merits of the case.

Sub-section (2), however, enacts that in such a case, the Court shall not grant relief, whether interim or otherwise, except after giving to the Government or public officer, as the case may be, a reasonable opportunity of showing cause in respect of the relief prayed for in the suit.

XV. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. As given in CPC, write the heading of Section 80. **[15 Words, RJS-1989]**
2. What facts are essential in a notice under Section 80 CPC? What will be the effect upon the suits against the Central Government, the State Government or their officers, if the said notice is not given? **[150 Words, UPPCS(J)-1985]**
3. Explain the rule of "Notice" prescribed in Section 80 of the Code of Civil Procedure, 1908. **[150 Words, UPPCS(J)-1997]**
4. What facts are essential in a notice under Section 80 of Civil Procedure Code? What will be the effect upon suit against the central Government, the State Governments or their officer if the said notice is not given? **[150 Words, HJS-2000]**
5. Is there any exception to the general rule of serving the mandatory and statutory notice under Section 80 CPC? Write a brief note. **[20 Words, Jharkhand JS-2001]**

CHAPTER XLIII

EXECUTION IN GENERAL

[SECTIONS 36 – 74, ORDER 21]

Dear aspirant,

The principles governing execution of decrees and orders are dealt with in Sections 36 – 74 and Order 21 of the Code. Order 21 contains 106 Rules and is the longest of all orders in the Code.

"Execution" is the enforcement of a decree or order by the process of the Court, so as to enable the judgment - creditor to recover the fruits of the judgment passed in his favour. The decree to be executed must be a subsisting decree. Section 36 lays down that the provisions of the Code relating to execution of decrees shall also apply to execution of Orders.

It is the Court of first instance that is to execute the decree. Section 37 lays down that the expression "the Court which passed the decree" includes:

- a) Court of first instance which actually passed the decree.
- b) Court of first instance in case of appellate decrees.
- c) Where the Court of first instance has ceased to exist/to have jurisdiction to execute the decree, the Court which would have jurisdiction to try the suit at the time of execution.

The Court which actually passed the decree does not lose its jurisdiction to execute it, by reason of the subject matter thereof being transferred to another Court's jurisdiction [*Merla Ramanna v. Nallaparaju*, AIR 1956 SC]. Similar would be the position if any area has been transferred from the jurisdiction of the Court of first instance to another Court; both the Courts could execute a decree [Explanation, Section 37].

Section 38 lays down that a decree may be executed either by the Court which passed it or by the Court to which it is sent for execution. Section 39 provides for the transfer of a decree by the Court passing it to another Court for execution; the transfer may be on the application of the decree – holder or by the Court on which its own motion, if any of these grounds exist:

- a) The judgment - debtor actually and voluntarily resides or carries on business or personally works for gain, within the local limits of jurisdiction of such other Court.
- b) The judgment - debtor has property sufficient to satisfy the decree within the local limits of that Court.
- c) The decree directs the sale or delivery of immovable property situated outside the local limits of jurisdiction of the Court which passed it.
- d) Any other reason.

Under Section 39, the Court has discretionary power; the decree - holder has no vested or substantive right to get the decree transferred. His right is to make an application for transfer which is merely a procedural right. The provisions of Section 39 are permissive and not mandatory. Section 39 (3) clarifies that the transferee Court should have jurisdiction to try the suit in which decree was passed, at the time of making of an application for transfer. Section 39 (4) [inserted by 2002 Amendment] lays down that nothing in this section shall be deemed to authorise the Court which passed a decree to execute such decree against any person or property outside the local limits of its jurisdiction. The jurisdiction contemplated under Section 39 is pecuniary and territorial jurisdiction.

The Court sending a decree for execution shall send (a) a copy of the decree, (b) a certificate of non - satisfaction of decree, and (c) a copy of an order of execution/or

a certificate [Order 21, Rule 6]. Where a decree is sent for execution in another state, the rules of that state will apply [Section 40]. Section 42 expressly confers upon the Court executing a decree sent to it the same powers as if it had been passed by itself. The transferee Court has the power to send the decree for execution to another competent Court (as the Court which passed the decree has under Section 39). However, such Court has no power to order execution at the instance of the transferee of the decree.

The Court executing the decree cannot go behind the decree, and must execute it as it stands. It has no power to entertain any objection as to the validity or legality or correctness of the decree. This is based on the principle that a proceeding to enforce a judgment is collateral to the judgment. However, in case of inherent lack of jurisdiction, the decree passed by the Court is a nullity and its invalidity could be set up wherever and whenever it is sought to be enforced, whether in execution or in collateral proceedings [*Karan Singh v. Chaman Paswan*, AIR 1954 SC].

Further, when the terms of a decree are vague or ambiguous, an executing Court can construe the decree to ascertain its precise meaning. An executing Court can go into the question of executability or otherwise of the decree and consider whether by any subsequent developments, the decree has ceased to be executable [*Jai Narain v. Kedar Nath*, AIR 1956 SC]. It can mould relief according to the changed circumstances. A decree which becomes inexecutable by operation of law, may become executable by virtue of subsequent amendments.

Indian Courts have power to execute the decrees passed by:

- a) Indian Courts to which the provisions of the Code do not apply;
- b) The Courts situated outside India, established by the authority of Central Government,
- c) Revenue Courts in India, and
- d) Superior Courts of any reciprocating country [Sections 43 – 44A]. Section 45 provides for the execution in foreign territory of the decrees passed by Indian Courts in certain circumstances.

All the proceedings in execution commence with the filing of an application for execution. Such application should be made to the Court which passed the decree or, where the decree has been transferred by another Court, to that Court. It is noteworthy that the provisions of res-judicata also apply to execution proceedings.

An agreement waiving the right to execute is legal and enforceable. Where, after the passing of the decree, the parties enter into an agreement not to execute the decree, then, if the intention is to enter into a new contract in supersession of the decree, the contract may form the basis of a separate suit, and Section 47 is no bar. But if the agreement is merely pleaded as a bar to execution, the Court can inquire into under Section 47.

Under Section 49, every transferee of a decree holds the same subject to the equities (if any) which the judgment - debtor might have enforced against the original decree - holder. Thus, A holds a decree against B for Rs. 5000; B holds a decree against A for Rs. 3000. A transfers his decree to C. C cannot execute the decree against B for more than Rs. 2000.

Section 50 lays down that if a judgment - debtor dies before the decree has been fully satisfied, the decree - holder may execute the same against all the legal representatives of the deceased. When such a decree is executed against such representative, he is liable only to the extent of the property of the deceased which has come to his hands and has not been fully disposed of. It may be noted that if the legal representative also dies, his legal representative will be liable.

Order 21, Rule 1 lays down that all money payable under a decree shall be paid either (i) into the executing Court, or (ii) out of Court to the decree - holder, or (iii) as per the direction of Court which passed the decree. This is an enabling provision for the benefit of the judgment - debtor. The payment may be made by postal money order or through a bank also, besides depositing into the Court. Where a payment is

<https://goo.gl/GU7xEZ> (Hard copy)
made outside the Court, a certificate of payment or adjustment by the decree - holder and a record by the Court of it is necessary [Rule 2]. Where a payment is made into the Court, a notice should be given to the decree - holder by the judgment - debtor.

A obtains a decree against B for Rs. 5000. Subsequently, A agrees to accept Rs. 3000 in full satisfaction of the decree, and B pays Rs. 3000 out of Court, but neither the payment nor the adjustment is certified to the Court. A applies for execution of the full amount of the decree, notwithstanding receipt by him of Rs. 3000; B objects to that. The payment being uncertified, cannot be recognised by the Court executing the decree. The only remedy open to B is to file a suit against A for the recovery of damages for breach of contract represented by adjustment. B also cannot file a separate suit for stay of execution.

Section 51 enumerates the various modes of the execution of a decree:

- a) Delivery of any property specifically decreed.
- b) Attachment and sale or sale without attachment of property.
- c) Arrest and detention in prison of the judgment debtor.
- d) By appointing a receiver.
- e) Such other manner as the nature of the relief granted may require.

Section 51 defines the jurisdiction and power of the Court to enforce execution. Rules 30 - 36 lay down the manner of executing a decree. It may be noted that it is for the decree - holder to decide in which of the several modes he will execute his decree. It will, however, be subject to the conditions prescribed by the Code and the Court's discretion.

A decree for a specific movable property can be executed by (i) seizure and delivery of property to the decree - holder, or (ii) detention of judgment - debtor, or (iii) attachment of property, or (iv) both detention and attachment [Rule 31]. If the immovable property is in the possession of judgment - debtor, actual possession must be delivered to the decree - holder under Rule 35. Where it is in the possession of a tenant or other person entitled to occupy the same (joint possession), only symbolical or formal possession can be delivered under Rule 36. This is done by affixing a copy of warrant and proclaiming to the occupant of property by beat of drum, etc. the substance of the decree regarding the property.

The Court can order attachment and sale or sale without attachment of property. The Court is competent to "attach" the property if it is situated within the local limits of its jurisdiction. Attachment entails that the judgment - debtor may not transfer or create encumbrance over property thereafter. [Rule 54]

A decree for payment of money [Rule 30]/specific movable property [Rule 31] can be executed by the detention in civil prison of the judgment - debtor. The proviso to Section 51 lays down that where the decree is for the payment of money, detention should not be ordered unless after giving the judgment - debtor an opportunity of showing cause, the Court is satisfied that there is not a mere omission to pay but an attitude of refusal or demand verging on dishonest disowning of the obligation under the decree. The simple default to discharge is not enough. There must be some element of bad faith beyond mere indifference to pay [*Jolly Verghese v. Bank of Cochin, AIR 1980 SC*]. The proviso is also applicable where the judgment - debtor is likely to abscond. The Court must record the reason for the committal of the judgment - debtor to civil prison. Further, a decree for money cannot be executed by arrest and detention where the judgment - debtor is a woman, or a minor, or a legal representative [Sections 50, 52 and 56]. Section 58 lays down that no order of detention can be passed where the total amount of decree does not exceed Rs. 2000; for a sum of Rs. 2000 to Rs. 5000, detention period will be up to 6 weeks, and, for a sum exceeding Rs. 5000, detention could be up to 3 months [as amended by the 1999 Amendment].

A decree may be executed by the appointment of a receiver. Execution by appointment of a receiver is known as equitable execution and is entirely within the Court's discretion.

- i) Where a decree is for partition or separate possession of a share of an undivided estate assessed to the payment of revenue to the Government, it should be made by the collector [Section 54].
- ii) Where a decree is for specific performance of a contract or for injunction, and the party against whom it has been passed has wilfully failed to obey it, it may be executed by his detention or by attachment of his property or both [Rule 32]. This point may be explained with the help of illustration: A, a person of little substance, erects a building which renders uninhabitable a family mansion belonging to B. A, in spite of his detention in prison and the attachment of his property, declines to obey a decree obtained against him by B directing him to remove the building. The Court is of the opinion that no sum realizable by the sale of A's property would adequately compensate B for that depreciation in the value of his mansion. B may apply to the Court to remove the building and may recover the cost of such removal from A in the execution of proceedings.
- iii) Where a decree is for payment of money, even as an alternative to some other relief, it may be executed by detention or attachment and sale of property or both. [Rule 30]
- iv) In a decree for restitution of conjugal rights, if a party wilfully fails to obey a decree of restitution, it may be executed by the attachment of property [Rule 32]. If the decree is against the husband, and he does not comply with it in a fixed time, the Court may order him to make periodical payments to decree - holder [Rule 33].
- v) Where a decree is for execution of document or endorsement of negotiable instrument, and the judgment - debtor neglects or refuses to obey the decree, the Court shall, after giving an opportunity to the decree - holder as well as the judgment - debtor to prepare a draft or enforcement in accordance with the terms of decree, execute a document or endorse a negotiable instrument. [Rule 34]
- vi) Attachment is made in case of decree for rent, mesne profits etc. [Rule 42]
- vii) A surety (viz. a person who has furnished security or given a guarantee for the performance of a decree) will be personally liable (if he has rendered himself liable so) or his property will be liable (if he has furnished any property as security) or both. [Section 145]
- viii) A decree against corporation may be executed by attachment of property or detention of its directions or officers, or both. [Rule 32]
- ix) A decree against firm may be executed against -
 - a) any partnership property;
 - b) any person who has appeared in his own name as a partner, or
 - c) any person who has been individually served with a summons as a partner and has failed to appear. Where the decree is sought to be executed against any person alleged to be partner, the decree - holder must obtain the Court's leave to execute the decree against him. Property belonging to a firm can be attached or sold in execution of a decree passed against the firm/partners. [Rules 49 - 50]
- x) If the decree is for the payment of money out of the property of the deceased, it may be executed by the attachment and sale of such property [Section 52]. Section 53 makes the son or other descendant of a Hindu, his legal representative in respect of the joint-family or ancestral property in his hands which is liable, under Hindu law, for the satisfaction of the debts of deceased ancestor.

Simultaneous execution is an execution both against the property and person of the judgment - debtor, which is allowed under Rule 30. But, the Court has discretion to refuse the same under Rule 21. Rules 18 - 20 of Order 21 deal with set - off of cross - decrees and cross - claims in ordinary suits and mortgage suits.

Under Rule 26 of Order 21, if sufficient cause is shown, the Court to which a decree has been sent for execution can stay the execution for a reasonable time to

enable the judgment - debtor to apply to the Court which passed the decree or an appellate Court for a stay order against execution. The Court may require security from or impose conditions upon the judgment - debtor, as it thinks fit.

This chapter is most important for Judicial Examinations. There are three reasons for its importance:

- i) Without studying this chapter, you cannot understand chapter no. 44 to 49. Chapter no. 44 to 49 also relate to execution.
- ii) Various kinds of questions are asked from this chapter in RJS, BJE, HJS, DJS, Hr.J.S., UPPCS (J), UAPCS (J), MPCJ, Jharkhand J.E. etc.
- iii) This chapter is also important for interview.

You should study by heart following topics:

- i) Execution: Meaning
- ii) Problems and their solution in Execution of decrees
- iii) The modes of execution of following decrees –
 - a) A decree for specific performance of contract
 - b) A decree for restitution of conjugal rights
 - c) Injunction
- iv) Execution of a decree against the legal representative of a deceased judgment debtor
- v) Different modes of execution of decrees
- vi) The modes of payment of money under a decree
- vii) Transfer of decrees

With best wishes.

Yours Sincerely

RAHUL

EXECUTION IN GENERAL

[SECTIONS 36 – 74, ORDER 21]

SYNOPSIS

- I. Execution: Meaning
- II. Court's executing decrees [Sections 37 and 38]
- III. Transfer of decree for execution [Sections 39 - 42, Rules 3 - 9, Order 21]
- IV. Application for execution [Rules 10 - 25, 105 - 106, Order 21]
- V. Execution application and Res judicata
- VI. Stay of execution [Rule 26, Order 21]
- VII. Modes of execution of decrees [Section 51]
 1. Delivery of property
 - a) Movable property [Section 51 (a), Rule 31]
 - b) Immovable property [Rules 35 and 36, Order 21]
 2. Attachment and sale of property [Section 51 (b)]
 3. Arrest and detention [Section 51 (c)]
 4. Appointment of receiver [Section 51 (d)]
 5. Payment of money [Rules 2, 30, Order 21]
 - a) Nature and scope
 - b) Modes of paying money
 - c) Payment in Court
 - d) Payment out of Court
 - e) Certification of payment
 - f) Effect of payment
 - g) Uncertified payment
 6. Specific performance of contract [Rule 32, Order 2]
 7. Injunction [Rule 32, Order 21]
 8. Restitution of conjugal rights [Rules 32 - 33, Order 21]
 9. Execution of document [Rule 34, Order 21]
 10. Endorsement of negotiable instrument [Rule 34, Order 21]
 11. Attachment of rent, mesne profits, etc. [Rule 42]
 12. Liability of surety [Section 145]
 13. Decree against corporation [Rule 32, Order 21]
 14. Decree against firm [Rules 49 and 50, Order 21]
- VIII. Questions of Previous Years' Exam– [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

EXECUTION IN GENERAL

[SECTIONS 36 – 74, ORDER 21]

I. EXECUTION: MEANING

The term "execution" has not been defined in the Code. In its widest sense, the expression "execution" signifies the enforcement or giving effect to a judgment or order of a Court of justice. Stated simply, 'execution' means the process for enforcing or giving effect to the judgment of the Court. In other words, execution is the enforcement of decrees and orders by the process of the Court, so as to enable the decree - holder to realise the fruits of the decree. The execution is complete when the judgment - creditor or decree - holder gets money or other thing awarded to him by the judgment, decree or order.

A files a suit against B for Rs. 10,000/- and obtains a decree against him. Here A is the judgment - creditor or decree - holder, B is the judgment - debtor, and the amount of Rs. 10,000/- is the judgment - debt or the decretal amount. Since the decree is passed against B, he is bound to pay Rs. 10,000/- to A. Suppose in spite of the decree, B refuses to pay the decretal amount to A, A can recover the said amount from B by executing the decree through the judicial process. The principles governing execution of decrees and orders are dealt with in Sections 36 to 74 (substantive law) and Order 21 of the Code (procedural provisions). Order 21 contains 106 Rules and is the longest of all orders in the Code.

In *Ghan Shyam Das Gupta v. Anant Kumar Sinha* (AIR 1991 SC) dealing with the provisions of the Code relating to execution of decrees and orders, the Supreme Court stated: "So far as the question of executability of a decree is concerned, the Civil Procedure Code contains elaborate and exhaustive provisions for dealing with it in all its aspects. The numerous rules of Order 21 of the Code take care of different situations providing effective remedies not only to judgment - debtors and decree - holders but also to claimant objectors, as the case may be. In an exceptional case, where provisions are rendered incapable of giving relief to an aggrieved party in adequate measure and appropriate time, the answer is a regular suit in the civil Court. The remedy under the Civil Procedure Code is of superior of judicial quality then what is generally available under other statutes and the Judge being entrusted exclusively with administration of justice, is expected to do better."

A decree which is otherwise valid and executable, does not become inexecutable on the death of the decree - holder or of the judgment - debtor and can be executed against his legal representatives.

A decree which becomes inexecutable by operation of law, may become executable by virtue of a subsequent amendment in the statute and can be executed after such amendment.

II. COURT'S EXECUTING DECREES [SECTIONS 37 AND 38]

Section 38 of the Code enacts that a decree may be executed either by the Court which passed it or by the Court to which it is sent for execution. Section 37 defines the expression "Court which passed a decree" while Sections 39 to 45 provide for the transfer of execution of a decree by the Court which passed the decree to another Court, lay down conditions for such transfer and also deal with powers of executing Court. All these sections, therefore, need to be read together.

Section 37 defines the expression "Court which passed a decree". The section enlarges the scope of the expression "Court which passed a decree" with the object of giving greater facilities to a decree - holder to realise the fruits of the decree passed in his favour. The following Courts fall within the said expression:

- The Court of first instance which actually passed the decree;
- The Court of first instance in case of appellate decrees;
- Where the Court of first instance has ceased to exist, the Court which would have jurisdiction to try the suit at the time of execution; and
- Where the Court of first instance has ceased to have jurisdiction to execute the decree, the Court which at the time of execution would have had jurisdiction to try the suit.

A decree may be executed either by the Court which passed it, or by the Court to which it is sent for execution. A Court which has neither passed a decree, nor a decree is transferred for execution, can execute it.

Where the Court of first instance has ceased to exist or ceased to have jurisdiction to execute the decree, the decree can be executed by the Court which at the time of making the execution application would have jurisdiction in the matter.

III. TRANSFER OF DECREE FOR EXECUTION [SECTIONS 39 - 42, RULES 3 - 9, ORDER 21]

As stated above, a decree may be executed either by the Court which passed it or by the Court to which it is sent for execution. Section 39 provides for the transfer of a decree by the Court which has passed it and lays down the conditions therefore.

As a general rule, the Court which passed the decree is primarily the Court to execute it, but such Court may send the decree for execution to another Court either *suo motu* (of its own motion) or on the application of the decree - holder if any of the following grounds exists:

- a) The judgment - debtor actually and voluntarily resides or carries on business, or personally works for gain, within the local limits of the jurisdiction of the such Court; or
- b) The judgment - debtor does not have property sufficient to satisfy the decree within the local limits of the jurisdiction of the Court which passed the decree but has property within the local limits of the jurisdiction of the such other Court; or
- c) The decree directs the sale or delivery of immovable property situate outside the local limits of the jurisdiction of the Court which passed it; or
- d) The Court which passed the decree considers it necessary for any other reason to be recorded in writing that the decree should be executed by such other Court.

The provisions of Section 39 are, however, not mandatory and the Court has discretion in the matter which will be judicially exercised by it. The decree - holder has no vested or substantive right to get the decree transferred to another Court. The right of the decree - holder is to make an application for transfer which is merely a procedural right. By the Amendment Act of 1976, sub-section (3) has been added to Section 39. It clarifies that the transferee Court must have pecuniary jurisdiction to deal with the suit in which the decree was passed. Likewise, sub-section (4) of Section 39, as added by the Code of Civil Procedure (Amendment) Act, 2002 further clarifies that the Court passing the decree has no power to execute such decree against a person or property outside the local limits of its territorial jurisdiction.

IV. APPLICATION FOR EXECUTION [RULES 10 - 25, 105 - 106, ORDER 21]

All proceedings in execution commence with the filing of an application for execution. Such application should be made to the Court which passed the decree or, where the decree has been transferred to another Court, to that Court. Rules 10 - 25 and 105 - 106 of Order 21 deal with execution applications.

The following persons may file an application for execution:

- a) Decree - holder.
- b) Legal representative of the decree - holder, if the decree - holder is dead.
- c) Representative of or a person claiming under the decree - holder.
- d) Any person claiming under the decree - holder.
- e) Transferee of the decree - holder, if the following conditions are satisfied -
 - i) the decree must have been transferred by an assignment in writing or by operation of law;
 - ii) the application for execution must have been made to the Court which passed the decree;
 - iii) notice and opportunity of hearing must have been given to the transferor and the judgment - debtor.
- f) One or more of the joint decree - holders, provided the following conditions are fulfilled:
 - i) the decree should not have imposed any condition to the contrary;
 - ii) the application must have been made for the execution of the whole decree; and
 - iii) the application must have been for the benefit of all the joint decree - holders; or where any of them has died, for the benefit of the survivors and the legal representatives of the deceased decree - holder.

Execution may be taken out against the following persons:

- a) Judgment - debtor.
- b) Legal representatives of the judgment - debtor, if the judgment - debtor is dead. (They shall, however, be liable to the extent of the property of the deceased judgment - debtor which has come to their hands.)
- c) Representative of or the person claiming under the judgment - debtor.
- d) Surety of the judgment - debtor.

The period of limitation for the execution of a decree (other than a decree granting a mandatory injunction) is twelve years from the date of the decree. The period of limitation for the execution of a decree for mandatory injunction is three years from the date of the decree.

V. EXECUTION APPLICATION AND RES JUDICATA

Explanation VII to Section 11 as added by the Amendment Act of 1976 specifically provides that the provisions of res judicata will apply to execution proceedings also.

But before an earlier decision can operate as res judicata, the execution application must have been heard and finally decided by the Court. Hence, if an execution application is dismissed for default of appearance, or for non-prosecution, or as being premature, or as being belated, or on the ground that it is not pressed, or is not maintainable, the order will not operate as res judicata and a fresh execution application on the same ground for the same prayer is not barred.

VI. STAY OF EXECUTION [RULE 26, ORDER 21]

Provisions for stay of a execution of a decree are made in Rule 26 of Order 21. This rule lays down that the executing Court shall, on sufficient cause being shown and on the judgment - debtor furnishing security or fulfilling such conditions, as may be imposed on him, stay execution of a decree for a reasonable time to enable the judgment - debtor to apply to the Court which has passed the decree or to the appellate Court for an order to stay execution.

An order of restitution for the discharge of the judgment - debtor made under Rule 26 shall not prevent the Court from restarting the execution proceedings. [Rule 27]

Rule 29 provides for stay of execution pending suit between the decree - holder and the judgment - debtor. It enacts that where a suit by the judgment - debtor is pending in a Court against the decree - holder such Court may, on the judgment - debtor furnishing security or otherwise as it thinks fit, stay execution of the decree until the disposal of such suit.

The underlying object of this provision is twofold, namely, (i) firstly, to enable the judgment - debtor and the decree - holder to adjust their claims against each other; and (ii) secondly, to prevent multiplicity of execution proceedings.

For this rule to apply there must be two simultaneous proceedings in one Court: (1) A proceeding in execution of the decree at the instance of the decree - holder against the judgment - debtor; and (2) a suit at the instance of the judgment - debtor against the decree - holder.

VII. MODES OF EXECUTION OF DECREES [SECTION 51]

The Code lays down various modes of execution. After the decree - holder files an application for execution of a decree, the executing Court can enforce execution. The substantive provision (Section 51) "merely enumerates different modes of execution in general terms, while the conditions and limitations under which alone the respective modes can be availed of are prescribed further by different provisions". [Order 21]

As a general rule, a decree - holder has an option to choose a particular mode for executing and enforcing a decree passed by a competent Court in his favour. It is for him to decide in which mode he will execute his decree. This power, however, is "subject to such conditions and limitations as may be prescribed" by the Code. It is also subject to the discretion of the Court.

A decree may be enforced by delivery of any property specified in the decree; by attachment and sale or by sale without attachment of any property, or by arrest and detention in civil prison of the judgment - debtor or by appointing a receiver, or by effecting partition, or in such other manner as the nature of the relief may require.

1. Delivery of Property

<https://goo.gl/GU7xEZ> (Hard copy)

a) Movable property [Section 51 (a), Rule 31]

Where the decree is for any specific movable property, it may be executed (i) by seizure and delivery of the property; or (ii) by detention of the judgment - debtor; or (iii) by the attachment and sale of his property; or (iv) by attachment and detention both.

b) Immovable property [Rules 35 and 36, Order 21]

Rules 35 and 36 provide the mode of executing decrees for possession of immovable property. Rules 35 and 36 correspond to Rules 95 and 96 which lay down the procedure for delivery of possession to the auction - purchaser who has purchased the property in an auction sale. Where the decree is for immovable property in the possession of the judgment - debtor or in the possession of the person bound by the decree, it can be executed by removing the judgment - debtor or any person bound by the decree and by delivery possession thereof to the decree - holder.

2. Attachment and sale of property [Section 51 (b)]

Section 51 (b) empowers the Court to order execution of a decree by attachment and sale or by sale without attachment of any property. The Court is competent to attach the property if it is situated within the local limits of the jurisdiction of the Court.

Rule 54 provides for the attachment of immovable property and the procedure for the proclamation of such attachment. The object of Rule 54 is to inform the judgment - debtor about the attachment so that he may not transfer or create encumbrance over the property thereafter.

3. Arrest and detention [Section 51 (c)]

It is for the decree - holder to decide in which of the several modes he will execute his decree. One of such modes of executing a decree is arrest and detention in civil prison of the judgment - debtor. However, clause (c) should be read subject to the proviso to Section 51. The proviso lays down that where the decree is for payment of money, execution by detention in civil prison should not be ordered unless, after giving the judgment - debtor an opportunity of showing cause why he should not be so detained, the Court for reasons to be recorded in writing is satisfied (i) that the judgment - debtor with the object of obstructing or delaying the execution of the decree (a) is likely to abscond or leave the local limits of the jurisdiction of the Court; or (b) has, after the institution of the suit in which the decree was passed, dishonestly transferred, concealed or removed any part of his property, or committed any other act of bad faith in relation to his property; or (ii) that the judgment - debtor has, or has had since the date of the decree, the means to pay the amount of the decree or some substantial part thereof and refuses or neglects or has refused or neglected to pay the same; or (iii) that the decree is for a sum which the judgment - debtor was bound in a fiduciary capacity to account for.

4. Appointment of receiver [Section 51 (d)]

One of the modes of execution of a decree is the appointment of a receiver. Execution by appointment of a receiver is known as equitable execution and is entirely at the discretion of the Court. It cannot be claimed as of right. It is thus an exception to the general rule stated above that it is for the decree - holder to choose the mode of execution and that the Court has no power to refuse the mode chosen by him.

The appointment of a receiver in execution proceedings is considered to be an exceptional remedy and a very strong case must be made out in support of it. The decree - holder before resorting to this mode must show that there is no effective remedy for obtaining relief by the usual statutory modes of execution. The Court also must be satisfied that the appointment of a receiver is likely to benefit both the decree - holder and the judgment - debtor rather than a sale of the attached property. It has also to be satisfied that the decree is likely to be realised within a reasonable time from the attached properties so that the judgment - debtor may not be burdened with property while he is deprived of the enjoyment of it. Again, this mode of execution cannot be resorted to in order to circumvent the statutory provisions.

5. Payment of money [Rules 2, 30, Order 21]

a) Nature and Scope

A decree for payment of money simpliciter or as an alternative to some other relief may be executed by attachment and sale of property of the judgment - debtor or by his

detention in civil prison or by both. The provision is not exhaustive and does not override other provisions of the Code. Hence, a decree for payment of money can be executed by the appointment of a receiver. Since rateable distribution of assets is one of the recognised modes of execution of a decree for payment of money, the same can also be invoked by the decree - holder.

b) Modes of paying money

All money payable under a decree shall be paid either (i) by depositing in the executing Court; or (ii) out of Court to the decree - holder; or (iii) as per the direction of the Court which has passed the decree. The judgment - debtor is bound to pay the decretal debt in one of the above modes.

c) Payment in Court

Where payment is made by depositing the decretal amount in the executing Court, or as per the direction of the Court, which has passed the decree, the judgment - debtor shall give notice of such payment to the decree - holder through Court or directly to him by registered post acknowledgment due. On the amount being paid, interest shall cease from the date of service of the notice.

d) Payment out of Court

A payment to the decree - holder out of Court also discharge the decree. Such payment may be made by postal money order or through a bank or by any other mode wherein payment is evident in writing.

When the payment is made out of Court, the following particulars must be accurately stated:

- a) The number of the original suit;
- b) The names of the parties or where there are more than two plaintiffs or more than two defendants, as the case may be, the names of the first two plaintiffs and the first two defendants;
- c) How the money remitted is to be adjusted, that is to say, whether it is towards the principal, interest or costs;
- d) The number of the execution case of the Court, where such case is pending; and
- e) The name and address of the payer.

On the amount being paid, interest shall cease from the date of payment.

Where the decree - holder refuses to accept the postal money order or payment through a bank, interest shall cease to run from the date of such refusal.

But the Code requires a certificate of payment or adjustment by the decree - holder and recording of such payment or adjustment by the executing Court. It also contemplates an application by the judgment - debtor informing the Court of payment or adjustment. In that case, the Court may give notice to the decree - holder to show cause why such payment or adjustment should not be recorded as certified. If the decree - holder fails to show cause against such certification, the Court shall record payment or adjustment.

e) Certification of payment

No payment or adjustment can be recorded by the Court at the instance of the judgment - debtor unless such payment has been made either in the Court executing the decree, or as per the direction of the Court which has passed the decree, or out of Court to the decree - holder by postal money - order or through a bank or by any other mode wherein payment is evident in writing; or such payment or adjustment is proved by documentary evidence, or such payment or adjustment is admitted by or on behalf of the decree - holder in his reply to the notice by the Court or before the Court.

f) Effect of payment

A payment made in accordance with the provisions of the Code operates as a valid discharge of the decree against the judgment - debtor.

g) Uncertified payment

The Code prohibits the executing Court from recognising any payment or adjustment which has not been certified or recorded. The rule is mandatory and prohibition is

absolute. The bar applies as much to a total discharge as to a partial discharge. Payment or adjustment not certified under Rule 2 (3) of Order 21 would not be recognized by the executing Court. It is, however, open to the judgment - debtor to contend before the executing Court in answer to an execution application that the decree was satisfied and nothing remained to be paid to the decree - holder.

6. Specific performance of contract [Rule 32, Order 2]

Where a decree is for specific performance of a contract, and the party against whom it has been passed has wilfully disobeyed it, the same may be executed by attachment of his property, or his detention in civil prison, or by both.

A decree for specific performance creates mutual rights and liabilities in favour of both the parties. The defendant is as much entitled to enforce the decree as the plaintiff. Where the decree does not specify the time for performance of the contract, it should be performed within reasonable time. A party seeking to execute the decree for specific performance must fulfil the obligations imposed upon him by the decree. If he deposits considerations in the Court, he is entitled to have the sale deed executed.

7. Injunction [Rule 32, Order 21]

Where a decree is for injunction, and the party against whom it has been passed has wilfully disobeyed it, the same may be executed by attachment of his property, or his detention in civil prison, or by both.

The provision applies to prohibitory as well as mandatory injunctions.

Where the party against whom a decree for an injunction has been passed is a Corporation, the decree may be enforced by attachment of the property of the Corporation or, with the leave of the Court, by detention in civil prison of the directors or other principal officers thereof, or by both, attachment and detention.

8. Restitution of conjugal rights [Rules 32 - 33, Order 21]

Where a decree is for restitution of conjugal rights, and the party against whom it has been passed has wilfully disobeyed it, the same may be executed by attachment of his property.

A decree for restitution of conjugal rights cannot be executed by sending the person (husband or wife, as the case may be) to civil prison and the only permissible mode of executing the decree is attachment of the property of the judgment - debtor.

If the judgment - debtor obeys the decree and goes to live with the decree - holder, satisfaction can be entered of the decree. If the judgment - debtor is ready and willing to obey the decree, but the decree - holder obstructs execution thereof without reasonable cause, the Court can, at the instance of the judgment - debtor, enter satisfaction of the decree.

Where a decree is passed against the husband, the Court, either at the time of passing the decree or at any time thereafter, may order that in the event of the decree being disobeyed within the period fixed by the Court, the judgment - debtor shall make such periodical payments to the decree - holder (wife) as may be just and proper.

9. Execution of document [Rule 34, Order 21]

Where a decree is for the execution of a document and the judgment - debtor neglects or refuses to obey the same, the Court shall, after giving an opportunity to the decree - holder as well as to the judgment - debtor to prepare a draft of the document in accordance with the terms of the decree, execute a document in the prescribed form. It shall have the same effect as the execution of a document by the party ordered to execute the same.

10. Endorsement of negotiable instrument [Rule 34, Order 21]

Where a decree is for the endorsement of a negotiable instrument and the judgment - debtor neglects or refuses to obey the decree, the Court shall, after giving an opportunity to the decree - holder as well as to the judgment - debtor to prepare a draft of endorsement in accordance with the terms of the decree, endorse a negotiable instrument in the prescribed form. It shall have the same effect as the endorsement to the negotiable instrument by the party ordered to endorse the same.

An order made under this provision is appealable.

11. Attachment of rent, mesne profits, etc. [Rule 42]

Where a decree is for unascertained rent, or mesne profits, or any other matter, the Court may order attachment of the property of the judgment-debtor before the amount due from him is ascertained. Such attachment, however, cannot affect any interest created in the property prior to the attachment.

12. Liability of surety [Section 145]

Where any person has furnished security or given a guarantee (a) for the performance of any decree or any part thereof; or (b) for the restitution of any property taken in execution of a decree; or (c) for the payment of any money, or the fulfilment of any condition imposed on any person, under an order of the Court in any suit or in any proceeding consequent thereon; the decree or order may be executed (i) if he has rendered himself personally liable, against him to that extent; (ii) if he has furnished any property as security, by sale of such property to the extent of the security; (iii) if the case falls under both the clauses, i.e. he has rendered himself personally liable as well as has furnished security, then to the extent specified in clauses (i) and (ii) above. The person who has furnished security or given a guarantee shall be deemed to be a party within the meaning of Section 47.

Notice to the surety is a condition precedent to the validity of the proceedings against him. Attachment of the property without notice is illegal. It may be given by the decree-holder, or by the Court which passed the decree or by the executing Court.

13. Decree against corporation [Rule 32, Order 21]

Where the party against whom a decree for specific performance of a contract or for injunction has been passed is a corporation, and has wilfully failed to obey the decree passed against it, the same may be executed by the attachment of its property or with the leave of the Court by detention in civil prison of its directors or other officers or by both.

14. Decree against firm [Rules 49 and 50, Order 21]

Where a decree has been passed against a partnership firm, it may be executed against (a) any partnership property; (b) any person who has appeared in his own name as a partner, or admitted to be a partner; or (c) any person who has been individually served with a summons as a partner and has failed to appear.

If a decree-holder wants to execute a decree against a person other than those mentioned in clauses (b) and (c) as a partner in the partnership firm, the liability of such person may be determined by the Court. Such determination operates as a decree.

The provisions of Rule 50 of Order 21 should be read with Order 30. The latter deals with the procedure in suits instituted by or against firms, while the former provides the mode of execution of decrees which have been obtained against firms in the firm name.

VIII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. It is generally said that the trouble of a suitor really begins in our country after he obtains a decree. Discuss, giving your own reasons as to whether the above statement is correct or not in your opinion. [250 words, RJS - 1975]
2. How can a decree be enforced in the following:
 - a) A decree for specific performance of contract.
 - b) A decree for restitution of conjugal rights. [250 words, RJS - 1976]
3. As given in CPC, write the heading of Order XXI. [15 words, RJS - 1989]
4. How a decree for injunction can be executed? [50 words, RJS - 1991]
5. Short notes: Execution of a decree [150 words, HJS - 1998]
6. How and to what extent a decree can be executed against legal representative of a deceased judgment-debtor? [150 words, UPPCS (J) - 1999]
7. There was a suit between "A" and "B" regarding a house. "A" won the suit and also obtained possession of the house. However, "B" won in appeal. "A", however, did not return possession of the house of "B". Advise "B" suggesting remedy how to get back the house. [250 words, UPPCS (J) - 1991]

- <https://goo.gl/GU7x5Z> (Hard copy)
8. What are the modes of payment of money under a decree? If money is paid out of Court, then how the Court can record such payment or adjustment? **[150 words, MPCJ (M) – 2002]**
 9. State, giving reasons the remedies available to A. A has obtained a money decree against B who does not reside or own property within the local limits of the jurisdiction of the Courts which passed the decree. **[150 words, RJS – 1971]**
 10. What remedies are available to the decree - holder in whose favour a decree for sale or delivery of immovable property has been passed but such property is situated outside the jurisdiction of the Court which passed the decree. **[150 words, RJS – 1974]**

CHAPTER XLIV

PRECEPTS AND GARNISHEE ORDER

[SECTION 46] [RULES 46 – A, ORDER 21]

Dear aspirant,

Section 46 lays down that the Court which passes a decree may on the application of the decree - holder, issue a precept (an order or direction) to another Court competent to execute such decree, to attach the property of the judgment - debtor lying within its jurisdiction. The principal object of attachment by precept is to enable the decree - holder to obtain an interim attachment of the property of the judgment - debtor where there are grounds to apprehend that he may alienate the property.

The attachment under this section is merely a step taken to facilitate execution; it is not a step taken in the proceedings in execution or an order transferring a decree for execution. That is why, no attachment under a precept can continue for more than 2 months unless the Court which passed the decree extends the period, or unless before the termination of such attachment, the decree has been transferred to the Court by which attachment has been made. An order for permanent attachment is, thus, illegal.

Section 46 applies to matters which arise after a decree has been passed; it cannot be invoked in aid of an application of attachment before judgment under Order 38. Further, whose the property is situated outside India, this section has no application.

A garnishee is a judgment - debtor's debtor. He may be ordered by the Court not to pay the debt to his creditor (i.e. judgment - debtor), but to deposit the amount in the Court. A garnishee order is thus an order served on garnishee attaching a debt in his hand.

Rule 46 – A of Order 21 lays down that the Court may, in the case of a debt (other than a debt secured by a mortgage or charge) which has been attached under Rule 46, upon the application of the attaching creditor, issue a notice to the garnishee liable to pay such debt, calling upon him either to pay that due into the Court or to appear and show cause why he should not do so. If the garnishee pays the amount, the Court may direct that money may be paid to the decree - holder in satisfaction of the decree and the costs of execution. If he neither pays the amount nor appears and show cause, the Court may order the garnishee to comply with such notice as if such order were a decree against him.

The precept and garnishee order are not important topics for examination point of view. A short note may be asked on "Precept" in RJS but for preliminary judicial exam. Two objective type questions may be asked from these topics.

With best wishes,

Yours Sincerely

RAHUL

CHAPTER XLIV
PRECEPTS AND GARNISHEE ORDER
[SECTION 46] [RULES 46 – A, ORDER 21]

SYNOPSIS

I. Precept [Section 46]

1. Meaning
2. Nature and Scope
3. Object
4. Limitation

II. Garnishee Order [Rules 46 – A to 46 – I]

1. Meaning
2. Illustration
3. Object
4. Doctrine explained
5. Notice
6. Effect
7. Failure to comply
8. Costs
9. Appeal

III. Questions of Previous Years' Exam– [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

PRECEPTS AND GARNISHEE ORDER

[SECTION 46] [RULES 46 – A, ORDER 21]

I. PRECEPT [SECTION 46]

1. Meaning

"Precept" means 'a command' or 'an order'.

2. Nature and Scope

A precept is an order or direction given by the Court which passed the decree to a Court which would be competent to execute the decree to attach any property belonging to the judgment - debtor.

Section 40 provides that the Court which passed a decree may, upon an application by the decree - holder, issue a precept to that Court within whose jurisdiction the property of the judgment - debtor is lying to attach any property specified in the precept.

3. Object

The principal object of attachment by precept is to enable the decree - holder to obtain an interim attachment of the property of the judgment - debtor situate within the jurisdiction of another Court where it is apprehended that the decree - holder may otherwise be deprived of the fruits of the decree.

Thus, a precept seeks to prevent alienation of property of the judgment debtor not located within the jurisdiction of the Court which passed the decree so that interest of the decree - holder is safeguarded and protected.

4. Limitation

An order of precept is merely a step taken to facilitate execution, and not an order transferring a decree for execution. It is for this reason that the effect of the attachment in pursuance of the precept is, as a general rule, limited to two months unless the case is covered by the proviso.

An order of permanent attachment is, therefore, illegal. Moreover, this section applies to matters which arise after a decree has been passed. Hence, it cannot be invoked in aid of an application for attachment before judgment under Order 38, Rule 5. Again, no attachment can be effected under this section where the property is situate outside India.

II. GARNISHEE ORDER [RULES 46 – A TO 46 – I]

1. Meaning

Garnishee means a judgment - debtor's debtor. He is a person who is liable to pay a debt to a judgment - debtor or to deliver any movable property to him. A garnishee order is an order passed by a Court ordering a garnishee not to pay money to the judgment - debtor because the latter is indebted to the garnisher.

2. Illustration

Suppose A owes rupees 1000 to B and B owes rupees 1000 to C. By a garnishee order, the Court may require A not to pay money owed by him to B, but instead to pay to C, since B owes the said amount to C, who has obtained the order.

3. Object

The primary object of a garnishee order is to make the debt due by the debtor of the judgment - debtor available to the decree - holder in execution without driving him to a suit.

4. Doctrine explained

Rules 46 - A to 46 - I have been newly introduced in the Code by the Amendment Act of 1976. They lay down the procedure in garnishee cases. The Court may, in the case of a debt (other than a debt secured by a mortgage or charge) which has been attached under Rule

<https://goo.gl/GU7xEZ> (Hard copy)
46, upon the application of the attaching creditor, issue a notice to the garnishee liable to pay such debt, calling upon him either to pay into Court the debt due from him to the judgment-debtor or so much thereof as may be sufficient to satisfy the decree and costs of execution, or to appear and show cause why he should not do so.

The order contemplated by Rule 46 - A is discretionary and the Court may refuse to pass such order if it is inequitable. The discretion, however, must be exercised judicially. Where the Court finds that there is a bona fide dispute against the claim and the dispute is not false or frivolous, it should not take action under this rule.

5. Notice

Rule 46 - A requires a notice to be issued to a garnishee before a garnishee order is passed against him. If such notice is not issued and opportunity of hearing is not afforded before passing an order, the order would be null and void. In the eyes of the law, there is no existence of such an order and any step taken pursuant to or in enforcement of such an order would also be void.

6. Effect

The payment made by the garnishee into the Court pursuant to such notice shall be treated as a valid discharge to him as against the judgment-debtor. The Court may direct that such amount may be paid to the decree-holder towards the satisfaction of the decree and costs of the execution.

7. Failure to comply

Where neither the garnishee makes the payment into the Court, as ordered, nor appears and shows any cause in answer to the notice, the Court may order the garnishee to comply with such notice as if such order were a decree against him.

8. Costs

The costs of garnishee proceedings are at the discretion of the Court.

9. Appeal

Orders passed in garnishee proceedings are appealable as "decrees".

III. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Short notes: Precept [150 words, RJS - 1976, 1979]
2. What are precepts? [15 words, RJS - 1992]

QUESTIONS TO BE DETERMINED BY EXECUTING COURT

[SECTION 47]

Dear aspirant,

Section 47 lays down the principle that matter relating to execution, discharge or satisfaction of a decree arising between the parties or their representatives should be determined in execution proceedings and not by a separate suit. Likewise, if a question arises as to whether any person is a representative of a party to the suit, such a question is to be determined by the executing Court. Further, a purchaser of property at a sale in execution of a decree is to be deemed to be a party to the suit in which the decree is passed.

Section 47 is designed to prevent unnecessary litigation and to obtain an "adjudication in execution" by giving the executing Court an exclusive jurisdiction. Once the suit is decreed, the executing Court alone should determine all questions in executing proceedings and filing of a separate suit is barred.

The questions relating to execution, discharge or satisfaction of a decree include:

- a) Whether a decree is executable.
- b) When property is wrongly taken in execution by decree - holder.
- c) Whether the sale in execution is warranted by the terms of the decree.
- d) To enforce a permanent injunction granted by a decree.
- e) Matter relating to decree on compromise of a suit.

The questions not relating to execution, discharge or satisfaction of a decree are:

- a) Questions as to validity of a decree/whether the decree is fraudulent etc./question relating to jurisdiction of the Court which passed the decree.
- b) A pre-decree arrangement between the parties.
- c) A question relating to the amount of mesne profits.
- d) Maladministration of judgment - debtor's estate.
- e) A question regarding compensation for wrongs committed by the officers of the Court in execution of a decree.
- f) A question regarding contribution amongst judgment - debtors. Thus, if a person obtains a money decree against two persons, and executes the same against one of them who pays the whole amount, the person who makes the payment cannot obtain a contribution from the other judgment debtor by application under Section 47; he must file a separate suit.

An executing Court has plenary power to determine all questions relating to execution of a decree. Section 47, however, applies only to matters arising subsequent to the passing of the decree. It covers all questions which arise before as well as after the decree has been executed.

An order passed under Section 47 would not amount to a "decree" and thus, not appealable. Though a revision would lie.

This chapter is one of the most important chapter of CPC. A short as well as long answer type question can be asked in DJS, HJS, Hr.J.E., Bihar JE, RJS, UPPCS (J), MPCJ, UAPCS (J) etc. Generally problem based questions are asked in DJS, HJS and Hr.J.E. You should prepare following topics from this chapter:

- i) The meaning of executing Court.
- ii) Can a Court executing a decree, go behind the decree? Answer with the help of illustration.

- iii) An executing Court cannot go behind the decree. Comment.
<https://goo.gl/GU7xEZ> (Hard copy)
- iv) The questions which can be determined by the Court executing a decree.
- v) The questions which cannot be determined by the Court executing a decree.
- vi) Problem based questions based upon the powers of the Court executing a decree.

With best wishes,

Yours Sincerely

RAHUL

QUESTIONS TO BE DETERMINED BY EXECUTING COURT

[SECTION 47]

SYNOPSIS

- I. General
- II. Court executing decrees [Sections 37 and 38]
- III. Section 47, CPC
- IV. Object
- V. Nature and scope
- VI. Conditions
- VII. Questions which can be determined
- VIII. Questions which cannot be determined
- IX. Powers of executing Courts
- X. Duties of executing Courts
- XI. Objection to validity of decree
- XII. Appeal
- XIII. Revision
- XIV. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

QUESTIONS TO BE DETERMINED BY EXECUTING COURT

[SECTION 47]

I. GENERAL

Section 47 is one of the most important provisions in the Code relating to execution. It applies only to matters arising subsequent to the passing of a decree; and deals with objections to execution, discharge and satisfaction of a decree. It lays down the principle that matters relating to the execution, discharge or satisfaction of a decree arising between the parties, including a purchaser of a share in execution, should be determined in execution proceedings and not by a separate suit.

II. COURT EXECUTING DECREES [SECTIONS 37 AND 38]

Section 38 of the Code enacts that a decree may be executed either by the Court which passed it or by the Court to which it is sent for execution. Section 37 defines the expression "Court which passed a decree" while Sections 39 to 45 provide for the transfer for execution of a decree by the Court which passed the decree to another Court, lay down conditions for such transfer and also deal with powers of executing Court. All these sections, therefore, need to be read together.

Section 37 defines the expression "Court which passed a decree". The section enlarges the scope of the expression "Court which passed a decree" with the object of giving greater facilities to a decree-holder to realise the fruits of the decree passed in his favour. The following Courts fall within the said expression:

- a) The Court of first instance which actually passed the decree;
- b) ~~The Court of first instance in case of appellate decrees;~~
- c) Where the Court of first instance has ceased to exist, the Court which would have jurisdiction to try the suit at the time of execution; and
- d) Where the Court of first instance has ceased to have jurisdiction to execute the decree, the Court which at the time of execution would have had jurisdiction to try the suit.

A decree may be executed either by the Court which passed it, or by the Court to which it is sent for execution. A Court which has neither passed a decree, nor a decree is transferred for execution, can execute it.

Where the Court of first instance has ceased to exist or ceased to have jurisdiction to execute the decree, the decree can be executed by the Court which at the time of making the execution application would have jurisdiction in the matter.

III. SECTION 47, CPC

Section 47 of the Code reads as under:

1. All questions arising between the parties to the suit in which the decree was passed, or their representatives, and relating to the execution, discharge or satisfaction of the decree, shall be determined by the Court executing the decree and not by a separate suit.
2. **** [Sub-section (2) omitted by Act 104 of 1976, Sec 20 (w.e.f. 1-2-1977).]
3. Where a question arises as to whether any person is or is not the representative of a party, such question shall, for the purposes of this section, be determined by the Court.

Explanation I: For the purposes of this section, a plaintiff whose suit has been dismissed and a defendant against whom a suit has been dismissed are parties to the suit.

Explanation II:

- a) For the purposes of this section, a purchaser of property at a sale in execution of a decree shall be deemed to be a party to the suit in which the decree is passed; and
- b) All questions relating to the delivery of possession of such property to such purchaser or his representative shall be deemed to be questions relating to the execution, discharge or satisfaction of the decree within the meaning of this section.

IV. OBJECT

The underlying object of this provision is to provide cheap and expeditious remedy for determination of certain questions in execution proceedings without recourse to a separate suit and to prevent needless and unnecessary litigation.

V. NATURE AND SCOPE

The scope of Section 47 is very wide. Exclusive jurisdiction has been conferred on the executing Court in respect of all matters relating to execution, discharge or satisfaction of a decree arising between the parties or their representatives. Once the suit is decreed, this section requires that the executing Court alone should determine all questions in execution proceedings and filing of a separate suit is barred. Since Section 47 embraces all matters connected with the execution of a decree between the parties or their representatives, and covers all questions relating to the execution, discharge or satisfaction of the decree, it should be liberally construed so as to empower the Court to determine all such questions, unless they clearly fall outside the scope and purview.

VI. CONDITIONS

In order that this section may apply, the following conditions must be satisfied—

- a) The question must be one arising between the parties to the suit in which the decree is passed, or their representatives; and
- b) It must relate to the execution, discharge or satisfaction of the decree.

Both the above conditions must be satisfied cumulatively.

VII. QUESTIONS WHICH CAN BE DETERMINED

The following questions are held to be questions relating to the execution, discharge or satisfaction of decrees. These questions can be determined by the Court executing the decrees:

(i) whether a decree is executable; (ii) whether the property is liable to be sold in execution of the decree; (iii) whether the decree is fully satisfied; (iv) whether the execution of the decree was postponed; (v) whether an application to set aside sale is maintainable; (vi) whether the sale in execution is warranted by the terms of the decree; (vii) whether a particular property is or is not included in the decree; (viii) whether a party is or is not entitled to restitution of property; (ix) whether a person is or is not a "representative" of a party; (x) whether the decree-holder is in a position to carry out his part of the decree; (xi) whether the decree-holder is entitled to mould relief in accordance with the change of circumstances; (xii) whether the decree has been adjusted outside the Court; (xiii) whether the decree has been validly assigned; (xiv) whether the auction-purchaser is entitled to recover possession; (xv) the question regarding identity of property; (xvi) the question regarding attachment, sale or delivery of property, etc.

VIII. QUESTIONS WHICH CANNOT BE DETERMINED

The following questions are not questions relating to the execution, discharge or satisfaction of decrees so these questions cannot be determined by the Court executing decrees.

(i) whether the decree is fraudulent or collusive; (ii) whether the decree has become inexecutable by a compromise subsequent to the passing of the decree in the previous suit; (iii) a question relating to the territorial or pecuniary jurisdiction of the Court which passed the decree; (iv) a question relating to correctness or validity of the decree, except where the decree is a nullity; (v) an order of restoration of execution of application dismissed without going into its merits; (vi) an order re-opening or refusing to re-open a decree; (vii) an order granting or refusing to grant instalments; (viii) a claim by an auction-purchaser for actual possession; (ix) a pre-decree arrangement between the parties; (x) an order appointing or refusing to appoint a Commissioner for effecting partition in a partition suit; (xi) a question relating to the amount of mesne profits; (xii) a question relating to maladministration by the executors of the deceased judgment-debtor; (xiii) an order fixing or refusing to fix upset price of the property sought to be sold in execution; (xiv) a question of return of movables not covered by the decree; (xv) a question regarding compensation for wrongs committed by the officers of the Court in execution of the decree; (xvi) a question regarding contribution amongst judgment-debtors, etc.

IX. POWERS OF EXECUTING COURTS

An executing Court has plenary power to determine all questions relating to execution of a decree. The section, however, applies only to matters arising subsequent to the passing of the decree. It covers all questions which arise before as well as after the decree has been executed.

X. DUTIES OF EXECUTING COURTS

An executing Court cannot go behind the decree. It has to execute the decree as it is. It cannot question correctness or otherwise of the decree. But where the terms of the decree are vague or ambiguous, it is the duty of the executing Court to interpret the decree with a view to find out and ascertain the meaning of the terms used. Again, where there is inherent lack of jurisdiction on the part of the Court passing the decree, the executing Court can refuse to execute the decree.

XI. OBJECTION TO VALIDITY OF DECREE

A Court executing a decree cannot go behind the decree. But an objection as to its validity can be raised in execution proceedings if such objection appears on the face of the record. If the objection requires examination or investigation of facts, the executing Court cannot entertain such objection.

XII. APPEAL

The determination of any question under Section 47 is no longer deemed to be a decree within the meaning of Section 2 (2) and is, therefore, not appealable under Section 96 or Section 100 of the Code. Sub-section (2) of Section 47 has, consequently, been omitted by the Amendment Act of 1976.

XIII. REVISION

Since after the Amendment Act of 1976 an order under Section 47 does not amount to a decree, it is not appealable under Section 96 and Section 100. A revision application under Section 115 of the Code is, therefore, maintainable provided the conditions laid down in Section 115 are satisfied.

XIV. QUESTIONS OF PREVIOUS YEARS' EXAMS [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Which is the Court competent to deal with question relating to execution, discharge and satisfaction of a decree? Can a Court executing a decree, go behind the decree? If so, under what circumstances?

What should the executing Court do when a decree imposes reciprocal obligations on both sides? [500 Words, RJS-1977]

2. What do you mean by an Executing Court? [15 Words, RJS-1994]

3. Discuss the statement that an executing Court cannot go behind the decree. What are the questions that may be determined by the Court executing the decree? [200 Words, UPPCS(J)-1986]

4. What are the questions that may be determined by the Court executing a decree? [250 Words, BJE-1991]

5. What question may be determined by the Court executing a Decree? [250 Words, BJE-1984]

6. Can the following objection of a judgment debtor be decided in an execution proceeding or by means of a separate suit?

a) The decree holder had obtained the decree by fraud.

b) The decree is a nullity

c) Before the decree was passed, the decree holder had agreed not to execute the decree

d) The decree holder had shown the judgment debtor to be major in the suit, though in fact he was minor then.

e) The judgment debtor has paid the amount of the decree to decree-holder.

[500 Words, BJE-1979]

7. All questions arising between the parties to the suit in which the decree was passed, or their representatives, and relating to the execution, discharge or satisfaction of the decree, shall be determined by the Court executing the decree and not by a separate suit. Discuss. [250 words, BJE - 1978]
8. A is survived by his widow, daughter, sister and four brothers. On a partition suit filed by B, one of the brother of deceased A, the disputed property fell to the share of C, the daughter of A. During the pendency of partition suit filed by B, B was appointed receiver of the entire estate of A. In this capacity B induced D as a tenant and took some advance from D but the possession of whole of leased premises was not given to D. So D files a suit against B for recovery of the amount of advance. This suit was decreed against B and his estate. In execution of this decree D purchased the suit land belonging to C in auction and then transferred it to some other persons without any notice to C. C then filed a suit for recovery of possession of her land. The suit was resisted by D and his transferees on the ground, *inter alia* that the same is barred by Section 47, CPC. Decide whether the bar created by Section 47, CPC will apply to the suit filed by C. [250 Words, DJS-1996]
9. X, a clerk Grade I, was transferred from Gandhi Nagar to Jabalpur. His request for transfer to his hometown near Mandsoore on account of illness of his father was not acceded to. This led him to submit resignation. He was not informed if the resignation has been accepted. There was some correspondence in late sixties but he did not join duties and period of more than five years elapsed. This led Deptt. to assume that he had voluntarily resigned. In 1979, X filed a suit against State for declaration that he continued to be in service. The suit was decreed with costs on 1.10.82. Appeal against the decree was dismissed on 26.4.86. X filed execution for all consequential benefits, salary, dearness allowance, promotion etc. of the service, on the ground that once the Court gave a declaration about his legal status that he was still in continuance of service and his services were never terminated, the necessary consequence would be that he should be granted arrears of salary and other consequential benefits. State opposed the execution application on the ground that the Court did not pass any decree of reinstatement of X on the post or for payment of any salary to him and that X had not prayed for reinstatement and for arrears of salary and since he remained absent from his duty, he was not entitled to any salary on principles of 'no work no salary'. It was however mentioned that respecting the decree, Government had reinstated the decree-holder. The objections were dismissed by the executing Court. State has come up in appeal. Decide the appeal. [250 Words, DJS-1999]

CHAPTER XLVI

ARREST AND DETENTION

[SECTIONS 55 – 59, RULES 37 – 41, ORDER 21]

Dear aspirant,

Sections 55 – 59 and Rules 37 – 41 of Order 21 deal with arrest and detention of the judgment - debtor in civil prison in the process of execution of a decree. A judgment - debtor may be arrested at any time and on any day in execution of a decree; after arrest, he must be brought before the Court as soon as practicable [Section 55]. For the purpose of making arrest, no dwelling house may be entered after sunset or before sunrise; no outer door of such house may be broken open unless the occupant judgment - debtor refuses or prevents access thereto. Reasonable time and facility must be given to a *pardanashin* woman to withdraw. No judgment - debtor may be arrested unless and until the decree - holder pays into the Court the subsistence allowance of the judgment - debtor as fixed by the Court for a money decree, if the judgment - debtor pays the decretal amount and costs of arrest to the officer, he should be released at once.

When the decree is only for payment of money, the Court may, instead of issuing an arrest-warrant, issue a notice calling upon the judgment - debtor to appear and show cause. Such a notice is not issued if the Court is satisfied that such a person is likely to abscond or leave the Court's jurisdiction [Rule 37, 40, Order 21]. A woman cannot be arrested in execution of a money - decree. Further, any person or class of persons, whose arrest, according to the State Government might be attended with danger or inconvenience to public, cannot be arrested. It is noteworthy that under Section 135, a Judge/Magistrate/other judicial officer cannot be arrested under a civil process whilst going to, presiding in, or returning from the Court.

A judgment - debtor shall be released before the expiry of the detention period:

- a) if the amount mentioned in the warrant being paid;
- b) if the decree against him being otherwise fully satisfied; —
- c) if the decree - holder requests so;
- d) if the decree - holder omits to pay subsistence allowance (Sections 57 – 58).

A judgment - debtor may also be released by the Court/Government on the ground of illness (Section 59). When a judgment - debtor is arrested and brought before the Court, the Court must inform him that he may apply to be declared an insolvent, and that he may be discharged, if he had not committed, any act of bad faith.

Last but not the least, if a judgment - debtor is detained in civil prison in execution of a decree, his liability to pay the debt is not discharged.

It is an important chapter, you should prepare a short note on this chapter.

With best wishes,

Yours Sincerely
RAHUL

CHAPTER XLVI

ARREST AND DETENTION

[SECTIONS 55 – 59, RULES 37 – 41, ORDER 21]

SYNOPSIS

I. General

II. Nature and Scope

III. When arrest and detention may be ordered

IV. Who cannot be arrested

V. Procedure

VI. Notice

VII. Powers and duties of Court

VIII. Recording of reasons

IX. Period of detention

X. Release of judgment - Debtor — — — —

XI. Re-arrest of judgment - Debtor

XII. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

RANKING 1st

CHAPTER XLVI

ARREST AND DETENTION

[SECTIONS 55 – 59, RULES 37 – 41, ORDER 21]

I. GENERAL

One of the modes of executing a decree is arrest and detention of the judgment - debtor in a civil prison. The decree - holder has an option to choose a mode for executing his decree and, normally, a Court of law in the absence of special circumstances, cannot compel him to invoke a particular mode of execution. Sections 51 to 59 and Rules 30 to 41 deal with arrest and detention of the judgment - debtor in civil prison.

II. NATURE AND SCOPE

The Code enumerates various modes of execution. One of such modes is arrest and detention of the judgment - debtor in a civil prison. The substantive provisions deal with rights and liabilities of the decree - holder and judgment - debtor and procedural provisions lay down conditions thereof.

III. WHEN ARREST AND DETENTION MAY BE ORDERED

Where the decree is for payment of money, it can be executed by arrest and detention of the judgment - debtor. Likewise, in case of a decree for specific performance of a contract or for injunction, a judgment - debtor can be arrested and detained. Again, where a decree is against a Corporation, it can be executed with the leave of the Court by detention in civil prison of its directors or other officers.

IV. WHO CANNOT BE ARRESTED

The following classes of persons cannot be arrested or detained in civil prison:

- a) a woman [Section 56];
- b) judicial officers, while going to, presiding in, or returning from their Courts [Section 135 (1)];
- c) the parties, their pleaders, *mukhtars*, revenue agents and recognised agents and their witnesses acting in obedience to a summons, while going to, or attending or returning from the Court [Section 135 (2)];
- d) members of legislative bodies [Section 135 A];
- e) any person or class of persons, whose arrest, according to the State Government, might be attended with danger or inconvenience to the public [Section 55 (2)];
- f) a judgment - debtor, where the decretal amount does not exceed rupees two thousand [Section 58 (1-A)].

V. PROCEDURE

A judgment - debtor may be arrested at any time and on any day in execution of a decree. After his arrest, he must be brought before the Court as soon as practicable. For the purpose of making arrest, no dwelling house may be entered after sunset or before sunrise. Further, no outer door of a dwelling house may be broken open unless such dwelling house is in the occupancy of the judgment - debtor and he refuses or prevents access thereto. Again, where the room is in the actual occupancy of a *pardanashin* woman who is not the judgment - debtor, reasonable time and facility should be given to her to withdraw therefrom. No order of detention of the judgment - debtor shall be made where the decretal amount does not exceed rupees two thousand. No judgment - debtor may be arrested unless and until the decree - holder pays into Court the subsistence allowance as fixed by the Court. Where the judgment - debtor pays the decretal amount and costs of arrest to the officer, he should be released at once.

In an application for the arrest and detention of the judgment - debtor in prison, the decree - holder must state or must file an affidavit stating the grounds on which arrest is sought. No order of detention can be passed where the total amount of the decree does not exceed two thousand rupees. The burden is very heavy on the decree - holder to prove that the circumstances specified in the Proviso to Section 51 exist. The Court must record reasons for the committal of the judgment - debtor to civil prison. In absence of reasons, the order is liable to be set aside.

<https://goo.gl/GU7xEZ> (Hard copy)
Again, a decree for money cannot be executed by arrest and detention where the judgment - debtor is a woman, or a minor, or a legal representative of a deceased judgment - debtor.

VI. NOTICE

Where the decree is for payment of money and the application is made for arrest and detention of the judgment - debtor, the Court shall, instead of issuing a warrant for arrest, issue a notice calling upon the judgment - debtor to appear and show cause why he should not be committed to civil prison in execution of the decree. The purpose of issuing notice is to afford protection to honest debtors incapable of paying dues for reasons beyond their control.

The Court, however, should not issue a notice mechanically. "The high value of human dignity and the worth of the human person enshrined in Article 21 read with Articles 14 and 19" must always be kept in mind.

Where the judgment - debtor appears before the Court in obedience to such notice, and if the Court is satisfied that he is unable to pay the decretal amount, the Court may reject the application for arrest. On the other hand, where the judgment - debtor appears but fails to show cause to the satisfaction of the Court against the arrest and detention, the Court may, subject to the provisions of the Code, make an order of detention.

Where a money decree has remained unsatisfied for a period of thirty days, the Court may, on the application of the decree - holder, require the judgment - debtor to make an affidavit stating the particulars of his assets. The person disobeying the order may be detained up to three months.

VII. POWERS AND DUTIES OF COURT

The provision relating to arrest and detention of the judgment - debtor protects and safeguards the interests of the decree - holder. If the judgment - debtor has means to pay and still he refuses or neglects to honour his obligations, he can be sent to civil prison. Mere omission to pay, however, cannot result in arrest or detention of the judgment - debtor. Before ordering detention, the Court must be satisfied that there was an element of mala fide or bad faith, "not mere omission to pay but an attitude of refusal on demand verging on disowning of the obligation under the decree".

The above principles have been succinctly and appropriately explained by Krishna Iyer, J. in *Jolly George Verghese v. Bank of Cochin*; in the following words:

"The simple default to discharge is not enough. There must be some element of bad faith beyond mere indifference to pay, some deliberate or recalcitrant disposition in the past or alternatively, current means to pay the decree or a substantial part of it. The provision emphasises the need to establish not mere omission to pay but an attitude of refusal on demand verging on dishonest disowning of the obligation under the decree. Here considerations of the debtor's other pressing needs and straitened circumstances will play prominently. We would have, by this construction, saved law with justice, harmonised Section 51 with the covenant and the Constitution."

VIII. RECORDING OF REASONS

The Court is required to record reasons for its satisfaction for detention of the judgment - debtor. Recording of reasons is mandatory. Omission to record reasons by the Court for its satisfaction amounts to ignoring a material and mandatory requirement of law. Such reasons should be recorded every time and in every proceeding in which the judgment - debtor is ordered to be detained.

IX. PERIOD OF DETENTION

The period of detention of the judgment - debtor in civil prison shall be (a) up to three months, where the decretal amount exceeds rupees five thousand; and (b) up to six weeks, where the decretal amount exceeds rupees two thousand but does not exceed rupees five thousand.

Where the decretal amount does not exceed rupees two thousand, no detention can be ordered.

X. RELEASE OF JUDGMENT - DEBTOR

A judgment - debtor may be released in the following cases:

- a) On the amount mentioned in the warrant being paid; or

- b) On the decree against him being otherwise fully satisfied; or
- c) On the request of the decree - holder; or
- d) On the omission by the decree - holder to pay subsistence allowance; (such release, however, does not discharge the judgment - debtor from his debt, but he cannot be re-arrested on the same ground);
- e) On the ground of illness.

XI. RE-ARREST OF JUDGMENT - DEBTOR

Normally, a judgment - debtor once released, cannot be re-arrested in execution of the same decree. But if the judgment - debtor is released because of a mistake of the jail authorities, he can be re-arrested. Similarly, where the judgment - debtor could not be sent to jail due to non - payment of subsistence allowance by the decree - holder, his re-arrest is not unlawful. Again, release of the judgment - debtor on the ground of illness does not debar his re-arrest. The total period of actual detention, however, cannot exceed the maximum prescribed in the Code.

XII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. A judgment - debtor is detained in civil prison in execution of a decree whether after release, his liability to pay the debt is discharged? [15 words, RJS - 1986]
2. a) A woman is arrested in execution of a decree for the payment of money. Decide.
b) A judge is arrested under civil process while going to his Court. Decide. [300 words, HJS - 2003]

ATTACHMENT OF PROPERTY

[SECTIONS 60 - 64, RULES 41 - 59, ORDER 21]

Dear aspirant,

Sections 60 - 64 and Rules 41 - 59, Order 21 lay down provisions regarding attachment in execution of a decree. The object behind attachment of property is to give notice to the judgment - debtor not to alienate his property to anyone and also to the general public not to purchase or deal with such property. Attachment is a preliminary step to the sale of the property in execution proceedings.

Section 60 declares what properties are liable to attachment and what are not. The following properties are liable to attachment - land, house or other buildings, goods, money and bank - notes, cheques or bills of exchange, hundis, promissory notes, Government securities, bonds, etc., debts, shares in a corporation, and, all other saleable property (movable or immovable) belonging to the judgment - debtor or over which he has a disposing power which he can exercise for his own benefits. Section 60 is not exhaustive.

The following kinds of properties are exempt from attachment:

- a) necessary wearing apparel/cooking vessels/beddings/personal ornaments linked with religious usage;
- b) tools of artisans/implements of husbandry, cattle, seed-grain;
- c) houses/other buildings of agriculturists/labourer/domestic servant;
- d) books of account;
- e) stipends and gratuities allowed to pensioners;
- f) wages and salaries; pay and allowance of air/naval/army men; allowance declared by any Indian Law to be exempt;
- g) compulsory deposits and insurance premium; interest of a lessee of a residential building;
- h) any movable property which is exempt from sale for the recovery of arrears of land revenue.

Further, the following rights/interests are also exempted. A mere right to sue for damages, any right of personal service, a right of future maintenance, an expectancy of succession by survivorship, etc. Section 61 empowers the State Government to exempt "agricultural produce" from attachment of sale.

As regard salary it is laid down that one - third of the salary in execution of any decree for maintenance is exempted, in respect of other decrees, salary to the extent to the first one thousand rupees and two - third of the remainder is exempted. If there are two or more decrees, and any portion of attachable salary is already attached for 24 months, such portion becomes exempt for a further period of 12 months. Further, if such attachment is made in execution of one and the same decree for 24 months, even the attachable portion becomes exempt.

This concept can be explained with the help of following two examples:

- i) Suppose, Ram's salary is 9000/- rupees per month. His wife Ramila want to execute a decree of Rs. 15000/- [$1500/- \text{ p.m.} \times 10 \text{ months} = 15000/-$] against him. As this decree is for maintenance so only $1/3$ portion of the salary is exempted from attachment i.e. $1/3 \times 9000 = 3000/-$. Thus $9000 - 3000 = 6000$ rupees can be attached first month, 6000/- rupees second month and 3000/- rupees third month. [$6000 + 6000 + 3000 = 15000/-$].
- ii) In execution of a decree, other than a decree for maintenance, passed against A, what shall be the attachable portion, if his salary is Rs. 7000 per month?

Solution:

<https://goo.gl/GU7xEZ> (Hard copy)

- First 1000/- rupees is exempted = $7000 - 1000 = 6000/-$
- $2/3$ of the rest of the salary is also exempted = $6000 \times 2/3 = 4000/-$
- attachable portion = $6000 - 4000 = 2000/-$

Thus, only 2000/- rupees can be attached every month. But if this attachment under one and the same decree continues for 24 months, even Rs. 2000/- becomes free from attachment.

The exemptions listed in the proviso to Section 60 are cumulative and the judgment - debtor may claim benefit of more than one clause. Any agreement to waive the benefit of any exemption under Section 60 shall be void. Thus, even if a judgment debtor agrees that such property may be attached, the agreement will be void.

Section 64 enacts that a private alienation of property (sale, mortgage, gifts etc.) after attachment is void as against claim enforceable under the attachment. It is immaterial for the application of Section 64 whether the decree had or had not been passed before the time when the transfer was effected or whether the transferee acted in good faith or not. But if the sale deed was executed prior to attachment before judgment, it will prevail over attachment. Nothing in Section 64 shall apply to any private transfer/delivery of the property or interest therein, made in pursuance of any contract entered into and registered before the attachment (inserted by the 2002 Amendment).

Illustration

B owns a house worth Rs. 50,000 and he has no other property. A sues B for Rs. 50,000. Now, B may sell or mortgage his house, in spite of the fact that a suit is pending against him. He can do so even after a decree has been passed against him. But, if the house is attached in execution of A's decree, any such attempted sale or mortgage would be void as against A's claims.

Rules 43 - 54 of Order 21 lays down the provisions governing attachment of various kinds of property.

This chapter is an important chapter. Short answer type questions [word limit - 200] can be asked in DJS, RJS, UPPCS (J), UAPCS (J), HJS, Hr.J.S., BJE, MPCJ etc. You should prepare following topics from this chapter:-

- i) Properties which cannot be attached
- ii) Properties which can be attached
- iii) Explanatory notes on attachment
- iv) Problem based question on attachable properties

With best wishes,

Yours Sincerely

RAHUL

ATTACHMENT OF PROPERTY

[SECTIONS 60 - 64, RULES 41 - 59, ORDER 21]

SYNOPSIS

I. General

II. Nature and Scope

III. Object

IV. Property which can be attached

V. Property which can not be attached

VI. Determination of attachment

VII. Private alienation of property after attachment

VIII. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

Return

ATTACHMENT OF PROPERTY

[SECTIONS 60 - 64, RULES 41 - 59, ORDER 21]

I. GENERAL

A decree may also be executed on the application of the decree - holder by attachment and sale or by sale without attachment of property. The Code recognises the right of the decree - holder to attach the property of the judgment - debtor in execution proceedings and lays down the procedure to effect attachment. Sections 60 to 64 and Rules 41 to 59 of Order 21 deal with the subject of attachment of property.

II. NATURE AND SCOPE

The Code enumerates properties which are liable to be attached and sold in execution of a decree. Likewise, it also specifies properties which are not liable to be attached or sold. It also prescribes the procedure where the same property is attached in execution of decrees by more than one Court. The Code also declares that a private alienation of property after attachment is void.

An executing Court is competent to attach the property if it is situated within the local limits of the jurisdiction of the Court. The place of business of the judgment - debtor is not material.

III. OBJECT

The primary object of attachment of property is to give notice to the judgment - debtor not to alienate the property to anyone as also to the general public not to purchase or in any other manner deal with the property of the judgment - debtor attached in execution proceedings. At the same time, it protects a judgment - debtor by granting exemption to certain properties from attachment and sale.

IV. PROPERTY WHICH CAN BE ATTACHED

Section 60 (1) declares what properties are liable to attachment and sale in execution of a decree, and what properties are exempt therefrom. All saleable property (movable or immovable) belonging to the judgment - debtor or over which or the portion of which he has a disposing power which he may exercise for his own benefit may be attached and sold in execution of a decree against him. The section is not exhaustive. Specific non - inclusion of a particular species of property under Section 60 is, therefore, not of any consequence if it is saleable otherwise.

V. PROPERTY WHICH CAN NOT BE ATTACHED

The proviso to sub - section (1) of Section 60 declares that the properties specified therein are exempt from attachment and sale in the execution of a decree. The list enumerates certain properties such as necessary wearing apparel, cooking vessels, bedding, tools of artisans, implements of husbandry, houses of agriculturists, wages, salaries, pensions and gratuities, compulsory deposits, right to future maintenance, etc. The exemptions listed in the proviso are cumulative and the judgment - debtor may claim the benefit of more than one clause if he is qualified to do so.

By the Amendment Act of 1976, new sub - section (1 - A) has been inserted on the recommendation of the Law Commission. This new sub - section now specifically provides that any agreement to waive the benefit of any exemption under Section 60 shall be void. Section 61 empowers the State Government to exempt agricultural produce from attachment or sale. This provision is intended to enable an agriculturist to continue agricultural operations even after execution of a decree.

VI. DETERMINATION OF ATTACHMENT

An attachment under the Code will be determined in the following circumstances:

- Where the decretal amount is paid or the decree is otherwise satisfied;
- Where the decree is reversed, or is set aside;
- Where the Court upholds objection against the attachment and makes an order releasing the property;

- <https://goo.gl/GU7XE2> (hard copy)
- d) Where after the attachment the application for execution is dismissed;
 - e) Where the attaching creditor withdraws attachment;
 - f) Where the decree - holder fails to do what he is bound to do under the decree; and
 - g) Where the attachment is ordered before judgment and the defendant furnishes the necessary security.

VII. PRIVATE ALIENATION OF PROPERTY AFTER ATTACHMENT

A 'private transfer' means a voluntary transfer such as sale, mortgage, lease, gift, etc. and not a transfer by operation of law such as sale under a decree passed by a competent Court. Finally a private transfer in contravention of Section 64 is not wholly void against all the world but is void only against claims enforceable under the attachment and only to the extent necessary to meet those claims.

Section 64 (1) enacts that a private alienation of property after attachment is void as against claims enforceable under the attachment. The alienation, however, is not absolutely void against all the world, but is void against the claims enforceable under the attachment.

Sub-section (2) of Section 64, as inserted by the Code of Civil Procedure (Amendment) Act, 2002 clarifies that the section will not apply to a transfer of property in pursuance of a contract entered into and registered before the attachment.

The primary object of this provision is to prevent fraud on decree - holders and to keep intact the rights of attaching creditors and of those creditors who have obtained decrees and are entitled to satisfaction out of the assets of the judgment - debtor.

VIII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. What properties are not liable to attachment and sale in the execution of decree? **[150 Words, UPPCS(J)-1997]**
2. What properties of a judgment debtor cannot be attached and sold in execution of a decree? **[250 Words, BJE-2000]**
3. Short Notes: Attachment **[150 Words, BJE-1980, 1987]**
4. Whether the following particulars are liable to attachment or sale –
 - a) Provident fund of a judgment - debtor (a railway employee)
 - b) A right to future maintenance **[150 words, HJS – 2003]**
5. B's property is attached in executions of a money decree obtained by A. While the attachment is pending, B sells the property to C who pays of mortgage prior to A's suit. The property is then sold in execution and is purchased by D, what are the rights of B, C and D? **[250 words, BJE – 1980]**

SALE AND DELIVERY OF PROPERTY

[SECTIONS 65 - 74; RULES 64 - 106, ORDER 21]

Dear aspirant,

A decree may be executed by attachment and sale or by sale without attachment of any property. Rules 64 - 106 of Order 21 and Sections 65 - 74 deal with the subject relating to sale and delivery of movable or immovable properties. Rules 64 - 73 deal with the general provisions:

- i) A Court executing a decree may order that any property attached by it and liable to sale (or such portion of property as may be sufficient to satisfy the decree) may be sold and proceeds of it to be paid to the decree holder [Rule 64].
- ii) Every sale is to be conducted by the officer of the Court in public auction [Rule 65].
- iii) Before such auction, a proclamation of the intended sale is to be made by the Court, after notice to the decree holder and the judgment debtor; the proclamation is to contain all material information regarding the property to be sold [Rule 66].
- iv) Every proclamation shall be made by beat of drum or other customary mode and a copy of it must be affixed on a conspicuous part of the property and of the Court house and also in the Collector's office/Gram Panchayat if the property is land paying revenue. If the Court directs, it should also be published in the official gazette or a local newspaper [Rule 67].
- v) Except in case of property is subject to speedy and natural decay, or the property keeping of which is expensive, no sale without the consent of the judgment debtor can take place before 15 days in case of immovable property and before 7 days in case of movable property from the date of proclamation in the Court house [Rule 68].
- vi) The Court may adjourn a sale, but if it is adjourned for 30 days or more, a fresh proclamation is to be issued, unless the judgment debtor consents to waive it. Every sale shall be stopped if before the property is knocked down, the debts and costs are tendered to the officer conducting the sale, or paid into the Court [Rule 69].
- vii) The decree holder cannot without the consent of the Court purchase the property sold in execution of his own decree. If the Court permits him, he is entitled to set off, but if not so permitted, the Court may set aside the sale upon the application of the judgment debtor [Rule 72]. Thus, such a sale is not void ab initio, but merely voidable.
- viii) A mortgagee of immovable property cannot, without the Court's leave, purchase the property sold in execution of a decree on the mortgage [Rule 72 - A]. Any officer/person having any duty to perform in connection with an execution sale, cannot bid for, acquire etc. any interest in the property sold in execution [Rule 73].

The special provision for sale of movable property is laid in Rules 74 - 81 of Order 21, CPC. While special provisions in case of immovable property is laid down in Rules 82 - 96 of Order 21, CPC. All Courts (except small causes Court) can order sale of immovable property in execution of a decree. The Court may postpone sale to enable the judgment debtor to raise the decretal amount by private alienation e.g. mortgage, charge, lease etc.). A private sale has to be confirmed by the Court. Rules 84 - 87 provide for the deposit of 25% of the purchase money by the purchaser, immediately after the sale, and the payment of balance within 15 days of the sale; upon non-compliance with these provisions there is no sale at all, and the property is to be re-sold. The defaulting purchaser will forfeit all claims to the property. In the case of immovable property jointly owned by the judgment debtor and another co-owner(s), the co-owner's bid is to have preference (right of pre-emption).

Rules 89 - 92 deal with setting aside of sale. an application to set aside sale cannot be made on any other ground not covered by these rules. The grounds and the persons who may apply for setting aside sale are:

- i) On the deposit of the amount specified in proclamation of sale, by the judgment - debtor or other interested person, and paying 5% of the purchase money to the purchaser [Rule 89].
- ii) On the ground of material irregularity or fraud in publishing or conducting the sale; the decree - holder/purchaser or any other interested person can apply for setting aside, if it is shown that such irregularity etc. has substantially injured such a person [Rule 90]. A judgment - debtor can also apply.

The expression "material irregularity" refers to an irregularity on the part of the Court or its officers in the procedure to be followed before the property is put to sale, viz. omission to issue notice under Rule 22, omission to publish sale proclamation, mis - statement of the value of property or the Government revenue in proclamation, omission to hold sale at stated time and place, sale after satisfaction of the decree etc.

The following irregularities have been held not to be material irregularities, viz. absence of or defect in attachment, omission to specify share of the judgment - debtor in property, omission to issue a fresh proclamation after sale is adjourned, mis - description of the property in sale proclamation when the parties knew the property to be sold etc. A sale shall not be set aside merely on the ground that the judgment - debtor had died between the date of issuance of proclamation of sale and the date of sale and the legal representatives were not brought on record [Rule 22-A]. The Court may, however, set aside a sale if the legal representatives were prejudiced.

If an act/omission amounts to a material irregularity, the sale is not void, but merely voidable. If the judgment - debtor, knowing of an irregularity allows the sale proceed, he will be estopped, though substantial injury has been caused.

Rule 91 enables the auction - purchaser to apply for setting aside the sale on the ground that the judgment - debtor had no saleable interest in the property. This provision is an exception to the general rule of *caveat emptor* (let the buyer beware) and to the principle that a Court sale carries with it no guarantee that the property sold is the property of the judgment - debtor. Rule 92 lays down that no sale of immovable property shall become absolute until it is confirmed by the Court (where no application to set aside the sale is made, or, if made such application is disallowed). Where such application is allowed or the deposit required by Rule 89 is made within 60 days from the date of sale, the sale shall be set aside.

Where a claim against an attachment in execution of a decree has been made but the property attached has been sold pending the determination of such claim, the sale should not be confirmed by the Court before the final disposal of such claim. After the sale has become absolute, the Court shall grant a certificate of sale [Rule 94]. It is conclusive in nature. After the sale has become absolute, the property shall be deemed to have vested in the purchaser from the date when it is sold and not from the date when the sale becomes absolute. In other words, the purchaser's title relates back to the date of the sale and not the confirmation of sale. The legal effect of such a relation - back is that the auction - purchaser will be entitled to rights in the property and be liable to the obligations in respect of the same as from the date of sale. A sale in execution of a decree is void if the Court had no jurisdiction to sell the property.

The provision relating to resistance to delivery of possession are dealt in Rules 97 to 103 of Order 21. Where a decree holder or auction purchaser of immovable property is resisted or obstructed by any person in obtaining possession of such property, he may make an application to the Court [Rule 97]. The Court will hold full - fledged inquiry and determine all questions relating to right, title or interest in the property arising between the parties [Rule 101]. In accordance with such determination, the Court shall allow the application of the decree - holder or purchaser, or dismiss it, or pass other order. If, despite the Court's order directing possession to be given to the applicant, the latter is still resisted, the Court can order

the judgment - debtor or any person acting in his behalf or at his instigation, to be detained in civil prison up to 30 days [Rule 98 and Section 75]. The orders passed in such inquiry are to be treated as decrees and thus appealable [Rule 103].

This is an important chapter for Judicial Exam. You should prepare following topics for RJS, UPPCS (J), UAPCS 9J, HJS, DJS and Hr.J.S.:

- i). Obstacles in the execution of a decree by sale of immovable property and its solution.
- ii) Confirmation of sale by the Court.
- iii) When the sale can be set - aside by the Court.
- iv) Problem based questions on the sale of immovable property.

With best wishes,

Yours Sincerely

RAHUL

RAHUL

CHAPTER XLVIII
SALE AND DELIVERY OF PROPERTY
[SECTIONS 65 – 74; RULES 64 - 106, ORDER 21]

SYNOPSIS

I. General

II. Sale of Property: General [Rules 64 - 73, Order 21]

1. Power of Court [Rules 64 - 65]
2. Proclamation of Sale [Rules 66 - 67]
3. Time of Sale [Rule 68]
4. Adjournment of Sale [Rule 69 (1), (2)]
5. Stoppage of Sale [Rule 69 (3)]
6. Default by Purchaser [Rule 71]
7. Restrictions to Bid [Rules 72 – 73]

III. Sale of Immovable Property [Rules 82 - 96, Order 21]

1. Court competent to Order Sale [Rule 82]
2. Postponement of Sale [Rule 83]
3. Deposit and payment of price [Rules 84 - 87]
4. Bid by co - owner [Rule 88]
5. Setting aside Sale [Rules 89 - 92]
 - a) *on deposit of decretal amount [Rule 89]*
 - b) *for irregularity or fraud [Rule 90]*
 - c) *judgment debtor having no saleable interest [Rule 91]*
6. Effect of setting aside sale [Rule 93]
7. Confirmation of Sale [Rule 92]
8. Certificate of Sale [Section 65]
9. Effect of sale [Section 65]

IV. Delivery of Property [Rule 79 – 81, 95 and 96]

V. Resistance of delivery of Possession [Rules 97 – 103]

VI. Conclusion

VII. Questions of Previous Years' Exam– [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

CHAPTER XLVIII

SALE AND DELIVERY OF PROPERTY

[SECTIONS 65 – 74; RULES 64 - 106, ORDER 21]

I. GENERAL

A decree may be executed by attachment and sale or by sale without attachment of any property. Sections 65 and 74 and Rules 64 to 106 of Order 21 deal with the subject relating to sale and delivery of movable and immovable properties.

II. SALE OF PROPERTY: GENERAL [RULES 64 - 73, ORDER 21]

1. Power of Court [Rules 64 - 65]

Rule 64 provides that any Court executing a decree may order that any property attached by it and liable to sale, or such portion thereof as may seem necessary to satisfy the decree shall be sold, and the proceeds of such sale, or a sufficient portion thereof, shall be paid to the party entitled under the decree to receive the same.

A duty is thus cast upon the Court to sell such property or a portion thereof as necessary to satisfy the decree. "It is a mandate of the Legislature which cannot be ignored." Rule 65 enacts that every sale in execution of a decree shall be conducted by an officer of the Court by public auction.

2. Proclamation of Sale [Rules 66 - 67]

After the property is attached and ordered to be sold by public auction, the first step to be taken by the Court is to cause a proclamation of the intended sale to be made in the language of such Court. Such proclamation shall be drawn up after notices to the decree - holder and the judgment - debtor and shall state the following details:

- a) Time and place of sale;
- b) Property or a part thereof to be sold;
- c) Revenue, if any, assessed upon the property;
- d) Encumbrance, if any, to which the property is liable;
- e) Amount to be recovered;
- f) Such other particulars which the Court considers material for a purchaser to know in order to judge the nature and value of the property.

Service of notice on a judgment - debtor is a fundamental step in execution and, unless it is waived, it must be complied with. Absence of notice causes irreparable injury to the judgment - debtor and sale without such notice will be a nullity.

3. Time of Sale [Rule 68]

Unless the property ordered to be sold is subject to speedy and natural decay or the expense of keeping it in custody is likely to exceed its value, no sale without the consent in writing of the judgment - debtor can take place before fifteen days in case of immovable property and before seven days in case of movable property from the date of proclamation in the Courthouse.

4. Adjournment of Sale [Rule 69 (1), (2)]

The Court may, at its discretion, adjourn any sale to a specified day and hour. But if such sale is adjourned for more than thirty days, a fresh proclamation should be made unless the judgment - debtor waives it.

5. Stoppage of Sale [Rule 69 (3)]

Every sale shall be stopped if, before the property is knocked down, the debt and costs are tendered to the officer conducting the sale, or paid into the Court.

6. Default by Purchaser [Rule 71]

Any deficiency of price on resale necessitated by the purchaser's default shall be recoverable from the defaulting purchaser. This provision is intended to provide an expeditious remedy to the judgment - debtor or to the decree - holder, who has suffered due to the default of the auction - purchaser. Therefore, if resale is not ordered because of the default of the auction - purchaser, Rule 71 will not apply.

7. Restrictions to Bid [Rules 72 - 73]

- a) A decree - holder cannot, without the express permission of the Court, purchase the property sold in execution of his own decree. When he does so with the permission of the Court, he is entitled to a set - off, but if he does so without such permission, the Court has a discretion to set aside the sale upon the application by the judgment - debtor, or any other person whose interests are affected by sale.

Where the auction - purchaser is a stranger or an outsider, sale by public auction in absence of stay would normally protect him even if the decree is finally set aside. This is based on the doctrine of justice and equity. But where the auction - purchaser is the decree - holder himself, he would not be entitled to any relief since he was aware of all the proceedings.

- b) A mortgagee of immovable property cannot, without the leave of the Court, purchase the property sold in execution of a decree on the mortgage. This is a mandatory requirement. When such leave is granted to the mortgagee decree - holder, the Court shall fix a reserve price so that the mortgagee may not take undue advantage by purchasing the mortgaged property at a lower price and then pursuing other remedies to recover the balance of the amount of the decree.
- c) Any officer or other person having any duty to perform in connection with any execution sale, cannot, either directly or indirectly, bid for, acquire or attempt to acquire any interest in the property sold in execution.

III. SALE OF IMMOVABLE PROPERTY [RULES 82 - 96, ORDER 21]

1. Court competent to Order Sale [Rule 82]

Any Court other than a Court of Small Causes may order sale of immovable property in execution of a decree.

2. Postponement of Sale [Rule 83]

The Court may postpone sale to enable the judgment - debtor to raise the decretal amount by private alienation, such as, mortgage, charge, lease, etc. The chief object of this provision is to prevent sale of the property of the judgment - debtor in cases where the decree can be satisfied by private alienation of such property. Postponement of sale is at the discretion of the Court and cannot be claimed by the judgment - debtor as of right. Therefore, an application for postponement of sale will not be allowed where the judgment - debtor had sufficient time to pay the decretal amount, or where by private alienation the decree will not be satisfied in full.

3. Deposit and payment of price [Rules 84 - 87]

Immediately after the sale of immovable property, the person declared to be the purchaser of the property must deposit 25 per cent of the purchase money, unless such requirement is dispensed with by the Court. The provision regarding the deposit is mandatory and non - compliance with it will make the sale a nullity. In case of failure on the part of the purchaser to deposit the amount, the property will forthwith be resold and the defaulting purchaser will be liable for the deficiency in price. The balance of the purchase money must be paid by the purchaser within fifteen days from the date of the sale. In case of default in payment of price by the auction - purchaser, the amount of deposit can be forfeited and the property shall be resold after issuing afresh notification, unless the judgment - debtor satisfies the decree by making payment before resale.

4. Bid by co - owner [Rule 88]

Where property sold is a share of undivided immovable property of two or more persons, a co - sharer has a right of pre - emption. The object of this provision is to enable co - sharers in the undivided immovable property to keep stranger out if they so desire.

5. Setting aside Sale [Rules 89 - 92]

Rules 89 to 92 deal with setting aside of sale. When a property is sold in execution of a decree, an application for setting aside sale may be made under these provisions by the persons affected and the grounds mentioned therein. Such an application has to be made within the prescribed period of limitation. But an application to set aside sale of immovable property cannot be made on any other ground not covered by Rules 89 to 92.

a) on deposit of decretal amount [Rule 89]

Rule 89 deals with the setting aside of sale on the deposit of the amount specified in the proclamation of sale. The underlying object of this rule is to give a judgment – debtor the last chance of getting the sale set aside before it is confirmed by the Court. It is intended to afford an opportunity to the judgment – debtor, even after the property is sold, to satisfy the claim of the decree – holder and to compensate the auction – purchaser by paying him five per cent of the purchase money. The rule being in the nature of a concession must be strictly complied with. The words “on his depositing in Court” show that deposit is a condition precedent to the making of an application to set aside a sale.

Any person claiming any interest as existing at the time of the sale or at the time of making an application can avail of the benefit of Rule 89.

Thus, the following persons are entitled to apply under Rule 89:

- a) a judgment – debtor;
- b) a co – sharer in the property;
- c) a member of a Joint Hindu Family;
- d) a reversioner;
- e) an attaching creditor;
- f) a beneficial owner;
- g) a lessee;
- h) a mortgagee;
- i) a person in possession of the property;
- j) a benamidar, transferee, etc.

In case of manifest illegality in conducting the sale, the Court can take proceedings *suo motu* and set aside the sale even after the expiry of the period of limitation prescribed therefore.

The provisions of Rule 89 are not intended to defeat the claim of the decree – holder or the auction – purchaser, unless the decree is simultaneously satisfied. Rule 89, therefore, requires that two primary conditions relating to deposit must be fulfilled, namely, (i) the applicant must deposit in the Court for payment to the auction – purchaser five per cent of the purchase money; and (ii) he must also deposit the amount specified in the proclamation of sale, less any amount received by the decree – holder since the date of proclamation of sale for payment to the decree – holder.

An application to set aside a sale must be made within a period of sixty days from the date of the sale.

Before an order setting aside a sale is made, notice of the application must be given to all persons likely to be affected by the order thereon. Since the object of giving notice is to give an opportunity of hearing to the interested party, if he is aware of the application, the absence of a formal notice does not vitiate the proceedings.

An order setting aside a sale or refusing to set aside a sale under Rule 92 is appealable.

b) for irregularity or fraud [Rule 90]

A sale of immovable property in execution can be set aside also on the ground of material irregularity or fraud in publishing or conducting the sale, provided the applicant proves that he has sustained substantial injury by reason of such irregularity or fraud. The pre – sale illegalities committed in the execution are amenable to the remedy under Section 47. Post – sale irregularities causing substantial injury to the judgment – debtor are covered under Rule 90 of Order 21.

<https://goo.gl/GU7xEZ> (Hard copy)
c) **judgment debtor having no saleable interest [Rule 91]**

Rule 91 enables the auction – purchaser to apply for setting aside the sale on the ground that the judgment – debtor had no saleable interest in the property. This provision is an exception to the general rule of *caveat emptor* (let the buyer beware). The rule is intended for the protection of an innocent auction – purchaser, and it cannot, therefore, be invoked where the purchaser knew at the time of sale that the judgment – debtor had no saleable interest in the property.

6. Effect of setting aside sale [Rule 93]

Where a sale of immovable property has been set aside, the purchaser is entitled to refund of the purchase money paid by him with or without interest as ordered by the Court. An application under this rule can be filed within three years from the date of the order setting aside the sale.

7. Confirmation of Sale [Rule 92]

No sale of immovable property shall become absolute until it is confirmed by the Court. Where no application to set aside the sale is made under Rule 89, 90 or 91 or where such application is made and is disallowed by the Court, the Court shall make an order confirming the sale, and thereupon the sale shall become absolute. Once the order is made under Rule 92 confirming the sale, the title of the auction – purchaser relates back to the date of sale.

Proviso to sub – rule (1) of Rule 92 as added by the Amendment Act of 1976 enacts that where a claim against an attachment in execution of a decree has been made but the property attached has been sold pending the determination of such claim, the sale should not be confirmed by the Court before the final disposal of such claim.

8. Certificate of Sale [Section 65]

After the sale has become absolute, the Court shall grant a certificate in favour of the purchaser. It shall bear the date on which the sale became absolute and also specify the property sold and the name of the purchaser. Such certificate is conclusive in nature.

9. Effect of sale [Section 65]

After the sale has become absolute, the property shall be deemed to have vested in the purchaser from the date when it is sold and not from the date when the sale becomes absolute. In other words, the purchaser's title relates back to the date of the sale and not the confirmation of sale.

IV. DELIVERY OF PROPERTY [RULE 79 – 81, 95 AND 96]

Kind of Property	Mode of Delivery
a) Movable Property:	
i) Movable property actually seized;	i) By delivering it to the purchaser.
ii) Movable property in possession of any person other than the judgment – debtor;	ii) By giving notice to the person in possession prohibiting him from delivering possession to any person except the purchaser.
iii) Debt not secured by a negotiable instrument;	iii) By an order prohibiting the creditor from receiving the debt or any interest thereon and the debtor from paying it to any person except the purchaser.
iv) Share in a corporation;	iv) By an order prohibiting (a) the shareholder from transferring it to any person except the purchaser, or receiving dividend or interest thereon; and (b) the officers of the corporation from permitting such transfer or making payment to any person except the purchaser.
v) Negotiable instruments and shares;	v) By executing a document or making an

vi) Any other property not otherwise provided for; b) Immovable Property: i) Immovable property occupied by the judgment – debtor or any person claiming under him; ii) Immovable property occupied by a tenant or other person;	endorsement in the prescribed form transferring in favour of the purchaser. vi) By an order vesting such property in the purchaser. i) By putting the purchaser in possession and removing any person who refuses to vacate it. ii) By affixing a copy of the sale certificate in a conspicuous place on the property and proclaiming to the occupant that the interest of the judgment – debtor has been transferred to the purchaser.
---	---

V. RESISTANCE OF DELIVERY OF POSSESSION [RULES 97 – 103]

Section 74 and Rules 97 to 103 of Order 21 deal with resistance to delivery of possession to decree – holders or auction – purchasers.

The Court shall on receipt of an application under Rule 97 proceed to adjudicate upon the application in accordance with Rule 101. The Court will hold a full-fledged inquiry and determine all questions including the questions relating to right, title or interest in the property arising between the parties to the proceeding or their representatives.

In accordance with such determination the Court shall either (a) allow the application of the decree – holder or auction – purchaser directing that the applicant be put into possession of the property; or (b) dismiss the application; or (c) pass such order as it deems fit.

Where the Court is satisfied that the resistance or obstruction was occasioned without any just cause by the judgment – debtor or by some other person at his instigation or on his behalf or by any transferee, where such transfer was made during the pendency of the suit or execution proceeding, it shall order the applicant to be put into possession of property and if the applicant is resisted or obstructed even thereafter in obtaining possession, the Court may at the instance of the applicant order the obstructor to be detained in civil prison up to 30 days.

Similarly, on receipt of an application under Rule 99, the Court shall proceed to adjudicate upon the application in accordance with Rule 101 and in accordance with such determination either (a) allow the application directing that the applicant be put into possession of the property; or (b) dismiss the application; (c) pass such order as it deems fit.

Rule 102 provides that nothing in Rules 98 and 100 shall apply to resistance or obstruction in execution of a decree for possession of immovable property by a person to whom the judgment – debtor has transferred the property after the institution of the suit in which the decree was passed or to the dispossession of any such person.

An order passed under Rule 98 or 100 shall have the same force and be subject to the same conditions as to appeal or otherwise as if it were a decree.

VI. CONCLUSION

Order 21 of the Code of Civil Procedure contains elaborate and exhaustive provisions for execution of decrees and orders, takes care of different types of situations and provides effective remedies not only to the decree – holders and judgment – debtors but also to objectors and third parties. In exceptional cases, where provisions are rendered ineffective or incapable of giving relief to an aggrieved party, he can file a suit in a civil Court.

VII. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. What obstacles are likely to arise in the execution of a decree for the sale of immovable property and how can they be overcome? Describe the procedure for the execution of such decree. [250 Words, RJS-1975]
2. In what circumstances does the Court confirm the sale in execution proceedings? [50 Words, RJS-1984]

3. When can auction sale of immovable property in execution of a decree be set aside? Who can get it set aside? **[150 Words, UPPCS(J)-1985, 150 Words, HJS-2000]**
4. A obtained a decree for possession of immovable property against B. That decree became final. Thereafter A files execution application dt. 24-5-79 under Order 21, Rule 35 (3), CPC. The execution was resisted by C whereupon A filed an application on 25-5-79 complaining of resistance by C and seeking police aid for execution of decree. C does not claim through B, so the Court directed A to file an application under Order 21, Rule 97, CPC. A filed the application under Order 21, Rule 97, CPC on 18-7-79, but the said application was dismissed as being barred by Limitation under Article 129 of the schedule of Limitation Act. A then filed another application under Order 21, Rule 97, CPC which too was dismissed as being barred by *res judicata*. A filed appeal contending that the very first application dt. 25-5-79 under Order 21, Rule 35 (3) could be treated as the one under Order 21, Rule 97, CPC so the application was within time. How will you decide the appeal? **[250 Words, DJS-1996]**

RAJESH K

CHAPTER XLIX
RATEABLE DISTRIBUTION OF ASSETS
[SECTION 73]

Dear aspirant,

Section 73 of CPC provides a speedy mode of execution of several money – decrees obtained against the same judgment – debtor by rateably distributing the assets held by a Court against the rival decree – holders without the necessity for separate proceedings. Government debts, however, are to be given priority over the private debts, unless the amount is taken away by a private person before the Government applies.

This principle can be explained with the help of an illustration. A obtains a decree against M for Rs. 10,000 and applies to the Court for execution of his decree by attachment and sale of M's property. M's property is attached. Later, B also obtains a decree against M in the same Court for Rs. 5,000 and applies for execution of decree by attachment of M's property. The property is thereafter sold by the Court in execution of A's decree for Rs. 7500. The said amount of Rs. 7500 will be rateably distributed between both the decree – holders. A will be paid Rs. 5000 and B will be paid Rs. 2500.

An order passed under Section 73 is not appealable as a decree. A revision application can be filed.

This chapter is not much important for examination point of view but sometimes a short note or objective type question may be asked from this chapter. Please prepare a short note on "Rateable distribution of Assets".

With best wishes,

Yours Sincerely
RAHUL

RATEABLE DISTRIBUTION OF ASSETS

[SECTION 73]

SYNOPSIS

- I. General
- II. Nature and Scope
- III. Illustrations
- IV. Object
- V. Conditions
- VI. Interpretation
- VII. Suit for refund
- VIII. Priority of Government debts
- IX. Appeal
- X. Revision
- XI. Questions of Previous Years' Exam—[DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

Ranvix IAS

RATEABLE DISTRIBUTION OF ASSETS

[SECTION 73]

I. GENERAL

Section 73 of the Code provides for rateable distribution of proceeds of execution sale among decree – holders. It provides that where the assets are held by a Court and before the receipt of such assets, several decree – holders have applied to the Court for execution of a decree for payment of money against the same judgment – debtor and have not obtained satisfaction, the assets, after deducting the costs of realisation, shall be rateably distributed among them. It allows filing of a suit for refund of assets wrongly distributed. The provision also confers priority of Government debts over private debts.

II. NATURE AND SCOPE

The rule enunciated in the section (Section 73) is a rule of procedure and provides cheap, speedy and expeditious mode of execution. It neither enlarges nor curtails substantive rights of the decree – holder.

III. ILLUSTRATIONS

Let us understand the principle by considering some cases on the point:

- i) A obtains a decree against J in Court C for Rs. 10,000 and applies to the Court for execution of his decree by attachment and sale of J's property. The property of J is attached. Thereafter B also obtains a decree against J in the same Court for Rs. 5000 and applies to that Court for execution of his decree by attachment and sale of the same property attached in execution of A's decree. The property is thereafter sold by the Court in execution of A's decree for Rs. 7500. Under this section the said amount of Rs. 7500 will be rateably distributed between both the decree – holders. A will be paid Rs. 5000 and B will be paid Rs. 2500.
- ii) In the above illustration, instead of A, the Government obtains a decree against J and the property is attached. Thereafter, B also obtains a decree against J. The property is sold in execution. The Government is entitled to recover its dues by claiming priority over B's dues. But if before the Government applies for payment, the amount is taken away by B, no priority can be claimed thereafter by Government.

IV. OBJECT

The provision seeks to place all decree – holders on an equal footing regardless of priority in attachment or making of application for rateable distribution. It intends to secure equitable disposition of assets of the judgment – debtor among rival decree – holders without taking recourse to separate and independent proceedings.

The underlying object of this section is twofold; firstly, to prevent unnecessary multiplicity of execution proceedings; and secondly, to secure equitable distribution of property by placing all the decree – holders on the same footing.

V. CONDITIONS

To entitle a decree – holder to claim a rateable distribution under this section, the following conditions must exist:

- i) The applicant for rateable distribution must have obtained a decree and applied for execution of the decree to the appropriate Court;
- ii) Such application should have been made prior to the receipt of the assets by the Court;
- iii) The assets of which a rateable distribution is claimed must be assets held by the Court;
- iv) The attaching creditor as well as the decree – holder claiming to participate in the assets should be holders of decrees for the payment of money; and
- v) Such decrees should have been obtained against the same judgment – debtor.

VI. INTERPRETATION

<https://goo.gl/GU7xEZ> (Hard copy)

Since Section 73 aims to secure equitable justice, it should be interpreted liberally. The Court should consider the substance of the matter rather than the form of application.

VII. SUIT FOR REFUND

Sub-section (2) of Section 73 enacts that a suit lies for refund of assets wrongly distributed. Hence, any person who is entitled to all or any of the assets which have been paid to a person not entitled to them, may sue for the refund of the assets. The cause of action for such suit arises when the amount is actually paid. The period of limitation for such suit is three years from the date of payment.

VIII. PRIORITY OF GOVERNMENT DEBTS

Sub-section (3) of Section 73 confers priority of Government debts over private debts. It is thus in the nature of a proviso to the rule in the main provision. It recognizes the English Common Law doctrine that Crown debts are entitled to priority.

The basic object of priority of Government debts is that as a Sovereign, the State should be able to discharge its primary functions, for which it must get necessary funds. If priority is not granted to Government, it may not be able to perform those functions.

In *Excise and Taxation Officer v. Gauri Mal*, AIR 1961 Punjab, the High Court of Punjab stated:

"The Common Law doctrine, that if the debts due to the Crown are of equal degree to the debts due to a private citizen, then the Crown must have priority against the private citizen, is a part of the law of this country. The preferential rights of the State, in a democratic socialist republic are necessary, and *raison d'être* for such a privileged status given to the State, in view of its functions and duties, has to continue."

The provision relating to priority of Government debts cannot be held ultra vires, arbitrary, discriminatory or unreasonable, violative of Article 14 or Article 19 of the Constitution. [*Vide: Murli v. Aroomal*, AIR 1955 Cal]

IX. APPEAL

Prior to the amendment of the definition of decree in Section 2 (2) by the Amendment Act of 1976, an order made under this Section was appealable as a "decree" where the conditions of Section 47 were satisfied. However, after deletion of the word and figure "Section 47" from the definition of "decree" in Section 2 (2) by the Amendment Act of 1976, the order passed under Section 73 is not appealable as a decree.

X. REVISION

Since after the Amendment Act of 1976, an order under Section 73 does not amount to a decree and is not appealable, a revision application can be filed against the said order provided the conditions laid down in Section 115 are satisfied.

XI. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. a) Discuss the law relating to rateable distribution on the assets of a judgment debtor which are in the custody of the Court?
b) Decree holders A, B and C had applied for the execution of their several decrees against the judgment debtor Y. P another person sues Y in the same Court for money due and applies for the arrest of Y before judgment. Y pays the required amount in the Court to avoid arrest. Is this amount liable for rateable distribution among the decree-holders? Discuss. [500 Words, RJS-1970]
2. a) What do you understand by the Principle of Rateable distribution?
b) A and B both have money decrees against C. A puts his decree into execution and attaches the property of C and gets the house of C sold in Court auction. B also puts the decree into execution before the sale proceeds of the auction sale are deposited in the Court. Is B entitled to rateable distribution? Give reasons for your answer. [500 Words, RJS-1979]

CHAPTER L
TRANSFER OF CASES
[SECTIONS 22 TO 25]

Dear aspirant,

Sections 22 to 25 enact the law as regards the transfer and withdrawal of suits, appeals, and other proceedings from one Court to another Court. Section 22 provides that where the plaintiff has the choice of two or more Courts in which he may institute a suit, any defendant after notice to the other side, may at the earliest opportunity apply to a Court to have the suit transferred from the Court in which it is filed to another Court. It may be noted that Section 22 applies only to suits and only the defendant can make an application.

Section 23 contains three rules indicating to the Court to which the application under Section 22 lies:

- i) Where the several Courts having jurisdiction are subordinate to the same Appellate Court, an application under Section 22 is to be made to the Appellate Court.
- ii) Where such Courts are subordinate to different Appellate Courts but to the same High Court, the application is to be made to the said High Court.
- iii) Where such Courts are subordinate to different High Courts, the application is to be made to the High Court within the local limits of whose jurisdiction the Court in which the suit is brought is situated.

Under Section 24, the High Court or District Court may at any stage: "transfer" a suit, appeal, etc. pending before it for trial or disposal to any Court subordinate to it; withdraw a suit, appeal etc. pending in any Court subordinate to it and try or dispose of the same, or transfer it for trial or disposal to any Court subordinate to it, or, re-transfer it to the Court from which it was withdrawn. Section 24 provides for transfer at the instance of any party to any such suit, appeal etc. or even by the Court of its own motion. Section 24 (5) lays down that a suit or proceeding may be transferred from a Court having no jurisdiction to try the same. But the Court to which a suit, appeal etc. is transferred should be competent to try and dispose of the same.

Section 25 of CPC empowers the Supreme Court to transfer any suit, appeal or other proceedings from one High Court to another High Court or from one Civil Court in one state to another Civil Court in any other state throughout the country if it is satisfied that such an order is expedient in the ends of justice.

The power to transfer must be exercised with extreme caution and circumspection and in the interest of justice. The Court while deciding the question must bear in mind two conflicting interests:

- i) as a dominus litis the right of the plaintiff to choose his own forum; and
- ii) the power and duty of the Court to assure fair trial and dispensation of justice.

The case must be transferred only on sufficient grounds. Following are some instances of sufficient grounds:

- i) To avoid multiplicity of proceedings or conflicting decisions.
- ii) Reasonable apprehension in the mind of the litigant that he might not get justice in the Court in which the suit is pending, for example, because of biased judge. This point is based on the concept that "justice not only to be done, but also seems to be done".
- iii) Where common question of fact and law arise between the parties in two suits:
- iv) Where balance of convenience requires e.g. where the property is situate or parties or their witnesses reside.

v) where two persons have filed suits against each other in different Courts on the cause of action. <https://goo.gl/GU7xEZ> (Hard copy)

vi) Where transfer avoid delay and unnecessary expenses.

vii) Where important questions of law are involved; or considerable section of the public is interested in the litigation.

Some instances of insufficient grounds are given below:

- i) Mere balance of convenience to the applicant.
- ii) Allegation of apprehension against fair trial without furnishing particulars.
- iii) Mere fact that the Court is situate at a long distance from the place of residence of the applicant.
- iv) Mere fact that the opposite party is a man of influence in the locality.
- v) Mere fact that the presiding officer belongs to a community rival to that of applicant.
- vi) Mere fact that the judge has decided a similar point in a previous case.
- vii) Judge making adverse remarks regarding merits of the case.
- viii) Prejudice of a judge against party's pleader not likely to affect the party.

It is noteworthy that an order to transfer is not appealable; but it is open to revision.

This chapter is not very important from examination point of view. However, the study of this chapter is necessary for sure success. Following points should be prepared from this Chapter:

- i) General powers of High Court and the District Court as regards the transfer of suits.
- ii) Sufficient grounds for transfer of cases.
- iii) Insufficient grounds for transfer of cases.

With best wishes,

Yours Sincerely
RAHUL

CHAPTER L

TRANSFER OF CASES

[SECTIONS 22 TO 25]

SYNOPSIS

I. General

II. Object

III. Nature and Scope

IV. Who may apply [Sections 22 and 23]

V. Conditions

VI. To which Court application lies [Section 23]

VII. Grounds

1. Sufficient grounds for transfer
2. Insufficient grounds for transfer

VIII. Notice

IX. *Suo motu* transfer

X. Powers and duties of Court

XI. Costs and compensation

XII. Appeal and revision

XIII. Conclusion

XIV. Questions of Previous Years Exam— [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, Haryana JS etc.]

RAMANUJ

CHAPTER I TRANSFER OF CASES

[SECTIONS 22 TO 25]

I. GENERAL

As a general rule, a plaintiff as *arbitrator litis* or *dominus litis* has a right to choose his own forum where a suit can be filed in more than one Court. Normally, this right of the plaintiff cannot be curtailed, controlled or interfered with. But the said right is controlled by the power vested in superior Courts to transfer a case pending in one inferior Court to another or to recall the case to itself for hearing and disposal. Sections 22 to 25 enact the law as regards transfer and withdrawal of suits, appeals and other proceedings from one Court to another. Sections 22 and 23 enable a defendant to apply for transfer of a suit while Sections 24 and 25 empower certain Courts to transfer any suit, appeal or other proceeding either on an application made by any party or by the Court *suo motu*.

II. OBJECT

The primary and paramount object of every procedural law is to facilitate justice. A fair and an impartial trial is a *sine qua non* and an essential requirement of dispensation of justice. Justice can only be achieved if the Court deals with both the parties present before it equally, impartially and even-handedly. Hence, though a plaintiff has the right to choose his own forum, with a view to administer justice fairly, impartially, and even-handedly, a Court may transfer a case from one Court to some other Court.

III. NATURE AND SCOPE

Section 22 allows the defendant to make an application for transfer of a suit, whereas Section 23 indicates the Court to which such an application can be made. Section 24 embodies general power of transfer of any suit, appeal or other proceeding at any stage either on an application of any party or by a Court of its own motion. Section 25 confers very wide, plenary and extensive powers on the Supreme Court to transfer any suit, appeal or other proceeding from one High Court to another High Court or from one Civil Court in one State to another Civil Court in another State.

IV. WHO MAY APPLY [SECTIONS 22 AND 23]

Sections 22 and 23 of the Code deal with the right of a defendant to apply for the transfer of a suit. Where the plaintiff has the choice of two or more Courts in which he may institute a suit, a defendant, after notice to the other side, may at the earliest opportunity apply to a Court to have the suit transferred from the Court in which it is filed to another Court.

V. CONDITIONS

Before transfer is ordered under Section 22, two conditions must be satisfied, namely, (i) the application must be made at the earliest possible opportunity and in all cases, where issues are settled, at or before the settlement of issues, and (ii) notice must be given to the other side. The provision as to notice is mandatory. Such notice may be given by the party making an application or by the Court.

VI. TO WHICH COURT APPLICATION LIES [SECTION 23]

The Code specifies the Court to which an application for transfer can be made:

- Where several Courts having jurisdiction are subordinate to the same appellate Court, an application for transfer can be made to that appellate Court;
- Where such Courts are subordinate to the same High Court, an application can be made to that High Court; and
- Where such Courts are subordinate to different High Courts, an application can be made to the High Court within the local limits of whose jurisdiction, the Court in which the suit is instituted is situate;
- The Supreme Court may transfer any suit, appeal or other proceeding from one High Court to another High Court, or from one Civil Court in the State to another Civil Court in any other State. [Section 25]

VII. GROUNDS

<https://goo.gl/GU7xEZ> (Hard copy)

The jurisdiction under this section must be exercised with extreme care, caution and circumspection. The search should be for justice and the Court must be satisfied that justice could more likely be done between the parties by refusing to allow the plaintiff to continue his suit in the forum of his own choice.

The approach of the Court must be pragmatic, not theoretic. The amplitude of the expression "expedient in the interest of justice" furnishes a general guideline for the exercise of the power. Whether it is expedient or desirable in the interest of justice to transfer a case to another Court is a question which depends upon the facts of each case. The paramount consideration is the interest of justice and when the ends of justice demand transfer of a case, the Court should not hesitate to act.

1. Sufficient grounds for transfer

- a) To avoid multiplicity of proceedings or conflicting decisions.
- b) Reasonable apprehension in the mind of the litigant and he might not get justice in the Court in which the suit is pending, for example, because of biased judge ('justice not only to be done, but also seems to be done').
- c) Where common question of fact and law arise between the parties in two suits.
- d) Where balance of convenience requires e.g. where the property is situate or parties or their witnesses reside.
- e) Where two persons have filed suits against each other in different Courts on the same cause of action.
- f) Where transfer avoids delay and unnecessary expenses.
- g) Where transfer prevents abuse of the process of Court.
- h) Where important questions of law are involved; or considerable section of the public is interested in the litigation.

2. Insufficient grounds for transfer

- a) Mere balance of convenience to the applicant.
- b) Allegation of apprehension against fair trial without furnishing particulars.
- c) Mere fact that the Court is situate at a long distance from the place of residence of the applicant.
- d) Mere fact that the opposite party is a man of influence in the locality.
- e) Mere fact that the presiding officer belongs to a community rival to that of the applicant.
- f) Mere fact that the judge has decided a similar point in a previous case.
- g) Judge making adverse remarks regarding merits of the case.
- h) Prejudice of a judge against party's pleader not likely to affect the party.

VIII. NOTICE

When an application for transfer is made under Section 22, notice of such application must be given by the defendant to the other side. The words "after notice to the other parties" indicate that notice must be given prior to the making of application. When an application is made by any party to the proceeding under Section 24, notice must be given by the Court to the opposite party before making an order of transfer. An order of transfer without notice is without jurisdiction. But where a Court acts *suo motu*, such notice is not necessary.

IX. SUO MOTU TRANSFER

Over and above an application by a party to the suit, appeal or other proceeding, a High Court or a District Court has power to transfer a suit, appeal or other proceeding even *suo motu*.
[Vide: *Nirmal Singh v. Haryana*, AIR 1996 SC]

X. POWERS AND DUTIES OF COURT

The power of transfer must be exercised with extreme caution and circumspection and in the interests of justice. The Court while deciding the question must bear in mind two conflicting interests; (i) as a *dominus litis* the right of the plaintiff to choose his own forum; and (ii) the power

and duty of the Court to assure fair trial and dispensation of justice. The paramount consideration would be the requirement of justice.

When an application for transfer is made by a party and allegations of bias, prejudice or partiality have been levelled against the Presiding Officer of a Court, ordinarily remarks of the Judge concerned should be called for before making an order of transfer.

In **Kaushalya Devi v. Mool Raj (1964) 4 SCR**, in a transfer application of the accused, the Delhi Administration filed an affidavit of the Magistrate against whom the transfer application was made. Over and above, denying the allegations made by the accused, the Magistrate tried to justify his action on merits. The Supreme Court deprecated the action.

Showing concern over the 'partisan role' of the Magistrate and deprecating his action, the Apex Court stated:

"A little reflection would have satisfied him of the gross impropriety of his action in making an affidavit like the present. It is an elementary principle of the rule of law that Judges who preside over trials, civil or criminal, never enter the arena."

XI. COSTS AND COMPENSATION

Where an application for transfer is dismissed as frivolous, vexatious or mala fide, the Court has power to award substantial and exemplary costs to the opposite party. [Section 35-A]

The Code states that where an application for transfer is dismissed and the Supreme Court is of the opinion that the application was frivolous or vexatious, it may order the applicant to pay compensation to the opponent as it may consider appropriate in the circumstances of the case. Such sum, however, cannot exceed three thousand rupees. [Section 35-A]

XII. APPEAL AND REVISION

The order of transfer neither affects the merits of the controversy between the parties to the suit; nor terminates or disposes of the suit on any ground, and therefore, an order to transfer is not appealable [**Shanti Kumar v. Home Insurance Co. AIR 1974 SC 1719**].

XIII. CONCLUSION

It is submitted that the following observations of Krishna Iyer, J. in the leading case of **Maneka Sanjay Gandhi v. Rani Jethmalani AIR 1979 SC**, lay down correct law on the point and are, therefore, worth quoting:

"Assurance of a fair trial is the first imperative of the dispensation of justice and the criterion for the Court to consider when a motion for transfer is made is not the hypersensitivity or relative convenience of a party or easy availability of legal service or like mini-grievances. Something more substantial, more compelling, more imperiling, from the point of view of public justice and its attendant environment, is necessitous if the Court is to exercise its power of transfer. This is the cardinal principle although the circumstances may be myriad and vary from case to case."

XIV. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC]

1. What are the general powers conferred on the High Court or the District Court as regards the transfer and withdrawal of suits, appeals or other proceedings? [200 words, RJS - 1999]
2. Can a party apply for the transfer of a suit or appeal? If so, describe the procedure adapted in the matter. [200 words, RJS - 1992]
3. What are the general powers conferred on the High Court or the District Court as regards the transfer and withdrawal of suits, appeals or other proceedings? [250 words, UPPCS (J) - 1992]
4. Under which Section of CPC can a suit be transferred from one Court in a district to another Court in some other district and which is the competent Court to order such transfer? [20 words, Jharkhand JE - 2001]

CHAPTER LI
RESTITUTION
[SECTION 144]

Dear aspirant,

"An act of restoring a thing to its proper owner" is called restitution. In other words, it means restoring to a party the benefit which the other party has received under a decree subsequently held to be wrong. Under Section 144, an application for restitution could be made by a party when a decree or order is varied or reversed in appeal, revision, etc. or is set aside or modified in a suit. It is the duty of the Court to restore to a party what has been lost to him in execution of the decree or directly in consequence of that decree. The Court may also make any order, including orders for the refund of costs and for the payment of interest, damages, compensation and mesne profits.

The doctrine of restitution is based on the *maxim actus curiae neminem gravabit* i.e. the act of Court shall harm no one. It is the duty of the Court under Section 144 to place the parties in the position which they would have occupied, but for such decree or part thereof as has been varied or reverse [Vide: *Jai Behram v. Kedar Nath*, AIR 1922 PC]. Section 144 does not confer any new substantive right; it merely regulates the power of the Court in that behalf. The Court's power is not discretionary but obligatory.

Before restitution can be ordered under Section 144, following three conditions must be satisfied:

- i) Restitution sought must be in respect of the decree/order (erroneous judgment) which had been varied or reversed;
- ii) The party applying for restitution must be entitled to benefit under the reversed decree or order; and
- iii) The relief claimed must be properly consequential to the reversal or variation of the decree or order.

It can be explained with the help of illustration:

"A obtains a decree against B for possession of immovable property and in execution of the decree obtains possession thereof. The decree is subsequently reversed in appeal. B is entitled to restitution, even though there is no direction for restitution in the decree of appellate Court."

A party entitled to restitution must be a party to the decree or order varied or reversed. Restitution can be granted not only against the party to the litigation, but also against his legal representative e.g. transferee pendente lite, attaching decree-holder etc. However, Section 144 does not apply to sureties.

Where restitution could be claimed by an application under Section 144, no separate suit shall be brought for such relief. The object of the doctrine is to shorten litigation and to provide speedy relief. The determination of a question under Section 144 is a "decree" and, thus, appealable.

This chapter is not much important for Examination point of view. However, a Short Notes should be prepared on "restitution".

With best wishes,

Yours Sincerely
RAHUL

CHAPTER LI
RESTITUTION
[SECTION 144]

SYNOPSIS

I. Restitution: Meaning

II. Doctrine explained

III. Object

IV. Nature and Scope

V. Conditions

VI. Who may apply?

VII. Against whom restitution may be granted

VIII. Who may grant restitution?

IX. Extent of restitution

X. Inherent power to grant restitution

XI. *Res-judicata*

XII. Bar to suit

XIII. Limitation

XIV. Appeal

XV. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPSC (J), BJE, HJS, Haryana JS etc.]

CHAPTER LI

RESTITUTION

[SECTION 144]

I. RESTITUTION: MEANING

The expression "restitution" has not been defined in the Code, but it is "an act for restoring a thing to its proper owner". In other words, restitution means restoring to a party the benefit which the other party has received under a decree subsequently held to be wrong.

II. DOCTRINE EXPLAINED

The principle of the doctrine of restitution is that, on the reversal of a decree, the law imposes an obligation on the party to the suit who received an unjust benefit of the erroneous decree to make restitution to the other party for what he has lost. The obligation arises automatically on the reversal or modification of the decree and necessarily carries with it the right to restitution of all that has been done under the erroneous decree; and the Court in making the restitution is bound to restore the parties, so far as they can be restored, to the same position they were in at the time when the Court by its erroneous action had displaced them from.

In Halsbury's Laws of England, it is stated: "Any civilized system of law is bound to provide remedies for cases of what has been called unjust enrichment or unjust benefit, that is, to prevent a man from retaining the money of, or some benefit derived from, another which it is against conscience that he should keep."

The jurisdiction to make restitution is inherent in every Court and can be exercised whenever justice of the case demands.

Illustrations

- i) A obtains a decree against B for possession of immovable property and in execution of the decree obtains possession thereof. The decree is subsequently reversed in appeal. B is entitled under this section to restitution of the property, even though there is no direction for restitution in the decree of the appellate Court.
- ii) A obtains a decree against B for Rs. 5000, and recovers the amount in execution. The decree is subsequently reversed in appeal. B is entitled under this section to a refund of the amount together with interest up to the date of repayment, though the appellate decree may be silent as to interest.

III. OBJECT

The doctrine of restitution is based upon the well-known maxim "*actus curiæ neminem gravabit*", i.e. the act of Court shall harm no one. In the words of Lord Cairns, "one of the first and highest duties of all Courts is to take care that the act of the Court does no injury to the suitors". The law also imposes an obligation on the party who received benefit of an erroneous judgment to make restitution to obligation.

In *Jai Behram v. Kedar Nath*, the Privy Council observed: "It is the duty of the Court under Section 144 of the Civil Procedure Code to place the parties in the position which they would have occupied but for such decree or such part thereof as has been varied or reversed. Nor indeed does this duty or jurisdiction arise merely under the said section. It is inherent under the general jurisdiction of the Court to act rightly and fairly according to the circumstances towards all parties involved."

IV. NATURE AND SCOPE

Section 144 of the Code embodying the doctrine of restitution does not confer any new substantive right to the party not available under the general law. The section merely regulates the power of the Court in that behalf. It is the paramount duty of all Courts to ensure that they do no injury to any litigant.

V. CONDITIONS

Before restitution can be ordered under this section, the following three conditions must be satisfied:

- i) The restitution sought must be in respect of the decree or order which had been reversed or varied;

- <https://goo.gl/GU7xEZ> (Hard copy)
- ii) The party applying for restitution must be entitled to benefit under the reversing decree or order; and
 - iii) The relief claimed must be properly consequential on the reversal or variation of the decree or order.

In other words, (i) there must be an erroneous judgment; (ii) the benefit of that erroneous judgment has been received by one party; and (iii) the erroneous judgment has been reversed, set aside or modified. If these conditions are satisfied, the Court must grant restitution. It is not discretionary but obligatory.

VI. WHO MAY APPLY?

In order to entitle a person to apply under this section, two conditions must be satisfied:

- i) He must be a party to the decree or order varied or reversed.

The expression "party" is not confined to mean only a technical party to the suit or appeal but includes any beneficiary under the final judgment; and

- ii) He must have become entitled to any benefit by way of restitution or otherwise under the reversing decree or order. Thus, a trespasser cannot get restitution.

VII. AGAINST WHOM RESTITUTION MAY BE GRANTED

Restitution can be ordered under this section not only against the party to the litigation, but also against his legal representatives, e.g. transferee *pendente lite*, attaching decree-holder, etc. Section 144 applies only to the parties or their representatives and does not apply to sureties. Hence, restitution cannot be claimed against a surety. It also cannot be granted against a bona fide auction – purchaser.

VIII. WHO MAY GRANT RESTITUTION?

An application for restitution lies to the Court which has passed the decree or made the order.

IX. EXTENT OF RESTITUTION

The Court in making restitution is bound to restore the parties so far as they can be restored to the same position they were in at the time when the Court by its erroneous action had displaced them.

X. INHERENT POWER TO GRANT RESTITUTION

Section 144 of the Code embodying the doctrine of restitution does not confer any new substantive right to the party not available under the general law. It merely regulates the power of Courts. The doctrine is based on equity and against unjust enrichment. Section 144 is not exhaustive. Hence, there is always an inherent jurisdiction to order restitution.

XI. RES JUDICATA

The doctrine of res judicata applies to execution proceedings also. An application for restitution dismissed on merits, hence, would operate as res judicata. But if such an application is dismissed on some technical grounds, a fresh application will be maintainable.

XII. BAR TO SUIT

Sub-section (2) of Section 144 provides in express terms that where restitution could be claimed by an application under this section, no separate suit shall be brought for such relief.

XIII. LIMITATION

An application under Section 144 is an application for execution of a decree and is governed by Article 136 of the Limitation Act, 1963. The period of limitation for such an application is twelve years and it will start from the date of the appellate decree or order.

XIV. APPEAL

The determination of a question under Section 144 has been expressly declared to be a "decree" under Section 2 (2) of the Code and is, therefore, appealable.

XV. QUESTIONS OF PREVIOUS YEARS' EXAM [JUS, RJS, UP PCS (J), MPPCS (J), BJE, HJS, HARYANA JS ETC.]

1. Discuss the doctrine of restitution. **[250 Words, UPPCS(J)-1999]**
2. Short Notes: Restitution **[100 Words 1979, 150 Words, RJS-1986]**
3. a) Explain and illustrate the principle of restitution. Is an order granting restitution appealable?
b) Who may apply for restitution? Against whom restitution can be granted.
[500 Words, HJS-2001]
4. Explain fully the difference between execution of a decree and restitution.
[250 words, BJE - 1975]

CHAPTER LII

CAVEAT

[SECTION 148 - A]

Dear aspirant,

A "caveat" is a caution or warning giving notice to the Court not to take any step without notice being given to the party lodging the caveat. It provides an opportunity to the opposite party to be heard before an ex-parte order is passed. It is quite common in testamentary proceedings. It is a precautionary measure taken against the grant of probate or letters of administration by the person lodging the caveat. A caveat avoids multiplicity of proceedings, because otherwise the affected person would have to file a separate proceeding to have the adverse order set aside.

Such a rule is also found in the Supreme Court Rules. Section 148 - A provides that where an application is expected to be made, or has been made, on a suit or proceeding instituted, or about to be instituted, in a Court, any person claiming a right to appear before the Court on the hearing of such an application may lodge a caveat. It may be noted that any person who is likely to be affected by an order can file a caveat. He need not be a party to the proceeding.

The person lodging the caveat (caveator) must serve a notice of the caveat by registered post, acknowledgement due, etc. on the person by whom the application is to be made. Where, after a caveat has been lodged, any application is filed in a suit or proceeding, the Court must serve a notice of the application on the caveator. Also, the applicant must furnish the caveator (at the caveator's expense) a copy of the application and other documents.

A caveat does not remain in force after the expiry of 90 days from the date on which it was lodged, unless another application is made before the expiry of that period. The provision relating to caveat would be applicable to suits, appeals as well as other proceedings under the code or other enactments.

This chapter is not much important for examination point of view but you should prepare a short notes on it.

With best wishes,

Yours Sincerely
RAHUL

CHAPTER LII

CAVEAT

[SECTION 148 - A]

SYNOPSIS

I. Meaning

II. Section 148 - A

III. Object

IV. Nature and Scope

V. Who may file?

VI. Where caveat does not lie

VII. Rights and Duties

VIII. Failure to hear caveator: Effect

IX. Time limit

X. Questions of Previous Years' Exam- [DJS, RJS, UP PCS (J), MP PCS (J), BJE, HJS, Haryana JS etc.]

CAVEAT

[SECTION 148 - A]

I. MEANING

The term "caveat" has not been defined in the Code. The word (caveat) has been derived from Latin which means "beware". According to the dictionary meaning, "a caveat is an entry made in the books of the offices of a registry or Court to prevent a certain step being taken without previous notice to the person entering the caveat". In other words, a caveat is a caution or warning given by a party to the Court not to take any action or grant any relief to the applicant without notice being given to the party lodging the caveat. It is very common in testamentary proceedings. It is a precautionary measure taken against the grant of probate or letters of administration, as the case may be, by the person lodging the caveat. Section 148 - A of the Code of Civil Procedure provides for lodging of a caveat.

II. SECTION 148 - A

Section 148 - A reads as under:

- i) Where an application is expected to be made, or has been made, in a suit or proceeding instituted, or about to be instituted, in a Court, any person claiming a right to appear before the Court on the hearing of such application may lodge a caveat in respect thereof.
- ii) Where a caveat has been lodged under sub-section (1), the person by whom the caveat has been lodged (hereinafter referred to as the caveator) shall serve a notice of the caveat by registered post, acknowledgment due, on the person by whom the application has been, or is expected to be made, under sub-section (1).
- iii) Where, after a caveat has been lodged under sub-section (1), any application is filed in any suit or proceeding, the Court shall serve a notice of the application on the caveator.
- iv) Where a notice of any caveat has been served on the applicant, he shall forthwith furnish the caveator, at the caveator's expense, with a copy of the application made by him and also with copies of any paper or document which has been, or may be, filed by him in support of the application.
- v) Where a caveat has been lodged under sub-section (1), such caveat shall not remain in force after the expiry of ninety days from the date on which it was lodged unless the application referred to in sub-section (1) has been made before the expiry of the said period.

III. OBJECT

The underlying object of a caveat is twofold: firstly, to safeguard the interest of a person against an order that may be passed on an application filed by a party in a suit or proceeding instituted or about to be instituted. Such a person lodging a caveat may not be a necessary party to such an application, but he may be affected by an order that may be passed on such application. This section affords an opportunity to such party of being heard before an *ex parte* order is made; and secondly, to avoid multiplicity of proceedings. In the absence of such a provision, a person who is not a party to such an application and is adversely affected by the order has to take appropriate legal proceedings to get rid of such order.

IV. NATURE AND SCOPE

The provision relating to caveat would be applicable to suits, appeals as well as other proceedings under the Code or under other enactments.

It is no doubt true that no order should be passed against the caveator unless he is heard, but if the caveator is not present at the time of hearing of the application and the Court finds that there is a *prima facie* case in favour of the applicant, *ad interim* relief can be granted by the Court in his favour. Interim order passed without giving notice to the caveator is not without jurisdiction and is operative till it is set aside in appropriate proceedings.

V. WHO MAY FILE?

Sub-section (1) of Section 148 - A prescribes qualifications for the person who intends to lodge a caveat. He must be a person claiming a right to appear before the Court on the hearing.

of the application, which the applicant might move for the grant of interim relief. The language of sub-section (1) of Section 148 - A is wide enough to include not only a necessary party, but even a property party. Hence, a caveat may be filed by any person who is going to be affected by an interim order likely to be passed on an application which is expected to be made in a suit or proceeding instituted or about to be instituted in a Court.

Thus, a person who is a stranger to the proceeding cannot lodge a caveat. Likewise, a person supporting the application for interim relief made by the applicant also cannot file a caveat.

VI. WHERE CAVEAT DOES NOT LIE

The provisions of Section 148 - A of the Code can be attracted only in cases where the caveator is entitled to be heard before any order is made on the application already filed or proposed to be filed.

VII. RIGHTS AND DUTIES

Sub-sections (2), (3) and (4) of Section 148 - A prescribe the rights and duties of the caveator who lodges a caveat, of the applicant who intends to obtain an interim order and of the Court.

Under sub-section (2) of Section 148 - A, once a party is admitted to the status of a caveator, he is clothed with certain rights and duties. It is his duty to serve a notice of the caveat lodged by him by registered post on the person or persons by whom an application against the caveator for an interim order has been or is expected to be made.

Sub-section (4) of Section 148 - A provides that it is the duty of the applicant to furnish to the caveator forthwith at the caveator's expense a copy of the application made by him along with the copies of papers and documents on which he relies. This provision thus makes it obligatory for the applicant to serve his application along with all copies and documents filed or intended to be filed in support of his application.

Once a caveat had been lodged, under sub-section (3), it is the duty of the Court to issue a notice of that application on the caveator. This duty has been cast on the Court obviously for the purpose of enabling the caveator to appear and oppose the granting of an interim relief in favour of the applicant.

VIII. FAILURE TO HEAR CAVEATOR: EFFECT

The intention of the legislature in enacting the provision of caveat is to enable the caveator to be heard before any orders are passed and no orders are passed by the Court ~~ex parte~~. It is, therefore, clear that once a caveat is filed, it is a condition precedent for passing an interim order to serve a notice of the application on the caveator who is going to be affected by the interim order. Unless that condition precedent is satisfied, it is not permissible for the Court to pass an interim order affecting the caveator, as otherwise it will defeat the very object of Section 148 - A.

IX. TIME LIMIT

A caveat lodged under sub-section (1) will remain in force for ninety days from the date of its filing.

X. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MP PCS (J), BJE, HJS, HARYANA JS ETC.]

1. When can a person lodge a caveat in the Court? What is the purpose of lodging a caveat?
[50 words, RJS - 1989] [250 words, MPCJ (Main) - 1998]

INHERENT POWERS OF COURTS

[SECTIONS 148, 149, 151, 152, 153, 153 - A]

Dear aspirant,

Section 151 reads:

"Nothing in the Civil Procedure Code shall be deemed to limit or otherwise affect the inherent power of the Court to make such order as may be necessary for the ends of justice or to prevent abuse of the process of the Court."

A code however wisely framed cannot express provisions against all contingencies and for all times. Further, the laws are not ends in themselves but are only a means for securing justice. If the ordinary rules of procedure result in injustice in any case and there is no other remedy, it is the duty of the Court to override those rules for achieving the ends of justice.

Section 151 is a saving clause. The inherent powers are inherent in the Court itself and have not been conferred by the code; these powers are independent of in addition to any other powers that the Court may exercise under the code [*Manohar Lal v. Seth Hira Lal, AIR 1962 SC*]. Similarly, in *Padma Sen v. Anwar & The State (1961) 1 SCR 884*, it was observed that the Court is free to exercise such powers under Section 151, when the exercise of them is not in any way in conflict with what has been expressly provided in the Code or against the intentions of the legislature.

Section 151 does not confer power on Court; it only acknowledges or recognises the inherent powers of Court by virtue of its being a judicial forum meant to dispense justice. It confers discretionary powers of wide amplitude. However, there are certain limitations of the inherent power:

- i) The Court has no inherent power to do what is prohibited by the code so as to defeat a statutory provision of the law of the land. Section 151 does not invest the Court with jurisdiction over matters which are excluded from its cognizance. Thus, no appeal can be allowed from a non-appealable order. Similarly, the Court cannot entertain a suit arising in a place where it has no jurisdiction.
- ii) Where specific provisions are contained in regard to a particular issue under the code, the Court has no power to make such provisions meaningless and to devise its own procedure. Thus, the Court is not entitled to set aside an ex-parte decree under its powers.
- iii) The inherent power is not to be exercised where the applicant has remedy provided elsewhere in the code but has neglected to avail himself of it. Equity aids the vigilant and not the indolent. Further, where the applicant did not come to Court with clean hands and had suppressed the facts, the inherent power is not to be exercised.
- iv) The inherent power is restricted to the procedural matters, for Section 151 is part of the procedural code. This section cannot be used or invoked to disturb the substantive rights of the parties.

Thus, in a case, the Court refused to appoint a commissioner to seize account books in the plaintiff's possession.

Inherent powers can be used only in the circumstances for which the code does not make a provision, and that too only to meet the ends of justice or to prevent abuse of the process of the Court. The Court has inherent power to do certain thing ex-debito justitiae (to act as justice demands). Section 151 does not confer any substantive right on parties but is meant to get over the difficulties arising from rules of procedure. A mere mistake of law is normally not a sufficient ground for correcting a wrong order, but if the mistake is an obvious one due to failure to notice a particular

The Court has following inherent powers under Section 151:

- a) To consolidate suits and appeals; and to postpone the hearing of suits pending the decision of a selected action.
- b) To add a party or to transpose parties, or where the appeal is filed against dead persons to allow the appellant to add legal representatives of the deceased as parties in a proper case.
- c) To entertain the application of a third person to be made a party.
- d) To stay the drawing up of the Court's own orders or to suspend their operation.
- e) To stay the carrying out of a preliminary order pending appeal.
- f) To rectify its own mistake viz. to amend decrees by correcting errors.
- g) To restrain by injunction a person from proceeding with a suit in another Court.
- h) To allow amendment of pleadings.
- i) To set aside an order made ex-parte and without notice to the parties to be affected thereby.
- j) To interfere where its decree is being executed in a manner manifestly at a variance with the purpose and intent of the decree.
- k) To stay a suit even when it does not come within Section 10, CPC.
- l) To apply the principles of res judicata to cases not falling within Section 11 of the Code.
- m) To recall and cancel the Court's invalid orders; etc.
- n) To restore a suit previously dismissed by it if it thinks that such restoration is necessary in the ends of justice.
- o) To issue orders of injunctions; and to grant police help to implement such orders.
- p) To prevent abuse of process of Court. Such abuse may be committed by a Court or by a party. Where a Court employs a procedure in doing something which it never intended to do and there is miscarriage of justice, there is an abuse of process by the Court itself. Similarly, a party to a litigation may also be guilty of an abuse of Court's process e.g. by obtaining benefits by practising fraud on the Court, or upon a party to the proceedings, or by circumventing the statutory provisions etc.

Section 148 reads: "Where any period is fixed or granted by the Court for the doing of any act prescribed or allowed by this code, the Court may, in its discretion, from time to time, enlarge such period, not exceeding 30 days in total, even though the period originally fixed or granted may have expired" (as amended by the 1999 Amendment).

This section confers the power to the Civil Court in the nature of "inherent powers" whereby the Court can solve the crisis of expiry of time as fixed by the code or as allowed by the Court itself. The power has been conferred to meet the ends of justice whenever required.

Section 149 reads: "Where the whole or any part of any fee prescribed for any document by the law for the time being in force relating to Court-fees has not been paid, the Court may, in its discretion, at any stage, allow the person, by which such fee is payable, to pay such Court-fee; and upon such payment the document, in respect of which fee is payable, shall have the same force and effect as if such fee has been paid in the first instance."

Section 149 is of the same nature as Section 148 of the Code as both are in the nature of "inherent powers" of the Court. The Court would be justified in an appropriate case to exercise the discretionary power under Section 149 after giving due notice to the affected party. The words "at any stage" as occurring in Section 149 would only mean, at any stage when the matter is pending disposal before the Court.

Section 152 enacts that clerical or arithmetical mistakes in judgments, decrees or orders arising from any accidental slip or omission may at any time be corrected by the Court either of its own motion or on the application of any of the parties. Thus, if a party accidentally enters the name of the deceased party instead of his legal representative on the record, it could be corrected under Section 152.

This is based on two important principles: (i) an act of Court should not prejudice any party (*actus curiae neminem gravabit*) and (ii) it is the duty of the Courts to see that their records are true and they represent the correct state of affairs [**Samarendra v. Krishna Kumar, AIR 1967 SC**]. Every Court has inherent power over its own records so long as those records are within its power and that it can set right any mistake in them.

Section 152 is confined to amendments of judgments, decrees or orders. Section 153, however, confers a general power on the Court to amend at any time defects or errors in "any proceeding in a suit" and to make all necessary amendments for the purpose of determining the real question at issue between the parties to the suit or other proceeding [**Manohar Lal v. N. B. M. Supply, AIR 1969 SC**]. Section 153 - A lays down that the Court has the power to amend decree or order even when the appeal is summarily dismissed by the appellate Court and the dismissal has the effect of confirming the decree or order. An order granting or refusing an amendment under Section 152 is not a decree or appellate order, and thus, no appeal lies therefrom.

This is an important chapter of CPC. A short as well as a long answer type question can be asked from this chapter in RJS, UPPCS (J), BJE, MPCJ etc. You should prepare following topics from this chapter:-

- i) Explanatory Note: Inherent jurisdiction of the Civil Court.
- ii) Meaning of inherent jurisdiction.
- iii) The problem based questions based on the case law relating to subjects in which inherent powers can be used.

With best wishes,

Yours Sincerely
RAHUL

INHERENT POWERS OF COURTS

[SECTIONS 148, 149, 151, 152, 153, 153 - A]

SYNOPSIS

- I. General**
- II. Enlargement of time [Section 148]**
- III. Payment of Court fees [Section 149]**
- IV. Ends of justice [Section 151]**
- V. Abuse of process of Court [Section 151]**
- VI. Amendment of judgment, decree and order [Sections 152, 153, 153 A]**
- VII. Limitation**
- VIII. Conclusion**
- IX. Questions of Previous Years' Exam— [DJS, RJS, UP PCS (J), MPSC (J), BJE, HJS, Haryana JS etc.]**

INHERENT POWERS OF COURTS

[SECTIONS 148, 149, 151, 152, 153, 153 - A]

I. GENERAL

Every Court is constituted for the purpose of administering justice between the parties and, therefore, must be deemed to possess, as a necessary corollary, all such powers as may be necessary to do the right and to undo the wrong in the course of administration of justice. The Code of Civil Procedure is a procedural or adjective law and the provisions thereof must be liberally construed to advance the cause of justice and further its ends. The inherent powers of the Court are in addition to the powers specifically conferred on the Court by the Code. They are complementary to those powers and the Court is free to exercise them for the ends of justice or to prevent the abuse of the process of the Court.

The reason is obvious. The provisions of the Code are not exhaustive for the simple reason that the legislature is incapable of contemplating all the possible circumstances which may arise in future litigation. Inherent powers come to the rescue in such unforeseen circumstances. They can be exercised *ex debito justitiae* in absence of express provisions in the Code.

Sections 148, 149, 151, 152, 153 and 153 - A of the Code enact the law relating to inherent powers of a Court in different circumstances.

II. ENLARGEMENT OF TIME [SECTION 148]

Section 148 provides that where any period is fixed or granted by the Court for the doing of any act, the Court has power to enlarge the said period even if the original period fixed has expired.

Where a Court in the exercise of its jurisdiction can grant time to do a thing, in the absence of a specific provision to the contrary curtailing, denying or withholding such jurisdiction, the jurisdiction to grant time would include in its ambit the jurisdiction to extend time initially fixed by it.

Before extension of time is granted by a Court, two conditions must be fulfilled:

- a) A period must have been fixed or granted by the Court; and
- b) Such period must be for doing an act prescribed or allowed by the Code.

The section has no application when the time has not been fixed or granted by the Court or a particular act has not been prescribed or allowed by the Code.

It may be noted that the Civil Court has no power to enlarge time under other statute e.g. Limitation Act. Further, the Court can enlarge time only if the case is still within active control of the Court i.e. the matter has not been finally disposed of, as wherever the matter is finally disposed of, the judge of the Court or the Court becomes *functus officio*.

Enlargement of time cannot be claimed by any party as a matter of right. Discretion is the inherent power of a Court and must not be exercised arbitrarily. However, the discretion cannot be fettered by the rules framed for the exercise thereof.

Various situations can be envisaged where a party to the proceeding is prevented by circumstances beyond his control from doing the required act within the fixed period. Section 148 clothes the Court with ample power to do justice to a litigant if sufficient cause is made out of extension and that an order extending time for payment, though passed after the expiry of the time fixed, could operate from the date on which the time fixed expired [*Mahanth Ram Das v. Ganga Das AIR 1961 SC 882; I.T. Commissioner, Jullunder v. Ajanta Electricals AIR 1995 SC 2171*].

III. PAYMENT OF COURT FEES [SECTION 149]

Section 149 empowers the Court to allow a party to make up the deficiency of Court-fees payable on a plaint, memorandum of appeal, etc. even after the expiry of the period of limitation prescribed for the filing of such suit, appeal etc. Section 4 of the Court Fees Act, 1870 provides that no document chargeable with Court-fee under the Act shall be filed or recorded in any Court of justice, unless the requisite Court-fee is paid.

Section 149 is of the same nature as Section 148 of the Code as both are in the nature of 'inherent powers' of the Court. At times it is seen that the proceedings are likely to be disposed of as dismissed just because the Court fees as payable under the law are insufficiently paid. However, in certain cases the insufficiency or otherwise deficiency of the payment of Court fees was bona fide and unintentional and the Court is bound to dismiss the same, inspite of not in favour of dismissing, on the technicalities of law. To cover up such type of situations, this provision has been engrafted and this power of the Court has to be exercised at the discretion of the presiding officer of the Court in a judicial manner.

The aid of Section 149, could be taken only when the party was not able to pay Court-fee in circumstances beyond his control or under unavoidable circumstances. The Court would be justified in an appropriate case to exercise the discretionary power under Section 149 after giving due notice to the affected party [*Buta Singh v. Union of India AIR 1995 SC 1945*]. In case of insufficiency in stamped appeal, dismissal of application for restoration without giving opportunity to make good deficient Court-fee is not proper [*Raja Ram v. State of U.P. AIR 1994 NOC 373 All.*].

The words "at any stage" as occurring in Section 149 would only mean, at any stage when the matter is pending disposal before the Court. A party could not ask for permission to pay deficiency of Court-fee even after the disposal of appeal [*Banta Singh v. UOI AIR 1988 P & H 308*].

The provisions of Section 149 are sufficiently wide and should be applied for granting time for filing the requisite Court-fee even at the stage of revision against the rejection of the application for leave to sue as a indigent person [*Teg Dat Singh v. Dat Singh, AIR 1948 Oudh 157*].

IV. ENDS OF JUSTICE [SECTION 151]

The Court has an inherent power under Section 151, CPC:

- i) To consolidate suits and appeals, and to postpone the hearing of suits pending the decision of a selected action.
- ii) To add a party or to transpose parties, or where the appeal is filed against dead persons to allow the appellant to add legal representatives of the deceased as parties in a proper case.
- iii) To entertain the application of a third person to be made a party.
- iv) To stay the drawing up of the Court's own order or to suspend their operation, if the necessities of justice so require.
- v) To stay the carrying out of a preliminary order pending appeal.
- vi) To rectify its own mistake viz. to amend decrees by correcting errors.
- vii) To restrain by injunction a person from proceeding with a suit in another Court.
- viii) To allow amendment of pleadings.
- ix) To set aside an order made ex parte and without notice to the parties to be affected thereby.
- x) To set aside where its decree is being executed in a manner manifestly at variance with the purpose and intent of the decree.
- xi) To stay a suit even when it does not come within Section 10, CPC.
- xii) To apply the principles of res judicata to cases not falling within Section 11 of the Code.
- xiii) To recall and cancel the Court's invalid orders, etc.
- xiv) To restore a suit previously dismissed by it if it thinks that such restoration is necessary in the ends of justice.
- xv) To issue orders of injunctions; and to grant police help to implement such orders.

V. ABUSE OF PROCESS OF COURT [SECTION 151]

The inherent powers under Section 151 can also be exercised to prevent the abuse of the process of the Court [*Ram Chand v. Kanhayalal AIR 1966 SC 1899*]. Such abuse may be committed by a Court or by a party. Where a Court employs a procedure in doing something which it never intended to do and there is miscarriage of justice, there is an abuse of process by the Court itself. Similarly, a party to a litigation may also be guilty of an abuse of Court's process e.g. by obtaining benefits by practising fraud on the Court, or upon a party to the proceedings, or by circumventing the statutory provisions, etc.

VI. AMENDMENT OF JUDGMENT, DECREE AND ORDER [SECTIONS 152, 153, 153 A]

Section 152 enacts that clerical or arithmetical mistakes in judgments, decrees or orders arising from any accidental slip or omission may at any time be corrected by the Court either of its own motion (*suo motu*) or on the application of any of the parties. The section is based on two important principles: (i) an act of Court should not prejudice any party; and (ii) it is the duty of Courts to see that their records are true and they represent the correct state of affairs.

Illustrations

- i) A files a suit against B for Rs. 10,000 in Court X. The Court passes a decree for Rs. 1000 "as prayed". The decree can be amended under this section.
- ii) A files a suit against B for Rs. 10,000 and interest in Court X. The Court passes a decree for Rs. 5000 only and nothing more. A applies to amend the decree by adding a prayer for payment of interest. The decree cannot be amended under this section. If aggrieved by the decree, A may file an appeal or application for review.

Section 153 - A as inserted by the Amendment Act of 1976 provides that where the appellate Court dismisses an appeal summarily under Order 41, Rule 11, the power of amendment under Section 152 can be exercised by the Court of first instance.

Section 152 is confined to amendments of judgments, orders or decrees. Order 6, Rule 17 deals with amendments of pleadings. Section 153, however, confers a general power on the Court to amend defects or errors in "any proceeding in a suit" and to make all necessary amendments for the purpose of determining the real question at issue between the parties to the suit or other proceeding.

VII. LIMITATION

Section 151 confers discretionary powers of wide amplitude. However, the discretion to use such powers is not unlimited; nor can the Courts use this section in an arbitrary manner. Thus, the Courts can evolve their own procedure and proceed with the case on merits, but such procedure must be reasonable and conducive to dispensation of justice.

In considering the question of propriety in invoking the power, the Court should take into account several matters, some of which are the complexity of the question involved, availability of a more complete and efficacious remedy by means of a suit and the apparent justice of the claim. These are not exhaustive but merely illustrative.

The limitations of the inherent power may be noted:

- i) The Court has no inherent power to do what is prohibited by the Code so as to defeat a statutory provision of the law of the land. Section 151 does not invest the Court with jurisdiction over matters which are excluded from its cognizance. Thus, no appeal can be allowed from a non-appealable order. Similarly, the Court cannot entertain a suit arising in a place where it has no jurisdiction.
- ii) Where specific provisions are contained in regard to a particular issue under the Code, the Court has no power to make such provisions meaningless and to devise its own procedure. Thus, independently of the provisions of Order 9, Rule 13 of the CPC, under which provision an application for setting aside an ex-parte decree has to be made, the Court is not entitled to set aside an ex parte decree under its inherent powers [*State of U.P. v. Shib Saran, 1959 A.L.J.R. 818*].
- iii) The inherent power is not to be exercised where the applicant has remedy provided elsewhere in the Code but has neglected to avail himself of it. Equity aids the vigilant and not the indolent. Further, where the applicant did not come to Court with clean hands and had suppressed the facts, the inherent power is not to be exercised.
- iv) The inherent power of the Court is in relation to the procedure; it is restricted to the procedural matters, for Section 151 is part of the procedural Code. This section cannot be used or invoked to disturb the substantive rights of the parties. Specific powers have to be conferred on the Courts for passing such orders which would affect such rights of a party [*Padam Sen v. State of U.P. (1961) 1 SCR 884*]. In this case the Supreme Court did not uphold the order of Civil Court appointing a commissioner for seizing the account books of plaintiff on the application of the defendant. The order was held to be defective not because the Court had no power to appoint a commissioner in circumstances not covered by Section

75 and Order 26, but because the power was exercised not with respect to the matters of procedure but with respect to a matter affecting the substantive rights of the parties.

VIII. CONCLUSION

It is submitted that the following observations of **Subba Rao, J.** (as he then was) in the case of **Ram Chand v. Kanhayalal AIR 1972 SC** lay down the correct principle regarding the ambit and scope of the inherent powers of a Court under Section 151 of the Code; wherein his Lordship after considering all the leading cases on the subject pronounced:

"The inherent power of a Court is in addition to and complimentary to the powers expressly conferred under the Code. But that power will not be exercised if its exercise by inconsistent with, or comes into conflict with, any of the powers expressly or by necessary implication conferred by the other provisions of the Code. If there are express provisions exhaustively covering a particular topic, they give rise to a necessary implication that no power shall be exercised in respect of the said topic otherwise than in the manner prescribed by the said provisions. Whatever limitations are imposed by construction on the provisions of Section 151 of the Code, they do not control the undoubted power of the Court conferred under Section 151 of the Code to make a suitable order to prevent the abuse of the process of the Court."

IX. QUESTIONS OF PREVIOUS YEARS' EXAM- [DJS, RJS, UP PCS (J), MP PCS (J), BJE, HJS, HARYANA JS ETC.]

1. Explanatory Notes: Inherent jurisdiction of the Civil Court. [150 Words, RJS-1970, 1971, 1979, 50 Words, RJS-1988]
 2. State the provisions of law providing for the inherent power of Court. [15 Words, RJS-1980-81]
 3. a) What do you understand by inherent jurisdiction of Civil Court? Do you agree with the view that the inherent power has not been conferred on the Court, it is a power inherent in the Court by virtue of its duty to do justice between the parties before it?
b) Discuss whether in the following cases the Court has inherent power;
 - i) to order joint trial of suits,
 - ii) to correct its own mistakes,
 - iii) to set aside an *ex-parte* decree.
- [300 Words, UPPCS(J)-1983, 500 Words, UPPCS(J)-1987]
4. What are the inherent powers of a Court? Illustrate. [150 Words, UPPCS(J)-1986]
 5. Write a short note on inherent power of the Civil Court. [250 Words, UPPCS(J)-1999, 150 Words, BJE-1978]
 6. a) What do you understand by inherent powers of a Civil Court?
b) Does a Civil Court have the inherent powers in the following cases?
 - i) To set aside an *ex-parte* decree,
 - ii) To order joint trial of suits,
 - iii) To correct its own mistakes.

[500 Words, BJE-1991]

CHAPTER LIV

DELAY IN CIVIL LITIGATION

Dear aspirant,

One of the most vexed and worrying problems in the administration of civil justice is of delay. Millions across the country are waiting in the corridors of Courts, tribunals and commissions for justice over the wrongs alleged to have been done to them. They may be waiting for the result of a civil suit, a dispute over property or inheritance, cases of rape, murder or dowry or divorce. It may be a case of service matter; demotion or supersession or dismissal from service or denial of pension. There could be cases of claims of compensation for victims of road accidents, train accidents or accident at work place. Consumers are battling for justice when the manufacturer or a public utility like the Railways, State Electricity Board or just a hospital takes them for a ride. A few dare so to seek justice in the consumer sector, but the majority get resigned to sulking in muted anger and despondency. At the other end are the so-called offenders or criminals who languish in jails for years together waiting for trials that never take place. The litany of woes caused by delay in administration of justice is interminable.

One cannot probably blame anyone or anything in particular for the state of affairs where the litigant feels he or she is not getting justice on time. There has been a great public debate going on over the desirability of quicker dispensation of justice and dealing with the arrears of cases accumulating in Sessions Courts, the High Court and the Supreme Court. Indeed, we have devised some tangible solutions over a period of time. To lessen the burden of ordinary Courts we have in recent years set up different types of Courts to deal with different cases such as the Consumer Courts, the Administrative Tribunals, Family Courts, Lok Adalats and Fast Track Courts.

The consumer movement in India is relatively new, but consumers are organising themselves to assert their rights and taking positive steps from being taken for a ride by manufacturers and public utilities. Consumer Disputes Redressal Agencies – also known as Consumer Courts – have been set up for the resolution of consumer disputes without Court fee where no lawyer needs to be engaged. Today there are district consumer forum besides State Consumer Commissions and the National Consumer Disputes Redressal Commission.

Administrative Tribunals set up in 1985 seek to administer justice to aggrieved Government servants. The tribunals exercise jurisdiction only in relation to the service matters of the litigants covered by the Administrative Tribunals Act, 1985. As per the provisions of the Act, the aggrieved official himself can appear before the Tribunal personally. Only a nominal fee of Rs. 50 is to be paid by the litigants for filing the application before the Tribunal. The objective of the Tribunal is to provide for speedy and inexpensive justice to the litigants. We have set up the Central Administrative Tribunal with its 17 branches in different States. Likewise, there are State Administrative Tribunals too in States like Andhra Pradesh, Himachal Pradesh, Orissa, Karnataka, Madhya Pradesh, Maharashtra, Tamil Nadu, Rajasthan, West Bengal etc.

Owing to the persistent demand of women's organisations, the Family Court Act was passed in 1984 to bring under one umbrella all family issues – marriage, divorce, maintenance, custody of children and the like. In other words, when a person wants a matrimonial remedy and maintenance, instead of going to the different Courts, a man or woman can take shelter of the Family Courts. The law passed in 1984 envisages that Family Courts shall be set up in a city with a population of more than ten lakh and at such other places as the State Government may deem necessary. Till the end of 2001, there were 80 Family Courts. Many States and Union Territories have yet to set up a claim of Family Courts, though the Act was passed almost 20 years ago. The matter has been taken up by the National Commission for Women with the erring States.

<https://goo.gl/GU7yEZ> (Hard copy)
Under the Legal Services Authorities Act, Lok Adalat has been given the status of Civil Court and every award made by the Lok Adalat is final and binding on all parties and no appeal lies before any Court against its award. Permanent Lok Adalats are being set up in every district of the country.

One of the reasons for inordinate delay in the dispensation of justice is the unprecedented accumulation of cases, especially those involving under trials. Over two crore cases are pending in about 13,000 subordinate Courts. At a meeting convened at the instance of the Union Department of Justice on April 4, 2000, it was proposed that the State Governments should create temporary additional posts of judges to clear the backlog of cases. It was decided to set up as many as 1734 additional Courts, which came to be known later as fast track Courts. These Courts are to continue till 2005. These fast track Courts have already disposed of half of the 3,14,777 cases assigned to them by June, 2003 with Maharashtra and Tamil Nadu taking the lead.

Quite recently, the National Human Rights Commission (NHRC) expressed its concern over the undertrial prisoners and suggested regular holding of special Courts in jails and their monitoring by the Chief Justice/Senior Judges of the High Courts. The Commission has found that a number of under trials are languishing in jails even after being granted bail, simply because they are unable to raise sureties. The Chairman of the National Human Rights Commission, Justice A. S. Anand has suggested that these cases be reviewed to consider their suitability for release on personal bonds, especially in cases when they are first offenders and the punishment is also less than two or three years.

Justice A. S. Anand says, "slow progress of cases in Courts and the operation of the system of bail to the disadvantage of the poor and illiterate prisoners is responsible for the pathetic plight of these forgotten souls who continue to suffer all the hardships of incarceration although their guilt is yet to be established." An analysis of the prison population as on June 30, 2002 showed that 3,04,813 persons were in jails throughout the country against the prison capacity of 2,32,412 indicating overcrowding of 31.2 per cent. Seventy five per cent of these prisoners are under trials. In the Union Territory of Delhi and the States like Jharkhand, Chhattisgarh, Gujarat, Haryana and Bihar, the prison population is two to three times the total capacity of the jails. Overcrowding in prisons constitutes a clear violation of human rights, and worse still, most of the under trials spend a longer time in prison than any conviction would warrant. Where is justice gone?

There are certain things for which you cannot wait. A child crying for milk. An orphan pining for the warmth of love. A hungry man asking for a loaf of bread. And an aggrieved victim crying for quick justice. Delay here means denial.

This is the last chapter of the Code of Civil Procedure, 1908. This chapter is not important for examination point of view but this chapter is most important for interview. You should study this chapter carefully.

With best wishes,

Yours Sincerely

RAHUL

DELAY IN CIVIL LITIGATION

SYNOPSIS

I. Introduction

II. Cases of Delay

1. Increase in litigation
2. Insufficient number of Judges
3. Improper use of CPC
4. Interpretation of Legislative Enactment
5. Inefficiency of Governmental machinery
6. Unscrupulous elements in legal profession
7. Incompetent Judges

III. Amendments of 1976

IV. Amendments of 1999 and 2002

V. Suggestions

VI. Expected Questions

Ranvijay IAS

CHAPTER LIV

DELAY IN CIVIL LITIGATION

I. INTRODUCTION

One of the most vexed and worrying problems in the administration of civil justice is of delay. Jonathan Swift in his famous work "Gulliver's Travels" sarcastically describes the delay in Courts in the following words:

"In pleading, they (lawyers) studiously avoid entering into the merits of the cause; but are loud, violent and tedious in dwelling upon all circumstances which are not to the purpose..... they never desire to know what claim or title my adversary hath to my cow, but whether the said cow were red or black; her horns long or short; whether the field I graze her in be round or square; whether she were milked at home or abroad; what diseases she is subject to; and the like; after which they consult the precedents, adjourn the cause from time to time, and in ten, twenty or thirty years come to an issue.

Procedure is the handmaid of justice. It is to be used so as to advance the cause of justice and not to thwart it. An essential requirement of justice is that it should be dispensed as quickly as possible. It is a well known adage that "justice delayed is justice denied". However, delay in litigation is equally proverbial and, though it may sound paradoxical, the fact remains that the very provisions of the Code which are designed to facilitate smooth and speedy trial of cases are misused and abused in order to delay the cases indefinitely and ultimate success in the cause often proves illusory. The result is that cases pile up and a huge backlog accumulates in all Courts. The problem of backlog and delay in litigation has been engaging the attention of the Law Commission for a long time and as a result of its recommendations, made from time to time, fairly extensive changes have been made in the provisions of the Code in 1976 with a view to removing the causes of delay. However, those changes seemed to have had little impact, more changes, therefore, made by the Amendment Acts of 1999 and 2002.

II. CASES OF DELAY

A number of causes seem to be responsible for this sorry state of affairs. An attempt has been made here to identify some of the causes and suggest measures to remove them. It appears that the main causes of delay are as follows:

1. Increase in litigation

A glance through the figures of cases filed in Courts over a number of years would clearly show that litigation has been increasing phenomenally in the country. The Courts were over flooded with cases and though more and more Courts are being set up, the increase in their number is not sufficient to keep pace with the increased number of cases.

2. Insufficient number of Judges

There is a general feeling that the Government is not appoint a sufficient number of Judges to deal with the increasing work. It is a common experience that even existing vacancies in various High Courts remain unfilled for an unduly long time. Prompt appointment of Judges to fill the existing vacancies and creation of additional posts in sufficient number would go a long way to solve the problem of delay and arrears.

3. Improper use of CPC

Much of the delay occurs because the provisions of the Code are not properly observed and followed. After filing a plaint, the process fee is not paid for a long time so that summons to the defendant is not served in time. After a defendant makes his appearance, his advocate often seeks long adjournments to file the written statement. After the pleadings are closed, there comes the stage of producing documentary evidence before issues are settled but nobody bothers to produce documentary evidence at this stage. Little use is made of the provisions for discovery and inspection of documents and for serving interrogatories. If these provisions are properly used, the controversy between the parties can often be narrowed before the parties go to trial. However, what usually happens is that when the suit comes for trial, the advocates sit down in the Court, open their briefs, probably for the first time, and

<https://goo.gl/6U7xEZ> (Hard copy)
begin laboriously to prepare lists of documents, etc. All the while the poor Judge sits idly on the Bench, helplessly looking on. Countless hours are wasted in this way.

4. Interpretation of Legislative Enactment

It is a matter of common knowledge that in a large number of cases coming before the High Courts and the Supreme Court, the dispute is about the interpretation of the legislative enactment in question. The increase in the number of such cases is due to several reasons. There has been a vast expansion of the functions and activities of the State in all spheres with a corresponding increase in the number of laws enacted every year. But there is no reason why mere increase in the number of laws should by itself give rise to increase in litigation. Unfortunately, however, the laws are often hastily drafted with the result that the drafting is often loose and leaves great scope for lawyers to raise arguments about their interpretation. The difficulty of interpreting laws is often compounded by frequent and thoughtless amendments which, though intended to clarify the intention of the legislature, often fails to achieve the designed object and on the contrary results in greater confusion. The words of a statute are not inaugural words but words of valediction. 'The problem has been tackled, long live the problem' is the message of most progressive legislations in India.

5. Inefficiency of Governmental machinery

After the High Courts are empowered under Article 226 of the Constitution of India to issue prerogative writs and after the definition of "State" being liberally interpreted by the Supreme Court so as to include the Union Government, State Governments, statutory corporations, nationalised banks, universities and any authority which is an instrumentality or agency of the Government, there is a soaring rise in litigation against the Government, with the result that today the Government is probably the biggest litigant in the country. The inefficiency of the Governmental machinery has naturally been responsible for considerable delay in disposal of cases where the Government is a party.

6. Unscrupulous elements in legal profession

The attitude of some lawyers is also to some extent responsible for delay. In many cases, where the plaintiff has obtained interim or ad interim relief, he is naturally interested in delaying the proceedings so that stay or injunction is continued as far as possible. Similarly, where the defendant has no defence, he is naturally interested in prolonging the trial with a view to put off the evil day as long as possible. It is the ingenuity of advocates in taking advantage of technicalities which helps defendants in such cases. Lawyers are also known to apply for frequent adjournments on flimsy grounds. When a particular ground, such as his sickness or personal problem, is advanced by the advocate, it is usually not possible for a Judge to examine whether the ground is genuine or not and it is in the fitness of things that he should normally accept as true what an advocate says. However, when this is the position, it is equally the duty of lawyers not to seek adjournments on flimsy or non-existent grounds. It is not suggested that such practices are widespread and that a majority of lawyers indulge in such tactics. But it cannot be denied that, as in every profession, there are unscrupulous elements in the legal profession too and that they are responsible for much of the delay in litigation.

7. Incompetent Judges

The Judges in our country have a reputation for honesty and integrity. But that is not enough. It is an unfortunate fact that, owing to a variety of circumstances – this is not the place to go into them – Judges are not drawn from the most talented members of the Bar. The result is that those who are much junior in practice find themselves appointed as Judges and quite often they are not able to control senior members of the Bar. They lack the experience and maturity required of a Judge. Their grasp of law and fact leaves much to be desired. They are unable to impress senior members of the Bar who often possess much stronger personalities than the Judges. They tend to avoid 'heavy matters'. Senior advocates know very well that when they apply for adjournment in a 'heavy matter', the Judge is sure to grant it, though after making a great show of being inconvenienced and lecturing the advocate about the matter being old. Often the Judge has not read the papers at home and when an advocate cites ruling after ruling, the Judge gets lost and the hearing becomes very lengthy. If the Judge is well-versed in law and is quick to grasp facts, he can immediately pull

<https://goo.gl/GU7xEZ> (Hard copy)
up the advocate and cut short irrelevant arguments. Mere increase in the number of Judges will not solve the problem. What is necessary is that experienced lawyers with a strong personality and character should be induced to accept appointment as Judges so that the Bar looks up to the Bench and not down upon it.

III. AMENDMENTS OF 1976

It must be conceded that by the Amendment Act of 1976, extensive changes were made in the Code of Civil Procedure, 1908, all designed to avoid delay at every level. The necessary amendments were made in the provisions relating to appearance of parties, filing of written statements, production of documents, issue of summons, framing of issues, examination of parties, summoning and enforcing attendance of witnesses, adjournments and pronouncement of judgment. The right of appeal and revision has been considerably curtailed. Execution proceedings have also been made more effective. Over and above these changes, certain important changes have been effected, e.g. widening of the doctrine of res judicata, summary procedure, specific provisions relating to set-off and counterclaim, garnishee order, appeal by indigent persons, costs for vexatious litigation, exemption from attachment of certain properties, legal aid to indigent suitors, etc.

IV. AMENDMENTS OF 1999 AND 2002

The amendments made in 1976 were not found sufficient. In pursuance of the recommendations made by Justice Malimath Committee, extensive changes have been made in 1999 and 2002 in the provisions relating to issuance of summons, filing of written statement, amendment of pleadings, production of documents, examination of witnesses and recording of evidence, grant of adjournments, fixing time for oral arguments, pronouncement of judgment, preparation of decree, etc. A new provision for settlement of disputes outside the Court has been introduced.

V. SUGGESTIONS

The present Code of Civil Procedure after the Amendments of 1976, 1999 and 2002 is an attempt to provide justice keeping in view, inter alia, the basic consideration that justice should not be delayed. The changes made by the Amendment Acts are, however, not sufficient.

The following suggestions are made with a view to reducing delay in civil litigation:

- i) There is one provision, which, if used effectively by Courts, can help to cut short the litigation. Order 10, Rule 2 provides that at the first hearing of the suit, the Court (a) shall, with a view to elucidating matters in controversy in the suit, examine orally such of the parties to the suit appearing in person or present in Court, as it deems fit; and (b) may orally examine any person, able to answer any material question relating to the suit, by whom any party appearing in person or present in Court or his pleader is accompanied. Thus, this provision casts a duty on the Court to examine the parties orally before settling the issues. In practice, however, this provision is simply ignored and issues are invariably raised from the pleadings of the parties. If the Judge examines the parties orally, it is quite likely that many a time the truth will come out immediately in spite of what is stated in the pleadings. This will obviate the need for examining numerous witnesses on either side on a point of disputed fact.
- ii) Even though the Law Commission recommended deletion of a statutory notice under Section 80, it has been retained. It is submitted that because of two reasons such notice is not necessary: firstly, the State or Public Officer should not have a privilege in the matter of litigation as against a citizen and should not have a higher status than an ordinary litigant in this aspect. As a matter of fact, such notice is not necessary for taking proceedings under Articles 32 and 226 of the Constitution of India; and secondly, as observed by Justice Krishna Iyer, it is intended to alert the Government to negotiate a just settlement of at least have the Courtesy to tell the aggrieved person why the claim is being resisted. But it has become an empty formality because the administration is always unresponsive. The provision relating to notice is, therefore, required to be deleted.
- iii) Certain provisions, on the other hand, are not properly applied, e.g. Sections 99 and 99-A (no decree or order under Section 47 to be reversed or modified for error or irregularity not affecting the merits of the case, etc.) have not been usually pressed into service by Courts or even by parties. Similarly, Sections 35-A and 35-B (compensatory costs in respect of false or

https://goo.gl/6UxkE2 (best copy)

vexatious claims or defences and for causing delay) are rarely used by Courts or even by litigants. Again, though Order 41, Rule 11 expressly authorises an appellate Court to dismiss First Appeals summarily by recording reasons, this provision is not known to be used by appellate Courts other than High Courts, and all First Appeals are admitted by appellate Courts as a matter of course. Further, though Order 41, Rule 3-A prohibits an appellate Court to grant stay when the appeal is time-barred, in many cases, appellate Courts grant stay/injunction subject to the limitation being condoned. This is clearly contrary to the legislative intent reflected in Rule 3-A. Similarly, in spite of the specific provision in Order 41, Rule 23-A for ordering remand when the case does not fall within the sweep of Rule 23 or Rule 25, generally, it is not resorted to by appellate Courts.

- iv) Sometimes, the Government files an appeal even though there is no substance in it or the point is covered by the judgment of the Supreme Court. In **State of Maharashtra v. Vinayak Deshpande, AIR 1976 SC**, the Supreme Court had to observe:

"It is indeed difficult to understand as to why the State of Maharashtra should have preferred the present appeal at all We do not think it is right that the State Government should lightly prefer an appeal in this Court against the decision given by the High Court unless they are satisfied, on careful consideration and proper scrutiny, that the decision is erroneous and public interest requires that it should be brought before a superior Court for being corrected. The State Governments should not adopt a litigious approach and waste public revenues on fruitless and futile litigation where there are no chances of success."

It is undoubtedly true that if the Government were more careful in deciding whether to carry the matter in appeal or not, a number of appeals filed by the Government may substantially diminish.

- v) In many cases the Court issues a notice to the Government or public bodies at the admission stage so as to settle the case immediately where the point at issue is such that regular hearing is hardly necessary and the matter could be decided promptly. Unfortunately, however, the Government machinery is very slow to act and, more often than not, there is no response to the notice and the Court is constrained to admit the matter which remains pending for a number of years when it could have been disposed of at the initial stage.
- vi) It is possible to reduce the burden of cases on regular Courts by exploring the possibilities of setting up other forums where the disputes between the parties can be settled more informally and speedily, though under some kind of judicial supervision, e.g. separate Family Courts have been set up to deal with matrimonial cases and other disputes relating to family affairs. Members of such Courts may be appointed from amongst serving or retired Judges. Similarly, if more tribunals are created to deal with disputes arising under various laws, the burden on regular Courts will be reduced to that extent. Since these Family Courts and tribunals will be subject to the supervisory jurisdiction of the High Court under Article 227 of the Constitution, it will ensure that they decide the cases coming before them judiciously and in accordance with law and not arbitrarily or capriciously. In this connection, it will be appropriate to mention of the experiment of holding Conciliation Courts and Lok Adalats which is being carried on in many States. Such Adalats are held at various places from time to time and apart from Judges and lawyers, social workers are also invited to attend the proceedings and help the parties in settling their disputes informally. This experiment, it is submitted, is worth making in all States.

It may be stated at this stage by the Code of Civil Procedure (Amendment) Act, 1999, which has come into force from July 1, 2002, a provision has been made (Section 89) for settlement of disputes outside the Court through arbitration, conciliation, mediation and Lok Adalats.

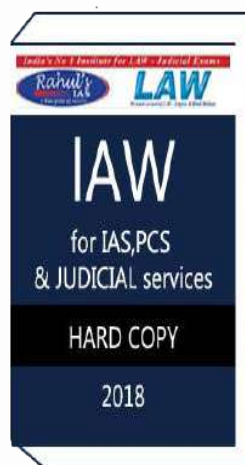
- vii) Last but not the least, all agree that justice must be cheap and expeditious. However, in order to provide cheap and expeditious justice, it is necessary to appoint competent Judges. But the present emoluments of Judges are so meagre that they do not attract competent people to the Bench. If society wants cheap and expeditious justice, it must also bear the expense of competent Judges.

VI. EXPECTED QUESTIONS

Following questions can be asked from this chapter (in interview):

1. What are the cases of delay in civil litigation?

2. Please give your suggestions for speedy disposal of civil cases.
<https://goo.gl/mEZwV1> (Hard copy)
3. What amendments have been made by the Code of Civil Procedure Amendment Act, 1999 and 2002?
4. Whether the amendments made by the 1999 and 2002 Amendment Act will be helpful for speedy disposal of case? Explain.
5. To lessen the burden of ordinary Courts, what steps have been taken by the Government?
6. What are Administrative Tribunals?
7. In which States the Administrative Tribunals are established?
8. What is the jurisdiction of Family Courts?
9. What do you know about Lok Adalat?
10. How many cases are pending in our country in Subordinate Courts?
11. What do you know about fast - track Courts?
12. Can a Judge examine the party for the purposes of framing issues?



Want to crack one of the toughest competitive exams

walls like:-

 **online**
TEST
UPSC, SSC
& BANK

then join our **online test series**, which is based on the latest **SYLLABUS PATTERN**, with various questions on **DIFFRENT TOPICS.**



runal.app


 **0120-4160241**